

ANNALS
OF THE
PERSECUTION IN SCOTLAND,
FROM THE
RESTORATION TO THE REVOLUTION

By JAMES AIKMAN, Esq.,

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THE PERSECUTION IN SCOTLAND ***



A. Ritchie, Del'. — W. Douglas, Sr.

Execution of the Marquis of Argyle, anno 1661.

Vide page [40](#).

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ANNALS

OF THE

PERSECUTION IN SCOTLAND,

FROM THE

RESTORATION TO THE REVOLUTION.

BY JAMES AIKMAN, Esq.,

AUTHOR OF "THE HISTORY OF SCOTLAND," &c.

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CONTENTS.

INTRODUCTION

P. [ix](#)

BOOK I. A.D. 1604.-1660.

Presbytery, the favourite form of religion in Scotland with the people, opposed by James VI.—At first opposed, afterwards sanctioned, by Charles I.—Solemn League and Covenant—Confession of Faith—Defeat of the Duke of Hamilton and death of Charles—State of the Church—Charles II. crowned—Divisions amongst the Presbyterians—Resolutioners—Remonstrators—Protectorate of Cromwell—State of religion during that period—Restoration—Sharpe sent to London—Religious parties in Scotland—Sharpe's double dealing—Sudden change of manners—Rejoicings—Fears of the Remonstrators—Difference with the Resolutioners—First measures of the King—Promotes the enemies and persecutes the friends of the Covenant—Proceedings of the Committee of Estates, urged on by Sharpe—King's letter to the Edinburgh ministers—Exultation of the Resolutioners—Persecute their brethren—Committee of Estates order Lex Rex, &c. to be burned—Proclamation against the Remonstrants—Interference with regard to elections—Proclamation for a meeting of Parliament

[1](#)

BOOK II. DECEMBER 1660 to 12th JULY 1661.

Lord High Commissioner arrives in Edinburgh—Parliament—Its composition—Act of indemnity withheld—Lord Chancellor restored to the Presidentship—Oath of allegiance—

[21](#)

Retrogression in reformation-work—Divine right of Kings asserted—Solemn League and Covenant repealed—Engagement approved, &c.—Declaration—Resolutioners begin to perceive their error—Middleton amuses the ministers of Edinburgh—Manner of concocting the Act rescissory and of getting it passed—Middleton's interview with D. Dickson and part of the Edinburgh presbytery—Distress of the ministers—Dispersion of the synods—Concluding acts—Trial of Argyle—his behaviour before and at the place of execution—Trial of James Guthrie—his behaviour and execution—Captain Govan—Prosecutions of Mr Traill of Edinburgh—Mr Moncrief of Scone—Intrepid reply of his wife—Mr Robert Macwaird of Glasgow—his striking picture of the effects of the Restoration—his accusation—defence—banishment—Swinton of Swinton—Sir John Chiesly and Mr P. Gillespie's escape—Parliament rises—Samuel Rutherford

BOOK III. AUGUST, A.D. 1661-1662.

Lord High Commissioner sets out for Court—his reception—Deliberations of the Council—Episcopacy resolved upon as the National Religion of Scotland—Glencairn, Rothes, and Sharpe appointed to carry the tidings to Edinburgh—King's letter—Privy Council announce the overthrow of Presbytery—forbid the election of Presbyterian magistrates in burghs—prosecute Tweeddale—Ministers summoned to London to be episcopally ordained—their characters—their consecration—Grief of the Presbyterians—Re-introduction of Episcopacy—Restrictions on the press—Witchcraft—Synods discharged and bishops ordered to be honoured by royal patent—their consecration—Parliament restores their rank—asserts the King's supremacy—The Covenants declared unlawful—Act of fines—defeated—Lord Lorn—Blair and other ministers deprived—King's birthday—Middleton's visit to the West and South—Case of Mr Wylie—Brown of Wamphray—Livingston, &c.—Middleton removed and Lauderdale appointed

BOOK IV. DECEMBER, A.D. 1662-1664.

State of the West and South—Bishops' curates—their reception—
Tumult at Irongray—Commission sent to Kirkcudbright and
Dumfries—Field-preaching—Roths and Lauderdale arrive in
Scotland—Parliament—Warriston's arrest and execution—
Principal Wood of St Andrews and other ministers silenced and
scattered—Troops ordered to enforce the Acts of Parliament—
their outrages—Sir James Turner—High Commission Court—
its atrocities—Privy Council—its exactions—prohibits private
prayer-meetings or contributing money for the relief of the
sufferers—William Guthrie of Fenwick laid aside—Donaldson
of Dalgetty's case—Death of Glencairn—Political changes

[96](#)

BOOK V. JANUARY, A.D. 1665-1666.

Partial moderation of the King—Sir James Turner's campaign
through Kirkcudbright and Galloway—Unpaid fines levied—
Students' oaths—All meetings for religious purposes forbid—
Quietude of the country—Proclamation of the council—
Apologetical Relation—Sir James Turner's third campaign
extended to Nithsdale—visits Mr Blackadder at Troqueer—
More troops raised—Rigorous acts more rigorously enforced—
Rising of the persecuted—they gather strength—their
operations—Defeated at Pentland—Prelatic revenge—
Testimony of the sufferers—Torture introduced—Nielson of
Corsack—Hugh M'Kail—Executions in Edinburgh and the
west country—William Sutherland—Executions at Ayr

[127](#)

BOOK VI. JANUARY, A.D. 1667-1669.

Dalziel sent to the South and West—his cruelty, and that of the
inferior officers—Sir Mungo Murray—Sir William Bannatyne
—Arrival of the Dutch fleet—Crusade abates—Forfeitures
increase—Standing army proposed—Convention of estates—

[169](#)

Cess—King’s letter—West country disarmed—Sir Robert Murray sent to Scotland—Army partially disbanded—Political changes—Bond of peace—Trials of Sir James Turner and Sir William Bannatyne—Field-preaching proscribed—Michael Bruce—John Blackadder—Attempt upon Sharpe’s life—Search for the assassin—Remarkable escape of Maxwell of Monreith—Case of Mr Robert Gray, merchant—Mrs Kelso and Mrs Duncan—Death of Mr Gillon, minister of Cavers—Field-preaching and family-worship punished—Mr Fullarton of Quivox before the Council—Mr Blackadder patrols his “diocese” untouched safely—Mr Hamilton, minister of Blantyre

BOOK VII. JULY, A.D. 1669-1670.

An indulgence proposed—partially accepted by the ministers—
Mr Hutchison’s address—Proclamation against those who
refused it—Archbishop of Glasgow’s remonstrance—
Parliament asserts the king’s supremacy—vote the militia, and
a security for orthodox ministers—Field-meeting in Fife—
Difference between Presbyterians and prelatists in doctrine and
teaching—Curates disturbed—Lecturing forbid—
Compromising ministers—Success of the gospel—Remarkable
meeting at the Hill of Beath, &c.—Rage of the Primate—
Strange escape of four prisoners

[187](#)

BOOK VIII. JULY, A.D. 1670-1674.

Parliament—Act against conventicles—Bond—Leighton’s efforts
to reform the Episcopate—Council appoint a committee—
Leighton attempts an accommodation—Conference—Rigid
treatment of indulged ministers—Conventicles increase—
Implacability of the prelates—Lady Dysart—Ascendency of
Lauderdale—Parliament—Finings—Indulgence—Dissensions
of the ministers—Sufferings of the indulged—Mr Forrester and

[207](#)

Mr Burnet abandon Prelacy—their testimony—Proceedings at the meeting of estates—Mr Blackadder’s tour in Fife—Ministers’ widows’ petition—its consequences—Sharpe’s troubles

BOOK IX. A.D. 1674-1676.

Divisions among the ministers respecting the church and self-defence—Armed meetings—Severities increase—Lord Cardross—Religious revivals in the North—Mr M’Gilligan—Civil oppression—Home of Polwart—Finings—Durham of Largo—Magistrates of Edinburgh—Sufferers sent to France as recruits—Proclamation to expel the families of gospel-hearers from the Burghs, and enforce the conventicle act—Instructions for the indulged—Progress of the gospel—Rage of the prelates—Mitchell tortured [238](#)

BOOK X. A.D. 1676-1677.

Remarkable sacramental solemnities occasion harsher measures—Council new-modelled—Committee for public affairs—Kerr of Kersland—Kirkton—The expatriated pursued to Holland—Colonel Wallace [256](#)

BOOK XI. A.D. 1677.

Meeting of the ministers in Edinburgh—Prosecutions for not attending the kirk—Lord Cardross—Conventicle at Culross—Bond—Lauderdale comes to Scotland—Pretended moderation—Alarm of the bishops—Carstairs attacks John Balfour’s house—Council’s design of raising a standing force—Resolutions of the West country gentlemen—Conventicles increase—Communion at East Nisbet—Common field-meeting—King authorizes calling in the Highland clans [265](#)

BOOK XII. A.D. 1678.

Privy Council forbids emigration—Mitchell's trial and execution [286](#)
—Highland host—Committee of the council arrive at Glasgow
—Deputation from Ayr sent to the Commissioner—Bond
refused—Committee proceed to Ayr—Earl of Cassilis—Law-
burrows—Case of Lord Cochrane—Ravages of “the Highland
Host”—their return home—Earl of Cassilis goes to court—
Duke of Hamilton follows—Complaints dismissed—State of
the country

BOOK XIII. JANUARY TO MAY, A.D. 1679.

Public teachers and students required to take the oath of [336](#)
supremacy—A boy imprisoned for refusing—Husbands
punished for their wives' contumacy—landlords for their
tenants'—Overture of the council—Country put under military
law—Reprisals—Outrages of the commissioners of shires—
Death of Sharpe—Escape of Veitch—Murder of Inchdairney

BOOK XIV. MAY TO DECEMBER, A.D. 1679.

Outrages of the soldiery—Dissensions among the persecuted— [359](#)
Commutations in the West—Rutherglen declaration—Rising of
the Presbyterians—Skirmish at Drumclog—Royal troops retire
to Edinburgh—Divisions among the Presbyterians—Arrival of
Monmouth—Battle of Bothwell Bridge

BOOK XV. A.D. 1680.

Perplexity of the moderate ministers—Murder of Mr Hall— [397](#)
Queensferry paper—Cargill joins Cameron—Sanquhar
declaration—Council's proclamation in reply—Reflections—
Bond—Fresh plunderings by Dalziel—Skirmish at Airs-moss
—Death of Cameron—of Rathillet—Cargill—Torwood
excommunication—York arrives in Edinburgh—Spreul

tortured—Skene, Stewart, and Potter executed—Effigy of the Pope burnt

BOOK XVI. A.D. 1681.

Edinburgh College shut—Isobel Alison and Marion Harvy executed—Other executions—Search for covenanters—Thomas Kennoway's exploits—Mock courts held by Cornet Graham and Grierson of Lag—Mr Spreul tried—acquitted—sent to the Bass—John Blackadder, Gabriel Semple, and Donald Cargill seized—Walter Smith, William Cuthil, and others apprehended, tried, and executed [414](#)

BOOK XVII. A.D. 1681.

Parliament—Act for securing the Protestant religion—asserting the divine right and lineal succession of their kings—for securing the peace of the country—Lord Bargeny's case—THE TEST—debate upon it—Belhaven—Argyle—objections to its imposition—Argyle takes it with an explanation—his trial—escapes from the Castle—forfeited—Fraser of Brea—fined—banished [437](#)

BOOK XVIII. A.D. 1681-1682.

Society-men—their first general meeting—State of the country—Ure of Shargarton—Wavering of the Episcopalians—Lanark declaration—burned at Edinburgh—Harvey hanged—Mr P. Warner—York recalled to court—New government—Robert Gray executed—Dalziel sent to the west—Meeting at Priest-hill—at Tala-linn—Major White and the Laird of Meldrum—their proceedings—Hume of Hume executed—Lauderdale's death [452](#)

BOOK XIX. A.D. 1682-1683.

Persecution instigated by the curates in the South and West—[465](#)
Noble conduct of a boy—Rapacity of the military—
Instructions of the council—exploits of Claverhouse, Meldrum,
&c.—Retributive justice—Justiciary court—Lawrie of
Blackwood—Circuit courts—Rye-house plot—Scottishmen
implicated—Various instances of oppression

BOOK XX. A.D. 1684-1685.

Persecutions increase—"Killing Time"—Proscription and
plundering—Husbands fined for their wives' non-attendance at
church—Torture—Executions—Campbell of Cessnock—Paton
of Meadowhead, &c.—Females sold for slaves—Spence—
Carstairs—Baillie of Jarvieswood—Circuit courts—Porterfield
of Douchal—Finings—Proceedings of the society-men—
Review of the state of the country during this period—Death of
Charles

BOOK XXI. A.D. 1685.

Accession of James VII.—Proceedings of the privy council—[510](#)
Field murders—Northern commission—Indemnity—Outrages
in the south—Two women drowned—John Brown, "the
Christian Carrier"—Parliament—Argyle's expedition—
Suspected persons sent to Dunotter—Argyle defeated—taken
—executed—Colonel Rumbold—Nisbet of Hardhill and other
sufferers

BOOK XXII. A.D. 1686-1688.

Conduct of the soldiers—A riot—Recantation of Sibbald—[533](#)
Alexander Peden—Proceedings of the society-men—Synod of
Edinburgh—Parliament—Disputes among the persecuted—
Indulgence—Thanksgiving for the Queen's pregnancy—

Seizure and death of Mr Renwick—Dr Hardy's trial and acquittal—Rescue of David Houston—Murder of George Wood—Arrival of the Prince of Orange

INTRODUCTION.

The first annunciation of the gospel in Eden to fallen man, was accompanied with an assurance of persecution:—"I will put enmity between thee and the woman, and between thy seed and her seed: it shall bruise thy head, and thou shalt bruise his heel." And the same was explicitly renewed under the New Testament dispensation, where it is declared with peculiar emphasis—"Yea, all that will live godly in Christ Jesus shall suffer persecution." But, like "the primal curse, 'tis softened into mercy;" nay more, it is transformed into a blessing—"Blessed are ye when men shall revile you and persecute you, and shall say all manner of evil against you falsely for my sake: rejoice, and be exceeding glad; for great is your reward in heaven." That these promises have been made good, the history of the Church in all ages bears testimony; and there is no testimony stronger than that of the Church in Scotland, whether we consider the fiery trials she has gone through, or the noble records her martyrs have left to the truth and faithfulness of God.

Christianity appears to have been introduced at a very early period, and never to have been wholly extinguished by the idolatries of Rome, in the south-western districts, where the Lollards of Kyle arose as harbingers of the Reformation, some time towards the end of the fourteenth century. In the year 1407, James Resby, an English presbyter, and a disciple of Wickliffe, was burned for Lollardism in Scotland, especially for interspersing these most dangerous dogmas in his sermons, "that a Pope was not in fact the vicar of Christ; nor could any Pope be so, unless he was holy;" besides forty other similar or worse conclusions, and his tenets spread widely. He was followed, 1431, by Paul Craw, "deprehendit," says Knox, "in the Universitie of Sanct Androis, and accusit of Heresie before suche as wer called Doctors of Theologie," and sent to expiate his errors in

the flames. At his execution, they put “ane ball of bras in his mouthe to the end that he sould not gif confession of his faythe to the pepill, neyther yit that thai sould understand the defence which he hade agains their unjust accusation and condemnation.”

The political anarchy and confusion which prevailed in Scotland at this time, and in which the priests took an active share, seem to have diverted their attention for a while from prosecuting their schemes against the new obnoxious opinions; but when Luther shook the papacy, and his doctrines gaining ground on every side, had stirred up their slumbering hatred, the renovated warfare was announced by the martyrdom of Mr Patrick Hamilton and of “the Scottish John Baptist,” as Mr George Wishart has been styled. But the prelates, who had shut their eyes to the signs of the times, grievously miscalculated. The ministry of these two eminent men had produced on the already prepared population, a disposition not only to profess the truth themselves, but also to endeavour a national reformation; and their martyrdom hastened the crisis. Instead of terrifying, it enraged the people against the superstition which could require for its support the perpetration of such deadly crime.

During the nominal reign of the unfortunate Mary, but more especially after her flight into England, the cause rapidly progressed; and the Regents, however different in character, were obliged by the circumstances of the times in which they were placed, to aid in its furtherance. The absurd constitution of Scotland, that allowed a child unfit for governing himself to assume the power of governing a nation, occasioned various changes. After the accession of James VI., till previously to his marriage, he acquiesced in the presbyterial government, which, upon his return from Denmark with his queen, he declared in presence of the General Assembly to be “the purest kirk upon earth,” and promised to defend it “against all deadly”—a promise he soon forgot, and forced upon his reluctant subjects a mongrel Episcopacy. This was followed up by his son Charles, who, after some preliminary encroachments, sent down a liturgy with an order to adopt it.

July 23, 1637, was the remarkable day on which the Bishop of Edinburgh, robed in his canonicals, attempted to introduce it in the High Church; but no sooner had he opened the service-book, than an old woman, Janet Geddes by name, threw her stool at his head, which was quickly followed by a number of others, the whole congregation meanwhile crying

out—“A Pope! a Pope!” and both the bishop and dean were forced out of the church, and driven home amid a shower of stones, hardly escaping with their lives. Commotions followed, till a free General Assembly met at Glasgow, November 21, 1638, where the Presbyterian form of church government was declared and acted upon as the government of the church, most agreeable to the gospel and the law of the land, which was acknowledged by the king at the treaty of Dunselaw, June 18, 1639.

When the civil war broke out, the English parliament convened an Assembly of Divines at Westminster, to which the General Assembly of the Kirk of Scotland sent four of their chief ministers, not less distinguished for their talents, than revered for their piety—Alexander Henderson, Samuel Rutherford, George Gillespie, and Robert Baillie, accompanied by Lord Maitland, afterwards Duke of Lauderdale, “a man of excellent parts had they been blessed and improven; but as then his reputation was entire.” The Confession of Faith, Catechisms, and Directory for Worship, which were here agreed upon, were received and sanctioned in their session 1648, and ratified by the Scottish parliament. For defending these, the persecutions narrated in the following pages were endured.

ANNALS OF THE PERSECUTION.

BOOK I.

A.D. 1604.-A.D. 1660.

Presbytery, the favourite form of religion in Scotland with the people, opposed by James VI.—At first opposed afterwards sanctioned by Charles I.—Solemn League and Covenant—Confession of Faith—Defeat of the Duke of Hamilton and death of Charles—State of the Church—Charles II. crowned—Divisions among the Presbyterians—Resolutioners—Remonstrators—Protectorate of Cromwell—State of religion during that period—Restoration—Sharpe sent to London—Religious parties in Scotland—Sharpe's double dealing—Sudden change of manners—Rejoicings—Fears of the Remonstrators—Difference with the Resolutioners—First measures of the King—Promotes the enemies and persecutes the friends of the Covenant—Proceedings of the Committee of Estates, urged on by Sharpe—King's letter to the Edinburgh ministers—Exultation of the Resolutioners—Persecute their brethren—Committee of Estates order Lex Rex, &c. to be burned—Proclamation against the Remonstrants—Interference with regard to elections—Proclamation for a meeting of Parliament.

Ever since the days of the Reformation, Scotland has been distinguished by the attachment of her inhabitants to simplicity in the forms of their religious worship, and a dislike to pomp or lordly power in their ministers. Presbytery, of which these are the prominent features, has in consequence always been the favoured mode of ecclesiastical polity with the people; unfortunately her monarchs, previous to the Revolution of 1688, were as decidedly averse to it; and their tyrannical attempts to substitute a hated hierarchy in its place, involved the country, for three generations, in contention and bloodshed, persecution and distress, till the struggle issued in the final expulsion of the Stuarts from the throne.

James VI., after having given the Presbyterian church the royal sanction, and paid it the highest encomiums as the “purest kirk upon earth,” and having repeatedly promised and vowed “to support it against all deadly,” spent the greater part of his life in endeavours to overturn it. He succeeded in forcing upon an unwilling people a kind of mongrel prelacy, and left to

his son the hazardous task of finishing his designed uniformity in religious worship between the two kingdoms.

Charles proceeded with more violence; and, by attempting to obtrude a detested liturgy, he destroyed the fabric it had cost his father so much king-craft to rear, and led to the remarkable renewing of the NATIONAL COVENANT, which, early in the year 1638, was subscribed with enthusiastic fervour by all ranks throughout the land. A free General Assembly, convened at Glasgow in that year, November 21, accomplished what has usually been termed the second glorious Reformation, by restoring Presbytery to its primitive simplicity, and sweeping away all the innovations against which they had so long struggled. The proceedings of this assembly were afterwards solemnly confirmed by the estates; and Scotland for a short period enjoyed a hollow peace, while the king was contesting with his English parliament. Afraid, however, if the king overcame in the contest, that they would hold their own liberties by a very feeble tenure, they entered into a solemn league and covenant with the parliament for the mutual preservation of their religion and liberty, for promoting uniformity in worship and doctrine between the two nations, and for exterminating popery, prelacy, and schism: their weight decided the fate of the war.

When the English hierarchy had fallen, and the king's power was reduced, an assembly of the most learned divines that perhaps ever met in Britain, was called by authority of the English parliament. Assisted by commissioners from Scotland, they drew up the admirable Confession of Faith, with the Larger and Shorter Catechisms, still the standards of our national church; but they differed on the Directory for Worship, against which some of the most learned of the Independents dissented—a prelude to more serious differences.

After Charles had been beaten out of the field, and was intriguing in a variety of ways with the army and with the English parliament, a majority in the Scottish estates, headed by the Duke of Hamilton, rashly “engaged” by a secret treaty to attempt his rescue. The church opposed war with England, as Charles would give only an equivocal pledge for supporting the establishment of Presbytery in that country; and they feared his duplicity in case he regained unrestricted power; and the minority in the estates also “protested” against it. The engagers being defeated at Preston, the protesters, whose leader was the Marquis of Argyle, came into power, and

Scotland separated into two parties. Shortly after the defeat of the Scots, the king was brought to trial and executed, in spite of their remonstrances, which, now that they were divided among themselves and had no army to back them, were little regarded.

At this time the church of Scotland reached her greatest pitch of splendour. “For though,” says a contemporary historian, “alwayes since the assembly at Glasgow the work of the gospel hade prospered, judicatories being reformed, godly ministers entered, and holy constitutions and rules daily brought into the church; yet now, after Duke Hamilton’s defeat, and in the interval betwixt the two kings, religion advanced the greatest step it had made for many years: now the ministrie was notably purified, the magistracy altered, and the people strangely refined. It is true, at this time hardly the fifth part of the lords of Scotland were admitted to sit in parliament; but those that did sitt were esteemed truly godly men; so were all the rest of the commissioners in parliament elected of the most pious of every corporation. Also godly men were employed in all offices, both civil and military; and about this time the General Assembly, by sending abroad visiters into the country, made almost ane entire change upon the ministry in several places of the nation, purgeing out the scandalous and insufficient, and planting in their place a sort of godly young men, whose ministry the Lord sealed with ane eminent blessing of success, as they themselves sealed it with a seal of heavy sufferings; but so they made full proof of their ministry.

“Scotland hath been even by emulous foreigners called Philadelphia; and now she seemed to be in her flower. Every minister was to be tried five times a-year, both for his personal and ministerial behaviour; every congregation was to be visited by the presbytery, that they might see how the vine flourished and the pomegranate budded. And there was no case nor question in the meanest family in Scotland but it might become the object of the deliberation of the General Assembly; for the congregational session’s book was tried by the presbytery, the presbytery’s by the synod, and the synod’s by the General Assembly. Likeways, as the bands of the Scottish church were strong, so her beauty was bright; no error so much as named; the people were not only sound in the faith, but innocently ignorant of unsound doctrine; no scandalous person could live; no scandal could be concealed in all Scotland, so strict a correspondence there was between

ministers and congregations. The General Assembly seemed to be the priest with Urim and Thumim; and there were not an hundred persons in all Scotland to oppose their conclusions: all submitted, all learned, all prayed; most part were really godly, or at least counterfeited themselves Jews. Than was Scotland a heap of wheat set about with lillies, uniform, or a palace of silver beautifully proportioned; and this seems to me to have been Scotland's high noon. The only complaint of profane people was, that the government was so strict they had not liberty enough to sin.

“But this season lasted not long.” The Presbyterians, who were averse to the ruling party in England, as sectarians in religion and republicans in politics, immediately proclaimed Charles II.; and commissioners were sent to the Hague, where he was subsisting on the bounty of his sister, to invite him upon conditions to assume the government. During the negotiations, while the terms were discussing, he authorized Montrose, already too well known for his cruelties, to attempt his unconditional restoration by force; and it was not till he heard of his failure, that he consented to take the oaths and become the covenanted king of Scotland.

His arrival, however, instead of uniting, occasioned deep and irreconcilable dissensions among the Scots—between those who distrusted, and those who affected to believe, his professions; yet as the church continued to maintain the ascendancy, they were kept within bounds till after the fatal battle of Dunbar. But when it became necessary to supply the loss occasioned by that disaster, they became apparent. The king required that all those who had hitherto been excluded as malignants, who had favoured the engagement, and were understood to be friendly to his unlimited power, should be restored to offices of trust both in the army and state: this was resisted by the strictest and most devout of the Presbyterians, who, considering them as enemies to the church, dreaded their admission into the king's councils, while he himself was suspected. The virtues of the king, and his inimitable improvement in adversity, were deemed sufficient answer, and resolutions favourable to their claims having been obtained by surprise from the major part of the commission, a schism took place by the minority protesting against the concession.

From this date the Presbyterians separated into two parties, who distracted the country for several years by their violent contentions; those who arrogated to themselves the praise of liberality and loyalty—their

superior regard for the decrees of the church and the letter of the covenant—ranging under the name of resolutioners; while those esteemed the most holy, indefatigable, and laborious ministers, who preferred the spirit to the form of their religious constitution, were numbered among the protesters. They were likewise called remonstrators, from having followed up their protest by a remonstrance. Meanwhile Charles was crowned at Scone with great solemnity, the Marquis of Argyle, who was attached to the resolutioners, putting the crown upon his head; but the divisions continued till Cromwell obtained the supreme power, who granted free toleration to all sects, and liberty to the Presbyterians in every thing, except permitting the General Assembly to meet, which some of the more pious considered no bad service.

This period, down to the Restoration, has ever been considered as that in the Scottish church most remarkably distinguished for the prevalence of real personal religion; and it was evident that God was preparing a people in this land for a day of hot and fiery trial. “I verily believe,” says Kirkton, “there were more souls converted to Christ in that short period of time than in any season since the Reformation, though of treeples its duration. Nor was there ever greater purity and plenty of the means of grace than was in their time. Ministers were painful, people were diligent; and if a man had seen one of their solemn communions, where many congregations met in great multitudes—some dozens of ministers used to preach, and the people continued as it were in a sort of trance (so serious were they in spiritual exercises) for three days at least—he would have thought it a solemnity unknown to the rest of the world. Besides, the ministers, after some years, began to look at the questions about which they had divided, as inconsiderable: also it was found error made no great progress, the genius of the people being neither very curious nor easily changed.”

The numbers who stood the test and suffered to the death, bear witness that the religious state of the country at the Restoration, as given by him, must be substantially true; as the numbers who apostatized make it evident that many must have dissembled. “There be in all Scotland some nine hundred paroches.”^[1] “At the king’s return every paroch had a minister, every village had a school, every family almost had a Bible; yea, in most of the country, all the children of age could read the Scriptures, and were provided of Bibles either by the parents or their ministers. Every minister

was a very full professor of the reformed religion, according to the large Confession of Faith, framed at Westminster by the divines of both nations. Every minister was obliged to preach thrice a-week, to lecture and catechise once, besides other private duties, wherein they abounded according to their proportion of faithfulness and abilities. None of them might be scandalous in their conversation or negligent in their office, so long as a presbyterie stood; and among them were many holy in conversation and eminent in gifts. The dispensation of the ministry being fallen from the noise of waters and sound of trumpets, to the melody of harpers, which is alace the last messe in the banquet. Nor did a minister satisfy himself except his ministry had the seal of a divine approbation, as might witness him to be really sent from God.”

1. These were divided into sixty-eight presbyteries, which were again cantoned into fourteen synods, out of all which, by a solemn legation of commissioners from every presbytery, they used to constitute a national assembly.

“Indeed, in many places the spirit seemed to be poured out with the word, both by the multitudes of sincere converts, and also by the common work of reformation upon many who never came the length of a communion; there were no fewer than sixty aged people, men and women, who went to school, that even then they might be able to read the Scriptures with their own eyes. I have lived many years in a paroch where I never heard an oath; and you might have ridde many miles before you heard any: also, you could not for a great part of the country have lodged in a family where the Lord was not worshipped by reading, singing, and public prayer. Nobody complained more of our church-government than our taverners, whose ordinary lamentation was, their trade was broke, people were become so sober.”^[2]

2. Kirkton mentions that the English often offered the protesters the government of the nation, which they refused, till Cromwell, “weary with their scrupolosity, and being highly caressed by Mr (afterwards Archbishop) Sharpe, his large proffers in behalf of the resolutioners, was forced to allow them equal liberty, and so they continued in a balance till after his death.—*Hist. of the Church of Scotland*, pp. 48-56.—Law, in his Memorials, has a similar statement. “It is not to be forgotten, that from the year 1652 to the year 1660, there was great good done by the preaching of the gospel in the west of Scotland, more than was observed to have been for twenty or thirty years before; a great many brought into Christ Jesus by a saving work of conversion, which was occasioned through ministers preaching nothing all that tyme but the gospell, and had left off to preach up parliaments, armies, leagues, resolutions, and remonstrance, which was much in use before, from the year 1638 till that time 52, which occasioned a great number of

hypocrites in the church, who, out of hope of preferment, honour, riches, and worldly credit, tooke on the form of godliness but wanted the power of it.” P. 7.

Such was the delightful picture drawn by an eyewitness; and to render it perfect and permanent, the Presbyterians longed with desire for the restoration of their king, whose presence alone they believed would remove the only spots that in their eyes dimmed its lustre—the suspension of their General Assemblies, and the late sinful toleration. As soon as there was the least prospect of the desirable event, several ministers in Edinburgh—resolutioners—dispatched Mr James Sharpe to London, with instructions to watch over the interests of the church, particularly of their own party; and as they knew that the king had a strong antipathy against the remonstrants, who, during his stay in Scotland, had been assiduous in their upright though ungrateful endeavours for his conversion, and incurred his displeasure and that of his confidants by their uncourtly reproofs and uncompromising adherence to their principles, they were anxious to separate themselves from this the honestest portion of their brethren, and directed their agent carefully to remind his majesty of the difference between them and their more uncomplying opponents.

During the protectorate, as no persecution had been allowed on account of religious opinions, a few in Scotland seem to have adopted the tolerant maxims of the decried usurper; and although sectaries never flourished in that soil, they seem to have been sufficiently numerous to have excited the fears of the resolutioners, who, insensible to the benefits they enjoyed under the toleration of Cromwell, and eager to secure the liberties of their own kirk from the oppression of the prelatists, were equally anxious to guard against any freedom being allowed to those whom they termed fanatics.^[3]

3. Mr Robert Douglas writes to Mr Sharpe, May 8, 1660:—“Your great errand will be for this kirk. I am confident the king will not wrong our liberties whereunto he himself is engaged. He needs not declare any liberty to tender consciences here, because the generality of the people and whole ministry have embraced the established religion by law with his majesty’s consent. It is known that in all the times of the prevailing of the late party in England, none here petitioned for toleration, except some inconsiderable naughty men.” And the ministers of Edinburgh, *i. e.* resolutioners, in a letter, May 10, to the Earl of Rothes, who was going to meet the king at Breda, use the following remarkable expressions: “He [the king] knows likewise how much the people adhere to the establishment of the church; so that there is no pretext for an indulgence to such as shall recede from it, but many inconveniences would ensue upon the granting it.” Correspondence between Messrs Douglas, Dickson, &c. with Sharpe. *Wodrow’s Introd.*

There was, besides, a third party, who, although previously discernible to those who understood the signs of the times, sprang up at once upon the afflicted vision of the resolutioners, when the rays of royalty again beamed above the horizon—a new race, who, having never been acquainted with the work of reformation, nor with the just proceedings of the nation, but weary of Presbyterian strictness, were ready to condemn the covenant and all the loyal and honest acting of the covenanters. These, consisting chiefly of young men of rank, were prepared for any change, and were supposed, in general, to be rather favourable to Episcopacy. A knowledge of this circumstance, and the frequent representations of the alarming fact by his correspondents, seem early to have influenced Sharpe to desert his employers and go over to the enemy.

In May, he went upon an embassy to Charles at Breda, and there was confirmed in the treachery which he completed shortly after the king's landing in England. His villanous hypocrisy in managing the overturn of the polity he was dispatched to support, was consummate; yet now, when we know the part he played, it is not difficult to perceive, in his most specious letters, an overacting which must have betrayed him to men less confiding than his employers.^[4] Besides preventing all access to the king, and representing the chief leaders in Scotland as favourable to prelacy, he dissuaded his friends from addressing against it, and cruelly widened the breach between them and the protesters. His ambition was stimulated by his revenge; he wished to gratify his private resentment against the most eminent of the latter—Samuel Rutherford, James Guthrie, and Lord Warriston. Yet, however much we may detest the traitor, it is matter of high gratulation that his mission failed; for, had he acted faithfully and succeeded, he would have procured for Scotland an iron yoke of political presbytery, which might indeed have preserved the beloved polity secured by acts of parliament, by prohibitions, and by every civil pain and penalty by which churchmen support their power; but he would have destroyed religious liberty, and delivered the nation over to a thralldom which would have been worse, as it would probably have been more permanent, than the prelacy that ensued—it would, it is likely, have been more moral, but it might not have been less oppressively severe.^[5]

4. "I profess," says Mr Douglas, "I did not suspect Mr Sharpe in reference to prelacy more than I did myself, nor more than the apostles did Judas before his treachery was discovered." *Wodrow's Introd.*

5. There is much retribution in this world, although it be not the place of final account. Here especially God punishes his own people. The wicked may prosper in their wickedness—"he sees their day is coming"—but the Lord will never suffer his children to sin with impunity. This was remarkably exemplified in the case of these good men, who were now so anxious to prevent their brethren from enjoying liberty of conscience, in order that they themselves might engross the royal favour and the chief places in the church; their own agent betrayed them; and the very means they were using to accomplish their improper and selfish aims, were turned against them, and became the instruments of their correction.

When Charles was at last restored to the wishes and prayers of his people, as if some enchanter's wand had touched the frame of society, the whole kingdom in an instant changed, and, from a state of grave seriousness and exemplary decency, burst out into one disorderly scene of riot and revelry; and the day of thanksgiving for this happy event was celebrated in Edinburgh in a manner that had been very unusual in that capital for at least a quarter of a century. After sermon, the magistrates proceeded to the cross, on which was a table covered with sweatmeats, and the well ran with wine; there, amid the flourishing of trumpets and the beating of drums, the royal healths were drank, and three hundred dozen of glasses broken in honour of the day! On the Castle Hill, fireworks were exhibited, the principal figures in which were Cromwell and the Devil, who, after diverting the multitude with a flight and pursuit, exploded and disappeared amid shouts of applause.

The considerate part of the community viewed the unconditional recall of the king with very different sensations; but these, in that frantic hour, were few in number, and chiefly consisted of the remonstrators, whose dark forebodings were deemed the offspring of their own guilty consciences accusing them of their former disloyalty. In vain did they ask for evidence of his being changed from what he was, before they could trust their liberties into his hands without security. They had all along been jealous of Sharpe, and their suspicions had been heightened by some surmises of his transactions at London; but all their advances towards their brethren had been repulsed by the resolutioners, who put the most unbounded confidence in that traitor's assurances of the king's friendly countenance towards themselves, and his intended vengeance upon them. The first measures of Charles, however, put an end to the differences of the truly pious among both parties, who were soon undeceived, and sent to the furnace to be refined together.

All the high offices of Scotland were disposed of to men either of no religion, or of that very accommodating kind which is always found on the side of interest and power. Middleton, a soldier of fortune, created an Earl, was appointed commissioner to hold the next parliament; the Earls Glencairn had the chancellorship—Crawford, the treasury—Rothes, president of the council—and Lauderdale, secretary of state, and one of the gentlemen of the bedchamber, (the only Scottishman admitted to this honour;) Sir Archibald Primson was clerk-register; and Sir John Fletcher, king's advocate. Meanwhile, those who were esteemed the leaders of the covenanters, although they had ever sturdily maintained their loyalty, after the greater part of the others had yielded, were thrown into prison and threatened with prosecutions for treason. The Marquis of Argyle was seized at London, whether he had gone to congratulate the king, and sent to the tower; and orders were forwarded to Scotland, to Major-General Morgan, commander-in-chief, to secure Sir James Stewart, provost of Edinburgh; Sir Archibald Johnstoun, Lord Warriston; and Sir John Christy of Carswell. Warriston escaped for the time; but the other two were arrested in a somewhat ludicrous manner. The General having heard that Christy was in town upon private business, waited upon the Provost, and required him, in virtue of his office, to apprehend Sir John and carry him to the Castle, which his lordship having done, when he was about to take leave, with many expressions of regret, he was informed "that it behoooved him to bear his friend company;" nor did he obtain a release till about ten years after.

Until the meeting of a new parliament, the administration of Scottish affairs was intrusted to the surviving members of the committee of estates, nominated by the last Scottish parliament; and as they had all concurred with the king in swearing the National and Solemn League and Covenant, it was expected that they would at least be favourable to the established religion of the land; but it very soon appeared how little confidence can be placed in the professions or even oaths of public men, when the stream runs in an opposite direction. Their first meeting, at which the chancellor presided, was held in Edinburgh, August 23, and their first act was a proper prelude to the tyranny about to be inflicted on their country.

On that day, a few of the protesters, who had in vain endeavoured to convince their brethren of the critical situation in which the Presbyterian church stood, met at Edinburgh to draw up a humble address and

supplication to the king, suited to the emergency. They were in all nine ministers, of whom the chief were Mr James Guthrie of Stirling, and Messrs Traill, and John Stirling of Edinburgh, with two ruling elders. As the meeting and its object were no secrets, the chancellor and committee dispatched messengers, who seized their papers, containing a scroll of their supplication, with copies of some letters to their brethren in Glasgow, requesting a full meeting for considering the subject; and immediately after issued a warrant for imprisoning in Edinburgh Castle the whole of those who had been present at the unlawful conventicle—terms about to become of frequent use and of fearful import.

The scroll consisted of declarations of their abhorrence of the murder of his majesty's royal father, and the actings of the late usurping power—of thankfulness for the Lord's preservation of his own sacred person, and for his quiet restoration without the effusion of Christian blood—professions of zeal for the glory of God, the good of the church, and faithful and loyal tenders of all the duties of honour, subjection, and obedience, due from humble and loving subjects to their native and lawful sovereign; but they expressed their fears of the popish prelatical and malignant party, of their attempting the overthrow of the pure religion as established, and the re-introduction of all the corruptions which were formerly cast out;^[6] and they reminded his majesty of his and their solemn engagements to God, of the Lord's mercy to him and them, and their mutual obligations to faithfulness in the performance of their vows.

6. These excellent men, for such undoubtedly they were, who had enjoyed undisturbed liberty of conscience and freedom of religious worship under Cromwell, thus adverted to that period, and thus would have requited their protectors.—“Neither are we less apprehensive of the endeavours of the spirit of error that possesseth sectaries in these nations, which, as it did at first promote the practice of a vast toleration in things religious, and afterwards proceeded unto the framing of the mischief thereof into a law, so we doubt not but it will still be active unto the promoting and procuring the same under the specious pretence of *Liberty for tender consciences*. The effects whereof have, in a few years past, been so dreadful, that we cannot think of the continuing of it, but with much trembling and fear.” Then follows a text upon which the whole annals of the persecution will form a most striking and instructive commentary. “Therefore, knowing that to kings, princes, rulers, and magistrates appertains the conservation and purgation of religion, and that unity and peace be preserved in the church, and that the truth of God be kept pure and entire, that all blasphemies and heresies be suppressed, all corruptions or abuses in discipline and worship prevented or reformed, and all the ordinances of God duly settled, administered, and observed, We, your majesty's most humble subjects, do, with bowed knees and bended affections, humbly supplicate your majesty

that you would employ your royal power unto the preservation of the reformed religion in the church of Scotland, in doctrine, worship, discipline, and government, and unto the carrying on of the work of uniformity in religion in the churches of God in the three kingdoms, in one confession of faith, form of church-government, directory for worship, and catechizing; and to the extirpation of popery, prelacy, superstition, heresy, schism, profaneness, and whatever shall be found contrary to sound doctrine,” &c.

They were therefore charged with proceedings expressly derogatory to his majesty’s royal prerogative, and tending to the disturbance of the present peace of his majesty’s dominions; and next day the committee of estates prohibited, by proclamation, all unlawful and unwarrantable meetings and conventicles in any place within the kingdom of Scotland without his majesty’s special authority; and likewise all seditious petitions and remonstrances under what pretext soever which might tend to the disturbance of the peace of the kingdom, or alienating or diminishing the affections of his majesty’s subjects from their due obedience to his majesty’s lawful authority, and that under the highest pains. Sheriffs and magistrates of burghs were ordered to be careful within their respective bounds, that no such pernicious or dangerous meetings should be permitted, but that they should be prevented, hindered, and made known to the executive. These proceedings were ostensibly directed against the remonstrants alone, but were intended to answer the double purpose of overawing the elections for the ensuing parliament, and paving the way for the complete overturn of freedom in the state and presbytery in the church.

Mr Sharpe, on his arrival from London, gave a keener edge to the proceedings of the committee, and, by his duplicity, prevented the good men among the resolutioners from taking any steps, either for their own security or the relief of their oppressed brethren. In answer to an epistle from his employers to the king, entreating his favour and countenance for their church, he brought the following, addressed to Mr Robert Douglas, minister, Edinburgh, to be by him communicated to the presbytery:—

“Charles R., trusty and well beloved, we greet you well. By the letters you sent to us with this bearer, Mr James Sharpe, and by the account he gave of the state of *our church* there, we have received full information of your sense of our sufferings and of your constant affection and loyalty to our person and authority: And therefore we will detain him here no longer—of whose good services we are very sensible—nor will we delay to let you know by him our gracious acceptance of your address, and how well

we are satisfied with your carriage and with the generality of the ministers of Scotland in this time of trial, whilst some, under specious pretences, swerved from that duty and allegiance they owed to us. And because such, who by the countenance of usurpers have disturbed the peace of that our church, may also labour to create jealousies in the minds of well-meaning people, we have thought fit by this to assure you, that, by the grace of God, we resolve to discountenance profanity and all contemners and opposers of the ordinances of the gospel. We do also resolve to protect and preserve the government of the church of Scotland as it is settled by law, without violation, and to countenance in the due exercise of their functions all such ministers who shall behave themselves dutifully and peaceably as becomes men of their calling. We will also take care that the authority and acts of the General Assembly at St Andrew's and Dundee, 1651,^[7] be owned and stand in force until we shall call another General Assembly, which we purpose to do as soon as our affairs will permit. And we do intend to send for Mr Robert Douglas, and some other ministers, that we may speak with them in what may further concern the affairs of that church. And as we are very well satisfied with your resolution not to meddle without your sphere, so we do expect that church judicatories in Scotland and ministers there will keep within the compass of their station, meddling only with matters ecclesiastick, and promoting our authority and interest with our subjects against all opposers: and that they will take special notice of such who, by preaching, or private conventicles, or any other way, transgress the limits of their calling by endeavouring to corrupt the people, or sow seeds of disaffection to us or our government. This you shall make known to the several presbyteries within that our kingdom. And as we do give assurance of our favour and encouragement to you, and to all honest, deserving ministers there, so we earnestly recommend it to you that you be earnest in your prayers, publick and private, to Almighty God, who is our Rock and our Deliverer, both for us and for our government, that we may have fresh and constant supplies of his grace, and the right improvement of all his mercies and deliverances to the honour of his great name, and the peace, safety, and benefit of all our kingdoms; and so we bid you heartily farewell."

⁷. The acts of these Assemblies were almost entirely levelled against the remonstrators.

Delighted with this most gracious epistle, the Edinburgh presbytery printed and caused it to be transmitted to all the presbyteries in Scotland, praised it from their pulpits, and procured a silver box to preserve the precious original. It was not to be supposed that, under language so explicitly guaranteeing the government of the church of Scotland, as settled by law, that, by any lurking inuendo, Episcopacy could be meant, the resolutioners therefore considered the day as their own, and, with premature speed, hasted to chant their victory. They warmly thanked his majesty for his letter, which they told him in their address they had received upon a day formerly devoted by them to mourning, September 3,^[8] which had revived their spirits, and excited them to bless the Lord who had put such a purpose in his royal heart to preserve and protect the government of the church without violation; nor was the “choice of such an able and faithful person,” as Lauderdale, “for the weighty employment of secretary less an object of gratulation!” But while we look back with pity upon the speedy dissipation of all the good men’s hopes and anticipations, it is impossible not to feel that they in some measure merited them for the facility with which they allowed themselves to become the dupes and the tools, in persecuting their own brethren, of these very men by whom they themselves were afterwards persecuted.

8. The anniversary of the battles of Dunbar and Worcester—an ominous coincidence as it turned out. Another was remarked at the time. “It was a sad observation, that that very day of the month being the 23d of August, on which the protesters were apprehended, was the very same day whereon 100 years before the popish religion had been abolished, and the true religion established in parliament; and some feared this might be the turning of the tide backwards.” *Kirkton*, p. 73.

Sharpe, whose composition the letter was, followed out his plan of dividing the ministers. He was well aware that the remonstrators were the most acute and least liable to be imposed upon of the Presbyterians; he knew also that they suspected him, and he hated them; he therefore, by an insinuation in it, pointed them out as persons who, under specious pretences, had swerved from their duty during the usurpation; and the church judicatories hastened to inflict punishment upon them for this indefinite crime—“Our synods after this,” says Kirkton, “doing little other thing than censuring and laying aside those of that way. And though the preceding harvest before the king’s return all the synods of Scotland had agreed to bury by-past differences, yet, upon the receipt of this blessed

letter, the old wounds opened; and wherever the public resolution-men were the plurality, the protesters were censured upon the buried differences. In the synod of Merse, they laid aside five ministers; in Lothian, many were laid aside both in Lithgow and Biggar presbyteries; so it was in Perth and in the north: and the truth is, had not the course of synods been interrupted by the introduction of bishops, few had kept their places who were afterwards ejected by that infamous proclamation at Glasgow in the year 1662.”

Nor was the committee idle; Mr Patrick Gillespie, principal of Glasgow College, was brought prisoner to Edinburgh Castle, and Mr Robert Row, minister of Abercorn, and W. Wiseheart of Kinneil, were confined to their chambers in the town. Having forbid any meetings for petitioning, they proceeded to display their antipathy to those principles of freedom, for which their fathers had contended, by emitting a proclamation against Rutherford’s *Lex Rex*—a work which was held in high estimation by the covenanters, as it advocated the cause of liberty and the legitimate limitations on power, with an energy and clearness the enemies of freedom could not bear; and another work, supposed to be written by Mr James Guthrie, entitled “*The Causes of God’s Wrath against Scotland*,” which enumerated the sins of the land, princes, priests, and people, with a faithfulness that was intolerable. They declared these two books to be full of seditious and treasonable matter, animating his majesty’s good subjects to rise up in rebellion against their lawful prince and sovereign, and poisoning their hearts with many seditious and rebellious principles, prejudicial to his royal person and authority, and to the peace of the kingdom. All, therefore, possessed of copies of the obnoxious publications were required to deliver them up to the king’s solicitor within a certain time, under pain of being considered enemies to his majesty’s authority, and liable to be punished accordingly. They were both burnt at the cross—a favourite, if not a very convincing, mode of answering such like productions. With revolting meanness, they at the same time caused the inscriptions to be effaced from the tombs of Alexander Henderson in Edinburgh, and George Gillespie at Kirkaldy—men who needed not the frail remembrance of a monumental stone to make their memories live in the recollection of their country, and whose services have more lasting record than a graving-iron could bestow.

Some few days after, they made a still more explicit disclosure of their aversion to the “good old cause”—a sneering form of expression become fashionable among the courtiers—by another proclamation directed against the remonstrants and their adherents, not only forbidding meetings for consultation, which were still legal, but likewise any adverting, in their sermons or otherwise, to the state of the church, or the danger to be apprehended from the introduction of the exploded and hated prelatical offices and forms; and, as they knew the effect of popular preaching, they appear to have been most anxious at once to suppress all pulpit opposition to the course they were about to pursue.

Of the watchmen upon the Scottish Zion, the remonstrants had been the most wakeful and most jealous of encroachments upon the established covenanted constitution of the church and state, and the committee were assured, that when they apprehended danger, they would not be silent; they therefore expressly commanded that none, in sermons, preachings, declamations, or speeches, should presume to reflect on the conduct of his majesty or his progenitors, misconstrue his proceedings, or meddle in his affairs or estate, present, bygone, or in time coming, under the highest penalties; and if any who heard what could be construed into slander against the king did not reveal it, they were to be liable to the same punishment as principals. This proclamation, the anti-type of so many furious attacks upon the liberty of the lieges, was calculated to ensnare those who, being accustomed openly to speak their sentiments, were not prepared at once to renounce all mention of public affairs in common conversation or public discourses, whether ministers, elders, or private gentlemen; and numbers of each description were immediately made to feel its oppressive weight.

Had a free election been allowed, notwithstanding the loyal phrenzy of many, and the hypocritical pretensions of more, there might some troublesome members have procured admission to the estates; but those whose influence and opposition were most dreaded, being by this proclamation placed in very delicate circumstances—as evidence of unguarded expressions might easily have been procured—were happy to escape censure, and did not stand forward at the only time when they could have done so with some probability of success, in support of the constitution, freedom, and religion of their country. The committee,

however, did not rest here: with the most unblushing effrontery, although conscious themselves of having to a man complied with the English, they hung out a threat of prosecution for this common and inevitable fault, which damped all who seemed inclined to assert the independence of a Scottish parliament, or the privileges they had obtained from the crown during the late struggle.^[9]

9. Of the nature of these prosecutions, the reader may form some idea from the following:—"Mr James Nasmyth, minister of the gospel at Hamilton, was sisted before the committee for words alleged to have been spoken by him many years ago. About the year 1650, when Lambert was in the church, it was alleged he pressed his hearers to employ their power for God, and not in opposition to the gospel, otherwise they might expect to be brought down by the judgement of God as those who went before were!" *Wodrow*, vol. i. p. 12.

Besides to pinion the country gentlemen more effectually, they tendered a bond to all of whom they were suspicious, which they obliged them to sign, with a sufficient cautioner, each binding themselves—besides disowning the remonstrance—that they should not in any way or manner, directly or indirectly, plot, contrive, speak, or do any thing tending, or what might tend, to the hurt, prejudice, or derogation of his majesty's royal person or any of that royal family—that they should not do any thing, directly or indirectly, tending, or that might tend, to the breach or disturbance of the public peace, nor connive or concur with any person whatsoever who should contrive any such thing; but, to the utmost of their power, stop and let any such plot and doing, and appear personally before the committee, sub-committee, or parliament, upon a lawful citation; and, in case of failure, the parties bound themselves to pay a high fine, besides whatever other punishment might be inflicted.

For a justification of proceedings so unwarrantable, we must look to the sequel; it was not because the parties accused were inimical either to kingly government or to the person or right of Charles, but because the plan was already formed for sweeping from the face of the country, had it been possible, whatever was lovely or of good report—whatever in the institutions of the state or the polity of the church was calculated to present any obstruction to the tide of obscene licentiousness and faithless despotism that was now fast flowing upon them. Their stretches of power against the liberties of the country, do not, however, seem to have occasioned any remonstrance; and the synod of Lothian was amused with a proclamation for calling a General Assembly, which Mr William Sharpe had submitted

for their amendment; but the last acts of the committee, levying a cess, excited some remark as to the legality of the tax or their power to exact it.

On the 1st of November, a proclamation announced the meeting of parliament; and the same day another, that the king had committed to them the consideration and judging of the conduct of all his subjects during the late troubles, from whom alone he would receive any applications, and promising, after his honour and ancient royal prerogative were vindicated, he would grant a free, full pardon and indemnity—a promise which, although conveyed in very specious language, and accompanied by an assurance that there was nothing his royal bosom was more desirous of than that his people should be blessed with abundance of happiness, peace, and plenty, was received with suspicion, and, like almost all the other acts of grace, afforded little relief to the unfortunate, while it secured the persons and plunder of those who had pillaged and oppressed them.

BOOK II.

DECEMBER 1660 TO 12TH JULY 1661.

Lord High Commissioner arrives in Edinburgh—Parliament—Its composition—Act of indemnity withheld—Lord Chancellor restored to the Presidentship—Oath of allegiance—Retrogression in reformation-work—Divine right of Kings asserted—Solemn League and Covenant repealed—Engagement approved, &c.—Declaration—Resolutioners begin to perceive their error—Middleton amuses the ministers of Edinburgh—Manner of concocting the Act rescissory and of getting it passed—Middleton's interview with D. Dickson and part of the Edinburgh presbytery—Distress of the ministers—Dispersion of the synods—Concluding acts—Trial of Argyle—His behaviour before and at the place of execution—Trial of James Guthrie—His behaviour and execution—Captain Govan—Prosecutions of Mr Traill of Edinburgh—Mr Moncrief of Scone—Intrepid reply of his wife—Mr Robert Macwaird of Glasgow—His striking picture of the effects of the Restoration—His accusation—Defence—Banishment—Swinton of Swinton—Sir John Christy and Mr P. Gillespie's escape—Parliament rises—Samuel Rutherford.

The Earl of Middleton, Lord High Commissioner, arrived at the ancient Palace of Holyrood on the last day of December 1660. He entered upon his office with great pomp; and, being allowed a princely salary for the support of his establishment, he vied with royalty itself in the profusion of his expenditure. Every preparation had been made for his reception: he was met and conducted to his residence by a large concourse of the nobility and the magistrates of the capital; and the venerable cathedral of St Giles had been elegantly fitted up with a throne for his Grace and lofts for the parliament.

That parliament which met on the first day of the new year, was one entirely suited for promoting the schemes of the Scottish rulers. The old nobles, who had been active in the cause of the covenant, had almost all died out, their estates had been wasted, and of the new race too many, neglected in their education, were now dependant in their circumstances. When the king arrived, they had flocked to London to put in their claims

upon his justice or generosity for their sufferings in the royal cause, and had been received with specious condescension, and sent home with empty pockets and magnificent expectations. But they had learned at court to laugh at sobriety, to ridicule religion, and to consider even common decency a mark of disloyalty, while they looked to a rich harvest of fines and confiscations from the estates of the remonstrators, as a reward for their sacrificing their principles and profession at the shrine of prerogative. The commissioners for counties and burghs were chosen entirely from among those who were considered devoted to the court and averse to the strict Presbyterians. In some cases, when persons of an opposite description had been returned, the ruling party interfered and procured others to be substituted; and to prevent such as were distinguished for their attachment to the cause of religious freedom from offering themselves as candidates, they got them accused of complying with the usurpers, and summoned as criminals.^[10]

- ¹⁰. Were it not that mankind have a strange propensity to reward with injury favours they feel too great to repay, and to heap injustice upon their benefactors in order to conceal their ingratitude, we would be astonished at the conduct of Charles; but having often, in private life, seen that to raise a wretch from penury, was to incur his hatred, if we did not, at the same time, rise in proportion. We confess that the ingratitude of princes to those who have succoured them in distress, ceases to excite those strong feelings of reprobation, which we have often heard men in humbler life, who were themselves guilty of grosser injustice, express against crimes, whose highest aggravation was, that they were committed by persons of rank.

From a parliament so constituted, the most servile compliance might have been anticipated; but, to ensure their submission, an act of indemnity had been withheld from Scotland; and, while every one dreaded his individual safety, the whole assisted in destroying that public liberty which might have afforded a better chance for security than the will of a prince or the favour of a parasite. The regalia, always carried before the commissioner at the opening of a session, were borne—the crown by the Earl of Crawford, the sceptre by Sutherland, and the sword by Mar. The Duke of Hamilton and the Marquis of Montrose rode immediately behind. Mr Robert Douglas, who had preached the coronation sermon before Charles when he was inaugurated at Scone, delivered upon this occasion a faithful and appropriate discourse from 2 Chron. xix. 6.—“Take heed what you do; for you judge not for man but for the Lord, who is with you in the judgment.”

The Earl of Middleton's commission was then presented, and, as had been previously agreed upon, an act was brought forward to restore to the Lord Chancellor the Presidentship of parliament. This act, which struck at the root of the whole reformation in Scotland, deserves particular notice. By several acts of the estates, passed during the troublous times, particularly one of the last, held in 1651, at which the king himself had presided, it was enacted, that, before entering upon business, every member should swear and subscribe the covenant, without which the constitution of parliament would become null and void. To have set aside these statutes openly and at once, was thought too flagrant; but it had also been enacted during the late struggle, that the President of the parliament should be elected by parliament, instead of the Chancellor nominated by the king; and it was therefore proposed to abolish this privilege, as trenching upon the royal prerogative. In this act, however, brought forward for that purpose, was inserted an oath of allegiance, which went to annul all preceding oaths, and covertly to revive the abhorred supremacy of the king. It was insidiously worded, in order that those who wished to have an excuse for compliance might take it without appearing undisguisedly to violate their former engagements, yet sufficiently plain to justify a refusal by men who were not altogether prepared to surrender their principles to their interest.

By it the sovereign was acknowledged only supreme governor in the kingdom over all persons and in all causes; and it was declared that no foreign prince, power, or state, nor person, civil nor ecclesiastic, had any jurisdiction, power, or superiority over the same; "and therefore," it was added, "I utterly renounce and forsake all foreign jurisdictions, powers, and authorities, and shall, at my utmost power, defend, assist, and maintain his majesty's jurisdiction aforesaid against all deadly, and never decline his majesty's power and jurisdiction." The consistent and stricter part of the Presbyterians were not imposed upon. They considered, and correctly as it afterwards appeared, that this was a complete acknowledgment of the king's ecclesiastical supremacy, and conferred upon him the power to alter or innovate at his pleasure upon the religion of the country. In parliament, however, almost the whole took the oath without remark, except the Earls of Cassils and Melville of the nobles, and the Laird of Kilburnie of the commissioners, who would not subscribe it unless allowed to limit the king's supremacy to civil matters—an explanation which Middleton was

disposed to admit of verbally, but, knowing the extent to which allegiance was to be required, he refused to permit this explanation to be recorded.

Having thus dispensed with the obligation of the covenant as a parliament-oath, and reinstated his majesty in his ecclesiastical power, they proceeded to restore to him a less questionable part of the prerogative—the nomination of the officers of state, privy councillors, and Lords of Session, the right of convoking and dissolving parliament, of commanding the militia, and of making peace and war. These powers, which are now deemed necessary for the support of the crown in regular ordinary times, had been assumed by the estates of Scotland (1649) on account of their abuse by the English ministers and favourites, at a period when our country, from being the poorest of the two united kingdoms, and the most distant from the immediate presence of the king, was peculiarly liable to be oppressed by those who obtained possession of the royal ear:—and the whole of the succeeding melancholy period, evince but too clearly how well founded was the jealousy entertained of the power intrusted to a monarch who was a non-resident. But what then particularly disgusted the friends of freedom, was, to observe in their re-enactment, the express unqualified avowal of the slavish tenets of the divine rights of kings, and their accountability to God alone, the assertion of which had occasioned all the troubles of the land, had brought Charles I. to the block, and which was eventually to forfeit for the Stuarts the throne of their fathers.

Sudden and astonishing as had been the revolution that had taken place in the public feelings and morals, and outrageously violent as the shoutings of newfangled loyalty had been against the treasons and insults of the remonstrators, still the covenants were esteemed sacred bonds by an imposing number of the worthiest part of the community, whom it might not have been adviseable to shock too abruptly. These revered engagements were therefore first attacked obliquely in an act which purported merely to assert a constitutional truth respecting “his majesty’s royal prerogative in making of leagues and the convention of the subjects,” which, after narrating some enactments forbidding councils, conventions, or assemblies, for determining matters of state, civil or ecclesiastic, without his majesty’s command or license, declared that any explanation or glosse that, during these troubles, had been put upon these acts—“as, ‘that they are not to be extended against any leagues, councils, conventions, assemblies, or

meetings, made, holden, or kept by the subjects for preservation of the king's majesty, the religion, laws, or liberties of the kingdom, or for the public good either of kirk or kingdom,' are false and disloyal." No opposition having been made to this act, a more decisive followed, annulling the "pretended" convention of estates kept in 1643, which had entered into the Solemn League and Covenant, but which, not having been convoked by the king, although afterwards approved, afforded at least some pretext for disallowing it. Next came an act "concerning the League and Covenant, declaring that there was no obligation on the kingdom by covenant to endeavour, by arms, a reformation of religion in the kingdom of England; or to meddle in any seditious way in any thing concerning the religion and government of the churches of England and Ireland." With this, perhaps, there was little quarrel. The attempts to obtain uniformity in religion, and to procure a hollow profession of the form, where the reality was notoriously wanting, was a political sin, for which the covenanters had suffered severely already, and the repetition of which it might be laudable to prevent; yet, as the Solemn League and Covenant had been formally, fully, and repeatedly sanctioned by all the members of the state in subsequent parliaments, and was by many good men considered irreversible, it might have been more decorous to have allowed it to remain a dead letter, especially as it had been renounced by the English, and could not in such circumstances be acted upon by the Scots. Considerable reluctance was expressed respecting this measure; and, to silence opposition, the commissioner informed the House that he had no orders from his royal master to encroach upon the National Covenant or upon the consciences of the people; but as to leagues with other nations, he conceived they could not now subsist with the laws of the king. One honest man, however, had the courage publicly to avow that he could do nothing against his lawful oath and covenant; and numbers who could not approve of the act, silently withdrew. To make the annulling of the covenant more palatable, the managers sweetened the draught by an act against papists, priests, and jesuits, whose numbers they asserted more abounded of late, and insinuated as if the covenants had been the cause of the increase!

Preparatory to the bloody tragedy with which they were to conclude, an act was passed approving of the engagement, and vilifying in the most bitter terms all who opposed that expedition, ruinous equally to the king and to the country; and another, condemning the transactions respecting the

delivering up of Charles I. at Newcastle, and declaring the approval of them by the parliament, 1647, to have been the deed of a few factious, disloyal persons, and not the deed of the nation. All the acts which had been voted were embodied into a declaration, entitled an acknowledgment of his majesty's prerogative, which, together with the oath of allegiance, every person holding a place of public trust was required to subscribe, and all other persons who should be required by his majesty's privy council, or any having authority from them, should be required to take and swear; and whoever should refuse or delay to take them, were not only to be rendered incapable of any office of public trust, but be looked upon as persons disaffected to his majesty's authority and government.

Hitherto, a majority of the Presbyterian ministers—the remonstrators excepted—had remained silent, while those who, after Mr Douglas, were employed to preach before parliament, shamefully flattered the proceedings of the day, by declaiming against seditious bands and the irregularity of the times, and inculcating the courtly doctrine of gratitude for their gracious deliverance from tyranny and usurpation, and for the miraculous restoration of the king—the duty of unlimited confidence on the best of princes; and some went so far as to recommend Episcopacy as that form of church-government that suited best with monarchy; but when the plans of the managers began to be developed, even the resolutioners were painfully constrained to suspect that they had been duped, and that their brethren who wished at first to make an explicit declaration of their fears, and to supplicate against encroachment, acted the wiser and more reputable part. When too late, they saw the folly of admitting to power men of bad principles, and trusting either to their professions of repentance or the smallness of their number. The ministers of Edinburgh now attempted to stem the torrent; they had frequent interviews with the Earl of Middleton, who, during the progress of the measures, treated them with respect and fair promises. They entreated that, in the oath of allegiance, the supremacy of the king might be restricted to his right as supreme governor in civil affairs, and in ecclesiastical, as defined in the Confession of Faith, ch. 23: that it might be declared by parliament that they did not intend to make void the oath of God: and that an act might be passed ratifying anew the Confession of Faith and Directory of Worship. His Grace politely promised to transmit their desires to the king, and requested that they would draw out an act of

ratification, such as they would consider satisfactory, and he would attend to it, which they accordingly did.

But, while he was amusing them in this manner, a measure was in progress—the wildest and most extravagant ever tried in any legislative body—for which, however, the Scottish parliament, by a peculiarity in its constitution, afforded every facility. That peculiarity consisted in having a committee, called the Lords of the Articles, composed of from eight to twelve persons of each estate, who prepared all the bills brought before the House; so that when they were presented the members had little else to do but to vote. This committee, at all times under the influence of the crown, was, in the present instance, completely devoted to the king's pleasure, and ready to approve and propose whatever he desired. Every thing had been so arranged by them, that the parliament was only required to meet in the afternoon of two days in the week,^[11] where the important acts already noticed, together with others of a civil nature, of scarcely less consequence, had passed precipitately almost without discussion. Even this method, however, seemed too slow for accomplishing the total overthrow of the work of reformation, and an idea was now revived, which had been originally suggested in a meeting at London by Sir George M'Kenzie of Tarbet, for disannulling at one sweep the whole of the parliaments whose proceedings were disagreeable to the present rulers, or presented any obstacle to the establishment of unlimited despotism.

¹¹. Before this, it had been the custom for parliament to meet at nine o'clock, A.M. and sometimes earlier, while their committees met about seven to prepare the business.

Middleton had brought to Scotland, not only the high monarchical principles, but the shameless manners of the English court, rendered still more disgraceful by the regardless habits of a rough mercenary. Short as were the sessions of parliament, and late in the day as they met, he and his companions occasionally reeled to the House in such a state, that an immediate adjournment became necessary. Their sederunts at the Palace were more protracted; and the most important affairs were settled on these occasions, when all difficulties were got rid of, with a facility far beyond the reach of forenoon-disputants, engaging each other in a dry debate. At some such carousal, a jocular remark of Primrose's is said to have decided the commissioner; and the draught of a bill, rescinding all the parliaments which had met since 1640 as illegal and rebellious, was framed and

attempted to be hurried through parliament with the same rapidity as the rest. An unexpected opposition delayed its passage. As “that incomparable king,” Charles I., had freely presided at one, and the king himself at two others, some of the best affected to the court did not approve of an act, which they said went to throw a slur upon the memory of the blessed martyr, and was highly disrespectful to his present majesty. What staggered, however, even that assemblage, base and servile as it was, was the danger of destroying all the legal foundations of security for private property. If parliaments, regularly constituted in the royal presence, could be thus easily set aside, another parliament following the precedent might make this void, and render the tenures of their rights and possessions as unstable as they would be under the firman of an eastern sultan. To satisfy these, it was expressly provided, that all acts, rights, and securities passed in any of the pretended meetings, or by virtue thereof, in favour of any particular persons for their civil and private interests, should stand good and valid unto them, excepting only such as should be questioned before the act of indemnity; and notwithstanding the efforts of the Earl of Loudon, and a few others, a majority agreed to undo all that had been done in favour of religion and liberty for the preceding twenty years, and to wreath around their necks the yoke that had galled their fathers for other twenty before.

Some indistinct rumours of the recissory act having reached the ministers of Edinburgh, the presbytery assembled to draw up a supplication, praying that their church-government might be preserved to them amid this general wreck, and that some new civil sanction might be granted in place of the statutes about to be repealed; and three of the most complaisant were deputed to the commissioner, to show it before presenting to parliament. His Grace prevailed upon them to delay doing any thing in the business, and they, who appear to have been very willing to oblige, acceded, and the bill passed, like all the rest, without any representation by the ministers against it. Next day, when they learned it had been voted by a large majority, a deputation of a different stamp, with Mr David Dickson at their head, waited upon Middleton to remonstrate; but he had attained his object, and they found him in a very different mood. He received their paper in a very discourteous manner, and told them they were mistaken if they thought to terrify him with their papers—he was no coward. Dickson pointedly replied—“He knew well his Grace was no coward, ever since the Bridge of Dee”—a sarcasm the Earl seemed to feel, as he had there distinguished

himself, fighting in the cause of the covenant against the king's army. Nor did his chagrin abate when he was reminded of the vows he had made to serve the Lord and his interest, in 1645, when under serious impressions in the prospect of death; but turning round pettishly, asked, "What do you talk to me for about a fit of the colic?" and entirely refused to have any thing to do with their supplication.

An evasive deceitful act followed, allowing presbyteries and synods to meet, but promising to make it his majesty's care to settle the government of the church in such a frame as should be most agreeable to the word of God, most suitable to monarchical government, and most complying with the public peace and quiet of the kingdom. It did not tend to allay the fears of the ministers, who wrote an urgent letter to Lauderdale, reminding him of their sufferings for the king, of the steadiness of their loyalty, and their opposition to the heats of some during the times of distraction; and entreating him, by his zeal for his majesty's service, and his love for his mother church, to interpose with his majesty to prevent any prejudice to her established government, and procure the calling of a General Assembly as the king had promised. Public fasts were now kept in various parishes throughout the country, and the synods met to prepare supplications for some confirmatory act to set the people at rest with regard to their religion. No attention was paid by the secretary to their application, and visiters were sent to the different synods to prevent their taking any disagreeable steps, or dissolve them if they proved refractory. Accordingly, the synod of Dumfries was dissolved by Queensberry and Hartfield, who were both exceedingly drunk at the time, and appear to have dispersed the ministers with very little ceremony, and without any resistance. Fife was equally quietly dismissed by the Earl of Rothes, who entered while they were in the midst of their business; and, ordering them to dismiss in the king's name, they obeyed:^[12] in their respective presbyteries, they afterwards approved of a petition, and declared their adherence to the principles of the church of Scotland. Glasgow and Ayr being the most obnoxious, was discharged by proclamation, after they had drawn up a supplication, which was delayed being presented through the manœuvres of a few among themselves who afterwards became prelatie dignitaries. The synod of Lothian split, and, at the desire of the Earl of Callendar, suspended five of their most pious members, and removed two from their charges before they were themselves

forcibly turned off. The northern judicatures were little disturbed, their majorities generally “falling in with the times.”

12. Lamont, in his usual *naïve* manner, thus narrates the transaction:—“1661, Apryll 2. The Provincial Assembly of Fyfe sat at St Andrew’s, where Mr David Forrest, minister of Kilconquhar, was moderator. After they had sitten a day, and condescended upon a peaper to be sent to his majestie, wishing he might be as good as his word, etc. [This, in reference, he had sent doune to the presbetry of Edinboroughe, Sept. 3, 1660.] As also speaking of another peaper to be intimat in the severall parish churches, to put peopell in mynde of ther oath to God in covenant, in caise that episcopacy sould againe he established in this land: as also speaking against something done by the present parliament, in cancelling the league and covenant with England, etc. The nixt day, in the afternoon, they were raised by the Earle of Rothes and the Laird of Ardrosse, two members of parliament, (young Balfour Beton being present with them for the tyme,) and desyred them, under the paine of treason, presently to repaire to their several charges, which they accordingly did. In the meane while, the moderator offered to speake; and Rothes answered, Sir, wither doe ye speake as a private man, or as the mouth of this meeting? If you speake as the mouth of this meeting, you speake high treason and rebellion. After that, Mr David Forrest followed Rothes to his chamber, and spoke to him; and amonge other things, speaking of the covenant, he said, that few or none of ther meeting bot had ministered the covenant to hundreds, bot for himsef he had tendered it to thousands; and if he sould be silent at this time, and speake nothing of it, bot betray the peopell, he said he wist not what he deserved—hanging were too little for him. Rothes professed to this judicatory that it was sore against his will that he came to that employment. However, many of the ministrie blames Mr James Sharpe, minister of Craill, for the present chaplaine to his majesties commissioner, Earle of Middleton, for ther scattering; for he wrat over to some of them some dayes before, that a storme was like to breake; and the said Mr David Forrest said of him that he was the greatest knave that ever was in the kirke of Scotlande.”

The remaining acts of this parliament, respecting ecclesiastical affairs, and which became instruments of cruelty and grounds of persecution, were, the seventeenth, enjoining the 29th of May—the anniversary of the Restoration, also the king’s birth-day—to be set apart as a day holy unto the Lord for ever, to be part employed in public prayers, thanksgiving, preaching, and praises to God for so transcendent mercies, and the remaining part spent in lawful diversions suited to so solemn an occasion; and the thirty-sixth, restoring “the unreasonable and unchristian burden of patrons and presentations” upon the church.

Having virtually subverted Presbytery, restored every abolished abuse, and obtained in the preambles of several of their acts repeated expressions of the parliament’s detestation and abhorrence of all that was done in the “rebellious and distracted times,” it was requisite that those who had been the most strenuous assertors of the civil and religious rights of their country,

and who had been the chief instruments of the late Reformation, should be punished for their temerity. Accordingly, the most noble the Marquis of Argyle, who stood first on the list, was, on the 13th of February, brought to trial. He had been sent down from London by sea, along with Swinton of that ilk, in the latter end of 1660, and had encountered that storm in which the records of Scotland were lost;^[13] since when he had lain in the Castle; but the first hurry being over, his case was proceeded in—the commissioner anticipating a reward for his services from the confiscation of his estates.

- ^{13.} These had been seized and sent to London by the English during the civil war, and, upon the Restoration, were ordered to be returned to Scotland; but, as it was supposed the original Covenant which Charles had signed was among them, they were detained on purpose to search for it, in order to destroy it, till late in the season, when the weather became tempestuous, and the vessel that carried them was lost.

His activity in the cause of religion, and the great power he had long enjoyed, had created him many enemies, and gave rise to many calumnies, which made even his friends dread the investigation. But the most painful endeavours could establish nothing against him, except his compelled submission to the English, after every county in Scotland had acknowledged their superiority. His indictment consisted of fourteen distinct charges, narrating almost all the public acts of the nation in which he had had any share, since his first joining the covenanters, till the final protectorate of Richard Cromwell, and attributing to him as treasonable acts, his concurrence with the different parliaments, or his obedience to their orders, and his submission to the usurper's government, and sitting and voting in his parliament, together with having positively advised Cromwell and Ireton, in a conference in 1648, to take away the late king's life, without which they could not be safe, or at least knew and concealed the horrid design. The last charge, which the Marquis strenuously denied, was not insisted on; nor does there appear to have been any foundation for it.

In his reply, he enumerated all the favours he had received from the former and the reigning sovereign, and desired the parliament to consider how unlikely it was that he should have entertained any design to the hurt or dishonour of either. He could say with Paul in another case, the things alleged against him could not be proven; but this he would confess, that, in the way allowed by solemn oaths and covenants, he served his God, his

king, and country: he besought those who were capable of understanding, when those things for which he was challenged were acted, to recollect what was the conduct of the whole kingdom at the time, and how both themselves and others were led on in these actions without any rebellious inclination; and entreated those who were then young to be charitable to their predecessors, and to censure sparingly these actions, with all the circumstances of which they were unacquainted; for often the smallest circumstance altered entirely the nature of an action. In all popular and universal insurrections *communis error facit jus: et consuetudo peccandi minuit crimen et pœnam*. As to what he had done before the year 1651, he pled his majesty's indemnity granted in the parliament at Perth; and for what he had done since, under the usurpers, they were but common compliances, wherein all the kingdom did share equally, and for doing which many had express allowance from his majesty, who declared he thought it prudence, and not rebellion, for honest men to preserve themselves from ruin, and thereby reserve themselves till God should show some probable way for his return. Besides, among all those who complied passively, none was less favoured by the usurpers than himself—what he did was but self-defence, and, being the effect of force, could not amount to a crime.

When he had finished, his advocates, Messrs Sinclair, Cunningham, and M'Kenzie, afterwards Sir George, protested, that, seeing they stood there by order of parliament, whatever should escape them in pleading for the life, honour, and estate of their client, might not thereafter be brought against them as treasonable—a common form and usually sustained; but on this occasion the parliament would not admit the protestation, lest they might allow themselves upon that pretext the liberty of speaking things prejudicial to his majesty's government, and therefore desired them to speak at their peril. His advocates being strangers to his cause, as the ones he wished were afraid to appear, he requested a short delay to prepare his defence fully; but this being referred to the Lords of the Articles, they cruelly denied his reasonable request; upon which he gave in a supplication and submission, throwing himself entirely upon the king's mercy, and entreating the intercession of the parliament on his behalf. This, also, they refused to listen to.

After which, his lordship gave in a bill, desiring to be remitted for trial before the justice court, as the intricacy of his case would require learned judges. Nor was it to be supposed that every gentleman or burgess could understand points of law; neither were they his peers; and a nobleman should be judged by his peers. His prosecutors, bent upon his ruin, construed this application into a declining the jurisdiction of parliament, and required him to own it, or inform them who had written the petition. The Marquis, perceiving that every possible advantage would be taken against him, was extremely perplexed; but his advisers avowed the paper, and, after a warm debate, the petition was rejected, but the advocates were excused. He then requested to be allowed the benefit of exculpatory proof, and to bring forward witnesses, who could either attest his innocence or give such explanations as would alleviate his guilt; even this, the last privilege of the lowest criminal, he could not obtain, and was commanded immediately to proceed to his defence—likewise an unusual and oppressive mode of procedure, as it had been customary to discuss first the relevancy of the indictment; that is, whether the facts charged actually constituted the crimes alleged, and thus to give the accused a chance of escape from a cumulative treason, or from any legal informality that might occur.

All the Marquis's reasonable requests and objections being thus disposed of, his defences, with the Lord Advocate's replies, duplies, and triplies—papers of enormous length—were fully read before parliament, as tiresome, tedious, and unfair a mode of conducting a trial before a court, consisting of some hundred individuals, as could possibly have been contrived. When ended, a debate ensued, and the Lord Advocate restricted his charge to the acts committed after 1651, a letter having been procured from the king forbidding any person to be prosecuted for any deed antecedent to the indemnity of that year. This letter, which was understood to have been procured by Lauderdale and Lorn—who had staid at London to attend to his father's interest—somewhat disconcerted the managers, who were now persuaded that the secretary had espoused Argyle's cause; and therefore, to counteract this influence, dispatched Glencairn and Rothes to court, with a letter from parliament approving of the whole proceedings, accompanied by Mr James Sharpe, to inform his majesty respecting the state of the church.

Glencairn actively stirred up the vindictive feelings of the treacherous Monk and the bigoted Hyde, while Rothes reminded Lauderdale of the

former treatment he had received from the Marquis, how dangerous a competitor he might yet be if he escaped, and hinted at the imprudence of committing himself too far with a declining faction. Their arguments prevailed; and, from the date of their arrival, repeated expresses were sent down to Scotland, urging forward the trial.

The relevancy having been sustained, proof was led with regard to his compliance with the usurpers; but the evidence was by no means satisfactory, especially to judges almost all of whom had been ten times more deeply implicated than he, and the issue was doubtful; when, after the debate and examination were closed, and parliament was proceeding to consider the whole matter, an express from London knocked violently at the door. Upon being admitted, he presented a packet to the commissioner, which was believed to be a pardon or some warrant in favour of the Marquis, especially as the bearer was a Campbell, but, upon its being opened, it was found to contain a great many letters addressed by Argyle to Monk when commanding in Scotland, which he had perfidiously reserved, to produce, if absolutely necessary, for the conviction of his former friend; and, on being informed by the commissioner's agents of the "scantiness of probation," had transmitted them by post to supply the deficiency. There was now no room for hesitation; the parliament were perfectly satisfied that the rebel English General had received the reluctant submission and forced co-operation of the last royalist nobleman in Scotland who yielded to the fortune of the victorious republicans, and therefore Argyle was guilty of a treason which Monk had obliged him to commit! The proof of his compliance was complete; and next day he was condemned and forfeited. The manner of his execution was put to the vote, "hang or behead," when it was carried that he should be beheaded, and his head placed on the same spike, on the top of the tolbooth, whence Montrose's had been but lately removed.

During the whole of his protracted trial, which lasted from the 13th of February till the 25th of May, his behaviour was meek and composed, although attacked with the most virulent abuse by the reptiles who crouched before him in the hour of his prosperity. When in his own defence he asked, how could I suppose that I was acting criminally, when the learned gentleman, his majesty's advocate, took the same oaths to the Commonwealth with myself? Sir John Fletcher replied to a question he

could not answer, by calling him an impudent villain. The Marquis mildly said, he had learned in his affliction to endure reproach. After his case appeared desperate, his friends planned an escape, partly by force, and partly by stratagem, and a number of resolute gentlemen had engaged in it; but, after he had consented, and had even put on a female dress, in which he was to be carried out of the Castle, he changed his mind, threw aside his disguise, and declared he was determined not to disown the cause he had so long appeared for, but was resolved to suffer to the utmost.

When brought to receive sentence, there were but few, and these the most determined time-serving sycophants, in the House, shame or compassion preventing a number who had decided his fate from hearing it announced; yet even they could not help moralizing on the mutability of human glory, though, when he requested a delay of only ten days that the king might be acquainted with the result of his trial, they refused that short interval, and prevented his last chance of mercy!

He heard his sentence with equanimity. The Earl of Crawford, who pronounced it in absence of the Chancellor, told him he must receive it kneeling, and he immediately knelt, saying, "That I will with all humility." When rising, he remarked, "I had the honour to put the crown upon the king's head, may God bestow on him a crown of glory. Now he hastens me to a better crown than his own."^[14] Then addressing the commissioner and parliament, "you have the indemnity of an earthly king," said he, "among your hands, and have denied me a share in that; but you cannot hinder me from the indemnity of the King of kings; and shortly you must be before his tribunal. I pray he may not mete out such measure to you as you have done to me, when you are called to account for all your actings, and this among the rest."

¹⁴. Kirkton, p. 103, *et seq.*

After sentence, he was conducted to the common jail, where his lady was waiting for him. "They have given me," said he as he entered, "till Monday, my dear, to be with you; let us improve it." As she embraced him, she sobbed out—"The Lord will require it! The Lord will require it!" and wept bitterly. Nor could the officer who attended him, nor any who were present, avoid shedding tears at the scene. The Marquis, too, was at first considerably affected, but becoming composed, "Forbear!" said he

affectionately to the Marchioness, “forbear! truly I pity them—they know not what they are doing. They may shut me in where they please, they cannot shut out God from me; for my part, I am as content to be here as in the Castle. I was as content in the Castle as in the Tower of London; and as content there as when at liberty; and I hope to be as content on the scaffold as in any of them all.” He then added, “he remembered a text that had been cited to him by an honest minister—‘When Ziglag was taken and burnt, the people spake of stoning David; but he encouraged himself in the Lord.’”

The solemn interval he spent in exercises befitting a dying Christian; and though rather of a timid disposition, yet during the short space that now separated him from eternity, and with the immediate prospect of a violent death, his mind was elevated above his natural temper, and he desired those about him to observe “that the Lord had heard his prayers, and removed all fear from him.” To some ministers permitted to attend him, he said, “that they would shortly envy him who had got before,” adding, “mind I tell it you; my skill fails me if you who are ministers will not either suffer much or sin much; for though you go along with these men in part, if you do it not in all things, you are but where you were, and so must suffer; and if you go not at all with them you can but suffer.” Mr Robert Douglas and Mr George Hutchison preached in the tolbooth, at his desire, on the Lord’s day; and at night his lady, at his particular request, took leave. Mr David Dickson spent the last night with him that he spent on earth, which passed delightfully in prayer, praise, and spiritual conversation, except a few hours he enjoyed of calm and tranquil repose. On Monday, he rose early, and was much occupied in settling his worldly affairs; but, while signing some conveyances, his spiritual joy was such, that he exclaimed with rapture before the company, “I thought to have concealed the Lord’s goodness, but it will not do. I am now ordering my affairs, and God is sealing my charter to a better inheritance, saying, ‘Son, be of good cheer; thy sins are forgiven thee.’” He wrote a letter to the king, expressing his satisfaction that nothing had been proved against him but his being forced to submit to the unlawful power of usurping rebels—the epidemic and fault of the time—praying his majesty’s princely goodness and favour to his wife and family after his decease, and requesting that his just debts might be allowed to be paid out of his estate. He dined with a number of friends at twelve o’clock; after which he retired a little, and returned from his private devotions in a holy rapture. A sense of the forgiveness of his sins made the tears of joy run from

his eyes; and, turning to Mr Hutchison, "I think," said he, "His kindness overcomes me, but God is good to me; he lets not out too much of it here, for he knows I could not bear it;" and, thinking the time was expired, added, "Get me my cloak—let us go;" but being told that the clock had been put back, he answered they were far in the wrong, and kneeled down and prayed. As he ended, notice was sent that the bailies waited him, upon which he called for a glass of wine, and asked a blessing. Then he declared his readiness—"Now let us go, and God go with us." When leaving the room, he said to those who remained, "I could die like a Roman, but choose rather to die as a Christian. Come away, gentlemen; he that goes first goes cleanliest." Calling Mr Guthrie as he went down, he embraced him and took farewell. Mr Guthrie's parting benediction was—"My lord, God hath been with you, he is with you, and He will be with you; and such is my respect for your lordship, that, if I were not under the sentence of death myself, I could cheerfully die for your lordship."

The Marquis was accompanied to the place of execution by several noblemen and gentlemen in mourning. He walked steadily down the street, and, with the greatest serenity, mounted the scaffold, which was filled with his friends, of whom he had given in a list, and whose names were contained in a warrant subscribed by the commissioner. After Mr Hutchison had prayed, his lordship addressed the spectators. He did not attempt any explanation of his conduct. "I came not here," were his humble expressions, "to justify myself but the Lord, who is holy in all his ways and righteous in all his works; holy and blessed is his name. Neither came I to condemn others. I know many will expect that I should speak against the hardness of the sentence pronounced against me, but I will say nothing of it. I bless the Lord, I pardon all men, as I desire to be pardoned of the Lord myself: let the will of the Lord be done." He then, as in the presence of God, disclaimed having entered upon the work of reformation from any motive of self-interest or personal dissatisfaction with the government. He had ever been cordial in his desires to bring the king home, and in his endeavours for him when he was at home; nor had he ever corresponded with his enemies during the time he was in the country. "I confess," he continued, "many look on my condition as a suffering condition; but I bless God, He who hath gone before, hath trode the wine-press of the Father's wrath, by whose sufferings I hope my sufferings shall not be eternal. I shall not speak much

to those things for which I am condemned, lest I seem to condemn others. I wish the Lord to pardon them. I say no more.”

Then changing the subject, he continued—“There are some, and those not openly profane, who, if their private interest go well, they care not whether religion or the church of God sink or swim. But, whatever they think, God hath laid engagements on Scotland. We are tyed by covenants to religion and reformation, and it passeth the power of all magistrates under heaven to absolve a man from the oath of God. It is the duty of every Christian to be loyal; but God must have his as well as Cæsar. Religion must not be secondary. They are the best subjects who are the best Christians. These times are like to prove very sinning times or very suffering times; and let Christians make their choice; and truely he that would choose the better part would choose to suffer. Others that will choose to sin will not escape suffering. Yet I cannot say of mine own condition, but that the Lord in his providence hath mind of mercy to me even in this world; for if I had been more favourably dealt with, I fear I might have been overcome with temptations, as many others are, and many more I fear will be; yea, blessed be his name, I am kept from present evil and evil to come! I have no more to say but to beg the Lord, since I go away, he would bless them who stay behind.”^[15]

- ¹⁵. Sir George M’Kenzie, an unquestionable evidence, says—“At his death he showed much stayedness, as appeared by all his gestures, but especially by his speaking to the people, without any commotion, and with his ordinary gestures.” *History*, p. 47.

Having again spent some time in devotion, he distributed some last tokens of remembrance to the friends who were with him. To the Earl of Caithness, his son-in-law, he gave his watch, saying, with a smile, it was fit for men to pay their debts; and having promised him that watch, he now performed it. After his doublet was off, and immediately before he laid his head upon the block, he addressed those near him—“Gentlemen, I desire you and all that hear me, again to take notice and remember, that, now when I am entering into eternity and to appear before my Judge, and as I desire salvation and expect eternal happiness from him, I am free from any accession, by knowledge, contriving, counsel, or any other ways, to his late majesty’s death; and I pray the Lord to preserve our present king his majesty, and to pour his best blessings upon his person and government; and the Lord give him good and faithful councillors.” Mr Hutchison, his

attendant minister, on bidding him finally adieu, used a Scottish phrase, peculiarly emphatic—"My lord, now hold your grip sicker." The appropriate force of the expression was felt by the sufferer. "You know, Mr Hutchison, what I said to you in the chamber, I am not afraid to be surprised with fear;" and the Laird of Skelmorlie, who took him by the hand at this awful moment, felt that no tremour in his veins belied the assertion. He then knelt, offered up his last prayer, and upon dropping his hands, the appointed signal, the axe of the maiden fell, and his spirit fled to his God and Saviour. His body was carried to Dunoon, and buried in Kilmun church.

Argyle has ever, by the unanimous verdict of his Presbyterian countrymen, been considered a martyr, not for the form, but for the reality of their religion. The form, perhaps, he might have consented to modify—the essence he never durst think of forsaking. There was a consistency in his adherence to his principles that claims our admiration, especially as he sealed his testimony by his blood. He may have given, as many of the excellent men of his day did, an undue importance to points of inferior moment, but the fundamental truths of the gospel were his hope, as, in so far as we can trust the testimony of his friends, its precepts had been the rule of his life. It is refreshing to know that his persecutors did not share his spoil. Through the intercession of Lauderdale, Lorn procured from the king all his father's estates and titles, except that of Marquis.

Mr James Guthrie, minister at Stirling, remarkable for his piety, zeal, and consistency in the cause of reformation-principles, followed his friend to trial and judgment.^[16] He was peculiarly obnoxious to Middleton, having pronounced sentence of excommunication upon him, and was considered the chief of the remonstrators, who had uniformly resisted communion with the malignants; but he was no less distinguished for his intrepid opposition to the government of Cromwell, whom he had boldly stigmatized as an usurper, at the time when all those who now made such flaming professions of loyalty had crouched before him. Revered and popular among the lower ranks, he was not less respected among the worthy of the higher; for, although constrained by terror to condemn, no political victim was ever sacrificed with more reluctance by the subordinate ranks of the priesthood of mammon, than was James Guthrie; and even the Moloch at whose shrine he was immolated, expressed his regret, and bore testimony to his worth—"Had I known," said the callous-hearted Charles, when he heard of Mr

Gillespie being suffered to live, “that they would have spared Gillespie, I would have saved Guthrie!”—a noble testimony, but happily too late to deprive that holy man of the honour his Lord had provided for him with them who were slain for the word of God, and for the testimony which they held. He was arraigned before a court, of which the director and the president were his personal enemies, and of which a majority had already prejudged his case. His pursuers were men who had yielded to the blast that he had braved, who had deserted their prince in the hour of his extremity, had flattered the very powers that he had withstood, yet now came forward with a flagrant effrontery to charge him with favouring an usurpation to which they had done homage, but which he had suffered for withstanding.

16. “He was the son of the Laird of Guthrie, and so a gentleman. When he was regent in St Andrew’s, he was very episcopal, and was with difficulty persuaded to take the covenant. There goes a story, that, when he first yielded to join with the covenanters in Mr Samuel Rutherford’s chamber, as he came out at his door, he mett the executioner in the way, which troubled him; and the next visit he made thither, he mett him in the same manner again, which made him apprehend he might be a sufferer for the covenant, as indeed he was.” *Kirkton’s Hist.* p. 109.

On the 20th of February, he received his indictment, the general charges of which were—his accession to the remonstrance—his writing and publishing that abominable pamphlet, “The Causes of God’s Wrath”^[17]—his contriving, and writing, and subscribing “The humble Supplication of 23d August last”—but, chiefly, his declining, in the year 1650, his majesty’s power in matters purely ecclesiastical, which branch of the royal prerogative the present managers were determined to assert, as they traced, and justly, the chief, if not the whole, of the misery the nation had endured under the king’s father and grandfather, to the opposition made by the ministry to this anti-scriptural jurisdiction, or, in the language of Sir George M’Kenzie, “because this principle had not only vexed King James, but was the occasion of much rebellion.” The indictment, framed upon certain obsolete or repealed acts in favour of popery, prelacy, or the kingly power, passed before the last full establishment of Presbytery, charged him with convoking the lieges without warrant or authority to the disturbance of the state and church. After it had been read, he addressed the Lord Chancellor

17. “The Causes of God’s Wrath,” printed after the fatal defeat at Worcester, which ruined the hopes of the Presbyterians and their covenanted king, contained a faithful and pungent

enumeration of the sins of all ranks, public and personal, in which the misconduct of the royal family and of the nobles—their defections from duty and the oaths of the covenant in public, and the immorality and ungodliness of their conduct in private—were treated with great plainness and particularity, accompanied with strong exhortations to repentance as the only way to avert the judgments of an offended God. Nor were the sins of the ministry or the people slightly passed over; it was an earnest, deep call upon the nation to consider their ways at a time of great public suffering, when the land had been scourged by the presence of two armies, of which their own had not been the least oppressive, and when a threatened famine and an actual scarcity was afflicting them. Its truth was its treason—it had the honour of being burned.

“He was glad,” he said, for he pled his own cause, “that the law of God was named first as being indeed the only supreme law, to which all other laws ought to be subordinate; and there being an act of the first parliament of James VI., by which all clauses of laws or acts of parliament repugnant to the word of God were repealed, he hoped their lordships would give most respect to this, that he might be judged by the law of God especially, and by other laws in subordination thereto. As to the acts of parliament upon which he was arraigned, he asserted the legal maxim, that where any difference between acts occurs, the last is that only which is to be considered obligatory; and he farther affirmed, what almost all his judges had previously, repeatedly, and upon oath allowed, that it must also be granted that laws and acts of parliament were to be understood and expounded by those solemn public vows and covenants contracted with God by his majesty and subjects, which were not only declared by the laws of the land to have the strength of acts of parliament, but, both by the law of God and common law and light of all the nations in the world, are more binding and indispensable than any municipal law and statute whatever.”

The general charge of abetting Cromwell, he defied all the world to prove if he had justice allowed him; nor was it attempted. His approval of the remonstrance he did not deny, but this he only did in a legal manner, as a member of a legal assembly. His participation in the authorship of “The Causes of God’s Wrath,” he avowed and defended. But in this he said he acted merely and singly from a constraining power of conscience to be found faithful as a minister of the gospel, in the discovering of sin and guiltiness, that it being acknowledged and repented of, wrath might be taken away from the house of the king and from these kingdoms. “Your lordship knows,” continued he, “what charge is laid upon ministers of the gospel, to give faithful warning to all sorts of persons, and how they expose their own souls to the hazard of eternal damnation, and the guilt of the

blood of those with whom they have to do, if they do not this. And you do also know, that the prophets and apostles of our Lord Jesus Christ himself did faithfully warn all men, though it was their lot, because of the same, to be reckoned traitors and seditious persons. My lord, I wish it seriously to be pondered, that nothing is asserted in these “Causes” as matter of sin and duty, but what hath been the common received doctrine of the church of Scotland, the truth of which is confirmed from the word of God; and as to matters of fact, as far as regards the royal family, they are no other than are mentioned in the solemn public causes of humiliation condescended upon and kept by the whole church jointly, and his majesty and family, with the commission of the General Assembly and committee of estates, before his coronation at Perth.”

He also avowed the “Supplication” at Edinburgh, which he vindicated as containing nothing more than a humble petition concerning those things to which his majesty and all his subjects were engaged by the solemn irreversible oath of the covenant, with a serious representation of the dangers threatening religion, and the duties of that sacred obligation, and did only put his majesty in remembrance of holding fast the oaths of the covenant. The meeting was presbyterial, and therefore legal; and was, besides, a quiet, orderly convocation, without tumult, and requiring no particular warrant.

Respecting his declining the king’s authority in things sacred, he unhesitatingly acknowledged that he did decline the civil magistrate as a competent judge of ministers’ doctrine in the first instance.^[18] His authority in all things civil, he said he did with all his heart allow; but such declinations were agreeable to the word of God, which clearly holds forth that Christ hath a visible kingdom, which he exercises in or over his visible members by his spiritual officers, which is wholly distinct from the civil power and government of the world—to the Confession of Faith and doctrine of the church of Scotland, which acknowledge no head over the church of Christ but himself, nor any judgment or power in or over his church, but that which he hath committed to the spiritual office-bearers thereof under him, and had been the ordinary practice of that kirk since the time of the reformation from Popery; and were also agreeable to, and founded on, the National Covenant and Solemn League and Covenant, by which the king’s majesty himself, and all the subjects of that kingdom, were

bound to maintain the doctrine, worship, discipline, and government of that church, with solemn vows and public oaths of God. “Upon these grounds, therefore,” said he, “it is that I gave in and do assert that declination for vindicating the cause, dignity, and royal prerogative of Jesus Christ, who is King of kings and Lord of lords, but with all due respect to his majesty, his greatness, and authority.” Then, after discussing the several acts of parliament that had been quoted, he thus concluded an able and argumentative speech:—

- [18.](#) The error of these good men was, in allowing the civil magistrate the right of judging of a minister’s doctrine in any case whatever, so long as he kept within the proper bounds of his pastoral duty, and inculcated only religious tenets, and did not meddle with seditious or treasonable matters.

“That I did never purpose or intend to speak or act any thing disloyal, seditious, or treasonable against his majesty’s person, authority, or government, God is my witness; and that what I have written, spoken, or acted, in any of those things wherewith I am charged, hath been merely and singly from a principle of conscience; that, according to the weak measure of light given me of God, I might do my duty in my station and calling as a minister of the gospel. But because the plea of conscience alone, although it may extenuate, cannot wholly excuse, I do assert that I have founded my speeches, writings, and actings, in these matters, on the word of God, and on the doctrine, Confession of Faith, and laws of this church and kingdom—upon the National Covenant of Scotland, and the Solemn League and Covenant between these three kingdoms. If these foundations fall, I must fall with them; but if these sustain and stand in judgment, as I hope they will, I cannot acknowledge myself, neither I hope will his majesty’s commissioner and the honourable court of parliament judge me, guilty either of sedition or treason.”

This trial lasted from the 20th of February till the 15th of April; and the most strenuous efforts were made to induce Mr Guthrie to submit and plead for mercy. He was even offered a bishopric; but he deemed the object for which he contended too important to be yielded up for any consideration of temporal aggrandizement. When the protracted proceedings were drawing to a close, on the 11th of April, after his defences, which were very elaborate, had been read, he finished his pleading by a pointed and solemn appeal, which was heard with the most profound attention, and induced a

number to withdraw, declaring, in the language of Scripture, “They would have nothing to do with the blood of that righteous man.”

Addressing the Chancellor, “My lord,” said the intrepid minister in conclusion, “I shall, in the last place, humbly beg—having brought such pregnant and clear evidence from the word of God, so much divine reason and human law, and so much of the common practice of the kirk and kingdom in my own defence; and being already cast out of my ministry, driven from my dwelling, and deprived of my maintenance, myself and my family thrown upon the charity of others; and having now suffered eight months’ imprisonment—that your lordships would put no farther burden upon me. But, in the words of the prophet, ‘Behold! I am in your hands, do to me what seemeth good to you.’ I know for certain that the Lord hath commanded me to speak all these things, and that if you put me to death you shall bring innocent blood upon yourself and upon the inhabitants of this city. My lord! my conscience I cannot submit; but this old crazy body and mortal flesh I do submit to do with whatever you will, whether by death, by banishment, or imprisonment, or any thing else, only I beseech you ponder well what profit there is in my blood; it is not extinguishing me or many others that will extinguish the covenant and the work of reformation since 1638. No! my bondage, banishment, or blood, will contribute more for their extension than my life or liberty could, were I to live many years. I wish to my Lord Commissioner, his Grace, and to all your lordships, the spirit of judgment, wisdom, and understanding, and the fear of the Lord, that you may judge righteous judgment, in which God may have glory, the king honour and happiness, and yourselves peace in the great day of accounts.” But all was of no avail; his life was determined on as an example to the ministers, and he was found guilty, upon his own confession, of the charges brought against him. Sentence was delayed till the 28th of May, when the doom of a traitor was pronounced by the Earl of Crawford, in absence of the Chancellor. As he arose from his knees—for he had been ordered to kneel—“My lords,” said he, “may never this sentence more affect you than it does me; and let never my blood be required of the king’s family!” He had assisted in managing his defence with an eloquence, acuteness, and legal knowledge, that drew forth the admiration of the professional gentlemen who were his advocates.

When his case was decided, and he was removed to wait till his sentence was written out, while he remained amid the soldiers, and officers, and servants of the court, he afterwards declared he never felt more of the sensible presence of God, of the sweet intimations of peace, and the real manifestations of divine love and favour, than when surrounded with all their bustle and confusion. From that time till he went to the scaffold, he remained in a serene, tranquil frame of mind. On the day of his execution, June 1, several of his friends dined with him, when not only his cheerfulness, but even his pleasantry, did not forsake him. After dinner, he jocularly called for a little cheese, of which he was very fond, but had been forbid by his physicians to eat on account of a gravelish complaint, saying, "I hope I am now beyond reach of the gravel."

He delivered his last speech from the ladder with the same composed earnestness with which he was wont to deliver his sermons. "He thanked God that he suffered willingly, having had it in his power to have made his escape, or by compliance to have obtained favour, but he durst not redeem his life with the loss of his integrity." "I bless God," he proceeded, "that I die not as a fool, not that I have any thing wherein to glory in myself. But I do believe that Jesus Christ came into the world to save sinners, whereof I am chief; through faith in his righteousness and blood, I have obtained mercy, and through him and him alone have I the blessed hope of a blessed conquest over sin and Satan, death and hell, and that I shall attain unto the resurrection of the just, and be made partaker of eternal life. I know in whom I have believed, and that he is able to keep that which I have committed to him unto that day. I have preached salvation through his name; and as I have preached, so do I believe, and do recommend the riches of his free grace and faith in his name unto you all, as the only way whereby ye can be saved."

"And," continued he, "as I bless the Lord I die not as a fool, so also that I die not for evil-doing. God is my record, that in these things for which sentence of death is passed against me, I have a good conscience. My heart is conscious of no disloyalty. The matters for which I am condemned, are matters belonging to my calling and function as a minister of the gospel; such as discovering and reproofing of sin, the pressing and holding fast of the oath of God in the covenant, and preserving and carrying on the work of reformation according thereto, and denying to acknowledge the civil

magistrate as the proper, competent, immediate judge in causes ecclesiastical.” He then warned his hearers that the wrath of God was hanging over the land for that deluge of profanity that was overflowing it; for their perjury and breach of covenant—“Be astonished, O ye heavens, at this! shall he break the covenant and prosper? shall the throne of iniquity have fellowship with God, which frameth mischief by a law?” for their ingratitude; for their dreadful idolatry and sacrificing to the creature—a corruptible man, in whom many had placed almost all their salvation and all their desire; for a generation of carnal, time-serving ministers, men who minded earthly things, enemies to the cross of Christ, who pushed with the side and shoulder, who strengthen the hands of evil-doers, and make themselves transgressors by studying to build again what they did formerly warrantably destroy.

Next, he earnestly exhorted the profane, the lukewarm, and the indifferent, to repentance, and the godly to confidence and zeal, expressing his belief that God would neither desert his people nor cause in Scotland. “There is yet,” exclaimed he, “a holy seed, a precious remnant, whom God will preserve and bring forth; but how long or dark our night may be, I do not know; the Lord shorten it for the sake of his chosen. In the mean while, be patient, steadfast, and immovable, always abounding in the work of the Lord. Beware of snares, decline not the cross, and account the reproach of Christ greater riches than all the treasure of the world. Let my death grieve none of you. I forgive all men the guilt of it, and I desire you to do so also. Pray for them that persecute you; bless them that curse you; bless, I say, and curse not!” After bearing testimony to the faith of the gospel, the doctrine and discipline of the church of Scotland, the protestation, and against the course of backsliding then afoot in the land,

He ended in this strain of triumphant exultation, well becoming a martyr for the truth—“Jesus Christ is my light and my life, my righteousness, my strength, and my salvation, and all my desire. Him! O him! do I with the strength of all my soul commend unto you; blessed are they that are not offended in him. Bless him, O my soul! from henceforth even for ever. Rejoice, rejoice all ye that love him; be patient and rejoice in tribulation. Blessed are you, and blessed shall you be for ever and ever. Everlasting righteousness and eternal salvation is yours; all is yours; and ye are Christ’s, and Christ is God’s!” His last words were—“Remember me, O Lord, with

the favour thou bearest to thy people. O visit me with thy salvation, that I may see the good of thy chosen; that I may rejoice in the gladness of thy nation; that I may glory with thine inheritance. Now let thy servant depart in peace, since my eyes have seen thy salvation!”

An obscure individual, named William, sometimes Captain, Govan, was executed along with Mr Guthrie. He met death with the same joyful confidence, resting on the same sure foundation. For what specific charges he suffered, is uncertain. In his speech which he left, he says it was for laying down his arms at Hamilton, as all the company did. Sir George M’Kenzie alleges it was for joining in the English army in 1651. “But so inconsiderable a person,” he adds, “had not died if he had not been suspected to have been upon the scaffold when King Charles the First was murdered, though he purged himself of this when he died; and his guilt was, that he brought to Scotland the first news of it, and seem’d to be well satisfied with it.” His chief crime, however, appears to have been that he was a pious, consistent, and zealous Presbyterian. Mr Guthrie was turned off first; and his behaviour must have tended greatly to strengthen his fellow-sufferer, who, in his last speech, after exhorting the licentious and the lukewarm to repent, remarked—“As for myself, it pleased the Lord, in the fourteenth year of my age, to manifest his love to me; and now it is about twenty-four years since, all which time I professed the truth which I suffer for and bear testimony to at this day, and am not afraid of the cross upon that account. It is sweet! it is sweet! otherwise how durst I look on the corpse of him who hangs there with courage, and smile upon that gibbet as the gate of heaven?” When he had ended, he took a ring from off his finger, and gave to a friend, desiring him to take it to his wife and tell her—he died in humble confidence, and found the cross of Christ sweet. Christ, he added, had done all for him; and it was by him alone he was justified. Being desired to look up to that Christ, he replied—“He looketh down and smileth upon me;” and mounting the ladder—“Dear friends,” said he to those around him, “pledge this cup of suffering before you sin, as I have now done; for sin and suffering have been presented to me, and I have chosen the suffering part.” When the rope was put about his neck, he observed—“Middleton and I went out to the field together upon the same errand; now I am promoted to a cord and he to be Lord High Commissioner; yet for a thousand worlds would I not change situations with him! Praise and glory be to Christ for ever!”

Besides those who suffered unto death at this time, many others were prosecuted and punished, by removal from their office, imprisonment, or exile. Among these, the most conspicuous were, Mr Robert Traill, minister of the Greyfriar's church, Edinburgh. He had been in the Castle while it held out against Cromwell, had encouraged the governor and garrison to be faithful to their trust, and had received a severe wound during the siege; yet he was now charged with disloyalty and a participation in all the obnoxious transactions for which Mr Guthrie laid down his life. His indictment had been drawn up, as all the libels of that time were, with great acrimony and peculiar virulence of expression, to exaggerate the crime of disloyalty, which formed the prominent feature of the accusation. In replying, Mr Traill averred he durst appeal to the Lord Advocate's own conscience, whether he believed him to be such an one as he had represented him, and complained of bitter and injurious words, but abstained from any angry retort. "I have not," was his meek answer, "so learned Christ; yea, I have learned of him not to render evil for evil, nor railing for railing, but contrariwise blessing; and therefore I do from my heart pray for the honourable drawer up of the libel, as I would do for myself, that the Lord would bless him with his best blessings, and would give him to find mercy in the day of the Lord Jesus!" When the remonstrance was presented, he was confined in the garrison; but, with respect to the other charges, his replies were similar to Mr Guthrie's, although not perhaps quite so strongly expressed assertions of the legality, propriety, and the imperative necessity of ministers being faithful in the discharge of their duty. He had been seven months confined before being brought to trial; and to that he alludes in the following solemn conclusion of his defence:—

"Now, my lord, I must in all humility beg leave to entreat your lordship that you would seriously consider what you do with poor ministers, who have been so long kept, not only from their liberty of preaching the gospel, but of hearing it—that so many congregations are laid desolate for so long a time, and many poor souls have put up their regrets on their deathbed for their being deprived of a word of comfort from their ministers in the hour of their greatest need! The Lord give you wisdom in all things, and pour out upon you the spirit of your high and weighty employment, of understanding and the fear of the Lord, that your government may be blessed for this land and kirk—that you may live long and happily—that your memory may be sweet and fragrant when you are gone—that you may leave your name for a

blessing to the Lord's people—and that your houses and families may stand long and flourish to the years of many generations! Above all, that you have solid peace and heart-joy in the hour of the breaking of your heart-strings, when pale death shall sit on your eyelids—when man must go to his long home and the mourners go about the streets: for what man is he that liveth and shall not see death? or who can deliver himself from the power of the grave? Even those to whom he saith, ye are gods, must die as men; for it is appointed to all men once to die, and after death the judgment, and after judgment an endless eternity! Let me therefore exhort your lordship, in the words of a great king, a great warrior, and a holy prophet—Be wise, be taught, ye rulers of the earth; serve the Lord with fear, and rejoice before him with trembling. Kiss the Son, lest he be angry, and ye perish from the way, when his wrath is kindled but for a little. Then blessed will all those, and those only, be who put their trust in him. Now the Lord give you, in this your day, to consider the things that belong to your eternal peace, and to remember your latter end, that it may be well with you world without end!”

An address such as this, from a prisoner at the bar to his judges, who had his life and death in their hands, could not fail but to have been productive of a powerful effect upon the minds of such as were not altogether hardened against every impression, and presents the sufferer for truth and a good conscience upon a commanding elevation, unattainable in any other cause, fearless of personal safety, and anxious only that, while he be found faithful in the service of his master, his persecutors may enjoy the same privilege. How forcibly does it recall the Apostle's address to Agrippa—“I would to God, that not only thou, but also all that hear me this day, were both almost and altogether such as I am, except these bonds.” Mr Traill was remitted to prison, where he lay for some time, and was afterwards banished to Holland. While uncertain of his fate, he thus wrote to another minister from his prison—“Your imprisoned and confined brethren are kindly dealt with by our kind Lord, for we have large allowance from him could we take it. We know it fares the better with us. You and such as you, mind us at the throne. We are waiting from day to day not knowing what man will do with us. We are expecting banishment at the best; but our sentence must proceed from the Lord, and whatsoever it be, it shall be good as from him, and whithersoever he send us, he shall be with us; for the earth is the Lord's and the fulness thereof!”

A remarkable trait in all these proceedings is, that the men now persecuted for alleged disloyalty were the men who, when the throne was prostrate, and when these their persecutors had in general deserted the cause as desperate, rallied round the standard of royalty, refused to bow to the invaders, and had suffered for their attachment to the legitimate prince! and it seemed as if the measure of ingratitude meted out to them, was to be in proportion to the steadfastness with which they had adhered to the fortunes of that family in their lowest depression.

Mr Alexander Moncrief, minister of the gospel at Sconie, in Fife, had particularly distinguished himself by his loyalty during the usurpation and domination of the English—and had subjected himself to imprisonment by boldly praying for the king; and so far had he been from joining with the sectaries, that he presented a petition to Monk against their toleration; but he had approved of the remonstrance, and had assisted in drawing up “The Causes of God’s Wrath;” and he was therefore a proper object for persecution. Highly esteemed in the country where he lived, the greatest interest was made to procure his life; and two ladies of the first rank presented a handsome service of plate to the Lord Advocate’s wife—a practice, it seems, not uncommon in these times!—to procure his interference; but the plate was returned, and they were told that nothing could be done to save him. The Earl of Atholl, likewise, and several members of parliament, were anxious to protect him, but were informed that he could expect no mercy, unless he would consent to change his principles. When this was told to his wife, her reply showed her to have been a woman of a similar spirit. “Ye know that I am happy in a good husband, to whom I have ever borne a great affection, and have had many children; but I know him to be so steadfast to his principles, where conscience is concerned, that nobody need speak to him upon that head; and, for my part, before I would contribute any thing that would break his peace with his master, I would rather choose to receive his head at the cross!” Yet the numerous applications in his favour from persons of influence—without his knowledge—procured a mitigation of his punishment; and, after a tedious confinement, he was only rendered incapable of all civil or ecclesiastical employment, deprived of his living, and forbid to enter his parish.

Mr Robert Macwaird, minister, Glasgow, who had likewise maintained his loyalty to his king in the face of his enemies, was included in the noble band of sufferers; but the accusation against him differed somewhat from the others. When he perceived the general and awful course of defection from the very profession of religion, and the design to overturn the whole covenanted work of reformation, he commenced a series of sermons, in his week-day exercise, from that striking text, Amos iii. 2. "You only have I known of all the families of the earth; therefore I will punish you for all your iniquities." In these, he first addressed himself to his hearers, and pressed upon their consciences their personal sins—for these worthies, who stood in the front of the battle while contending earnestly for the national religion, never failed to inculcate the inutility and danger of a public profession without personal holiness—from personal, he ascended to general and national sins; and, adverting to the open profligacy and backsliding which pervaded a nation once so high in profession, and so favoured in privilege, he pathetically asked, "Alas! may not God expostulate with us, and say, ye are backslidden with a perpetual backsliding, and what iniquity have you found in him? We are backslidden in zeal and love. The glory of a begun reformation in manners is eclipsed, and an inundation of profanity come in. Many who once loved to walk abroad in the garment of godliness, now persecute it. The faithful servants of Christ are become enemies, because they tell the truth. The upright seekers of God are the marks of the great men's malice." And, interjecting this most remarkable prayer—"May it never be said of faithful ministers and Christians in Scotland, 'We have a law, and by this law they must die'"—he continued, "Backsliding is got up to the very head and corrupts the fountains; and wickedness goeth forth already from some of the prophets through the whole land! Are these the pastors and rulers that bound themselves so solemnly and acknowledged their former breaches? How hath the faithful city turned an harlot?"

These expressions, and many others of a like import, excited the enmity of those whom they convicted, and to whom the exhortations to repent and to return were addressed in vain; and some of the apostate tribe transmitted to the managers information against the preacher, as having been guilty of treason. The following passage was that upon which the charge chiefly rested. After entreating his audience to mourn, consider, repent, and return—to wrestle, pray, and pour out their souls before the Lord, he encouraged

them, by remarking, that “God would look upon these duties as their DISSENT from what was done prejudicial to his work and interest, and mark them among the mourners in Zion.” Then came the treason! “As for my own part, as a poor member of the church of Scotland, and an unworthy minister in it, I do this day call upon you who are the people of God to witness, that I humbly offer my *dissent* to all acts which are or shall be passed against the covenants or work of reformation in Scotland. And, secondly, protest, that I am desirous to be free of the guilt thereof, and pray that God may put it upon record in heaven.” For this discourse he was arrested; and, on the Thursday following Mr Guthrie’s execution, was brought before the parliament.

Expecting nothing else than to follow that great man to heaven from the scaffold, he was equally courageous and unhesitating in his behaviour; and, when called upon to reply, June 6th, thus honestly avowed his sentiments:—“My lord, I cannot, I dare not, dissemble, that, having spoken nothing but what I hope will be the truth of God when brought to the touchstone, and such a truth as, without being guilty of lese-majesty against God, I could not conceal while I spoke to the text, I conceive myself obliged to own and adhere to it. So far from committing treason in this, I am persuaded that it was the highest part of loyalty towards my prince, the greatest note of respect I could put upon my superiors, the most real and unquestionable evidence of a true and tender affection to my countrymen and the congregation over whom the Holy Ghost made me, though most unworthy, an overseer, to give seasonable warning of the heavy judgment which the sin of Scotland’s backsliding will bring on, that so we may be instructed at length to search and try our ways and turn to the Lord, lest his soul be separated from us; for wo unto us if our glory depart! No man will or ought to doubt whether it be a minister’s duty to preach this doctrine in season and out of season, which yet is never unseasonable, and to avow that the backslider in heart shall be filled with his own ways; and if any man draw back, his soul shall have no pleasure in him. And if so, what evil have I done, or whose enemy am I become for telling the truth?

“But in order to remove any thing that may seem to give offence in my practice, I humbly desire it may be considered that a ministerial protestation against, or a dissent from, any act or acts which a minister knows and is convinced to be contrary to the word of God, is not a legal impugnation of

that or these acts, much less of the authority enacting them, which it doth rather presuppose than deny; it is just a solemn and serious attested declaration, witness, or testimony, against the evil and iniquity of these things, which, by the word of God, is a warrantable practice, as is clear from Samuel, where the prophet was directed by the Lord himself to obey the voice of the people, howbeit yet protest solemnly unto them, and show them the manner of the king that shall reign over them; also Jeremiah xi. 7. There is no act of parliament declaring that it shall be treason for a minister to protest, in the Scripture sense, against such acts as are contrary to the covenant and the work of reformation; nay more, there were acts by which the covenants and vows made to God for reformation in this church, according to his will revealed in his word, received civil confirmation; and I, as his unworthy servant, was authorized to protest that these rights be not invaded—that these vows be not broken!

“Nor may I conceal, that, when I reflect upon and remember what I have said and sworn to God in the day when, with an uplifted hand to the most high, I bound my soul with the bond of the covenant, and engaged solemnly, as I should answer to the great God, the searcher of hearts, in that day when the secrets of all hearts shall be disclosed, never to break these bonds, nor cast away these cords from me, nor to suffer myself, either directly or indirectly, by terror or persuasion, to be withdrawn from owning them—when I recollect that, had they been even things indifferent, I durst not have shaken them off when I had sworn to God, and consider that, instead of this, they were duties of indispensable obligation antecedently to all oaths, and remain unalterably binding independently of them—and when I considered my duty as a minister, to give warning, to declare, testify, and bear witness against the sin of violating these covenants, in order to avoid the wrath that shall follow, and that under no less a threatening than banishment from the presence of the Lord and the glory of his power—I had no choice.

“Now I humbly beseech I may not be looked upon as a disloyal person, either as to my principles or practice; and so clear am I that there was neither iniquity in my heart, nor wickedness in my hands, against his majesty, that I only wish the informer’s conduct, be he who he may, in the place where I live, were compared with mine, and the issue of my trial depended on this—whether he or I had shown most loyalty during the

prevalence and usurpation of the enemy; but I suspect he has rather a little more prudence than to agree to such a test. But as for me, my lord, while I wait the coming forth of my sentence from his presence, whose eyes behold the things that are equal, I declare, that however I cannot submit my conscience to men, yet I humbly, as becometh, submit my person.”

This case appears to have been ably managed; and the parliament delayed proceeding to any immediate decision. In the interval, he presented a supplication withdrawing the words “protest and dissent,” as too legal and forensic, substituting the words “declaring and bearing witness.” The reasons which he assigned for so doing are satisfactory, and show that the witnesses of this period did not stand with obstinacy upon any irrational punctilio, or foolishly rush upon suffering for the sake of unmeaning distinctions or of favourite phrases. “I am brought,” are his expressions, “to offer this alteration, not so much, if my heart deceive me not, for the fear of prejudice to my person—though being but a weak man, I am easily reached by such discomposing passions—as from an earnest desire to remove out of the way any, the least, or remotest, occasion of stumbling, that there may be the more ready and easy access, without prejudice of words, to ponder and give judgment of the matter; and that, likewise, if the Lord shall think fit to call me forth to suffer hard things on this account, it may not be said that it was for wilful and peremptory stickling to such expressions; whereas, I might, by using others, without prejudice to the matter, and no less significant, have escaped the danger; and lest I should seem to insinuate that a minister of the gospel could not have sufficiently exonerated his conscience without such formal and legal terms.” But it was necessary to get rid of men whose abilities were dreaded by their apostate brethren, and whose consistent piety would have been a standing reproach to the new prelates. He was therefore, before parliament rose, sentenced to banishment, though, by an uncommon stretch of moderation, he was allowed to remain six months in Scotland—one of them in Glasgow to arrange his affairs—and empowered to receive his next year’s stipend.

What rendered these rigorous proceedings towards the ablest, the most pious, and most conscientious loyalists, more flagrantly unjust, was, the lenity shown to others who had been deeply implicated in active compliances with the usurpers, not only after their power became irresistible, but even while Charles was in the country and at the head of an

army. The Laird of Swinton had been suspected, in the year 1650, of corresponding with Cromwell, and being summoned to answer before the parliament at Perth, was forfeited for failing to appear, on which he joined the English, and was appointed a judge; but having now turned a quaker, he was pardoned, and went to the north, where he succeeded in making a few proselytes. Sir John Chiesly, also, who had acted cordially with the English, and been forfeited by the same parliament, was passed over; but his safety was attributed to the influence of money; for rapacity and venality characterized almost every member of government, and every court of justice, from the Restoration to the Revolution.

The escape of Mr Patrick Gillespie was more surprising, as he was personally disagreeable to the king, who had repeatedly refused to listen to any solicitations on his behalf. Gillespie was a minister in Glasgow, and afterwards principal of the College. He had been the most conspicuous of the remonstrators—had approved of “The Causes of God’s Wrath,” and had been appointed principal by the English commissioners, or sequestrators as they were called^[19]—had been a great favourite with Cromwell—had preached before him—prayed for him as chief magistrate—and had received from him several valuable gifts—all which were now brought forward as charges against him. But he had many friends in the House, and was induced to profess civil guilt and throw himself upon the king’s mercy. His concessions, it is alleged, were strained beyond what he intended, and represented as of great importance at the time, as he had been eminent among his brethren; and it was supposed his example would have a mighty influence in inducing the more scrupulous to give way. They were, however, grievous to the Presbyterians and not satisfactory to his majesty; but they procured a mitigation of his punishment, which was commuted to deprivation of his office, and confinement to Ormiston and six miles round.

¹⁹. At the time when the English ruled, the church of Scotland was divided and subdivided into a variety of sections. The remonstrators themselves divided; some of them, among whom were, Messrs P. Gillespie, Samuel Rutherford, James Durham, William Guthrie of Fenwick, Robert Traill, and other eminently pious men, complied with the ruling powers on the Christian principle of obedience to the powers that be, and the absolute necessity of the case; but they were still more obnoxious to the resolutioners, because they so far agreed with the sectaries, in only considering as members of the church persons who gave proof of practical godliness, and opposed the principle of promiscuous communion and general membership. Against this schism, Principal Baillie was very violent. “This formed schism,” says he, in a letter to Mr W. Spang, “is very bitter to us, but remediless, except on intolerable conditions, which our wise

orthodox divines will advise us to accept:—We must embrace, without contradiction, and let grow, the principles of the remonstrants, which all reformed divines, and all states in the world, abhor. We must permit a few heady men to waste our church with our consent or connivance. We must let them frame our people to the sectarian model—a few more forward ones among themselves, by privy meetings, to be the godly party; and the congregation, the rest, to be the rascally malignant multitude; so that the body of our people are to be cast out of all churches; and the few who are countenanced, are fitted, as sundry of them already have done, to embrace the errors of the time for their destruction.” *Letters*, vol. ii. p. 375. The other section of the remonstrants refused to acknowledge in any manner the power of the usurper, lamented the toleration of sectaries, and maintained, with the resolutioners, the legitimate principles of a national church—that all who attended were to be considered members of that church, unless excommunicated for openly immoral conduct or disobedience to the order and discipline of the church. At the head of this section were, Mr James Guthrie, Warriston, and many others, who bore testimony by their blood to the sincerity of their profession. It is worthy of remark, that the first class were chiefly the older, the second the younger, race of the Presbyterians.

On the 12th of July, the parliament rose; and, on the last day of that month, their public acts were proclaimed, with the usual formalities, from the cross of Edinburgh—a ceremony that employed the heralds and other functionaries from ten o’clock in the forenoon till six at night.

About the same time, Samuel Rutherford was relieved by death.

BOOK III.

AUGUST, A.D. 1661-1662.

Lord High Commissioner sets out for Court—His reception—Deliberations of the Council—Episcopacy resolved upon as the National Religion of Scotland—Glencairn, Rothes, and Sharpe appointed to carry the tidings to Edinburgh—King's letter—Privy Council announce the overthrow of Presbytery—Forbid the election of Presbyterian Magistrates in Burghs—Prosecute Tweeddale—Ministers summoned to London to be episcopally ordained—Their characters—Their consecration—Grief of the Presbyterians—Re-introduction of Episcopacy—Restrictions on the press—Witchcraft—Synods discharged and Bishops ordered to be honoured by royal patent—Their consecration—Parliament restores their rank—Asserts the King's supremacy—The Covenants declared unlawful—Act of fines—Defeated—Lord Lorn—Blair and other ministers deprived—King's birth-day—Middleton's visit to the West and South—Case of Mr Wylie—Brown of Wamphrey—Livingston, &c.—Middleton removed and Lauderdale appointed.

Leaving the government in the hands of the privy council,^[20] Middleton, after parliament adjourned, set out for court, where he was received by the Earl of Clarendon, Lord Chancellor, the Duke of Ormond, and all the cavalier party, with the greatest congratulations for having quenched the fanatic zeal of Scotland, and carried his majesty's prerogative beyond what any preceding monarch, when present, had ever claimed.

²⁰. The chief members of which were—The Earl of Glencairn, chancellor; Crawford, treasurer; Rothes, president; Lauderdale, secretary. Members—Dukes of Lennox and Hamilton; Marquis of Montrose; Earls of Errol, Marischal, Mar, Atholl, Morton, Cassils, Linlithgow, Perth, Dunfermline, Wigton, Callender, Dundee, &c. &c. *Wodrow*, p. 87.

At a council held upon his arrival, Charles, who utterly detested Presbytery, expressed himself highly gratified at the report of what he had done; but his councillors were divided. Lauderdale and some others, who knew perfectly that the established religion was deeply rooted in the affections of Scottishmen, were unwilling to hazard a change; and even

some who wished an Episcopacy were yet averse to its being too rashly introduced.^[21] Middleton, however, who had been previously tutored, immediately addressed the king—"May it please your sacred majesty: You may perceive by the account I have now given of your affairs in Scotland, that there is no present government as yet established in that church. Presbytery is, after a long usurpation, now at last rescinded—the covenant, whereby men thought they were obliged to it, is now declared to have been unlawful—and the acts of parliament, whereby it was fenced, are now removed; so that it is arbitrary to your majesty to choose what government you will fix there; for to your majesty this is by the last act of supremacy declared to belong. But if your majesty do not interpose, then Episcopacy, which was unjustly invaded at once with your royal power, will return to its former vigour."

- ²¹. When the lords went first up to welcome the king, the question was debated what form of government should be established in the Scottish church. "Middleton and Glencairn were resolute for bishops, pronouncing they would both compose the church and manage it to the king's mind; Lauderdale opposed it stiffly, affirming the king should thereby lose the affectiones of the people of Scotland, and that the bishops should be so far from enlarging the king's power, that they would prove a burdine too heavy for him to bear; and therein he proved als true a prophet, as he was a faithful friend to the king. Within some few days, Glencairn came to visit Lauderdale, and told him he was only for a sober sort of bishops, such as they were in the primitive times, not lordly prelates. Lauderdale answered him with an oath, that since they had chosen bishops, they should have them higher than any that ever were in Scotland, and that he should find." *Kirkton*, p. 134.

Glencairn followed, and affirmed that the insolence of the Presbyterian ministers had so disgusted all loyal subjects, that six for one longed for the Episcopalian government, which had ever inculcated obedience and supported the royal interest; whereas, Calvinism and Presbytery had never been introduced into any country without blood and rebellion, and instanced, with the most preposterous absurdity, the struggles for freedom at the Reformation—in France, during the civil war—in Holland, when they revolted from Spain—and now twice in Scotland; once by the Regent Murray, when Queen Mary was banished, and lastly in 1637. Rothes added, although he had not seen the rise of the innovations, yet he had witnessed the ruin of the engagement and the treatment of the king by that persuasion. Lauderdale contended that the proposition was of too great importance to be slightly determined, and required much thought and much information; for, upon their resolution, depended the quiet of the Scots—a people very

unmanageable in matters of religion—and advised that either a General Assembly should be called, the provincial synods consulted, which, as composed of ministers and laymen, would acquaint his majesty with the inclinations of his subjects—or, he might call the ablest divines on both sides, and learn their sentiments, if neither of the other proposals were approved of. Middleton replied that all these methods would only tend to continue Presbytery; for it was probable the power of the ministers, which had been so irresistible of late, would preponderate in all. They would easily procure ruling elders of their own cast to be chosen, and both would be unwilling to resign the power they possessed; at all events, the leading men whom the inferior clergy must follow, durst not quarrel the resolutions of their rabbis, who would adhere to the oaths they had taken, and stoutly defend their own supremacy; besides, to call General Assemblies or synods, were to restore them, and thus to infringe the act rescissory.

The Earl of Crawford, whose treasurer's rod was a desirable object for Middleton, had declined mingling in the debate, which the Chancellor of England observing, requested his majesty that he might be desired to give his opinion, in order that he might either disclaim Presbytery or displease the king, and thus put his principles or his place in jeopardy; for it appeared to be a settled rule among the courtiers of Charles, that whatever Scottishmen were allowed to interfere in the public affairs of their native country, should sacrifice either their conscience or their interest.

Crawford perceived the Chancellor's aim, and vehemently urged that provincial synods might be consulted, assuring his majesty, the king, that six for one in Scotland were in favours of Presbytery. "The offences of the reformers," he warmly contended, "were not to be charged upon the Reformation: the best innovations were ever attended with much irregularity, and therefore it was better to continue that government which had now past all these hazards—at first unavoidable—than risk another, which, at its outset, must be unhappy in the same inconveniences. Nor did the act rescissory cut off Presbytery, for it was secured by acts of General Assemblies, which had been countenanced by his majesty's father's commissioners, and were yet unrepealed."

The Duke of Hamilton supported him, and affirmed that the reason why the act rescissory had so easily passed, was, because his majesty had promised to continue Presbytery in his letter addressed to the ministers of

Edinburgh. Clarendon closed the debate, by observing, that Crawford had owned all that ever was done in Scotland in their rebellion; “and God preserve me,” said he, “from living in a country where religion is independent of the state, and clergy may subsist by their own acts; for there all churchmen may be kings.” The king then told them that he perceived a majority were for Episcopacy, and therefore he resolved to settle it without any farther delay.

Immediately after, Glencairn and Rothes were dispatched to Edinburgh, accompanied by Mr Sharpe, to convey his majesty’s determination to the council. Were it not that, in humble life, we see men equally base and shameless where their own self-interest is concerned, we might wonder at the unblushing effrontery of the royal communication; yet the pitiful evasion and vile duplicity in which it was couched, render the king’s letter at once an object of detestation and contempt. That the reader may compare it with his former to the ministers of Edinburgh, I give it at full length:—

“Charles R. Right trusty and well-beloved cousins and councillors, We greet you well. Whereas, in the month of August 1660, We did, by our letters to the presbytery of Edinburgh, declare our purpose to maintain the government of the church of Scotland as settled by law; and our parliament having since that time not only rescinded all the acts since the troubles began, but also declared all these pretended parliaments null and void, and left to us the settling and securing of church government: Therefore, in compliance with that act rescissory, according to our late proclamation, dated at Whitehall the 10th of June, and in contemplation of the inconveniences from the church government, as it hath been exercised these twenty-three years past—of the unsuitableness thereof to our monarchical state—of the sadly experienced confusions which have been caused during the late troubles, by the violences done to our royal prerogative, and to the government, civil and ecclesiastical, settled by unquestionable authority, We, from respect to the glory of God and the good and interest of the Protestant religion; from our pious care and princely zeal for the order, unity, peace, and stability of that church, and its better harmony with the government of the churches of England and Ireland, have, after mature deliberation, declared to those of our council here our firm resolution to interpose our royal authority for restoring of that church to its right government by bishops, as it was before the late troubles, during the reigns

of our royal father and grandfather, of blessed memory, and as it now stands settled by law. Of this our royal pleasure concerning church government you are to take notice, and to make intimation thereof in such a way and manner as you shall judge most expedient and effectual. And we require you, and every one of you, and do expect, according to the trust and confidence we have in your affections and duty to our service, that you will be careful to use your best endeavours for curing the distempers contracted during those late evil times—for uniting our good subjects among themselves, and bringing them all to a cheerful acquiescing and obedience to our sovereign authority, which we will employ, by the help of God, for the maintaining and defending the true reformed religion, increase of piety, and the settlement and security of that church in her rights and liberties, according to law and ancient custom. And, in order thereto, our will is, that you forthwith take such course with the rents belonging to the several bishopricks and deaneries that they may be restored and made useful to the church, and that according to justice and the standing law. And, moreover, you are to inhibit the assembling of ministers in their several synodical meetings through the kingdoms until our further pleasure, and to keep a watchful eye over all who, upon any pretext whatever, shall, by discoursing, preaching, reviling, or any irregular or unlawful way, endeavour to alienate the affections of our people, or dispose them to an ill opinion of us and our government to the disturbance of the peace of the kingdom. So, expecting your cheerful obedience and a speedy account of your proceedings herein, We bid you heartily farewell. Given at our court, at Whitehall, August 14, 1661, and of our reign the thirteenth year, by his majesty's command.” (Signed) “LAUDERDALE.”

The privy council received with all due humility this intimation of the royal pleasure; and, on the 6th of September, an act was drawn up and published, announcing to the people of Scotland the overthrow of their beloved Presbytery, under whose shade they had reposed with so much tranquility during the few last years of the much abused and unreasonably hated protectorate, and the re-establishment of that system against which their fathers had ever contended. A proclamation overturning the freedom of elections, accompanied the act for overturning the constitution of the church—so naturally and nearly are civil and ecclesiastical tyranny connected. The royal burghs were commanded, under the highest penalties, to elect none for their magistrates who were fanatically—an epithet which it now became

fashionable to apply to the conscientious Presbyterians—inclined; and such and so sudden had been the change wrought by the transfer of power, that this illegal dictation was universally obeyed. Nor did their conduct towards one of their own number evince a greater regard for their own privileges or the rights of parliament, than their ready servility had done for the religion and liberty of their country. Tweeddale and Kincardine had pressed the council to request the king that he would consult provincial synods, who would declare the sense of the country; and, at all events, relieve his majesty from obloquy whatever might be the ultimate decision. This proposition, however, would have shown too much deference to men whom it was intended to bring to unconditional subjection, and was refused accordingly; but Charles was informed of Tweeddale's hesitation, and an order was procured for his imprisonment, not indeed ostensibly for his opinion delivered in council, but for what was or ought to have been still more sacred, for his judgment and voice in parliament, because he had spoken in vindication of Mr James Guthrie, and had not voted him guilty of death! It was to no purpose that he pled the freedom allowed in parliament, where he was a councillor upon oath and expressly indemnified by law for what was spoken there; and the danger which every member would thus incur who voted any person accused of treason innocent, if a majority should happen to find him guilty. He was sent prisoner to the Castle, and was only, upon his submission and petition, permitted to confine himself to Yester and three miles round, finding caution to the amount of one hundred thousand merks to answer when called for! Eight months after, when it was thought his discipline had taught him obedience, he was, through the mediation of the council, relieved; and, when his relation Lauderdale came into power, he joined his government.

Although his majesty could establish Episcopacy by proclamation, the peculiar holiness which was supposed necessarily to belong to the office of a bishop, it was beyond his power to confer. This essential attribute of a prelate, which had passed, as was believed, untainted from the apostles, through all the corruption, vileness, and abomination of the church of Rome, had, by hands crimsoned in the blood of the saints, and defiled with all the pollutions of their brethren, been communicated to the dignitaries of the English hierarchy, upon whom it still rested in all its imaginary purity and vigour. But the feeble portion of the sacred virus that had reached Scotland upon a former occasion, when James VI. procured the

innoculation of his hierarchate, was now confined to one aged and almost superannuated subject, Mr Thomas Sydeserf, formerly bishop of Galloway; and he had been excommunicated by a General Assembly. It was therefore resolved that a select number of the Scottish ministers should be consecrated by priests who had never been polluted by any unhallowed contact with Presbyterians; and Messrs Sharpe, Fairfoul, and Hamilton were summoned to London to receive the holy unction.

James Sharpe, designed for the primacy, was already the object of detestation to every one who had the smallest regard for the Presbyterian profession, or for consistency of principle. Andrew Fairfoul, promoted to the archbishoprick of Glasgow, possessed considerable learning, better skilled, however, in physic than in theology—a pleasant, facetious companion, but never esteemed a serious divine. He had taken the covenant and was first minister in Leith, then in Dunse. Mr James Hamilton, brother to Lord Belhaven, created bishop of Galloway, was also a covenanter, and minister of Cambusnethan. His abilities were not above mediocrity, and his cunning was more remarkable than his piety. They were, however, joined at London by Mr Robert Leighton, a man of a very different description, whose meek and gentle spirit, unfitted for the stormy region of political polemics, delighted more in communion with God than in contending with his fellows, and who, counting himself a stranger and a pilgrim upon earth, was only anxious to diffuse the gospel of the kingdom, and shed around him the charities of life. He was educated during the reign of pseudo-episcopacy, and never was a thorough Presbyterian. His character and views may be estimated from a circumstance which occurred during that period of his life when he was minister of Newbattle. Some of his zealous co-presbyters urging on him the duty of “preaching to the times,” (by no means an unnecessary one, however, in its proper place,) he mildly replied —“When so many of my brethren are preaching to the times, they may spare one poor minister to preach for eternity.” He had retired to London to enjoy the privacy he loved, and was unwillingly dragged forward to assist in carrying Episcopacy to Scotland.^[22]

²². There is just one point in Leighton’s character that appears unaccountable, that is, after he had solemnly sworn the covenants, and enforced them upon others, how he could ever turn an Episcopalian.

A commission, under the great seal of England, was directed to the bishops of London and Worcester, and some other suffragans of the diocese of Canterbury, to officiate upon this important occasion; but an unexpected difficulty occurred by Dr Sheldon proposing to set aside the Presbyterian ordination altogether and commence *de novo*. Sharpe quoted the case of Bishop Spottiswood, whose Presbyterian ordination had been sustained when he was consecrated, and for a while resisted the proposal; but the other was peremptory, and would not hear of the validity of any other than prelatic imposition of hands; and Sharpe, who had now gone too far to recede for a trifle, submitted to enter his new profession by the lowest step, that he might attain the wretched object of his ambition—to him a woful eminence. In the month of December, they were with great pomp, and before a splendid assemblage of nobility at Westminster, passed and raised through the various degrees of the craft, from preaching-deacons to mitred bishops, in one day, which was concluded by a magnificent entertainment given by the new-made prelates to their English brethren and a select party of Scottish and English nobles.

Convinced at length of their error, the honest Presbyterians, of all parties, lamented that their intestine divisions should have been allowed to divert them from attempting the security of their religion, and that they should have indulged in bitterness of spirit against each other about matters of comparatively lesser moment, while the common enemy was making such rapid, though covert, advances against their establishment. Uncertain how long they might enjoy that liberty, they now throughout Scotland directed the attention of their hearers to the principles of their church, and the points in dispute between them and the Episcopalians^[23]—they held congregational fasts in every corner of the land to lament over the misimprovement of their privileges and deprecate the impending wrath of God—and they continued their parochial duties among a mourning people who, with a general sadness, anticipated the lamentable change. Their synods had been forbid; but they met with little interruption in their presbyterial duties till the bishops were installed, when they were informed that their power of ordination had ceased. This intimation was first made by the council to the presbytery of Peebles, when, in the month of December, they were proceeding to induct Mr John Hay to the kirk of Manner; and from thenceforth all presentations to benefices were ordered to be directed

to the archbishops or bishops within whose diocese the vacant church might lie.

23. The points in dispute between the Presbyterians and Episcopalians were of much more vital importance than modern Presbyterians seem to be aware of. They comprehended doctrinal points—the form of church government, the ceremonies, the festivals, and the forcible intrusion of the whole system upon the nation, in virtue of the king’s spiritual supremacy. The very essence of Christianity was at stake. The grand fundamental doctrine which Luther asserted at the Reformation, was, justification by faith, in opposition to justification by works; and a more clear statement of this essential article of Christian belief will nowhere be found than in his exposition of the Epistle to the Galatians—to this all was subsidiary. He found that attacking the rites, ceremonies, and fooleries of Rome was wasting shot against pitiful outworks, the fall of which was of no importance, while the main rampart and the citadel frowned defiance. It was the same with all the reformers; and it was now a revival of the old question. The Episcopalians were in general Arminians, and the Presbyterians contended for “the faith” once delivered to the fathers; and this faith was the doctrinal creed embodied in the covenants. This should always be kept in view. The other points were not of little moment; but this was the foundation.

The re-introduction of Episcopacy into Scotland was accompanied by a restoration of all the most severe restrictions upon the liberty of the press and a revival of the absurd and flagitious proceedings against poor, old, and friendless creatures, ignorantly or maliciously accused of witchcraft. The council, upon an information that George Swinton and James Glen, booksellers in Edinburgh, had printed and sold the speeches of the Marquis of Argyle and Mr James Guthrie, with other seditious and scandalous publications, such as the “Covenanter’s Plea,” ordered the Lord Advocate and Lord Provost of Edinburgh, to seize upon such books and papers, and prohibit them and the rest of the printers from printing any other books or pamphlets without a warrant from the king, parliament, or council; and, “for preventing false intelligence,” they granted liberty to a creature of their own, Robert Mein, keeper of the letter-office, Edinburgh, to print the *Diurnal*, then the only newspaper in the kingdom. Commissions for the trial of witches were at the same time issued to gentlemen in almost every shire, and great numbers of unfortunate creatures, chiefly poor decrepit old women, were tortured and murdered upon the most contradictory, ridiculous, and incredible absurdities, which were alleged against them; or upon the incoherent ravings which, after being kept for nights without sleep, and tormented without intermission in the height of a delirium, they uttered as their confessions. And yet such convictions stand upon record as being in consequence of “clear probation” or voluntary confessions! But it

is deserving of especial notice, that these trials took place chiefly in the north and the east—the districts least infected with “fanaticism.”^[24]

24. The Dunbar witches were famous in East, as the Borrowstounness witches were in West, Lothian. It is, however, among the melancholy and unaccountable problems in the history of the human mind, that persons of excellent understanding were implicated in these and similar horrid transactions. In England, even Judge Hale condemned two. Had the witches, or wizards, been tried for operating upon the fears and the superstitions of their country folk, as the Africans in the West Indies and on their own coasts operate on the fears and superstitions of each other by the *obi*, *bitter water*, and other really noxious practices, their persecution might have been proper, and their punishment just; but, dancing reels with Satan, and flying through the air upon broomsticks, were accusations so truly ridiculous, that, how they came to be ever gravely listened to, is passing strange. Dr Hutchinson says, “the word *witch*, in old English, according to Dr More, signifies *a wise woman*; in the vulgar Latin, it is *venefica*, *a poisoner*.” *Hist. Essay on Witchcraft*, p. 183.

This eventful year was closed by a letter from the king, December 28, ordering the council to discharge by proclamation all ecclesiastical meetings in synods, presbyteries, and sessions, until authorized by the archbishops or bishops upon their entering upon the government of their respective sees; and requiring that all due deference and respect should be given by the lieges to these dignitaries, or, to use the words of the king, “that they have all countenance, assistance, and encouragement from the nobility, gentry, and burghs, in the discharge of their office and service to Us in the church; and that severe and exemplary notice be taken of all and every one who shall presume to reflect or express any disrespect to their persons or the authority with which they are intrusted”—an ominous and unholy introduction to a Christian ministry, which sufficiently marked the nature of the proposed establishment; bore witness to the known dislike of the people towards such a priesthood, and the strong probability that pastors created by royal patent, and sanctified by prelatic palmistry, would be received with any thing but respect or affection by the flock over whom they were to have the oversight.

The new year, 1662, was ushered in by a proclamation, January 9, from the privy council, announcing, in terms of the king’s letter, the final extinction of Presbytery. Formerly, such a decree would have encountered at any rate a formidable show of opposition from the denounced ecclesiastical judicatories; nor would they have separated without at least bearing testimony against this unwarrantable invasion of their legal right. But the blind confidence that the Presbyterians had so unaccountably

reposed in the king, produced a species of fatuity; nor would they believe till they experienced the truth of the prognostications of the more discerning, who saw from the first the ill-dissembled hatred Charles bore to Presbyterianism as well as to piety. They were like men amazed at the greatness of the calamity; and although some few of them attempted to draw up petitions to the council, no united effort was made to vindicate the oppressed church.

An obsequious crowd of nobility, clergy, and gentry, awaited the arrival of the new bishops, and obeyed to the letter the orders of the king. From Cockburnspath to the capital, their numbers increased; and, as the procession rolled on, it assumed more the splendour of some earthly potentate marching to take possession of a newly-acquired conquest, than that of spiritual guides entering upon the humble duties of a gospel ministry. They were greeted on their approach to Edinburgh with martial music, and received at the gates by the magistrates in their robes,^[25] and spent several successive days in sumptuous entertainments. The primate, vieing with the chief nobility in the elegance of his equipage as well as the magnificence of his banquets, displayed upon the occasion a handsome London-built chariot, and was attended by lackeys in purple liveries. Shortly afterwards, in great pomp, he took possession of his see;^[26] then, returning to Edinburgh on the 7th of May, consecrated other six bishops in the Abbey of Holyrood-house.

²⁵. Lamont gives the following account of Sharpe's visit on this occasion:—"As for Mr Sharpe, he came to Fiffe, Apryl 15th, and dyned that day at Abetsaa, Sr. Andrew Ramsays, formerly provest of Edenboroughe, his house, and that night came to Lesly, being attended by divers both of the nobilitie and gentry. The nixt day being Weddensday, the 16th Apr., he went to St Andrews from Lesly, attended from the Earle of Rothes his house, with about 60 horse; bot by the way divers persons and corporations (being wretten for in particular by the said Earle of Rothes a day or two before) mett him, some at ane place and some at ane other, viz. some from Fawkland, Achtermowghtie, Cuper, Craill, and about 120 horsemen from St Andrews and elsewhere; so that once they were estimat to be about 7 or 8 hundred horse. The nobilitie ther were, Earle of Rothes, Earle of Kelley, Earle of Leven, and the Lord Newarke; of gentry, Ardrosse, Lundy, Rires, Dury, Skaddowory, Doctor Martin of Strandry, and divers others. All the way the said Archbishope rode thus, viz. betwixt two nobelmen, namely, Rothes on his right, and Kelley on his left hand. No ministers were present ther safe Mr William Barclay, formerly deposed out of Fawkland, and Mr William Comry, minister of St Leonards Colledge, that came foorth with the Bishope his sone out of St Andrews to meit his father. (He dwells in the Abbey in Mr George Weyms house, that formerly belonged to B. Spotswoode, Archb. of St Andrews.) That night ther supped with the said Bishope, the Earles of Rothes, Kelley,

Newarke; Ardrosse, Lundy, Strandry, and divers others; and divers of this dined with him the nixt day. As for Rothes and Ardrosse, they lodged with him all night. On the Sabbath after, he preached in the towne church in the forenoone, and a velvet cushion in the pulpitt before him. His text, 1 Cor. ii. 2. 'For I determined to knowe nothing amonge you, save Jesus Christ, and him crucified.' His sermon did not run mutch on the words, bot in a discourse of vindicating himselfe and of pressing of episcopacie and the utilitie of it; shewing, since it was wanting, that ther hath beine nothing bot trowbels and disturbancies both in church and state. Apryl 30, 1662, he tooke journey for Edenboroughe, being accompanied with about 50 horse, most of them of the citie of St Androws; and, in his way, he gave the Ladys at Lundy a visit at Lundy: he cam with only 5 or 6 horse, and himselfe staid a short while, toke a drink (bot did not dine), and was gone againe." *Diary*, p. 183-4.

26. Leighton alone declined all public show. When he understood the manner in which it was proposed to receive them, he left the cavalcade at Morpeth, and came privately to Edinburgh. Afterwards, he told Dr Burnet, "he believed they were weary of him, for he was very weary of them."

This ceremony, which had been deferred till the arrival of the Commissioner, was conducted in the grandest and most imposing style. His Grace, with all the nobles and gentlemen who had come to town to attend parliament, together with the magistrates of the city, were present; and none were admitted but by tickets. The two archbishops who officiated were in their full canonicals—black satin gowns, white surplices, lawn sleeves, copes, and all the long desecrated garments, known to the Presbyterians of that day by the contemptuous epithet of their forefathers—"Rags of Rome." The others wore black satin gowns. The passage leading from the pews, where the bishops elect sat, to the altar, and the space before the altar, were covered with rich carpets. Mr James Gordon, one of the northern ministers, preached the consecration sermon from 1 Cor. iv. 1. "Let a man so account of us as of the ministers of Christ, and stewards of the mysteries of God;" in which, pointing out the errors of the former, he exhorted the new prelates to beware of encroaching on the nobles, nor exceed the bounds of their sacred function. They were then led from their places by the archbishop of Glasgow, and by him presented to the primate who presided, and set them apart according to the ritual of the church of England, and to whom they vowed clerical obedience during all the days of their lives. The bishops this day consecrated were—*Dunkeld*, George Halyburton, late minister of Perth; *Ross*, George Patterson, minister of Aberdeen; *Moray*, Murdoch Mackenzie, minister of Elgin; *Brechin*, David Strachan, minister of Fettercairn; *Argyle*, David Fletcher, minister of Melrose; *The Isles*, Robert Wallace, minister of Barnwell, Ayrshire;^[27] none of whom were men either of distinguished

talents or exemplary piety, and all had appeared zealots in the cause of the covenant. Common report attributed to them a private dissoluteness of character which might be exaggerated; but for their apostacy from a cause which they had urged with more than ordinary heat, no apology was ever attempted. Conviction could not be alleged, and as self-interest appeared the only ostensible reason, they sunk in the estimation of the people in proportion to the respect in which they had been previously held; while they returned the contempt with which they were deservedly treated by hatred and persecution—a consequent usual with renegades, who ever remorselessly pursue to degradation and death the steadfast members of the religion they have betrayed, whose unshaken integrity is a standing reproof of their temporizing baseness.

- [27.](#) George Wiseheart, chaplain to Montrose, and author of the elegant Latin romance which goes under the name of his memoirs, was consecrated bishop of Edinburgh at St Andrews, on the 3d of June, and Mr David Mitchell, minister of Edinburgh, bishop of Aberdeen. Sydeserf had Orkney.

Next day, May 9, the parliament met; and their first act was to restore the bishops to the exercise of their episcopal function, precedence in the church, power of ordination, inflicting of censures, and all other acts of church discipline; and this their office they were to exercise only with “the advice and assistance of such of the clergy as they should find to be of known loyalty and prudence.” Without entering into any of the puzzling questions respecting the divine right of any form of church government, they at once founded their Prelacy upon a principle most repugnant to Presbytery—the spiritual supremacy of the king—“Forasmuch as the ordering and disposal of the external government and policy of the church doth properly belong unto his majesty as an inherent right of the crown, by virtue of his royal prerogative and supremacy in causes ecclesiastical.” In the preamble were narrated as the causes of its re-establishment, the disorders and exorbitancies that had been in the church, the encroachments upon the prerogative and rights of the crown, the usurpations upon the authority of parliaments, and the prejudice inflicted on the liberty of the subject ever since the invasion made upon the bishops and episcopal order—a form of church government pronounced most agreeable to the word of God, most convenient and effectual for the preservation of truth, regularity, and unity, most suitable to monarchy, and the peace and quiet of the state: “THEREFORE his majesty and his estates did redintegrate the state of bishops

to their ancient places and undoubted privileges in parliament and all their other accustomed dignities.” Nor was it among the least strange enactments of this extraordinary act, that whatever his majesty, with the archbishops and bishops, should determine respecting the external order of the church, were “previously” declared valid and effectual.

Immediately upon this act being passed, a deputation of six members, two noblemen, two barons, and two burgesses, was sent to the prelates, who were waiting in the primate’s lodgings to invite them to take their seats. They were accordingly conducted in state to the House—the two archbishops first, walking between two noblemen, the Earls of Kellie and Wemyss, and the bishops following, attended by the barons, gentlemen, and the magistrates in their robes. When they entered, a congratulatory speech was made them from the throne, the act restoring them was read, and the parliament adjourned on purpose that the spiritual lords might have the pleasure of dining with his Grace, the Commissioner, who, to do them the greater honour, walked on foot with them in procession to the Palace. They were preceded by six macers with their maces, next three gentlemen-ushers, then the purse-bearer uncovered. The Commissioner and Chancellor followed, with two noblemen on their right and the two archbishops on their left. A select party of noblemen and members of parliament, with the bishops, made up the goodly company, who, “at four of the clock, sat down to ane sumptuous entertainment, and remained at table till eight.”

The bishops, as now thrust upon the Scottish church, differed widely from those intruded by James VI. They pled no scriptural authority, but an act of parliament, as the source of their power, and acknowledged, in its fullest sense, a temporal prince as the supreme head of the church. The old bishops were only a set of constant moderators in the synods and presbyteries, possessing merely a sort of negative voice, and were nominally at least responsible to the General Assembly; but the whole form of Presbytery was now swept away, and the prelates were amenable to no church courts; nor could any assembly of ministers meet, but under their sanction, or by their permission.

Having subverted the religion of the country, the next and most natural step was to eradicate, if possible, the principles of civil liberty. The sycophantish estates, therefore, proceeded to declare rebellious and treasonable those positions for which their fathers had contended unto

blood, and which their children asserted at the point of the sword:—That it is lawful in subjects, upon pretence of reformation, or any other pretence whatsoever, to enter into leagues or covenants, or to take up arms against the king: or that it is lawful for subjects, pretending his majesty's authority, to take up arms against his person or those commissioned by him, or to suspend him from the exercise of his royal government, or to put limitations on their due obedience and allegiance. As, notwithstanding the acts of the former session, the Presbyterians did not conceive themselves loosened from what they considered the oaths of God—ratified by the highest ecclesiastical and civil authorities of the land—the National Covenant, and the Solemn League and Covenant, these were now declared unlawful oaths; the subjects were relieved from their obligations; the acts of Assembly respecting them, which had received the sanction both of the parliament and of the king, but had hitherto escaped notice, were annulled; and all ratifications, by whatsoever authority, cassed and made void. At the same time, it was enacted, that if any person should, by writing, printing, praying, preaching, or remonstrating, express any thing calculated to create or cherish dislike in the people towards the king's supremacy in causes ecclesiastic, or of the government of the church by archbishops and bishops, as now settled, they were to be declared incapable of enjoying any place or employment, civil, ecclesiastical, or military, and liable to such farther pains as the law directs; that is, liable to the pains of that detestable statute against leasing-making, of whose extent a notable specimen was speedily given in the case of Argyle. This was followed by an act obliging all persons in public trust to subscribe a declaration in which the whole of the transactions, since the commencement of the troubles, were affirmed to have been illegal and seditious, and the covenants unlawful oaths, unwarrantably imposed against the fundamental laws and liberties of the kingdom, and not obligatory either on themselves or others.

By another retrospective act, repeating the restoration of patronage, it was ordained that all the ministers who had entered to parishes since the year 1649, had no right to their stipends; and their charges were pronounced vacant, until they should procure presentations anew from the lawful patrons and collocation from the bishop of the diocese which he was enjoined to give to the present incumbents, upon application, before the 20th of September following, failing which, the presentation was to fall to the bishop *jure devoluto*; and, to conclude the series of enactments intended

to establish Episcopacy upon a firm and immovable foundation, amid the ruins of Presbytery, all professors and teachers in universities and colleges were required to take the oath of allegiance on pain of deprivation—all ministers were ordered to attend the diocesan synods and pay all clerical obedience to their superiors under the like penalty—and all meetings in private houses, for religious exercises, which might tend to alienate this people from their lawful pastors, were strictly forbidden. Nor were any persons to be permitted to preach in public or private, to teach any school, or act as tutor in the family of any person of quality, without the license of the ordinary of the diocese.

Ecclesiastical matters being thus arranged, and the session apparently drawing to a termination, Lauderdale so strongly pressed a bill of indemnity, that Middleton could no longer get it avoided; but he introduced, as an accompaniment, the act of fines, which in numerous instances rendered it nugatory.

Last year a complaint had been made to parliament of the losses sustained by the Earl of Queensberry from the forces under Colonels Strachan and Kerr in 1650, estimated at two thousand pounds sterling, when a committee, consisting of the Earl of Eglinton, Lord Cochrane, the Sheriff-depute of Nithsdale, and some others, was appointed to meet at Cumnock, to inquire who had served in that army, and to proportion the same upon such of the guilty as were able to pay, which was accordingly done; and a number of gentlemen who were opposed to the measures of the present government, were assessed to make good the damage alleged to have been suffered by his lordship. This easy but arbitrary method of rewarding his supporters, and punishing or silencing his opponents, having excited no murmurs among the pusillanimous legislators, the plan was now followed out by the Commissioner, and a secret committee appointed to inquire who had been the most eminent compliers under the usurpers, in order that their estates might be taxed to raise a sum sufficient to compensate the king's friends for what they had suffered as malignants during the time of the late troubles. Their report included nearly nine hundred noblemen, gentlemen, and tenants; and the money to be produced from their fines amounted to about eighty-five thousand pounds sterling—an enormous sum at that time, to be arbitrarily and vexatiously levied by political adversaries without any check, there being neither accusation nor trial, nor any crime alleged, of

which those who now assumed the name of the king's friends, had not, in general, been far more guilty than they.

The act of fines, iniquitous and unjust in principle, was rendered still more so by the manner in which the list was made up. It included the names of many who were dead, absent from the country, or infants at the breast at the time! They were represented as favouring the usurpers. Others were inserted from private revenge; and several were named who were living upon the parish. But the chief weight of the imposition was intended to fall upon such as had been distinguished for eminent piety and a consistent Christian walk in their different stations, who were deemed singular in a time of general profession, when religion was the fashion, but who were destined to show the power of the gospel in a day of general apostacy, when religion was persecuted and a profession ridiculed.

Lauderdale, who saw that the produce of these fines was intended to strengthen the Commissioner's party, strenuously, though ineffectually, endeavoured to thwart the measure; and Middleton, justly supposing that such conduct would cool the king's affection for his secretary, dispatched Tarbet to London to complete his ruin. The ostensible purpose of his mission was to submit the act of indemnity to the king, and to obtain his sanction to a clause for excepting twelve persons, to be named by the parliament, from the benefit of the act, as incapable of holding any place of public trust. Lauderdale knew that he was aimed at, and exerted his every art and influence to prevent the exception as unjust, but the Duke of York and the English Chancellor, who were jealous of his influence, supported the clause; and the king gave his consent to the proposed exception.

An incident which he could not have foreseen—so capricious is the fate of royal favourites—prevented his fall, and gave him the ascendancy his enemies were seeking to destroy. Middleton, who wished to procure for himself Argyle's estates, when disappointed by their gift to his son, harassed the young Earl by every means in his power, and procured that they should be burdened with an immense debt, which so irritated his lordship, that he expressed himself very freely in a confidential letter to Lord Duffus, saying, "he hoped that he would procure the friendship of Clarendon," and, in reference to the proceedings in parliament, used these words—"then the king will see their tricks." This letter being intercepted at the post-office, a capital charge of lying between the king and parliament

was founded upon it, and a letter written to the king, requesting that Argyle might be sent down prisoner to stand trial. At Lauderdale's earnest entreaty, he was sent down not a prisoner, and with express instructions that no sentence should be executed till his majesty saw and approved it. Lorn, when brought to trial, convinced that any defence before such a tribunal would be vain, made none, but threw himself on the royal mercy, declaring the innocence of his intentions, and noticing gently the provocation he had received. He was pronounced guilty of death by parliament, but the king shortly after remitted his punishment.

During these discussions, Tarbet had been gradually undermining Lauderdale's influence, and, by his insinuating manners, had so far gained on Charles, that the fall of the favourite seemed on very distant or doubtful event, when the indiscretion of Middleton or his friends blighted all their flattering prospects. Afraid openly to attack the present ministers, an act was brought into parliament for incapacitating twelve persons by ballot, and lists were so formed that Lauderdale and Crawford were included in the number; and so anxious was Middleton to insure their dismissal, that, as soon as the act passed, he ratified it without ever communicating it to the king. Lauderdale, who had been apprised of the whole proceedings by the vigilant gratitude of Argyle before the official intelligence reached court, seized the opportunity of representing the affront offered to his majesty in such glaring colours, that, when the act arrived, he refused it his sanction, with a sarcastic remark, that the proceedings of his Scottish ministers were like those of madmen, or of men that were perpetually drunk.

Knowing the aversion of the Presbyterian ministers to the proposed changes, the privy council, before the bishops returned from court, endeavoured to overawe them and prevent opposition. They began with Mr Robert Blair, an eminent and aged minister, that it was necessary to remove from his charge at St Andrews to make room for Sharpe, to whom he was particularly obnoxious on account of his having the preceding year, by order of the presbytery, faithfully reproved him for his deceitful dealings at court and his proudly grasping after the archbishoprick. Although at an advanced age and in delicate health, the venerable saint was summoned before the council at Edinburgh, and examined as to his steadfastness in the principles he had professed through a long and honourable life: when it was found that he held fast his integrity, he was first sequestered from his parish,

and confined successively to Musselburgh, Kirkaldy, and Couston; and then, in his last sickness, forced to send in his presentation to the council, to prevent his being dragged to Edinburgh while labouring under a mortal disease.

Upon the bishops' arrival, it was deemed necessary to make an example of some of the most steadfast and distinguished Presbyterians in the west, as that part of the country had ever been remarkable for attachment to their profession. The Chancellor was, in consequence, directed to require the attendance of such ministers as he thought fit; and, by the suggestion of the prelates, wrote to Messrs John Carstair, Glasgow; James Nasmyth, Hamilton; Matthew Mowat and James Rowat, Kilmarnock; Alexander Blair, Galston; James Veitch, Mauchline; William Adair and William Fullarton, at St Quivox, as if he had merely wished the assistance of their advice. Upon their arrival, however, in Edinburgh, they were charged with holding disloyal principles, and particularly with some expressions they had used in their sermons. From the charge of disloyalty, they easily vindicated themselves, and desired that the particular passages in the offensive sermons might be pointed out; but these the Chancellor was unable to produce, and they were dismissed from their first interview, with a hint that the easiest way to get rid of further trouble, would be to comply with the king's pleasure and acknowledge his bishops. When they would not consent to this, they were detained in town till the parliament met. No valid charges, however, being found against them, they were carried before the Lords of the Articles, and commanded, as a test of their loyalty, to subscribe the oath of allegiance.

As they were the first Presbyterian ministers to whom this oath had been tendered, they required a few days to consider—for they deemed it an object of high importance that they should be fully satisfied in their own minds as to their line of duty—lest, on the one hand, they should wound their consciences by the sin of denying the supreme kingship of Christ in his church, or incur the charge of disloyalty by refusing obedience to him whom they considered their rightful sovereign. They therefore set apart some time for solemn prayer to ask of the Lord light and direction. Then, after serious deliberation, they gave in their explication of the oath—which contained a brief but distinct statement of the principles upon which they and all the succeeding consistent Presbyterians refused to subscribe—what

continued afterwards always to be pressed upon them under the false and insidious name of the oath of allegiance, while in fact and verity it was an explicit oath of supremacy. “They heartily and cheerfully acknowledged his majesty as the only lawful supreme governor under God within the kingdom, and that his sovereignty reached all persons and all causes, as well ecclesiastic as civil, having them both for its object; albeit it be in its own nature only civil, and extrinsic as to causes ecclesiastical; and, therefore, they utterly renounced all foreign jurisdictions, powers, and authorities, and promised with their utmost power to defend, assist, and maintain his majesty’s jurisdiction aforesaid.” For this explanation six of the ministers—Messrs Adair and Fullarton having through favour been passed over—were committed close prisoners to the public jail, where they were confined for several weeks; and the paper being laid before parliament, it was put to the vote—“whether process them criminally or banish them?”—when it was carried to banish them. Upon a representation to the commissioner by Mr Robert Dougal, that the sentiments of the explication were sound and orthodox, and such as would be approved by the whole reformed churches abroad, the sentence of banishment was changed into deprivation. But their churches were declared vacant, and they were ordained to remove their families and leave the possession of their manse and glebe at Martinmas next, their stipends for the current year were seized, and themselves forbid to reside within the presbyteries where their churches lie, or within the cities of Glasgow or Edinburgh.

Conscientious ministers were not only entrapped by these tyrannical yet pitiful devices, but likewise harassed by the rigorous enforcement of the act for celebrating the king’s birth-day as an “holyday.” A proclamation was issued ordering its observance by the ministers, under pain of deprivation; and numbers were deprived of their year’s stipend for non-observance.^[28] But such had been the retrograde progress from the sobriety of their former profession, that within little more than one short year, the return of this holyday had become throughout the land the signal of universal riot and drunken uproar, particularly in these towns that had the misfortune to be burghs. On this occasion, Linlithgow signalized itself, not only by its outrageous loyalty, but by its shameless and profane contempt for the bonds their fathers had held so sacred, and they themselves had solemnly sworn to observe. After the farce of church-going which occupied the forenoon, bonfires were kindled in every corner of the streets in the afternoon. The

magistrates, accompanied by the Earl of Linlithgow, assembled in the open area before the council-house, around a table covered with comfits, the beautiful gothic fountain all the while spouting from its many mouths French and Spanish wines, when the curate opened the evening service by singing a psalm and repeating what was either a long blessing or a short prayer. The company then tasted the confections and scattered the rest among the crowd. An irreverent pageant closed this part of the performance.

[28](#). The same day had already been set apart as a day of thanksgiving for his restoration!

At the cross, an arch was erected upon four pillars, on the one side of which stood the statue of an old hag, having the covenant in her hand, with this superscription—"A glorious Reformation;" on the other, the figure of a Whig, with "the remonstrance in his hand, inscribed "no association with malignants;" while the devil, in the form of an angel of light, surmounted the keystone, having a label issuing from his mouth—"Stand to the cause." On the pillar, beneath the covenant, were painted rocks, (distaffs,) reels, and repenting-stools. The other, under the remonstrance, was adorned with brechams, (horse collars,) cogs, (wooden dishes,) and spoons. Within the arch, on the right, was drawn "a committee of estates," with this legend—"Act for delivering up the King." Opposite was placed "a commission of the kirk," and, in prominent characters, "Act of the West Kirk." In the middle of the arch hung a tablet with this litany—

From covenanters, with uplifted hands;
From remonstrators, with associate bands;
From such committees as governed this nation;
From kirk commissions and their protestation;
Good Lord deliver us.

Upon the back of the arch, Rebellion was depicted under the guise of Religion, in a devout attitude, with eyes turned up to heaven, holding Rutherford's "Lex Rex" in her right hand, and in her left, "The Causes of God's Wrath." Around her were scattered acts of parliament, of committees of estates, General Assemblies, and commissions of the kirk, with all their protestations and declarations for the last twenty years; and above was written "Rebellion is as the sin of witchcraft." At drinking the king's health, a lighted torch set the fabric in a blaze; and a number of concealed

fireworks exploding, the whole was instantly reduced to ashes, whence arose two angels, bearing a tablet with the following lines:—

Great Britain's monarch on this day was born,
And to his kingdom happily restored—
The queen's arrived—the mitre now is worn—
Let us rejoice this day is from the Lord.
Fly hence all traitors, who did mar our peace—
Fly hence schismatics, who our church did rent—
Fly covenanting, remonstrating race—
Let us rejoice that God this day hath sent.

The magistrates, with the Earl, then withdrew to the Palace, where a large bonfire was lighted in its noble court; and the king, queen, with other loyal toasts, were drunk; after which the festivities of the semi-sacred carnival were concluded by the magistrates and a number of the inhabitants walking in procession through the town and “saluting every person of account.”

Parliament rose on the 9th of September, and the privy council entered upon the full exercise of their tyrannical powers, which had been acknowledged and vowed to by the obsequious legislature, who thus paved the way for their own lower degradation. By an act of the 10th, the diocesan meetings which had been deferred on account of the lords, archbishops, and bishops being engaged in attending their parliamentary duty, were appointed to be held within all dioceses of the south upon the second Tuesday of October, excepting that of Galloway, which, together with Aberdeen and some in the Highlands, Islands, and the north, were to keep the third Tuesday of the same month, at which all parsons, vicars, (uncouth titles in Presbyterian ears,) and ministers were required to be present, under pain of being considered contemners of his majesty's authority. Every step taken to thrust Episcopacy forcibly upon an unwilling people, was accompanied by some new act of injustice and oppression to their respected ministers. It was requisite that those of the capital should set an example of obedience; and therefore, unless they also would apostatize and violate their oaths and their consciences by acknowledging the present Episcopacy, and concurring in their discipline, before the 1st of October, they were to be deprived of their office and banished the city—an arbitrary punishment, for which the oppressors had not even the authority of their own iniquitous parliament.

The western brethren being the most refractory, Middleton determined to proceed thither with a quorum of the council to enforce in person the obnoxious decrees. Accordingly, about the latter end of September, accompanied by Earls Morton, Linlithgow, Callender, and Lord Newburgh, with the king's lifeguard,^[29] the clerk of the council, and a great retinue of attendants, he set out upon his progress, preceded by macers and military music. Burghs and nobles regaled the party as they passed, evincing their affection for the hierarchy by prodigal hospitality, while their guests, conformably to the manners of the English court, displayed their loyalty by pushing it to the most disgusting and loathsome excess. In districts remarkable for the strict soberness of their manners, scenes of revelry and profane riot were exhibited by the Commissioner and his Episcopalian propaganda that astonished the decent, while it afflicted the pious, portion of the inhabitants. Their streets were disturbed by midnight inebriety; and men who had conscientious scruples about drinking healths at all, heard with sensations approaching to horror, that in some of these debauches the devil himself had had his health drunk! Ecclesiastical matters do not seem to have much disturbed the thoughtless "joyeosity" of this outrageous crew till they came to Glasgow, when Fairfoul entered a grievous complaint to Middleton, that, notwithstanding the acts of parliament and the time that had elapsed, not one of the younger ministers who had entered the church since 1649, had acknowledged him as archbishop—that he had incurred all the hatred attached to his office without obtaining any of the power; and, unless his Grace could devise some method for securing obedience, a bishop would be merely a cipher in the state. Middleton, a rough mercenary, requested the bishop's directions. The archbishop, like a true son of a temporal priesthood, knew of no better remedy than force. He proposed that all the ministers who had entered since the year 1649, and who would not submit to receive collation and admission from the bishop before the 1st of November, should be peremptorily banished from their houses, parishes, and the bounds of their presbyteries; and he assured the Commissioner that, if this were rigorously enforced, he did not believe there were ten in the whole of his diocese who would choose to lose their stipends.

²⁹. The king's guard was chiefly composed of those who had, during the civil wars, been attached to the royal party, and who had expected mountains of gold at the Restoration; but, as the whole revenues of the kingdom could not have satisfied their claims and their cupidity, and "the merry monarch" and his higher satellites could spare nothing from their own licentious

expenses, they, who had been unaccustomed to honest industry, had no other resource left but to enter the army.

A council was summoned, upon his Grace's representation, to meet in the front hall of Glasgow College; but when the worthies assembled, the whole, except one or perhaps two, were in a high state of excitation, or, as Wodrow phrases it, flustered with drink.^[30] Sir James Lockhart of Lee, the only sober member present, attempted to reason the matter. He affirmed that, so far from accomplishing its object, such an act would have a diametrically opposite effect—that the young ministers would suffer more than the loss of their stipends before they would acknowledge the bishops, and the inevitable consequences would be desolation in the country and discontent among the people. But reasoning was altogether out of the question. An act according to the archbishop's wish was agreed to without dispute, although it was not quite so easily drawn up—"whether," adds the honest historian, "for want of a fresh man to dictate or write, I know not." It was, however, sufficiently severe; not only did the non-conforming ministers forfeit their current year's stipend and incur the penalty of banishment, but their parishioners who should repair to their sermons were subjected to the same punishment as the frequenters of private conventicles. Besides this desolating act, the council passed two of a more private nature, incapacitating individuals—Mr Donald Cargill, minister of the barony parish, Glasgow, (with whom we shall frequently meet in the course of the Annals,) and Mr Thomas Wylie, minister at Kirkcudbright. This latter was a distinguished member of a distinguished presbytery, which had not one conformist in their bounds, and was among the very few that presented petitions against their illegal discontinuance, nor desisted from fulfilling their ministerial functions till compelled by force.

³⁰. "There was never a man among them," says Kirkton, "but he was drunk at the time, except only Lee." *Hist. Church of Scot.* p. 149.

He early foresaw the approaching blackness that was about to overspread the land, and, anticipating for himself and his people a share in the general calamity, he was earnestly desirous to dispense the sacrament of the Lord's Supper before the cloud came on. A general seriousness seems also to have pervaded the country side; for, on the Sabbath appointed for its administration, June 8, the number of communicants who offered was so great, that they could not all join in one day, and he intimated that on the

Sabbath following, he would again dispense the ordinance, when those who had not participated might come forward. On Monday after sermon, he received a letter informing him that the presbytery had been summoned to Edinburgh for holding their meetings after the council had prohibited them. But he determined to proceed in his work, leaving the consequences to Providence, and he was favoured to conclude the solemnity without farther interruption. On the Monday, however, certain news arriving that a party was to be in the town that night to apprehend him, he withdrew, and next day they searched his house narrowly for him; but the bird for this time had escaped the snare of the fowler. He continued under hiding, till, through the exertions of his wife and the friendship of Lord Kenmure, he was allowed to return to his parish on the 10th of September. Now, without any new accusation, he was included in the same sentence with Donald Cargill, and ordered to be banished beyond the Tay.

England, on the 24th of August preceding, had exhibited the sublime and heart-stirring spectacle of upwards of two thousand of the ablest, most upright, and most devout ministers in the land, surrendering without hesitation their livings rather than violate their consciences by conforming to the restored national church. Yet, with this instance before his eyes, of obedience to God in preference to subjection to men, the Commissioner could not understand how persons with large families would voluntarily throw themselves upon the world, and leave their homes without any certain dwelling-place, rather than submit to a change which the prelates and he had found so easy; but they feared to sin; and now that a century has rolled by, and they and their oppressors rest in the grave together, who would not say that they did not act the wisest part, who preferred a good conscience, and trusted to the faithfulness of him who has promised never to leave, never, never, to forsake his servants, rather than to place their confidence in princes, and their trust in the sons of men? Of what value are the mitres now, for which the prelates in Scotland destroyed their usefulness, and which sat so uneasily for a few troubled years upon their heads? At the time, the case was dreadfully trying. When a man's temporal interest comes in competition with his profession, then will appear the strength of his religious principle. Nearly four hundred ministers of the church of Scotland stood this severest of all tests. Turned from their houses in the midst of winter, and deprived of their stipends, they went out not knowing whither they went. Never did Scotland witness such a Sabbath as

that on which they took leave of their parishioners; and the mourning and lamentation that filled the south and the west, was only equalled by the hatred and detestation excited against those who were the authors of so much sorrow, who, for their own ambitious and worldly schemes, ruptured ties so sacred and so dear as those that had subsisted between the Presbyterian ministers and their affectionate congregations.

It was questioned at the time, and even since, whether the Presbyterian ministers did not act improperly in all at once throwing up their charges? That they acted scripturally, is plain. They continued to exercise their calling as long as they could. When illegally forbid, they continued to preach, acting upon the apostolic precept of obeying God rather than man; but when a tyrannical power, under the form of parliamentary or council enactments, was ready to use force in ejecting them, then, as ministers of the gospel, they had no other resource left than to shake off the dust off their feet and go to another city—they bore testimony against their persecutors and retired. Following the advice of James v. 10., they took the prophets, who had spoken in the name of the Lord, for an example of suffering and of patience.

That they acted, even in a political view, in the very best manner that their circumstances admitted, is, I think, demonstrable. They showed to the people that it was not the fleece but the flock that had been the object of their care, and imprinted upon their minds a sense of the worth of the truth for which they were contending, beyond what they could have done in any other manner; and that truth was one written as with a sunbeam throughout the whole New Testament—that Christ is the king and head of his church, and that whatever form of church government does not acknowledge this, is essentially antichristian. It is not less evident, that the prelatists, as well as the papists, gave that dignity and power to another; and the solemn and universal testimony which so many godly men lifted up at once against acknowledging such unholy usurpation, has not lost its effect even unto this day—an effect it never could have had, had the ministers resisted and allowed themselves to have been thrust out one by one.

From Glasgow, Middleton and his Episcopalian reformadoes pursued their route, confirming their churches in the south, through Galloway as far as Wigton; and, upon the last day of October, returned to Holyrood-house.

On his arrival, the Commissioner was assailed by what was to him unexpected intelligence, that the whole south and west were thrown into confusion; and, enraged to find that both the archbishop and himself had so entirely miscalculated, he expressed his astonishment at the unaccountable conduct of the “madmen” with a volley of oaths and execrations—the now fashionable dialect of the court—and, on the first meeting of council, caused letters be sent off express to his lordship and the primate, requesting their presence and advice. Meanwhile, they proceeded in the usual course of endeavouring to intimidate the humbler refractory by their rigour to the more eminent. Mr Hugh M’Kail, chaplain to Sir James Stewart of Kirkfield, a youth of high promise, was forced into voluntary exile because he had defended in a sermon what he considered the scriptural mode of church government. Mr John Brown of Wamphrey, well known by his historical, controversial, and practical writings, not less respected for his piety than for his learning, having reproved some ministers for attending the Archbishop of Glasgow’s diocesan synod, styling them perjured, was banished to Holland—at that time the asylum of the persecuted; there he remained for many years, and, by his seasonable publications, strengthened the hands of the sufferers in his native land, and proved a thorn in the side of their tyrannical government.

Mr John Livingston, more honoured of God as the means of converting sinners to Christ than almost any minister of the church of Scotland since the Reformation, then minister at Ancrum, because he would not promise to observe the 29th of May as an holyday, nor take the oath of allegiance without any explanation, was subjected to a like punishment, as were Messrs Robert Traill of Edinburgh, Neave of Newmills, and Gardner of Saddle. Mr Livingston, in the true spirit of a Christian patriot, after sentence was pronounced, thus replied—“Well! although it be not permitted me to breathe my native air, yet into whatsoever part of the world I may go, I shall not cease to pray for a blessing to these lands, to his majesty, the government, and the inferior magistrates thereof; but especially for the land of my nativity!” In the same excellent spirit, having been denied the privilege of paying a farewell visit to his wife, children, and people, he addressed a pastoral letter to the flock of Jesus Christ in Ancrum. Their sins and his own, he told them, had drawn down this severe stroke; and, while it was their part to search out and mourn for them, “it is not needful,” he adds, “to look much to instruments, I have from my heart forgiven them all, and

would wish you to do the like, and pray for them that it be not laid to their charge. For my part, I bless his name I have great peace in the matter of my sufferings. I need not repeat, you know my testimony of the things in controversy:—Jesus Christ is a king, and only hath power to appoint the officers and government of his house. It is a fearful thing to violate the oath of God, and fall into the hands of the living God. It could not well be expected,” he proceeds to remark, and the remark is applicable in all similar cases when religion has been in repute among a people—“there having been so fair and so general a profession throughout the land, but that the Lord would put men to it; and it is like it shall come to every man’s door, that, when every one according to their inclination, may have acted their part—and he seems to stand by—He may come at last and act his part, and vindicate his glory and truth. I have often showed you that it is the greatest difficulty under heaven to believe that there is a God and a life after this; and have often told you that, for my part, I could never make it a chief part of my work to insist upon the particular debates of the time, as being assured that if a man drink in the knowledge and the main foundations of the Christian religion, and have the work of God’s spirit in his heart to make him walk with God, and make conscience of his ways, such an one shall not readily mistake Christ’s quarrel, to join either with a profane atheist party or a fanatic party. There may be diversity of judgment, and sometimes sharp debates among them that are going to heaven; but, certainly, a spirit guides the seed of the woman, and another spirit the seed of the serpent.”

Several of lesser note were treated with not much less harshness, being ordered to confinement in distant places of the country, without the means of subsistence, and debarred from preaching in the rugged and barren districts to which they were banished.

Such, however, was the outcry the wide desolation of the church had occasioned, that the council were convinced they had acted with unwise precipitation, and endeavoured in some measure to retrace their steps. The author of the mischief, Fairfoul, though repeatedly called upon, does not appear to have assisted their deliberations, which were protracted, till the month of December, when a proclamation was issued, extending the time allowed ministers for procuring presentations and collocation to the 1st of February, but ordering those who neglected to do so to remove from their parishes and presbyteries; and such of them as belonged to the dioceses of

St Andrews and Edinburgh, to go into banishment beyond the Tay. The older ministers, who had not been touched by the Glasgow act, and had hitherto remained exercising their parochial duties among their people, because they had not attended the diocesan meetings, were confined to their parishes. The people who left the hirelings intruded upon them, travelling sometimes twenty miles to hear the gospel, were now ordered to attend their parish churches, under a penalty of twenty shillings for every day's absence; and because in those places where the ministers, in view of separation from their flocks, had celebrated the sacrament of the Lord's Supper to multitudes assembled from the surrounding districts—and much of the divine presence had appeared among them—these were stigmatized as unlicentiate confluences of the people; and the discourses delivered under such circumstances, with more than ordinary fervour, and accompanied with more than ordinary power, abused as the extravagant sermons of some ministers of unquiet and factious spirits—special engines to debauch people from their duty, and lead them to disobedience, schism, and rebellion: therefore every incumbent was prohibited from employing more than one or two of his neighbours at a communion without a license from the bishop, or admitting the people of any other parish to participate of the sacrament without a certificate from his curate.

This was the last of Middleton's acts in Scotland. His rival, Lauderdale, had so well employed the access he had to the king to undermine his influence, that he was called to court to answer charges of having encroached upon the royal prerogative by the balloting act, and defrauded the royal treasury by appropriating the fines. While the affair was under discussion, Lauderdale procured an order to delay levying the fines due the first term and dismiss the collector. Middleton, who saw that this was a deadly blow at his interest in Scotland, countermanded the royal letter upon alleged verbal authority, which Charles either never gave, or found it convenient to disown; and this completed his ruin. His rashness and inconsideration were too palpable to be denied; but, by the interest of his friends, Clarendon and the Bishop of London, his fall was softened, and he was sent into a kind of honourable banishment as governor of Tangiers. There he continued to indulge his habits of intemperance, and, falling down a stair in a fit of intoxication, broke his right arm so severely, that the bone protruded through the flesh, and, penetrating his side, a mortification ensued, which terminated his life.

Middleton, who never appears to have had any serious religion, was the friend of Lord Clarendon—a statesman bigoted to Episcopacy, rather on account of its political than its spiritual advantages—and employed by him for rearing in Scotland, upon the ruins of Presbytery, which he detested, an establishment more in accordance with those high notions of the prerogative which, notwithstanding the melancholy example of the first Charles, were adopted and cherished by the court of his son. Well calculated for carrying through the most despotic measures by force, he must be acquitted of the mean duplicity of Charles's letter to the ministers of Edinburgh, the obloquy of which rests upon the crafty politics of Sharpe. When first shown it, he considered it as opposed to Episcopacy, and expressed his regret; but when told that, upon rescinding all the laws in favour of Presbytery, then Episcopacy remained the church government settled by law, he observed, "that might be done; but for his part he was not fond of making his majesty's first appearance in Scotland to be in the character of a cheat." Once, however, fairly embarked, he never hesitated, and concurred with the bishops in their every project, however treacherous or oppressive. He first overturned the Presbyterian church government, which had been settled under as solemn sanctions, and as strong legal guarantees, as can ever possibly be devised to secure any religious establishment, and then sent to the scaffold, from motives of avarice and revenge, the noblest ornaments of that religion, whose only crime was, adhering to a profession he himself had, with uplifted hand, sworn to support.

In council, he unwarrantably extended the tyrannical acts of his servile parliament, and wantonly laid waste hundreds of peaceable and flourishing congregations. With a cunning worthy the priesthood of Rome, he invited numbers of unsuspecting ministers from distant parts of the country to Edinburgh, as if to consult them on the affairs of the church, then ensnared them by insidious questions, and punished their unsuspecting simplicity with deprivation, imprisonment, and exile. Without any shadow of law, and without the form of a trial, he turned ministers from their congregations—prohibited them from preaching, praying, or expounding the Scriptures, and sent them to the most distant corners of the land, or forced them to seek an asylum in foreign countries—then intruded on the desolated parishes worthless and incapable hirelings—and concluded his career by commanding the people to attend upon their ministrations under a severe

and oppressive penalty. His own expatriation to the barren coast of Africa was looked upon by the sufferers as a righteous retribution, and his melancholy end as an evident mark of divine displeasure; nor could the coincidence between his own rash imprecation and the manner of his death fail to strike the most careless. Like many other political hypocrites, with a zeal as furious as false, he had sworn and subscribed the covenants when it was the fashion of the time to do so; and, on retiring from the place where he had taken these vows upon him, he said to some of those who were with him, "that that was the pleasantest day he had ever seen; and if ever he should do any thing against that blessed work, he had been engaging in," holding up his right arm, "he wished that it might be his death!" The enormous fines he imposed, he never was empowered to exact; and, in return for impoverishing his country, he died an exile and a beggar.

Lauderdale having succeeded in removing his formidable antagonist, from thenceforth for a number of years almost solely directed Scottish affairs. The Presbyterians, who believed that he was secretly attached to their cause, anticipated better days under his protection; but ambition was his master-passion, and to it he was prepared to sacrifice all his early attachments and principles. While religion appeared the only road to power in the state, he had been foremost in the ranks of the covenanters; and, by the warmth of his professions, and the consistency of his conduct, had gained the confidence of those who were sincerely devoted to the cause; but when the path of preferment on Charles's restoration struck off in an opposite direction, he deserted to the prelates, and evinced the sincerity of his change by at once forsaking his sobriety of manners, and apostatizing from his form of religion; and, as he understood well the principles he betrayed, and at one time certainly had strong convictions of their truth, his opposition was proportionably inveterate, and he became outrageously furious at whatever tended to remind him of his former "fanaticism."

BOOK IV.

DECEMBER, A.D. 1662-1664.

State of the West and South—Bishops—Curates—Their reception—Tumult at Irongray—Commission sent to Kirkcudbright and Dumfries—Field-preaching—Rothés and Lauderdale arrive in Scotland—Parliament—Warriston's arrest and execution—Principal Wood of St Andrews and other ministers silenced and scattered—Troops ordered to enforce the Acts of Parliament—Their outrages—Sir James Turner—High Commission Court—Its atrocities—Privy Council—Its exactions—Prohibits private prayer-meetings or contributing money for the relief of the sufferers—William Guthrie of Fenwick laid aside—Donaldson of Dalgetty's case—Death of Glencairn—Political changes.

While these struggles were going forward at court, the affairs of Scotland were in a state of the most woful confusion. Almost the whole parishes in the west and south had been deprived of their ministers; and as their own churches remained vacant, the people in crowds flocked to those where the few old Presbyterian ministers were yet allowed to officiate. These assemblies having been denounced by the council's proclamation, attracted the attention of the soldiers; and numerous parties patrolled the country to disturb the meetings and levy the fines to which offenders were liable.

When the vacant charges came to be filled, (1663,) new sources of disturbance arose. No preparation had been made for such an exigence as bad now arisen. The regular candidates for the ministry were too few; and of these but a small proportion were willing to pursue their studies under the direction of the bishops, or accept of Episcopal ordination. The north was therefore ransacked, and a great number of ignorant, uneducated young men, not more deficient in talents and acquirements than in decent common moral conduct,^[31] were hastily brought forward to supply the places of the ejected ministers, who in general were both pious, learned, and of

respectable abilities; many of them eminently so, and all laborious in the discharge of their duties, exemplary in their lives, and dear to their people. These presentees, who were contemptuously styled by the people “bishops’ curates,” when intruded upon them without any regard to their wishes or choice, were received in many places with the most determined opposition; in some, they were compelled to retire; and, in others, obliged to enter by the windows, the doors being built up; and thus literally to display the scriptural characteristic of spiritual thieves and robbers. The Presbyterian ministers had uniformly classed prelacy and popery together; and, at the settlement of the new clergy, the prelates justified the charge by employing the military to enforce their ecclesiastical appointments, and ordaining their parsons at the point of the sword. The patrons, in most cases, had allowed their rights to devolve upon the bishops; and thus the whole undivided obloquy rested on their consecrated heads, which was not lessened when some of the careless or profane heritors, to ingratiate themselves with the rulers, feasted the clergy at their settlements, and, aping the loyalty of their superiors, conducted their entertainments with an equally jovial disregard of decency and temperance.

- [31](#). Bishop Burnet, himself an Episcopalian, thus characterizes them:—“They were the worst preachers I ever heard. They were ignorant to a reproach; and many of them were openly vicious. They were a disgrace to their order and the sacred function, and were indeed the dregs and refuse of the northern parts. Those of them who were above contempt or scandal, were men of such violent tempers, that they were as much hated as the others were despised.”

But there was also an opposition of a more solemn and impressive nature offered by the serious part of the people in different parishes, who received the intruders when they came among them with tears, and entreated them earnestly to be gone, nor ruin the poor congregations and their own souls. Neither of these methods, however, had any effect; the thoughtless wretches entered upon that awful charge—the care of souls—as if they had been taking forcible possession of an heritable estate to which they had a legal right.^{[\[32\]](#)}

- [32](#). The following appears to have been the clerical mode of infetment:—At the admission of Mr John Ramsay to the parish of Sconie, in Fife, “Mr Jossia Meldrum, minister of Kingorne, after sermon ended, he tooke his promise to be faithfull in his charge of that flock: and ther was delivered to him the bibell, the keys of the church doore, and the bell-tou.” *Lamont’s Diary*, p. 192.

As the south had been favoured with remarkably faithful pastors, the strongest resistance appeared there. Irongray was the first settlement where open “tumultuating” took place. The curate not being able to obtain peaceable admission, returned with a party of soldiers to force an entrance, when a band of women, led on by a Margaret Smith, attacked the guard with stones, and triumphantly beat them off the field. Margaret, the fair heroine, was brought to Edinburgh, and sentenced to slavery in Barbadoes; but she “told her tale so innocently,” that the managers, not yet steeled to compassion, permitted her to return home. The parish was not, however, allowed to escape with impunity. Upon hearing of this disturbance, and a similar one at Kirkcudbright, the privy council, as if the country had been in an actual state of rebellion, appointed the Earls of Linlithgow, Galloway, and Annandale, with Lord Drumlanrig and Sir John Wauchope of Niddry, to proceed on a commission of inquiry to that district, attended by an hundred horse and two hundred foot of the king’s guard, with power to suppress all meetings or insurrections of the people, if any should happen.

At Kirkcudbright, the commission held several diets, and examined a number of witnesses. Of about thirty-two women whom they apprehended, five were sent to Edinburgh; and Bessie Laurie, with thirteen others, were bound over to keep the peace. Lord Kirkcudbright—who had declared if the minister came there he should come over his body, and that he would lose his fortune before he should be preacher there; but at the same time admitted, that, if the minister had come in by his presentation, he could have raised as many men as would have prevented a tumult—was transmitted under a guard to Edinburgh. James Carson of Fenwick, the late provost, although not in power, and John Ewart, who had refused to accept the office, because they had declined interfering upon the occasion, were also sent prisoners to the capital, where they were kept in confinement several months;^[33] besides, in addition, being severely fined. The five women were sentenced to stand at the cross of Kirkcudbright two hours on two market days, with labels on their foreheads denoting their crimes, and thereafter to find bail to keep the peace. New magistrates were appointed for the burgh, who, on accepting the nomination, signed a bond in their own name and that of the haill inhabitants of the place, binding and obliging them, and ilk one of them, during their public trust, and all the inhabitants, to behave themselves loyally, and in all things conform to his majesty’s laws, made and to be made, both in civil and ecclesiastical affairs! and

besides, to protect the Lord Bishop of Galloway, the minister of the burgh, and any other ministers that were or should be established by authority.

- [33](#). The following singular order was issued by the council on this occasion; and it deserves to be noted, that it was issued the very first meeting after the archbishops had taken their seats as members:—"June 23d. The lords of council being informed that ministers and other persons visit the prisoners for the riot at Kirkcudbright, now in the tolbooth of Edinburgh, and not only exhort but pray for the said persons to persist in their wicked practices, affirming that they are suffering for righteousness' sake, and assure them that God will give them an outgate—recommend it to the keeper to notice who visits them, and what their discourse and carnage is when with them." *Wodrow*, vol. i. p. 188.

At Dumfries, the commission also examined witnesses, but the mighty insurrection dwindled into a "great convocation and tumult of women;" yet the whole party, horse and foot, were quartered upon the parish, and a bonus levied for remunerating the clerks. The whole heritors were likewise compelled to sign a bond of passive obedience to laws known and unknown, in terms similar to that of the magistrates of Kirkcudbright.[\[34\]](#)

- [34](#). The council ordered to be advanced for this expedition, the sum of £500 to the soldiers as part of their pay, £120 to the Earl of Linlithgow, and £50 to the Laird of Niddry for their expenses; so that probably these petty squabbles would cost the two parishes not much under one thousand pounds sterling, equivalent to nearly five in later times.

Instead of reconciling the people, or terrifying them back to the churches, these severities exasperated them; nor was it to be expected that they would willingly attend the ministrations of men, whose preaching they despised, and who were thus ushered in. Outrageous expressions of dislike were not, however, approved of by the godly and judicious Presbyterians, they mourned in private over the desolation of the church, and sought, by attending the family exercises of the younger ministers who were "outed,"[\[35\]](#) but sojourned among them, to receive that instruction, and enjoy that social worship, of which they were so tyrannically deprived! Sometimes the numbers who assembled to enjoy this privilege were so great, that a house could not contain them, and the minister was constrained to officiate without doors; till at length they increased so much that they were under the necessity of betaking themselves to the open fields; and, like him whose servants they were, beneath the wide canopy of heaven, preached the gospel of the kingdom to multitudes upon the mountain's side. Mr John Welsh and Mr Gabriel Semple began the practice of field-preaching, which quickly increased, and, to the great alarm of the bishops,

had pervaded almost every quarter of the country, when the political arrangements being completed, Rothes arrived as commissioner to open the parliament.

[35](#). “Outted,” turned out of their churches.

Lauderdale accompanied the Earl to Scotland, professedly to inquire into the origin of that conspiracy against his majesty’s royal prerogative—the balloting act;—in reality to secure his own ascendancy in Scotland, and, by pushing to the utmost the advantage he had gained over the Middleton faction, to prevent any attempt being made against him from that quarter for the future. The Chancellor made some feeble show of opposition, but the universal spirit of submission to the will of the crown which pervaded the higher classes, and their selfish eagerness to obtain a share in the spoils of their unhappy country, not only blighted every appearance of patriotism, but precluded every plan of association among the aristocracy themselves for maintaining their own rank and station independent of the minions of the court. The Presbyterians who rejoiced in Middleton’s fall, soon found that they had gained very little by the change. At the first diet of council, (June 15, 1663,) the two archbishops were admitted, with Mr Charles Maitland, Lord Hatton, Lauderdale’s brother; but Crawford having refused the declaration, was deprived of the treasurership, and Rothes, the commissioner, that same day was appointed to succeed him in the office.

On the 18th, parliament met, and, by an alteration in the method of appointing the Lords of the Articles—allowing the spiritual lords first to name eight temporal lords, then the temporal lords to choose eight spiritual; and these sixteen, or such of them as were present, to elect the representatives of the barons and burghs—they virtually gave up the privilege of nominating this important committee, to the servants of the crown, and surrendered the last check they had upon the prerogative. The tyranny of the council was next legalized, and a practice introduced which continued till the Revolution:—the most oppressive acts of the former sessions, together with the acts of council, enlarging and explaining their vindictive clauses, were approved of by a retrospective declaratory enactment; and every mode of persecution which had been adopted upon trial since last session, was incorporated into the statute law of the kingdom. Thus an act against separation and disobedience of ecclesiastical authority—introduced early in the session—besides recapitulating all the penalties to

which the non-conforming ministers had been previously subjected, ordained those who still dared to preach in contempt of law, or did not attend the diocesan meetings, to be punished as seditious persons, and despisers of the royal authority. Absence from church on Sundays—a finable offence—was now denounced as sedition; and whoever wilfully should withdraw from the ministrations of the parish priest, however incapable he might be, were, if noblemen, gentlemen, or heritors, to lose the fourth part of their yearly income—if yeomen, tenants, or farmers, such proportion of their moveables, after payment of their rents, as the council should think fit, not exceeding a fourth part—but if a burgess, his freedom, along with the fourth of his moveables, and, in addition, the council was authorized to inflict such corporeal punishment as they should see proper. The declaration was ordered by another act to be taken by all who exercised any public trust; and persons chosen to be councillors or magistrates of burghs, if they declined to subscribe, were declared for ever incapable of holding any office, or exercising any occupation, trade, or merchandise. To complete the organization of the hierarchy, an act was passed for the establishment and constitution of a National Synod, bearing the same resemblance to the estates of Scotland that the Houses of Convocation did to the English parliament: both emanated from his majesty's supremacy, and consisted of the bishops and their satellites, only the Scottish assembly was to meet in one place, and was even more servilely abject than their elder Episcopalian sister, and could not be constituted without the presence of the king or his commissioner. The balloting act was, after long investigation, rescinded with every mark of detestation, the parliament declaring they had never consented to any such thing! and, that it might not appear in judgment against them, was ordered to be erased from their minutes. Sensible that the measures now pursued in Scotland must necessarily lead to insurrection, and that a military force would be requisite to carry them into effect, Lauderdale procured from this servile crew the offer of an army of twenty thousand foot and two thousand horse, to be raised for his majesty's service when required, under the ridiculous pretence of preserving Christendom against the Turks!! This number never was demanded; and it was alleged that the secretary had carried the measure to ingratiate himself with the king, and to show him what assistance he might derive from Scotland in any attempt to destroy the liberties of England. From the beginning, the Scots had been harassed by the king's guard, but

from this date the troopers were more unsparingly employed to enforce clerical obedience, while the act hung *in terrorem* over the hands of the dissatisfied Presbyterians, and afterwards became the foundation of the militia.



Middleton's first session set in blood; Rothes closed under as deep a stain. Sir Archibald Johnston, Lord Warriston, had been forfeited and condemned by parliament when Argyle and Guthrie were arraigned, but escaping to the Continent, had remained concealed in Holland and Germany, chiefly at Hamburgh, till most unadvisedly, in the latter end of 1662, he ventured to France. Notice of this having been carried to London, the king, who bore him a personal hatred for his free admonitions when in Scotland,^[36] sent over secretly a confidential spy, known by the name of "Crooked Murray," to trace him out and bring him to Britain. By watching Lady Warriston, Murray soon discovered her lord's retreat at Rouen in Normandy, and had him seized while engaged in the act of secret prayer. He then applied to the magistrates, and, showing them the king's commission, desired that they would allow him to carry his victim a prisoner to England. The magistrates, uncertain how to act, committed Warriston to close custody, and sent to the French king for instructions. When the question was debated in council, the greater part were for respecting the rights of hospitality, and not giving up his lordship till some better reasons were shown than had yet been given; but Louis, who was extremely desirous to oblige Charles, and sympathized cordially in his antipathies against the Protestant religion and liberty, ordered him to be delivered to the messenger, who carried him to London and lodged him in the tower in the month of January 1663. While the parliament was sitting in June, he was sent to Scotland with a letter from the king, ordering him "to be proceeded against according to law and justice," and landed at Leith on the 8th, whence, next day, he was brought bareheaded to the tolbooth of Edinburgh. Neither his wife, children, nor any other friend, were permitted to see him, except in presence of the keeper or guard, and that only for an hour, or at farthest two at a time, betwixt eight o'clock in the morning and eight at night. Here he was detained till July 8th, when, no more trial being deemed necessary, he was brought before parliament to receive judgment. His appearance on this occasion was humiliating to the pride of human genius, debilitated through excessive blood-letting and the deleterious drugs that

had been administered to him by his physicians,^[37] the faculties of his soul partook of the imbecility of his body, and, on the spot where his eloquence had in former days commanded breathless attention, he could scarcely now utter one coherent sentence. The prelates basely derided his mental aberrations, but many of the other members compassionated the intellectual ruin of one who had shone among the foremost in the brightest days of Scotland's parliamentary annals. When the question was put, whether the time of his execution should be then fixed or delayed? a majority seemed inclined to spare his life, which Lauderdale observing, rose, and, contrary to all usage or propriety, in a furious speech, insisted upon the sentence being carried into immediate effect; the submissive legislators acquiesced, and he was doomed to be hanged at the cross of Edinburgh on the 22d of the same month, and his head fixed upon the Nether Bow Port, beside Mr Guthrie's.

^{36.} "The real cause of his (Warriston's) death, was not his activity in public business, but our king's personal hatred, because when the king was in Scotland he thought it his duty to admonish him because of his very wicked, debauched life, not only in whoredom and adultery, but he violently forced a young gentle-woman of quality. This the king could never forgive, and told the Earle of Bristol so much when he was speaking for Warriston." *Kirkton's Hist. of the Church of Scot.* p. 173.

^{37.} "Through excessive blood-letting and other detestable means used by his wicked physician, Doctor Bates, who they say was hired either to poison or distract him, and partly through melancholy, he had in a manner wholly lost his memory." *Kirkton's Hist.* p. 170. Mr C. K. Sharpe, the editor, thinks his mental imbecility was occasioned in some measure by fear, and quotes a passage from one of Lord Middleton's letters to Primrose. "He pretends to have lost his memory," &c. "He is the most timorous person ever I did see in my life," &c. *Note.* But it was not to be expected that Middleton would allude in the most distant manner to any thing that could be supposed to countenance in the least the then general belief.

Mr James Kirkton, author of the "History of the Church of Scotland," who visited him, says—"I spake with him in prison, and though he was sometimes under great heaviness, yet he told me he could never doubt his own salvation, he had so often seen God's face in the house of prayer." As he approached his end, he grew more composed; and, on the night previous to his execution, having been favoured with a few hours' profound and refreshing sleep, he awoke in the full possession of his vigorous powers, his memory returned, and he experienced in an extraordinary degree the strong consolations of the gospel, expressing his assurance of being clothed with a white robe, and having a new song of praise put into his lips, even salvation to our God, which sitteth upon the throne, and to the Lamb!

Before noon, he dined with great cheerfulness, hoping to sup in heaven, and drink of the blood of the vine fresh and new in his father's kingdom. After spending some time in secret prayer, he left the prison about two o'clock, attended by his friends in mourning, full of holy confidence and courage, but perfectly composed and serene. As he proceeded to the cross, where a high gibbet was erected, he repeatedly requested the prayers of the people; and there being some disturbance on the street when he ascended the scaffold, he said with great composure—"I entreat you, quiet yourselves a little, till this dying man deliver his last words among you," and requested them not to be offended that he used a paper to refresh his memory, being so much wasted by long sickness and the malice of physicians. He then read audibly, first from the one side and then from the other, a short speech that he had hurriedly written—what he had composed at length and intended for his testimony having been taken from him. It commenced with a general confession of his sins and shortcomings in prosecuting the best pieces of work and service to the Lord and to his generation, and that through temptation he had been carried to so great a length, in compliance with the late usurpers, after having so seriously and frequently made professions of aversion to their way; "for all which," he added, "as I seek God's mercy in Christ Jesus, so I desire that the Lord's people may, from my example, be the more stirred up to watch and pray that they enter not into temptation."

He then bare record to the glory of God's free grace and of his reconciled mercy through Christ Jesus—left "an honest testimony to the whole covenanted work of reformation"—and expressed his lively expectation of God's gracious and wonderful renewing and reviving all his former great interests in these nations, particularly Scotland—yea, dear Scotland! He recommended his poor afflicted wife and children to the choicest blessings of God and the prayers and favours of his servants—prayed for repentance and forgiveness to his enemies—for the king, and blessings upon him and his posterity, that they might be surrounded with good and faithful councillors, and follow holy and wise councils to the glory of God and the welfare of the people. He concluded by committing himself, soul and body, his relations, friends, the sympathizing and suffering witnesses of the Lord, to his choice mercies and service in earth and heaven, in time and through eternity:—"All which suits, with all others which he hath at any time by his spirit moved and assisted me to make, and put up according to his will, I leave before the throne, and upon the Father's merciful bowels, the Son's

mediating merits, and the Holy Spirit's compassionating groans, for now and for ever!"

After he had finished reading, he prayed with the greatest fervour and humility, thus beginning his supplication—"Abba! Abba! Father, Father, accept this thy poor sinful servant, coming unto thee through the merits of Jesus Christ." Then he took leave of his friends, and again, at the foot of the ladder, prayed in a perfect rapture, being now near the end of that sweet work he had been so much employed about, and felt so much sweetness in through life. No ministers were allowed to be with him, but his God abundantly supplied his every want. On account of his weakness, he required help to ascend the ladder. Having reached the top, he cried with a loud voice—"I beseech you all who are the people of God not to scorn at suffering for the interest of Christ, or stumble at any thing of this kind falling out in these days. Be encouraged to suffer for him, for I assure you, in the name of the Lord, he will bear your charges!" This he repeated again while the rope was putting about his neck, forcibly adding—"The Lord hath graciously comforted me." Then asking the executioner if he was ready to do his office, and being answered that he was, he gave the signal, and was turned off, crying—"Pray! pray! praise! praise!" His death was almost without a struggle.

Sir Archibald Johnston, Lord Warriston, was an early, zealous, and distinguished covenanter, and bore a conspicuous part in all the remarkable transactions of the times, from 1638 till the Restoration. The only blemish which his enemies could affix to his character was, what he himself lamented, his accepting office under the usurpers, after having previously so violently opposed this in others, when yet every prospect of restoring the Stuart family seemed hopeless, and when numbers of his countrymen and of his judges themselves had submitted to a tolerant commonwealth, that did not burden the conscience with unnecessary oaths, or require any compliances which might not, in the circumstances of the case, have been considered venial, if not justifiable. His talents for business were of the first order. His eloquence was ready, and his judgment clear. He was prompt and intrepid in action, and adhered steadily to his Presbyterian principles, notwithstanding his officiating under a liberal government of a different persuasion—conduct we now allow to be not incompatible with integrity. His piety was ardent, and, amid a life of incessant activity, he managed to

spare a larger portion of time for private devotion than many of more sequestered habits. He habitually lived near to God, and died in the full assurance of hope.

Parliament having sat upwards of three months, rose on the 9th of October. Even during its sitting, the council never intermitted their oppressive acts; and, so far was this branch of the legislature from interfering to check their immoderate abuse of power, that they had shown themselves upon every occasion the willing instruments of their oppression, ready when called upon to legitimate without a murmur their foulest usurpations. On the other hand, the executive acted as the humble tools of the prelates, ready to support their most arrogant assumptions or gratify their cowardly and cruel revenge. St Andrews, the primate's seat, first required to be thoroughly cleansed; and all who would not countenance the archbishop in his treachery, were of necessity removed as unwelcome remembrancers of his former profession. Mr James Wood, principal of the Old College, pious, learned, and assiduous in his duty, who had been an intimate friend and companion of Sharpe's, and one of the many excellent men who had been his dupes, was, on the 23d of July, summoned before the council and required to show by what authority he came to be principal. Without being suffered to offer any remarks, when he acknowledged "that he was called by the Faculty of the College at the recommendation of the usurpers," the place was declared vacant, and he was commanded to confine himself within the city of Edinburgh till further orders.

Yet such was the estimation in which he was held, that his enemy, though by falsehood, endeavoured to shelter his apostacy under the shadow of his name. Not long after this, when Mr Wood was on his deathbed, March 1664, and greatly weakened by disease, Sharpe called once or twice upon him; and he having said, as a dying man in the immediate view of eternity, that he was taken up about greater business than forms of church government, and that he was far more concerned about his personal interest in Christ than about any external ordinance, Sharpe took occasion to spread a report that he had said Presbyterian government was a matter of no consequence, and no man should trouble himself about it, which coming to the sufferer's ears, he emitted a declaration before witnesses of his unshaken attachment to Presbytery as an ordinance of God, and so precious

that a true Christian is obliged to lay down his life for the profession thereof, if the Lord should see meet to put him to his trial.

Along with Mr Wood, a great number of ministers from every quarter of the country, were removed from their charges, some confined to Edinburgh, others banished beyond the river Ness—all forbid to preach the gospel under the threatening of severer penalties. Heavy were the complaints of the clergy; the ministers refused to attend their synods, and the people persisted in neglecting their sermons. The council, therefore, appointed “the Lords Archbishops of St Andrews and Glasgow, the Marquis of Montrose, the Lord Secretary and Register, to wait on the Lord Commissioner, his Grace, to think on a general course what shall be done, as well anent those ministers that were admitted before 1649, and carry themselves disobediently to the laws of the kingdom, as those who were admitted since.” While the committee were deliberating, the evil increased; and, on the 30th of the same month, six of the west country ministers were before the council to answer the heavy charge of “convocating great multitudes of his majesty’s subjects for hearing their factious and seditious sermons, to the great scandal of religion and prejudice of the government of the church.” To shorten their labours, however, and probably upon a report of the archbishops and their assistants, a most harassing and contradictory act was passed, commanding all “outted” ministers, under pain of sedition, *i.e.* being processed criminally, to remove themselves and their families twenty miles from the bounds of their own parishes, six miles from every cathedral, and three miles from every royal burgh, thus depriving them of any means of support they might have derived from their own industry or that of their families, in the only places of trade or traffic, and scattering them among strangers, far from the bounty or assistance of their friends. But as one “outted” minister only could reside in one parish, the act, besides, involved an alternative of death or apostacy; for the whole of Scotland could not have accommodated the sufferers, and no relaxation could be obtained but from the privy council or the bishop of the diocese. The older ministers, who still continued to preach, but withdrew from the synods, were now to be treated as contemners of his majesty’s authority.

To enforce their acts, the privy council ordered the Earl of Linlithgow to send as many troops to Kirkcudbright as, with those already there, would make up the number of eightscore footmen with their officers in that

district. Sir Robert Fleming was directed to march two squads of his majesty's life-guards to the west, and to station one in Paisley and the other in Kilmarnock. The object of these military missionaries was to episcopalize the refractory south and west, by collecting the fines and compelling subjection to the bishops and their curates. Sir James Turner, who had signalized himself by his zeal in fighting for the covenant, was singled out to superintend the pious service in the south, which he performed so much to the satisfaction of his employers, that, on the 24th of November, a letter of thanks was recommended to be written him "for his care and pains taken in seeing the laws anent church government receive due obedience." The excesses which were committed under sanction of these orders and commendations, were never attempted to be justified, though the parties afterwards mutually endeavoured to shift the blame from themselves. When it was deemed necessary to make the General the scape-goat, it was asserted that he had exceeded his instructions; but he averred, and with greater probability of truth, that he had not even acted up to their tenor.^[38] The exactions were enormous; and, as the fines for non-attendance were generally appropriated by the soldiers, they were summarily levied, and not unfrequently to far more than the legal amount. The process against non-conformists, in places where there were Episcopalian incumbents, was short. The curates were the accusers—the officers of the army, or sometimes even private sentinels, the judges—no proof was required—and no excuse was received, except money. If a tenant or householder were unwilling or unable to pay, a party was quartered upon him, till ten times the value of the fine was taken, and he was ruined, or, as they termed it, "eaten up;"^[39] then, after every thing else was gone, the household furniture and clothes of the poor defaulters were distrained and sold for a trifle.

³⁸. "Sometimes not exceeding a sixth part, seldom a halfe." *Turner's Memoirs*, p. 114.

³⁹. To understand the meaning of this phrase, it is necessary to recollect the situation of the rural tenantry in Scotland about this time. They lived almost entirely upon the produce of the lands they rented, and kept usually a small stock of oatmeal, cheese, and salted provisions, as public markets were almost wholly unknown.

The soldiery employed in this execrable work, were the lowest and most abandoned characters, who readily copied the example of their officers—measured their loyalty by their licentiousness, and considered that they served the king in proportion as they annoyed the Whigs. Religion was the

object of their ridicule. In the pious hamlets where they quartered, family worship was interrupted by mockery or violence; and “The Cottar’s Saturday Night,” not only treated with derision, but punished as a violation of the laws of the land! Upon the Sabbath, the day peculiarly devoted by the covenanters to holy rest, and the quiet performance of their sacred duties—for the covenanters made conscience of the moral obligation of the Sabbath—a scene of dismay and distress hitherto unknown was commonly exhibited; and the day to which they had in other times looked forward as the glory of the week, was now dreaded as the signal of their renewed torments. Multitudes were brutally driven to church, or dragged as felons to prison; and hesitation or remonstrance provoked only additional insult or blows. Lists of the parishioners were no longer kept for assisting the minister in his labours of love, but were handed over to the troopers, with directions for them to visit the families, and to catechise them upon their principles of loyalty and their practice of obedience to their parsons. After sermon, the roll was called by the curate, when all absent without leave were delivered up as deserters to the mercy of the military. At churches where the old Presbyterian ministers were yet allowed to remain—for a few still continued to preach at their peril, or through the interest of some influential person—the outrage and confusion were indescribable. As they were generally crowded, the forsaken bishops and their underlings were enraged, and the soldiers were instigated to additional violence. Their custom was to allow a congregation peaceably to assemble, while they sat carousing in some alehouse nigh at hand, till public worship was nearly over; then they sallied forth inflamed with liquor, and, taking possession of the church-doors or churchyard-gates, obliged the people, whom they only suffered to pass out one at a time, to answer upon oath whether they belonged to the parish; if they did not, although their own parish had no minister of any kind, they were instantly fined at the pleasure of the soldiers; and if they had no money, or not so much as would satisfy them, their Bibles were seized, and they were stripped of their coats if men, or their plaids if women; so that a party returning from such an expedition, appeared like a parcel of villanous camp-followers, after an engagement, returning from a battle-field, laden with the spoils of the wounded and slain.

To such an extent had these plunderings been carried, that even the privy council found it necessary to interfere. Towards the end of the year, they issued an explanation of their former acts, and restricted the exactions of the

soldiery, “allennarly to the penalty of twenty shillings Scots, from every person who staid from their parish churches on the Sabbath days.”^[40]

40. Three of the prelates died in course of the past year. Bishop Mitchell of Aberdeen, who was succeeded by Burnet; Sydeserf, who was succeeded in the bishopric of Orkney by Mr Andrew Honeyman, formerly minister of St Andrews; and Archbishop Fairfoul of Glasgow, who was succeeded in the arch-episcopate by Bishop Burnet of Aberdeen, Dr Scougall being appointed to that see.

[1664.] Even this symptom, small as it was, of moderation, was not at all agreeable to the prelates. Like all upstarts, suddenly raised beyond their expectations, their arrogance became insupportable, and could brook no opposition. Glencairn, in particular, who had been so instrumental in their rise, began to feel the truth of what he had been repeatedly told—“that the bishops would never rest content with being second in the state, and that moderate Episcopacy was all a jest.” He had said to Rothes that “it was the noblemen’s interest to repress the growing power of bishops, otherwise they would be treated by them now as they had been before 1638.” This remark being carried to Sharpe, he treated the Chancellor with great *hauteur*, and publicly threatened to destroy his interest at court—an affront that Glencairn could never forget, and which is said to have preyed upon his spirits to his dying day.

Fearing a relaxation of “the wholesome severities,” the primate hastened to London with heavy complaints against many of the noblemen, for their backwardness in executing the laws made in favour of the church; and, through the influence of the English bishops and high churchmen, prevailed upon the king to re-establish in Scotland the most detested of all the arbitrary courts that had been abolished—the High Commission Court.

His majesty, by virtue of his royal prerogative in all causes and over all persons, as well ecclesiastic as civil, granted the most exorbitant powers to that antitype of the Inquisition. It consisted of thirty-five lay members,^[41] and of all the prelates, except Leighton, who had the honour to be excluded from the nomination; and any five constituted a quorum, provided always an archbishop or bishop was of the number. Under pretext of seeing all the acts of parliament and council in favour of Episcopacy put in vigorous execution, they were authorized to suspend or depose, fine, and imprison all ministers who dared to exercise any of their sacred functions without the license of a bishop—who should preach in private houses or elsewhere—

who should keep meetings for fasts or for the administration of the sacrament of the Lord's Supper not approven by authority: to summon, call before them, and punish all who should speak, preach, write, or print to the scandal, reproach, or detriment of the government of the church or kingdom as now established—and all who should express any dissatisfaction at his majesty's authority. The commanders of the forces and militia, the magistrates of every description, were required to apprehend and incarcerate delinquents upon their warrants, and the privy council to direct letters of horning for payment of the fines—one half of which was appropriated to defray the expenses of the court, and the other to be employed for such pious uses as his majesty should appoint. And by a final comprehensive clause, the High Commission, or their quorum, were authorized to do and execute whatever they should find necessary and convenient for his majesty's service—for preventing and suppressing of schism and separation—for planting of vacant churches—and for procuring of reverence, submission, and obedience to the ecclesiastical government established by law.

- [41](#). The following were the lay members:—The Chancellor, Treasurer, Duke of Hamilton, Marquis of Montrose, Earls of Argyle, Atholl, Eglinton, Linlithgow, Home, Galloway, Annandale, Tweeddale, Leven, Moray; Lords Drumlanrig, Pitsligo, Fraser, Cochrane, Halkerton, Bellenden, the President of the Session, the Register, the Advocate, Justice-Clerk; Charles Maitland, the Laird of Philorth, Sir Andrew Ramsay, Sir William Thomson; the Provosts of St Andrews, Aberdeen, Glasgow, Ayr, and Dumfries, Sir James Turner, and the Dean of Guild of Edinburgh. From among these, the primate, who managed the whole, could easily pick out a quorum to suit his purposes; and thus he got rid of all the members of the privy council who had either the spirit or the policy to resist his unbounded presumption—a presumption heightened by his being now ordered to take precedence of the Chancellor, the nobility, and all the officers of state.

By this instrument the whole kingdom was laid at the feet of the prelates; for no quorum of the Commission could be complete without a bishop, while five bishops could form a quorum without a layman. The practice was agreeable to the constitution of the court, and such as may always be expected where churchmen are intrusted with civil authority. True ministers of Christ would never in their ministerial capacity accept it, and worldlings who have assumed that sacred office to serve purposes of ambition, have ever been the greatest curse of Christendom. The records have been mislaid or lost, but the cases that remain, amply justify the epithets bestowed upon this nefarious tribunal by all who have mentioned it.

James Hamilton of Aikenhead, near Glasgow, was among the first brought before them, accused of not hearing Mr David Hay, curate of the parish—Cathcart—in which his estate was situate. His defence was, the unclerical and ungentleman-like conduct of the clergyman. In collecting his stipend, which he did rigorously, Mr Hay had borne particularly hard upon some of Mr Hamilton's tenants, and, in consequence, a quarrel had ensued, in which the curate had descended to very intemperate and abusive language, and in return had been not less roughly answered. Mr Blair, the "outed" minister, happening accidentally to be upon the spot, interfered, and rescued Hay from the hands of his furious parishioners. When the affray was over, Mr Blair spoke seriously to the curate, and represented how opposite it was to his own interest for him to turn informer against his people. Hay, in return, thanked him for his kindness and advice, and gave him his solemn promise that he would follow it; yet within a very short time, he went to Glasgow and "delated" (*i. e.* denounced) them to the archbishop, who immediately dispatched Sir James Turner, then in the west, with a party of soldiers, to seize the delinquents. When Mr Hamilton came to be informed of the circumstances of the affair, he considered the low prevaricating conduct of Hay as so base, that he would never again enter the church door, and he kept his promise; for this he was fined a fourth part of his yearly rent. When he had paid the fine, the court was so fully sensible of the misconduct of Hay, that the Archbishop of Glasgow came forward and promised that he would be removed, but insisted that Mr Hamilton should come under an obligation to hear and acknowledge the minister he meant to place in his room; and, upon refusing to do any such thing till he knew who that person should be, he was mulcted another fourth of his income, and remitted to the archbishop to give him satisfaction as to his loyal and peaceable behaviour. The prelate, however, not being satisfied, he was again summoned before the court, upon some vexatious charges of keeping up the church utensils and session-books from the curate. Offering to swear he knew nothing at all about them, he was accused of not assisting the curate in the session when called upon, and suffering some of his family to absent themselves from church! Whether he might have been able to acquit himself of these heinous crimes is uncertain, for Rothes cut the business short, by telling him he had seen him in some courts before, but never for any thing loyal, and therefore tendered him the oath of allegiance. He had no objections, he replied, to take the oath of allegiance, were it not mixed

up with the oath of supremacy. Sharpe, interrupting him, said “that was the common cant, but it would not do.” Then he requested to be allowed to explain, but was politely answered by the president—“he deserved to be hanged!” and, upon refusing to become bound for all his tenants’ good behaviour, he was fined three hundred pounds sterling, and sent to confinement in Inverness, to remain during pleasure!

John Porterfield of Douchal, an excellent person, singled out for more than common oppression, was summoned also for not hearing. He alleged the unfounded calumnies the curate had spread against him as the reason why he could not wait upon his ministry. The reason was allowed to be cogent, and, at his own desire, he was permitted to prove it. His first witness bore him out in all that he advanced, and his vindication would have been complete; but he was too much respected and esteemed in the neighbourhood, and his acquittal might have encouraged others. His proof was therefore stopped, and he was required to take the oath of allegiance. As had been expected, he stuck at the supremacy, and offered an explanation. The natural consequence followed—the curate was sent home to enjoy his incumbency, and Porterfield, for daring to offer a defence, was sentenced to pay a fine of five hundred pounds sterling, his estate sequestrated till it should be paid, and himself confined to the town of Elgin, where he continued for four years.

Mr Alexander Smith, who had been turned out of his parish of Cowend, Dumfries-shire, by the Glasgow act, had since then resided at Leith; but having been guilty of preaching or expounding the Scriptures privately in his own house, was called before the court to be examined. In answering some of the queries Sharpe had put to him, he omitted the primate’s titles, and only styled him, Sir, which Rothes observing, meanly truckling to the priest, asked him, “if he knew to whom he was speaking?” “Yes, my lords, I do,” answered the prisoner firmly; “I speak to Mr James Sharpe, once a fellow-minister with myself.” For this high misdemeanour, the worthy man was immediately laid in irons and cast into the filthiest corner of the prison—the thieves’ hole. He was afterwards banished to one of the desolate Shetland Isles.

At the settlement of Ancrum parish, where a James Scott, who had been presbyterially excommunicated, was appointed to fill the place of Mr Livingston, a country woman of the name of Turnbull, with more zeal than

prudence, attempted, as he was going to be inducted, to dissuade him from undertaking the pastoral charge of so unwilling a people; and when he would not stop to listen to her reasoning, seized him by the cloak. Impatient at this detention, he turned in wrath upon the female remonstrant, and beat her unmercifully; which unmanly conduct provoking some youths present, they threw a few stones, but none of them touched Scott or any other person. This pitiful affair was instantly magnified into a seditious tumult, and the ringleaders were apprehended by the Sheriff and thrown into jail—a punishment certainly more than adequate to the offence, but it was no sufficient atonement for the indignity done to the clergy, and the business was brought before the High Commission; there these ministers of mercy sentenced the woman to be whipped through Jedburgh—her two brothers, married men with families, they banished to Virginia—and four boys, who confessed that they had each thrown a stone, were first scourged through the city of Edinburgh, then burnt in the face with a hot iron, and, finally, sold as slaves, and sent to the island of Barbadoes, which severe punishment they endured with a patient constancy that excited much admiration.

Bad as were the other courts in Scotland at this time, there was at least a probability that even a Presbyterian might by accident escape if accused, but before the High Commission no such thing was known. If proof was wanting, the declaration and the oath of allegiance were always at hand; and as the conscientious adherents of that persuasion were well known when brought before them, their trial was as short as their fate was certain. The exorbitant assumptions of the prelates were for some time supported by Rothes, but at length so disgusted the nobility, and brought such odium upon the court, that few of them would countenance its proceedings. While the uniform and flagrant injustice of their sentences rendered men desperate, who, rather than answer their summons, suffered themselves to be outlawed, or withdrew into voluntary exile in Ireland; till, in little more than a year and a half, the detested Crail court, as it was commonly called, ^[42] sank first into contempt and then into disuse.

⁴². It was so called, because Sharpe, who was the author of the court, and took precedence of all its members, had been minister of Crail.

Presbyterians in the north of Ireland being at this time also subject to persecution from the bishops, the ministers pursued in one country sought

occasionally refuge in the other. John Cruickshanks and Michael Bruce who had fled to Scotland this year, and were preaching with much success to the conventicles in the west, were in consequence denounced as rebels, (June 23,) and power given to the officers and the commanders of the forces to seize them.

While the High Commission was in its vigour, the privy council was thrown into the background; yet in its temporary shade it was not unmarked by streaks of persecution, equally vivid with any of the lineaments of its co-tyrannous judicatories. The declaration was forced by them upon all who held places of public trust; and their exertions were stimulated by a letter from the king, commanding that “upon no terms was any explication or declaration to be admitted upon the subscription of any;” yet some few of the royal burghs refused, and several of the shires hesitated; but a peremptory proclamation produced a very general compliance—for the conscientious demitted their offices, and the privy council supplied their places with successors who were less scrupulous. Nor did any of the burghs evince the smallest inclination to assert their rights or privileges, or persist in any election that was disagreeable to the managers.

His majesty likewise called their attention early this year to the fines imposed by Middleton’s act, which the Presbyterians were beginning to think had been forgotten, and for which leniency Lauderdale had received much unmerited credit. After several communications and delays, it was finally intimated, in the month of November, by proclamation, that the iniquitous imposition would be exigible—the first moiety at Candlemas, and the other at Whitsunday 1665.

Prohibited from preaching, several of the “outted” ministers who resided in Edinburgh, with others of those who feared the Lord, and that thought upon his name, were in the habit of meeting together in those days of sad calamity for social prayer in private houses. This, also, was a nuisance that required to be removed; and information having been given by the prelates or their underlings, the council issued a warrant to the magistrates of the city, “to cause search to be made anent the keeping of any such meetings, and that they acquaint the Lord Chancellor with what they discover, and the persons names, that order may be taken about the same.” This was followed by a mandate for all such ministers as had hitherto been allowed to remain by suffrance in Edinburgh, or any burgh, instantly to remove to the

distances required by their former act, under the severest penalties of law. But the most nefarious of their acts, and one opposed to every good or amiable feeling of the human heart, was that of April 29, forbidding any contribution to be made, or money collected, for the relief of those who had been ejected from their livings, banished from their friends, and prohibited from settling in places where themselves or their families might have earned an honest subsistence. The proclamation bears strong marks that its authors were ashamed of so gross a violation of the dictates of common humanity. It is worded in such an ambiguous manner as to be capable of the most severe application, yet so as to be explained away when requisite. For jesuitical falsehood, and heartless tyranny, the production is matchless: —“The lords of his majesty’s privy council being informed that, without any public warrant or authority, some disaffected persons to the present establishment, presume and take upon them to require contributions from such persons as they please, and do collect sums of money, which are, or may be, employed for carrying on of their private designs, prejudicial to the peace of the kingdom and his majesty’s authority; and considering that such courses and underhand dealing may strengthen seditious persons in their practices and designs, to disturb the peace, if they be not timeously prevented: Therefore, in his majesty’s name, they do prohibit and discharge all persons whatsoever, to seek or demand any contributions or supply, or to receive any sums of money. As likewise discharge all persons to grant or deliver any contributions to any persons whosoever shall require the same, unless it be upon occasions as have been publicly allowed and known, and heretofore practised; and that they have a special warrant and allowance of the lords of the privy council, or lords of the clergy within whose dioceses these collections are to be made. With certification, that if they contravene, they shall be proceeded against as persons disaffected to the present government, and movers of sedition.”^[43]

⁴³. Too much liberality in Christians towards their brethren, or even pastors, suffering in the cause of Christ, is a fault of very rare occurrence. There they often withhold more than is meet, and find in their experience that it tendeth to penury; for the Lord has many ways of taking from his people the money they think they can employ better than by lending to him; and perhaps many of the excellent persons who in this reign suffered the spoiling of their goods, might have to regret that they had not more freely contributed to supply the wants of their more needy fellow-christians. But no man knoweth either love or hatred from outward dispensations; and it is impossible for others to say, whether as a rebuke or a trial, the persecutors were permitted to plunder the devoted south and west.

Shortly before the Restoration, and within the few years that had elapsed since it had pleased God to remove a great number of his most eminent servants, who had sustained the heat and burden of the day, during the troublous times of civil dissension, others had been honoured to suffer death, imprisonment, or exile for the word of God, and for the testimony of Jesus Christ; and of those who remained, the prelates were extremely anxious to get rid. Among them, William Guthrie of Fenwick was too conspicuous to escape. He had, through the interposition of the Earl of Eglinton and the Chancellor, been allowed to continue so long, but the crowds who were attracted to his church from the neighbouring and even distant parishes, and the blessing of God which in a remarkable manner followed his preaching, provoked the jealousy of the prelates, particularly Archbishop Burnet, who, when requested by Glencairn to overlook him, displayed his inveteracy by replying—"That shall not be done; it cannot be; he is a ringleader and keeper up of schism in my diocese;" and Glencairn was not long dead before he was suspended by his Grace. Such, however, was the respect in which Mr Guthrie was held, that it was with difficulty he could find a curate to pronounce his sentence, and not till he had procured him a guard of soldiers and bribed him with the sum of five pounds. But Mr Guthrie strictly forbade any opposition, and rather called them to fasting and prayer. Early on the Sabbath on which his church was declared vacant, he preached, as usual, two sermons from the latter part of that text, Hosea xiii. 9, "O Israel, thou hast destroyed thyself; but in me is thine help"—only had the whole service over before nine o'clock.

Shortly after, the curate with a party of soldiers arrived, and, leaving the privates outside, entered the manse with the officers. Rudely accosting Mr Guthrie, he told him that the bishop and committee, after much lenity shown to him for a long time, were constrained to pass the sentence of suspension against him for not keeping presbyteries and synods with his brethren, and for his unpeaceableness in the church, of which sentence he was appointed to make public intimation unto him, and for which he had a commission under the Archbishop of Glasgow's hand. Mr Guthrie answered—"I judge it not convenient to say much in answer to what you have spoken; only whereas you allege there hath been much lenity shown toward me—be it known unto you, that I take the Lord for a party in that, and thank him for it; yea, I look upon it as a door which God opened to me for preaching this gospel, which neither you nor any man else was able to shut,

till it was given you of God. And as to that sentence passed against me, I declare before these gentlemen—the officers of the party—that I lay no weight upon it, as it comes from you or those who sent you: though I do respect the civil authority who, by their law, laid the ground for this sentence; and were it not for the reverence I owe to the civil magistrate, I would not surcease my preaching for all that sentence. And as to the crimes I am charged with, I did keep presbyteries and synods with my brethren; but I do not judge those who now sit in these to be my brethren, but men who have made defection from the truth and cause of God: nor do I judge those to be free or lawful courts of Christ that are now sitting.

“And as to my unpeaceableness, I know I am bidden follow peace with all men, but I know also I am bidden follow it with holiness; and since I could not obtain peace without prejudice to holiness, I thought myself obliged to let it go. And as for your commission, to intimate this sentence, Sir, I here declare I think myself called by the Lord to the work of the ministry, and did forsake my nearest relations in the world, and give up myself to the service of the gospel in this place, having received an unanimous call from the parish, and been tried and ordained by the presbytery; and I bless the Lord he hath given me some success, and a seal of my ministry upon the souls and consciences of not a few that are gone to heaven, and of some that are yet on their way to it. And now, Sir, if you will take it upon you to interrupt my work among this people, as I shall wish the Lord may forgive you the guilt of it, so I cannot but leave all the bad consequences that follow upon it, betwixt God and your own conscience. And here I do further declare before these gentlemen, that I am suspended from my ministry for adhering to the covenant and work of God, from which you and others have apostatized.”

At this the curate interrupting him said, that the Lord had a work before that covenant had a being, and that he judged them apostates who adhered to that covenant; and that he wished that not only the Lord would forgive him (Mr Guthrie,) but if it were lawful to pray for the dead—at which expression the officers and soldiers burst into laughter—that the Lord would forgive the sin of this church these hundred years bygone. “It is true,” answered Mr Guthrie, “the Lord had a work before the covenant had a beginning, but it is as true that it hath been more glorious since that covenant; and it is a small thing for us to be judged of you in adhering to

that covenant, who have so deeply corrupted your ways, and seem to reflect on the whole work of reformation from popery these hundred years bygone, by intimating that the church had need of pardon for the same.” Then directing himself to the soldiers—“As for you, gentlemen, I wish the Lord may pardon you for countenancing of this man in this business.” “I wish we may never do a greater fault,” answered one of them scoffing. “A little sin may damn a man’s soul,” Mr Guthrie gravely replied. He then called for a glass of ale, and, after craving a blessing, drank to the officers, who, having been civilly entertained, quietly left the house and went to the church, where the curate executed his office without disturbance, except from a few boys, whom the soldiers easily chased away.^[44]

- ⁴⁴. This account of Mr Guthrie’s deposition is translated from a paper drawn up at the time by himself, and preserved by Wodrow; and it exemplifies a conduct in all respects becoming a Christian minister. Mr Blackadder’s is of a similar description; and, had we equally authentic and particular relations of the proceedings in other cases, I have no doubt a majority would be found not less worthy of our cordial approbation. Obedience to lawful authority, where it did not interfere with duty to God, was both inculcated and exemplified by the covenants. Frequently the violent and outrageous conduct of the soldiers caused tumults, and sometimes the natural and honest feelings of the people got the better of their prudence, but all was charged upon the covenants; and when provoked past human endurance, if they expressed only a just resentment, they were seditious despisers of lawful authority! as if it had been impossible for lawful authority ever to become tyrannical, and so tyrannical, as to release men from their obligations to obey.

Another instance was, Andrew Donaldson of Dalgetty, described “as singular for a heavenly and spiritual temper,” and one who had also been much blessed in his ministry. Through the interest of the Earl of Dunfermline, Lord Privy Seal, he had been allowed to continue in his parish till this year, when the Earl being called to London, Archbishop Sharpe urged the Bishop of Dunkeld to depose him. He accordingly summoned Mr Donaldson to attend his clerical duty under pain of suspension; but, for reasons similar to those of Mr Guthrie, he declined attending the presbyteries or owning the bishop’s authority, and was in consequence (October 4th) formally deposed, “in the name, and by the authority of Jesus Christ, and with the consent of all his (*i. e.* the bishop’s) brethren, not only from his charge at Dalgetty, but from all the parts of the ministerial function within any diocese of the kirk of Scotland.” By his prudence, Mr Donaldson prevented any disturbance—for his affectionate people were sufficiently disposed to have made resistance—and even prevailed upon the military

deputation, who came with the curate to displace him, to suffer him to preach and take farewell of his weeping congregation who had assembled. Dunfermline, upon being apprised of the whole before he left London, applied personally to the king, and procured his warrant to present Mr Donaldson to Dalgetty during life, which he brought to Scotland with him; and, showing it to the primate, complained that he had taken advantage of his absence to deprive him of a minister for whom he had so high a value. Sharpe, dissembling his anger, apologized, and, with many professions of regard for the Earl, promised obedience to his majesty's commands, only requesting, as a favour, that the Earl would do nothing in it for three weeks, till he got the young man now settled at Dalgetty provided for. To this his lordship consented, supposing, as a matter of course, that Mr Donaldson would then be restored. But the archbishop in the interim, by his interest at court, got an order under the royal sign manual, forbidding all "outted" ministers to return to their charges, sent down express, long before the three weeks expired. Dunfermline felt sufficiently fretted at the cheat, but there was no remedy.

Field-preaching continuing on the increase in the west, in the south, and in Fife, several of the ministers, at the instigation of Archbishop Burnet, whose province they chiefly invaded, had been summoned before the council and endured vexatious and expensive prosecutions; others, who were more active and conspicuous, who knew that no defence they could offer would prove availing, chose rather to allow sentence to pass in absence than willingly to desist from proclaiming the gospel; and being determined in this to obey God rather than man, they persisted at their peril, in spite of acts of parliament and council, to exercise their ministry wherever they could find opportunity. Deprived of their livings and driven from their homes, they could furnish little spoil to the persecutor, but they were most affectionately received into the houses of their friends, who carefully provided for their safety; and their sermons, of which intelligence was easily communicated, were attended by numerous and attentive congregations. That they should thus elude the grasp of their persecutors, and be followed by the most respectable of the country population, was irritating to the managers and galling to the prelates. But many of those who protected them were possessed of property; and as they were now made liable by law for hearing the gospel, the council began to turn their attention to this lucrative branch of oppression.

William Gordon of Earlston soon attracted their attention. Descended from an ancient family, distinguished in the annals of the Reformation, he, from his childhood, had attached himself to the people of God, and in early life enjoyed the friendship of Rutherford, but does not appear to have courted notice till persecution dragged him into view. When the commission was sent to Galloway to inquire into the disturbances at Irongray, they wrote to him requiring him to take an active part in the settlement of a curate, presented by the Bishop of Galloway, to the church of Dalry. This he respectfully declined, because he could not do it with a good conscience, as what did not tend to God's glory and the edification of his scattered people; and, also, because he, as patron of the parish, had legally, and with the consent of the people, appointed already a truly worthy and qualified person and an actual minister to that charge. For this "seditious carriage" he was called before the council, but they do not appear to have found that his conduct amounted to a punishable crime, and therefore, on the 24th November 1663, he was summoned upon the more comprehensive accusation of keeping conventicles and private meetings in his house; and, on the 1st of March this year, he was found guilty, upon his own confession, of having been one at three several conventicles, when Mr Gabriel Semple, a deposed minister, preached—one in Corsack wood, and two in the wood of Airds; of hearing Mr Robert Paton, likewise a deposed minister, expound a text of Scripture, and perform divers acts of worship in his mother's house; and of allowing Mr Thomas Thomson, another of the same kind, to lecture in his own house to his family on a Sabbath day—for these offences, and because he would not engage never to repeat them, he was banished forth of the kingdom, not to return under pain of death! Besides all these various methods of harassing the Presbyterians, Sir James Turner, during this year, continued his missionary exertions with uniform persevering diligence, only increasing in severity, as an unlicensed, unresisted soldiery ever do.

Several political changes took place in the course of the year that require to be noticed, although they had no influence in stopping or altering the tide of persecution, which, being directed by the prelates, particularly the two archbishops, continued to roll on with accumulating violence. The Earl of Glencairn died on the anniversary of the king's restoration. He was carried off rapidly by a fever, believed to have been produced or exasperated by the treatment he received from Sharpe, and which he could find no opportunity

to resent. In his last moments, he earnestly desired the assistance of some Presbyterian ministers; but before one could be procured, he was incapable of deriving any benefit or comfort from their spiritual instructions or devotional exercises—a circumstance neither uncommon among the noblemen of that time nor strange; for, when men who had been religiously educated, and had, for the sake of worldly ambition or licentious pleasure, apostatized from their early profession, came to encounter the solemnities of a deathbed, if the conscience has not been altogether seared—a still more awful state—the partial knowledge they had acquired would often awaken remorse for having forsaken the guides of their youth, and lead them, when perhaps too late, to seek those consolations they had despised, amid the hurry of business or in high-day of pleasure and of health. Rothes, about the end of the year, was made keeper of the great seal, which Sharpe, according to Burnet, had solicited. Sir John Fletcher was removed from the office of lord advocate, and Sir John Nisbet appointed in his room. In the month of August, Sharpe and Rothes went to court, whence they returned in October—Rothes loaded with civil appointments, and in addition named commissioner for holding the national synod—a council which the primate, who could bear no rival near the throne, continued effectually to prevent being ever assembled.

BOOK V.

JANUARY, A.D. 1665-1666.

Partial moderation of the King—Sir James Turner's campaign through Kirkcudbright and Galloway—Unpaid fines levied—Students' oaths—All meetings for religious purposes forbid—Quietude of the country—Proclamation of the Council—Apologetical relation—Sir James Turner's third campaign extended to Nithsdale—Visits Mr Blackadder at Troqueer—More troops raised—Rigorous acts more rigorously enforced—Rising of the persecuted—They gather strength—Their operations—Defeated at Pentland—Prelatic revenge—Testimony of the sufferers—Torture introduced—Nielson of Corsack—Hugh M'Kail—Executions in Edinburgh and the west country—William Sutherland—Executions at Ayr.

Prelacy, now fenced round with all the forms of law, and supported by all the civil and military authorities, wanted only the concurrence of the people to have become the permanent, as it was the predominant, religion of Scotland; and so fickle is the multitude—so little does real principle take hold on the minds of the mob of mankind—that a little moderation in the use of their power, by the prelates, seemed only wanting to have induced the bulk of the congregations to return to their parish churches, and to have sat down quietly under the ministrations of the curates and the form of Episcopacy. A contemporary Presbyterian writer says—"Truly, at this time the curates' auditories were reasonably throng: the body of the people, in most places of Scotland, waited upon their preachings; and if they would have been content with what they had, in the opinion of many, they might have stood longer than they did; but their pride vowed they would be more glorious and better followed than the Presbyterians, and because respect would not do it, force should."^[45]

⁴⁵. Kirkton, p. 221.

Much and justly as the king and courtiers have been blamed for the perfidious manner in which Episcopacy was re-introduced into Scotland, and for the establishment of despotism upon the ruins of a free constitution, solemnly approved and sanctioned both by his present majesty and his “martyred” father; yet in this year, at least at the commencement, softened perhaps by the state of the nations, they showed no disposition to proceed to extremities had they not been pushed on by the prelates.

Charles, by his mean subservience to France, had plunged the country into a ruinous war with Holland—an awful pestilence had almost desolated the city of London—while an unusually severe winter had interrupted all rural labour, till March threatened to add famine to the list of plagues. These judgments, calculated to solemnize the mind, and give weight to public instruction, were improved by the non-conforming ministers to rouse the attention of their hearers to their own sins and the sins of the people among whom they dwelt; and the general open apostacy from God which had accompanied the general defection from the national religion, was too palpable to avoid being noticed in the catalogue of crimes that had drawn down divine vengeance. These national visitations were, in some degree, subservient to the preservation of the Presbyterian cause, by impressing the guilt of apostacy more deeply on the minds of the serious, and even recalling the attention of the careless, while the public calamities and disgrace occupied the attention of the king and English government, and perhaps softening their rancour for the time, rendered them less anxious about pursuing their labours of religious persecution.

Although, however, government did not actively interfere to urge on the prosecution of ministers or frequenters of conventicles, the curates and their assistants, the troopers, continued their exertions; and Sir James Turner opened another campaign in the south and west, scouring the country and besieging the churches with a success and renown not unworthy his former fame. But his commission this year was extended; for, dreading the desperation to which the insulted peasantry might be driven, orders were issued for disarming the south and west, under pretence that the fanatics had an intention of joining the Dutch! As these districts had been always the most zealous in the cause of the covenants, so they were likewise the best supplied with arms,^[46] and were, in an especial manner, the objects of the prelates’ aversion and dread. When they had got them deprived of arms,

therefore, the next step was to deprive them of leaders; and this was effected by an arbitrary order from the Commissioner, to arrest the principal gentlemen in the country who were known to be unfriendly to Episcopacy, and, without accusation or trial, to confine them prisoners in the Castles of Edinburgh, Stirling, and Dumbarton. Among the gentlemen thus summarily proceeded with, were Major-General Robert Montgomerie, brother to the Earl of Eglinton; Sir William Cunningham of Cunninghamhead; Sir George Maxwell of Nether Pollock; Sir Hugh Campbell of Cesnock; Sir William Muir of Rowallan; Major-General Holborne; Sir George Munro; Colonel Robert Halket; Sir James Stuart, late provost of Edinburgh; Sir John Chiesly of Carswell; and Dunlop of Dunlop, &c. Yet arbitrary though these proceedings were, perhaps, upon the whole, they may be deemed providential, as, had any insurrection taken place while their leaders were at liberty and the people armed, the struggle might have been protracted—much bloodshed ensued—and the final result been far less propitious to the country and cause of religious liberty.

- [46.](#) The Scottish peasantry had always been accustomed to keep arms, and when summoned to serve in the militia, each provided his own; so that, besides the indignity of being deprived of their weapons, the taking them away without compensation was an act of robbery.

A proclamation for levying the fines imposed by Middleton was immediately planned, with such modifications as evidently showed that not any disloyalty in the parties, but their sincere, tried attachment to the free constitution of their country in church and state, and their conscientious adherence to the religion in which they had been educated, were the delinquencies it was intended to punish. The term of payment for the first half was enlarged to such as had not already paid it, till the first of December; and the second moiety was to be remitted to all who, upon paying the first, should take the oath of allegiance and subscribe the declaration in the express words of the act of parliament—conditions which no true Presbyterian could comply with, and which therefore drew a distinctive line between those who disregarded, and those who feared, an oath; exposing the latter to all the penalties of the various enactments with the expenses of collecting them—a new and no trifling addition to the principal, and which was also intrusted to the military to exact.

Unnecessarily multiplying oaths is a deep species of criminality, of which the rulers of lands called Christian take little account, although nothing

tends more to demoralize a people. The prelatie rulers of Scotland seemed to delight in it, and this year introduced a most pernicious practice, afterwards improved upon, of forcing students to take the oaths of allegiance and supremacy before they could obtain an university degree; and thus initiated them into the habit of taking oaths, about the propriety of which some of the wisest and best men in the land were divided, and concerning which they could not be supposed to be very accurately informed.

Towards the end of this year, the privy council resumed its cruel activity; and the primate being president, the High Commission was allowed quietly to demit, while its spirit was effectually transfused into the other. December 7th, an act was issued extending the severities of all former acts against Presbyterian ministers, to those who had been settled before 1649, who had relinquished their ministry or had been deposed; and all heritors were forbid to give them any countenance in their preaching or any part of their ministerial office. But, as the general opinion of the more moderate among the politicians was, that the change in the form of religion had been too sudden, that it ought to have been more gradual, to meet the prejudices of the older ministers, whose only crimes consisted in absenting themselves from the church courts—this act was accompanied by another, establishing a new kind of presbyteries, under the name of “meetings for exercise,” which was intended to leave without excuse the adherents of the abrogated system, as men who chose to differ from the present establishment from motives of sedition, and who refusing the substance because it was enacted by the king, would fight for a shadow from mere humour. This species of mock-presbyteries was specially declared to emanate from the royal supremacy, and was to consist of such of the curates as the bishops should judge qualified, who were to convene for exercise and assist in discipline as they should direct them; but the whole power of ecclesiastical censure, except parochial rebukes, was reserved to the bishop, who alone could suspend, deprive, or excommunicate. A kind of caricature session was at the same time brought forward, which was afterwards turned into an instrument of persecution—the established ministers were empowered to make choice of proper persons to assist them in the exercise of discipline, who, if they refused to obey his summons, were to be reported to the bishop; and if they continued obstinate, given up to the secular arm to be prosecuted as the heinousness of the case might require.

The usual strain of the curates' pulpit services consisted of a quarter or half-hour's harangue upon those moral duties their lives set at defiance, or in abusing or distorting doctrines they did not understand. Such of the people, therefore, as had the least relish for gospel truth, and who preferred the faithful sermons and earnest manner of their late pastors, to the insipid discourses listlessly read by the present incumbents, continued to follow after the private meetings and public ministrations of the former. The council, in consequence, determined that all such seditious practices should be put down, and, in a virulent proclamation of the same date, strictly charged and commanded all public officers to disperse every meeting assembled under the pretence of the exercise of religion, of whatever number they might consist, except such as were allowed by authority, stigmatizing them as the ordinary seminaries of separation and rendezvouses of rebellion, and subjecting every person who should be present at or give the smallest countenance to them, to the highest pains inflicted by law upon seditious persons.

Enormous as the oppression and injustice which desolated the south and west of Scotland had been, the people had remained quiet. They had seen their civil and religious liberties swept away, the ministers they loved scattered, and hirelings they detested settled in their stead. They had groaned beneath the yoke of tyrannous enactments, the insolence of lordly prelacy, and the licentiousness of military exaction, and yet had abstained from any acts of rebellion. But their patient endurance only encouraged the perpetration of new mischief, and their unexampled loyalty was abused as the occasion of fresh aggression. For, notwithstanding all that has been said about the disloyalty, faction, and refractory spirit of the Scottish covenanters, they were men of thorough monarchical principles, and possessed a more than ordinary reverence and attachment for their royal family, under circumstances that would have justified resistance long before they had recourse to the last remedy. Affairs, however, had now reached that crisis in which their duty to their God and their duty to their king were placed in opposition, and as Christians no choice was left. To have deserted the assembling of themselves together for religious worship and edification, because their rulers forbade it, would have been to acknowledge a regal power over the conscience which neither Scripture nor nature allows; and as yet no disturbances had occurred at any of those meetings, which were peaceably conducted at a distance from places that could reasonably give

offence—in the open air, on hills, and in woods, and sometimes under the covert of night, where the ordinances of the Lord were administered in the way of his appointment, and the word of his gospel preached in simplicity and truth. They therefore continued; and, in spite of the tyrannical edicts of their rulers, like the Israelites of old, did not only meet but multiply. John Welsh, minister of Irongray, from the first betook himself to the fields, and, with his co-presbyter Mr Gabriel Semple, laboured constantly within the bounds of his presbytery, officiating alternately in Corsack-wood and the surrounding country, frequently acting as decoys to their persecutors, one of them being actively engaged in preaching, while the curates with their beagles were in full scent after the other in an opposite direction. For upwards of a year, Mr Welsh is asserted to have “preached at least once every week in the parish of Irongray.” Afterwards he extended his labours to the sheriffdom of Ayr; and on Galston moor and various other places, held large conventicles, where he baptized many children. Gabriel Semple was not less zealous. He held large “unlawful assemblages” at Achmannock, Labrochhill, besides many others, not only in the sheriffdom of Ayr, but in Nithsdale, and within the stewartry of Kirkcudbright. Mr John Blackadder oftentimes convened great numbers of the parish of Glencairn and the neighbouring parishes, sometimes to the number of a thousand. Mr Alexander Peden—who had been expelled from New Glenluce, and was especially obnoxious for his exertions and popularity in the west—held meetings under cloud of night and in the winter season; these being now rendered imperative, as the increased diligence of the archbishop and his military satellites forbade more open assemblages. Encouraged by their example, many others ventured to the high places of the field; and their united active endeavours promised to supply, in the districts of Galloway, shire of Ayr, and stewartry of Kirkcudbright, in some degree, the want of a regular Presbyterian ministry.



M'. Welsh baptizing children anno 1665

Vide page [133](#)

The council, now entirely under the direction of the primate, on the 25th of January 1666, promulgated another thundering proclamation, in which, reiterating their falsehoods, and re-asserting “that conventicles, and unwarrantable meetings, and conventions, under pretence and colour of religion and exercise thereof, being the ordinary seminaries of separation and rebellion, are altogether unlawful,” they denounced the eminent servants of God mentioned before, who were said to convene, armed with swords and pistols, and some of them to ride in disguise up and down the country in gray clothes, together with Mr John Crookshanks, who avowedly kept by him “that book called Buchanan De Jure Regni, which he had translated out of Latin into English;” and John Osburn in Keir, who acted as officer for giving notice to the people of these unlawful meetings; and in regard they were latent and kept themselves out of the way that they might not be apprehended, and had no certain dwelling-place. They were charged at the market-crosses of Kirkcudbright, Dumfries, and Edinburgh, and at the shore and pier of Leith, “to compear personally before the council to answer to the premises,” which was, in other words, to surrender themselves and be silenced, or sent to join their brethren in exile.

A little before this the cause of the sufferers had been advocated in “An Apologetical Relation of the Particular Sufferings of the Faithful Ministers and Professors of the Church of Scotland, since August 1660,” attributed to John Brown, late minister of Wamphrey, and one of the banished—a performance written in a style of elegance superior to many of the publications of that day, and with a force of argument that defied reply, and which was peculiarly galling to the managers, as it convicted them of the most flagrant apostacy. The facts were too recent to admit of denial, while the cause which the persecuted suffered for defending, continued the same, as when it had been pronounced by their persecutors themselves the cause of their king, their country, and their God! An exposure more complete was never perhaps exhibited to the world; and the sting was the more tormenting, because it was true. The council felt it, and answered it in a becoming manner by another proclamation, in the beginning of February, ordering it to be burned by the hands of the common hangman, “to vindicate,” as they said, “the honour of this kingdom, and to witness and

declare, that such principles and tenets as are contained in the said pamphlet, are detested and abhorred by them. With certification, that whosoever should retain any copies in their possession, should be liable in the sum of two thousand pounds, Scots money, to be exacted without any favour or defalcation; and whoever should contribute to disperse it, were declared liable to the punishment due the venders of seditious libels!" And still more strongly to mark their sense of its merit, on the very day this proclamation was issued, before the book had been declared seditious, or keeping it in possession a crime, the venerable relict of James Guthrie and her daughter were brought before the council, and because they refused to give any information respecting the author, they were sentenced to banishment to Zetland, and to be confined there during pleasure. But the sentence which, it is likely, clerical vengeance had dictated, was, upon a petition from the gentlewomen, referred to the Commissioner, and by him remitted.

Winter gave some short respite to the Presbyterians, who as yet were suffered, without much interruption, to attend their conventicles amid the inclemencies of the weather; but, with the return of spring, Sir James Turner was dispatched to commence his third campaign. Formerly, Kirkcudbright and Galloway had been the principal seat of his operations, now they stretched over Nithsdale; nor was his circuit more extended than were his severities increased. The exactions in his former expeditions had been chiefly confined to the common people, now they were imposed upon the gentlemen of the country; and the curates, attended by files of soldiers, fined at their discretion all whom they considered inimical, and of such sums as they judged proper. The landlord was compelled to pay if his wife, children, servants, or tenantry, were not regular church-goers. The tenant was mulcted when his landlord withdrew from public worship—if the curate's services deserved the name—nor did it avail him, although both himself and his family were as punctual as the parson. The aged and the sick, the poor, the widow, and the fatherless—all were compelled to liquidate the church-fines; and even the beggar was forced to lay down his pittance to satisfy the unhallowed demand. From mere wantonness, the ruffian soldiery would eject from their dwellings the non-compliants—driving husband from wife, and wife from husband—snatch the meat from their children to give it to their dogs—then quarter in their houses till they had wasted their substance, and finish by committing to the flames what

they could not otherwise destroy. Thus many respectable families, reduced to utter indigence, were scattered over the country, not only robbed of their property, but deprived of the means of procuring subsistence. Complaints were useless or worse—they were either disregarded, or answered by additional outrage.

The following instances will give some faint idea of the nature of these visitations. John Nielson of Corsack was a proprietor to a considerable extent in the parish of Partan in Galloway—a gentleman of undoubted loyalty, whose only crime was non-conformity. When Sir James Turner came into that county last year, he was instantly delated by the curate for non-attendance—aggravated, however, by his having shown hospitality to Mr Welsh—fined an hundred pounds Scots, and sent prisoner to Kirkcudbright, besides having four, six, or ten troopers quartered on him constantly, from the beginning of March to the end of May, to each of whom he paid half-a-crown per day, in addition to their board and what they might abuse. This year, for the same offence, he had six soldiers quartered upon him from March to the middle of June, when he was forced to leave his house and wander without any certain dwelling-place, while the villanous banditti demolished his household stuff, and rioted upon his provisions. When these were exhausted, they turned his lady and children out of doors, and forced his tenants to bring them sheep, lambs, oatmeal, and malt, till they also were nearly ruined, and then they drove the whole of the black cattle upon the estate to Glasgow and sold them!

Mr Blackadder being under hiding, the Bishop of Galloway ordered Turner to apprehend him. His second son, then a boy of ten years old, has left the following artless and affecting account of Sir James' visit to the manse:—

“About this time, winter 1666, Turner and his party of soldiers from Galloway came to search for my father, who had gone to Edinburgh to seek about where he might live in safety. These rascally ruffians besett our house round about two o'clock in the morning, then gave the cry—‘Damned Whigs open the door,’ upon which we all got up, young and old, excepting my sister, with the nurse and the child at her breast. When they came in, the fire was gone out: they roared out again, ‘Light a candle immediately, and on with a fire quickly, or els we’l roast nurse, and bairn, and all, in the fire, and mak a braw bleeze.’ When the candle was lighted, they drew out their

swords, and went to the stools, and chairs, and clove them down to mak the fire withall; and they made me hold the candle to them, trembling all along, and fearing every moment to be thrown quick into the fire. Then they went to search the house for my father, running their swords down through the beds and bedclothes; and among the rest, they came where my sister was, then a child, and as yet fast asleep, and with their swords, stabbed down through the bed where she was lying, crying, ‘Come out rebell dogs.’ They made narrow search for him in all corners of the house, ransacking presses, chests, and flesh-stands. Then they went and threw down all his books from the press upon the floor, and caused poor me hold the candle all this while, till they had examined his books; and all they thought Whiggish, as they termed it—and brave judges they were!—they put into a great horse-creel and took away, among which were a number of written sermons and printed pamphlets. Then they ordered one of their fellow-ruffians to climb up into the hen-baulks where the cocks and hens were, and as they came to one, threw about its neck, and then down on the floor we’t, and so on, till they had destroyed them all. Then they went to the meat-ambry and took out what was there; then to the meal and beef barrels, and left little or nothing there. All this I was an eyewitness to, trembling and shivering all the while, having nothing but my short shirt on me. So soon as I was relieved of my office, I begins to think, if possible, of my making my escape, rather than to be burned quick as I thought and they threatened. I goes to the door, where there was a sentry on every side standing with their swords drawn—for watches were set round to prevent escape. I approached nearer and nearer by small degrees, making as if I were playing myself. At last I gets out there, making still as if I were playing, till I came to the gate of the house; then, with all the little speed I had—looking behind me now and then to see if they were pursuing after me—I run the length of half-a-mile in the dark night, naked to the shirt. I got to a neighbouring toune, called the Brigend of Monnihyvie, when, thinking to creep into some house to save my life, I found all the doors shut and the people sleeping; upon which I went to the cross of the toune, and got up to the uppermost step of it, and there I sat me down and fell fast asleep till the morning. Between five and six a door opens and an old woman comes out, and seeing a white thing upon the cross comes near it; and when she found it was a little boy, cries out, ‘Jesus save us, what art thou?’ ‘With that I awaked and answered, I am Mr Blackadder’s son.’ ‘O, my puir bairn, what brought thee here.’ I answeres,

‘there’s a hantle of fearful men wi’ red coats has burnt all our house, my brother, and sister, and all the family.’ ‘O, puir thing,’ says she, ‘come in and lye down in my warm bed’—which I did, and it was the sweetest bed I ever met with.”

After this the whole family was dispersed. “We all behaved,” continues the narrator, “to scatter; one neighbour laird in the parish taking one child, and another. I was sent to a place about a mile off, called the Peel-toune, who afterwards, likewise, were quite ruined and all taken from them—the poor mither begging but one lamb for meat to the bairns, but could not get it. The meat they were not able to eat they destroyed, threw down the butter-kirns, and hashed down the cheese with their swords among the horses’ feet.”

Besides all other exactions, the parliamentary fines which had hung so long suspended over the heads of the gentry, were ordered to be levied with the utmost rigour from all who would not take the oath of supremacy and subscribe the declaration; but to those who would, the one-half was remitted, as had been proposed the preceding year. This fine, like the rest, was collected by troopers, whose charges, like those of modern lawyers, were always as much and frequently more than the original debt. The only consolation the sufferers had, was, that their plunder did not go to enrich those who were the authors of the robbery. Neither Middleton’s party, who imposed, nor Lauderdale’s, who uplifted, the mulct, were allowed to pocket a farthing of the proceeds, which were ultimately applied to support that worst and most dangerous instrument of tyranny—a standing body of household troops.

Sharpe, who assuredly was the cause of much of his country’s calamity, and who was often execrated as almost the origin of the whole, has usually got the credit of this arrangement. It is well known that, although an imperious, he was by no means a fearless, character, and it is therefore not unlikely he may have been the author of these precautionary measures which the country viewed with so much detestation. At any rate, about the time that he was in London, the affair was matured, and two regiments of foot and six troops of horse were ordered to be raised, of which Thomas Dalziel of Binns—a rude soldier who had once owned the covenant, and afterwards improved his manners in the Russian service—was appointed Lieutenant-General, with William Drummond, Lord Madderty’s brother,

who had gone through the same course of education as Major-General. The troops of horse were disposed of among the nobility. This army was to be maintained from the fines, of whose application the General was to give an account; but from the manner in which they were collected, and the character of the gatherers, the public was little benefited by this revenue, and the maintenance of the troops fell eventually upon the common exchequer.

Reinforced by these mercenaries, the council more strictly enjoined, by a fresh proclamation, (October 11,) submission to the acts of parliament against separation and resistance to ecclesiastical authority, requiring masters to oblige their servants, landlords their tenants, and magistrates the inhabitants of the several burghs, to attend diligently at the parish churches and partake regularly of the ordinances; and no one was to be retained as a servant, kept as a tenant, or suffered to dwell as a citizen, after the parish priest intimated his disobedience. Mandates so wantonly oppressive, which, without any rational object, were calculated to create crime by leading either to a violation of the consciences of the lieges or the laws of the land, seem to carry on their face an incitement to insurrection; and when the manner in which they were put in execution, among a sturdy peasantry, is remembered, it is truly astonishing that they did not excite a spirit of insubordination, general and deadly, and in truth produce those very outrages of which the calumniated Presbyterians were falsely accused. Many were driven from their homes and utterly ruined, who, merely from political motives, or from a desire to see something like decency in their clergymen, or from an aversion to have ministers forced upon them whom they did not like, had opposed the curates and subjected themselves to the fines; others, men of respectable rank in life who themselves had conformed, saw their estates ruined and their families dispersed, because some one, over whom they could have no possible control, would not attend the wretched sermonizing of a worthless parson, or take the sacrament from his polluted hands; besides those who, from a love to the truth and a sincere reverence for their tenets, deemed it a point of duty to withdraw from the ministration of men who neither understood nor preached the first principles of the gospel. Yet, notwithstanding all these terrible encroachments upon their liberty and property, notwithstanding these authorized violations of all that was dear or sacred to them as men or as Christians, they had suffered, they had complained, but they had not

rebelled, when an incidental circumstance led to an insurrection, in perfect conformity with the spirit, and even authorized by the letter, of the ancient Scottish constitution before it was destroyed at the Restoration, which hardly deserves the name of rebellion.

Mr Allan of Barscob, and three other of these unfortunate fugitives who had been forced by want from their places of retreat among the mountains or mosses of Galloway, had ventured, November 13th, to the Clachan of Dalry to procure some provisions. Upon the high road, a little from that place, they accidentally met some soldiers driving a few neighbours before them, to compel them to thresh out a poor man's corn for the payment of his church fines. They naturally sympathized with the sufferers, but passed on. While seated, however, at breakfast in the village, they were informed that the soldiers had seized the old man in his house—stripped him naked—and were threatening to place him on a redhot gridiron because he could not produce the money. Leaving their meal unfinished, immediately they repaired to the spot; and finding the poor man bound, desired the soldiers to let him alone. The soldiers in return demanded how they dared to challenge them, and drew their swords. A scuffle ensued, in which one of the others discharged a pistol and wounded a corporal with some pieces of a tobacco pipe—the only ball they had among them when the military surrendered themselves prisoners, and the man was liberated.^[47]

⁴⁷. Sir James Turner says, that the corporal affirmed he was shot, “because he refus’d to sign the covenant.” The corporal himself, in a petition to the privy council, says, “ten pieces of tobacco pipes were, by the surgeon’s care, taken out of his bodie.” *Turner’s Memoirs*, p. 148. *Kirkton’s Hist.* note, p. 230.—Sir James in his account of the transactions which took place after his seizure, and till the battle of Pentland Hills, is frequently inaccurate, as might be expected, both from his situation, which prevented distinct information except about what he saw, and his prejudices and interest which led him to pervert even that. Some instances will be given afterwards in which he is palpably, if not designedly, at fault.

Thus fairly engaged, to retreat was as dangerous as to proceed. They knew they would be denounced as rebels and subjected to dreadful reprisals. A party of their friends at Balmacellan, when they heard of the affair, knowing they too would be involved, seized and disarmed sixteen soldiers who were quartered there, one, who made resistance, being killed; and the whole country taking the alarm, their numbers soon swelled to about fifty horse tolerably mounted, and, perhaps, double that number of foot, miserably armed with pitchforks, scythes, cudgels, and a few pikes,

and swords. Turner's forces were scattered over the country, they therefore, without allowing them time to collect, marched direct to Dumfries, where, on the morning of the 15th, they surprised him, who having only heard some indistinct account of the scuffle, was preparing to go and chastise the culprits. The horse went straight up to head-quarters—the foot remaining without the town; and when Sir James appeared at the window, Nielson of Corsack told him, if he would quietly surrender he should receive no harm, with which he complied; and that gentleman preserved him from personal injury, which some of the party seemed anxious to inflict.^[48]

48. “While they were speaking, the Commander comes up, and seizing Turner presented a pistol or carabine to have shot him, but Corsack interfered, saying,” “you shall as soon kill me for I have given him quarters.” *Crichton's Life of Blackadder*, p. 139.

The person who assumed the command was one Andrew Gray, said to be an Edinburgh merchant whom no body knew, but whose authority all obeyed without inquiry, so totally were they unprepared for any regular rising, and as little was he qualified for the situation into which he had thrust himself. They seized the General's papers and trunks, but found little money; himself they brought away in his night-gown and slippers, and placing him upon a little pony carried him to the cross, where, with much formality, they drank the king's health to evince their loyalty—a ceremony which some of their friends thought they might as well have omitted, and for which they received neither credit nor thanks. They then carried him back to his lodgings, and ordered him to make ready and go with them. That night they rested at Glencairn. Here they were alarmed by a report of the approach of the Earl of Annandale and Lord Drumlanrig, and set off hurriedly, carrying their prisoner with them under a strong guard. Next night they reached Carsphairn where they remained; and here their redoubtable Captain Gray left them, not without violent suspicions of having carried a considerable sum of money along with him: yet more probably he retired from fear or a sense of his own utter incapacity,^[49] but the numbers increased, and a kind of committee consisting of Maclellan of Barscob, Nielson of Corsack, and Mr Alexander Robertson, a preacher, succeeded to the command.

49. This was on the Friday. On the Monday following he was found by Colonel Wallace near Machline in a situation very unlike that of a person possessed of much money. “About that house I saw two men, one whereof I perceived was Andrew Gray. He was in so uncouth a posture, with such a beggar-like habit, and looking with such an abashed countenance, I was

astonished and could not speak for a long time. Always he forbids me to be afraid. He tells me the Lord had favoured them with good success in that attempt upon Dumfries; and that, howbeit, after the business was done, many came and owned it that never appeared before, when it was but to be hazarded upon: yet all or most of these gentlemen and countrymen had left it and gone to their houses, as if there had been no more ado: whereupon he had left them to look to his own safety, being in a very insecure condition then, having been the chief actor in the business.” *Wallace’s Narrative of the Rising at Pentland*, p. 391.

Some days before the scuffle at Dalry, Rothes had taken his departure for London, and the chief cares of the government devolved upon the primate, as president of the council—thus called upon to discharge an important political duty at a very delicate conjuncture. One of the bailies of Dumfries who had witnessed the seizure of Turner, immediately proceeded to Edinburgh with information of the rising; and the members of council, who never calculated upon resistance, were surprised and alarmed beyond measure. Next day, they sent off an express to the king with the unpleasant intelligence, who, passing the Commissioner upon the road, furnished his majesty with very unexpected news to salute him with on his arrival. They ordered General Dalziel to march on the following day with as many men as he could muster to the west country, to establish his head-quarters at Glasgow, and thence to proceed to wherever his presence might be most urgently required—the various noblemen of those most interested in these districts, were, at the same time, required to use their every exertion to preserve the peace, and to receive and assist his majesty’s forces—the guards of the town of Edinburgh were doubled, and the names of all strangers ordered to be registered. These measures, the most obvious and requisite, met of course the king’s approval, but a proposal to enforce the subscription of the declaration respecting the covenant upon the heritors of the southern and western shires, was postponed by his desire as unnecessarily exasperating an evil of which they did not yet know the extent. More effectually to protect the capital, the companies of the train-bands were ordered to be filled up by citizens who would willingly take the oath of allegiance, and further promise to maintain his majesty’s authority with their lives and fortunes; such as would not, to be disarmed and their persons secured.

The noblemen of Fife, with their followers, were summoned, and an act of council was passed to put the country in a posture of defence, and all the lieges were ordered to assist the General with all their power. The ferries

across the Forth were at the same time stopped, and even those who passed at Stirling Bridge were to be subjected to a rigid examination. A proclamation also was issued commanding the rebels to lay down their arms, but it was remarked that it contained no offer of pardon; and to desire them to surrender without security, was something like an invitation to confess and be hanged. Some of the nobility felt the degradation of being under an ecclesiastic, and murmured—“Have we none at such a juncture to give orders but a priest?” But they were too wofully spiritless than do more, and they only clanked, sulkily, the fetters themselves had forged.

Intelligence also had been sent by the insurgents to Edinburgh with equal expedition, and a few who were well-wishers to the cause met to consider what was their duty in the present juncture, when, at an adjourned meeting held in Mr Alexander Robertson, a preacher’s lodgings,^[50] they resolved after deliberation and prayer, that it was their duty to assist their poor brethren so cruelly oppressed. One only dissented, Mr Ferguson of Kaitloch, who was not convinced of the propriety of rising at that time. The rest were eager to engage immediately, and as soon as the meeting broke up, Colonel Wallace and Mr Robertson set out for the west to see what could be effected there. Mr Welsh went direct to the countrymen whom he found at Dalmellington; thence he proceeded to gather his friends in the south, while they, buoyed up with the expectation of being quickly and numerously joined, marched forward to Ayrshire, and on the 21st had their general rendezvous at the Bridge of Doon. Wallace’s first disappointment was at Libberton, where, instead of forty stout horsemen, he only met eight; and on his journey by Linton, Dunsire, Mauchline, and Evondale, he found the country, in general, had been taken so completely unawares, that he arrived at the main body with a very slender accession of strength—the ministers remaining quietly in their houses, while the leading Whig gentlemen went to wait upon the General. He had by the way received notice from Cunninghame, that a reinforcement from thence might be procured if they had only a party to encourage and protect them till they got formed; and Captain John Arnott, accordingly, had been sent with forty horse to bring them up, and directed to join next day at Ochiltree.

⁵⁰. *Kirkton*, p. 234. This was a different person from the Alexander Robertson formerly mentioned, though they have been sometimes confounded, owing to the surnames being spelled indifferently Robison or Robertson, both their first names being Alexander, and both being preachers.

Having received information of General Dalziel's arrival at Glasgow, they hastened to Ochiltree, where all their parties were ordered to meet, and where Mr Semple preached while they were collecting.^[51] Afterwards they marshalled their army, named their officers,^[52] and placed their guards. Sir John Cochrane was with Dalziel, and his lady received the leaders who were quartered at the mansion-house very coolly, although she expressed herself not unfriendly to the cause. Here they were joined by Mr John Guthrie, minister of Tarbolton, with some of his parishioners, and Robert Chalmers, a brother of the Laird of Gadgirth's, who brought a report that the Duke of Hamilton was approaching with his troops, and that they had dispatched John Ross with a small party to ascertain the fact. A council of war was then called, at which it was resolved that they should march eastward, as it was impossible to stay where they were, and there was no probability of farther help from the south or south-west districts, and Captain Arnott would bring with him whoever were well-inclined in Cunninghame and Renfrew. Besides, they had an earnest invitation from Blackwood to come to Clydesdale, where he promised to meet them with one hundred men.

51. *Wallace's Narrative*, p. 395. "Sir James Turner has a merrie fact, which he says occurred here. I was lodged that night at the principall alehouse of the toune, where I was indifferentlie well used, and visited by some of their officers and ministers. Most of their foot were lodged about the church and churchyard, and order given to ring bells next morning for a sermon to be preached by Mr Welsh. Maxwell of Monreth and Major Mackulloch invited me to heare that phanatic sermon, for soe they merrilie call'd it. They said that preaching might prove ane effectuell meane to turn me, which they heartilie wished. I answered them that I was under guards, and that if they intended to heare that sermon, it was probable I might heare it likewise; for it was not like my guards would goe to church and leave me alone at my lodgings. Bot to what they spoke of my conversion, I said it wold be hard to turne a Turner. Bot because I found them in a merry humour, I said if I did not come to heare Mr Welsh preach, then they might fine me in fourtie shillings Scots, which was duoble the soume of what I had exacted from the phanatickes. Bot there was no sermon that day, which, undoubtedly, I would have heard, if there had been anie." Pp. 163-4. Afterwards, he has this passage—"This I shall say they were not to learn to plunder, and that I have not seene lesse of divine worship any where, than I saw in that armie of theirs; for thogh at their rendezvouses and halts they had opportunitie enough everie day for it, yet did I never heare any of ther ministers (and as themselves told me there was not so few as two-and-threttie of them, whereof onlie five or sixe convers'd with me) either pray, preach, or sing psalms; neither could I learn that it was ever practised publicklye, except once by Mr Robbison at Corsfairne, ane other time by Mr Welsh at Damellington, and now the third time by Mr Semple at Lanrick, where the lawful pastor was forced to resigne his pulpit to him." P. 169.

52. The officers whose names have been preserved, were—Colonel Wallace, who left a written narrative of the rising at Pentland, and of whom some farther notice will be given; Major Joseph Learmont; Captains Andrew Arnott, John Paton, John Maclellan of Barscob, John Maxwell, younger of Monreith, and Robert Maclellan of Balmagachan; Cornet of Horse, Robert Gordon of Knockbreck; uncertain, Major John M'Culloch of Barholme; Mr George Crookshanks had a command.

Next day they broke up for Cumnock, but were met on the road with the disagreeable intelligence that Ross and his party had been taken prisoners by the Duke, and that the enemy's whole force was at Kilmarnock; in consequence, they continued their route during a violent storm of rain and wind to Muirkirk. The night fell dark, and the road was detestable; yet the men marched forward with spirit, and even their enemy, Sir James Turner, gave them this credit—"I doe confesse, I never saw lustier fellows than these foot were, or better marchers; for though I was appointed to stay in the rear, and notwithstanding these inconveniences, I saw few or none of them straggle." When they arrived late at their quarters, wet as if they had been drenched in water, the poor foot were forced to lie all night in the cold church, without victuals and with but little fire. Here Mr Andrew M'Cormack, a pious Irish minister, known by the name of the "Good-man," came to the Colonel and informed him it was the opinion of Mr Robertson and Mr Lockhart—that, as there was no appearance of any help either from Clydesdale or any other quarter, the business should be followed no farther, but the people dismissed as quietly as possible to their homes, to shift each for himself the best way he could, until the Lord gave some better opportunity. With this advice, which was not at all to the Colonel's liking, he could not of himself comply, but proposed to consult the other leaders who might join before or when they reached Douglas. Thither they arrived on Saturday night, November 24, without any of their expected reinforcements, excepting forty recruits brought by Captain Arnott.

Having quartered the troops, and, on account of an alarm, doubled their guards, a council of war was held, when, after earnest prayer to God, the question was proposed, whether they should disperse or continue in arms? On the one side was stated the strength of the enemy and the small number of their company, the total want of spirit discovered by the country and the tempestuous season of the year, which rendered it unfit for action. On the other, it was replied—that the coming forth to own the people of Galloway was clearly of the Lord, and in that they had done nothing but followed his

call—that numbers had not only urged them, but had solemnly promised also to come forth, and if these should now desert the cause, between them and their master let it be. As for themselves, they believed the Lord could work by few or by many. If he designed the present appearance should prosper, he would send men if necessary; or who could tell but he might honour them to accomplish his end? At all events, the cause they were assured was his; nor would they forsake it, but follow on whatever might be the consequence. Death was all they could endure; and, though they were only to bear their testimony to the truth, that was well worth dying for. It was next proposed, whether they should renew the covenants? On this there was no dispute. They regretted they could not go about that work with the deliberate preparation they deemed necessary for entering into such solemn engagements; but, as the urgency of the case admitted of no delay, and they all understood the nature of the transaction, they determined to prepare for the worst by again dedicating themselves to the Lord in the national bonds, whose obligation they believed to be perpetual, and the renunciation of which they considered as one of the deepest sins of the land. The disposal of their prisoner, as they had no safe place in which to confine him, was then considered. About this they were not so unanimous. Some were for putting him to death as a notorious murderer and bitter instrument of persecution, but others urged that he was a soldier of fortune, acting under a commission, also that he had been promised protection by one of themselves; and it appearing from his papers, though his conduct had been severe, yet that he had not even acted up to his instructions, it was carried to spare him.^[53]

⁵³. “My guards, whereof David Scott, a weaver, was captain, carried me to Bathket, and took up for my quarters the best alehouse.” *Turner’s Mem.*

Hearing that Dalziel was at Strathaven, they decamped early next morning—Sabbath—and marched by Lesmahago to Lanark, where they arrived in the evening, having been joined by Robert and John Gordon, the sons of Alexander Gordon of Knockbreck, with a few others from Galloway. Mr Robertson refused to accompany them farther. On their march, they completed the arranging of their troops, but found themselves wretchedly deficient in officers, there not being above four or five who had ever been in an army before, neither were they fully supplied with ammunition or arms; at Lanark, they caused a general search, but the

country had been too well scoured before, and they found few or none. Notice, however, was given that the covenants would be renewed on the morrow.

When they assembled at the rendezvous for this purpose, they were told the enemy was within two miles, and it was proposed to delay; but as the public avowal of their cause and principles, besides being a solemn religious act of imperative obligation, was the best and only testimony they could exhibit in their circumstances, they determined that nothing but absolute necessity should prevent it. They therefore sent forward an advance of twelve horse, placed guards at the ford, and then deliberately went about the work of the day. The horse were drawn up at the head of the town, where Mr Gabriel Semple and Mr John Crookshanks presided. The foot were ranged in the street, near the tolbooth stairs, upon which Mr John Guthrie stood and preached. Very few except the insurgents attended, so great was the universal terror and depression of the times; but the whole proceedings are said to have been deeply impressive, particularly the address of Mr Semple, from Prov. xxiv. 11, 12. "If thou forbear to deliver them that are drawn unto death, and those that are ready to be slain; if thou sayest, Behold, we knew it not; doth not he that pondereth the heart consider it? and he that keepeth thy soul, doth he not know it? and shall not he render unto every man according to his works?" After sermon, the covenants were read, article by article, and the hearers, with uplifted hands, and apparently with much serious emotion, engaged and vowed to perform. Now in a situation of such peril, and pledged to their country and to their God, could they be other than deeply affected? It was no common ground these witnesses occupied.

About the same time, they emitted the following hurried but well-framed "declaration of those in arms for the covenant 1666," the effect of which was wonderfully, though sadly, impressed upon the religious part of the community, by the remembrance that these men had been allowed to stand alone, and to fall together in the righteous cause; and by the evils which overtook the adherents to the covenants and afflicted the nation for twenty-two succeeding years of persecution.

"The nature of religion doth sufficiently teach, and all men almost acknowledge, the lawfulness of sinless self-defence; yet we thought it duty at this time to give an account unto the world of the occasion and design of

our being together in arms, since the rise and scope of actions, if faulty, may render a thing right upon the matter, sinful. It is known to all that the king's majesty, at his coronation, did engage to rule the nation according to the revealed word of God in Scripture—to prosecute the ends of the National and Solemn League and Covenants, and fully to establish Presbyterian government, with the Directory for Worship—and to approve all acts of parliament establishing the same; and thereupon the nobility and others of his subjects did swear allegiance: and so religion was committed unto him as a matter of trust, secured by most solemn indenture betwixt him and his people.

“Notwithstanding all this, it is soon ordered that the covenant be burned—the tie of it is declared void and null, and men forced to subscribe a declaration contrary to it—Episcopal government, in its height of tyranny, is established—and men obliged by law not to plead, witness, or petition against these things. Grievous fines, sudden imprisonments, vast quarterings of soldiers, and a cruel inquisition by the High Commission Court, were the reward of all such who could not comply with the government by lordly hierarchy, and abjure the covenants, and prove more monstrous to the wasting their conscience, than nature would have suffered heathens to be. These things, in part, have been all Scotland over, but chiefly in the poor country of Galloway at this day; and had not God prevented, it should have, in the same measures, undoubtedly befallen the rest of the nation ere long. The just sense whereof made us choose rather to betake ourselves to the fields for self-defence than to stay at home burdened daily with the calamities of others, and tortured with the fears of our own approaching misery. And considering our engagement to assist and defend all those who entered into this league and covenant with us; and to the end we may be more vigorous in the prosecution of this matter, and all men may know the true state of our cause, we have entered into the Solemn League and Covenant; and though it be hardly thought of, renewed the same, to the end we may be free of the apostacy of the times, and saved from the cruel usages persons resolved to adhere to this have met with. Hoping that this will wipe off the reproach that is upon our nation, because of the avowed perjury it lies under. And being fully persuaded that this league, however misrepresented, contains nothing in it sinful before God, derogatory to the king's just authority, the privileges of the parliament, or the liberty of the people; but, on the contrary, is the surest bond whereby all these are

secured, since a threefold cord is not easily broken, as we shall make appear in our next and larger declaration, which shall contain more fully the proofs of the lawfulness of entering into covenant, and necessity of our taking arms at this time for the defence of it, with a full and true account of our grief and sorrow for our swerving from it, and suffering ourselves to be divided to the reproach of our common cause, and saddening the hearts of the godly—a thing we sorrowfully remember and firmly resolve against in all time coming.”

At this period the number of the insurgents had reached its maximum—more having joined on that day than for three before—supposed to amount to nearly three thousand; and the opinion of many among them was, if they did intend to fight, it would be better to do it in that quarter, where, if defeated, they were among friends, and could more easily find the means of escape, than in the east, where every thing would be against them; but their want of discipline, and want of arms, did not warrant a trial of strength with the king’s forces, who were equal if not superior in numbers and in a complete state of equipment. They were likewise the more encouraged to try the Lothians, as, at this critical moment, they received from Edinburgh pressing letters of invitation to come thither. They chose what eventually proved the most unfortunate for themselves, and that same evening took the road for Bathgate. Before they left Lanark, Lawrie of Blackwood paid them a visit. He said he had come by desire of the Duke of Hamilton to learn what were their intentions and to endeavour to prevail upon them to lay down their arms and save the effusion of blood; but he produced no written commission, and only spoke in general terms to some of the ministers, which induced in the mind of the Colonel a suspicion that he came merely to spy out their nakedness; and he afterwards blamed his own simplicity in allowing a person of such dubious character to pass between them and the enemy without restraint. Hardly were they in motion when Dalziel made his appearance; but he contented himself with sending a body of horse after them, who, when they found the countrymen prepared for an assault, returned to the General, with whom they remained for the night in the quarters the others had left. The night was deplorable; it rained incessantly and blew a hurricane, and the road across the moors was deep, “plashy,” and broken. When they arrived at their destination, two hours after night-fall, they could get no accommodation, not even a covert from the tempest; and their leaders retired to a wretched hovel to consult about their further

operations. After prayer, they discussed the subject. To return was now impracticable, for the enemy was at their heels; but they still expected some assistance from Edinburgh, and thitherwards they resolved to continue their route, convinced that they would at least hear from their friends before they were entirely within the jaws of Leviathan.

But never were poor men more completely deceived, disappointed, and entangled. On every side was danger. The whole spasmodic energy of government had been forced into action by the fearful throes of the primate; almost all Scotland south of the Tay, had been set in motion, while the capital was fortified more in proportion to his ecclesiastical terrors than to the band that was approaching. Sir Andrew Ramsay, the provost, had barricaded the gates and planted them with cannon—Lord Kingston was stationed on Burntsfield Links with an advanced guard of horse and foot—the advocates were accoutred and the citizens in arms—and all the array of the Lothians, Merse, and Teviotdale, were ordered to hold themselves in readiness. Yet such was their want of intelligence, that the covenanters, upon an alarm being given, broke up about twelve o'clock in this dark and foul night—"One of the darkest," says Wallace in his Narrative, "I am persuaded that ever any in that company saw. Except we had been tied together, it was impossible to keep together; and every little burn was a river." During this disastrous march, which many were unable to accomplish—as "they stuck in the clay and fainted by the road"—the army diminished wofully; and the remainder who arrived in the morning at the New Bridge, within eight miles of Edinburgh, "looked rather like dying men than fighting soldiers—wearied, worn out, half-drowned, half-starved creatures." Yet, beyond expectation, in an hour or two, they mustered nearly a thousand men, only officers were sorely lacking; and now when the enemy was within five miles in their rear, they first learned that all Edinburgh and Leith were in arms against them.

Dreadfully perplexed—without directors, without intelligence, without food—they knew not what to do, but they resolved to march to Colinton. On their way thither, Blackwood again came to them with a verbal requisition from the Duke for them to lay down their arms, and he would endeavour to procure an indemnity; but desperate as their situation was, had they had no other aim than their own personal safety, they could not have listened to so vague an arrangement with such men as they had to deal with;

and when Blackwood urged their compliance, they dismissed him with a caution to beware how he behaved himself, and see well that he walked straightly and uprightly between the parties. Having had so little rest, and scarcely tasted any thing since they left Lanark, a few horsemen were sent out to try and procure some provisions and forage in the neighbouring farms, as they intended, if possible, to take some repose and refreshment in their quarters that night, which, continuing tempestuous, seemed to promise them, for some hours at least, security from any hostile incursion. Accordingly, having provided in the best manner they could for the foot in the village, and sent the horse to the neighbouring farms, they set their guards, and the officers were retiring to rest, when Blackwood came to them again, accompanied by Richards, the laird of Barskimming, and repeated the proposal he had formerly made; telling them at the same time, he had the General's parole for a cessation of arms till to-morrow morning, having given in return the same for them. Wallace, who was little pleased with the officious presumption of "the tutor," told him, "he did not understand this paroling of his, but he believed neither would break the truce in such a night." Upon this they parted, and Barskimming, without taking leave, set off early next morning, but Blackwood waited till daybreak, and requested to know what answer was to be returned. The leaders upon calmly considering their situation—their men now hardly nine hundred, the greater part without arms—their spirits broken by the apparent want of heart in the country—their bodies worn out by fatigue, hunger, want of sleep, and exposure to the weather—the utter hopelessness of any reinforcements—and their great inferiority in numbers to Dalziel's troops—were strongly induced to attempt coming to some terms not incompatible with the object for which they had ventured to the field, they therefore proposed sending one of their number along with Blackwood to represent to the General their grievances, and the grounds of their appearance in arms; but the only person they had to whom they could intrust such a message being objected to as an outlaw, Wallace sent a letter by Blackwood to Dalziel, stating—"That, on account of the intolerable insolences of the prelates and their insupportable oppressions, and being deprived of every usual method of remonstrating or petitioning, they were necessitated to assemble together, in order that, jointly, they might the more securely petition his majesty and council for redress, they therefore requested of his excellency a pass for a person whom they might send with their petition,

and begged an answer might be returned by Blackwood who had promised to fetch it.”

Trusting, however, very little to this negotiation, they commenced a retreat, and turning the west end of the Pentland Hills, took the Biggar road. As their men were straggling, they drew up near the House of Muir, on a spot now well known—Rullion Green. The ground rises from the south towards the north, where the Hill terminates abruptly. Here the poor fatigued remnant were posted in three bodies. Upon the south, a small body of horse, under Barscob and the Galloway gentlemen—in the centre, the foot commanded by Wallace himself—and upon the north, the greater part of the horse along with Major Learmont. Hardly had this small company got arranged, when an alarm was given that the enemy was approaching; and upon moving towards the ridge of the hill, they observed their horse under Major-General Drummond upon an opposite hill, within a quarter of a mile—for their foot had not arrived. The little band of covenanters being so posted that the enemy could not attack them from the north, about fifty picked troopers marched along the ridge to the westward, evidently with a design to approach from that quarter. Observing this, a party of about the same strength, under Captain Arnott, was dispatched by Wallace to meet them, which they did in the glen, at no great distance. Having fired their pistols, they instantly closed, and a sharp contest ensued in sight of both armies, which lasted for a considerable time, when the troopers gave way and fled in confusion to their own body. In this rencounter, Mr John Crookshanks and Andrew M’Cormack fell;^[54] and several were killed and wounded on both sides.

⁵⁴. “Two main instruments of the attempt, two Ireland ministers.” *Wallace’s Narrative*, p. 416. It appears doubtful if ministers in any case may lawfully take arms—Peter was reprov’d for drawing his sword in defence of his master. Matt. xxvi. 52.

The nature of the ground preventing pursuit by cavalry, a party of the covenanters’ foot was ordered to support their horse, but the enemy moved to another and safer eminence farther to the east, where they waited till their own foot came forward; and then descending from the hill, drew up upon Rullion Green in front of their opponents, in order to provoke them to leave their ground and engage. But seeing that they were not inclined to leave their vantage ground, they pushed forward a squadron of their horse, flanked by foot, upon the south, which the others observing, consulted

whether they should give them a second meeting, when considering that, although they might be able to defer an engagement for that night, they must inevitably be forced to fight on the morrow, and under much greater disadvantage—as the enemy would be certainly increased in numbers—they, after prayer, resolved that they would not decline the combat—“they would quit themselves of their duty though it should serve for no more than to give a testimony by leaving their corpses on the field.” A party of Learmont’s horse, also supported by foot, was then sent forth, whose onset the regulars were unable to sustain, and staggered and fled. Each now endeavoured to support their own men by successive detachments.

While the combatants were at all equal, the covenanters successfully maintained the honour of the day, till Dalziel, about night-fall, brought up the whole of his force, and, with one simultaneous and vigorous charge, broke their array. Overwhelmed by numbers, they found it impossible to rally, and every one shifted for himself as he best could. The slaughter was not great, for the countrymen made to the hills, and their flight was covered by the darkness; nor were the horsemen very eager in the pursuit, for, being chiefly gentlemen, they sympathized in the sufferings, and many approved of the cause of the vanquished. About a hundred were killed and taken prisoners at the time, and about fifty were brought in afterwards. Of Dalziel’s troops, the casualties never appear to have been fairly reported. They acknowledged some half-dozen, but the allowed valour of the covenanters, and the obstinacy and nature of the skirmishing, forbid our accepting this as any thing like an accurate return. Some of the neighbouring rustics, more cruel even than the military, probably expecting money, are said to have murdered several of the fugitives, but the crime was held in deserved execration; and the popular tradition, that these “accursed spots” were the scenes of foul nocturnal visions, sufficiently mark the general opinion of the country. Sir James Turner, who had accompanied the insurgents in all their movements, when the battle was about to commence, bargained with his guards that, if they would save his life from the vengeance of their friends, if defeated, he would secure their safety from the conquerors, which was agreed to, and was one of the few agreements which appears to have been faithfully kept. Those who were slain on the field were stripped where they fell, and lay naked and unburied till next day, when some godly women from Edinburgh brought winding-sheets and interred them; but such is the brutality of avarice, that the bodies were

afterwards taken out of their graves by some miscreants for the sake of the linen!

The victors entered the capital shouting with their prisoners.^[55] “A sight,” says a contemporary, “the saddest that ever Edinburgh had seen, which drew tears in abundance from the eyes of all that feared God, considering what vast difference there was between the persons and the cause on the one side and the other: and surely a most astonishing dispensation it was to see a company of holy men—for such were the greatest part, yea, but few otherwise—and that in a good cause, given up into the hands of a most desperate crew of scoffing, profane atheists. But God had called them together, it seems, to have a testimony at their hands, and that he missed not, for he helped them to glorify him in their sufferings, which made their cause more lovely throughout all parts of the land, even in the eyes of enemies, than victory would have done!” They were imprisoned, the common men in the kirk, called Haddo’s-Hole^[56]—those of superior rank were sent to the common jail. In the height of their exultation, the privy council sent off their dispatches announcing the victory, and breathing a spirit of the most implacable hatred against the Presbyterians. “Although,” said they, “this rabble be totally dissipated for the time, yet we conceive ourselves obliged, in the discharge of our duty, to represent unto your majesty that those principles which are pretended as the ground of this rebellion, are so rooted in many several places through the kingdom, and there be such just ground of apprehension of dangers from persons disaffected to your majesty’s government, as it is now established by law, as will require more vigorous application for such an extirpation of it, as may secure the peace of the kingdom and due obedience to the laws.” Orders were immediately given by the council to sequester the property of all who had been at Pentland, and to apprehend all who were suspected of having been with them, or of having aided or abetted them before or since.

⁵⁵. “Mr Arthur Murray, an honest “outted” minister (from Orkney,) dwelling in a suburb of Edinburgh, by which Dalziel’s men entered the city after the victory. He, hearing they were passing by, opened his window to view them, where he saw them display their banners tainted in the blood of these innocent people, and heard them shout victory, upon which he took his bed and died within a few days.” *Kirkton*, p. 247.

⁵⁶. It received this name from Gordon of Haddo having been confined there previous to his execution in the civil war in the reign of Charles I. Burnet tells us that Wiseheart, Bishop of Edinburgh, and indeed the whole town, were so liberal to the prisoners, that they were in

danger from repletion. Wallace, with an appearance of more accuracy, says, “the charity of the godly people of the town appeared in furnishing them with all necessities, both for maintenance and the healing of their wounds.” P. 428.

Priestly resentment is proverbially implacable; but if those priests happen to be infidels, or apostates, such as the generality of the Episcopalian-restoration-church of Scotland were, their revenge assumes a degree of rancour bordering on the diabolical, of which the punishments that followed the suppression of this feeble and ill-supported insurrection, afford afflicting examples. There cannot be a stronger proof that the rising was unpremeditated and accidental, than that, notwithstanding the enormous oppression the country had endured, and the universal discontent both in the south and west, so few attempted to join the insurgents. In Renfrew, only one small company assembled; but before they were ready, Dalziel had interposed between them and the covenanters, and they retired without doing more than showing goodwill and incurring punishment. William Muir of Caldwell was their leader; and among them were, Ker of Kersland, Caldwell of Caldwell, Cunningham of Bedland, Porterfield of Quarrelton, with Mr Gabriel Maxwell, minister of Dundonald, George Ramsay, minister of Kilmaurs—and John Carstairs, minister of Glasgow, unwillingly forced out by the entreaties of his friends, with several others, who all afterwards suffered confiscation, fining, or banishment. What was, perhaps, not the least galling part of the trial, they were denounced by John Maxwell of Blackston, one of themselves, who either through treachery or terror was induced to become an informer and witness against them.

It was natural, and followed as a matter of course, that, of men taken with arms in their hands, some examples should be made by the government against whom they were alleged to have rebelled. But what gave to the executions in this case their peculiar features of atrocity, was, their victims had surrendered upon a promise of quarter, and the more appalling fact of a letter from the king to the council, forbidding any more to be put to death, having been kept up by one or both of the archbishops,^[57] till they were satiated with the blood of some obnoxious victims. When the question, whether the prisoners should be sent to trial, was first agitated at the privy council-board, Sharpe violently urged the prosecution. Sir John Gilmour, esteemed one of the best lawyers of his day, pusillanimously shrunk from giving any decided opinion, and the rest seemed inclined to be silent, when, unhappily, Lord Lee started the vile jesuitical distinction, not, however,

unmatched in later times, that men may be granted quarter on the field as soldiers, yet only be spared to die on a scaffold as citizens—a distinction which General Dalziel, notwithstanding his little respect for the lives of covenanters, could not by any means be brought to comprehend.

- [57](#). Kirkton asserts it of Sharpe, p. 255. Burnet says that his namesake, Burnet of Glasgow, kept up the letter, pretending that there was no council-day between and the day of execution, vol. i. p. 348.

Eleven of the prisoners were accordingly picked out for trial, and, on the 4th of December, Captain Andrew Arnott; Major John M'Culloch; John Gordon of Knockbreck, and his brother Robert; Gavin Hamilton, Mauldslie, Carluke; Christ. Strang; John Parker, Kilbride; John Ross, Mauchline; James Hamilton, Killiemuir; and John Shiels, Titwood, appeared before the Court of Justiciary. Thomas Patterson, merchant in Glasgow, died in prison of his wounds. The objections to the relevancy of the indictment were argued with great ability, and, in particular, that one arising from the quarter granted by the General, which, if we may judge from the pleadings, he appears to have himself considered a point of honour. It was alleged, that being in the form of an army, and as such assaulted by his majesty's forces, and as such having accepted quarter, and in consequence delivered up their arms, and that that quarter being *publica fides*, and offered and granted, should be inviolably observed. To this it was answered, that their presumption in appearing in arms against their sovereign lord was an aggravation of their rebellion; that unless his majesty had given a special commission for the purpose, the General had no right to grant a pardon to rebels, whatever he might have done in fair and honourable war. In return, it was replied, that without debating the justness of the war, the pannels being then in arms, might have defended their own lives and reached the lives of the greatest that opposed them. In laying aside these arms, they in effect ransomed their lives; and soldiers who may defend their own lives, are not obliged, nor is it in use, nor would the urgency of the case permit it to them, to seek the granter's commission, common soldiers being accustomed to grant quarter, which their superiors never annulled; and this had been the practice, not only between the contending parties in France, but likewise practised by his majesty's own forces in the hills, and with the rebellious English, which, unless it were adhered to, a method of martial massacre would be introduced, and rebels of necessity would become desperate and indomitable traitors. The court repelled the objections; and as none of the

pannels denied the facts of which they were accused, they were unanimously found guilty, and sentenced to suffer the doom of traitors on the 7th of December.

Previous to their execution, they drew up a united testimony, which stands upon record an evidence of the purity of their motives and the justice of their cause—a cause which, however defamed by the advocates of passive obedience, or oppugned by more modern objections, was in their hands the sacred cause of civil and religious liberty, only these patriots were driven by enormous oppression prematurely to assert it. “We are condemned,” say they, “by men, and esteemed as rebels against the king, whose authority we acknowledge; but this is the testimony of our conscience, that we suffer not as evil-doers, but for righteousness, for the word of God and testimony of Jesus Christ—particularly for renewing the covenant,^[58] and, in conformity with its obligations, for defending ourselves by arms against the usurpation and insupportable tyranny of the prelates, and against the most unchristian and inhuman oppression and persecution that ever was enjoined and practised by rulers upon free, innocent, and peaceable subjects! The laws establishing prelacy, and the acts, orders, and proclamations made for compliance therewith, being executed against us by military force and violence—and we with others, for our simple forbearance, being fined, confined, imprisoned, exiled, scourged, stigmatized, beaten, bound as beasts, and driven unto the mountains for our lives, and thereby hundreds of families being beggared, several parishes, and some whole country sides, exceedingly impoverished; and all this either arbitrarily, and without any law or respect had to guilt or innocence, or unjustly contrary to all conscience, justice, and reason, though under the pretence of iniquitous law, and without any regard to the penalty specified in the law; while all remonstrating against grievances, were they ever so just and many, and petitions for redress being restrained by laws—there was no other remedy left us but that last of necessary, self-preservation and defence. And this being one of the greatest principles of nature, warranted by the law of God, scriptural instances, and the consent and practice of all reformed churches and Christian states abroad, and of our own famous predecessors at home—it cannot, in reason or justice, be reputed a crime, or condemned as rebellion, by any human authority.” Then, after lamenting the perjury, backsliding, and breach of covenant throughout the land, the overturning of the work of reformation, the obtrusion of mercenary

hirelings into the ministry, the universal flood of profanity and apostacy from participating in the guilt of which they ardently prayed to be cleansed, they exhort their countrymen and fellow-christians to remember the example of their noble and renowned ancestors, and warn them not to be offended with the cross of Christ on account of their sufferings, and conclude in a strain of exhilarating, animated, and believing anticipation, almost prophetic—"Though this be the day of Jacob's trouble, yet are we assured that when the Lord hath accomplished the trial of his own, and filled up the cup of his adversaries, He will awake for judgment, plead his own cause, avenge the quarrel of his covenant, make inquiry for blood, vindicate his people, break the arm of the wicked, and establish the just, for to him belongeth judgment and vengeance; and though our eyes shall not see it, yet we believe that the Sun of Righteousness shall arise with healing under his wings—that he will revive his work, repair his breaches, build the old wastes, and raise up the desolations."

58. *On the binding obligation of the Covenants.*—How far the vows of a parent are obligatory on a child, is a question both delicate and difficult to determine. That, in certain circumstances, they are imperative, is perfectly clear; and national compacts, vows, or covenants—by whatever name they may be called—entered into by the heads of the people, are, in Scripture, considered as binding upon the succeeding generations, even when the parties have rashly entered into them, under circumstances of ignorance, delusion, or deceit, provided they contain nothing in opposition to the moral law of God, which is unchangeable in its enactments, though they should contravene extraordinary enunciations of the divine will, as in the case of the covenant between Joshua and the Gibeonites.

Ten were executed together; and, on the scaffold, their dying speeches, containing similar sentiments, were delivered with a high and elevated courage, that excited no common emotion among the spectators, while their kindlier feelings were melted into tenderness when the two brothers—the Gordons—were thrown off locked in each other's arms, and whose last agonies were expressed by the convulsive clasp of a fraternal embrace. The heads of the sufferers were sent to various parts of the country, but the right hands which they had uplifted at the oath of the covenant, were sent in derision to be affixed to the top of Lanark jail.

Enraged to find that no appearance of any premeditated scheme of rebellion could be traced in the confessions of the late sufferers, who all agreed in assigning as the cause of the rising, the intolerable oppression they endured in soul, body, and estate, they determined to elicit by torture,

if possible, some plausible confession that might afford a colouring of justification for the cruelties they were perpetrating and determined to perpetrate. Accordingly, Nielson of Corsack, whose enormous oppression we have already seen, and Hugh M’Kail, a preacher, were brought before the council on the 4th of December; and the boots, an instrument which had not been used in Scotland for a century, was again put in requisition. This “infernal machine” was a kind of box, strongly hooped with iron, into which the leg of the prisoner was put, where it was compressed by wedges, driven frequently till the bone was crushed, and even the marrow sometimes extruded. Nielson was fearfully tormented; but his cries, which were most piercing, had no effect upon Rothes, before whom he was examined, who frequently called for “the other touch.” Hugh M’Kail, whose fate produced a stronger and more indelible impression than any that occurred during this period, was a young man of great promise. He had been tutor in the family of Sir James Stewart of Coltness some time before the Restoration, when Sir James was provost of Edinburgh. He was licensed to preach at the early age of twenty-one, and soon became so deservedly popular, that he eminently attracted the hatred of the prelates, particularly Sharpe, and was forced to keep under hiding. During this time, he went to Holland, and for four years attended one of the Dutch Universities, then distinguished for theological literature. In 1664—5, he returned secretly to his father’s house, where he remained, till, hearing of the appearance made by the people of God for the cause of the covenants, he joined them in the west; but his tender constitution was unable to bear the fatigue of their severe toil and privations, and he was, finally, obliged to leave them near Cramond Water. On his return home to Libberton, he was seized at Braid’s Hills and brought to Edinburgh. His limb, also, was shattered by repeated strokes of the mallet; but from neither of the two could torture extort any other fact than their confessions contained.

Nielson, notwithstanding the treatment he had undergone, was indicted to stand trial on the 10th of December. When he was placed at the bar along with other four—Mr Alexander Robertson, preacher, who had been basely betrayed by the Laird of Morton, his friend, to whose protection he had committed himself; George Crawford, in Cumnock; John Gordon, Irongray; and John Lindsay, Edinburgh—they were found guilty upon their own confessions, and were executed on the 14th, except Lindsay, who was pardoned. They all left testimonies in similar terms to those who went

before, lamenting the defection of the times, but rejoicing in the hope that God would return and bless his church and people. They all pointedly refused the appellation of rebels, avouched their loyalty to the king and the constitution of their country before it was illegally overturned, and warned their friends not to be discouraged because the few who had taken their lives in their hands had fallen before their adversaries, but to abound more in holiness, prayer, and steadfastness, nothing doubting, but that the Lord would arise in due time and plead the cause which is his own.

M’Kail having fevered from the torture, had not been tried along with Nielson, and it was thought his youth and the torments he had already endured would have been deemed sufficient punishment; but they knew little the mortal strife of ecclesiastics, when power is the object, who thus calculated, although the highest interest was made for him. He had insinuated a likeness between the primate and Judas—a crime never to be forgiven, for it was true; and being recovered so far as to allow his being moved, he was carried to court, December the 18th, and, together with seven others, indicted for rebellion, found guilty, and condemned. When allowed to answer for himself, he pled the obligations that were laid upon the land, and the oath of God under which they were bound. The last words of the National Covenant, he said, had always had great weight on his spirit; upon which the Lord Advocate interrupted him, and desired him to answer to his own particular charge. His answer was, “that he acted under a solemn impression of the saying of our Lord Jesus—‘Whosoever shall confess me before men, him shall the Son of Man also confess before the angels of God.’” When the sentence was pronounced, he cheerfully said, with meek resignation—“The Lord giveth, and the Lord taketh away; blessed be the name of the Lord.”

His prison hours were enviable, not composed merely, but full of joy. “Oh, how good news!” said he to a friend, “to be within four days’ journey of enjoying the sight of Jesus Christ.” When some women were weeping over him—“Mourn not for me,” was his cheering exhortation; “though but young, and cut down in the budding of my hopes and labour of the ministry, yet my death may do more good than many years sermons might have done.” On the last night of his life, after having supped with his father, some friends, and his fellow-prisoners, he burst forth in a strain of animated queries; among others, “How they who were hastening to heaven should

conceive of the glories of the place, seeing it was written, ‘Eye hath not seen, nor ear heard, neither have entered into the heart of man, the things which God hath prepared for them that love him?’ It is termed a glorious city and a bride; but, oh, how insufficient, how vastly disproportionate, must all similitudes be! therefore the Scripture furnishes yet a more excellent way, by conceiving of the love of Christ to us; that love which passeth knowledge, the highest and sweetest motive of praise—‘Unto him that loved us, and washed us from our sins in his own blood, and hath made us kings and priests unto God and his Father; to him be glory, and dominion, for ever and ever, amen!’—by holding forth the love of the saints to Christ, and teaching us to love him in sincerity. This, this, forms the very joy and exultation of heaven!—‘Worthy is the Lamb that was slain, to receive power, and riches, and wisdom, and strength, and honour, and glory, and blessing!’ Nothing less than the soul breathing love to Jesus can rightly apprehend the joys of heaven.” Then, after a while, he added, “Oh! but notions of knowledge, without love, are of small worth, evanishing into nothing and very dangerous.”

His great delight was in the Bible. Having read the 16th Psalm before going to bed, he observed, “If there were any thing in the world sadly and unwillingly to be left, it were the reading of the Scriptures—‘I said, I shall not see the Lord in the land of the living;’ but this needs not make us sad, for wherever we go, the Lamb is the book of Scripture and the light of that city, and there is life, even the river of the water of life, and living springs to delight its inhabitants.” He laid him down in peace, and slept sweetly from ten o’clock till five next morning. When he arose, he called his companion, John Wodrow, in a tone of pleasantry—“Up John, you are too long in bed—you and I look not like men going to be hanged this day, seeing we lie so long.” Some time after, he made a striking and peculiarly happy allusion to his own situation, and that of his fellow-sufferers—“Earthly kings’ thrones have advocates against poor rebels; thy throne, O God, hath Jesus an advocate for us.” He early requested his father to take leave, lest their parting afterwards might discompose him, and to retire and pray earnestly that the Lord might be with him to strengthen him, that he might endure to the end. On the scaffold, a heavenly serenity beamed in his countenance. He ascended the ladder with alacrity, saying, “Every step of this ladder is a degree, nearer heaven.” Then looking down to his friends, he said, “Ye need neither be ashamed nor lament for me in this condition, for I can say, in the

words of Christ, I go to your Father and my Father, to your God and my God.” Just before he was turned off, he burst out into this rapturous exclamation—“This is my comfort, that my soul is to come to Christ’s hand, and he will present it blameless and faultless to the Father, and then shall I be ever with the Lord! And now I leave off to speak any more to creatures, and begin my intercourse with God which shall never be broken off. Farewell, father and mother, friends and relatives—farewell, the world and all delights—farewell, sun, moon, and stars. Welcome—welcome, God and Father—welcome, sweet Jesus Christ, the mediator of the new covenant—welcome, blessed Spirit of grace and God of all consolation—welcome, glory—welcome, eternal life—welcome, death!” Then, after praying a little within himself, he said aloud, “O Lord into thy hands I commit my spirit, for thou hast redeemed my soul, Lord God of truth!” And thus leaving time, was joyfully launched into the boundless ocean of eternity.

The crowd of spectators was immense; and “when he died,” Kirkton tells us, “there was such a lamentation as was never known in Scotland before, not one dry cheek upon all the street, or in all the numberless windows in the mercate place. He was a proper youth, learned, travelled, and extraordinarily pious. He fasted every week one day, and signified, frequently, his apprehension of such a death as he died; and heavy were the groans of the spectators when he spoke his joys in death. Then all cursed the bishops who used to curse; then all prayed who used to pray, entreating God to judge righteous judgment. Never was there such a mournful day seen in Edinburgh—never such a mournful season seen in Scotland, in any man’s memory.”

The others were equally supported in the last trying hour, and cheerfully laid down their lives for a cause which they believed to be the cause of God and of their country, and which they never doubted would ultimately and gloriously triumph. Their names were, John Wodrow, a merchant in Glasgow—Ralph Shields, a merchant in Ayr, but an Englishman by birth—a Humphry Colquhoun, of whom Kirkton testifies, “that he spoke not like an ordinary citizen, but, like an heavenly minister relating his comfortable Christian experiences, called for his Bible, and laid it on his wounded arm, and read John iii. 8., and spoke upon it most sweetly to the admiration of all”—John Wilson, of the parish of Kilmaurs, in Ayrshire—and Mungo

Kaipo, from Evandale. Three of little note, and who agreed to some partial compliances, were pardoned.

While these bloody transactions were going forward in the capital, a commission was issued for the Earls of Linlithgow and Winton, Lord Montgomerie, and Mungo Murray, to hold a Justiciary Court in Glasgow, and Sir William Purves, solicitor-general, dispatched to prosecute. Four of the covenanters were accordingly brought before them, Monday, December 17th, all men in humble life—Robert Buntine, in Fenwick; John Hart, in Glassford; Robert Scott, in Dalserf; and Matthew Paton, in Newmills—found guilty that same day, and ordered to be hanged on Wednesday. They went to the gibbet with the same Christian fortitude, and evinced, by their deportment, that the same peace of God which had comforted the martyrs in the capital, dwelt also in them. But the impression which the dying declarations of the martyrs had made, especially of those last murdered in Edinburgh, forbade that they should be allowed the privilege of addressing the spectators in a quarter where their solemn testimonies might have deeper effect; and when the sufferers attempted to address the crowd, the drums were ordered to beat and drown their voices—a detestable practice, which proclaimed their dread of the truth they were vainly attempting to stifle. Rothes himself took a tour to the south-west, accompanied by the Earl of Kellie, Lieutenant General Drummond, Charles Maitland of Hatton, and James Crichton, brother to the Earl of Dumfries, as a Justiciary commission. At Ayr, twelve were tried and ordered for execution; eight in that town, two at Irvine, and two at Dumfries. When those at Ayr were to be executed, the executioner fleeing, and none being willing to perform the hated office, in this dilemma, the Provost had recourse to the shocking expedient of offering any of the prisoners pardon, upon condition of his hanging the rest of his brethren; and one Anderson was found, who purchased a few days' miserable existence at this expense; yet even he had to be filled half drunk with brandy to enable him to perform the dreadful ceremony, while the sufferers, more to be envied than him, courageously met that death which he basely inflicted.

The conduct of William Sutherland, the executioner of Irvine, stands out in fine contrast with that of Anderson. This man, who had been born of poor parents in the wildest part of the Highlands, had been seized with an uncommon desire to learn the English language, which, with much

difficulty, he acquired so well, as to be able to read the Scriptures in that tongue. He had acted as common hangman in the town of Irvine for some time; when, having been converted to God through the reading of the Bible, and the instructions of the persecuted, he scrupled about executing any person whom he was not convinced deserved to die. When the Ayr hangman fled, he was sent for, but would not move till carried by force to that town, and peremptorily refused to execute the prisoners, because he had heard they were godly men, who had been oppressed by the bishops; upon which he was committed to prison, and flattered, and threatened—first promised money, then told he would be hanged himself, if he persisted; yet nothing could either terrify or induce him to comply. When they called for the boots, “You may bring the spurs too,” said William, “ye shall not prevail.” The provost offered him fifty dollars, and told him he might go to the Highlands and live. “Aye, but where can I flee from my conscience?” was the pointed query of the honest mountaineer. He was then placed in the stocks, and four musketeers stood ready with lighted matches, but the dauntless man bared his bosom, and told them he was willing to die; and they, finding him immoveable, dismissed him.^[59] Anderson was also obliged to execute those condemned to be hung at Irvine. Universally detested, he left the country soon after and settled in Ireland, near Dublin, where his cottage was burned, and he perished in the flames. The others were, pursuant to their sentence, hung at Dumfries, whither the Commissioner went to endeavour to trace the conspiracy; but no other discovery was made than that the rising had been accidental, and that oppression had been the cause. Upwards of thirty-four had now been put to death by the hands of the executioner; yet these executions did more harm to the cause of prelacy than almost any other circumstance could have done, for the universal detestation of the people was heightened in proportion to the fortitude and composure of the sufferers, whose dying testimonies possessed a power and energy beyond that of a thousand sermons.

⁵⁹. Some curious interviews took place with Sutherland and one White, a curate, of which he afterwards published an account. The following is a specimen:—“Then came one Mr White, a curate, to persuade me, who said to me, ‘What are you doing? Do you not know that these men are guilty of the sin of rebellion, and rebellion in Scripture is as the sin of witchcraft?’ ‘I answered, I know the Scripture, it is in 1 Sam. xv. 28. That was Saul’s rebellion against the immediate revealed will of God, in sparing Agag and the best of the flocks; and that it was like that rebellion spoken of in the Israelites, when they rebelled and refused to go to the land of Canaan, according to God’s command, but would have chosen a captain and gone back again

to Egypt. He then instanced Shemei, who cursed David and flang earth and stones at him; yet David forgave him, and much more should the king forgive the Galaway men who respect and pray for him, and would not let a hair of his head fall to the ground if he were among them.' 'But,' says Mr White, 'David was a prophet and a merciful man!' 'Ho!' says I, 'ye will not take a good man for your example, but an ill man; what divinity is that?' At which, the soldiers laughing, he said in his anger, the devil was in me, and that I had to do with a familiar spirit. I said, than he was an unnatural devil, for he was not like the rest of the devils who desire the destruction of many, that he may get many souls, but the spirit that is in me, will not suffer me to take good men's lives; so at that time Mr White went away as ashamed." *Life and Declaration of William Sutherland*, pp. 4, 5. Wodrow says of this declaration, I am well assured it is genuine, and formed by himself, vol. i. p. 260.

BOOK VI.

JANUARY, A.D. 1667-1669.

Dalziel sent to the South and West—His cruelty, and that of the inferior officers—Sir Mungo Murray—Sir William Bannantyne—Arrival of the Dutch fleet—Crusade abates—Forfeitures increase—Standing army proposed—Convention of estates—Cess—King's letter—West country disarmed—Sir Robert Murray sent to Scotland—Army partially disbanded—Political changes—Bond of peace—Trials of Sir James Turner and Sir William Bannantyne—Field-preaching proscribed—Michael Bruce—John Blackadder—Attempt upon Sharpe's life—Search for the assassin—Remarkable escape of Maxwell of Monreith—Case of Mr Robert Gray, merchant—Mrs Kelso and Mrs Duncan—Death of Mr Gillon, minister of Cavers—Field-preaching and family worship punished—Mr Fullarton of Quivox before the Council—Mr Blackadder patrols his "diocese" untouched safely—Mr Hamilton, minister of Blantyre.

The army followed fast upon the heels of the justiciary, and the devoted west and south were again subjected to military oppression. Dalziel established his head-quarters at Kilmarnock, and, in a few months, extorted from that impoverished district, the sum of fifty thousand merks, besides what was destroyed by the soldiers in their quarterings through mere wantonness and a love of mischief. Whoever was suspected of favouring Presbyterianism was apprehended and brought before the General. If he possessed money, the process was short. A private examination was generally terminated by a heavy fine or loathsome imprisonment in a vile dungeon, where men and women were so crowded together, that they could neither sit nor lie, and where decency and humanity were at once violated. An instance of the summary mode in which Dalziel exercised his authority will show, better than any general description, the miseries of military rule. David Findlay at Newmilns, a plain country man, who had accidentally been at Lanark when the covenanters were there, but had not joined, was brought before him; and, because he either would not, or could not, name

any of the rich Whigs who were with the army, he was instantly ordered, without further ceremony, to be shot. When the poor man was carried out to die, neither he nor the lieutenant who was to superintend the execution, could believe that the General was in earnest, but the soldiers told him their orders were positive. He then earnestly entreated only for one night's delay, that he might prepare for eternity; and the officer went to Dalziel to request this short respite, when the ruffian threatened him for his contumacy, and told him that "he would teach him to obey without scruple." In consequence, there was no further delay; Findlay was shot, stripped, and his naked body left upon the spot.

Nor were the inferior officers unworthy of their commander. Sir Mungo Murray having heard that two cottar tenants had lodged for a night two of the men who had escaped from Pentland, bound them together with cords, and then suspending them by their arms from a tree, went to bed, and left them to hang for the night in this torture, which, in all probability, would have finished them before morning, had not some of the soldiers, more merciful than he, relieved them from their painful situation at their own peril. Sir William Bannantyne, in Galloway, caused even the removal of Turner to be regretted. He took possession of Earlston House, which he garrisoned, and thence sent out his parties who plundered indiscriminately the suspected and those who had given no cause for suspicion, whose only crime was their property. Some, who could not purchase forbearance, they stripped almost naked—then thrust them into the most abominable holes in the garrison, where they were kept till nearly dead, before they were suffered to depart; and one woman, whom they alleged to have been accessory to her husband's escape, they tortured, by burning matches between her fingers with such protracted cruelty, that she fevered, and shortly after died; and so great was the universal consternation produced in these quarters among the conscientious Presbyterians, that such as could get out of the country, fled to foreign parts; and those who remained, lurked during a severe winter, in caves, pits, or remote unfrequented places of the land.

The arrival of a Dutch fleet in the Frith of Forth (April) relieved the afflicted west a little. This squadron, which had threatened Leith, and fired a few shots at Burntisland, occasioned the collecting of the whole troops in Scotland to defend the east, while the success that attended an attack upon

the shipping in the Thames, obliged the government to suspend their crusades against the Presbyterian heretics, in order to guard their coasts from foreign insult. At the same time, the exasperation of the English, on account of their national disgrace, enabled the king to get rid of Lord Clarendon, a troublesome minister, whose habits of business, and ideas of economy, ill suited the beloved indolence and unmeaning, and worse than useless, profusion of his master, and whose regard for the decencies of life were opposed to the utter shamelessness of his profligate court.

But though relieved, in some measure, from military execution, the property of the Presbyterians was reached by a more base and cowardly mode of rapine. Heretofore, in cases of treason, the estates of rebels could not be confiscated, as the rebels themselves could not be tried in absence; and so express was the law on this subject that, in a former reign, it was deemed necessary to bring the mouldering bones of a traitor from his grave, and produce them in court, before he could be legally forfeited. The Lord Advocate, however, judged it proper to procure the authority of the court, previously to proceeding in opposition both to the statutes and common practice; and, therefore, proposed to the judges the following query —“Whether or not a person guilty of high treason might be pursued before the justices, albeit they be absent and contumacious, so that the justices, upon citation and sufficient probation and evidence, might pronounce sentence and doom of forfeiture, if the dittay be proven?” The lords answered in the affirmative, and established a precedent, which was afterwards improved, for forwarding the severe measures of a party already sufficiently disposed to disregard all the ordinary forms of justice. All the gentlemen of property who had gone into exile, were in consequence forfeited, and their estates divided between the rulers and their friends.

Continual dissensions among the Scottish politicians had been the bane of Scotland almost ever since the nation existed. At this period they proved of some small service, by diverting, for a short space, the attention of the persecutors to their own personal affairs. Sharpe, by his duplicity, had incurred the displeasure of the king; and a strong party in the Scottish council, consisting of the military officers and a majority of the prelates, were opposed to Lauderdale, whom they still suspected of being too much attached to his old friends, and envied for enjoying so much of the favour of the king. This party, to secure their ascendancy, proposed to continue and

increase the standing army, and to enforce the declaration, under pains of forfeiture, upon all the Presbyterians, fanatics, or Whigs, whom it was necessary to extirpate as incorrigible rebels, whose principles were hostile to all good government, and Lieutenant-General Drummond, with Burnet, archbishop of Glasgow, had been sent to London to procure the king's concurrence.

A convention of estates, held at Edinburgh in the month of January in order to further these objects, voted a cess of sixty-four thousand pounds a month, and, besides, offered to maintain all the forces the king should think proper to raise.^[60] Lauderdale instantly perceived that this would give his enemies an overwhelming power in Scotland, by throwing into their hands the disposal of the forfeitures and the army commissions, and he obtained from the king a letter which, although it authorized very arbitrary proceedings, yet effectually counteracted the scheme of his opponents. It empowered them to tender the oath of allegiance and declaration, and to incarcerate in case of refusal: it authorized disarming the gentlemen in the disaffected shires—seizing all serviceable horses in possession of suspected persons—ordered the militia to be modelled—arms and ammunition to be provided—the legal parish ministers to be protected from violence—and all engaged in the late rebellion, to be criminally pursued without further delay. Proclamations were in consequence issued for again disarming the west and seizing the horses; and no person in future, who did not regularly attend his parish church, was to be allowed to keep a horse above one hundred merks value; but as nothing had been said by his majesty about forfeitures, the declaration was little heard of, and the leading men being changed shortly after, the afflicted country obtained a brief glimpse of repose.

⁶⁰. A convention of estates differed from a parliament, in being convened for one specific purpose, commonly like those for raising money.

Lest, however, it might be supposed that any relaxation was meant to be shown in supporting prelacy, a letter was transmitted from court, early in May, expressing the royal determination not only to encourage and protect the bishops in the exercise of their callings, and all the orthodox clergy under them, but also to discountenance all, of what quality soever, who should show any disrespect or disaffection to that order or government; and earnestly recommending to those in power, to give the utmost countenance to the orthodox clergy, and to punish severely any affronts put upon them,

“to the end,” it is added, “that they may be the more endeared to their people, when they see how careful we, and all in authority under us, are of their protection in the due exercise of their calling.” The council in consequence issued a proclamation, rendering heritors and parishioners liable for all the damages that might be done to their ministers, which, in the sequel, was most rigorously enforced, although it had certainly little tendency or effect in producing any sentiments of endearment in the breasts of the people towards pastors who required such eminent exertions of royal and magisterial care.

Not long after, Sir Robert Murray, distinguished for his love of science and his moderation of temper, was sent down to Scotland to procure, if possible, an accurate account of the state of the country. He was at this time high in the confidence of Lauderdale, whose interest he assiduously promoted, and whose party he essentially strengthened by the mighty accession of character he brought them. The bishops and their party were extremely anxious to have, above all things, the army continued, and used every method to induce Sir Robert Murray to coincide with them in opinion. Burnet, archbishop of Glasgow, protested that, if the army were disbanded, the gospel would depart out of his diocese; and the Duke of Hamilton said he did not think his life would be secure even in following his sport in the west; when Tweeddale, with many professions of care for his Grace’s life, proposed a squadron of the life-guard might be sent to quarter on his premises—a mode of protection with which the Duke did not appear very highly enraptured. But their guardian, Hyde, was in disgrace—an unfavourable peace had terminated an unsuccessful Dutch war—and a show of temporary moderation, at least, was required by the circumstances of the nation. Peremptory orders were therefore sent to Scotland to disband the whole army, except two troops of horse and one (Linlithgow’s) regiment of foot guards, which was accordingly done to the great joy of the country, but much to the distress of many idlers who had lately bought their commissions for the purposes of plunder, and considered a captaincy equal to an estate, although numbers, especially of the higher ranks, had their losses more than compensated by their shares of the forfeited estates.

Lauderdale was too good a politician to allow the present humiliation of his opponents to pass unimproved. The indolence and dissipation of Rothes had laid him open to the charges of inattention and neglect of duty during

the Dutch visit. He was therefore, as an honourable dismissal, made Lord Chancellor preparatory to losing the Commissionership. The Earl of Tweeddale's eldest son, Lord Yester, having been married to Lauderdale's only daughter and presumptive heiress, his father was named one of the commissioners of the treasury along with Kincardine and Sir Robert Murray, who had also been appointed Lord Justice-Clerk; and his party in the privy council had been still further augmented by the admission of the Earl of Airly, Lord Cochrane, and others. The first trial of strength between the factions, was upon the important question, how the peace of the country was to be secured when the army was disbanded? As the same vile and mischievous system of forcing a hated hierarchy upon the people was determined to be persisted in, the prelates and military were for pressing the declaration according to the king's letter; for although they had now no immediate prospect of touching the money, yet they always had a kind of natural propensity to urge the harshest measures, and those which would promote, rather than appease, the troubles of the land. The Lauderdale party proposed a general pardon and a bond of peace, so moderate in its terms, as that it would be either cheerfully taken, or render those who refused it inexcusable. The contest was long and hotly maintained; and when the council divided, their clerk, Sir Peter Wedderburn, affirmed that the declaration was carried; this, Sir Robert Murray denied, and the vote was again put, and again the clerk affirmed a majority was for the declaration; Sir Robert still contended that this was not the case, and the Chancellor warmly asking, if he doubted the clerk's fidelity? Sir Robert replied he would trust the evidences of his own senses before any clerk in the world, and insisted that the names should be distinctly called, and the votes accurately marked; when it plainly appeared that a majority was for the bond, which, but for his firmness, by an impudent shameless falsehood would have inevitably been lost.

Pursuant to these resolutions, a pardon was proclaimed; but the exceptions were so numerous that it was of no avail to any person who possessed either influence or property, and it was remarked that already more than half the number of those who had been at Pentland, were either executed or forfeited; and those who were pardoned, were only the persons whom from their obscurity it would have been impossible to discover, or from their poverty, fruitless to forfeit. The bond was short, and ran thus:—"I, A. B., do bind and oblige me to keep the public peace, and not to rise

in arms without the king's authority, and that if I fail I shall pay a year's rent: likewise, that my tenants and men-servants shall keep the public peace; and in case they fail, I oblige myself to pay for every tenant his year's rent, and for every servant his year's fee. And for more security, I am content thir presents be registrate in the books of council." Excepting, perhaps, the hardship of obliging a landlord to bind himself for his tenant and servant, there does not appear, at first sight, any thing objectionable in this obligation. But the government had entirely lost the confidence of the upright Presbyterians by their uniform endeavours to ensnare their consciences with oaths and obligations, conceived in general terms, to which a double meaning was attached; and which, when any dispute arose, they insisted should always be understood according to the sense the administrators of the oath imposed upon it. Now this bond was constructed in the usual manner, and the expressions—"keep the public peace, and not rising in arms"—were the ambiguous phrases; and numbers refused to sign, unless allowed to explain that by these expressions they were not to be understood as binding themselves to support the prelatical religion, to attend their churches, and desert the preaching of the gospel by their own ministers, or acknowledge the doctrine of passive obedience. Many pamphlets were printed, and much discussion took place upon the subject; but the bond being soon laid aside, the controversy became unimportant, except in so far as succeeding events plainly showed that the objections to the bond were not unmeaning scruples, and that those who refused to sign, acted from a complete knowledge of the persons with whom they were dealing, who would allow of no interpretation inconsistent with entire, implicit, unconditional submission. The proclamation for disarming the west was also in part recalled, and orders issued for restraining the irregularities of such soldiers as were kept in pay—a number of gentlemen who had been imprisoned in 1665 were liberated—and the year closed with the illusive prospect of a deceitful calm.^[61]

61. In December, "Naphtali, or the Wrestlings of the Church of Scotland," written by Sir James Stuart of Goodtrees, and Mr James Stirling, minister of Paisley, was ordered to be burned by the hands of the hangman, and all who had copies of it after that date to be severely fined—a very foolish but not uncommon mode of publicly confessing that a book is unanswerable. Honeyman, bishop of Orkney, attempted to answer it, which produced an able reply by Sir James—"Jus populi vindicatum."

[1668.] Great expectations were entertained that some legal protection might be again enjoyed by the harassed Presbyterians, as during last year a commission had arrived from the king to bring Sir James Turner to trial for his tyranny and oppression in the south. But it soon appeared that whatever might have caused the act of justice, it was no sympathy for the sufferings of the “Fanatics.” The extortions, harassings, imprisonments, and other charges against Sir James, were easily established; but it did not appear that he had either acted without or beyond his instructions, or appropriated much of the spoil for himself, and he was only dismissed the service, while those he had robbed received no compensation. Sir William Bannantyne’s trial followed. The accusations against him were more atrocious, torturing and rape being offered to be proved in addition to plunder and rapine. But, perhaps, what was his most indefensible crime, he could not account for the monies he had received. He was therefore banished and fined in two hundred pounds sterling—a gentle sentence for such conduct.^[62] Little real relief was however afforded to Presbyterians, whose principles would not bend to the times, or to those who, at the risk of reputation, property, liberty, or life itself, refused to abstain from preaching the gospel to their fellow-sinners, or those who would not consent to forsake the worship of God, or leave his ordinances dispensed by his ministers—to attend on a profanation of all sacred service by hirelings who were—(scarcely even the disguised)—enemies of the cross of Christ. In proportion as lenity was exercised to others, so much the more was hatred evinced towards ministers and those who frequented conventicles.

^{62.} He went afterwards to the low country, and was killed by a cannon-ball at the siege of Grave, which drove his heart out of his body—a mode of death he had been accustomed to imprecate upon himself.

Hitherto there had been but few field-meetings, yet preaching and exhortation in private houses, barns, and other convenient places, had been very common and well attended; and, from the concurring testimony of all who were accustomed to frequent them, who have left any record, the Spirit of God seems in an eminent manner to have blessed these calumniated, despised, and persecuted assemblies.^[63] In a letter from the king, January 16, which settles the meaning of “the public peace,” these meetings, which were peculiarly obnoxious to the bishops and curates, are thus pointed out to the notice of the council:—“We most especially recommend to you to use all possible means and endeavours for preserving the public peace under

our authority, and with special care to countenance and maintain Episcopal government, which in all the kingdom we will most inviolably protect and defend. You must by all means restrain the gatherings of the people to conventicles, which are indeed *rendezvouses of rebellion*, and execute the laws severely against the ringleaders of such faction and schism.” The council, with prompt obedience, appointed any of their number to grant warrants for seizing and haling to prison all “outted” ministers or others who should keep unlawful convocations; and the Earl of Linlithgow, commander of the few forces, was directed to distribute them over the country in such manner as might be calculated most easily to dissipate these illicit concerns. A company of foot was, in consequence, ordered to lie at Dumfries; another, with fifteen horse, at Strathaven, in Clydesdale; forty troopers at Kilsyth; two companies and fifteen horse at Glasgow; one company at Dalmellington; and a last at Cumnock, in Ayrshire.

[63](#). Memoir of Fraser of Brae, p. 126-7.

To stimulate their exertions, and still farther “to endear” his beloved prelates to the lieges, the king, on the 25th July, requires them to rid the kingdom of all seditious preachers or pretended ministers who had kept conventicles or gathered people to the fields since January last; “for we look on such,” he adds, “as the great disturbers of the peace and perverters of the people.” And the council urged their officers to be upon the alert; even Tweeddale, who was generally supposed friendly to the Presbyterians, or at least moderate, was not less anxious than his associates to prevent or extinguish the light of the gospel which from these conventicles was spreading over the country. In writing to the Earl of Linlithgow, he says —“Your lordship knows the counsel’s desing reachith further then to make them peaceable when the rod is over their head, which I beleive your lordship will follow as far as possible; for, iff ther be not som of thes turbulent peopel catched, all is in vayn: when they are chassed out of one place, they will flie to another: for God’s sake, therefor, endeavour by all means possible to learn wher they haunt and whither they are gon;” and then he advises the commander colonel-commandant to send parties “to catch them wher they can be had, wer it 100 mils off, especially Mr Michael Bruce.”

Michael Bruce, thus denounced, was of the family of Airth, so highly and deservedly esteemed in the annals of the Reformation, himself “a worthy,

useful, and affectionate preacher.” He had been driven from Ireland, where he had been settled, and was now zealously and boldly preaching in Stirlingshire to large auditories, generally in houses, but occasionally in the fields, and had “presumed also to baptize and administrate the sacraments without any lawful warrant,” he was therefore pursued by the soldiers as a wild beast, and at last surprised, wounded, and taken prisoner. After his wounds would allow of his being moved, he was brought to Edinburgh and sentenced to banishment, but, on his being sent to London, his sentence was altered, and he was ordered to be carried to Tangiers in Africa. He, however, obtained the favour of being permitted to retire secretly to Ireland. Several of the other “outted” ministers were likewise ordered to prison, and some fined for similar misdemeanours; numbers, however, in Fife, in the north, and even in Edinburgh,^[64] laboured with much success, while “Mr Blackadder and his accomplices” were not less assiduous in their visits to the west and in the south. Professions of greater indulgence to the Presbyterian ministers were, notwithstanding these proceedings, held out to them by Tweeddale, who had had interviews and made proposals to several of the most eminent then under hiding, when an unfortunate circumstance put an end to all hope of favour for the present.

⁶⁴. Kirkton, Welsh, Blackadder, Donald Cargil, and many others, at this time resided in the capital for months together, and secretly exercised their ministry.

James Mitchell, a preacher, who had been at Pentland, and was by name exempted from the indemnity, considering Sharpe the prime instigator of all the calamities his country had endured, and was enduring, as well as the author of his own exclusion from pardon, and having heard of his keeping up the king’s letter till the last six were executed at Edinburgh, determined to free the land from such a monster, whom he viewed in the light of an enemy whose life he had a right to take in self-defence, as well as in the service of his country.^[65] In pursuance of this resolution, he waited for the primate, July 11th, at the head of Blackfriar’s Wynd, where his house was, on purpose to effect it; and having allowed him to be seated in his coach, deliberately walked up and fired at him, but Honeyman, bishop of Orkney, who was in the act of getting up, received the shot, by which his arm was shattered, and Sharpe, for the present, escaped. Mitchell, after firing, walked away coolly, and turning down Niddry’s Wynd, went thence to Stevenlaw’s Close, shifted his clothes, and returning to the High Street,

without being discovered, mixed with the multitude who had collected, but who were giving themselves very little concern about the matter, when they heard that it was only a bishop that had been shot.

[65.](#) Vide Testimony, Naphtali.

Immediately the hue and cry was raised—the city gates were shut—the magistrates were ordered to make strict search after Whigs in the city or suburbs—the constables were called out, and a hundred soldiers sent to assist them. The town being considered a place where those who were proscribed could best conceal themselves, several of this description were then secretly residing there, and had narrow escapes, none of the least remarkable of which was that of Maxwell of Monreith.

Being unacquainted with the town when the search began, he came running to Nicol Moffat, a stabler in the Horse Wynd, and begged him to conceal him, for he knew of no shelter. “Alas!” answered Nicol, “there is not a safe corner in my house.” But there was an empty meal-barrel that stood at the head of a table in his public room, and he added, if he chose to go in there, he would put something over and cover him. There was no alternative, and in Mr Maxwell went. Scarcely was he out of sight when a constable arrived, with a band of soldiers, and demanded if there were any Whigs there? “Ye may look an’ see,” replied Nicol carelessly, and the constable, deceived by his manner, proceeded no further; but, being thirsty, called for some ale for his party, and they sat down at the table. While drinking, they began talking about their fruitless search, when one said he knew there were many Whigs in town, and he did not doubt but there were some not far distant, to which another answered with an oath, knocking at the same time on the head of the barrel, “there may be one below this;” but they were restrained from lifting the lid; and when they had finished their potations, they went quietly away.

Others were not, however, so fortunate. The servant girl of a Mr Robert Gray, a merchant in Edinburgh and a godly man, having quarrelled with her mistress, out of revenge went to Sharpe, and told him that there they would find a receptacle of Whigs, and might discover the assassin, on which Mr Gray was brought before the council. Conjecturing what his servant might have told, he at once informed them that Major Learmont, Mr Welsh, and a Mrs Duncan, a minister’s widow, had dined with him not long before; but

with regard to the assassin he knew nothing. The advocate then going up familiarly, after a short conversation, took the ring off his finger, telling him he had use for it, and dispatched a messenger of his own with it to Mrs Gray to tell her that her husband had discovered all, and sent this as a token that she might do the same. Deceived by this trick, worthy of the Inquisition, she acquainted them that Mr Welsh sometimes lodged with Mrs Kelso, a rich widow, and preached in her house, and also where Mrs Duncan was to be found. Mrs Gray and her two female friends were immediately sent to prison, and soon after brought before the council, when Mrs Kelso was fined five thousand merks and banished to the plantations. Mrs Duncan also was sentenced to banishment, and only escaped torture by Rothes observing, “it was not customary for gentlewomen to wear boots.” After a long confinement, the sentence of banishment was relaxed; but Mr Gray felt so keenly, from having been the innocent cause of so much suffering, that he sickened, and died within a few days. Mr Gillon, the “outted” minister of Cavers, likewise met his death upon this occasion in a very inhuman manner. He had retired to Currie, a few miles from Edinburgh, for the benefit of his health, where, being apprehended about midnight by two or three rascally soldiers, who pretended to be searching for the bishop’s assassin, he was forced, in sport, to run before them a distance of nearly four miles to the West Port, where, after he arrived, he was kept standing for some hours in the open air before he could obtain admission, and then was sent to lodge in a cold jail. Next day, on being brought before the council, he was recognized and dismissed, but he did not survive the treatment he had received above forty-eight hours. During this year, to compensate for the loss of the regulars, the militia were modelled, properly officered, and prepared for service—a circumstance which, as it was a time of profound peace, might have created some misgivings respecting any alteration in the plans of government.

[1669.] Flattering themselves still with the returning favour of government, the ministers pursued their prohibited labours, and conventicles continued to increase, while the council, impelled on by the repeated injunctions of the king and solicitations of the prelates, not unfrequently forgot their professions of moderation, and proceeded to acts which might have dispelled the delusion. Conventicles found no mercy. The magistrates of burghs were now made responsible for any that might be held within their bounds; and early this year, the civic rulers of the capital

were fined fifty pounds sterling, because “Mr David Hume, late minister of Coldingham, took upon him to preach in the house of widow Paton on the last Sunday of February”—a circumstance, it is highly probable, the worthy provost and bailies had never heard of till they were summoned to pay for the exercise. An act of council immediately followed, prohibiting every person from having their children baptized by any other than the Episcopal clergy, under the penalty, to an heritor, of the fourth part of his valued rent—a tenant £100 Scots and six weeks’ imprisonment—and a cottar twenty, and the same. To enforce this decree, the militia were to be employed in seizing the disobedient, and ordered to be supported by them, while on this service, at the rate of one shilling and sixpence sterling each man, and three shillings each officer per day; at the same time, collectors of fines were appointed to take care that the whole penalty was exacted; and among these, it is somewhat ludicrous to observe the Earl of Nithsdale, a papist, required to see a measure faithfully executed, the professed intention of which was, to prevent the growth of popery! then it seems lamentably on the increase—an increase the council had the effrontery to aver, was owing to the frequency of field-preaching.

The archbishop of Glasgow, whose jurisdiction was grievously annoyed by these pests, was peculiarly virulent in his opposition, prevailed upon Lord Cochrane (created Earl of Dundonald next year) to bring before a committee at Ayr, eleven ministers of that district who had been guilty of preaching and baptizing irregularly. Upon examination, the committee were inclined to dismiss them, but his lordship insisted upon their being sent to Edinburgh. There they were examined before a committee of the privy council, and acknowledged that they had allowed others, besides those of their own households, to attend when they worshipped God in their families and expounded the Scriptures, but none of them had been guilty of the enormity of field-preaching, and all promised to demean themselves peaceably, as they had hitherto done, and to give no just ground of offence. Their brethren, who were aware that temporizing would serve little purpose, were dissatisfied that they had not asserted their indefeasible right as ministers of Christ to preach his gospel; and they appear to have been convinced that they had acted too faintly in his cause, for when they were called to receive sentence, Mr Fullarton, the “outted” minister of St Quivox, in name of the rest, addressed the Chancellor. After reminding him of the unshaken loyalty which the Presbyterian ministers had displayed towards

his majesty in his lowest estate, and the unlooked for return they had met with, he added—"But now seeing we have received our ministry from Jesus Christ, and must one day give an account to our Master how we have performed the same, we dare have no hand in the least to unminister ourselves; yea, the word is like a fire in our bosoms seeking for vent; and seeing, under the force of a command from authority, we have hitherto ceased from the public exercise of our ministry, and are wearied with forbearing, we therefore humbly supplicate your lordship, that you would deal with the king's majesty on our behalf, that at least the indulgence granted to others in our way within his dominions, may be granted to us." Then, after requesting to be delivered from the oppressive tyranny of their collector of the fines, a Mr Nathaniel Fyfe, whom Kirkton styles "a poor advocate, and allied to one of the bishops," he concluded by telling him it would be no matter of regret when he entered eternity and stood before Christ's tribunal, that he had acted as a repairer of breaches in his church. The council was crowded and very attentive, but the ministers were only excused for the time, and straitly charged in future to abstain from similar practices, on pain of being visited not only for any new, but likewise for their old transgressions; and the same day a proclamation was issued, strictly forbidding all conventicles, and rendering all the heritors in the western shires liable to a fine of fifty pounds sterling for every such meeting, on pretence of religious worship, as should be kept in any houses or lands pertaining to them.

How Mr Blackadder escaped, is astonishing, for during this year he seems to have been the most active of all the ministers, as well as the boldest. In the month of January, he preached publicly at Fenwick, and continued labouring in the west, till his over-exertions, more suited to the earnest desires of the people than his bodily strength, produced an illness which confined him for several weeks.^[66] When recovered (June) he went again to his "diocese," round by Borrowstownness, where he established a congregation and secured to them the freedom of undisturbed worship, through the interest of his relation Major Hamilton, who was the Duke's bailie of regality, and lived at Kinneil House. At the request of the Ladies Blantyre, Pollock, and Dundonald, he preached to large auditories, sometimes not fewer than two thousand. In Livingstone, he administered the Sacrament of the Lord's Supper, and the example was followed in fifteen or sixteen adjacent parishes. The preaching of the gospel and

dispensation of the ordinances were attended with such blessed effects that it was no wonder the enemy raged. Upon a humiliation day, in the muir of Livingstone, the four ministers who were to preach called aside several of the gravest and most sagacious men of the bounds, and inquired at them what were the most reproveable sins they observed as necessary to be confessed unto God in these bounds, and whereof the people were to be admonished that they might the better know how to carry on the following work of the day; the men, after a deliberate pause, answered, as to public scandals and every kind of profanity, they could not say much, for they had not heard of any outbreakings of fornication, adultery, or drunkenness, scarce these seven years past, in that parish or in several parishes about, since the public preaching of the gospel had broke up among them.

66. "Money frequently was offered him for bearing accidental expenses. Several gentlemen contributed sums, and collections were made in purpose, but he uniformly declined receiving any donation, 'lest his ministry might bear the imputation of a covetous and mercenary spirit, or the enemy have occasion to reproach their cause as if money made them eager to preach.'"—*Crichton's Mem. of Blackadder*, p. 148.

About the same time, Mr Hamilton the "outted" minister of Blantyre was apprehended and sent to Edinburgh to answer to the council for holding a conventicle in his own house in Glasgow. Being asked how many hearers were in use to attend his meeting? he archly answered, that for these several years past the poor ministers of Christ who were forced from their flocks, could with difficulty support themselves and families, and could neither hire palaces nor castles. They might then easily judge what kind of houses they were able to rent, and whether they could hold large companies. His reply to whether others than his family were present? was equally pointed—"My lords, I have neither halberts nor guards to keep any out." One of the members who thought his sarcasms bore hard on the archbishop, reminded him of the favour he had got from his lordship, in being permitted to remain so long in Glasgow. "Not so much," retorted the prisoner, "as Paul got from a heathen persecuting Emperor, for he dwelt two whole years in his own hired house, and received all that came in unto him, preaching the kingdom of God, and teaching those things that concern the Lord Jesus Christ with all confidence, no man forbidding him; but both the honest people of Glasgow and myself have been often threatened with violence if we did not forbear." Finding themselves no match at this species of interrogation, the council demanded if he was willing to give bond to

preach no more in that way. He replied, he had got his commission from Christ, and would not voluntarily restrict himself whatever he might be forced to do. "An' where got you that commission?" asked the Chancellor. "In Matthew 28th chapter and 19th verse, Go teach and baptize." "That is the apostles' commission," rejoined Rothes; "an' do you set up for an apostle?" "No, my lord," said Mr Hamilton, "nor for any extraordinary person either, but that place contains the commission of ordinary ministers as well as of extraordinary ambassadors." When again asked, if he would give assurance that he would neither preach nor exercise worship anywhere but in his own house, he repeated his refusal, and was sent to prison, where he lay till his health became so much impaired that his brother, Sir Robert Hamilton of Silvertoun Hill, made interest and got him released, he giving bond of a thousand merks to compear when called.

BOOK VII.

JULY, A.D. 1669-1670.

An indulgence proposed—Partially accepted by the ministers—Mr Hutchison's address—Proclamation against those who refused it—Archbishop of Glasgow's remonstrance—Parliament assert the king's supremacy—Vote the militia, and a security for orthodox ministers—Field-meeting in Fife—Difference between Presbyterians and prelatists in doctrine and teaching—Curates disturbed—Lecturing forbid—Compromising ministers—Success of the gospel—Remarkable meetings at the Hill of Bath, &c.—Rage of the Primate—Strange escape of four prisoners.

A state of things so incongruous could not long exist. An immense majority of the population, including almost all who had any pretensions to religion, were decidedly inimical to the Episcopalian mode of worship. The churches of the curates were deserted, and themselves despised, while the exercises of the Presbyterian ministers were attended by crowds. Harsh methods had been used, and had but exasperated the evil. It was, therefore, now proposed to try what more lenient measures would produce, and an insidious indulgence was resorted to, by which it was hoped that the "fanatics" might be divided among themselves, or cheated into compliance with a modified Episcopacy. Accordingly, Tweeddale having privately consulted with Messrs Robert Douglas and John Stirling, late ministers of Edinburgh, prevailed with them to draw up a letter or petition, which he carried with him to London,^[67] where a similar system of cozenage was carrying on by Charles himself with the non-conformists, and easily obtained from the king a letter of indulgence. By it the council were authorized to appoint so many of the ministers ejected by the Glasgow act, 1662, as had lived peaceably, to return to their former charges, if unfilled up, and to allow patrons to present to other vacant parishes such as they

should approve. Those of them who should take collocation from the bishop, and keep presbyteries and synods, to be entitled to their full stipends; those who would not take collocation to have only the glebe, manse, and a moderate allowance; and such as refused to attend the presbyteries and synods, to be confined within the bounds of their parishes. But none were to admit as hearers in their congregations, nor as participators of the ordinances, any persons from the neighbouring parishes, without the consent of their own parson. The ministers not thus provided for, were to be allowed, out of the stipends of the vacant churches, an annual pension of four hundred merks, so long as they continued to behave themselves peaceably. This indulgence, limited as it was, was by no means acceptable to the prelate's party. The councillors long contested it at the board, and the bishops, with some of "the orthodox clergy," had private meetings to oppose it; but Sharpe, who understood the subject better, is said to have advised to make no objections to its publication, but to throw every obstacle in the way of its success, by clogging it in every possible manner with requirements, to which he knew the Presbyterians could not consistently submit—a line of conduct which his party followed, and which ultimately gained its object. Meanwhile, it was referred to a committee, composed of the two archbishops, the Duke of Hamilton, the Earls of Argyle, Tweeddale, Kincardine, and Dundonald, with the officers of the Crown, and the Lord of Lee, to carry his majesty's pleasure into effect, and on the 27th July, ten ministers were nominated to various places.

- [67](#). Burnet claims this service for a letter of his own. "I being there (summer 1669) at Hamilton, and having got the best information of the state of the country that I could, with a long account of all I had heard, to the Lord Tweeddale, and concluded it with an advice to put some of the more moderate of the Presbyterians into the vacant churches, Sir Robert Murray told me the letter was so well liked that it was read to the king. Such a letter would have signified nothing if Lord Tweeddale had not been fixed in the same notion. So my principles and zeal for the church, and I know not what besides, were raised to make my advice signify somewhat."—*Hist.* vol. i. p. 413.

At first the treacherous boon was not perceived by many excellent "outed" ministers in its naked deformity. They thought that it opened for them a door to preach the gospel, of which they were anxious to avail themselves, and imagined that by explicitly avowing their sentiments when they accepted their appointments, they would exonerate their consciences and satisfy their brethren. Accordingly, when these ten were brought before

the council, and received their allotments, accompanied with injunctions, Mr George Hutchison, late one of the ministers of Edinburgh, transported to Irvine, thus spoke:—"My lords, I am desired in the name of my brethren present to acknowledge in all humility and thankfulness, his majesty's royal favour, in granting us liberty and the public exercise of our ministry, after so long a restraint, and to return thanks to your lordships for having been pleased to make us, the unworthiest of many of our brethren, so early partakers of the same. We having received our ministry from Jesus Christ, with full prescriptions from him for regulating us therein, must, in the discharge thereof, be accountable to him; and as there can be nothing more desirable or refreshing to us upon earth, than to have free liberty of the exercise of our ministry, under the protection of lawful authority—the excellent ordinance of God, and to us most dear and precious—so we purpose and resolve to behave ourselves, in the discharge of the ministry, with that wisdom and prudence which becomes faithful ministers of Jesus Christ, and to demean ourselves towards lawful authority—notwithstanding of our own judgment in church affairs—as well becomes loyal subjects, and that from a principle of conscience. And now, my lords, our prayer to God is, that the Lord may bless his majesty in his person and government, and your lordships in your public administrations; and especially, in pursuance of his majesty's mind, testified in his letter, wherein his singular moderation eminently appears, that others of our brethren may in due time be made sharers of the liberty, that, through his majesty's favour, we now enjoy."

Mr Hutchison's address neither pleased the council nor satisfied his brethren. The latter thought it did not assert with sufficient plainness the sole kingship of Christ in his church, nor bear an honest enough testimony against the usurpation of Charles and his council. The rest, who were selected for a similar favour, had therefore resolved to be more downright, but they were never allowed an opportunity. The council, who wished to hear no more upon the subject, sent their appointments to them. The whole number under the first indulgence amounted to forty-three. They were willingly received by the people, and as they abstained from controversial subjects and confined themselves to the pure doctrines of the gospel, it was remarked that they were eminently countenanced of the Lord in their labours.

As had, however, always been anticipated by the more unbending part of the ministry, this partial relaxation to a few was accompanied by harsher measures against the rest, especially those who, choosing to obey God rather than man, could not in conscience comply with the mandates of those rulers, and desist from declaring the glad tidings of salvation as He, in his providence, gave them opportunity. A fresh proclamation was issued, (August 3,) commanding all heritors to delate to the next magistrates, any who, within their bounds, should take upon them to preach and carry on worship in any unwarrantable meetings, that they might be thrown into prison—the magistrates of burghs were required to detain them till further orders—and the lieges were likewise informed, that the laws would be rigidly put in execution against all withdrawers from public worship in their respective congregations. These, however, were only preparatory to severer parliamentary enactments, which confirmed the worst suspicions of those who uniformly distrusted the equivocal toleration of their rulers, and justified their refusal to come to any compromise as a matter of sound policy, even had it not been a point of conscience. In the interim, the prelates pursued their own measures, to render abortive the provision intended for the unindulged, but quiet, part of the brethren. They procured that the act of parliament which allotted all vacant stipends, since 1664, to the support of the universities, should be examined into; nor does it appear that any one of the sufferers ever received a farthing from that fund. Mr John Park, one of the ten, late minister of Stranraer, was reponed to his own parish, but the bishop of Galloway, three days after the council's nomination, admitted one Nasmith to the charge; and notwithstanding, or perhaps rather because the people were unanimous in favour of their late pastor, the council rather chose to submit to the insult done their authority, than disoblige the prelate, and confirmed the intruder in his office.

A project of an union between the two kingdoms was the ostensible reason for assembling the Scottish parliament after six years' interval. The project came to nothing; but, in the meanwhile, it subserved the ambition of Lauderdale, who was appointed Commissioner. The elections went entirely in favour of his party, and he was received in Scotland with little less pomp than if he had been the sovereign, for his opponents were eager to deprecate his anger; and the Presbyterians, the dupes of their own wishes, fondly believed that he was still in heart with them, though he had been forced by circumstances to act otherwise, in which they were the more confirmed by

an incident that occurred two days before the parliament sat down, which yet was only a political fracas. Burnet, archbishop of Glasgow, who was one of the stoutest assertors of the king's absolute supremacy, when it overturned Presbyterianism and settled Episcopacy, was by no means so clear about his majesty's right to set aside the laws when he trenched upon the functions of the bishops, and granted relief to the persecuted ministers. He, therefore, in the Episcopal synod of Glasgow, caused, or allowed, a remonstrance to be drawn up against the indulgence, representing it as an illegal stretch of power, and likely to be destructive to the church. Unfortunately for the right reverend father, he stood opposed both to Lauderdale and Sharpe, and the affair being brought before the council, his lordship was ordered to produce the paper, which was forwarded to the king; and James Ramsay, dean of Glasgow, and Arthur Ross, parson, who had drawn it up, were severely reprimanded—the paper suppressed—and “all his majesty's lieges, of what function or quality soever, discharged from countenancing or owning the same.” Lauderdale did not, however, long allow the Presbyterians to remain in doubt as to his real sentiments. In his speech to parliament, which met on the 19th, he assured them of the king's unalterable determination to support Episcopacy—avowed his own attachment to it—and inveighed against conventicles, whose entire suppression he urged, as his majesty having granted an indulgence, would never now consent to tolerate them.

The parliament, like their predecessors, showed every inclination to comply with whatever was required; and in their first act asserted and declared, that his majesty had the supreme authority and supremacy over all persons and in all causes ecclesiastical within the kingdom, and that the ordering and disposal of the external government and policy of the church did properly belong to the king and his successors, as an inherent right of the crown, who might emit such orders concerning the external government of the church—the persons employed in it—their meetings, and the subjects to be discussed there, as in their royal wisdom they should think fit, which, when entered in the books of council and duly published, were to be obeyed by all his majesty's subjects, any law, act, or custom, to the contrary notwithstanding. Even the bishops themselves were not greatly delighted with this act, and such of the nobility as retained any lingering respect for the religious liberties of their country, were only induced to support it by the representations of Lauderdale, that it was necessary to have some check

upon the bishops, whose insolence was intolerable; but the consistent Presbyterians saw in it nothing but the assumption of an antichristian power, which no magistrate on earth had any right to possess, and it afforded to them another and a stronger objection than they previously had, to accepting any indulgence from the king. The conduct of the council in embodying the militia, and thus, under another name, establishing a standing army in Scotland, was next approved of by an *ex post facto* act, empowering his majesty to do what had been already done, and declaring this also an inherent right of the crown. Then followed an act for the security of the persons of the orthodox ministers.

It seems three women, or men in womens' clothes, most probably the former, had, during the summer, on one night about nine or ten o'clock, come into the house of John Row, curate of Balmaclellan, in Galloway—who afterwards turned a papist—and taking him out of his “naked bed,” had inflicted upon his carcass a very irreverent flagellation, after which, it is said, they opened his trunk and took away what they had a mind; for this, the heritors of the parish were fined £1200 Scots. Mr Lyon, curate at Orr, was searched for, but missed; and, it was reported, his house was spoiled; for which his parishioners were assessed in the sum of six hundred merks. These sums having been levied by order of the privy council, this act was procured to legitimate all similar exactions in future, and, like almost every other enactment of this period, added a new link to the chain of despotism. The forfeitures inflicted by the Court of Justiciary were, in like manner, legalized by an act of this congregation of sycophants, whose session ended on the 23d of December.

Towards the close of the year, the first field-meeting was held in Fife. Mr John Blackadder having gone to visit his two friends, Sir James Stewart and Sir John Chiesly, who were then imprisoned in Dundee, Lady Balcanquhal invited him to preach in her house—the only species of conventicle yet known in that district; but he fearlessly caused public advertisement to be made, that all that were athirst might come without money and without price. “Let all the world,” said he, “see that you do not huddle up so profitable and honest a work, or keep it to yourselves; for my part, I am not ashamed to avow, in the face of danger or death, I came not to call the righteous, but sinners to repentance.” A multitude in consequence assembled, too numerous for the house to contain, and they betook

themselves to the fields. Many were much affected; and some, who were present, when asked, what they thought of the work? answered with tears, that they had never seen such a day, and were eager to know when such an opportunity might occur again.

[1670.] Under whatever figure of speech it might be disguised, it was now no longer a matter of doubt what was the dispute between the Presbyterians and the Episcopalians. It was not a mere form of church government—it was not a question about obedience to lawful rulers. It was a contest between light and darkness—it was, whether the gospel of the grace of God was to be freely preached to the poor inhabitants of Scotland, or was it not? Historians, or men styling themselves historians, in overlooking this circumstance, either do not understand or wilfully avert their eyes from the fundamental cause of the persecution, from this date till Bothwell Bridge, when it again became mingled with political matters. Had there been any doubt upon the subject, the proceedings of the privy council and of parliament this year, would have sufficiently cleared it. Mr Andrew Boyd, minister of Carmunnock, was, in the month of January, committed to close confinement in Stirling Castle, for having preached to, and met, for the purpose of worshipping God, with his former parishioners. Nor would his defence be listened to, although he pled the necessity of preaching the gospel when ignorance and profanity so much abounded, and so many souls were perishing for lack of knowledge. The ministers of Newbattle, Strathaven, and Symington, were similarly treated, although they appear only to have followed the apostolic practice, and “ceased not in every house to teach and preach Jesus Christ.” Some fines were at the same time levied upon those who attended. One lady (Helderston) was fined four hundred merks for having had a conventicle in her house in Edinburgh—a merchant, for having had his child baptized, was mulcted in two hundred—and four citizens, for being present, paid each one hundred pounds—although, as a venerable minister observed before the council, there was as yet no law of Scotland forbidding the worship of God, which was the only crime laid to their charge.

While the “outted” ministers were forbid to exercise their ministry in any shape, those who were indulged soon began to experience that their liberty was by no means perfect freedom. The first link that was added to their chain, was a prohibition from explaining the Scriptures to their people in

the manner they thought best fitted to convey instruction. It is evident that, in stated congregations, an exposition of connected passages of Scripture, or what is generally known in Scotland as “lecturing,”^[68] is eminently calculated to improve and edify the church; and this had been an old method employed by the most distinguished and successful of the Presbyterian ministers. The indulged continued the practice; but for this the uneducated and worthless crew who had been thrust into their charges were totally unfit, and their pulpit exhibitions only encountered the scorn of their hearers—sometimes perhaps too rudely expressed.

Complaints were therefore made to the privy council, and their superior ability and mode of teaching were imputed as crimes to the indulged, whose favour with the people, by the same reasoning, was considered the cause of their hatred to the curates. They were in consequence forbid to lecture, and a commission was granted to the Duke of Hamilton, the Earls of Linlithgow, Dumfries, Kincardine, and Dundonald, the Lord Clerk Register, and Lieutenant-General Drummond, or any four of them, to “put to due and rigorous execution the acts of parliament and councils” respecting “pretended” religious meetings, the security of the orthodox clergy, and to examine into the conduct of the indulged ministers. The charges of outrage brought forward by the legal incumbents against their parishioners, were in some cases villanously false, and in others ridiculously exaggerated. One Jeffray, curate of Maybole, accused the Whigs of having attempted to shoot him, and produced a volume contused by a ball, which he said had saved his life, having been in his bosom when he was fired at; but, upon examination, it was found that the clothes he wore at the time were untouched, the blockhead having forgot to perforate his garments when he wounded his book. This precious evangelist was, in consequence, dismissed; but when there happened to be any ground for complaint, the case was remitted to Edinburgh, and the punishment was extravagant. Some idle boys had thrown a bit of rotten wood at the curate of Kilmacomb while he was holding forth; and when he left the pulpit in terror, they followed the fugitive, huzzaing and shouting, till he reached the manse. For this boyish insolence, which probably merited a whipping, four of the offenders were sentenced to be transported to the plantations! and the heritors of the parish were fined one hundred pounds sterling, which Mr John Irvine, the said curate, received as a solatium. The parson of Glasford’s house was robbed by common thieves, one of whom being afterwards executed for another

crime, confessed the fact. The Whigs, however, were accused, and the parish paid one thousand pounds Scots for having maltreated a man they had only despised.

[68.](#) There is not a more delightful example of this mode of teaching than Leighton's exposition of the First Epistle of Peter.

These instances may serve to show the spirit of the times which all our historians agree in representing as mild and moderate, and certainly the managers were so, in comparison of those who succeeded them. The indulged ministers were examined by the commissioners as to whether they had desisted from lecturing; but the equivocal shifts to which they had recourse, exposed them to the animadversions of their stricter brethren, and did not exalt their characters with the prelatical party. Some read a whole chapter, naming one verse only as a text. Others read two chapters, and offered a few observations; and in this part of the service they, in general, never exceeded the length of half an hour, which seems to have been a redeeming qualification, for the visiting committee neither silenced nor removed any of them. They contrived also to celebrate the 29th of May in a manner equally illusive, by contriving to have a baptism, a diet of catechising, or their week-day sermon, upon that anniversary day; but the jealousy of the people was kept alive by the exiled ministers. Mr John Brown, late minister of Wamphray, and Mr John Livingston, both wrote, condemning such duplicity in practice, and exposing its danger, though at the same time they expressed themselves affectionately with respect to their brethren, the men whose conduct they condemned. Nor did the visiting committee fulfil the expectation of their employers. Gilbert Burnet, afterwards bishop of Sarum, was at this period professor of divinity in the University of Glasgow; and as he was respectable both for his talents and conduct—moderate in his principles regarding church government, and a friend to toleration, the commission were considerably influenced by his advice, which, from his first outset in life, was uniformly opposed to all persecution; and also by that of the amiable Leighton, who with much reluctance had been prevailed upon to hold the archbishopric of Glasgow, *in commendam*, upon the resignation of Alexander Burnet, whose conduct in the remonstrance being offensive to his majesty, had rendered it requisite for him to demit. They therefore, though they imprisoned and harassed a number of the Presbyterians for not attending the church, and for attending

conventicles, yet, because they did not execute in their full rigour the instructions and proclamations of the privy council, were reckoned unfriendly to the cause of Episcopacy.

A great desire to hear continued to increase and to prevail during this period; and these servants of Christ—who could not consent that the word of God should be bound, followed by vast multitudes, when they could not find accommodation within any common house—imitating the example of their Lord, chose the field for their cathedral, and, with the heavens for their canopy, and the mountain side for their benches, preached boldly the gospel of salvation. The most remarkable assemblage of this kind which had yet occurred, was that held, 18th June, on the Hill of Beath, near Dunfermline, of which one of the presiding ministers has left an account, and which I insert in his own language. They could not now, however, be held with the same security as formerly, for the council had offered a reward to the soldiery for dispersing these meetings and apprehending the minister, or such as could give information concerning him, with the most considerable heritors and tenants, who were all rendered liable to imprisonment and fine. It was therefore necessary to appoint watches and take precautions for their personal security; and as people of that rank generally went armed, they did not lay them aside when their attendance on gospel ordinances was threatened to be interrupted by violence. Upon this occasion, Burnet says, as a matter of course, “many of these came in their ordinary arms, that gave a handle to call them rendezvouses of rebellion,” vol. i. p. 430. Though the spot was not distinctly marked out, it was, during the preceding week, pretty generally understood, and a vast congregation gathered from almost every quarter of the country.

“On Saturday afternoon,” says the narrator, “people had begun to assemble. Many lay on the hill all night; some stayed about a constable’s house, near the middle of the hill; several others were lodged near about, among whom was Barscob and nine or ten Galloway men. The minister, Mr Blackadder, came privately from Edinburgh on the Saturday night, with a single gentleman in his company. At Inverkeithing, he slept all night in his clothes, and got up very early expecting word where the place of meeting was to be, which the other minister (Mr John Dickson) was to advertise him of. However, he got no information, and so set forward in uncertainty. Near the hill, he met one sent by the minister to conduct him to a house hard by,

where he resolved, with the advice of the people, to go up the hill for the more security and the better seeing about them. When they came, they found the people gathered and gathering, and lighting at the constable's house, who seemed to make them welcome. While they were in the house, a gentleman was espied coming to the constable's door and talking friendly with him, who went away down the hill. This gave occasion of new suspicion and to be more on their guard. However, they resolved to proceed to the work, and commit the event to the Lord.

“When a fit place for the meeting and setting up of the tent was provided—which the constable concurred in—Mr Dickson lectured and preached the forenoon of the day. Mr Blackadder lay at the outside within hearing, having care to order matters and see how the watch was kept. In time of lecture he perceived fellows driving the people's horses down the brae, which he supposed was a design to carry them away. He rising quietly from his place, asked them what they meant? They answered, it was to drive them to better grass. However, he caused them bring them all back again within sight. After Mr Dickson had lectured for a considerable space, he took to his discourse, and preached on 1 Cor. xv. 25. ‘For he must reign till he hath put all his enemies under his feet.’ In time of service, some ill-affected country people dropped in among them, which being observed by Mr Blackadder and those appointed to watch, he resolved to suffer all to come and hear, but intended to hinder the going away of any with as little noise as might be. Among others came two youths, the curate's sons, and about fourteen or fifteen fellows at their back, who looked sturdily; but after they heard, they looked more soberly. The two young men were heard to say they would go near the tent and walk about to the backside of it, which some who were appointed to watch seeing, followed quickly, so they halted on their way. The man that came to the constable's house in the morning was seen at the meeting, and kept a special eye upon; essaying to go away to his horse at the constable's, two able men of the watch went after, and asked why he went away? He answered, he was but going to take a drink. They told him they would go with him, and desired him to haste and not hinder them from the rest of the preaching; so he came back; but he was intending to go and inform the lieutenant of the militia who was at the foot of the hill and gathering his men. However, the sermon closed without disturbance about eleven hours in the foreday, the work having begun about eight.

“Mr Blackadder was to preach in the afternoon. He retired to be private for a little meditation. Hearing a noise, he observed some bringing back the curate’s two sons with some violence, which he seeing, rebuked them who were leading them, and bade let them come back freely without hurt; and he engaged for them they would not go away; so they staid quietly, and within a quarter of an hour he returned and entered into the tent. After some preface, which was countenanced with much influence, not only on professed friends, but on those also who came with ill intentions, so that they stood as men astonished with great seeming gravity and attention, particularly the two young men. It was indeed a composing and gaining discourse, holding forth the great design of the gospel to invite and make welcome all sorts of sinners without exception. After prayer, he read for text, 1 Cor. ix. 16. ‘For though I preach the gospel, I have nothing to glory of, for necessity is laid upon me; yea, wo is unto me if I preach not the gospel.’

“After he had begun, a gentleman on horseback came to the meeting and some few with him. He was the lieutenant of the militia on that part of the country, who lighting, gave his horse to hold, and came in among the people on the ministers left hand, stood there a space, and heard peaceably. Then essaying to get to his horse, some of the watch did greatly desire he would stay till the preaching was ended, telling him his abrupt departure would offend and alarm the people. But he refusing to stay, began to threaten drawing his staff. They fearing he was going to bring a party to trouble them, did grip and hold him by force as he was putting his foot in the stirrup. Upon this Barscob and another young man, who were on the opposite side, seeing him drawing his staff, which they thought to be a sword, presently ran each with a bent pistol, crying out—‘Rogue, are you drawing?’ Though they raised a little commotion on that side, yet the bulk of the people were very composed. The minister seeing Barscob and the other so hastening to be at him, fearing they should have killed him, did immediately break off to step aside for composing the business, and desired the people to sit still till he returned, for he was going to prevent mischief. Some not willing he should venture himself, laboured to hinder him. He thrust himself from them, and pressing forward, cried—‘I charge and obtest you not to meddle with him or do him any hurt,’ which had such influence on them, that they professed afterwards they had no more power to meddle with him. The lieutenant seeing it was like to draw to good earnest, was

exceeding afraid and all the men he had; but hearing the minister discharging the people to hurt him, he thrust near to be at the minister who had cried—‘What is the matter, gentlemen?’ Whereon the lieutenant said, ‘I cannot get leave, sir, to stand on my own ground for thir men.’ The minister said, ‘Let me see, sir, who will offer to wrong you; they shall as soon wrong myself; for we came here to offer violence to no man, but to preach the gospel of peace; and, sir, if you be pleased to stay in peace, you shall be as welcome as any here; but if you will not, you may go, we shall compel no man.’ ‘But,’ said he, ‘they have taken my horse from me.’ Then the minister called to restore his horse, seeing he would not stay willingly. Then he was dismissed without harm at the minister’s entreaty, who judged it most convenient that the gentlemen and others to whom he should report it, might have more occasion of conviction that both ministers and people who used to meet at such meetings, were peaceable, not set on revenge, but only endeavouring to keep up the free preaching of the gospel in purity and power, in as harmless and inoffensive a way as was possible. Some of the company, indeed, would have compelled and bound him to stay if he had not been peaceable; but they were convinced afterwards that it was better to let him go in peace. The whole time of this alarm on that quarter, all the rest of the people sat still composedly—which was observed more than ordinary in any meeting either before or after—seeing such a stir. As in many other things the mighty power and hand of the Lord was to be seen in that day’s work, and the fruit that followed thereon.

“When the lieutenant was gone, the rest that dropped in through the day, with the curate’s two sons, staying still, not offering to follow. After the composing that stir, which lasted about half an hour, the minister returned to the tent, and followed out the rest of his work, preaching about three quarters of an hour with singular countenance, especially after composing the tumult. All the time there were several horse riding hither and thither on the foot of the hill, in view of the people, but none offered to come near; for a terror had seized on them, as was heard afterwards and confessed by some of themselves. The minister, apprehending the people might be alarmed with fear, that they could not hear with composure—though none did appear—did for their cause close sooner than he intended, though the people professed afterwards, and said they would rather he had continued longer, for they found none either wearied or afraid.

“The minister that preached in the afternoon, with about sixteen or twenty of the ablest men, went to the constable’s house, where they had prepared dinner, and would have him and his company come in to dine; but he calling for a little drink and bread on horseback, the rest also taking something without doors, and missing the other minister, feared lest some of the enemy in dismissing had apprehended him. So, leaving the rest at the house, he rode up the hill again, with some others who were on horseback, to seek him; for he said he would not go without the other minister, but resolved to cause rescue him if he had been taken; and coming to the place where the meeting had been, some of the people told him the minister had taken horse with another gentleman a little before the close; upon which he returned again to the company at the house, who desired him to ride away, they being on foot. He told them he would stay, and also desired them to stay, till they should see all the people get safe from the hill; and when all were peaceably dismissed, he with another on horseback, rode to the Queensferry. The rest being able men and on foot, were to follow. When he came thither, none of the boats would go over at that time, the country being ill set and in such a stir. It was not thought fit he should stay on that side of the water, therefore he rode up three or four miles, expecting to get boat at Limekilns; but that being gone over with others at the meeting before, he rode forward towards Kingcairn, where they again essayed at Hoggin’s-neuk; but the boat being on the other side, they were forced to ride on towards Stirling. He came thither about nine at night; and after they had crossed the bridge, and rode through some back lanes of the town, they came at the port they should go out at, but it was shut, only a wicket open, through which they led their horses, and so escaped the alarm which arose in the town a little after they were gone. They rode that night about four miles to Torwoodside, where they lighted at an honest man’s house, took a little refreshment for man and horse, till break of day, and then rode for Edinburgh. They went hard by the gate of the place of Callander, where the Chancellor and other noblemen were at the time, they not knowing till afterwards. They rode also by the back of the town of Linlithgow, where many ill set people were. About seven o’clock on Monday morning, he came to Edinburgh, where the noise was come before; therefore he retired to another chamber, and, after taking breakfast, he lay down and slept six hours’ space, being much wearied, having not cast off his clothes and ridden forty-eight miles from Sabbath about twelve o’clock. The gentlemen and

the rest whom he left on the hill, came over at the Ferry, and returned to Edinburgh in safety that night.”

Reports of this meeting quickly spread to the remotest corner of the land; and the evident tokens of the divine presence which had accompanied the exercises of the day, stirred up a holy emulation in the other ministers, who thanked God and took courage, and excited and kept alive among the people an attention to the concerns of their souls, which too often languishes in the days of ease and amid the undisturbed enjoyment of gospel privileges, while to many the word came in the demonstration of the spirit and with power; so that even some who were unfriendly to these irregular proceedings, were constrained to acknowledge that in their sermons, in houses and fields, the “outted” ministers were remarkably countenanced of the Lord and blessed with many seals of their ministry, in the conversion of many, and edifying those who were brought in. It was followed in about a fortnight by another not less numerous at Livingseat, in West Calder, where Mr John Welsh presided; and, in the beginning of July, a large conventicle was held at Torwood-head, for which a Mr Charles Campbell, in Airth, was imprisoned and fined; but who was the minister on this occasion, I have not learned. Grievous was the rage of the prelates; but the invasion of the primate’s more immediate territories behoved to be visited with signal vengeance, as a horrid insult had been offered so near the place where he had his seat. The two ministers were denounced and put to the horn—“multitudes” were imprisoned, fined in large sums, and otherwise harassed—James Dundas, the brother of the Laird of Dundas, was sentenced to transportation, under pain of death if he returned—and others, equally respectable, were brought to no little trouble, although but few were actually sent to the plantations.

The case of “four Borrowstownness-men,” is too remarkable to be passed over. Their names were, John Sloss, a resider in the town; David Mather, elder in Bridgeness; John Ranken, in Bonhard; and James Duncan, in Grange. These having been apprehended, were brought before the council, and refusing to give any information, or turn informers against their brethren, were fined each five hundred merks, and sent back to prison to remain during the council’s pleasure. They were afterwards brought before the council, and, along with other six, condemned upon an *ex post facto* statute to be sent as slaves to the plantations; and when one of them only

entreated to be allowed to take farewell of his wife and small family, Lauderdale furiously replied—"You shall never see your home more," adding, with a malignant sneer, "this will be a testimony for the cause."

In this, however, he proved a false prophet. Mr Blackadder tells us, the four got their liberty, which fell out by a singular cast of providence. The guard that conducted them from the Canongate jail brought them to the outer council-house, and leaving them there with the guards who waited on their neighbours from the high town tolbooth; and thinking themselves exonerated, they went their way, expecting that the guard that waited on the prisoners from the town tolbooth would notice them. After they had gotten their sentence, command was given to carry the whole to their respective prisons; upon which those who guarded the prisoners of the town carried them to the tolbooth, the rest were left without a guard. Notwithstanding, at the dismissing of the council, and the throng of people, they went on, supposing their guard to be following. One of them never knowing, went the whole length, and entered the prison again. Other two went the length of the Cross, till a friend came and asked, whither they were going? They said, "to their prison." He said, "Will you prison yourselves, seeing there is none waiting to take you to it?" which they perceiving, made their escape. Other two went the length of the Netherbow, then looking behind, and seeing none guarding them, made their escape also. The other five, together with him who went back inadvertently, were afterwards, through the interest of the Chancellor's secretary, and perhaps owing to the ludicrous appearance the council cut by the escape of the four, also granted their liberty.^[69] A pious youth, who was at the Beath Hill and Livingseat, was committed close prisoner, ordered to be put in irons, and fed on bread and water during pleasure; and although great interest was made for him, he obtained no release, till the iron had gangrened his legs, which eventually, according to Kirkton, cost him his life.

⁶⁹. Blackadder's Mem. MSS. quoted in his life.

Previous to the meeting of parliament, Lauderdale, wishing to ingratiate himself with the prelatie party, urged on the persecution of the non-conformist Presbyterians. They had in the beginning of the year been banished the capital. Immediately upon his arrival, he issued a proclamation forbidding any of them to come to Edinburgh without a license, upon pain of death; but summonses were issued to the most zealous who had been

guilty of preaching, requiring them to appear before the council. The latter came privately to town, to ascertain the temper of their rulers and their own probable fate, when finding that imprisonment or exile would be the consequence of their attending, resolved to decline. Before separating, they drew up an affecting letter to their brethren, bemoaning the desolations of Zion and the rod of wickedness lying upon the lot of the righteous, but chiefly lamenting the little kindness and melting of heart among professors—their little sympathy with the Lord’s dear servants and people, now bearing the heat and burden of the day, made wanderers and chased from mountain to hill, not having where to lay their head—and the readiness of some rather to censure than partake of affliction with those who were suffering for the sake of the gospel. Beseeching them to stir up that great mean and duty—all that seemed left to them—of serious prayer, supplication, and wrestling with the Lord, both alone and together—an exercise which Christ himself had so much recommended, “that we ought always to pray, and not to faint;” so much practised by the saints, especially in particular exigencies, as Acts xii. 5. “Prayer was made of the church without ceasing;” and ever followed with a blessed success when seriously gone about—“They called upon the Lord and he answered them.” Psal. xcix. 6. Jas. v. 16-18; while it carried with it a sweet reward in its own bosom, even “the peace of God, which passeth all understanding, keeping and guiding both heart and mind through Christ Jesus.” Phil. iv. 7.

This letter was attended with the best effects. Many of the godly ministers throughout the land—men of prayer—were stirred up by it, and set apart stated seasons for solemn fasting and supplication for the church and country, which God answered to themselves by terrible things in righteousness. He caused men to ride over their heads; they went through fire and through water, but he brought them out into a wealthy place. Their worldly circumstances were straitened, but the gospel had free course and was glorified. Some lived to see his gracious interposition in the glorious Revolution, 1688; numbers never did, but were favoured to go by a shorter road from a scaffold to a throne; yet their posterity have reaped and are reaping the benefit of their prayers.

BOOK VIII.

JULY, A.D. 1670-1674.

Parliament—Act against conventicles—Bond—Leighton's efforts to reform the Episcopate—Council appoint a committee—Leighton attempts an accommodation—Conference—Rigid treatment of indulged ministers—Conventicles increase—Implacability of the Prelates—Lady Dysart—Ascendancy of Lauderdale—Parliament—Finings—Indulgence—Dissensions of the ministers—Sufferings of the indulged—Mr Forrester and Mr Burnet abandon Prelacy—Their testimony—Proceedings at the meeting of estates—Mr Blackadder's tour in Fife—Ministers' widows' petition—Its consequences—Sharpe's troubles.

Parliament commenced a short session, July 28, ostensibly for the purpose of forwarding an union between the two kingdoms; and their first bill empowered the king to name commissioners for this purpose, but the scheme, if ever seriously entertained, proved abortive. Their other proceedings were of more deplorable efficacy. Men of principle, who were accustomed to attend upon the preaching of the gospel, or the worship of God in unauthorized places, and who seldom or never refused to acknowledge their own participation in such misdemeanours, yet, as they considered it a crime to discover the minister or their fellow-worshippers, they uniformly refused to turn informers; and this which, in any other case, would have been extolled as an high and honourable feeling, was in them to be treated as a felony. An act was therefore introduced against "such who should refuse to depone against delinquents," ordaining that all of what degree, sex, or quality soever, who should refuse to declare upon oath their knowledge of any unlawful meetings, the several circumstances of the persons present, and things done therein, to any having authority from his majesty, or who should conceal or reset any who were or might be declared rebels—should be punished by fining, imprisonment, or transportation as

slaves to the plantations. To ensure the safety of the orthodox clergy, any attempt upon their houses or persons was declared punishable by death and confiscation of goods; and a reward of five hundred merks was offered to any person who should discover and seize such “robbers or attempters;” or, if one should inform, and another seize, the first was to have two, and the other three hundred merks of the same.

The most atrocious measure, however, of this assembly, was their “act against conventicles,” by which it was statute and commanded that the “outted” ministers, who were not licensed by the council, and no other persons not authorized nor tolerated by the bishop of the diocese, should presume to preach, expound Scripture, or pray in any meeting, except in their own houses, and to those of their own family, “under pain of imprisonment till they should find security to the amount of five thousand merks never again to trespass in a similar manner, or to remove out of the kingdom and never to return without his majesty’s license; every person present was to be fined—an heritor, a fourth part of his yearly rent—a tenant, twenty-five pounds Scots—a cottar, twelve pounds—and each servant, a fourth part of his yearly fee; and if accompanied by wives or children, half the sum for each. The master or mistress of the house to pay double. Besides which, the magistrates of any burgh where a conventicle was kept, were rendered liable to a fine at the pleasure of the privy council, they having recourse upon the persons present, who were thus subjected to be twice mulcted for the same crime; and in addition, punished with imprisonment as long as the council should see fit.”

Field-conventicles, denominated “rendezvouses of rebellion,” but explained to be meetings for hearing the Scriptures expounded, or for prayer, were punishable—the minister by death and confiscation—the attenders by double penalties to those of house conventicles; and every meeting was declared to be a field conventicle, although held in a house, if there were any persons standing without at the door or at the windows. The execution of this act was intrusted to the sheriffs, stewards, lords of regalities, and their deputies, who were to account to the privy council for the fines of the heritors; but all others, to stimulate their activity, they were allowed to retain. Persons having their children baptized by any minister except their own parish priest, were rendered liable to additional fines, to be levied in the same manner, and, to complete the tyranny with the most cruel

insult, by enforcing a principle which Lauderdale well knew the Presbyterians acknowledged—the king’s right to regulate the externals of religion.^[70]

70. In religion, as in every thing else, what may be right in the abstract, may be essentially wrong in its practical application. The power of the magistrate to enforce attendance upon divine worship may be very plausibly defended as a principle, but, supposing that the whole Episcopalians in Scotland had been as godly men, and as excellent preachers as Archbishop Leighton, to have obliged these conscientious sufferers to have attended their ministrations, would have been no less persecution than forcing them to attend the worthless curates who neither understood nor preached the gospel.

His majesty conceiving himself bound in conscience and duty to interpose his authority, that the public exercises of God’s worship be countenanced by all his good subjects, and that such as upon any pretext do disorderly withdraw, be by the censures of the law made sensible of their miscarriage, and by the authority of the law drawn to a dutiful obedience of it—with advice and consent of his estates in parliament, ordained and commanded all his good subjects of the reformed religion, to attend and frequent the ordinary meetings for divine worship in their own parish churches; and whoever should absent themselves three Lord’s days, without a reasonable excuse for every time, were to be fined—an heritor an eighth of his yearly rent—a tenant six pounds Scots—a cottar or servant forty shillings. So sensible, however, did the framers of the act appear to be, that such care for the religious improvement of the people, instead of being likely to produce reformation, was more likely to produce rebellion, that they ordained if any person, after being fined, should persist in still absenting himself from the means of instruction which the government had so kindly provided, he should be required to sign a bond to the following purport:—“I, —, oblige myself that I shall not upon any pretext or colour whatsoever, rise in arms against the king’s majesty, or any having his authority or commission; nor shall assist nor countenance any who shall rise in arms.” And if any person refused, he was to be imprisoned or banished, and his single escheat or life-rent escheat was to fall to his majesty.

Acts so immeasurably rigorous, which passed without one dissenting voice except that of the young Earl of Cassils, so vile was that crouching assembly, grieved the soul of the amiable Leighton—whose first coldness towards the Presbyterian profession had arisen from what he conceived to be a persecuting spirit in the manner they forced the covenants to be sworn

—and he declared he would never consent to propagate Christianity itself by such means, far less a form of church government.^[71] Tweeddale told him they were never intended to be put in execution, but were merely hung out, *in terrorem*, to induce the Presbyterians to comply with the advances of government, and meet them on a plan of equitable moderation. Duped by these false and hollow professions, he strenuously set himself to endeavour accomplishing so desirable an end; and, as a first step, immediately on his entry into the archiepiscopal office, he made an effort to rid his district of the incapable and scandalous underlings who degraded their function and rendered it contemptible in the eyes of the people. He appointed a committee to inquire into the complaints made against the curates, of whose proceedings we have no authentic record. From the testimony, however, of the Presbyterian writers, it appears that several had been removed; that others who feared a similar sentence, compounded with their parishes for a little money, and voluntarily went back to the north and east, whence they had come; and that the archbishop, at least in one instance, had personally interposed, where his committee were inclined to be partial, and dismissed the noted curate of Maybole, against whom the crimes of swearing, fighting, and drunkenness, were proved. But I apprehend his exertions in this had been cramped by the interference of the civil power; for “the council, upon being informed that the synod of Glasgow had appointed a committee of their number to hear and take trial of such complaints as should be given in to them against scandalous ministers; and considering it expedient that they should have all encouragement, appointed Sir John Cochran of Ochiltree, Sir Thomas Wallace, Sir John Cunninghame, Sir John Harper, and the provosts of Glasgow and Ayr, to meet with them and assist them.” The nature of all such assistance is sufficiently plain; and if less was accomplished than expected, the cause of the failure may be easily accounted for without any fault on the part of the bishop.

⁷¹. The conduct of Leighton has always appeared to me inexplicable; and, although I willingly give him credit for the best of motives, yet I have never met with any very satisfactory apology for his accepting a then bishopric. It must not, however, be forgotten, that he repeatedly tendered his resignation to the king, who personally urged him to retain it; and that he did so upon the faith of the royal promise that milder measures would be pursued, and that when he found himself deceived, he left the archiepiscopate.

Another scheme which he tried at the same time to elevate the Episcopalian character, proved even still more abortive. He employed

several of the most learned and decorous of their preachers, who were also reckoned pious, Dr Gilbert Burnet, Mr James Nairn, Mr Laurence Charteris, men of superior abilities and unblameable lives, with some others of more obscure name, as missionaries to preach in the west. They were received by the people with scorn, and contemptuously styled the bishop's evangelists; few could be persuaded to hear them, and of those who did, they do not appear to have made many converts. Burnet himself gives this candid account—"The people of the country came generally to hear us, though not in great crowds. We were indeed amazed to see a poor commonalty so capable to argue upon points of government, and on the bounds to be set to the power of princes in matters of religion. Upon all these topics they had texts of Scripture at hand, and were ready with their answers to any thing that was said to them. This measure of knowledge was spread even among the meanest of them, their cottagers and their servants."

Neither did the grand object to which these were preliminary, succeed any better. After several conferences, the accommodation was given up. The first was held at Holyrood-house before Lauderdale, Rothes, Tweeddale, and Kincardine, in the month of August, between Messrs G. Hutchison, A. Wedderburn, John Baird, and John Gemble—indulged ministers who had been invited to Edinburgh by Lauderdale—and Bishop Leighton and Professor Gilbert Burnet. Sharpe would not be present. Lauderdale opened the business by an eulogium on the king's condescension and clemency—his wishes for a complete unity and harmony—and recommended an agreement upon joint measures which might tend to the peace of the church. Leighton followed. He deplored the mischief their divisions had occasioned, the many souls that had been lost, and the many more that were in danger, while they were wasting their strength in contention, and exhorted every one to do what he could to heal a breach that had let in so many evils. For his own part, he said, he was persuaded that Episcopacy, as an order distinct from Presbytery, had existed in the church ever since the days of the apostles; that the world had every where received the Christian religion from bishops; and that a parity among clergymen was never thought of in the church before the middle of the last century, and was then set up rather by accident than design; still, how much soever he was persuaded of this, as they were of a different judgment, he had a proposal to make by which they might both preserve their opinions, and yet unite in carrying on the preaching of the gospel and the end of their ministry; and

that was, merely to recognize the bishops as the presidents of their synods and presbyteries, with liberty to dissent from any measure they did not approve of.

The ministers made no reply; but next day, in the bishop's chamber, Mr Hutchison, in name of the rest, answered his observations respecting Episcopacy:—Parity among the ministers of the gospel, he affirmed to be the original apostolic institution, that a perpetual presidency had made way for a lordly dominion in the church; and that however inconsiderable the thing might seem to be in itself, it both had been and would be of great and mischievous consequence. Those present however, he said, could come to no agreement without consulting their brethren, and therefore desired that the project might be submitted to them, which was accordingly done in the following form:—"Presbyteries being set up by law, as they were established before the year 1638, and the bishop passing from his negative voice, and we having liberty to protest and declare against any remainder of prelatie power, retained or that may happen at any time to be exercised by him, for a salvo for our consciences from homologation thereof—your opinion is required, as to whether we can with safety to our principles join in these presbyteries? or what else is it that we will desire to do for peace in the church and an accommodation—Episcopacy being always preserved?"

Upon these queries, the ministers in the south and west had a very numerous meeting, when, after long reasoning, it was unanimously agreed, that to sit in ecclesiastical courts called by bishops, whose only right emanated from the supremacy of the crown, was virtually acknowledging that supremacy—a thing very different from meeting in the presbyteries which were indicted, a.d. 1638, by the intrinsic power of the church, and therefore could not be complied with; and as to the salvo of a protest, it would be a protestation contrary to the fact, and so no salvo to an honest man's conscience. For the sake of peace, they had no objection to join in public worship with a bishop, or such as were ordained by him; but as to acknowledging their office, by sitting in courts with them, they could not see how that could at all be reconciled with their principles.

Several conferences took place between Leighton and Mr Hutchison's small party; but the utmost the latter could be brought to concede, was, to consent to the appointment of the bishops as perpetual presidents or constant moderators in their synods and presbyteries, which being no divine

institution, it was thought the king might be allowed to appoint, but they required the resumption of assemblies and the legal recognition of all the essential parts of Presbyterian church government—a proposal which met the approbation of no party. The prelates saw in the loss of their negative voice in the courts, a relinquishing of a main pillar of Episcopacy; while the more consistent Presbyterians affirmed that, to allow the royal nomination of a perpetual president, was laying a foundation for again rearing, when times should prove more propitious, the prelatic power.

Thus the conferences broke up; and, as usual in all such cases, the ineffectual endeavours to procure peace, tended greatly to imbitter the war. Some, however, refused to conform to the present establishment upon higher and more scriptural grounds. They had observed that popery and profanity always increased where conformity prevailed, and that the Lord had stamped this mark of his displeasure upon prelacy, that under it truth and godliness had ever sensibly decayed. They therefore rejected all fellowship with it, as a plant which man, and not God, had planted; and they refused to hold communion in church government with those who, by their carelessness and negligence, were the destroyers of his holy mountain, and laid his vineyard waste—who had been thrust into the oversight of charges whence many had been cast out, whom the Lord had made polished shafts in his own right hand for gaining souls to Christ.^[72]

⁷². Mr Menzies, minister of Carlaverock, who had conformed, withdrew this year from the bishop's presbytery of Dumfries, and gave in a testimony to this effect.

[1671.] Where the fundamental principles of parties in religion are opposite, it is vain to expect that public disputation will reconcile them. The Presbyterians have ever held that Jesus Christ is the supreme Head, King, and Lawgiver of his church, with whose statutes, ordinances, and appointments no earthly power has a right to interfere; and however this principle may have been obscured by circumstances, or how much soever it may have been misrepresented by enemies, or misunderstood by ill-informed friends, it was the principle for which these excellent men, who were now accounted too rigid, earnestly contended, and which, when they came to die, they were anxious should be fully cleared as the ground of their sufferings. The Scottish Episcopalians owned the supremacy of the king, their whole system was based upon his prerogative, and they

acknowledged his power to model the government of the house of God according to his pleasure.

Leighton had attempted a compromise between these two abhorrent opinions, and, had not their self-interest opposed, it is evident the latter could offer no argument for non-compliance with a royal mandate for conciliation; while the former, without violating their conscience, could not advance a step upon such ground. When they separated, however, upon this distinct, palpable, and, so long as each retained their principles, irremediable cause of difference, the Presbyterians were represented as obstinate, unreasonable men, full of an entangled scrupulosity; and the privy council, immediately ordered their act requiring all the indulged ministers to attend the bishops' presbyterial meetings, under the penalty of being straitly confined within the limits of the parishes where they preached, to be strictly enforced; nor dared they visit a dying parent, although not a mile distant, without special leave asked and granted from that arbitrary court. To add to the hardship of this imprisonment, their salaries were very irregularly paid, and their applications so violently opposed by the primate, that it was with difficulty, and after in some cases a twelvemonth's delay, an order could be obtained upon the collector of the vacant stipends.

The observation of the anniversary of the king's birth-day was anew rigidly enjoined, and the sheriffs required to see that the council's act forbidding lecturing was obeyed, and that the names of such as contravened should be sent to them. A committee, at the head of which stood the Archbishop of St Andrews, was next appointed, to consider what further could be done to suppress conventicles, and to see that the militia did not neglect their duty in preventing or dispersing these hated assemblies, or in apprehending and bringing to condign punishment all who should countenance such atrocities! In order to render offenders still more inexcusable, the patrons in the west were recommended to use all diligence to get their churches planted with able and godly ministers, but they were either unable or unwilling to comply; and, in the month of July, the affair was turned over to the bishops, who provided incumbents, which inflamed the evil; for, instead of decreasing, the obnoxious meetings multiplied.

Linlithgowshire, Fife, and the Lothians were especially infected; and, during the present year, the most remarkable conventicles appear to have

been held immediately in the vicinity of the primate's dwelling, not far distant from Linlithgow Palace, and in the muirs of Livingstone, Bathgate, Calder, and Torphichen. The Duke of Hamilton's factor at Kinneil, who acted likewise as baron-bailie, was favourable, and by his connivance Mr Blackadder frequently visited the seaport town of Borrowstownness or its vicinity, where, many years after, the effects of his and his brethren's preaching were felt.

Implacably bent against the "outed" ministers, the prelates would neither allow them to obey their consciences actively nor passively. If they preached, prayed, or exhorted, beyond the bounds of their own families, they were persecuted as the most obnoxious pests of society. If they remained at home and refrained from these duties, if they did not attend the parish church regularly with their families, they were complained of as disobedient, and the sheriffs were ordered by the council to commit them to prison. Yet, notwithstanding, "at that time," Mr Fraser of Brae remarks, "the church of Christ had great rest and liberty from persecution, through variance among the statesmen;" so highly was a short respite from actual suffering then esteemed, though loaded with heavy, and what would now be reckoned intolerable, burdens.

The variance referred to was a quarrel between Lauderdale and those who had assisted him in overturning his former opponents, whom he now rewarded with the usual gratitude of politicians, by procuring their dismissal from office as soon as he found them stand in the way of his own advancement. When he sacrificed his religion upon the altar of ambition, he threw his morality into the same fire; and, according to the fashion of the court, lived in open adultery. Lady Dysart, the prostitute with whom he cohabited, and, upon the death of his lady, soon after [1672] married, was remarkable in her day for personal beauty and fascinating manners, joined to unfeeling rapacity and cruel extravagance; and her influence completed a dreadful revolution in his character, already depraved by his prosperous career as a courtier. She caused him to separate from the only portion of his confidential friends who had the courage to oppose his violence, or the virtue to attempt it; and when Sir Robert Murray and Tweeddale were now removed from the direction of public affairs, all decency and moderation soon followed. Together with a few of his devoted creatures, he engrossed every place of importance in the country. In his own person, he held the

offices of Commissioner, President of the Council, a Lord of the Treasury and of the Session, Agent at Court for the royal burghs, Captain of the Castle, and Captain of the Bass^[73]—a high insulated rock at the mouth of the Firth of Forth, now converted into a state prison. His brother, Hatton, was Treasurer, Depute-General of the Mint, and Lord of Session; Atholl, Justice-General and Privy Seal; Kincardine, Admiral of Scotland; Sir James Dalrymple of Stair, President of the Court of Session; and Lockhart of Lee, Lord Justice-Clerk.

73. “The Bass is a very high rock in the sea, two miles distant from the nearest point of the land which is south of it; covered it is with grass on the uppermost parts thereof, where is a garden where herbs grow, with some cherrytrees, of the fruit of which I several times tasted, below which garden there is a chapel for divine service; but, in regard no minister was allowed for it, the ammunition of the garrison was kept therein. Landing here is very difficult and dangerous; for, if any storm blow, ye cannot enter because of the violence of the swelling waves, which beat with a wonderful noise upon the rock, and sometimes in such a violent manner, that the broken waves reverberating on the rock with a mighty force, have come up over the walls of the garrison on the court before the prisoners’ chambers, which is above twenty cubits height. And with a full sea must you land; or, if it be ebb, you must be either craned up, or climb with hands and feet up some steps artificially made on the rock, and must have helps besides of these who are on the top of the rock, who pull you up by the hand. Nor is there any place of landing but one about the whole rock, which is of circumference some three quarters of a mile; here you may land in a fair day and full sea without great hazard, the rest of it on every side being so high and steep. Only on the south side thereof, the rock falls a little level, where you ascend several steps till you come to the Governor’s house, and from that some steps higher you ascend to a level court, where a house for prisoners and soldiers is; whence likewise, by windings cut out of the rock, there is a path which leads you to the top of the rock, whose height doth bear off all north, east, and west storms, lying open only to the south; and on the uppermost parts of the rock there is grass sufficient to feed twenty or twenty-four sheep, who are there very fat and good. In these uppermost parts of the rock were sundry walks of some threescore feet length, and some very solitary, where we sometimes entertained ourselves. The accessible places were defended with several walls and cannon placed on them, which compassed only the south parts. The rest of the rock is defended by nature, by the huge height and steepness of the rock, being some forty cubits high in the lowest place. It was a part of a country gentleman’s inheritance, which falling from hand to hand, and changing many masters, it was at last bought by the king, who repaired the old houses and walls, and built some new houses for prisoners; and a garrison of twenty or twenty-four soldiers therein are sufficient, if couragious, to defend it from millions of men, and only expugnable by hunger. ’tis commanded by a Lieutenant, who does reap thereby some considerable profit, which, besides his pay, may be one hundred pounds a year and better. There is no fountain-water therein, and they are only served with rain that falls out of the clouds, and is preserved in some hollow caverns digged out of the rock. Their drink and provisions are carried from the other side by a boat, which only waits on the garrison, and hath a salary of six pounds yearly for keeping up the same, besides what they get of these persons that come either to see the prisoners, or are curious to see the

garrison. Here fowls of every sort are to be found, who build in the cliffs of the rock, the most considerable of which is the solan goose, whose young, well fledged, ready to fly, are taken, and yield near one hundred pounds yearly, and might be much more, were they carefully improved.” *Mem. of Fraser of Brea*, pp. 298-300.

Influenced by French councils, Charles, in the beginning of the year, suddenly commenced against the Dutch the most unprovoked hostilities, by a piratical but unsuccessful attack upon their Smyrna fleet, which was followed by a declaration of war, founded upon pretexts either false or ridiculous.^[74] The whole line of his policy went to destroy liberty and religion at home and abroad—to fetter his people, though at the expense of being himself as much the despicable pensioner of France, as he was the degraded slave of his own licentious passions. Lauderdale aptly ministered to all his iniquity; and his management of Scotland was in unison with the traitorous band of conspirators, of whom he was one, against English freedom, known by the name of the “Cabal,” and in entire subservience to the king’s designs against his subjects. Being created a Duke, he came down to his vice-royalty with his Duchess, in great pomp, and made a tour with her Grace throughout the country, the nobles vieing with each other in the magnificence of their entertainments to the noble pair.

⁷⁴. One of the reasons for involving the nation in blood, was, that the Dutch had insulted the king by allowing a caricature to be sold, in which he was exhibited as receiving a quantity of money in a “discrowned” hat, which fell as fast into the lap of his mistress!

Parliament met in June, and was opened in great state by the Commissioner, whose lady, seated within the bar, heard her lord deliver his speech—a mark of honour none even of the kings of Scotland had ever bestowed upon their queens, and which the very doubtful character of the Duchess did not in public opinion seem to merit. All the severe acts against conventicles were confirmed and extended. To shut every avenue to power or place against Presbyterians, none but those well affected to the religion and government of the church as established, were to be appointed officers of the militia; and both officers and men were ordered to take the oath of allegiance and the declaration, under pain of banishment; and to prevent the continuance of that detested religion, the whole of those who professed it were forbid to license or ordain any person to the ministerial office; all ordinations since 1661 were declared null and void, the ordainers and ordained subjected to banishment, and their goods to confiscation; persons married by non-conformists forfeited their legal matrimonial rights; and

those who did not bring their children to the parish minister to be baptized within thirty days after their birth, were to be punished by fining—heritors in a fourth part of their rent, and merchants by a pecuniary mulct.

Good laws are too often dead letters in the statute-book; but it is seldom that cruel, persecuting enactments are allowed to slumber; and if these enactments are rendered sources of gain to the wretches who are to enforce them, wo to the subjects their fangs can reach. Believe their pretences and preambles, never was a kingdom blessed as was Scotland at this time with excellent legislative measures, passed for the preservation of religion, for ensuring attendance on the ordinances, the protection of an orthodox ministry, the prevention of schism, and the promotion of Christianity in a regular orderly manner. There were, also, admirable laws for suppressing profanity and all manner of immorality. These stand enrolled among our records; and were we to judge from the preambles of the printed acts of parliament, no nation was ever so happy in an establishment for the furtherance of the gospel—that so strenuously watched over its interest by seeing all the churches filled by able pastors, and these pastors properly supported by legal contributions. In fine, judge from the profession of her rulers, representatives, and clergy, the people were too happy in a pious, beneficent, and fatherly government, but did not know their own mercies. Now look at the fact. The churches were deserted because the clergy were incapable, and the gospel was banished to the wilds of the country, and even there persecuted. I subjoin an instance.

“At or near Bathgate a great multitude had assembled to hear the word of God preached by Mr Riddell. This being known, a party of dragoons, commanded by one Lieutenant Inglis, who kept garrison in Mid Calder, made search for them on the muirs. The meeting had notice of this; but hearing they were at a distance, and, as some reported, returning to their quarters again, they were the more secure and continued their worship; but within a little, they appeared in sight and that near, ere they knew. Upon which the most part got over a bog and that hard by, where horse and foot could not follow, but many stood on the other side, thinking themselves safe. Mean time, the dragoons came up and apprehended several on the spot; among others, Sandilands, Lady Helderston’s brother. Then they approached to the side of the bog, and shot on among the people, as they usually basely did on such occasions to shoot bullets among such a

promiscuous multitude of men, women, and children, though they found them without arms. One of their shot lighted on an honest man, an heritor in Bathgate parish, and killed him dead on the spot. They carried their prisoners to the garrison at Calder, with a great booty of cloaks, plaids, bibles, and what else they could lay their hands on, spoiling the poor people, as they had got the victory over a foreign enemy.”

Fining was too fertile a source of emolument to be relinquished by an administration so extravagant as the Duke of Lauderdale’s. Exorbitant sums were thus extorted from the most respectable gentlemen and substantial tenants, which were lavished upon the retainers of government or the private friends of the Commissioner. It would be idle to attempt even guessing the amount of money raised this year by small exactions, but some of the larger may be mentioned. Hay of Balhousie, or Boussi, as Kirkton styles him, afterwards Earl of Kinnoull, then a very young man, but newly left school, was fined one thousand pounds sterling for having heard his own chaplain officiate in situations that brought him under the penalties of the conventicle act. Drummond of Meggins, because his wife had been guilty of attending some field-preaching, was tabled for five hundred; and their convictions were aggravated by the insulting raillery of Lauderdale, who told them when their bonds were signed—“Gentlemen, now ye know the rate of a conventicle, and shame fall them first fails.” A house conventicle cost Ann Countess Dowager of Wigton, four thousand merks. A Mr James Duncan at Duplin got off for half the sum. The general rate for those of lower rank seems to have been five hundred each.

Yet, while thus actively urging this lucrative persecution, his Grace had brought with him powers for granting a new and more comprehensive indulgence. It was not, however, till the month of August that any thing was done in the matter, when about twenty of the “outted” ministers met at Edinburgh, and deputed two of their number, Mr James Kirkton and Gabriel Cunningham, to wait upon Sir James Dalrymple of Stair, to learn the certainty of the report and entreat his good offices. These he readily promised, but, from whatever reason, they proved ineffectual; and on the 3d September, Lord’s day, an act of council was agreed to, that was in fact rather an act of confinement than one of indulgence. By it the Presbyterian ministers, “outted” since 1662, were ordered to repair to certain parishes, there to remain—some two together, some three—and to exercise their

functions, nor pass their limits, without a license from the bishop of the diocese. They were not to preach any where but in the parish church—to administer the Lord's Supper on the same day in all the parishes—and to admit no person from a neighbouring parish to any church privilege without a line from their minister, unless the parish kirk were vacant. And all ministers not mentioned by name in this act, if they presumed to exercise any part of the ministerial duty, were to be punished according to the pleasure of the council.

An indulgence so miserably clogged did not, and perhaps was not, intended to meet the views of any of the Presbyterians; but whilst they almost unanimously disapproved of the act, they divided as to the propriety of accepting the offer of government under protest; or, in other language, of entering upon the office of the ministry under any restriction, after presenting to the council an enumeration of their grievances, and praying for a relaxation. This mode of procedure some thought would exonerate their consciences, and be a testimony against the Erastian proceedings of government. The more consistent agreed that the testimony would be right providing they acted up to it by refusing to accept the indulgence, else it would only be affording an excuse for ministers who wished one, to accept what they otherwise were not in their minds clear about accepting.

The dispute ran high; and, at this distance of time, and living as we do untried by the perilous assailments to which these good men were exposed, it would ill become us to pronounce harshly upon the conduct of either party; yet it is impossible not to approve, and that highly, of the noble, intrepid, and disinterested proceedings of the latter, who chose rather to suffer for a good conscience, than accept of deliverance under such circumstances. The proposal for emitting a testimony was accordingly dropped, and a number of the ministers accepted of parishes without further dispute. A few, on entering upon their charges, disavowed from their pulpits giving countenance to Erastianism, making a wretched compromise with their professions and consciences, which neither gained them credit with the people nor secured them from molestation by their rulers. Those who could not comply were in consequence exposed to the increased fury of the persecutor; but that was a small matter compared to the heart-burnings and melancholy divisions these debates caused among the brethren. The exiles in Holland, who were suffering for their consistency, published against it;

and the common people, who entered keenly into every question, began to doubt of the propriety of hearing ministers who departed from the purity of Presbyterian principle and practice, and became cold even to the ministers who, though they had not accepted of the indulgence themselves, did not in their public discourses bear testimony against it; and a spirit of distrust arose which afterwards led to most unhappy consequences.

[1673.] Early next year, upon the Duke of Hamilton's coming to Edinburgh, a council was held to learn the success of the indulgence in the west, when he gave it as his opinion, that, had the whole of the Presbyterian ministers accepted, the country might have been quiet; but, as so many refused themselves and dissuaded their brethren, he believed the schism, as he termed it, would still continue to distract the church and disturb the land. He complained chiefly of five who were exceedingly active in their meetings, James Kirkton, author of the History of the Church of Scotland; Alexander Moncrief; Robert Lockhart; George Campbell; and Robert Fleeming.

Some of these residing in Edinburgh, the council determined that they should either be silent or proceed to the parishes allotted as their places of confinement. By an order of the 7th March, all "outed" ministers were enjoined to remove to a distance of five miles from the city, unless they gave bond to keep no conventicles; and on the 12th, those of the indulged who had not entered upon their parishes, were called before them, and peremptorily commanded to show their obedience before the 1st of June. Kirkton thanked them for allowing him so much time to consider, and said "he should desire to advise with the Lord and his conscience;" and was dismissed till then, together with Mr Matthew M'Kail, Robert Lockhart, James Donaldson, and some others.

These injunctions were shortly after followed by another fierce proclamation against conventicles, requiring all heritors and others to give prompt information respecting such meetings to the council under pain of being fined at least in a fourth part of their rents. Still the activity of the respectable part of the population not meeting the wishes of the council, the higher ranks, Hamilton, Eglinton, and Cassilis, were ordered to undertake the hated office of hunting out conventicles and report to Edinburgh. The reason alleged was, that the king being at war with the Dutch, the latter designed to raise troubles in Scotland, and the conventicles behaved to be

dispersed as holding communication with the enemy. The council now also commenced sending ministers to that horrible prison, the Bass; and Mr Robert Gillespie, for conducting the worship of God in a house at Falkland, was the first who had that honour, because he would not consent to inform upon those who were present, and whose fines might have been more profitable than his imprisonment. He was followed in the month of June by Alexander Peden, an eminent servant of the Lord Jesus Christ, whose character has suffered little less from the credulity of his admirers, than from the ridicule of his enemies. He appears to have sprung from persons in humble life, and, previously to being licensed, had been schoolmaster, precentor, and session-clerk to Mr John Guthrie, at Tarbolton.^[75] He was three years minister at New Glenluce, in Galloway, whence he was ejected soon after the Restoration, and was among the first of the field-preachers. In the beginning of 1666, he was denounced by proclamation, and next year declared a rebel and forfeited both in life and fortune. He continued from that time wandering and exercising his ministry to great numbers, and with much success, alternately in Scotland and Ireland, till June this year, when he was seized by Major Cockburn in the house of Hugh Ferguson of Knockdow, in Carrick, and sent together with his landlord to Edinburgh. On the 26th he was examined before the council and committed to the Bass. Mr Ferguson was fined a thousand merks for affording him a night's lodgings. And so highly did the managers estimate the capture, that they ordered fifty pounds sterling to be paid to the Major—twenty-five to be distributed among the soldiers, to stimulate to new service.

⁷⁵. Wodrow says Fenwick, evidently a mistake, for William Guthrie, author of the well known excellent treatise, the "Trial of a Saving Interest in Christ," was minister at Fenwick.

All proving ineffectual, Lauderdale sent down a letter, May 31, in his arrogant style of rude bantering jocularities, telling the council that if any of the indulged were still unwilling to accept of that favour upon the terms upon which it was granted, that they should not at all press them to it; but instead of that, require sufficient assurance of their forbearing conventicles, going regularly to church, and behaving orderly in the places where they resided, adding, "because some of them are displeased, forsooth! with the late indulgence, you shall secure them from the fear of any more of that kind! and let them know that if after all the lenity used toward them, they still continue refractory and untractable, the whole of the royal power shall

be employed for securing the peace of the church and kingdom from their seditious practices.”

Money and blood are the fundamental principles of all false religions; and love of the world is not a more absolute criterion by which to judge of an individual’s Christianity, than a sure and certain rule by which to judge whether a church be a church of Christ or no. Attachment to the temporalities of an ecclesiastical establishment is as clear and distinct a feature of antichrist, wherever it is found, as any given in the word of God, by whatever name that establishment be called, whether a Protestant Episcopacy or the Hierarchy of Rome. These were prominent features of the prelacy of Scotland. I subjoin an example of their extortion. The whole succeeding years will bear evidence to their lust of blood. In Renfrew alone the following sums were awarded against eleven gentlemen, and only not levied to their full extent because a compromise could be readily procured by the ecclesiastical robbers, while it might have been doubtful whether, if the whole had been sued for, they might not have been forced to share the produce with the legal ruffians:—Sir George Maxwell of Newark, for three years’ absence from church, 31,200 pounds Scots; for weekly conventicles, 62,400; and for disorderly baptisms, 1200, making a total of 94,800 pounds Scots, or £7800. 1s. 6d. sterling—the Laird of Douchal, afterwards Porterfield, 84,400, Scots, or £7032 sterling—Sir George Maxwell, Netherpollock, in 93,600, Scots, or £7500 sterling—Cunningham of Carncurran, 15,833. 6s. 8d., Scots—John Maxwell of Dargarvel, 18,900, Scots—Walkinshaw of Walkinshaw, 12,600, Scots—and five others in different sums, making a total of 368,031. 3s. 4d., Scots.

Partial compliances did not secure the indulged from trouble, nor were they less the objects of the bishops’ hatred than their more resolute brethren. When the anniversary of the king’s birth-day returned, they were summoned to appear before the council to give an account of the manner in which they celebrated it; and the “reverend fathers in God” appeared as their most violent accusers. As upon former occasions, their answers were respecting their past practice. When required to promise obedience for the future, the majority answered they could not keep any day holy but the Sabbath, and were fined in the one half of their stipends, which does not appear, however, to have been rigorously exacted. Unfortunately, however, some excused themselves by not having seen the council’s instructions;

immediately the instructions were tendered them, but Mr Alexander Blair, minister in Galston, told them that though in politeness he would not refuse receiving the paper, yet he could accept of no instructions from them for regulating his ministry, otherwise he should be their ambassador, not Christ's. For his insolence, as they termed it, he was cast into prison, where he remained till December, when he was allowed, on account of sickness, to be carried to a private house, till death unloosed his fetters. In the month of January, he departed in much joy and in full assurance of faith.

This incident tended to increase the coolness between the people and the indulged; for they did not think the other ministers had been sufficiently explicit in their testimony; and when they returned to their parishes, "they were to their great grief," says Kirkton, "treated with no less reproach than the nickname of Council Curates." "Outted" ministers who had no particular parishes allowed them, were required to repair to such as the council should name; but as they could not see it consistent with any moral or Christian duty to present themselves for the purpose of being punished without a crime, Robert Fleeming, Thomas Hogg, John Lidderdale, and Alexander Hutchison, were ordered to be apprehended and brought before the council, wherever they could be found. Instead of reconciling the Presbyterians to the domination of bishops, such proceedings added to the number of recusants, and these always from the most conscientious. Mr Forrester, minister at Alva, and Mr John Burnet, indulged at Kilbride, both abandoned prelacy towards the end of this year, and both bore explicit testimony against the civil power of the magistrate in the church of God. Mr Forrester, in a letter to the prelatical presbytery of Stirling, disclaimed their jurisdiction, "because it was fountained in, derived from, or referrible to, the magistrates," which says he, "I judge to be contrary to the word of God, the confession of reformed churches, and our own church's government; for the two powers, civil and ecclesiastic, are distinct *toto genere* both as to the original, the subject matter, the manner of working, and the end designed, distinct limits being put betwixt them, both in the Old and New Testament. Under the law, a standing priesthood were to meddle with matters of the Lord distinct from matters of the king. The judgments on Saul and Uzziah, shows the Lord's displeasure at magistrates intermeddling with spiritual matters. Under the New Testament, the Lord Jesus, the King, Head, and Lawgiver of his church, hath a visible kingdom which he exerciseth in and over the church visible by its spiritual office-bearers, given to it as a church,

and therefore distinct from, and independent upon, the civil power—the keys of the kingdom of heaven being by him committed, not to the magistrates, but to the apostles' successors in the work of the ministry.” He therefore quitted the Established Church, betook himself to the fields, and shared in the labours and obloquy of the persecuted. Mr Burnet was prevented by sickness from personally bearing witness to the same high prerogatives of Christ; but he left his reasons for refusing to submit to any temporal supremacy in writing, and died rejoicing in the hope of the glory of God. His last words were—“Glory! glory! glory!”

It deserves to be remarked, that he and several other distinguished ministers, although they had no liberty to accept of the indulgence themselves, yet they did not deem it a reason why they should withdraw their affection from those who had, or throw any obstacles in the way of those they considered messengers of the gospel; for these worthies thought preaching salvation to sinners so paramount a duty, that they would have ventured upon every thing but sin to have achieved it themselves or promoted it by others.

Charles and his advisers in attempting to introduce despotism, had as little consulted their own peace as that of his kingdom. He was harassed by his English parliament; and Lauderdale having been voted a public grievance, was glad to seek refuge in Scotland, where, in the month of December, he came down to hold a fourth session of the parliament. Suspecting no opposition, if he secured the support of the clergy, he told the estates that the most effectual course would be taken for curbing and suppressing the insolent field conventicles, and other seditious practices, which had so much abounded—that if fairness would not, force must compel the refractory to be peaceable and to obey the laws. But instead of his declarations being met with the submissive adulation they were wont, the Duke of Hamilton, supported by a strong party, presented their grievances; and when the Commissioner with his usual haughty roughness interposed to silence complaint, Sir Patrick Home of Polwart demanded to know, whether it was not a free parliament? And after a short tumultuous session, in which, amid the dissensions of the statesmen, the Presbyterians escaped for the time any severer enactment, the meeting was adjourned, and the parties sought each to justify the strife to the king. Hamilton repaired to London and laid a statement of the enormous abuses before his majesty, but

only received fair promises that were never performed, and incurred a resentment that never was appeased. Lauderdale retained his situation, and rather increased in favour with the king.

[1674.] It is a melancholy and an appalling consideration for those who stand forward as reformers and patriots, that, in struggles for religion, for liberty, or for any good principle, those who sincerely strive to gain such objects are usually found in a minority at last; and when they have been the means of conferring the most essential benefits upon the country, they are generally left losers themselves. Amid the conflicts of the statesmen, and their loud complaints about the oppression and ruin of the country, no mention had been made of the primary and most palpable of all its distresses, the religious grievances of the Presbyterians:—those which in fact had been the origin of all the calamities of Scotland, and the triumph of which was to secure the cause of freedom, were utterly lost sight of in their miserable squabbling about the monopoly of salt and the smuggling of brandy.

Both Hamilton and Lauderdale were supposed friendly to the persecuted; and while the nation was convulsed with their political contentions, and their attention was sufficiently employed elsewhere, the pious, resolute, and consistent part of the persecuted ministers improved the respite for proclaiming peace upon the mountains, bringing good tidings of good, publishing salvation, and saying to Zion, “Thy God reigneth!” Conventicles increased both in number and frequency. They began early in the year, and the indefatigable Mr Blackadder beat up the primate’s quarters upon the 2d day of January.^[76] On that day he collected at Kinkel, within a mile of St Andrews, a large auditory, which filled the long gallery and two chambers, besides a great number standing without doors. He lectured on the second Psalm, a portion of Scripture remarkably applicable, and preached from Jer. xiii. 18. The primate’s wife hearing of the assembly, sent for the militia, who were fully prepared in warlike array, under a Lieutenant Doig, accompanied by a great number of the rascality, with many of the worst set of scholars from the college and some noblemen’s sons. They drew up at a distance from the gate, before which stood the laird, his brother, and the minister’s eldest son; but they caused no interruption till the lecture was finished and the psalm sung, when some people called out that there was an alarm; on which the service stopped and the men ranged outside the gate

with the laird. Meanwhile, some of the rabble had got into the stable and were carrying off the laird's horse, which he observing, aimed a blow at the fellow who had him; but some of the "ill-set schollars" laying hold on his cane, a struggle ensued, and the laird fell. Mr Welsh, who was also there, and Kinkel's brother, instantly drew; and the Lieutenant and his men seeing them so resolute, and supposing that they were well supported, fell back, nor dared approach sufficiently near the gate to discover their error. Mrs Murray then went up to the Lieutenant and asked him why he came in that hostile manner to trouble their house on the Lord's day? He said he had an order, which she requesting to see, he told her he would show it to the laird; and, attended by a sergeant, was drawing near the gate, when Mr Murray called, as he approached—"How is it, Lieutenant, that you come to disturb us on the Sabbath day?" In great trepidation he delivered the laird an order which had been subscribed by the Chancellor about a year before for apprehending him and his brother. When Kinkel had read it, "I see," said he, "you have an old order from the Chancellor to that effect, which was extorted from him by the prelate. If you mind to execute it now, you may, but you shall see the faces of men." The Lieutenant, grievously alarmed, cursed himself if he had a mind to execute it. After which, the lady caused bring forth some ale for the Lieutenant and his men; but one of them, whose companion had been a little hurt, said he would drink none of her drink; he would rather drink her heart's blood. The rest partook of the refreshments and went away. Composure being restored, the minister proceeded with his sermon, and the whole closed in peace.

[76](#). About the same time, the precise date is uncertain, Crail, where Sharpe had been a Presbyterian minister, was visited by Mr John Dickson; and the unhappy apostate was tormented by the sound of the gospel on his right hand and on his left, while he vainly strove by military force to destroy the faith which once he preached.

Some time after this, Mr Blackadder had another meeting at Kinkel, where vast numbers from St Andrews attended as hearers, and even some of the militia. Sharpe, who was that Sabbath day at home, hearing of it, sent for the provost and commanded him to order out the military, disperse the conventicle, and apprehend the minister. "My lord," replied the provost, to the prelate's dismay, "the militia are gone there already to hear the preaching, and we have none to send." And among them was the soldier that had refused drink from Lady Kinkel, who was especially marked to be moved and wept beyond the rest; so wonderfully did the Lord countenance

the persecuted gospel, even bloody enemies being overcome with conviction.

Exasperated at the multiplication of these meetings, the Episcopalian clergy added the foulest and the falsest calumnies to their other modes of opposition, and the synod of Glasgow, October 22, had the unblushing effrontery to charge these assemblies with crimes of which they themselves could never have believed them guilty—"incest, bestiality, murder of children, besides frequent adulteries, and other acts of wickedness after which, it is little that they should have been accused of fanaticism, disloyalty, and cursing the king. Towards the end of March, before Lauderdale left Scotland, he published an indemnity, although like many others with which the nation was insulted during this reign, almost only so in name, was received by the people as a license for frequenting conventicles, which continued to multiply in consequence, and especially as a report was assiduously circulated of his having secretly promised that an ample liberty would be granted to Presbyterian ministers soon after his arrival at court. Few were held in the west where the indulged ministers were settled, but on the borders, in the Merse, Lothians, Stirlingshire, and Fife, they greatly abounded, in houses, fields, and vacant churches. The more private worshippers in houses were overlooked, the vast assemblages in the mountains, and mosses, and muirs chiefly attracting the attention of government; and "at these great meetings," says Kirkton, "many a soul was converted to Jesus Christ, but far more turned from the bishops to profess themselves Presbyterians."

Mr Welsh was among the most diligent and successful of the labourers, particularly in Fife, where many thousands were wont to assemble. His preaching was attended with a visible blessing in the conversion of many to the Lord; and among them were some in the higher ranks, especially ladies; for it is somewhat remarkable that in these days of peril and danger, the weaker sex were distinguished for their intrepid zeal; and there is reason to believe that not a few, conspicuous for their piety, were brought to the obedience of faith at these assemblies. The Countess of Crawford, daughter of the Earl of Annandale, was one of the number, and dated her first impressions from a sermon preached by him at Duraquhair, near Cupar, where about eight thousand persons were present, and the power of God was manifested to the checking of the conscience and the awakening of the

hearts of many. On the same Sabbath three other conventicles were held, and it was computed not less than sixteen thousand persons heard the gospel plainly and earnestly preached by Mr Robert Lockhart at Path-head, near Kirkcaldy; Mr Blackadder, near Dunfermline; and Mr Welwood on the Lomond Hills. This last meeting was fired upon by the soldiers, but although their bullets lighted among a crowd of men, women, and children, and brake the ground beside them, not one was wounded. They, however, took about eighteen prisoners, and then marched for Duraquhair to attack Mr Welsh; but the people got notice and hurried him away, a great body escorting him as far as Largo, where they procured a boat, and he and his wife, with some others, crossed the frith under night safely, and landed at Aberlady Bay, whence he got undiscovered to Edinburgh. Even the capital itself and the neighbourhood were sorely infested with these noxious meetings. Kirkton had long had regular house-preaching in the city, but this year, emboldened like others by the expectation of favour, he, along with Mr Johnston, again ventured upon sacred ground, and Cramond Kirk being vacant, they bad both been repeatedly guilty of declaring the truth from that pulpit to large and attentive auditories.

Against these there were many grievous complaints by the prelates, of which Lauderdale took advantage to lower the credit of the Duke of Hamilton and his party with the king, and in this he was so successful, that, about the end of May, the privy council was re-modelled, and those only who were entirely devoted to his interest permitted to remain. On the 4th of June, when they first assembled, they were assailed in rather an unusual manner.

Reports of increased severities being about to be resorted to against conventicles having reached Edinburgh, as men durst not appear with any petition under pain of being fined or imprisoned, fifteen women, chiefly ministers widows, resolved to present as many copies of “a humble supplication for liberty to the honest ministers throughout the land to exercise their holy function without molestation,” to fifteen of the principal lords of council. Attended by a crowd of females, who filled the Parliament Close, they awaited the arrival of the councillors. Sharpe came along with the Chancellor, and when he saw the ladies, in great bodily fear he kept close by his lordship, who seemed to enjoy the primate’s terrors, and complacently allowed Mr John Livingstone’s widow to accompany him to

the Council-Chamber door, conversing as they went along, while others very unceremoniously saluted Sharpe with the epithets of Judas and traitor; and one of them more forward than the rest, laid her hand upon his neck, and told him “that neck behoved to pay for it before all was done.” The whole of the lords to whom the papers were presented, received them civilly, except Stair, who threw his scornfully upon the ground, which drew upon him a sarcastic remark—“that he had not so treated the remonstrance against the king which he helped to pen.” When the council met, the petition was voted a libel, and about a dozen of the subscribers were called and examined. They declared severally that no man had had any hand in the matter, and that their sole motive was a sense of their perishing condition for want of the gospel, having no preachers except ignorant and profane persons whom they could not hear; upon which they were ordered into confinement, and the Lord Provost and the guard sent to disperse the ladies at the door; but they refused to depart without their representatives, who were in consequence politely liberated, and the tumult ended. Next day, however, they were again summoned, when three were sent to prison—Margaret, a daughter of Lord Warriston’s; a Mrs Cleland; and a Lilius Campbell. The former, with Lady Mersington and some others, were banished the town and liberties of Edinburgh; and so ended this affair.

The fears of the ladies were not unfounded. A letter from the king to the council was read at the same meeting, requiring them “to use their utmost endeavours for apprehending preachers at field conventicles, invaders of pulpits, and ringleading heritors, and to make use of the militia and standing force for that end, leaving the punishment of the other transgressors to the ordinary magistrates according to law.” In obedience to which, a committee was appointed with full powers to meet when and where they should think convenient, to make the necessary inquiries, apprehend whom they should think proper, and the standing force and militia were placed under their immediate direction. At the head was the Archbishop of St Andrews, the Lord Chancellor, and other servants of the crown, assisted by the Earls of Argyle, Linlithgow, Kinghorn, Wigton, and Dundonald. The Duke of Hamilton was named; but in present circumstances possessed little power, and seldom attended. Orders were at the same time issued for apprehending the following ministers:—John Welsh, Gabriel Semple, Robert Ross, Samuel Arnot, Gabriel Cunningham, Archibald Riddel, John Mosman, John Blackadder, William Wiseheart, David Hume, John Dickson, John Rae,

Henry Forsyth, Thomas Hogg, Robert Law, George Johnstone, Thomas Forrester, Fraser of Brea, John Law, Robert Gillespie. And to encourage the parties sent out on this duty, for the two first, as the most notorious offenders, a reward of four hundred pounds sterling each was offered; for the others, one thousand merks; and the soldiers and others who might assist in their seizure, were previously pardoned for any bloodshed that might occur—such was the inveteracy the rulers of Scotland betrayed against men whose only crime was preaching the gospel. They then proceeded to show nearly equal abhorrence for those who heard it, by punishing with fines or imprisonment the most obstinate of the heritors. The town of Edinburgh was amerced in one hundred pounds sterling for conventicles in the Magdalene Chapel, to be exacted from the chief citizens present; Mr John Inglis of Cramond, for hearing sermon six times in his parish church, a thousand and thirty-six pounds Scots; a gentleman in Fife, for allowing Mr Welsh to lodge in his house one night, was fined two thousand merks; and eleven heritors, upwards of five thousand five hundred for attending field-preachings—all which monies were ordered to be summarily levied, and the offenders kept in prison till the same should be paid. Nor were persons, even of high rank, and against whom no charges of very intrusive piety are known to have existed, exempt from being harassed by any vile, petty, clerical informer. Lord Balmerino and Sir John Young of Leny, neither of whom had been present at any such preaching, were brought before the council; and when they denied the fact, were insultingly tendered the oath of allegiance, which both must have already repeatedly sworn, before they were dismissed.

Two rigorous proclamations followed. By the first, all masters were required to prevent their servants from being present at any house or field conventicle, and to retain none in their employment for whose conduct they would not be answerable; heritors were ordered to require their tenants to subscribe a bond, obliging themselves, wives, cottars, or servants, to abstain from all such meetings, which, if they refused, they were to be put to the horn, and their escheat given to their landlords; but masters and landlords were responsible for the conduct of their inferiors to the extent of the fines their disobedience might incur; and all magistrates were empowered to oblige such as they chose to suspect, to give bond for their good behaviour. The second was directed against ministers, in terms of the orders already issued for their apprehension. Still further to stimulate the magistrates,

another letter was procured from the king, informing them that his majesty had heard of the alarming increase of conventicles, for repressing which, together with the other seditious movements in Scotland, he had ordered his troops in Ireland and at Berwick to hold themselves in readiness, to march on the first alarm; and, in the mean time, required them to bring to punishment the authors of these insolent and seditious practices. But the difficulty of obtaining proof forming some small impediment in the way of conviction, the council therefore proposed that, when a suspected person was apprehended, against whom they had not sufficient evidence, he should be interrogated to answer upon oath, and if he refused to answer, he should be held as confessed, and proceeded against accordingly, only the punishment should be restricted to fining, imprisonment, exile, or the loss of a limb—most merciful judges!—to which his majesty was graciously pleased to consent, and the council proceeded to act.

They summoned a number of the “outted” ministers to appear, not in the usual mode by leaving written copies at their dwelling-places, but at the market-crosses of Edinburgh, Lanark, Stirling, and Perth, and that within such a time, that, had they been willing, they could not have complied. As the latter knew, however, that if they appeared, they were certain of being sent either to the Bass or into banishment, they declined, and were in consequence denounced as rebels.^[77] When the council rose, on the last day of July, they reported to the secretary, that forty “outted” ministers had been cited before them, none of whom having appeared, they were all ordered to be denounced; and that eighty persons, for hearing sermon in the fields of Fife, had also been delated, of whom all that answered had been found guilty and imprisoned, the remainder declared fugitives, and their escheats appointed to be taken for his majesty’s use.^[78] The magistrates of Glasgow, also, had been fined one hundred pounds sterling; and the magistrates of burghs, south of the Tay, had been ordered to press upon the citizens the bond against keeping conventicles.

⁷⁷. The names of these worthies who deserve, and who will, be had in everlasting remembrance, when those of their persecutors must rot, are thus given by one of themselves:—Alexander Lennox, David Williamsone, Alexander Moncrieff, John Rae, David Hume, Edward Jamieson, James Fraser, William Wisehcart, Thomas Hogg in Ross, Robert Lockhart, John Wilkie, George Johnstone, Patrick Gillespie, James Kirkton, John Weir, Nathaniel Martin, Andrew Morton, Andrew Donaldsone, John Crichton, William Row, Thomas Urquhart, Thomas Hogg in Larbert, William Arskine, James Donaldson, Robert Gillespie, John Gray, James

Wedderburn, John Wardlaw, Thomas Douglas, George Campbell, Francis Irvine, John Wallace, Andrew Anderson, John Munniman, George Hamilton, Donald Cargill, Alexander Bertram, James Wilson, Robert Maxwell—in all 39. These were the stock of the preaching church that was driven into the wilderness—their ministry was a sort of outlawry—and, by the bishop's activity, these, with the ministers formerly forfaulted, and those who afterwards joined that body of people, who first caused the separation from bishops and their curates, thereafter overthrew their party, and wrought the Reformation.

78. “One day a paper was fixt upon the Parliament House door, containing upwards of one hundred persons, whose escheats were to be sold to any who would purchase them.” *Wodrow*, vol. i. p. 384.

While the primate was urging the persecution of these excellent men, he was not without trouble from his own underlings. In the beginning of the year, some of the bishops, as well as curates, began to complain of the arbitrary measures of Sharpe, who managed all ecclesiastical affairs without consulting them upon any occasion, and had even the audacity to stamp upon him the opprobrious epithet of Pope. His friends repelled the accusations as the unfounded aspersions of the Hamilton or country party, who, having failed to overturn the Duke of Lauderdale by means of the Presbyterians, now wished to do it by means of the Episcopalians. The others declared they only wished what the act of Parliament allowed, to assemble in a National Synod, and regulate what they considered wrong in the church—the best method of securing its stability. But Sharpe, who, of all things, dreaded the least interference with his power, wrote to the Archbishop of Canterbury, entreating him—in a most impious appropriation of Scripture language—to interfere and assist him against those who wished “to break his bands, and cast his cords from them;” and his application was so successful, that the most active of the suffragans were silenced, and Ramsay, bishop of Dunblane, was removed to the Isles—a kind of honourable banishment, which effectually put an end to all attempts for the future at interfering with the supremacy of his Grace of St Andrews. The only other bishop (Leighton) who had ever given him real vexation, but against whom his wiles had been useless, voluntarily withdrawing from the scene of contention, Burnet was restored to Glasgow, and henceforth was content to play second to Sharpe, only rivalling his oppression within the boundaries of his own archiepiscopal territories.

BOOK IX.

A.D. 1674-1676.

Divisions among the ministers respecting the church and self-defence—Armed meetings—Severities increase—Lord Cardross—Religious revivals in the North—Mr M’Gilligan—Civil oppression—Home of Polwart—Finings—Durham of Largo—Magistrates of Edinburgh—Sufferers sent to France as recruits—Proclamation to expel the families of gospel-hearers from the Burghs, and enforce the conventicle act—Instructions for the indulged—Progress of the gospel—Rage of the prelates—Mitchell tortured.

Unhappily the seeds of division which the indulgence had sown among the Presbyterian ministers, were beginning to take root; and the different opinions that afterwards reached so great and ruinous a height, showed themselves in the discussions which took place during this year upon that important question—How the Presbyterian church was to be continued and supplied? The documents preserved are very scanty; only it appears that the propriety of ordaining a minister, except to a settled charge—of preaching within the nominal bounds of an unsettled presbytery—and the authoritative right of synodical meetings, were among the questions about which differences had sprung up among the brethren. And from the care with which they endeavour to provide against one minister noticing the conduct of another “in their preaching, and warning the people of the evils of the times,” it seems pretty evident that this baneful practice had already commenced.

At the close of the year, the state of feeling and anticipation among the suffering Presbyterians was extremely dissimilar, as we find by the writings both of public men and private Christians which have been preserved. Numbers rejoiced in the bright and sunny side of the cloud, in the increase of faithful preachers of the gospel—in the desire for hearing that seemed to

be abroad—and in the delightful and not rare instances of the power of the Spirit that accompanied the publication of the word; and they anticipated a speedy and a glorious renovating morn for the church. Those that studied the signs of the times, saw in the apostacy of some, and in the falling away of others who had been esteemed pillars; in the mournful waxing cold of the love of many; in the bitter dissensions of professors; and in the general abounding iniquity—the dark and dismal tokens of a deserted church; and, although they knew and believed that the cause of Christ could never fall, and hoped and rejoiced in the hope that a glorious day would yet arise upon Scotland, wept and made mournful supplication for the sins of the people among whom they dwelled, and anticipated heavier judgments for unimproved mercies, until a returning to Him against whom they had offended should again draw down the blessing.

The increasing severities which now began to be used towards the conventicles likewise occasioned a difference of opinion among the godly ministers and people as to the right of self-defence in hearing the gospel. The injunction of Christ as to individuals is clear, when persecuted in one city, flee into another; but in Scotland, where the throne of iniquity framed mischief by a law, and where the whole Presbyterians, who formed a large majority, were at once deprived of their civil rights, as well as their religious privileges—and where a constitution as solemnly ratified, and as sacredly sworn to, as any mutual agreement between rulers and people ever was, or ever can be, had been wantonly destroyed by a wretched minority of riotous unprincipled sycophants, and place-hunting apostates—the question involved, in the opinion of many, not only their duty as Christians, but as citizens. Paul had taught them that these were not incompatible, and their fathers had vindicated both in the field. The young men were generally of this opinion, and began to come armed to sermons about the commencement of this year [1675], and talked of imitating the example of the days of the congregation. The elder and most esteemed among the ministers were divided; while, in general, they allowed the soundness of the principle, they differed as to the propriety of the time. Among these appear to have been Mr Welsh, Mr Blackadder, and Gabriel Semple; others, at the head of whom stood Fraser of Brea and Kirkton, were entirely averse to any resort to arms. The former thus states his views of the subject:—

“A violent persecution had broken out; and then there began to be fining, imprisoning, taking, and summoning of persons, disturbing of conventicles with soldiers. But yet the gospel prevailed more and more, and we were like the Israelites in Egypt, the more we were afflicted, the more we grew and multiplied. Some hot heads were for taking the sword and redeeming of themselves from the hands of the oppressors; at least I had ground to fear it. But I opposed rising in arms all I could, and preached against it, and exhorted them to patience, and courageous using of the sword of the Spirit; and I did not see they had any call to the sword, and their strength was to sit still; and if they did stir and take the sword, they would therewith perish; but if they patiently suffered and endured, God would himself either incline to pity or some other way support and deliver them. I had influence with the people, being popular, and whilst I was at liberty I did what I could to keep the people peaceable. The truth is, there were great provocations given, so that we concluded it was the design of some rulers to stir us up that we might fall. Ministers still preached and laboured among the people; conventicles increased; many were brought in; the work of God, in the midst of persecution, did always prosper, until we destroyed ourselves, first by needless divisions and difference of opinion, happening by reason of the indulgence; and thereafter by rash and unwarrantable taking up of arms.”

Gentlemen in Scotland at this time, it requires to be remembered, always wore arms as a part of dress; and the substantial heritors and yeomen were in general accustomed to be accoutred when they went from home, so that part of the meetings at field-preachings had always consisted of armed men, who, before this, had offered upon several occasions to defend their ministers at the risk of their lives, but had been refused, and who now thought that in protecting their assemblies from robbery and dispersion, and themselves from imprisonment, fining, or slavery—the inevitable consequences of being seized upon these occasions—that they were doing no more than was required by the law of God, and authorized by the law of their country, of which the prelatic party, and not they, were the invaders and violaters.

Many contests had already ensued. The Episcopalian myrmidons in Linlithgowshire, and even in Fife, had repeatedly drawn blood, while the patient hearers of the gospel had only fled before them. The rough borderers were not equally submissive.^[79] At Lilliesleaf, and throughout some of these

districts, they had stood upon the defensive and beaten off their assailants; and affairs were in this situation during the greater part of this year. Upon the complaints of the prelates, troops were ordered to scour the country in different directions. Edinburgh and Glasgow were again fined each in the sum of one hundred pounds sterling; and in addition, a detachment both of horse and foot were quartered in the latter city. Mr John Greg, for preaching at Leith mills, was sent to the Bass; and a Mr John Sandilands, for hearing a sermon near Bathgate, was fined three hundred merks. Nor were the nobility themselves spared. One of the most cruelly oppressive cases was that of Lord Cardross.

[79](#). Let it be always borne in mind, that the whole crowd who attended field-preaching, were not influenced by gospel principles, nor could be considered godly men, any more than that able disputers and fierce contenders for the pure faith, are always themselves believers. It is an awful consideration, that the most strenuous fighters for the purity of God's word—the Jews—were infidels, and thus addressed by our Saviour—"Ye have one that condemns you, even Moses, in whom ye trust;" and the best written "Plea for the Divinity of Christ," was written by a man who turned a Socinian. Beware of zealots!

His lordship being confined in Edinburgh in the month of May, his lady, who was far advanced in pregnancy, remained at home, with only a few attendants. Sir Mungo Murray, taking advantage of this circumstance, under cloud of night, accompanied by a posse of retainers, went to his residence, and outrageously demanded that the gates should be opened to him, else he would force his way and set fire to the house. Situated near the borders of the Highlands, the inmates naturally supposing them banditti, refused admission and demanded who they were? To this no answer could be obtained, but "Scottishmen," which increased their alarm; yet fearing the worst, as there were no means of defence, and no defenders, the gates were opened, when the ruffians rushed in; and, after searching the whole apartments in the most tumultuous and indelicate manner—forcing Lady Cardross to rise from her bed that they might search her chamber—and ransacking his lordship's private closet, they seized Mr John King, his chaplain, and Mr Robert Langlands, governor to his brother, afterwards Colonel John Erskine, and carried them off. Langlands was dismissed after being marched ten miles; Mr John King was rescued by some countrymen who had profited by his ministry. For this proceeding they had no warrant; and Lord Cardross, immediately upon being informed of the outrage, presented a complaint and petition to the privy council; but, instead of

receiving any satisfaction for the gross violation, not only of his privileges as a nobleman, but his rights as a subject, he was charged with having been guilty, art and part, in the rescue of Mr John King, although he was sixty miles distant. For harbouring him in his house, and for his lady's having been present at many conventicles, and for these complicated crimes, he was sentenced to be imprisoned during his majesty's pleasure in Edinburgh Castle, to pay a fine of one thousand pounds sterling, besides various sums for the delinquencies of his tenants.

Fining, imprisonment, and exile being found inadequate to the suppression of conventicles, other and more rigorous methods were resorted to. The houses of some of the principal gentlemen in the most infected counties were seized, and garrisoned by parties of horse and foot, that the least appearance of any gathering for hearing sermon might at once be put down, with as much care and celerity as the gathering of a civil, or the landing of a foreign, enemy; and a number of the most faithful, diligent, and able ministers this country was ever favoured with, were "intercommuned," their presence declared infectious as the plague, and every loyal person prohibited from conversing with or doing them any office, not of kindness, but of common humanity, under the pain of being placed themselves without the pale of society.^[80]

⁸⁰. The names of these were—"David Williamson, Alexander Moncrief, William Wiseheart, Thomas Hogg in Ross, George Johnstone, Robert Gillespie, John M'Gilligan, John Ross, Thomas Hogg, Stirlingshire, William Erskine, James Donaldson, Andrew Anderson, Andrew Morton, Donald Cargill, Robert Maxwell, elder and younger, James Fraser of Brea, John King; and with these a good many ladies and gentlemen were joined, besides many of lower rank, altogether upwards of one hundred persons." *Wodrow*, vol. i. p. 394. This revival of a dormant and iniquitous law was peculiarly oppressive, as all who conversed with the intercommuned being liable to the same punishment, thousands might be unwittingly implicated, and laid at the mercy of their rapacious rulers.

But one of the persecuted themselves remarks—"Although this seemed to be the first storm of persecution that yet had fallen upon us, and that now the adversaries had boasted of an effectual mean for suppressing conventicles, and establishing prelacy and uniformity, and the good people feared it; yet the Lord did wonderfully disappoint them, and made and turned their witty councils into folly—for this great noise harmed not at all, it was powder without ball. For, as for myself, never one that cared for me shunned my company; yea, a great many mere carnal relations and

acquaintances did entertain me as freely as ever they did; yea, so far did the goodness of the Lord turn this to my good, that I observed it was at that time I got most of my civil business expedite. And as the Lord preserved myself in this storm, so I did not hear of any intercommuned, or conversers with intercommuned persons, that were in the least prejudiced thereby; nay, this matter of the intercommuning of so many good and peaceable men did but exasperate the people against the bishops the more, and procured to them, as the authors of such rigid courses, a greater and more universal hatred; so that the whole land groaned to be delivered from them.”

Danger, indeed, seemed to endear the ministers to the people; and the risks they ran, and the many providential occurrences which attended their meetings, produced a high degree of excitement, that tended in no small measure to secure large and attentive audiences, and prepared their minds for a solemn reception of the doctrines they heard, at the peril of their lives.

North of the Tay there were but few Presbyterian ministers, and they had not hitherto been very closely pursued; but among them were some of the most excellent, and these of course were included in the act of intercommuning—for their labours had been equally abundant with the rest. Mr John M’Gilligan of Alness, was one of not the least conspicuous, either for success or for suffering. On September, the very month following his being denounced, he dispensed the ordinance of the Lord’s Supper at Obsdale, in the house of Lady Dowager Fowlis, assisted by Mr Hugh Anderson, minister of Cromarty, and Mr Alexander Fraser, minister of Teviot. According to the account preserved of it, it seems to have been one of those heart-enlivening seasons which the Lord sometimes vouchsafes to his church in the day of her visitation. “There were,” says the narrator, “so sensible and glorious discoveries made of the Son of Man, and such evident presence of the Master of assemblies, that the people seemed to breathe the very atmosphere of heaven; and some were so transportingly elevated, that they could almost use the language of the apostle—‘whether in the body or out of the body, I cannot tell.’ The eldest Christians there, declared they had not been witnesses to the like. They also remarked that the Lord wonderfully preserved them in peace.”

Some rumours of an intended communion having got abroad, the sheriff-depute was ordered by the bishop to prevent or disperse the meeting. He accordingly sent a party to apprehend the minister; but he not knowing the

spot, directed them to proceed to his house at Alness, naturally supposing the meeting would be there. The soldiers, upon finding the nest empty, attacked the orchard—a much more pleasant amusement, that detained them till the forenoon's service was over at Obsdale, where, before they arrived, Mr M'Gilligan had got notice, and was under hiding, which, when they found, they retired without disturbing the congregation; and the sacred solemnities proceeded without any further interruption. Mr M'Gilligan, however, was obliged to abscond; and one of his neighbours, Mr Thomas Ross, being apprehended at Tain for a similar offence, was sent to the Bass.

Civil tyranny is always so interwoven with ecclesiastical persecution, that it is seldom we are able to separate the two. But the sufferings of Sir Patrick Home of Polwart, although they undoubtedly originated from his religion, were ultimately effected through the medium of his patriotism: he legally, by a bill of suspension before the Court of Session, resisted a wanton stretch of power in the privy council, and endeavoured to rouse the opposition of the gentry of Berwickshire towards an oppressive, unjust tax for planting garrisons among them in time of peace; and for this undoubted exercise of his right, was committed, by order of the king, prisoner to Stirling Castle, and declared incapable of holding any place of trust; and the heritors succumbed, although the other fines extorted from the shire this year amounted to nearly twenty-seven thousand pounds Scots.

Nor were the indulged suffered to enjoy their limited and precarious pardon quietly; their stipends were withheld or tardily paid, and that only upon their producing certificates from the sheriffs that they had kept no conventicles for the last twelve-month; but their most vexatious trials were the natural consequences of their acknowledging the power of the civil magistrate in ecclesiastical affairs, and owning his warrant, rather than the authority of Christ, as the rule in their ministerial labours. Complaints were brought against them, and they were summoned before the council for not celebrating the communion on the same day in all their parishes—for irregular baptisms—and for having preached in churchyards and other places than the kirks; but, above all, for having presumed to authorize young men to preach the gospel, and ordained others to the work of the ministry; and, at a time when a long tract of unseasonable weather seemed to threaten a famine, they had usurped a power which belonged to majesty alone, or his delegates, and had appointed a fast in their several

congregations! Through the interest of Lord Stair, however, these grievances were not pushed to extremities this year.

[1676.] Whatever circumstances might induce any occasional relaxation in the severity of the persecution, the spirit remained the same; and no opportunity was suffered to escape by which the preaching of the gospel might be put down by men calling themselves Christian bishops. The soldiers in the garrisons were their willing instruments, and as they shared in the plunder, were active in the pursuit; yet meetings for hearing the word continued to increase, and the ordinances of religion were administered with a solemnity and power, often at midnight, which rendered them the general topics of interest and conversation among the people, and still more the objects of aversion to the prelates. Finings for “conventicles” were therefore inflicted by the council with unmitigated rigour. Durham of Largo, for offences of this nature, and harbouring that “notour traitor,” John Welsh, was early in the year mulcted of nearly four thousand pounds Scots; Colonel Kerr, several ladies, and some citizens of Edinburgh, were legally plundered in various sums each, of five hundred merks, two hundred pounds, and one hundred pounds Scots, for being at house conventicles within the city; but the magistrates having also suffered for these “enormities,” being soused for not preventing what they had never previously heard of, they were allowed to reimburse themselves by fining the culprits, who were thus punished twice for one crime.

A more revolting case of wanton cruelty was, about the same time, exercised towards some poor men who had been guilty of attending sermon in the fields near Stirling. Towards the end of 1674, they had been seized in the act and carried to jail; eight, by some means or other, had got out—and the remaining seven sent the following affecting petition to the council in the month of February:—“The petitioners, being prisoners in the tolbooth of Stirling, these fifteen months by-past, some of us being poor decrepit bodies, and all of us poor creatures with wives and families, we have been many times at the point of starving, and had long ere now died for want, if we had not been supplied with the charity of other people: The truth whereof is notour to all who live near Stirling, and which the magistrates have testified by a report under their hands: Wherefore, it is humbly desired that your lordships would compassionate our pitiful and deplorable condition, and that of our poor starving wives and children, and order us

liberty, we being willing to enact ourselves to compear and answer before your lordships whenever we should be called.” Of those who signed, one, Charles Campbell, was upwards of sixty, and one John Adam, near seventy years of age; the others were labouring under severe bodily indisposition. Yet, instead of being moved by the pitiful tale of these harmless, aged, and sickly prisoners, the council, with an inhumanity which it would not be easy to designate properly, ordered them to be turned over as recruits! to one of Lauderdale’s minions, a Captain Maitland, then an officer in the French service; and on Friday, February 18, at midnight, they were delivered to a party of soldiers, fettered and tied together, and marched off without any previous warning. But they went cheerfully away, although they knew not whither; for they knew the master whom they served would never leave them naked to their enemies in their old age.

These severities were followed up by a fresh proclamation against conventicles, in which, with the most hypocritical falsehood, after lauding the king’s princely care and zeal for the interests of the Protestant reformed religion and the church, and lamenting the sad and sensible decay religion had suffered, and the great and dangerous increase of profaneness, through the most unreasonable and schismatical separation of many from the public and established worship, and the frequent and open conventicles, both in houses and fields—magistrates were required rigorously to apprehend all who were intercommuned, and to expel their families from the burghs, together with such preachers and their families as did not regularly attend public worship—to enforce the acts against conventicles and separation, under a penalty of five hundred merks if they did not annually report their proceedings, and five hundred or upwards additional, for every conventicle that shall have been held within their jurisdictions, besides whatever other fine the council might choose to inflict. All noblemen, gentlemen, and burgesses were forbid to entertain any chaplin, tutor, or schoolmaster, under penalties proportioned to their rank, from six hundred to three thousand merks; and informers were, according to the system of the times, by the same proclamation, encouraged and rewarded by a share of the fines. Committees were also appointed to investigate and punish transgressors, who fined and imprisoned many of the most respectable heritors and gentlemen, particularly in the west, and outlawed others who had declined answering their summons.

Enemies to the gospel of Christ, the prelatic rulers did not confine their opposition to the preaching of the “outted” ministers, the indulged were at the same time subjected to greater burdens. It was evidently one of their main objects to produce division among the Presbyterian ministers; and as we have seen the indulgence was admirably calculated to effect this, yet the breach being neither so wide nor so violent as they wished, “instructions” were issued to them by the council. Assuming that they had accepted of liberty to preach under conditions, the council accused them of violating their engagements by baptizing without the necessary certificates, and preaching in other places than their own kirk, without any license from the bishop; and they added this injunction, that they should not employ or allow any of their brethren to preach for them who had not also obtained similar liberty. The indulged eluded the charges, by alleging that they accepted of the indulgence as a boon from government, not upon conditions, but as a favour granted; and the instructions they considered as orders upon which they were to act at their peril. But this neither satisfied the council nor their brethren, both of whom concurred in thinking it an evasion rather than an honest justification of their conduct. With the injunction they appear to have complied also—a very unsatisfactory procedure—which induced some, particularly of the younger unindulged preachers, to visit the boundaries of their parishes, and led to heart-burnings and mutual accusations between those who thought they might yield a little to the pressure of the times, and those who in nothing would recede from their avouched principles. These differences, which afterwards unhappily led to coldness and estrangement among the friends of “the good cause,” did not produce their most mischievous effects till the oldest, stanch, tried worthies were removed from the field. Meanwhile, the dispersion of the ministers, who, when they were scattered abroad, went every where preaching the word, was eminently blessed to promote that gospel it was intended to destroy, and conventicles multiplied on every side both in houses and fields.

Of the period from 1673 to 1679, Shiels gives this animating picture on reviewing it many years after, when the holy excitement had subsided, and temporal prosperity had began to diffuse its seductive influence over the revolution-church:—“When by persecution many ministers had been chased away by illegal law sentences, many had been banished away, and, by their ensnaring indulgences, many had been drawn away from their duty; and others were now sentenced with confinements and restraints if they

should not choose and fix their residence where they could not keep their quiet and conscience both—they were forced to wander and disperse through the country; and the people being tired of the cold and dead *curates*, and wanting long the ministry of their old *pastors*, so longed and hungered after the *word*, that they behoved to have it at any rate, cost what it would; which made them entertain the dispersed ministers more earnestly, and encouraged them more to their duty; by whose endeavours—through the mighty power and presence of God, and the light of his countenance now shining through the cloud, after so fatal and fearful a darkness that had overclouded the land for a while, that it made their enemies gnash their teeth for pain, and dazzled the eyes of all onlookers—the word of God grew exceedingly, and went through at least the southern borders like lightning; or, like the sun in its meridian beauty, discovering so the wonders of God’s law, the mysteries of his gospel, and the secrets of his covenant, and the sins and duties of that day, that a numerous issue was begotten to Christ, and his conquest was glorious, captivating poor slaves of Satan and bringing them from his power unto God, and from darkness to light.

“O! who can remember the glory of that day, without a melting heart in reflecting upon what we have lost, and let go, and sinned away by our misimprovement—a day of such power that it made the people, even the bulk and body of the people, willing to come out and venture upon the greatest of hardships, and the greatest of hazards, in pursuing after the gospel, through mosses, and muirs, and inaccessible mountains, summer and winter, through excess of heat and extremity of cold, many days’ and nights’ journeys, even when they could not have a probable expectation of escaping the sword of the wilderness. But this was a day of such power, that nothing could daunt them from their duty that had tasted once the sweetness of the Lord’s presence at these persecuted meetings.

“Then we had such *humiliation-days* for personal and public defections, such *communion-days* even in the open fields, and such *Sabbath-solemnities*, that the places where they were kept might have been called *Bethel*, or *Peniel*, or *Bochim*, and all of them *Jehovah-Shammah*, wherein many were truly converted, more convinced, and generally all reformed from their former immoralities; that even robbers, thieves, and profane men, were some of them brought to a saving subjection to Christ, and generally under such restraint, that all the severities of heading and hanging in a great

many years could not make such a civil reformation as a few days of the gospel in these formerly the devil's territories, now Christ's quarters, where his kingly standard was displayed. I have not language to lay out the inexpressible glory of that day; but I doubt if ever there were greater days of the Son of Man upon the earth, than we enjoyed for the space of seven years at that time."^[81]

^{81.} *Hind let Loose*, p. 132.

The border districts, so notorious in our earlier history as the fields of constant plundering and murder, exhibited now amid their wild scenery a warfare of a very different description. "What wonderful success," says Veitch, "the preaching of the word has had by ministers retiring thither, under persecution, in order to the repressing, yea almost extinguishing, these feuds, thefts, and robberies, that were then so natural to that place and people, is worth a singular and serious observation. These news ought to be matter of joy and thanksgiving to all the truly godly in Britain, that, though the ark, the glory, and goings of our God be, alas! too much removed from Shiloh-Ephratah, the ingrounds, the places of greater outward plenty and pleasure, yet that he is to be found in the borders of those lands, in the mountains and fields of the woods. Some of the gentry on both sides of the borders have been forced both to see and say that the gospel has done that which their execution of the laws could never accomplish. And is not such a change worthy of remark? to see a people who used to ride unweariedly through the long winter nights to steal and drive away the prize, now, upon the report of a sermon, come from far, travelling all night, to hear the gospel; yea, some bringing their children along with them to the ordinance of baptism, although the landlord threaten to eject the tenant, and the master the servant, for so doing."^[82] Mr Gabriel Semple gives a similar statement. "These borderers were looked upon to be ignorant, barbarous, and debauched with all sort of wickedness, that none thought it worth their consideration to look after them, thinking that they could not be brought to any reformation. Yet, in the Lord's infinite mercy, the preaching to these borderers had more fruit than in many places that were more civilized."^[83]

^{82.} *Memoirs of William Veitch*, written by himself, published by Dr M'Crie, p. 118.

^{83.} *Semple's Life MSS.*, in Dr Lee's possession, quoted by Dr M'Crie, as above.

What ought to have filled the breast of every right-hearted minister of the gospel with joy, excited the fellest passions in the bosoms of the prelates, who evinced their filiation by doing the deeds of their father, (John viii. 44,) furiously seeking to destroy those who declared the truth; because, wherever a Presbyterian preacher came, the Episcopalian churches were forsaken, and the curates were left to harangue to empty pews. Political squabbling for power between Hamilton and Lauderdale, had diverted the attention of the two parties for a while from Scottish ecclesiastical affairs, which the ministers eagerly took advantage of to pursue their sacred vocation, judging wisely that the respite which they enjoyed would be at best precarious. When Lauderdale gained the ascendancy, they anticipated a longer continuance of the “blink;”^[84] but the clouds soon gathered thicker and darker. He knew he could only maintain his own elevation by exalting Episcopacy; and he quickly showed that his repeated declarations were not empty bravadoes. More correct in their calculations, the bishops improved the opportunity; and the council, his and their ready tool, issued fresh proclamations against conventicles, increasing in severity as they increased in number.

⁸⁴. “Blink”—a glimpse of sunshine in foul weather.

Averting their eyes from the loveliness of these bright prospects that shone around them, they mourned withal “the sad and sensible decays religion had of late suffered, and the great and dangerous increase of profaneness through the most unreasonable and schismatical separation of many from the public and established worship, and the frequent and open conventicles, both in houses and fields, by such as thereby discover their disaffection to the established religion, and their aversion to his majesty’s authority and government, endangering the peace of the kingdom, and dividing the church under pretence of scruple:” therefore, to manifest their zeal for the glory of Almighty God, the interests of the Protestant reformed religion, and of the church—to secure the same by unity in worship, and procuring all due reverence to archbishops, bishops, and all subordinate clerical officers—the magistrates of the several burghs were specially required to seize upon all persons who were, or should be, intercommuned, and to remove the families of such from all places under their jurisdiction, together with all preachers and their families who did not attend the public worship! All noblemen, gentlemen, and others, were strictly forbid to afford

shelter or aid to any intercommuned person, upon pain of being themselves intercommuned; and whosoever should discover those that transgressed, were to receive five hundred merks reward immediately. Magistrates were also rendered liable to severe fining, if they did not rigorously fulfil the imperative duty of searching out and punishing all such as worshipped God after the manner they chose to call heresy.

What means they thought lawful for obtaining information from suspected persons, is evinced in their treatment of James Mitchell, who made the unsuccessful attempt upon Sharpe. He had left the country at the time, and did not return till he supposed the affair was forgotten, when he married a woman who kept a small shop not far from the primate's town residence. In passing this way, his Grace observed a person eye him keenly, which rather alarmed him, as he thought he recognized his foiled assassin; and he caused him to be arrested. A pistol, loaded with three bullets, being found in his pocket, increased his terror, and he became extremely anxious to know the extent of his danger. Accordingly, before the prisoner was examined, he swore by the living God, if he would confess the act, he would obtain his pardon; and a committee of the privy council, consisting of Rothes, Lord Chancellor; Primrose, Lord Register; Nisbet, Lord Advocate; and Hatton, Treasurer-depute, authorized by the Commissioner, gave him a similar assurance. Disappointed, however, by his confession, as they expected to discover a conspiracy, on finding he had no accomplice, and unwilling that he should thus escape, they remitted him to the Justiciary Court, evading their solemn engagement by a jesuitical quibble, that the promise of securing his life did not guarantee the safety of his limbs. Having received a hint, as he was passing to trial, he disclaimed his confession at the bar; and there being no other proof, the judicial proceedings were abandoned, or, in Scottish law-phrases, the "diet" was deserted, and he was remanded to prison, where he remained till January this year, when the spirit of cruelty which appeared to actuate the then rulers against all who were rigid Presbyterians, especially preachers, urged them to subject their unhappy victim to the torture.

About six o'clock in the evening of January 18th, Mitchell was brought before a meeting of Justiciary, where the Earl of Linlithgow sat president, and questioned whether he would adhere to his former confession. He replied, that the Lord Advocate having deserted the diet against him, he

ought to have been, agreeably both to the law of the nation and the practice of the court, set at liberty, and therefore knew no reason why he was that night brought before their lordships. Without any attention being paid to this strictly legal objection, he was again asked, if he would adhere to his former confession? He refused to own any confession; and Hatton most outrageously exclaimed, “that pannel is one of the most arrogant cheats, liars, and rogues I have ever known!” Mr Mitchell retorted, My lord, if there were fewer of those persons you have been speaking of in the nation, I would not have been standing at this bar. The President said, “We will cause a sharper thing make you confess.” “I hope, my lord, you are Christians and not Pagans,” was the prisoner’s response, with which the business of that evening closed.

Upon the 22d, he was brought before them in the lower Council-Chamber, and the question repeated, the President at the same time pointing to the boots, said, “You see, sir, what is upon the table; I will see if that will make you confess.” “My lord,” answered Mitchell intrepidly, “I confess by torture you may make me blaspheme God, as Saul did compel the saints; you may compel me to call myself a thief, a murderer, a warlock, or any thing, and then pannel me upon it; but if you shall, my lord, put me to it, I here protest before God and your lordships, that nothing extorted from me by torture shall be made use of against me in judgment, nor have any force in law against me or any person whatsoever. But to be plain with you, my lords, I am so much of a Christian, that whatever your lordships shall legally prove against me, if it be a truth, I shall not deny it; but, on the contrary, I am so much of a man, and a Scottishman, that I never hold myself obliged by the law of God, nature, or the nation, to become my own accuser.” Hatton rudely answered—“He hath the devil’s logic, and sophisticates like him; ask him whether that be his subscription.” “I acknowledge no such thing,” said the pannel, and was remanded to jail.

Two days after, the judges, in formal pomp, arrayed in their robes, and attended by the executioner with the instruments of torture, like true inquisitors, first attempted to terrify their prisoner, before they literally put him to the question. It was in vain. They could not shake him. Had they not been dead to every nobler feeling of our nature, they must have quailed when he thus addressed them:—“My lords, I have now been these two full years in prison, and more than one of them in bolts and fetters—more

intolerable than many deaths. Some in a shorter time have been tempted to make away with themselves; but, in obedience to the express command of God, I have endured all these hardships, and I hope to endure this torture also with patience, on purpose to preserve my own life, and that of others also, as far as lies in my power, and to keep the guilt of innocent blood off your lordships and your families, which you doubtless would incur by shedding mine. I repeat my protest. When you please, call for the men you have appointed to their work.” The executioner being in attendance, immediately tied Mr Mitchell in an arm-chair, and asked which of the legs he should take? The lords said, “Any of them.” The executioner laid in the left; but Mr Mitchell taking it out, said, “Since the judges have not determined, take the best of the two; I bestow it freely in the cause.” He was interrogated about his being at the battle of Pentland, his meeting with Wallace or with Captain Arnot—all of which he could veritably answer in the negative. The tormentor then began to drive the wedges, asking at every stroke if he had any more to say? To this he generally replied “No.” After a while, when the pain began to be excruciating, he exclaimed, again addressing his inquisitors—“My lords, not knowing but this torture may end my life, I beseech you to remember, that ‘he who showeth no mercy, shall have judgment without mercy;’ for my own part, my lords, I do freely and from my heart forgive you who are judges, and the men who are appointed to go about this horrid work, and those who are satiating their eyes in beholding. I do entreat that God may never lay it to the charge of any of you, as I beg that God, for his Son Christ’s sake, may be pleased to blot out my sin and mine iniquity.” At the ninth, the sufferer fainted through the extremity of pain. “Alas! my lords,” said the executioner, “he is gone!” The unfeeling wretches told him “he might stop,” and coolly walked off. When Mitchell recovered, he was carried in the same chair back to his prison. Here he continued till January 1677, when he was sent to the Bass.

BOOK X.

A.D. 1676-1677.

Remarkable sacramental solemnities occasion harsher measures—Council new modelled—Committee for public affairs—Kerr of Kersland—Kirkton—The expatriated pursued to Holland—Colonel Wallace.

Political power, combined with ecclesiastical, essentially forms a broad basis for the most excruciating tyranny, especially in spiritual matters, which admits of no medium between implicit obedience or cruel constraint. Accordingly, we always find, after some of those hallowed seasons in which the persecuted had been able to elude the vigilance of their oppressors, and had experienced them to be indeed times of refreshing from on high, that immediately some new and more violent proclamation followed, attempting, had it been possible, to have interdicted their sacred intercourse with heaven. Thus, the sacrament of the Lord's Supper having been longed for by many of those in the west who could not receive it at the hands of the incumbents of their parishes, several ministers resolved to celebrate it at different places, which was accordingly done with peculiar solemnity, under the covert of night, to numerous assemblages in the parish of Kippen, Stirlingshire; at the House of Haggs, near Glasgow; and in a barn at Kennyshead, parish of Eastwood; and it was remarked that the Lord very much owned these communions as sweet sealing ordinances; but no sooner were these doings whispered abroad, than a former proclamation against conventicles was repeated, of more extensive comprehension, and imposing a heavier penalty on every heritor in the land on whose estate they should be held. Several council-committees were appointed to perambulate the country, in order to enforce a vigorous execution of the extra-legal

mandates. This they did by requiring a number of respectable gentlemen and ministers, whom they called before them, to declare upon oath what conventicles they had attended since the year 1674, what number of children they had seen baptized, and whether they had reset or harboured any intercommuned persons. Those who appeared were fined in various sums, according to their circumstances, from fifty merks to a thousand pounds Scots. In this iniquitous inquisition, silence was construed into contempt; and to refuse, what no human law has a right to require, becoming one's own accuser, was punished even more severely than an acknowledgment of default.

At the same time, the council was new modelled. The primate was appointed president in absence of the Chancellor, and the two archbishops with any third creature of their own, formed a quorum of "the committee for public affairs," who assumed the entire management of ecclesiastical matters, then the chief if not the whole of public business. Perhaps the most detestable feature in the proceedings of this execrable committee was the system of espionage they carried into private life. An example will best illustrate the remark. Robert Kerr of Kersland having been forced to go abroad with his family, his lady returned to Scotland to arrange some little private business. He followed secretly, and to his great grief found her sick of a fever when he arrived, yet durst not lodge in the same house, but was wont to visit her stealthily in the evenings. Robert Cannon of Mardrogat, a base spy, who hypocritically attended the secret meetings of the persecuted, at a time when he knew Kersland would be waiting on his sick lady, made application to Lauderdale for a warrant to apprehend Mr John Welsh, represented as then keeping a conventicle in her chamber. A friend of her's who was with the Commissioner when he received the information, assured him that it was false, as she knew that Lady Kersland was very unwell. The warrant, however, was granted, but with express instructions from Lauderdale that the sick lady should not be disturbed if no conventicle appeared in the house.

A party came—there was no conventicle—and they were departing; but the reptile informer had told one of them that when any strangers came into the room, Kersland was wont to secrete himself behind the bed. He, accordingly, stepped direct to the place, and drawing the gentleman from his concealment, ordered him to surrender his arms. Kersland told him he

had no arms but the Bible—the sword of the Spirit—which he presented to him. He was immediately made prisoner. When led away, his wife displayed great composure, and besought him to do nothing that might wound his conscience out of regard for her or her children, repeating earnestly as he left her—“No man having put his hand to the plough, and looking back, is fit for the kingdom of God.”

Before the council, he undauntedly defended the patriotic “rising” at Pentland, as a lawful effort in defence of their liberties; on which he was immediately ordered to prison. When being carried off, the Chancellor sneeringly asked him what it was his lady said to him at parting? He replied “he did not exactly remember.” “Then I will refresh your memory—she exhorted you to cleave to the good old cause;—ye are a sweet pack!” He was after this imprisoned in different jails for several years, till at last, being ordered into close confinement in Glasgow tolbooth, to be kept there during the archbishop’s pleasure, who had a personal dislike at him, a dreadful fire most opportunely broke out in the town, which threatening the prison, the populace with instinctive humanity released all the inmates; and Kersland among the rest regained his liberty.^[85] He then went to Holland, the common asylum for Protestant sufferers, and died at Utrecht, in November 1680.

⁸⁵. “Nov. 3, 1677. The fire brake up in Glasgow in the heid of the Salt-mercat, on the right, near the cross, which was kyndled by a malicious boy, a smith’s apprentice, who being threatened, or beatt and smittin by his master, in revenge whereof setts his work-house on fyre in the night-tyme, being in the backsides of that forestreet, and flyes for it. It was kyndled about one in the morning; and having brunt many in the backsyde, it breaks forth in the fore streets about three of the morning; and then it fyres the street over against it, and in a very short tyme burned down to more than the mids of the Salt-mercat; on both sydes fore and back houses were all consumed. It did burn also on that syd to the Tron Church, and two or three tenaments down on the heid of the Gallowgate. The heat was so great, that it fyred the horologe of the tolbooth (there being some prisoners it at that tyme, amongst whom the Laird of Carsland was one, the people brake open the tolbooth-doors and sett them free); the people made it all their work to gett out their goods out of the houses; and there was little done to save houses till ten of the cloke, for it burnt till two hours afternoon. It was a great conflagration and nothing inferior to that which was in the yeir 1652. The wind changed several tymes. Great was the cry of the poor people, and lamentable to see their confusion. It was remarkable that a little before that tyme, there was seen a great fyre pass through these streets in the night-tyme, and strange voices heard in some parts of the city.” *Law’s Memorials*, p. 135.

Perhaps a more flagrant and vexatious example of the harassment to which honest individuals were then exposed can scarcely be given, than that

of the venerable Kirkton the historian. He was walking along the High Street of Edinburgh at mid-day, in the month of June, when—but we shall let him tell his own tale—“he was very civilly accosted by a young gentleman, Captain Carstairs, attended by another gentleman and a lackey. Carstairs desyred to speak a word with him, to which he answered he would wait upon him; but because he knew not to whom he spake, he quietly asked the other gentleman (James Scott of Tushiclaw) who this young gentleman might be; but Scott answered with silence and staring. Then Mr Kirkton perceived he was prisoner among his enemies, but was very glade they carried him to a private house, and not to the prison, which they were very near; but they carried him to Carstairs’ chamber, ane ugly dark hole, in Robert Alexander, messenger, his house. As soon as ever he was brought into the house, Carstairs abused him with his tongue, and pusht him till he got him into his own chamber, which made the people of the house weep. After he hade got him into his ugly chamber, he sent away Scott and Douglass, his lackey, (as Mr Kirkton supposed) to fetch his companions; but as soon as they were alone, Mr Kirkton askt him what he meant? what he would doe with him? Carstairs answered, sir, you owe me money. Mr Kirkton askt him whom he took him to be, denying he owed him any thing. Carstaires answered, are not you John Wardlaw? Mr Kirkton denied, telling him who he was indeed. Then Carstaires answered, if he were Mr Kirkton he hade nothing to say to him. Mr Kirkton askt him who he was. He answered he was Scott of Erkletone, whom indeed he did much resemble, but spoke things so inconsistent, Mr Kirkton knew not what to think; for if Carstaires had designed to make him prisoner, he might easily have done it before. But after they hade stayed together about half an hour, Mr Kirkton begane to think Carstaires desired money, and was just beginning to make his offer of money to Carstaires, when Jerviswood, Andrew Stevenson, and Patrick Johnston came to the chamber-door, and called in to Carstaires, asking what he did with a man in a dark dungeon, and all alone? Mr Kirkton finding his friends come, tooke heart. ‘Now,’ sayes Mr Kirkton to Carstaires, ‘there be some honest gentlemen at your door, who will testifie what I am, and that I am not John Wardlaw; open the door to them.’ ‘That will I not,’ sayes Carstaires, and with that layes his hand on his pocket-pistoll; which Mr Kirkton perceiving, thought it high time to appear for himself, and so clapt Carstaires closs in his armes; so mastering both his hands and his pistoll, they struggled a while in the floor; but Carstaires

being a feeble body, was borne back into a corner. The gentlemen without hearing the noise, and one crying out of murther, burst quickly the door open (for it had neither key nor bolt,) and so entered, and quietly severed the stragglers, tho' without any violence or hurt done to Carstaires.

“As soon as Mr Kirkton and the gentlemen had left Carstaires alone, Scott, his companion, came to him, and they resolved not to let it goe so, but to turn their private violence into state service; and so to Hatton they goe with their complaint; and he upon the story calls all the lords of the councill together, (tho' they were all at dinner,) as if all Edinburgh had been in armes to resist lawfull authority, for so they represented it to the councill: and he told the councill when they were convened that their publick officers had catcht a fanatick minister, and that he was rescued by a numerous tumult of the people of Edinburgh. The councill tryed what they could, and examined all they could find, and after all could discover nothing upon which they could fasten. Mr Kirkton had informed his friends that it was only a reall robbery designed, and that indeed money would have freed him, if Carstaires and he had finished what he begune to offer; and the councill could find no more in it, and so some councillors were of opinion. But Bishop Sharpe told them that except Carstaires were encouraged, and Jerviswood made an example, they needed never think a man would follow the office of hunting fanaticks; and upon this all those who resolved to follow the time and please bishops, resolved to give Sharpe his will. So the next councill-day, after much high and hot debate in the councill, Jerviswood was fyned 9000 merks—[£562. 10s. sterling, a grievous sum in those days]—(3000 [£187. 10s.] of it to be given to Carstaires for a present reward;) Andrew Stevenson was fyned 1500 merks [£92. 15s.]; and Patrick Johnston in 1000 [£62. 10s.]; and all three condemned to ly in prison till Mr Kirkton was brought to relieve them.”

It would be difficult to find language to designate this transaction. Kirkton further informs us that it occasioned “great complaining,” and “all the reason the councill gave of their severe sentence was, that they found Jerviswood guilty of resisting authority by Captain Carstaires’ production of his warrand before the councill. But this did not satisfie men of reason; for, first, it was thought unaccountable that a lybell should be proven by the single testimony of an infamous accuser against the declaration of three unquestionable men, and all the witnesses examined. Next, Carstaires’

producing a warrant at the council table, did not prove that he produced any warrant to Jerviswood, and, indeed, he produced none to him, because he had no warrant himself at that time; as for the warrant he produced, it was writ and subscribed by Bishop Sharpe after the deed was done, tho' the bishop gave it a false date long before the true day." What infuriated the council, was the deep interest the inhabitants of Edinburgh took in this foul business; when it came before them, the passages to the Council-chamber were crowded with anxious inquirers; and it was debated at the council-board, whether all who were in the lobby should be imprisoned or not?—it was decided not, only by one voice.

[1677.] Prelatic inveteracy was not, however, bounded by Scotland, it pursued into other countries those who found among foreign Protestants that freedom of conscience denied them at home. Messrs Robert Macwaird and Mr John Brown, two eminent ministers, who had sought refuge in Holland, having been requested by the other Scottish refugees to exercise their sacred function among them at Rotterdam, the states-general were instantly required by Charles to dismiss them from their territories; and, in order to escape a war with England, were forced to comply with the tyrant's demand, yet not till they had afforded their respected guests an opportunity of disposing of their effects to the best advantage and looking out for another asylum.

The persevering rancour of Charles, and the reluctance of the states, occasioned a protracted discussion of two days in their senate; and Sir William Temple declared that it had been the hardest piece of negotiation he had ever entered upon. Its issue was productive of a nobler and more durable testimony to the worth of the persecuted exiles, than could otherwise have been procured, and will hand down to posterity the everlasting remembrance of these righteous men, while the memory of the worthless monarch shall rot. The states entered on their record a resolution, importing that "the foresaid three Scotsmen have not only behaved and comported themselves otherwise than as became good and faithful citizens of these states, but have also given many indubitable proofs of their zeal and affection for the advancement of the truth, which their High Mightinesses have seen with pleasure, and could have wished that they could have continued to live here in peace and security." Besides which, each received a separate testimonial on their departure. The following is a

copy of the one put into the hands of Colonel Wallace:—"The States-General of the United Netherlands, to all and every one who shall see or read these presents, health: Be it known and certified that James Wallace, gentleman, our subject, and for many years inhabitant of this state, lived among us highly esteemed for his probity, submission to the laws, and integrity of manners. And therefore we have resolved affectionately to request, and hereby do most earnestly request, the Emperor of the Romans, and all Kings, Republics, Princes, Dukes, States, Magistrates, or whomsoever else our friends, and all that shall see these presents, that they receive the said James Wallace in a friendly manner whenever he may come to them, or resolve to remain with them, and assist him with their council, help, and aid; testifying, that for any obliging, humane, or kindly offices done to him, we shall be ready and forward to return the favour to them and their subjects whensoever an opportunity offers. For the greater confirmation whereof, we have caused these presents to be sealed with our seal of office, and signed by the President of our Assembly, the sixth day of the month of February, in the year one thousand six hundred and seventy-seven."

Colonel Wallace was afterwards forced to lurk about the borders of France or the Netherlands, whence he addressed to "the Lady Caldwell, widow of William Mure of Caldwell," the following letter, which I give as a specimen of the seditious correspondence he was accused of holding with the fanatics:—

"ELECT LADY AND MY WORTHIE AND DEAR SISTER,—Your's is come to my hand in most acceptable tyme. It seems that all that devils or men these many years have done (and that has not been lytle) against yow, to dant your courage, or to make yow, in the avoweing of your master and his persecuted interests, to loore your sailes hes prevailed so lytle, that your fayth and courage is upon the groweing hand, ane evidence indeed to your persecuters of perdition, bot to yow of salvation, and that of God. It seems when yow at first by choyce tooke Christ by the hand to be your Lord and portion, that yow wist what yow did; and that notwithstanding all the hardnesses yow have met with in bydeing by him, your heart seems to cleave the faster to him. This sayes yow have been admitted into much of his company and fellowship. My sowle blesses God on your behalf who hath so caryed to yow, that I think yow may take those words, amongst others, spoken to you —'Yow have continued with me in my afflictions; I appoint unto yow a kingdom.' It seems suffering for Christ, loseing any thing for him, is to yow your glory—is to yow your gayn. More and more of this spirit maye yow enjoye, that yow may be among the few (as it was said of Caleb and Joshua) that followed him fullie—among the overcomers, those noble overcomers, mentioned Revel. ii. and iii.—among those to whom only (as pickt out and chosen for that end) he is sayeing, 'Yow are my witnesses.' Lady and my dear sister, I am of your judgement; and I blesse his name that ever he counted me worthie

to appear in that roll. It is now a good many years since the master was pleased to even me to this, and to call me forth to appear for him; and it is trew these fortie years bygone (as to what I have mett with from the world) I have been as the people in the wilderness; yet I maye saye it to this howre, I never repented my ingadgements to him, or any of my owneings of him; yea, these rebutes to say so I gott from men, wer to me my joye and crowne, because I know it was for his sake I was so dealt with; and this, it being for his sake, I was ready in that case (as Christ sayes) when men had taken me upon the one cheek for his sake, to turn to them the other also. Never was I admitted to more neerness, never was my table better covered, then since I left Rotterdam. Let us take courage and goe on as good soldiers of Jesus Christ, endureing hardnes. O for more fayth! O for more fayth among his people! As to this people, there is nothing to be seen in their waye that is promiseing of any good; bot on the contrar. O! I feare the Lord hes given them up unto their owne heart's lusts. They doe indeed walke in their owne counsels. That same spirit of persecution, and these same principles, that are among you, are heir; bot as God is faythfull, they shall be all brocken to pieces and turned backe with shame that hate Zion. Wayt but a lytle; they are diggeing the pit for themselves. The Lord hath founded Zion, and the poore of the people shall trust in it. Let us mynd one another. My love to all friends whom yow know I love in the Lord. God's grace be with yow, and his blessing upon your lytle ones whom he hath been a father to. In him I rest. Your's as formerly.

"JA. WALLACE."

BOOK XI.

A.D. 1677.

Meeting of the ministers in Edinburgh—Prosecutions for not attending the kirk—Lord Cardross—Conventicle at Culross—Bond—Lauderdale comes to Scotland—Pretended moderation—Alarm of the bishops—Carstairs attacks John Balfour's house—Council's design of raising a standing force—Resolutions of the West country gentlemen—Conventicles increase—Communion at East Nisbet—Common field-meeting—King authorizes calling in the Highland clans.

Early in the year, a pretty large meeting, both of the indulged and unindulged ministers, had been held in Edinburgh, for the purpose of considering the religious state of the country, and for endeavouring to heal the differences which still subsisted among themselves respecting what should have been long before dismissed as vexatious—the conduct of those who had declared against the resolutions, and who still lay under the sentence of some of the church courts. It commenced inauspiciously, Mr Blackadder having proposed that before they proceeded to business, some time should be set apart for fasting and humiliation on account of their defections, especially the tokens of disunion which began to appear respecting the indulgence. This gave rise to some unpleasant altercation. Mr Richard Cameron, then a probationer, with two others, being called to account for their preaching separation from the indulged, declined the right of the meeting to interfere with their conduct, it not being a lawfully constituted judicatory, and continued to express their disapprobation of the indulgence and of such as accepted it.

Eighteen years' persecution had now thinned the ranks of the earliest and most experienced of the "outted" ministers, who, although they never approved of the conduct of the indulged, yet had striven by all means to live in brotherly fellowship with them. But as age and infirmity, or death,

removed them from the field, their places were supplied by young zealous preachers, who being educated among the sufferers, and associating only with them, were not fully aware of the evils of division, nor did they sufficiently guard against the causes of it. In their sermons, the older ministers proclaimed the glad tidings of salvation through a crucified Saviour, and the necessity of fleeing for refuge to the hope set before them in the gospel; and dwelt not so much upon the immediate causes of their persecution, although they did not shun in declaring the whole truth, to vindicate their allegiance to Christ as sole Head and King of the church, bearing ample testimony against the usurped supremacy of their temporal monarch and the tyranny of his ecclesiastical creatures, the bishops. On the other hand, as was remarked by one of themselves, the younger and more inexperienced ministers insisted more strenuously in their sermons upon the controverted points; and in their private intercourse spoke too sharply of the conduct of such as did not go their lengths, by putting harsh constructions upon their actions, and perhaps flattered too much some “frothy professors,” not properly considering the difference between a proselyte to a party and a true Christian. Upon these topics they delighted to expatiate, till their minds became highly excited; and, unhappily, instead of moderating, encouraged a similar humour among their hearers, in the hope of managing them, though sometimes they themselves were forced by the people to go farther than they intended or inclined.

The fervour of numbers of young converts newly brought in by the gospel run high. The zeal and success of the first reformers, and of those more lately in 1638, were with them animating and frequent subjects of conversation; their conduct was much extolled, while that of the ministers’ in leaving their charges in 1662, and the people’s in suffering the curates to be thrust in and hearing them, was as greatly condemned. The king’s perjury, too, was often held up to execration, and his assumed supremacy represented as an object of equal abhorrence with that of the man of sin.

The meeting, however, after these disagreeables were discussed, decided that the sentences should be removed, and that both parties should hold ministerial communion. They also advised that the indulged should invite those who were not, to preach in their pulpits; and likewise that they should themselves preach “wherever” a proper opportunity offered, and the necessities of the people required. With this last recommendation many of

the ministers readily complied; and the people evincing a great desire for hearing, conventicles continued to multiply, and so numerous was the attendance, that it was found unadvisable to execute the severe laws against them to their full extent, only a few conspicuous individuals of the richer or more active, were singled out for persecution, to satisfy the vengeance of the prelates and the avarice of the needy gentry or soldiers. Robert Blae, late bailie in Culross, was fined four thousand merks for one conventicle—Adam Stobbie of Luscar, three thousand, for withdrawing from public ordinances, aggravated by converse with intercommuned persons; and, after payment of the fine, was ordered to be transported furth of the kingdom—John Anderson, younger of Dowhill, accused of a tract of non-conformity, which the prosecutor being unable to prove, the whole was referred to his oath, when he refusing to swear, was held as confessed. But he voluntarily acknowledged that he had for several years deserted his own church at Glasgow, and heard the indulged, by one of whom he had had a child baptized, and that he had been at five conventicles; for which grievous offences, and because he would not promise to hear his parish minister, he was amerced in four hundred pounds sterling, and ordered to lie in Edinburgh tolbooth till it was paid. After remaining about four months in prison, he compounded for nearly the half and got out. Nor were ladies treated with more tenderness, Lady Kinkel being fined five thousand merks, and Lady Pitlochrie one thousand, because they dared to hear the gospel preached by men who understood it, and declined countenancing the ministrations of state-puppets.

One of the most popular of the persecuted preachers, and peculiarly obnoxious to the primate, was Mr James Fraser of Brea, a gentleman by birth, and possessed of considerable property. He happened about this time to be in Edinburgh, and the town-major being solicited by Sharpe, was induced by great promises of reward, meanly to entice a servant-maid of one of his relations with whom he lodged, to betray him. When engaged in family worship upon Sabbath evening, January 28, about ten o'clock the major burst in, caught the culprit in the very act, seized him, and haled him off to prison; then went rejoicing to the archbishop, who, delighted with the intelligence, rewarded the exploit by a piece of money and a promise of more; and, next morning at day-dawn, sent strict orders to the jailer to keep Mr Fraser close, nor permit any person to have access to him, till he was examined by a committee of the council. When he appeared before them, he

was questioned as to his being a preacher at field-conventicles, which, as it was a capital offence by law, he declined answering. He acknowledged that he was, although most unworthy, a minister of the gospel, independently of the bishops, but denied that the subject of his discourses was either disloyal or traitorous as the archbishop asserted—what he preached was repentance towards God, and faith towards our Lord Jesus Christ, and no other thing than what was contained in the prophets and the New Testament. That, as for rising up in arms against the king, upon the pretext of religion, which the archbishop alleged, he maintained he had expressly told him, that he never knew any of the most zealous asserters of the liberties of the people who maintained the propriety of rising in arms upon pretence of religion—pretences affording no ground or warrant for any man's conduct. Respecting matters of prerogative and privilege, these were things of a ticklish and thorny nature, not within his sphere, nor did he think himself called to meddle with them. As to preaching the gospel either in houses or fields, when opportunity offered, so far from thinking it unlawful, he believed it to be duty; and meetings for this purpose, to be ordinances of Christ, instead of “rendezvouses of rebellion,” as the archbishop termed them. Being insidiously asked, seeing these were his opinions, whether he had ever preached in the fields? he refused to acknowledge that he had, adding, that if they thirsted after his blood, and wished to take his life on that account, they could not expect he should himself reach them the weapon. Let them bring proof; for he was resolved no man living should find him guilty of such a weakness as turning evidence against himself.

After his examination, he was sent back to prison, to be kept in solitary confinement; but that night, he remarks in his Memoirs, was the sweetest he had enjoyed for many years—“The Lord was a light round about me, and HIM they could not shut out; I was lifted up above death, sin, hell, and wrath, and the fears of prelates and papists, by a full sense of the divine favour!” Next morning he was awoke about six o'clock, and ordered to make ready to march for the Bass, where he was carried accordingly, and remained there till July 1679.

Subjected to the caprice of their jailer, the situation of the prisoners here was extremely uncomfortable, especially such of them as had moved in the middle and higher ranks of life. Their female servants were frequently changed; whenever any appeared to be attentive or sympathizing, they were

turned away and new ones sent, or, what was worse, they were attempted by the ruffian soldiers, who, if they succeeded, would shamelessly charge the ministers with the crime. Sometimes they were shut up in holes in the rock, and deprived even of the society of their fellow-sufferers—their letters were intercepted, opened, and read—their provisions, which they were obliged to purchase from the governor, were extravagantly dear, and consisted chiefly of hard fish and oatmeal—melted snow was their common drink in winter, or, at other times, a little brackish water, unless they paid well for the spring—they were harassed by the soldiers obtruding rudely among them and vexing them by their obscenities and blasphemies, or endeavouring to ensnare them upon political topics, especially upon the Lord's day, or when they observed others in serious conversation with them about their souls; for their confinement there was blessed to the conversion of several of their keepers, who would never otherwise have come under the sound of the gospel.

But perhaps the most outrageous act of pillage which occurred this year, was perpetrated upon Lord Cardross. On the 7th of August, he was served with an indictment for having had two children baptized by persons who were not his own parish ministers, nor authorized by the established government of the church, nor licensed by the privy council. His lordship's defence was cogent and irrefragable. He had one child born to him in the town of Edinburgh, while he was confined prisoner in the Castle; and not being permitted to attend his wife in her confinement, nor perform any duty relating to the infant, he did not conceive himself concerned in the act of parliament respecting baptisms, being in no liberty or capacity to satisfy its appointment; nor did he inquire further than to learn that the child was truly and Christianly baptized, without once asking by what minister the same was done;—seeing, therefore, that the foresaid act was made expressly against wilful withdrawers, and such as presumed to offer their children to be baptized otherwise than is therein ordained, these things were nowise chargeable upon him a prisoner, having neither ordinary parish, or settled family, nor so much as access to have presented his child for baptism. In conclusion, he appealed to the moderation of the council, reminding them of his protracted sufferings; and informing them that the child was since deceased, besought them not to add affliction to the afflicted; but he appealed in vain. These men had no feeling. He was robbed of half a year's

valued rent of his estate, because his lady in his absence had performed an act of maternal piety towards her child.

While the council were thus urging the pecuniary processes, in order more vigorously to incite their already too willing agents, they warranted the sheriffs, bailies of regalities, and other inferior officers, to appropriate to themselves the fines levied from all persons below the degree of an heritor; and, for those of heritors, they were to reckon with them. Of the extent of these exactions, no proper account remains; but as several of the soldiers received large donations, the sums must have been considerable; and the persecutions were chiefly carried on against those who could pay. In cases where the under-officials were remiss, “the committee for public affairs,” who were always upon the alert, took the matter under their own cognizance. A conventicle having been kept at Culross, on a Sabbath about this time, was dispersed by the military, and eighteen persons sent to jail. The committee finding that some of them had been set at liberty without their permission, ordered the magistrates to call them all back to prison, and “condescended” upon the most substantial of them, whom they appointed the said magistrates to produce before the council within eight days, to be dealt with as they should deserve, *i. e.* fined according to their circumstances.

Besides its all-pervading inquisition abroad and at home, the prelatie despotism of Charles had a malignity peculiarly its own, that delighted to destroy the very profession of Presbyterianism. The wretched, or, as he has been designated, “the merry monarch,” used to say, Presbyterianism was not the religion of a gentleman. I cannot pretend to define the religion of a gentleman; but if his majesty’s were a specimen, the more dissimilar Presbyterianism was to it the better.^[86]

⁸⁶. Evelyn, certainly no Whig, gives the following description of a Sunday at court:—“I can never forget the inexpressible luxury and profaneness, gaming, and all dissoluteness, and as it were total forgetfulness of God, it being Sunday, which this day se’night I was witness of. The king sitting and toying with his concubines, Portsmouth, Cleveland, and Mazarine. A French boy singing love songs in that glorious gallery, while about seventy of the great courtiers, and other dissolute persons, were at basset round a large table; a bank of at least £2000 in gold before them, upon which the gentlemen who were with me made reflections with astonishment.” *Mem.* vol. i. p. 585.

To be grave and decorous in conduct, devout and consistent in religious observances, were considered as unequivocal marks of Whiggery and

disloyalty. At this period a majority of the inhabitants of the Scottish Lowlands were so distinguished, particularly in the west and south-west; and these quarters coming more immediately in contact with the prelatists were more severely visited, as they were stanch to their principles, and zealous for their creed. There, therefore, the bitterest efforts of the government were directed.

Upon the 2d of August, a proclamation was issued for enforcing a bond, obliging the subscribers, with their wives, children, cottars, and servants, regularly to attend public worship in their parish churches, and not to be present at any conventicles, neither at any marriage or baptism, except such as were duly celebrated or administered by a regular incumbent, under the statutory penalties. A few days after, a commission was appointed to carry this act into execution. Immediately a very full meeting of the noblemen, gentlemen, and heritors of Ayrshire assembled, at which a representation was drawn up, refusing the bond, as requiring impossibilities; for they asserted the councillors themselves were unable to enforce compliances in their own families, and how did they expect plain country gentlemen to become bound for numbers over whom they could, in these matters, have no control? but they proposed an easier and surer expedient for preserving the peace of the country, and that was by extending and protecting the liberty of the Presbyterians. The council was highly displeased at this address; and the Earl of Loudon, by whom it was signed, was in consequence exposed to so many unpleasant attacks, that he went into voluntary exile, and died at Leyden. Clydesdale followed Ayrshire. The Duke of Hamilton opposed it; and the heritors of Lanarkshire, at a full meeting, unanimously agreed to decline the bond; even those who were not partial to Presbyterianism reprobated it, as fraught with ruin to their estates, seeing they could not promise for all their own families and servants at all times, much less for those of their tenants.

The vexations occasioned by the bond, added to the other severities, had spread so widely, that it was computed, before the end of this year (1677), about seventeen thousand persons, of every rank, sex, and age—from the noble to the cottar-servant, man, woman, and child—from the grey-headed veteran to the infant at the breast, who was forced to lodge with its intercommuned mother on the heath—had suffered, or were suffering every

extremity for no crime but hearing the gospel, and worshipping their Maker according to their conscience.

Lauderdale having come down to Scotland with his Duchess, to get one of her daughters by her former husband married to Lord Lorn, afterwards first Duke of Argyle, the Presbyterian ministers in Glasgow, Paisley, Hamilton, and the neighbouring districts, thinking that when he came upon so joyous an occasion, he would be more susceptible of kindlier feelings, deputed Mr Matthew Crawford to proceed to Edinburgh and consult with their brethren there, to try if possible to get the sentence of intercommuning pronounced against so many of their faithful fellow-labourers annulled, and the prisoners on the Bass released. Mr Anthony Murray, a relation of the Duchess, who was employed to intercede with the Duke, obtained an interview, and urged his Grace to grant this their humble request; but all the answer he obtained was, “as for himself, he (Lauderdale) was ready to do him any kindness in his power, but he would grant no favour to that party, because they were unworthy of any.” Next council day, however, when several of the lords represented that pressing the bond would ruin their tenants and lay their lands waste, he seemed inclined to relax, and not only spoke about a third indulgence, but even intimated his desire for it to some of the ministers by Lord Melville; and commissioners were in consequence sent from several parts of the country to consult about a supplication to the king. No sooner did the two archbishops learn what was in agitation, than they vehemently assailed the Duke, complaining heavily of his concessions to their enemies; in reply, he assured them he had no intention of granting any liberty to non-conformists, only it was necessary to amuse them till he got a force raised sufficient to suppress them, as they were then too numerous to be rashly meddled with. The representations, however, which he had received, subscribed by so many respectable heritors, who could not be considered fanatics, were not to be altogether despised; and, in the month of October, the council enacted (Sir George Mackenzie, who had lately been admitted to be his majesty’s advocate, says upon his suggestion) ^[87]—that if any person who is cited be ready to depone or pay his fine, he be not troubled with taking of bonds or other engagements, the law itself being the strongest bond that can be exacted of any man; and all the expenses of process were to be remitted.

- [87](#). Mackenzie's Hist. p. 322. Sir John Nisbet was turned off because he would not give the rapacious Duchess of Lauderdale a sum of money; and Sir George Mackenzie, whose memory was long execrated in Scotland as "the bloody Mackenzie," was made king's advocate, Sept. 7, this year. Primrose had been removed from the lucrative place of clerk-register by the same influence, and Sir Thomas Murray, a friend of her own, was nominally appointed; "but her Grace had from him the profits of the place. To stop Sir Archibald's mouth, they bestowed upon him the office of justice-general, and sore against his heart." *Kirkton's Hist.* p. 383.

Knowing well the unstable nature of their eminence, the prelates were tremblingly alive to whatever they imagined might shake it; and they instantly took the alarm at these equivocal symptoms of moderation, which they supposed had that tendency. Like others in later times, they commenced their attacks upon the liberty of the people, by endeavouring to work upon their fears. Rumours were spread of extensive conspiracies which had no existence, and terrible plots which no one had ever heard of but themselves. On the present occasion, an incidental scuffle gave some grounds for raising the cry of insurrection, and bringing in a host of barbarians to live at free quarters upon a peaceable population. Carstairs, elated by the nefarious premium which he had obtained for his infamous conduct towards Kirkton, and desirous of showing his gratitude to Sharpe, from whom he had his commission, redoubled his activity against the Presbyterians, and was guilty of numerous revolting atrocities in the eastern quarters of Fife. The heartless wretch had turned Lady Colville out of doors in the month of October, and forced her to wander houseless on the mountains and in the fields, at the risk of her life and to the great detriment of her health. He had imprisoned not a few respectable inhabitants; and, patrolling the district attended by some dozen vagabond concurrences,^{[\[88\]](#)} without any other authority than the archbishop's commission, under pretext of searching for the intercommuned persons, he broke into gentlemen's houses, seized their horses, and was guilty of various plunderings, as also divers wanton outrages.

- [88](#). A concurrence—the lowest attendant upon messenger or sheriff-officers.

A few gentlemen, six or seven, some of whom were obnoxious to government, having casually met in the house of John Balfour of Kinloch, or Burleigh, the same miscreant who had scented them out, suddenly advanced on the house, with twelve of the "bishop's evangelists" on horseback. The gentlemen were altogether taken by surprise, and one of them happened to be standing outside when they came up. Philip Garret, an

Irish tinker—one of the said worthies—the first in advance, seeing a person at the door, without asking any questions, fired but missed; and the gentleman immediately went into the house. Garret dismounted and was following; but the gentlemen within being by this time alarmed, one of them fired, and Garret fell wounded in the shoulder. Carstairs' party returned the salute in at the windows of the chamber where the gentlemen were, and wounded one of them. The others then sallied forth and briskly attacked their assailants, who instantly fled. They pursued for a while, but no more blood was shed. Garret afterwards recovered.

This act of justifiable self-defence against an illegal attack of unauthorized ruffians was eagerly seized upon by the prelatists, who were watching for some occurrence which might justify them in using “a vigour beyond law” which they meditated against the Presbyterians. At their instigation, the council declared it an high act of rebellion and resisting of lawful authority; summoned the actors before them; and, upon their non-appearance, denounced them as rebels, and delated the whole body as accomplices or abettors of the deed.

Charles, whose designs upon the constitution of England and freedom of the people—now beginning to be discovered—had involved him with his English parliament, exceedingly anxious to get a pretext for keeping up a standing army, communicated his wishes to Lauderdale, who, readily entering into them, proposed first to try some such measure in Scotland, where he knew he would be backed by the whole prelatic interest, and gratify at once the bishops and the king. Instructions were accordingly transmitted to the council, who, in “a frequent meeting,” held on the 17th of October, sent particular expresses by sure bearers to the Earls of Glencairn and Dundonald and Lord Ross, to call together the commissioners of the excise, and militia, and justices of the peace, at Irvine, on the 2d of November, and to represent to them how highly his majesty was displeased at the extraordinary insolences committed in these shires, by abusing the orthodox clergy, invading their pulpits, setting up conventicle-houses, and keeping scandalous and seditious conventicles in the fields—these great seminaries of rebellion—and requiring them to take such effectual course for reducing these shires to a quiet obedience of his majesty's laws—the true and only rule of loyalty and faithfulness—as might prevent severer measures from being taken for securing the peace; and informing them, in

case of their failure, that the council was fully resolved to repress by force all rebellious and factious proceedings, without respect to the disadvantages of the heritors, whom his majesty would then look upon as involved in such a degree of guilt as would allow of the greatest severity being used against that country.

The shires now denounced were the wealthiest and most civilized, as well as the most religious districts in the ancient kingdom; they therefore presented the additional lure of a rich harvest of plunder, especially as they abounded in that class, the strength and sinews of a nation, the small landed proprietors-yeomen—or, as they were styled, heritors, who were generally well educated and particularly versed in the polemics of the day. A meeting of these, therefore, was called, when the following resolutions were adopted, after two days' serious deliberation:—1st, They found it not within the compass of their power to suppress conventicles. 2d, A toleration of Presbyterians is the only proper expedient for preserving the peace; and, 3d, It should be granted to an extent equal to what his majesty had graciously vouchsafed to his kingdoms of England and Ireland. These resolutions were communicated to the three noblemen, who immediately wrote to the council, and told them that the meeting had taken place and reported —“That, after the consideration of the whole affair, it was not in their power to quiet the disorder,” but took no notice of the reasonable and effectual remedy they had recommended. Before their letter arrived, the council had decided. A minute, dated the day before the heritors met, was drawn up by them, stating, “That, upon information of the growing disorders and insolences in the western shires, it was thought fit a proclamation be drawn, in case of an insurrection, and the nearest Highlanders ordered to meet at Stirling, and letters writ to noblemen and gentlemen, to have their vassals and tenants ready at a call.” A magazine of arms and ammunition was formed at Stirling, all the regular forces were ordered to Falkirk to have their full complement made up by new levies, and all the straggling parties were called in. Besides these warlike preparations, his majesty, in consequence of the alarming reports sent him, offered the co-operation of the English army, several troops of whom were marched to the borders; and Viscount Granard, commander of the forces in Ireland, received instructions to hold himself in readiness to pass over to Scotland upon a moment's notice.

Such were the mighty preparations during a period of the most profound repose, interrupted only by the footsteps of those upon the mountains who published salvation. Of these, the indefatigable and successful John Welsh and John Blackadder were among the most prominent. The former, descended from a race of confessors, whose memory was deservedly dear to the persecuted, had a reward offered for his head by the council; and he rode usually accompanied by ten or twelve faithful adherents, termed his body guard. The following is an account by the latter, of a remarkable communion held at East Nisbet,^[89] where both were present, which seems to have created a great sensation:—

⁸⁹. Dr M'Crie has the following note in the Memoirs of George Brysson, p. 281:—"The following extract," from Memoirs of a Mrs Goodal, the wife of a mechanic, MS. in the Advocates' Library, "supplies the date of the communion at East Nisbet—"I must make mention of three communion-dayes the Lord trysted me with in Scotland. The first was at East Nisbet in the year 1678, in the spring of the year,' &c., at the very time when the Highlanders were ravaging the west."

"At the desire of several people in the Merse, Mr Blackadder, and some other ministers, had resolved on a meeting in Tiviotdale, and day and place were fixed for keeping a communion; but from apprehensions of danger, this resolution was changed, as it was feared they might come to imminent hazard. It was agreed to delay it a fortnight; and advertisement was sent to the people not to assemble. The report of the first appointment had spread throughout the country, and many were prepared to resort thither from distant and divers quarters. This change had occasioned great uncertainty: some had taken their journey to the Merse, willing to venture on a disappointment, rather than miss so good an occasion by sitting still. Mr Blackadder was determined to go, seeing his stay would discourage others; and if kept back, they would blame him. He told them it was not likely the meeting would hold; yet, lest any should take offence, he was content to take his venture with them. On Friday night he took horse, accompanied with a small body of attendants, and was joined by Mr John Dickson at the port, who rode with him eleven miles that night. Many people were on the road, setting forward to be in time for sermon on Saturday morning. Not a few be-west of Edinburgh, hearing the report of the delay, remained at home, and others returned on the way. Nobody was certain, either from far or near, till they reached the place; where they would all have been disappointed, if providence had not ordered it better than human

arrangement; for the earnest entreaties of the people had prevailed with Mr Welsh, in the same way as Mr Blackadder, to venture at a hazard. And had it been delayed a day or two longer, it would have been utterly prevented, as the noise was spread, and the troops would have been dispersed to stop them.

“Meantime the communion elements had been prepared, and the people in Tiviotdale advertised. Mr Welsh and Mr Riddel had reached the place on Saturday. When Mr Blackadder arrived, he found a great assembly, and still gathering from all airts, which was a comfortable surprisal in this uncertainty; whereat they all marvelled, as a new proof of the divine wisdom wherewith the true Head of the church did order and arrange his solemn occasions. The people from the east brought reports that caused great alarm. It was rumoured that the Earl of Hume, as ramp a youth as any in the country, intended to assault the meeting with his men and militia, and that parties of the regulars were coming to assist him. He had profanely threatened to make their horses drink the communion wine, and trample the sacred elements under foot. Most of the gentry there, and even the commonality, were ill set.

“Upon this we drew hastily together about seven or eight score of horse on the Saturday, and equipped with such furniture as they had. Picquets of twelve or sixteen men were appointed to reconnoitre and ride towards the suspected parts. Single horsemen were dispatched to greater distances, to view the country, and give warning in case of attack. The remainder of the horse were drawn round to be a defence at such distance as they might hear sermon, and be ready to act if need be. Every means was taken to compose the multitude from needless alarm, and prevent, in a harmless defensive way, any affront that might be offered to so solemn and sacred a work. Though many, of their own accord, had provided for their safety; and this was more necessary, when they had to stay three days together, sojourning by *the lions’ dens and the mountains of leopards*; yet none had come armed with hostile intentions.

“We entered on the administration of the holy ordinance, committing it and ourselves to the invisible protection of the Lord of hosts, in whose name we were met together. Our trust was in the arm of Jehovah, which was better than weapons of war, or the strength of hills. If the God of Jacob was our refuge, we knew that our cause would prosper;—that in his favour

there was more security than in all the defences of art or of nature. The place where we convened was every way commodious, and seemed to have been formed on purpose. It was a green and pleasant haugh, fast by the water side, (the Whitadder.) On either hand there was a spacious brae, in form of a half round, covered with delightful pasture, and rising with a gentle slope to a goodly height. Above us was the clear blue sky, for it was a sweet and calm Sabbath morning, promising to be indeed one of the days of the Son of Man. There was a solemnity in the place befitting the occasion, and elevating the whole soul to a pure and holy frame. The communion tables were spread on the green by the water, and around them the people had arranged themselves in decent order. But the far greater multitude sat on the brae-face, which was crowded from top to bottom, full as pleasant a sight as was ever seen of that sort. Each day, at the congregation's dismissing, the ministers, with their guards, and as many of the people as could, retired to their quarters in three several country towns, where they might be provided with necessaries for man and horse for payment.

“Several of the yeomen refused to take money for their provisions, but cheerfully and abundantly invited both ministers and gentlemen each day at dismissing. The horsemen drew up in a body till the people left the place, and then marched in goodly array at a little distance, until all were safely lodged in their quarters; dividing themselves into three squadrons, one for each town where were their respective lodgments. Each party had its own commander. Watches were regularly set in empty barns and other out-houses, where guards were placed during the night. Scouts were sent to look about, and get intelligence. In the morning, when the people returned to the meeting, the horsemen accompanied them: all the three parties met a mile from the spot, and marched in a full body to the consecrated ground. The congregation being all fairly settled in their places, the guardsmen took their several stations as formerly.

“These accidental volunteers seemed to have been the gift of providence, and they secured the peace and quiet of the audience; for from Saturday morning, when the work began, until Monday afternoon, we suffered not the least affront or molestation from enemies, which appeared wonderful. At first there was some apprehension, but the people sat undisturbed; and the whole was closed in as orderly a way as it had been in the time of

Scotland's brightest noon. And, truly, the spectacle of so many grave, composed, and devout faces, must have struck the adversaries with awe, and been more formidable than any outward ability of fierce looks and warlike array. We desired not the countenance of earthly kings; there was a spiritual and divine Majesty shining on the work, and sensible evidence that the Great Master of assemblies was present in the midst. It was, indeed, the doing of the Lord, who covered us a table in the wilderness, in presence of our foes, and reared a pillar of glory between us and the enemy, like the fiery cloud of old, that separated between the camp of Israel and the Egyptians, encouraging to the one, but dark and terrible to the other. Though our vows were not offered within the courts of God's house, they wanted not sincerity of heart, which is better than the reverence of sanctuaries. Amidst the lonely mountains, we remembered the words of our Lord, that true worship was not peculiar to Jerusalem or Samaria; that the beauty of holiness consisted not in consecrated buildings, or material temples. We remembered the ark of the Israelites, which had sojourned for years in the desert, with no dwelling-place but the tabernacles of the plain. We thought of Abraham, and the ancient patriarchs, who laid their victims on the rocks for an altar, and burnt sweet incense under the shade of the green tree.

"The ordinance of the last supper, that memorial of his dying love till his second coming, was signally countenanced and backed with power and refreshing influence from above. Blessed be God, for he hath visited and confirmed his heritage when it was weary. In that day, Zion put on the beauty of Sharon and Carmel; the mountains broke forth into singing, and the desert place was made to bud and blossom as the rose. Few such days were seen in the desolate Church of Scotland, and few will ever witness the like. There was a rich and plentiful effusion of the spirit shed abroad on many hearts. Their souls, filled with heavenly transports, seemed to breathe in a diviner element, and to burn upwards, as with the fire of a pure and holy devotion. The ministers were visibly assisted to speak home to the conscience of the hearers. It seemed as if God had touched their lips with a live coal from his altar; for they who witnessed, declared they carried more like ambassadors from the court of heaven, than men cast in earthly mould.

"The tables were served by some gentlemen and persons of the gravest deportment. None were admitted without tokens, as usual, which were

distributed on the Saturday, but only to such as were known to some of the ministers, or persons of trust, to be free of public scandals. All the regular forms were gone through: the communicants entered at one end, and retired at the other,—a way being kept clear to take their seats again on the hill-side. Mr Welsh preached the action sermon, and served the first two tables, as he was ordinarily put to do on such occasions: the other four ministers, Mr Blackadder, Mr Dickson, Mr Riddel, and Mr Rae, exhorted the rest in their turn: the table service was closed by Mr Welsh with solemn thanksgiving, and solemn it was, and sweet and edifying, to see the gravity and composure of all present, as well as all parts of the service. The communion was peaceably concluded; all the people heartily offering up their gratitude, and singing with a joyful noise to the Rock of their salvation. It was pleasant, as the night fell, to hear their melody swelling in full unison along the hill, the whole congregation joining with one accord, and praising God with the voice of psalms.

“There were two long tables, and one short, across the head, with seats on each side. About a hundred sat at every table: there were sixteen tables in all, so that about three thousand two hundred communicated that day.

“The afternoon sermon was preached by Mr Dickson, from Genesis xxii. 14; and verily might the name of the place be called Bethel, or Jehovah-jirah, where the Lord’s power and presence was so signally manifested. After so thick and fearful a darkness had overshadowed the land, the light of his countenance had again shone through the cloud with dazzling brightness, and many there would remember the glory of that day. Well might the faith of the good old patriarch be contrasted with theirs on that occasion; they had come on a journey of three days into the wilderness to offer their sacrifice: they had come in doubt and perplexity as to the issue; but the God of Jacob had been their refuge and their strength, hiding them in his pavilion in the evil day. The whole of this solemn service was closed by Mr Blackadder on Monday afternoon, from Isaiah liii. 10.”^[90]

⁹⁰. Crichton’s Life of Blackadder, p. 198, *et seq.*



The Sheriff accosted by his Sister at the conventicle. Anno. 1677.

Vide page [283](#)

Edin^r. Hugh Paton, Carver & Gilder to the Queen, 1842.

To complete the picture, I shall give a description of a common conventicle, one of “the rendezvouses of rebellion,” also by Mr Blackadder:

“Some time before the communion at East Nisbet, Mr Blackadder kept a very great conventicle at Lilsly (Lilliesleaf) moor, in Forrestshire. They had knowledge that the sheriff, and some of the life-guards, were ranging Lilsly moors on the fore-part of the day; upon which the meeting shifted their ground within Selkirkshire, thinking themselves safe, being out of his bounds. Watches were set; and the forenoon’s lecture was got over without disturbance. About the middle of the afternoon-preaching, alarm was given that the sheriff and his party were hard at hand, riding fast; whereupon he closed, giving the people a word of composure against fear. The people all stood firm in their places without moving. Two horses were brought for the minister, to fly for his life; but he refused to go, and would not withdraw, seeing the people kept their ground, and so dismissed the horses. The militia came riding furiously at full gallop, and drew up on the burn-brae, over against the people; but seeing them stand firm, they seemed to be a little damped, and would speak nothing for a while. At this moment, ane honest countryman cast a gray cloak about Mr Blackadder, and put a broad bonnet on his head; so he remained in that disguise among the people, unnoticed all the time of the fray. The sheriff cried, ‘I charge you to dismiss in the king’s name:’ the people answered resolutely from several quarters, ‘We are all met here in the name of the King of heaven, to hear the gospel, and not for harm to any man.’ The sheriff was more damped, seeing their confidence; he was the Laird of Heriot. His own sister was present at the meeting; and stepping forth, in a fit of passion, took his horse by the bridle, clapping her hands, and crying out, ‘Fye on ye, man; fye on ye; the vengeance of God will overtake you, for marring so good a work:’ whereat the sheriff stood like a man astonished.

“One of the soldiers comes riding in among the people, and, laughing, said, ‘Gentlemen and friends, we hope you will do us no harm.’ This was all a pretence: they had come to look for the minister, and were edging nearer the tent; but they were ordered instantly to be gone, and join their own associates, as more appropriate companions.

“The people still refusing to dismiss, the sheriff called out Bennet, Laird of Chesters, and Turnbull of Standhill, who were present in the

congregation, and with them he negotiated that they would dismiss the meeting, otherwise he must use force. Accordingly, at the entreaty of Chesters, they withdrew. This had more influence with them than all the sheriff's threatenings. The minister, all this while keeping his disguise, sat still till the dragoons were gone, and then took horse, with a company of seven or eight gentlemen. About twelve at night, he reached Lasswade, (being the hind harvest,) and got to Edinburgh early in the dawning, about the time of the opening of the ports. This was a remarkable escape, as they had sought the minister among the crowd during the scuffle, and passed often by him without ever discovering him. The reason of his riding all night, was to avoid danger; for all the nobles and gentlemen from Edinburgh were to ride next day to the race at Caverton-edge, when the roads to Tiviotdale would be full of them."

Plied incessantly by the council, whom Sharpe ruled, with exaggerated rumours of the sedition and discontent that reigned in the west, Charles at last sent as ample powers as the primate had desired; and followed them up by commencing active operations for putting down such dreaded and hated meetings as the above described.

First always in every act of oppression, the council had already written to some Highland chieftains to raise their clans, and send to the refractory west a sufficient number of kilted missionaries, to propagate by forcible, if not convincing, arguments, the prelatical gospel. The chieftains, in return, most willingly offered their services; and the council immediately communicated to the king their loyal tenders, requesting his royal sanction to the measure. His majesty told them, in reply, that he had heard with much satisfaction of their requiring the noblemen and others, who had numerous vassals and followers in the Highlands, to come to their aid, and of the readiness of these noblemen and gentlemen to comply with their request. He therefore authorized them to command all these forces to march to the disturbed shires, or wherever conventicles had been kept, and to take effectual measures for reducing them to due obedience "to Us and OUR laws," by taking free quarter from those that were disaffected, disarming such as they should suspect, and seizing and securing all horses above such a value as they should think fit; at the same time, causing heritors and liferenters to give bond for their tenants and all who resided on their lands; and the tenants and fathers of families to do the like for those who resided

with them, that they should keep no conventicles, but live orderly, attend the parish churches regularly, and not harbour or converse with any intercommuned person.

For the more completely carrying these orders into execution, they were not only to punish the disobedient, but whomsoever “they might judge disaffected,” by fining, confining, imprisonment, or banishment. They were also to plant garrisons wherever they thought it necessary; and if the forces now ordered were not sufficient, they were empowered to call to their assistance the troops stationed in the north of England and Ireland. A report was at this time very generally spread and believed, that the Duke of York had said there would be no peace in the country till the west were turned into a hunting-forest; and the conduct of those in power appeared as if they had heard and approved of the sentiment.

BOOK XII.

A.D. 1678-1679.

Privy council forbids emigration—Mitchell's trial and execution—Highland host—Committee of the council arrive at Glasgow—Deputation from Ayr sent to the Commissioner—Bond refused—Committee proceed to Ayr—Earl of Cassilis—Law-burrows—Case of Lord Cochrane—Ravages of "the Highland Host"—Their return home—Earl of Cassilis goes to court—Duke of Hamilton follows—Complaints dismissed—State of the country—Murder of Sharpe.

Capricious as cruel in their tyranny, the council would neither allow the Presbyterians to live peaceably at home, nor permit them to seek liberty abroad, especially if they were persons of rank, whom they wished to make participators of their tyranny as they could not induce them to be willing associates in their crimes. Having learned that several noblemen and others of high station, disgusted with their proceedings, were preparing to leave the country, they issued a proclamation, January 3, forbidding any person, lord or commoner, to remove forth thereof upon any pretext whatsoever, without a special license from them, under the highest penalties; and to make assurance doubly sure, they ordered the principal among them, whom they considered as their political rivals, or who were more moderate in their principles, to attend "a committee of the privy council," appointed to accompany the forces in the west country, to receive their orders and obey their commands.^[91]

⁹¹. Numbers of the persecuted in England had left that country for America, and were founding the states of New England, New Jersey, Massachusetts, &c., which formed asylums for their brethren during these perilous times. Many of the Scots who to Holland, also sought refuge in the New World. But it would appear the Scottish prelatists being, as all turncoats are, more violent than the English persecutors, wished to retain their more conscientious countrymen at home, that they might have the pleasure of tormenting them, and enjoying the yet higher gratification of revelling on their fines. The prohibition in Scotland was intended, besides, to

answer another purpose, to prevent any of the nobility proceeding to court without leave; for Lauderdale knew well the advantage of engrossing the royal ear.

Before proceeding to detail the transactions of this savage horde and their directors, I shall advert to a transaction still more disgraceful to the council, as setting at defiance all moral decency, and bursting asunder every tie that gives security to society, which can only exist well where the obligations both of the rulers and the ruled are held sacred. I mean the trial and execution of James Mitchell.

Cowards are proverbially cruel, and the renegade primate was not remarkable for courage. He seems to have been constantly haunted with the terrors of assassination. Fearing his own treacherous “law-skreened murders” might provoke some other resolute arm to retaliate, he could not be at rest while Mitchell lived, and appears to have imagined that the destruction of that poor man was necessary to secure his own safety. He therefore resolved, by making an example of him, to show that the sacred person of a priest was not to be threatened with impunity. Accordingly, Mitchell was brought from the Bass to Edinburgh in the end of last year, and received an indictment to stand trial for his attempt. On January 7, 1678, he was brought to the bar of the Justiciary, where Primrose, justice-general, sat as one of his judges, and Sir George Mackenzie acted as accuser, both of whom were perfectly acquainted with the promise of pardon which had been made. Primrose had been summoned as a witness, but was dispensed with; and, had he possessed the smallest particle of common feeling, or of common honesty, he would never have consented to sit as a judge—much less would Mackenzie, who had acted as his advocate on the former trial, have now come forward as his prosecutor; yet so it was. Primrose, however, transmitted privately to Mitchell’s advocates, a copy of the act of council in which the assurance was contained. Lauderdale had been previously warned of its existence by Kincardine. The pleadings, before entering upon the evidence, were long and ingenious. His advocates, Sir George Lockhart and Mr John Ellis, contended that the libel was not relevant,—as a mere attempt, when unsuccessful, could never constitute the crime of murder; that by the laws of this kingdom, by the civil law, and the common opinion of civilians, it was not a capital offence, except in cases of parricide or treason; and, besides, the act charged was assassination or murder committed for hire—a term and a crime unknown in Scottish law; nor is it charged against the prisoner that he was hired by any person to

commit the deed. As to the confession, if such a thing existed, which the panel refused to acknowledge, it was extrajudicial, not being made in presence of the assize, who are judges of the whole proof, and therefore could not be admitted, unless taken together with the promise of pardon by which it was elicited. But they especially insisted upon the promise of pardon, as rendering any charge founded upon such confession totally irrelevant.

The Lord Advocate replied, that, by act 16, parl. James VI. *nudus conatus*, attempting and invading, though nothing followed, is found relevant to infer the pain of death; and by the common law, an attempt is capital, where the panel has been guilty of the proximate act, and done all that it was in his power to do:—adding, most unfairly and untruly, that Mitchell belonged to a sect that hated and execrated the hierarchy, who deemed it lawful to kill persons of a prelatical character; and he could prove that Mr James himself held such opinions, which he endeavoured to defend by wrested places of Scripture, and acknowledged that the reason why he shot at the archbishop was, because he thought him a persecutor of the nefarious and execrable rebels who appeared on the Pentland Hills. As to assassination not being known in Scots law, the term might not be there, but the nation would be worse than the Tartars, if lying in wait with a design to kill clandestinely, where a person, after mature deliberation, ripens his villany and watches his opportunity, if this should not be held in greater detestation, and punished more severely than ordinary murder. As to being hired, if taking money constitute the criminality of assassination, how much greater is it when committed to earn a higher reward. He that takes money to kill, will stab only in the dark, and where he may escape; but the sun, and the cross, and the confluence of all the world, cannot secure against the stroke of the murderer who expects heaven as his reward, and thinks that the deed deserves it. Respecting the promise of pardon, the promise of life from a judge, who has not the power to grant it, is of no avail unless the panel can prove that he expressly pactioned that his confession should not operate against him; and a confession emitted without any such regular bargain, is of no avail, even though the judge should promise life; for this would be to make a judge a king.^[92] As to the confession being extrajudicial, so far from this being the case, it was taken by the authority of the privy council, the highest judicatory of the nation, uniting in itself the powers both of the Court of Session and the Court of Justiciary; and if

confessions emitted before the lords of session are a sole, final, and plenary probation before the Court of Justiciary, it were absurd to suppose that a confession emitted before the Privy Council should not be deemed valid.

[92](#). The advocate, as a proof that civilians were on his side, quoted Ægidius Bossius, who, *Titulo de Examine Reorum* 15 and 16, says—“*Judex qui induxit reum ad confitendum sub promissione veniæ non tenetur servare promissum in foro contensioso.*” The judge who induces a panel to confess, by a promise of pardon, is not bound to keep his promise in a contested trial, which seems, says Lord Fountainhall in his notes, “to be ane disingenous opinion.”

The court decided that the crime, as libelled, was relevant, *i. e.* sufficient, to infer the pains of law; but, at the same time, found that the defence if proven was relevant to secure the panel of his life and limb. There were no witnesses to establish the fact; his confession was the only evidence adduced; to substantiate which, Rothes was first examined, who deponed that he saw the panel sign the confession. Being asked, whether or not his lordship did offer to the panel, upon his confession, to secure his life, in these words, upon his lordship’s life, honour, and reputation? he swore that he did not at all give any assurance to the panel for his life, and that the panel never sought any such assurance from him, nor did he remember receiving any warrant from the council for that purpose. Upon this, Mitchell entreated the Chancellor to remember the honour of the family of Rothes, and mind that he took him by the hand, and said—“*Jacobe, man, confess; and, as I am Chancellor of Scotland, ye shall be safe in liffe and limb;*” to which all the answer returned by the Chancellor was, “that he hoped his reputation was not yet so low as that what the panel said, either there or elsewhere, would be credited, since he had sworn.” The panel, however, still averred the contrary.

Lord Hatton, Lauderdale, and Sharpe swore to the same effect. When Sharpe had done, Nicol Somerville, agent, brother-in-law to the panel, boldly contradicted him, and bid him remember certain times and expressions. The archbishop, who did not much relish getting his memory so refreshed, “fell in a mighty chaff and passion, exceedingly unbecoming his station and the circumstances he was then stated in, and fell a scolding before thousands of onlookers. Nicol yielded in nothing; and after the bishop had sworne, he cried out that upon his salvation what he had affirmed was true.” “And the misfortune was, that few there but they believed Nicol better than the archbishop.”^{[\[93\]](#)} Sir John Nisbet, who was

Lord Advocate at the time, and one of the committee who examined Mitchell, summoned as a witness for the crown—probably to prevent him from being adduced for Mitchell—was not called, Sir George Mackenzie, it is likely, being afraid to trust him.

[93](#). Fountainhall's notes.

After the public prosecutor had declared his proof closed, the panel's advocates produced the copy of the act of council, and craved that the books of council, which were lying in the next room, might be produced, or the clerks ordered to give extracts, which they had formerly refused. At this Lauderdale, who had no right to speak, "stormed mightily," and told the court "the books of council contained the king's secrets, and he would not permit them to be examined; he came there to depone as a witness, not to be staged for perjury"—an unguarded remark, which must have been understood by the judges as a plain confession that he knew he had sworn falsely; yet, with a mean servility, they would not assert their own dignity, nor do justice to the panel. They refused to grant warrant for producing the registers, because not applied for before, which Fountainhall observes "choaked both criminal law and equity, for it is never too late to urge any thing in favour of a panel until the assize be closed." Sir George Lockhart defended him with admirable strength of reasoning; and the trial, which is characterized as the most solemn which had taken place in Scotland for a hundred years, lasted four days. The jury returned a verdict, finding him guilty upon his own confession; but the promise of pardon they found not proven. He was condemned to be hanged on Friday the 18th of January.

On leaving court, the four "noble" witnesses proceeded to the Council-chamber and inspected the books, where they saw the indelible record of their own guilt and infamy, which still remains, and, like convicted rogues, began each to vindicate himself. After a vain attempt to fix it upon the late Lord Advocate, Nisbet, had failed, Lauderdale, who seems to have had some compunctious visitations, proposed to grant a reprieve, and refer the matter to the king. But the primate insisted that if favour were shown to this assassin, it would be exposing his person to the next murderer who should attempt it. "Then," said Lauderdale, "let Mitchell glorify God in the Grassmarket."^[94] He was accordingly executed, pursuant to his sentence. Sharpe, whose vanity and ambition were unbounded, aping an equality with royalty, had obtained an order from court, that Mitchell's head should be

affixed on some public place of the city, as if his crime had been high treason! But it was told him what was pronounced for doom could not be altered; so he missed this gratification. Nor did the fate of Mitchell tend to avert his own. Mitchell's misguided act was forgotten in the deeper and more deliberate revenge of the archbishop, and in the atrocious breach of public faith by the council. His dying declaration, widely circulated through the country, exhibited such a view of the treachery and almost unexampled perjury of the first ministers in the church and in the state, as excited universal horror and execration.^[95]

^{94.} The usual place of execution at that time.

^{95.} The question then much agitated—"The extraordinary execution of judgement by private men"—was supported by an apophthegm borrowed from Tertullian—"Every man is a soldier enrolled to bear arms against all traitors and public enemies;" and by the authority of Dr Ames, who, in his treatise on Conscience, published 1674, says—"Sometimes it is lawful to kill, no public precognition proceeding, when the cause evidently requires it should be done, and public authority cannot be got: For in that case a private man is publicly constitute the minister of justice, as well by the permission of God as the consent of all men." Mitchell, when questioned by the Chancellor, thus defended his attack upon Sharpe—and it is easy to conceive that such reasoning would appear irrefragable to a mind excited as his was—"I looked upon him to be the main instigator of all the oppression and bloodshed thereupon, and the continual pursuing after my own; and, my lord, it was creditably reported to us (the truth of which your lordship knows better than we) that he kept up his majesty's letter inhibiting any more blood upon that account, until the last six were executed; and I being a soldier, not having laid down my arms, but being upon my own defence; and in prosecution of the ends of the same covenant [which he also had sworn] which was the overthrow of prelates and prelacy; and I being a declared enemy to him on that account, and he to me in like manner: as he was always to take his advantage of me, as it appeareth, so I of him, to take any opportunity offered. Moreover, we being in no terms of capitulation, but on the contrary, I, by his instigation being excluded from all grace and favour, thought it my duty to pursue him at all events."

Upon the 24th of January, the threatened army, better known by the name of "the Highland Host,"^[96] assembled at Stirling. The Earls were their colonels, who received a handsome pay; but the active officers were a set of thievish lairds; and their retainers, wild savages, unacquainted with any other law than the will of their chiefs, whose mandates they obeyed without inquiry upon every occasion—only in the division of the spoil, they sometimes helped themselves without waiting the directions of their superiors. They amounted in all, including about two thousand regulars and two thousand militia, to about ten thousand men, with four field-pieces, and with a great quantity of spades, shovels, and mattocks, as if they were

marching to besiege fortified cities; their daggers were formed to fasten on the muzzles of the muskets, as a kind of rude bayonets, to attack cavalry; yet were they accompanied with other instruments that betokened any thing but going to meet a regular force—iron shackles and thumb-screws!

- [96](#). Because Highlanders formed the majority; the regulars or king's guards were the worst; the militia, although not good, seem to have been the best, if any could be called best among them, unless it were that in the act of plundering, they were not quite so fierce as the others. "The debauched clergie thought it no shame to call thes dragoons the ruling elders of the church." Wodrow, MS. Advocates' Lib. xl. art. 47, quoted by Dr M'Crie. Mem. of Geo. Brysson, p. 275.

The approach of such an array amazed the peaceable inhabitants of the west, nor were the military gentlemen themselves less astonished when they passed through a country represented as in a state of rebellion, but where they saw every thing perfectly loyal and tranquil. Nevertheless, the mountaineers in their march, and during the time they remained in the west, gratified the expectations of their employers to the full. Behaving with the unbridled insolence of victorious mercenaries in a conquered country, they made free with whatever they wanted without ceremony, seizing every serviceable horse for the transport of their baggage, even those at the ploughs in the midst of the tillage, extorting money and beating and wounding whoever resisted, without distinction. Nor were the few heritors who took the bond exempted. They found, when too late, that they had violated their consciences, or at least their consistency, in vain; and some of them afterwards deeply lamented their compliance, regretting that they had not rather, like the majority of their neighbours, taken quietly the spoiling of their goods.

Their head-quarters were first at Glasgow, but the tumultuous bands soon spread through Clydesdale, Renfrew, Cunninghame, Kyle, and Carrick. Previously to their arrival, the ministers had held a day of fasting, humiliation, and prayer. This the prelates represented as preparatory to a communion, after which there was to be a general insurrection. The report was soon discovered to be false, but it had quickened the advance of the host, and was either believed, or pretended to be believed, by Lauderdale; for, when a deputation from the nobility and gentry of Ayrshire came to Edinburgh to represent to the council the tranquillity and unimpeachable loyalty of the whole district, he would not so much as give them audience; and when some of them offered to engage for the peace of the shire, the

proposal was peremptorily refused, and they were informed that no compromise could be entered into, nothing less would be accepted than that the whole of them present should instantly put their signatures to the bond, and pledge themselves for all the other heritors doing the same. The deputation could not promise for others, and they returned to witness the authorized enormous disorders they had employed every legal method in their power to prevent.

On the 28th of the month, the committee of council, armed with Justiciary power, met at Glasgow to consider their instructions and proceed to action.^[97] They were directed to order the sheriffs of the different counties to convene all the heritors, and require them to subscribe a bond, obliging themselves, wives, bairns, and servants, as also their haill tenants, and cottars, with their wives, bairns, and servants, to abstain from conventicles, and not to receive, assist, or speak to any forfeited persons, intercommuned ministers, or vagrant preachers, but to use their utmost endeavours to apprehend all such, promising, if any of their families or dependents should contravene, to present them to the judge-ordinary that they might be fined or imprisoned for their delinquencies. All who took the bond were to receive a protection that their lands would not be quartered upon. They were also to cause the leaders of the horsemen of the militia troops to deliver to them the haill militia arms, and to disarm heritors and all other persons, except privy councillors and military men; but noblemen and gentlemen of quality were to be allowed to wear their swords. The arms were to be lodged in the Castle of Dumbarton.

⁹⁷. The committee consisted of the Marquis of Atholl, the Earls of Marr, Murray, Glencairn, Wigton, Strathmore, Linlithgow, Airly, Caithness, Perth, and Lord Ross, all of whom were commanders in the army, except Glencairn and Wigton.

Framed as this bond was, it required no ghost to tell that it would not generally be taken; and its refusal was looked forward to by the government with joyful anticipation, as what would justify their pressing it with a rigour that would produce the grand, much longed-for consummation—a desperate resistance. But this was for the present postponed—the disarming of the people, although not complete, prevented any immediate outbreaking, while the example of the Duke of Hamilton, Lords Loudon, Cochrane, and especially the constancy of Lord Cassilis, encouraged the great body of the gentry to continue steadfast in opposition to a bond which the council had

exceeded their powers in enacting, and could not legally oblige the lieges to subscribe without the authority of parliament. Besides its illegality, these patriots considered it cruel and degrading—cruel, in forbidding them to give relief to Christian ministers, and others in distress, even though their own relatives, and to shut up their bowels of compassion from them, merely on account of difference of opinion about church government—degrading, in desiring them to act as beadles or common messengers at arms, without their own consent.

From Glasgow the committee proceeded to Ayr; and among their first proceedings, they ordered the Earl of Cassilis to demolish all the meeting-houses in Carrick. The Earl represented the probability of opposition, and having been disarmed, requested that a party of soldiers, or at least some of the neighbouring gentlemen, might be ordered to protect him; even this reasonable request could not be granted; and while he hesitated, a friendly councillor hinted that there was but an hair's-breadth between him and imprisonment. Such, however, was the esteem in which this young nobleman was held, that the people themselves demolished the offensive places of worship, rather than that he should be troubled about them.^[98] But the council, not willing that he should get so quietly rid of the job, ordered him to bring back the doors and all the timber of these meeting-houses, and burn it on the spot where they had stood. his lordship complied with this useless but tyrannically-teasing order.

⁹⁸. The meeting-houses were not in common very costly fabricks. Like the temple at Jerusalem, no mason's iron was heard in their building, being generally framed of rough unhewn stones, covered with turf; and the people were thankful when the government did not interfere with their cheap church-extension scheme. Stately cathedrals they asked not, they cheerfully left them to the Romanists and the renegade prelatical conformists, their brethren. Consecrated walls were words unknown in their vocabulary, all they asked was shelter from the weather and very humble accomodation for their wearied limbs. Nor did they always ask even these; for their ministers, following the example of Him whose servants they professed to be, oftener had the mountain for their pulpit and the heavens for their sounding-board, than the crimson-covered desk with velvet cushion and gilded canopy; while they themselves were satisfied, if they could hear the gospel faithfully preached, although on the mountain side, or in "divot theikit beilds."

Notwithstanding the stubborn opposition it met with, the council appeared determined to urge the bond, and issued a fresh proclamation, February 11, forbidding any person to be received as a tenant or servant without a certificate from the landlord or master they last left, or from the

minister of the parish, that they had lived orderly and attended the parish church, and had not heard any of the vagrant preachers, who without license impiously assumed the holy orders of the church. To this was annexed a new bond of similar import with the former, and as an encouragement, all the members of council signed it, and appointed the lords of session to do the same when they met. Every inducement proved ineffectual; and the reports of the commissioners appointed to see their orders carried into execution, were by no means satisfactory to the council. The arms were only partially delivered up, and the bond would not at all go down; and what was the most vexatious part of the business, it was decidedly rejected by some eminent lawyers in the capital, and several of the chief nobility in Fife, Stirlingshire, and Teviotdale. The report from Lanark, too, was provoking beyond measure; of two thousand nine hundred heritors, only nineteen of the smallest complied.

Perceiving at length that the opposition was too extensive, and based upon principles which could not be sneered at as fanatical, Lauderdale is said at one of their meetings to have bared his arm in fury, and sworn by Jehovah that he would force them to take the bond. But it was to be tendered in another shape, under the guise of a legal quibble—probably the new Lord Advocate might have had the merit of suggesting it; for certainly the scheme was more like the device of a pettifogging attorney than the counsel of a sound statesman. When a deadly feud had arisen between two neighbours, as the ancient Scots were an ardent irascible race, it generally terminated fatally, and not infrequently involved the whole relations in a species of domestic warfare, which lasted for generations till one party was worn out or gave in. To prevent these consequences, it had been enacted in the reign of James II. and confirmed in the 7th parliament of James VI., that an individual who feared bodily harm from another, by an application upon oath to a magistrate, might obtain a “writ of law-burrows” to oblige the person of whose violence he was apprehensive, to give security that he should keep the peace, nor “skaith or damage” the applicant. This legal pledge, a wise and necessary precaution to insure personal safety in turbulent times, such as the frequent minorities of the Jameses had produced, the council contrived to convert into a more oppressive obligation than even the bond itself. Assuming an absurd legal fiction, that his majesty and his government were put in bodily fear by the persons who

refused to take the bond, they issued writs of law-burrows, not only against individuals, but against a county.

By additional instructions, the committee were directed to pursue all heritors who had not taken the bond for all conventicles kept on their lands since the 24th of March 1674—the fine to be exacted for each conventicle being fifty pounds. They were also to summon them and their tenants, &c. to answer for building, or being present at the building, of any preaching-house—the fine imposed to be arbitrary. No nobleman or gentleman who refused the bond was to be allowed to wear his sword, and whoever delayed beyond six days to appear at the council-bar, after they were summoned, were to be amerced in two years' valued rent, and were likewise liable for the delinquencies of their tenants and servants.

Immediately after this, a number of gentlemen in Ayrshire were summoned before the committee, upon a charge of law-burrows; but while they made the strongest professions of loyalty, they steadily resisted putting their hands to a deed which they deemed illegal, irreconcilable with their profession as Presbyterians, and impracticable with respect to all their retainers and dependents. One of them, unfortunately his name is not preserved, who had indignantly refused, on being told by the president that, if he continued obstinate, the Highlanders, who had been quartered upon a neighbouring gentleman's property till he had complied, would be transferred to his till he became convinced of the propriety of obedience, replied, "he had no answer to that argument; but before he would comply with the law-burrows, he would rather go to prison."

Lord Cochrane was next before them. He had been served with an indictment, charging him with encouraging field and house conventicles, and conversing with intercommuned ministers; in a word, he or his wife, or some of his family or tenants, had rebelled against the king by attending upon the preaching of the gospel, impiously proclaimed by men who owned no bishop, and who wore no surplice; and was called to answer to the charge within twenty-four hours. His lordship objected to the shortness of the time allowed to answer, and contended that, as his indictment contained a capital charge, it was necessary the "diet" or meeting should be prolonged, that he might have time to consult with his advocates; and, when called to answer upon oath, declined to do so, "no man being bound by any law to give his oath, where the punishment may be in any way—corporis

afflictiva, quia nemo est dominus membrorum suorum”—destructive to the body, because nobody is lord of his own body. The committee told him their diets were peremptory, *i. e.* their meetings were fixed for certain times, and therefore the accused were bound to answer upon the instant; but, at the same time, passed an interlocutor, restricting the libel to an arbitrary punishment, *i. e.* declaring that whatever his lordship might depone should never infer a capital infliction.

His lordship next pleaded that, by an act of council so late as the 5th of October last year, all libels against conventicles were restricted to a month backwards, consequently he was free. He was asked if he had brought an extract of the act? He replied he had not, but it was well enough known, and referred to their lordships themselves and the public prosecutor. They all declared they knew nothing about it. He then begged that the clerk might be questioned; but they would not allow their clerk to give evidence in that matter; and he was again called upon to swear, otherwise he would be held as confessed. Seeing at last that nothing else, no not even their own acts, would avail, he made oath “that he was free of all conventicles, as were all his servants, to the best of his knowledge.” Some new queries were now put to him by the Lord Advocate. He refused to answer to any matters not alleged against him in his indictment, and appealed to their lordships. They gave it in his favour! finding “that he was not obliged to depone to any thing not contained in his indictment;” and the court adjourned.

When they met in the afternoon of the same day—21st February 1678—Lord Cathcart, Sir John Cochrane, with some others, among whom was the Laird of Kilbirnie, refused the bond upon the same grounds—the act of council, October the 5th. The lords again denied their knowledge of such an act; but when Kilbirnie, prepared for this, offered to produce a copy, they would not receive it, saying, if there was such an act it was superseded by posterior acts. He then offered to protest against their proceeding without allowing him to produce it. This the Earl of Caithness opposed, by representing the danger he incurred in so doing; but when he persisted, his lordship suddenly adjourned the sederunt, and thus prevented him from getting it formally entered on the record.

While the committee were denying the provisions of their own acts which had the least semblance of moderation, “the Highland Host” were ravaging the devoted west without mercy.^[99] Free quarters were every where

exacted by the militia and king's forces, although they received regular pay. But the Highlanders, not content with free quarters, would march in large bands to gentlemens' and heritors' houses, as well as their tenants, and take up their lodgings, and force the proprietors to furnish them with whatever they chose to demand, or they would take whatever struck their fancy; and, when some of their own officers interposed, would present their daggers to their breasts, and dare them to touch their plunder. They infested the high-roads in a most ferocious manner, not only robbing the passengers of their money or baggage, but even stripping them of their clothes, and sending them to travel naked for miles ere they could reach home. From the country-folks' and cottars' houses, they carried off pots, pans, wearing-apparel, bedclothes, or whatever was portable; and, notwithstanding the government had taken care to order provisions, both officers and men carried off or wantonly killed the cattle, under pretence that they wanted food, unless they were bribed by money; yet that did not always avail, the plunderers often both pocketing the coin and driving the cattle. In some places they proceeded the horrible length of scorching the people before large fires, in order to extort a confession, if they suspected they had any hidden valuables; and to these rapacious, needy hordes, the lowest necessary utensils of civilized life were precious.

99. Garrisons were ordered to be “planted, 100 foot and 20 horse, in the house of Blairquhan, Carrick; 50 foot and 10 horse in Barskimming, and the same in Cessnock. The commissioners of the shire to provide 126 beds, 24 pots, as many pans, 240 spoons, 60 timber dishes, as many timber cups, and 40 timber stoups; to be distribute to the said garrisons conform to the number of men; also to provide coal and candle for the garrisons respective.” Act of the committee of council, Ayr, March 4th, 1678. By an act of the 9th, the commissioners were ordered to furnish the garrisons with necessary provisions, such as meat and drink, and to say at what prices they would agree to do so; but having failed, the committee took the business into their own hands, and ordered the prices to be as follow:—Hay, per stone, 2s. Scots; straw, per threave, 4s.; oats, per boll, 50s. in Carrick—55s. in Kyle; meal, per boll, 5 merks; malt, per boll, £5; cheese, per stone, £1, 10s.; pork, per stone, £1, 16s.; French grey salt, per peck, 10s.—Scots ditto, 5s.; butter, per stone, £2, 8s.; each dozen of eggs, 1s. 4d.; milk, per pint, 1s.; each hen, 4s.; each mutton bulk, £2. These prices, reduced to our currency, at 1s. Scots—1d. sterling; £1 Scots—1s. 8d. sterling,—will show the scarcity of cash in these days, and its relative value to the present prices.

In other villages, the meanest soldiers exacted sixpence sterling a-day, and the guards a shilling or merk Scots; their captains and superior officers, half-crowns and crowns at their discretion, or as they thought the poor people could procure it, threatening to burn their houses about their ears if

they did not produce sufficient to answer their demands; besides money, the industrious, sober, religious peasantry were constrained to furnish brandy and tobacco; and, what was scarcely less painful, were obliged to witness their filthy brutal excesses. Then, again, some of the ruffians would levy contributions in order, as they pretended, to secure the payers from plunder; yet, after they had filched them of their money, at their departure rifled them of all they could find the means of transporting. Their insolences to the females, our historians have drawn a veil over, as too abominable to admit of description.

An instance or two of their wanton waste are narrated, from which the extent of the damage occasioned by their visitations, may, in some measure, be guessed at, especially as the perpetrators were not the most savage of the crew, but men from whom better things might have been expected. The Angus-shire troop of gentlemen heritors, or yeomanry cavalry, as they would now be called, commanded by the Laird of Dun, was quartered upon the lands of Cunningham of Cunninghamhead, then a boy at school, who, even by the strictest interpretation of the strictest acts of this detestable period, could not be held liable to such an infliction. Pretending that the country houses, upon which they were billeted, were not sufficiently comfortable for persons of their situation, these genteel troopers obliged the tenants to pay to each five pounds sterling for “dry quarters;” but, after they had received the money, they either remained themselves, or sent three or more footmen of the wildest Highlanders to supply their place. A cornet in this troop, Dunbar of Grange, nephew to the commander, perceiving that the entrance to the old tower of Cunninghamhead was strongly secured by an iron grating before a massy wainscoat door—most likely expecting to find some treasure secreted within—called for the keys that he might open and examine the interior. The keeper being absent, he was told that there was nothing of any consequence in the place, for the second story was used as a granary, and the rest of the building was unoccupied. At this, in great wrath, after abusing the people, he set fire to the door, and blew up the grating with gunpowder. Having forced his way in to the foot of a staircase, after ascending, he found himself opposed by a second stout door upon the girdle, also grated; but full of the hope of plunder, he was not thus to be disappointed, and removed this obstruction in the same summary manner. Sure of the prize, he rushed in with his attendants, all equally eager with himself for a share of the spoil, but they saw nothing except oatmeal, as

they had been told, which, in their rage at finding themselves “begunkit,” they either “fyled” with their boots and shoes, all clay from the open field, or scattered about and destroyed, under pretence of searching for arms. The loss to the minor, as the greater part of the rents then were paid in produce, has not been mentioned in money; but as the deed happened in the month of February, the pecuniary value, although then high, might not be equal to the detriment its destruction must have occasioned.

William Dickie, a merchant in Kilmarnock, had nine Highlanders quartered upon him six weeks, during which he was obliged to furnish them with meat and drink, and, not having sufficient accommodation for them in his own house, was forced to pay for “dry quarters,” *i. e.* good beds, in some other, as were numbers besides. When they went off, they carried away with them several sacks full of household stuff, and goods, and a hose full of silver money; and, before leaving, broke two of the honest man’s ribs—stabbed his wife in the side, who was big with child at the time, and otherwise so terrified her, that she died in consequence.

These were the apostles of Episcopacy! and their employers have even found apologists in our own day; but if they who, by preaching, and prayer, and suffering, attempted to diffuse the knowledge of the gospel in their country, were or are called fanatics, by what epithet shall honest indignation designate the miscreants who could endeavour by such means to obtrude an illiterate, ignorant, dissolute, and shameless priesthood, upon an unoffending, and comparatively uncorrupted, part of the population? It is, however, pleasant to notice that, among the Highland leaders, there were several exceptions. The Marquis of Atholl, and the Earl of Perth, are particularly mentioned as having pled the cause of justice and humanity at the council-board of the committee, though, unhappily, their pleadings were overborne by numbers—and their men comported themselves no better than their comrades.

The whole may be summed up in the words of a contemporary writer, an eyewitness, quoted by Wodrow:—“It is evidently apparent that the proceedings of these few months by-past, are a formed contrivance (if God in mercy prevent not) to subvert all religion, and to ruine and depopulate the country—they are open and evident oppression, public violence, and robbery, and invasion of the person and goods of a free and loyal people—a violation of the ancient rights and privileges of the lieges—and a

treacherous raising of hatred and discord 'twixt the king and his subjects—and consequently, manifest treason against the commonwealth and the king's majesty. In a word, when considered in its full extent, and in all its heinous circumstances, it is a complication of the most atrocious crimes that almost ever could have been conceived or perpetrated." The losses sustained by the county of Ayr alone, were estimated, in an account intended to be laid before the king if he would have received it, at one hundred and thirty-seven thousand, four hundred and ninety-nine pounds, six shillings, Scots—or eleven thousand, four hundred and fifty pounds sterling; and this being only what could be ascertained and proved, was not supposed to be one-half of the real amount of damage inflicted.

While the Highlanders were plundering openly, the committee were equally busy in their vocation—fining or imprisoning all who came before them, whether upon charges of attending conventicles, or not signing the bond. On the 22d February, the Earl of Cassilis appeared, and resolutely refusing to subscribe what he considered as illegal in itself, and impossible for him to perform, was ordered to answer next day to an indictment accusing him of high crimes and misdemeanours, in frequenting conventicles, or allowing them upon his grounds. His lordship did accordingly appear, and denied upon oath, the truth of the averments in the libel, only, if there had been any conventicles upon his ground, or if his tenants had been at them, he knew nothing but by hearsay, he himself having never seen any such meetings, nor any of his tenants present at them. Immediately upon his refusal to subscribe, although he had cleared himself by oath of all the crimes laid to his charge, the lords appointed a messenger to charge him with letters of law-burrows, to pledge himself in the books of the privy council, that his wife, children, men, tenants, cottars, and servants, should not be present at conventicles, or any other disorderly meetings, under a penalty of double his valued yearly rent; and, in case of failure, he was to be denounced a rebel within six days. Hereupon he wrote to their lordships entreating a week's delay, but they refused to grant him even this small favour, on which he immediately repaired to Edinburgh to offer the council every satisfaction that could be legally required. But upon his coming thither, a proclamation was issued, commanding all noblemen, heritors, and others of the west country, to depart from the capital, and repair to their own houses within three days, before which time, however, his lordship was actually denounced at the market-cross of Ayr, and a

caption issued for apprehending him. In these circumstances to have remained in Scotland without some security, would have been the height of folly, he therefore repaired to London, and having obtained the interset of Monmouth, laid a statement of his case before the king.

Universal as the suffering was in the west, yet so impressed were the people with a belief that the council wished some excuse for their conduct, or some pretext for further severities, that, with a patience unparalleled in history, they quietly endured their accumulated grievances, without giving their oppressors the handle so eagerly desired, and left them only the wretched plea of a rhetorical flourish, by which they designated their quiet assemblies,^[100] to palliate or justify their atrocious aggressions on the constitution of the country, and the common rights of mankind. Whether the privy council felt this, or whether actuated by the dread of some more serious movement among the nobility, as the Earl of Loudon, the Lords Montgomery, Cathcart, and Bargeny, had also become refractory, it is unnecessary to inquire; but, in the latter end of February, the Highland host were ordered home, and the whole, except a few, returned to their native hills laden with the spoils of their more excellent neighbours.

¹⁰⁰. Calling them rendezvouses of rebellion, or seminaries of rebellion.

Their march is pictured as the route of successful ravagers returning from the sack of some devoted city. They were loaded with spoil. A great many horses which they had stolen, were burdened with the merchandize swept from the dealers' shops—webs of linen and woollen cloth; silver-plate, bearing the names and arms of gentlemen; bundles of bedclothes, carpets, men and womens' wearing-apparel, pots, pans, gridirons, and a great variety of promiscuous articles. Their wary leaders had transmitted home large sums of money previously by safe hands, but some of the retreating parties were not so fortunate with their bulky packages; the river Clyde being swollen when they came to Glasgow, the students at College, assisted by a number of other youths, took possession of the bridge, and allowing only forty to pass at a time, obliged the marauders to deliver up their plunder, and then conveyed them out at the West Port, without suffering them to enter the town. In this manner, about two thousand were eased of their burdens, and the custom-house nearly filled with furniture and clothing, which were restored to their proper owners, as far as could be effected.

Great was the chagrin of the regular clergy at the breaking up of the Highland host. The gospel itself, they said, would depart from the district along with it; for they themselves might leave their parishes whenever they were removed, unless garrisons were settled among them. Garrisons were accordingly appointed; one hundred and twenty foot and forty horse in Blairquhan; fifty foot and ten horse in Barskimming; and as many in Cessnock. But these were deemed insufficient by the presbytery of Ayr, who, seemingly taking fresh alarm at the Earl of Cassilis' visit to the capital, wrote to the Archbishop of Glasgow, February 28, transmitting to his Grace "their humble opinions of several occurrences. 1st, The great and leading men of this country," say they, "are all gone into Edinburgh, and expect to be sheltered there; therefore it is fit they be severely dealt with, sought after, and forced to obedience, otherwise the commonalty, who absolutely depend upon them, will never be brought to conformity. 2dly, The indulged ministers must be stinted of their liberty, and some new tie laid upon them, or they absolutely removed; for let people say what they will, most of these disorders flow from them. 3dly, That the leading men of this country now at Edinburgh be not protected by the council, but taken and sent hither; for the committee think their credit highly concerned in it, if after they have been at the pains of prosecuting them this length the council do protect them, it will be a great discouragement to them in their procedure for the future. 4thly, The garrisons appointed here are but three, and too weakly manned, and they are too far from the heart of the shire, and it will be fit two hundred men be left in garrison at Ayr. This is the opinion of your Grace's most humble and obedient sons in the Lord."

Roused by this appeal, the archbishop immediately set out to court, carrying with him an address from his subalterns to the same effect—breathing out the same spirit of intolerant and unfounded accusation of the brethren; and, by a species of unblushing falsification, reproaching as persecutors the very men they themselves were persecuting. It is a perfect specimen of jesuitism:—"May it please your most Sacred Majesty: The danger this church is exposed unto in the present circumstances, which are such as threaten the dissolution thereof, hath necessitated us in the discharge of our duty, to desire the Lord Archbishop of Glasgow humbly to address your royal presence, and to offer unto your princely consideration, how inconsistent the violent and irregular courses of those who rent the church, (and prosecute us for no other reason but that of our absolute and

entire dependence on your majesty's authority,) are, with the rights and interests of your majesty's crown and government, as well as with the safety of your people, and the reverence due to religion, for no other end but that your majesty's authority may be vindicated and rescued from the persecution of the open disturbers of the church and their abettors, who, for their own ends, endeavour to constrain the people, and to debauch them equally from their loyalty as their religion." The council had the full countenance of the king; yet still they do not seem to have felt entirely at ease. They therefore sent him a summary account of all their proceedings, with a request that he would grant them his explicit approbation, which they enforced, as they generally did their applications for his support in their extravagant measures, by recalling to his remembrance the steps which had led to the late execrable rebellion, and working upon his fears by marking a resemblance between the present and those unhappy times; hinting, in conclusion, their suspicions that their political rivals were chiefly to be dreaded. "We are fully convinced that the meaner sort would not dare to appear in such open insolences, if they were not encouraged by persons of greater eminency, and who, by how much they are the more considerable, are so much the more to be jalousied: tumultuary rabbles being then only dangerous when they get a head, and when delusions in opinion mix themselves with faction and humorous opposition to authority." His majesty immediately thanked them very heartily for their careful prosecution of what he had recommended, in calling in his forces and accepting the offers of the Highland noblemen, and expressed himself well pleased that the bond should be offered to all persons and magistrates within the ancient kingdom without exception, approved of the law-burrows and the settled garrisons, and declared that his approbation should have the force of an absolute indemnity and letter of thanks to all in any way concerned in the late expedition to the west, in council, committee, or execution, having very good reason to consider the same as special and necessary service.

Notwithstanding his knowledge of this ample approval given by the king to his council, and fully aware of the dangerous ground upon which he stood, the Earl of Cassilis, with a noble boldness, delivered in writing, under his hand, a true state of his case, March 28, an attested copy of which was sent down by express to the council. A few days after its receipt, they dispatched a long reply, in which they denied the facts, and endeavoured to confute the arguments of his lordship; but craved from his majesty's justice

that the Earl, who had contemned his royal proclamation, and charged his privy council with crimes of so high a nature, might be sent down prisoner to be tried and judged according to law.

Affairs in England at this time did not admit of such prompt measures. The Scottish patriot had engaged some of the English in his cause, who sympathized with his sufferings and those of his country, and the king also, influenced by his favourite Monmouth, either felt or pretended to feel some commiseration. Cassilis was not sent down. The council were still further mortified by the defection of two of the leading nobles, the Marquis of Atholl and the Earl of Perth, when they returned from the west. They not only did not concur in the severe methods going forward, but from what they had observed of the peaceable conduct of the Presbyterians, and the information they had received from some of the noblemen, they could not continue to lend their countenance to the severities so unreasonably exercised against them; nor could they avoid showing their displeasure at the violence of the prelates, so that they were openly accused of favouring conventicles, which now began to multiply in the north and among the Highlands of Perthshire, where they had not formerly been wont to be heard of; and the Bishop of Galloway, who had been sorely annoyed with them, in a visit he had lately paid to that quarter, thus complained to the Lord Register:—"I am surprised to hear of the great and insolent field-conventicles in Perthshire, it being as much influenced by the Marquis of Atholl's example, as directed by his authority. There is, besides many others, a constant field-conventicle now settled in the confines of some parishes, Methven, Gask, Tippermuir, and another, where it is marvelled that many observe several shoals of Highlanders in their trews, and many bare-legged, flocking thither to propagate the mischief of 'the good old cause.' It is to good men no small discouragement that a shire, under the influence and conduct of the Marquis of Atholl and the Earl of Perth, who say they are true sons of the church, should (being formerly orderly and obedient to the laws) become so turbulent and schismatical, especially since the Marquis is sheriff-principal, and one altogether devoted to his lordship is sheriff-depute, of that shire, in whose hands is placed the power to punish and suppress these disorders."

So far had the expedient of letting loose a band of mountaineers upon the west failed in answering the end proposed by the prelates, that the

devastations they had committed, had raised the indignation of many of the nobility and country gentlemen, who were indifferent to religious modes of worship, and averse to all disputes about them; but having heard of the success of the Earl of Cassilis, determined, as they were denied any redress in Scotland, to lay their grievances before the king in person. Accordingly, about the end of March, the Duke of Hamilton, accompanied by the Earls of Roxburgh, Haddington, Loudon, and others—in all about sixteen lords, together with Lieutenant-General Drummond, and upwards of forty of the principal proprietors, breaking through the prohibition, repaired to London; and what was most distressing to the prelates, the Marquis of Atholl and the Earl of Perth, who had been members of the committee of the privy council in the west, likewise went thither.^[101]

¹⁰¹. When these two noblemen, with their servants and some gentlemen, were upon their road in Annandale, they lost their way; and it being late, the two noblemen were obliged to shelter in a cottage in that country. The people having heard somewhat of their errand in going up, were extremely kind to them, wishing them heartily success. When they could not get their horses under lock and key, or perhaps to any house, the noblemen appeared concerned for them, lest they should be stolen, having heard Annandale spoken of for stealing of horses; but the country people told them they were in no hazard, there was no thieving among them since the field-preaching came into that country, and talked of many other branches of reformation wrought among them by Mr Welsh and other preachers. Wodrow, vol. i. p. 507.—Kirkton, from whom Wodrow has borrowed this pleasant little anecdote, adds, “the poor country people talked to the noblemen’s great admiration for the time, but it brought forth but small fruit.” *Hist.* p. 239.

At first the king would only permit Atholl and Perth to approach his person—the others he refused to see, because they had left Scotland in contempt of a proclamation; but their representation of the mad projects going forward there, made him conclude that certainly Lauderdale’s head was turned; yet neither would he allow him to be blamed, or admit that he had done any thing detrimental to his service. But as he professed his intention of setting the Duke of Monmouth at the head of the Scottish government, he allowed him to act as mediator upon this occasion, and they were at last admitted into the royal presence; the more readily perhaps, as their visit had begun to make a great noise and awakened the jealousy of the English parliament now sitting;—who imagined they saw, in the management of the sister kingdom, a specimen of what they themselves might expect whenever circumstances would permit, and anticipated their own subjection, should Charles establish a despotism there, especially as the Duke of York, whose papistical principles were now openly professed,

strongly abetted the cause of the Scottish Episcopal church—a church that gloried in being the daughter of the church of Rome by true lineal descent in the uninterrupted apostolical succession of her bishops,^[102] and who equalled her in the antichristian persecuting spirit of her priests.

¹⁰². This was always strenuously contended for by the old non-jurants, who only lately died out here; but is apparently reviving in the Puseyites.

Alarmed at the departure of so many influential personages for London, and at receiving no reply to their former letter, the privy council dispatched the Earl of Murray and Lord Collington to counteract the efforts of their opponents, and carry another epistle to his majesty, complaining of the conduct of those persons, “who, instead of concurring with them, which as sheriffs, and enjoying other responsible offices, they should have done, had, with much noise and observation, gone to England without seeking their license; but they, with humble confidence, expected that his majesty, by his princely care and prudence, would discourage all such endeavours as tended to enervate his royal authority and affront his privy council; and they referred his majesty to their messengers, two of their own number, men of known integrity and ability, who could give him an exact account of what had passed, and resolve such doubts as might occur to the royal mind, which could not be settled so well by letters, and confute such unworthy mis-reports as were raised by others who have choosed a time when his majesty was likely to be engaged in a foreign war, and had assembled his parliament of England.”

After these deputies had reached London, and the various statements of the different parties had been laid before the king, a message was received by the council from him, announcing “that he had considered some representations made by some of his subjects anent the late methods with the west country, with the answers made thereunto and replies, which so fortified the representations, that he resolved to hear and consider things fully, and, in the meantime, commanded that the bond and law-burrows be suspended till his further pleasure be sent, and that all the forces, except his own guards, be immediately disbanded.” Astonished at receiving such a command, when they expected to have got Cassilis sent down prisoner as they had requested, they could not conceal their disappointment and chagrin. In a reply which they transmitted by Sir George Mackenzie, who was instantly sent off to aid in advocating their cause, they say—“You

know how much all were inclined to give the council ready obedience till these noblemen interested themselves in the phanatical quarrel; how ready all were to concur in assisting his majesty both with their own tenants and militia; and, which is very remarkable, how ready the gentry and heritors in every shire were to rise, between sixty and sixteen, which, in shewing how all ways were taken and owned for assisting the royal authority, did strike a just terror in all those who were refractory; whereas now, the numbers and humorousness of those who are gone up has done all they could to loose all the foundations of authority here to such a height, as will soon grow above correction, if it be not speedily, vigorously, and openly adverted to by his majesty.”

Charles himself seems to have been not a little perplexed at the unexpected step of the Scottish nobles. What had been done in Scotland was unauthorized by any law, and unjustifiable upon any principle of good government, but it was agreeable to the despotic propensities of the heartless sovereign; and he was constantly wavering between the harsh measures most congenial to his disposition, and the milder plans he was occasionally obliged to adopt—sending orders one day to disband the troops and dismantle the garrisons—the next, ordering new troops to be raised and other garrisons to be planted, till Sir George Mackenzie arrived. Shortly after his arrival, the king was prevailed upon to give a hearing to the Duke of Hamilton and his friends, whose ranks were now much thinned, both their patience and purses being nearly worn out by their long detention. An account of the interview has been preserved, written by one who was present, which, as it is the only authentic document we have, and not being long, I the rather insert:—

“Upon the 25th of May, the king commanded the Duke of Hamilton, Lord Cochrane, Sir John Cochrane, and Lieutenant-General Drummond, to attend upon him at four of the clock, when they appeared. The king being accompanied by the Duke of York, Duke of Monmouth, and the treasurer, desired to know what they had to say—why they had come to him contrary to his proclamation? The Duke of Hamilton spoke first and said, he humbly begged to know the reason why he had got some marks of his majesty’s displeasure, and that since he came here (to London) he had not the common privilege of subjects, not being admitted to kiss his majesty’s hand. The king replied, he would first know what were the things they had

to complain of? and he would take his own time to answer his first request. The Duke said, the chief encouragement he had to come and make known his oppression was that which his majesty said to him when last here, which was, that when he was in any way wronged he should come to himself and make it known; and that now he could not but come since he and others were so much wronged.

“And then there was an account given of the whole affair of the bringing down of the Highlanders, of quartering, plundering our lands, of having a bond offered which was both illegal and impracticable, of being charged with law-burrows, of being denounced thereupon, and of the proclamation forbidding us to acquaint the king with our condition. All these were particularly insisted upon at great length. To which the king returned, that these were horrid things, and desired we might set them down in paper. The treasurer said, that whatever was in these free-quarterings and in the rest, they might have been prevented by taking of the bond, which he conceived there was law for the imposing of, and might be very well kept, for there were two alternatives in the bond, viz. either to deliver them prisoners, or to put them from their land. To which it was replied, there was no law obliging masters to apprehend their tenants; and the furthest the act of parliament went was, in the year 1670, to oblige masters for their families and servants. 2dly, That masters could not be obliged to turn their tenants out of their lands in regard that the punishment for going to a conventicle was statute already to be a fine, much less in proportion than the turning them out of their possessions; besides, most part of the tenants have tacks by which, during their time, they had good right to their possessions, and could not by their masters be turned out for a crime that, by the law, was only finable, and had no such certification as losing their possessions.

“The conference having been held two hours, there was a good deal said to and fro, and the king fully and freely informed. The conclusion of the debate was, the king told us he could not judge of what we had said, unless we would give it under our hands, that he might consult thereanent with his council, and know what they had to say for themselves, and could advise him to. It was answered, that we came to his majesty to give an information of what wrongs and oppressions were done to the country, hoping his majesty would examine and redress them, but not to give in any accusation against the council, which we knew, by law, was very dangerous, unless his

majesty would indemnify for it, which the king refusing to do, they told him they could insist no farther, but leave it to him to do as he thought fit. The king offered to go out of the room, and the Duke of Hamilton kneeling, begged the favour of his hand; but his majesty declined it, and said he would consider upon and give an answer to what had been said, and went away.^[103]

¹⁰³. When the Duke of Hamilton got into his presence, the king kept his hands behind his back, lest perchance the Duke should snatch a kiss of them! And when the Duke came to make his complaint upon the bad government of Scotland, the king answered him with taunts, and bid him help what was amiss when he were king of Scotland; and this was all. *Kirkton*, p. 393.

“There were many particulars spoken to, wherewith the king seemed to be moved, acknowledging there were overdoings and several things done upon prejudice at particular persons; but still, when he came this length, the Lord-Treasurer interrupted, and gave some other turn to matters, otherwise ’tis thought there would a more favourable answer have been given. The king signified that he was certainly informed that there was a rebellion designed in Scotland, but he would take care the actors in it should be the losers by it. He endeavoured much to assure us that, albeit we had not come to London, there would not have been any caption executed against us upon the law-burrows.”

Dismissed with flattering promises, the nobles were not deceived; and although they brought away with them the “word of a prince,” they knew its value too well to place much confidence in it. Nor did the conduct of the king belie their forebodings. Three days after this conference, he addressed to the managers in Scotland, a letter, the third of the kind, containing his full approval of their proceedings; and “that the rather, because, after trial taken by Us, we find that such as complained refused to sign any complaint against these proceedings as illegal,” and added, in order to prevent any future application, that he was highly dissatisfied with such as had caused these clamours, and “would on all occasions proceed according to our laws against such as endeavour to lese our prerogative and oppose our laws and our privy council.”

No sooner was there the least appearance of any relaxation in the execution of the severe acts, than the ministers and people returned with renewed alacrity to their meetings; and at this juncture, as there was a very general impression that the men in power were sympathizing with them, the

consequence was, that conventicles again multiplied, especially in Fife and East Lothian. At the same time, the regular clergy were more upon the alert. The military, too, were always in readiness, and sometimes skirmishes ensued, in which the soldiers occasionally were beat off.

Early in May, a large conventicle having convened on the flat at Whitekirk, opposite the Bass, the deputy-governor who had received notice of it, came upon the meeting with about forty soldiers and some twenty country people, whom they forced along with them. When they came near, the people resolved to sit close and stay upon the place, and offer no violence to the soldiers, unless they disturbed them; but in that case they resolved to defend themselves. The soldiers came up and commanded the people to dismiss in the king's name. Some who were next to them answered, they honoured the king, but were resolved to hear the word of God when preached to them; at which one of the soldiers struck a man that was nearest him, whereupon a strong countryman with a staff knocked the soldier to the ground. When they were thus engaged, a kind of general scuffle ensued. One of the soldiers was shot, and others disarmed and dismissed unhurt, though they had seized and sent off to Haddington two of the persons assembled at the conventicle. A few days after, several other persons were apprehended for having been present, from among whom five were selected to stand trial before the Justiciary Court at Edinburgh for the murder. Of these, three were dismissed, but two, James Learmont and Robert Temple, were brought to the bar; when it was urged against the relevancy of the indictment, that "simple presence" in a crowd, where upwards of a thousand persons were assembled, could constitute no crime; and it was offered to be proved that the prisoners came to the place unarmed, or did not use arms; and not only this, but it was also offered to be proved that others who had escaped, and were declared fugitives, were seen to strike the deceased with swords and halberts. Yet the lords decided that presence at unlawful meetings or field-conventicles with arms, at which slaughter was committed, or giving counsel or command, were sufficient, and the case was remitted to the jury to pronounce upon the proof. It was distinctly sworn by two witnesses that they saw James Learmont at the meeting unarmed, but heard him say—"Let no cowards be here to-day; but let such as have arms go out to the foreside;" and, after having viewed the advancing party, cry out—"They be but few, let there be no cowards." Another swore that he saw William Temple, with a sword under his arm,

but not drawn. The jury found the panels guilty as libelled; but the lords of Justiciary not being quite clear about the business, requested the opinion of the privy council, who, after considering the process, deputed four of their number—Murray, Linlithgow, Ross, and Collington, to express their satisfaction with the whole procedure, and recommended that justice should be speedily executed upon the said panels. Such, however, was the even-handed justice of these days, that a remission of the punishment came to the one who had been proven to be at the conventicle with a sword, while the unarmed hearer of the gospel was sent to the gallows. But the good man died in great peace, declaring his adherence to the truth as stated in the Confession of Faith, and to the despised way of preaching the gospel and receiving the sacraments of Baptism and the Lord's Supper from lawfully ordained and called ministers of the gospel, who were forced to the fields because of persecution from those who were never friends to the church of Christ—these lords prelates who lord it over the Lord's inheritance. He solemnly declared himself free of the blood of all men, especially the blood of the man for which he was unjustly condemned, and looked forward to that day wherein the righteous Judge will judge again, when he makes inquisition for blood, and will call to account all the blood shed of the saints that is dear in his sight; "before whom," added he, "I am to appear immediately, and hope to receive the sentence, well done faithful servant, enter into your master's joy, though not by my merit, but through the merit and purchase of Christ."

Learmont was a chapman, or pedlar, at that time a respectable employment in Scotland, and appears, like many of his calling, to have been pretty extensively known, which had provoked the peculiar enmity of Sharpe so much, that, when the jury at first brought in a verdict of not guilty, he was not satisfied, and the jury were sent back. A second time they returned the same verdict, when he instigated the Lord Advocate to threaten them with an assize of error, though Mackenzie seldom needed any prompter on such occasions, which prevailed upon them at last to bring in a verdict more agreeable to the blood-thirsty pair.^[104]

¹⁰⁴. Fountainhall's Decis. vol. i. p. 13. Wodrow says, "some papers before me say he was once assoilzied by the jury; but Bishop Sharpe being peremptory he must die, moved the Advocate to threaten them with the utmost severity; and at length they were prevailed with to bring him in guilty." Hist. vol. i. p. 521.—Learmont himself, in a large paper left behind him, declares—"My blood lyeth at the Bishop of St Andrew's door, to stand against him; for since I received

this sentence of death, it hath been frequently brought to my ears, that he pressed the king's advocate to take my life." "And now in my last words, after the example of my Lord and master, I here most freely, before I go hence, say, 'Father, forgive them.'" Naphtali, p. 450.—Nine years after, a person upon his deathbed owned to a minister who visited him, a few hours before his death, that he was the person who killed the soldier, which he did in self-defence, and to save the life a neighbour. Learmont was in no ways concerned or present at it. Wodrow, vol. i. p. 523.

Increasing severities on the part of their rulers produced increasing precautions on the part of the persecuted, who were firmly persuaded that it was the will of God and their duty to hear his word and endeavour to induce others to hear also—that no human power could release them from the sacred obligations of their oath to God, ratified by acts of the legislature, unanimously passed, and sworn to by king, parliament, and people. They therefore, in obedience to these obligations, and these acts, came now in greater numbers armed to their meetings, to defend themselves and their preachers; and even those who had at first opposed resistance to their oppressors began to relax.

Among a people trained to judge and reason for themselves, it was not easy to settle the disputed questions, Who were the violators of the law?—those who had overthrown and trampled under foot the constitution of the country? or those who obeyed and were determinately upholding it? Could the circumstance of minority or majority change the nature or loosen the bonds of religious, moral, and legal obligation? Did these depend upon numbers, riches, or power? Politicians may answer yes; people may temporise where to resist would involve a community, or part of a community, in an unequal or apparently hopeless contest—they may pay for the support of an established hierarchy, which they do not approve, because it may be dangerous to attack it—they may accept office under a government, coupled with restrictions discordant to man's natural right to worship God according to conscience, because obedience is gainful or expedient;—but these worthies judged differently, they considered what they thought duty, national and personal, irrevocable and imperative; and they left the consequences to the providence of God.

Mr Blackadder, invited again to Fife, lodged at Inchdarnie's—then the head-quarters of the higher ranks among the covenanters in that district—together with his son Robert, Bailie Haddoway, and Mr, afterwards Colonel, Cleland. On Sabbath morning he was escorted to Divan, eight miles off.

When he came, he observed a number of arms piled in order on the ground, guns and fowling-pieces, about the number of fifty, which, when he saw, he asked, “what meant all this preparation? Trust rather in Jehovah, and the shield of omnipotence.” They told him the reason, that Prelate Sharpe had ordered to draw a hundred and five men out of the militia, to be a standing company, on purpose to search for and apprehend ministers who should venture within his bounds. This and the like violence was the thing that soon brought him to his end, and constrained peaceable folk to come in arms, after long suffering and provocation. About the middle of the communion, an alarm arose that the militia were advancing their whole company. Burleigh stepped out presently and drew up a party of the left horse, such as he could find, and went forth to view the militia, who were within two miles of the place. Suspecting that the meeting might be in a posture of defence, they had halted on a brae-side until both sermons should be ended, that they might make a prey of the people dismissing. When all the congregation were removed, except the minister’s body-guard, a new alarm came that the soldiers were at hand. Upon this Kinkel and Burleigh, with a few horse, rode up the face of the hill, where the militia had advanced with the hope of getting plunder, and making prisoners of the hindermost. Also the foot, young men, who had their guns, and were on their way homeward, did resolutely return and join the horse, which altogether made a party between thirty and forty. The lads on foot were drawn up beside the cavalry, such as they were. The military with their officers were marching fast up, expecting their prey, but halted when they perceived the party. Haddoway and Cleland rode down to have spoken and asked their intentions; but ere they came near, the militia wheeled about for marching off, if they might. The footmen came up sweating with their muskets, and were drawn up on the flanks, making a tolerable troop.

But the militia, terrified at all this apparatus, scarcely looking over their shoulder, fled to Cupar in a dismal fear. The Presbyterian horsemen would gladly have had orders to break after them, which if they had done, it is said the prelatists had resolved to throw down their arms and surrender at mercy. But the minister did calmly dissuade them from it. “My friends, your part is to defend yourselves from hazard, and not to pursue: your enemies have fled—let their flight sheath your weapons and disarm your passions. I may add without offence, that men in your case are more formidable to see at a distance than to engage hand to hand. But since you are in a warlike and

defensive posture, remain so, at least till your brethren be all dismissed. Conduct them through their enemies, and be their safeguard until they get beyond their reach; but except in case of violence, offer injury to none.” When the militia had entered Cupar, the party rode off quietly. About nine guarded Mr Blackadder to his quarters, which was at an inn in the parish of Portmoak. On Monday he returned with his friends to Edinburgh.

Next week, another remarkable communion was held at Irongray, Dumfries-shire, when Mr Welsh presided at the earnest desire of his old parishioners, who had resolved to make this public avowal of their attachment to the cause of Christ, at the peril of all they held dear on earth; thither also Mr Blackadder resorted. On Thursday, he took horse from Edinburgh, accompanied by his wife and son Robert, who wished to see their relations and join on the occasion, such a thing being so rare to them. As they rode on their way by Leadhills towards Enterkin and Nithsdale, they found the roads covered with people, some on horse, others on foot. A company of eighty horse, whereof many were respectable gentlemen from Clydesdale, and well appointed with regular officers, had marched down Enterkin-path in good order a little before him. They were all reasonably well accoutred. He entered into conversation with many groups of people, and advised them all to behave with sobriety and decorum. The party of Clydesdale horse, when they were down the brae of Enterkin, which was a large mile, drew up and fell into rank at the foot of the path, and marched in good order all along Nithsdale, till they came to Cluden-water, which was much swollen by the rain. They rode through directly to Irongray parish, where they took up their quarters, and kept outwatches and sentinels all night. The men on foot came after, and took up their lodgings where they could most conveniently, and as near the horse as possible. They told that the Earl of Queensberry was on his road to Edinburgh, and had met several companies of them.

Mr Blackadder and his company took the route to Caitloch, where he stayed that night. Here their numbers were increased to a great concourse. On Saturday morning, they marched from Caitloch to the cross of Meiklewood, a high place in Nithsdale, about seven miles above Dumfries. This he understood was to be the rendezvous of the congregation. Here they had a commanding view of the whole country, and could not be taken by surprise. On the one hand, the hills of Dalswinton and all the higher ground

of Kirkmahoe, lay within reach of the eye, as far as the braes of Tinwald and Torthorwald. The range of the Galloway hills lay on the west, all the passes of which could be distinctly seen. No sudden change could surprise them from the south, as the flat holms of the Nith were visible for many miles. When Mr Blackadder reached the place, he found a large assembly had collected. He opened the service from these words, 1 Cor. xi. 24. "Do this in remembrance of me." His two chief points were—That the ceremony was not left arbitrary to the church, but was under a peremptory command from Christ himself. This remembrance was to be renewed from time to time as seasons would permit; and their divine Master's command was still in force, though men had inhibited and discharged them. Secondly, The end of the institution, why it ought to be frequently celebrated or administered; and what was especially to be commemorated.

Mr Welsh preached in the afternoon, and intimated the communion to take place next day on a hill-side in Irongray, about four miles distant, as it was judged convenient and more safe to shift their ground. He durst not mention the name of the place particularly, lest enemies might get notice and be before them; but none failed to discover it. Early on Sabbath morning, the congregation sat down on the Whitehill in Irongray, about three miles above Dumfries. The meeting was very numerous, greater than at East Nisbet, being more gentlemen and strangers from far and near. Mr Arnot, late minister of Tongland, lectured in the morning, and Mr Welsh preached the action-sermon, which was his ordinary. The rest of the ministers exhorted and took their turn at the table-service. The whole was closed in the evening without disturbance. It was a cloudy and gloomy day, the sky lowering and often threatening showers, but the heavy clouds did not break, but retained their moisture, as it were to accommodate the work; for ere the people got to their houses and quarters, there fell a great rain which that night waxed the waters, and most of them had to pass through both the Cairn and the Cluden.

The Earl of Nithsdale, a papist, and Sir Robert Dalzell of Glenae, a great enemy to these meetings, had some of their ill-set domestics there, who waited on and heard till the time of the afternoon sermon, and then slept away. At the time of dismissing there arose a cry and alarm that the dragoons were approaching, whereupon the Clydesdale men instantly took to horse and formed. The gentlemen of Galloway and Nithsdale took no

posture of defence at first, as they did not intend it until they saw imminent hazard. But seeing the motions of the Clydesdale men, they thought it necessary to do the like. Gordon, the Laird of Earlstone, who had been a captain in the former wars, now drew up a large troop of Galloway horse. Another gentleman of Nithsdale, who had also been a captain of horse, mustered up a troop of cavalry from the holms of Kirkmahoe and about the Nith. Four or five companies of foot, with their officers, were ready equipped for action; and all this was done in the twinkling of an eye, for the people were willing and resolute. Videttes and single horsemen were despatched to various quarters, to keep a good look out. The report brought in was, that they had only heard a rumour of them being in the country, but could not inform themselves if any were near at hand, or any stir in that immediate neighbourhood. After remaining in that defensive posture for three hours, the body of the people dispersed to their quarters, each division accompanied with a guard of foot and horse. In houses, barns, and empty places, most of them got accommodated in a sort of way, within a mile or two's distance. They had mostly provided themselves both for board and lodging, and the ministers were hospitably received at the houses.

The night was rainy, but watches were kept notwithstanding. As a point of prudence, no intimation was given where the Monday's meeting was to be kept; this was not generally known, except to the ministers. The tent was next day erected on another hill-side near the head of the parish, three or four miles from the place of the Sabbath meeting. The people seemed nothing diminished in numbers on account of the alarm, or the unpropitious state of the weather. The horse and foot, as usual, drew round about the congregation, the horse being outermost. Mr Blackadder closed this day from Heb. xiii. 1. "Let brotherly love continue;" and, notwithstanding the alarm, he continued three weeks preaching up and down in that country.

About the end of harvest, the last and largest out-door communion that ever had been in Scotland, was celebrated at Colmond, in Ayrshire. Many came in their best furniture and posture of defence, expecting violence, as the council had got notice of it—there was a great number of ministers officiating—but all the people dismissed in peace. Other conventicles did not escape so easily. One kept at the house of the Williamwood, in the parish of Cathcart, Renfrewshire, where Mr John Campbell and Mr Matthew Crawford had preached, was dispersed by a party of dragoons,

who took sixty men prisoners, and plundered a great number of women of their plaids, bibles, and whatever else they had worth carrying away.^[105]

^{105.} The minutes of privy council inform us how the booty so honourably acquired on these occasions was disposed of. “The lords of his majesty’s privy council ordain Captain Buckham” to advertise on Sabbath next at the parish of Calder, “certain horses and plaids *found* by him and his party on dissipating the late conventicle; with certification, if the persons to whom they doe belong will not owne and come and receive them back againe that day eight days, they will be disposed upon; and in case they be not owned, the saids lords ordains the said Captain Buckham to sell and dispose thereupon at the best avall for the use of the party.” *Memoirs of Bryson*, published by Dr M’Crie, p. 282, note. The Doctor quaintly adds, “Few owners, it is to be presumed, would make their appearance to claim these *lost* goods.”

Affairs were now drawing to a crisis. Outward troubles were accumulating, while, unfortunately, the intestine divisions were also on the increase. “Such,” reports one of the “outted” ministers themselves, “as were in the fields found it difficult, amid the jarring tempest of opinions, to give an advice. The majority were of opinion that the times called more for meekness and patience, than any warlike enterprise; and that it was better to continue under suffering until they had clearer revelation than use carnal weapons of their own; for at this time there were several sticklers in the west stirring up the people underhand, amusing them with designs to rise in arms, though there was no such joint resolution, for any thing I know, either among gentry or ministers, nor the most pious, solid, and grave among the yeomen.” Nevertheless, the country was generally ripening for some explosion; and it says little for the gentlemen that they did not watch the movements of the community, as they might have directed them into more peaceable channels; but their posterity have reason to thank their coolness or timidity, as any arrangement with the then government could only have been based upon allowing a preponderance to the crown, which even a revolution might not have been able to impair. Mr Robert Hamilton, brother to Sir William Hamilton of Preston, esteemed a pious man and of good intentions, but of narrow views and severe in his temper—obstinate and opinionative withal—stepped forward while they stood back—held meetings in the country, and also at Edinburgh, during this summer, for establishing a general correspondence; but all this without acquainting the ministers or gentlemen, who were in better capacity to manage the business.

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[106](#). Notices of James Ure, p. 452. Memoirs of Rev. John Blackadder, p. 224. Wodrow, vol. i. p. 520, &c.

In the midst of these commotions, a convention was summoned, and Lauderdale appointed to preside as Commissioner; for he did not choose to face a parliament.^{[\[107\]](#)} Exaggerated reports of the “armed conventicles” had been carefully transmitted to the king; and his early prejudices and fears, arising naturally enough from the fate of his father, and his own papistical education, rendered him an easy tool in the hands of the apostates and prostitutes by whom he was surrounded, who, flattering his baser propensities and humouring his tyrannical inclinations, held him in the veriest bondage, while he imagined himself despotic and free! Lauderdale and his associates, the Scottish prelatists, rendered this criminal carelessness of Charles subservient to their own purposes. Their usual mode was to get letters drawn out in his name by some of their accomplices at court, and presented to the king for his signature, which being speciously written, they obtained in common without difficulty. These they could produce as his own authority, warranting the most outrageous of their own measures, and as arguments for every fresh encroachment upon the constitutional freedom of the people, which their suspicions supposed necessary to protect them from the consequences of their crimes. They had long wished for a standing army. Charles had seen its efficacy in France. The present was reckoned a proper time for procuring this royal defence of order in Scotland. His majesty therefore wrote to his right trusty and well beloved councillors, informing them that, after the full and satisfactory information he had received from the lords they had sent to court, he “again” approved of their proceedings and care, and assured them of his favour, assistance, and protection upon all occasions. “And for the more effectual demonstration thereof,” the royal epistle went on to say, “We find it necessary to signify to you, and by you to our people, that we are firmly resolved to own and assert our authority, so as it may equally encourage you and discourage all such as by seditious practices endeavour to asperse you and lessen our authority and prerogative. And finding by good information that the phanatics there expecting encouragement from such as oppose you, and taking advantage of the present juncture of affairs here,^{[\[108\]](#)} have of late, with great insolence, flocked together in open and field-conventicles, these rendezvouses of rebellion, and have dared to oppose our forces. Though we neither need nor do fear such insolent attempts, yet from

a just care of our authority and kindness to our subjects there, We have thought fit to order some more forces to be levied; and for that effect we have commanded the lords of our treasury for raising and maintaining these troops at our charges.”

[107](#). A convention differed from a parliament in this—it was summoned for one specific purpose, and could not interfere with any thing else—in general, only to grant money. Nor does it appear that although they could authorize the levying a subsidy from the subject, that they had any right to look after its management by the crown; the delegates to a convention, also, were generally nominated by persons in power.

[108](#). Referring to the popish plot which about this time agitated the English nation and parliament.

Agreeably to this communication, a proclamation was issued, convoking a convention, the bare-faced irony of which would be ludicrous, did not its wickedness of purpose excite other and rather more unpleasant sensations. In it he repeated his fulsome, because false, protestations of the great kindness he bore to his ancient kingdom; “and considering that all kings and states did carefully secure themselves and their people by providing against all such foreign invasions and intestine commotions as might make them a prey to their enemies; and that it was not a fit time that Scotland alone should remain without defence, especially when these execrable field-conventicles, so justly termed rendezvouses of rebellion, did still grow in numbers and insolence, against which all our present forces would not in reason be thought a suitable security. Therefore he called a convention of the estates of that kingdom, to meet at Edinburgh upon the 26th of June, to provide for the safety of the kingdom, by enabling him to raise more forces.”

During the absence of almost all the nobles and influential men who had gone with them to London, and from whom any formidable opposition could have arisen, Lauderdale’s friends hurried on the elections, so that when the convention met, he was possessed of an obedient and overwhelming majority. Eager to evince their loyalty, the chosen band declaring themselves the echoes of the public voice, “and considering the many frequent and renewed professions to serve his majesty with their lives and fortunes, in the maintenance of his honour and greatness; and that now there was an opportunity offered to them, to make good their professions of their zeal, duty, and affection;” “and to let the world see the unanimous affection of his ancient kingdom for the maintenance of his majesty’s royal

greatness, authority, and government in church and state, as established by the laws of the kingdom, they did humbly beseech that his majesty would be graciously pleased to accept the unanimous, ready, and cheerful offer, and humble tender, of a new supply of eighteen hundred thousand pounds, Scots, to be raised and paid in five years, according to the present valuations.”^[109] The act was very unpalatable to the country generally, as they viewed not only the army as the ready instrument of tyranny, but as a reward to the servile party who supported Lauderdale, and to the prelatists who alone would obtain for their poor relations and friends commissions in the army, and share among themselves the donations of the convention.

¹⁰⁹. The monthly assessments of six thousand pounds introduced by Cromwell, were retained, and are still observed as the rate at which the land-tax is imposed. Laing, vol. iv. p. 93. The sum, therefore, here voted, was in our money £30,000 per ann. for five years, and might be in real about five times the nominal value. The number of militia to be drawn at this time, was one-fourth part of the whole, 5000 foot and 500 horse—the pay, six shillings, Scots, ilk day for the foot; eighteen shillings, Scots, for each horseman.

With the Presbyterians, its tendency was disastrous. Payment of cess became a new and bitter source of contention among the already too much divided sufferers. As the object for which the money was to be raised, was expressly stated to be for the suppression of conventicles; or, as the most strenuous opponents of the measure justly interpreted it, for preventing the preaching of the gospel, they at once, and without circumlocution, declared it unlawful to submit in any manner to the exaction. The impositions of tyrants, enacted for promoting their wicked designs against religion and liberty, said they, are iniquitous; therefore it is improper to pay them, especially when these designs are particularly specified and openly avouched in the acts which require them. No act can be binding if imposed upon a people by persons calling themselves their representatives, when they are not truly so, but placed in their situations by those who have broken all their engagements, betrayed their country, its religion, liberty, property, and all private interests, have enslaved the nation, and, by means of these taxations, will be enabled to perpetuate that slavery. Should it be replied, ‘that Christ paid custom, lest he should offend, and taught us to render to Cesar the things that are Cesar’s, and to God the things that are God’s;’ it is sufficient to observe, that he never taught to give any thing to Cesar in prejudice to that which is God’s; nor would it be much less than blasphemy to say, that Christ would have paid, or permitted his followers to

pay, a tax professedly imposed for levying a war against himself, banishing his gospel out of the land, and supporting the scribes and pharisees and their underlings in their wicked attempts against his disciples.

Others were of opinion that, as the money would be forcibly taken from them, it was more adviseable to submit at once, rather than by resistance to give their oppressors a legal pretence for not only seizing to the amount of the tax, but perhaps double, in the name of expenses; and as the deed was neither spontaneous, nor willingly performed, the constrained action would come under the head of suffering rather than of crime.

A third party chose a middle course, and paid it with a declaratory explanation or protest. Among these was Quintin Dick, portioner in Dalmellington, described by Wodrow as an eminent Christian, and prudent, wise, and knowing, far above most of his education and station, who thus expresses himself:—"In this hour of darkness, being much perplexed how to carry without scandal and offence, I betook myself to God for protection and direction, that I might be kept from any measure of denying Christ or staving off my trouble upon any grounds but such as might be clearly warranted by the word of God. After much liberty in pouring out my heart to God, I was brought to weigh, that, as my paying of it might be by some interpreted a scandal and a sinful acquiescence in the magistrate's sinful command; so, on the other hand, my refusing to pay it would be the greater scandal, being found to clash against a known command of God, of giving to all their due, tribute to whom tribute is due; custom to whom custom is due; and knowing that Jesus Christ for that very same end, to evite offence, did both pay tribute himself and commanded his followers to do it, I could see no way to refuse payment of that cess, unless I had clashed with that command of paying tribute unto Cesar. So, to evite the scandal of compliance on the one hand, and disobedience to the magistrate in matters of custom on the other, I came to the determination to give in my cess to the collector of the shire of Ayr where I lived, with a protestation against the magistrate's sinful qualification of his commands, and a full adherence unto these meetings of God's people, called conventicles, which in the act he declared his design to bear down. I had no sooner done this, but I was trysted with many sharp censures from many hands, among which this was one, that my protestation was only to evite sufferings, and could be of no weight, being 'protestatio contraria facto.' But being truly persuaded that it

is the magistrate's right to impose and exact cess and custom, I could have no clearness to state my sufferings in opposition unto so express a command of God. And as to the magistrate's sinful qualification—having so openly declared and protested against it—I conceive the censure of this to evite suffering is altogether groundless; seeing the enemy has (subscribed with my hand before witnesses) a resolute adherence to that which they say this tends to overthrow; and if he mind to persecute upon the ground of owning conventicles, he has a fair and full occasion against me under my hand."

A few defended the refusal of payment upon the ground that the convention having been a packed assemblage, consisting of persons entirely under the influence of the crown—the chief and most powerful Peers being necessarily absent, and the commissioners of the shires and burghs returned through the sinful means of corruption and bribery, by promises held out and favours bestowed, by the managers and persons in power, for the purpose of compassing their own base ends—they could not be considered as the real representatives of the people, nor legally entitled to impose burdens upon the lieges; and therefore the people were not righteously obligated to pay.

Combined with the disputes relative to paying cess, were revived with redoubled vigour the discussions anent hearing the indulged; and "it was truly grievous to us," laments one who was himself a silent observer of what passed, "to see a young generation, endued with great zeal towards God and his interests, so far led aside in the improvement of it, as very little to know, or seldom to be taught, meekness and patience under affliction for Christ's sake, or charity and mutual forbearance in love! And to such a length did these heats come, that some did not stick to term the famous Mr John Welsh, because he would not run so high upon public, yea personal, acknowledgments of those steps of defection, an Achan in the camp."

Publications and preaching against each other succeeded, and the minds of the wanderers began to be embittered against the indulged, who they thought were sitting at ease in Zion, while they were combating upon the high places of the field. Another meeting of ministers was therefore held at Glasgow in the end of harvest, when fresh efforts were made by the aged veterans of the kirk to heal the wounds under which their common mother lay bleeding; the more distressing as inflicted by some of the most devoted

of her sons. A new and practical cause of dissension arose from the circumstances of the times and the situation in which the preachers and people were placed, which struck at the root of Presbytery itself, and that was the conduct of the younger brethren. As the duties of presbyteries and synods had been interrupted, the most popular preachers and their followers acted entirely upon their own responsibility, invaded the parishes of the indulged, preached as they listed, without being subject to any inspection or control, and had thus widened the unhappy rent, and given great advantage to the common enemy. The meeting disapproved of the practice of promiscuous preaching, any where or every where, as opportunities presented, because, when they intruded on the parishes of the indulged, they destroyed both the usefulness of their brethren, whose charges they disturbed, and their own, by depriving both of the restricted liberty they enjoyed, and which it was their duty to improve.

Instead, they recommended that the whole of the “outted” ministers, and those who had been regularly licensed by them, should associate themselves together in classes, and that every fixed preacher should belong to some class to which he should be subject and responsible; and those who were unsettled, and so could not ordinarily attend their own class or pseudo-presbytery, should attend such other as providence did direct. They at the same time disapproved of the last meeting at Edinburgh, being considered as an authoritative meeting, and pronounced it to have been only “a committee for consideration, and to report overtures to the general meeting of correspondents, who they were to call upon occasion.” Nevertheless, they were still of opinion, that the first foundation of unity must be order, and that there is no other way of producing a humble contrite temper, warming the already too much estranged affections, and preventing the like or worse for the future, than that the brethren who were moderate and like-minded, and who, they blessed God, were yet the very far greater and better number, should meet together and consult upon fit means for so desirable an end. The west country ministers mentioned, likewise, that they were in consultation with their brethren in the east, who had been treating with them, and who were also breathing after unity and peace.

What broke up these friendly communings, does not distinctly appear; but a very untoward circumstance took place in the parish of Monkland, near Glasgow, which certainly did not tend to promote their object. On

Sabbath, September 1st, the Rev. Mr Selkirk, afterwards minister of the gospel at Crichton, had been requested by the ministers of Glasgow to supply that parish, then vacant; but when he attempted it, he was violently opposed and kept out of the church by force, merely because he was favourable to the indulged, on purpose that one of the young preachers under the patronage of Mr Robert Hamilton, might have access to the pulpit to inveigh against them.

Were it not upon record, and recorded too by authority of the oppressors themselves, it would hardly be credited that many of the best and most inoffensive men in the country were banished and sold as slaves to the plantations, for no crime but simply because they would not regularly attend their parish churches to hear men preach, whom they believed incapable of instructing them in those duties which they saw themselves daily outraging; and choosing rather to assemble in the fields to wait upon the ministry of others whom they preferred, by whose discourses they were enlightened and edified, taught to live soberly, righteously, and godly in this present world, and directed in those paths which lead to glory and immortality in the next. Yet nearly one hundred persons, upon such accusations, writers! farmers, merchants, men and women, were delivered over, in the month of June this year, to Edward Johnstoun, master of the Saint Michael of Scarborough, now lying at Leith, for behoof of Ralph Williamson of London, who had given security to the council to transport them to the Indies, where they were to continue in servitude for life, and there to dispose of them to the best advantage. Among these was the noted Alexander Peden, who had laboured with great success in the north of Ireland. Having lain a long time in Edinburgh jail, he petitioned the council to be permitted to return to his old station, especially as he had been served with no indictment, nor was he charged with holding either house or field-conventicles in Scotland for twelve years. The council evinced their character by their tender mercies. They answered his petition by banishing him to the plantations for life, and ordained him “to lie in prison till he be transported.” He was said to have been an instrument of much good to his fellow-passengers, and cheered their spirits with the hopes of deliverance when they reached London.^[110]

¹¹⁰. “Mr Peden was a man of prayer, of natural sagacity, of spiritual discernment, and a great observer of the ways of Providence. He could foresee what would be the result of certain measures, and what calamities foolish and wicked men would bring upon themselves and

others; and when such things came to pass as he had foretold, his too credulous friends ascribed it to the gift of prophecy. At the same time, I am not so wedded to my opinion on this subject, as not to admit that men who lived in such intimate daily communion with God as Mr Peden did, may have had presentiments of things with regard to themselves and the church, of which Christians of a lesser growth can form no conception.”—M’Gavin’s note to the Scots Worthies, p. 516.

They were detained at sea five days longer than had been calculated upon; and when they arrived, Mr Williamson who should have received them was absent. Johnstoun, who had the charge of their maintenance when there, not knowing how he was to be reimbursed, and not being able to find any body to take them off his hands, nor seeing any prospect of the agent, set them ashore, and left them to shift for themselves. The English, who sympathized much with them when they learned the cause of their sufferings, afforded them every assistance; and the greater part of them returned safely home after an absence of nine months—several of them to suffer new hardships from their relentless persecutors.

Neither rank nor age were any protection against the cruelty of these men, who, careless about the mischief they inflicted, imposed upon the young oaths which they could not be supposed to understand, and ordered them to subscribe bonds they could never fulfil. The son of Lord Semple, at this time a student in Glasgow College, had a young man for his private tutor, of uncommon abilities and excellent character, to whom he was much attached. Him the council summoned to appear before them; but he, aware of the consequences, did not comply, and his pupil withdrew with him. They were both served with a charge of law-burrows. The young lord’s mother, however, who was a papist, interfered on his behalf, and represented that her son, through the neglect of those to whom he was recommended, or the corruption of the place, had been seduced and poisoned with bad principles; she therefore craved that they would recommend such persons as would watch over his loyalty and estate during his minority, and they appointed the Bishop of Argyle to provide a governor to that lord. Mr Wylie went abroad and remained at some of the foreign universities with several other pupils.

Alexander Anderson, a youth not sixteen years of age, was treated more harshly, because he would make no compliances. He was sent to the plantations. Yet he left a testimony behind him, which deserves to be remembered, dated Canongate tolbooth, December 10th, this year. In it he

remarked—“That he is the youngest prisoner in Scotland; and that the Lord had opened his eyes and revealed his Son in his heart since he came under the cross; that though he had much difficulty to part with his friends and relatives, yet he had now found, that fellowship with Christ did much more than balance the want of the company of dearest relations; that though he was so very young as that he could not be admitted a witness among men, yet he hopes Christ hath taken him to be a witness to his cause. He adheres to the work of reformation from popery and prelacy to the National and Solemn League and Covenants; and witnesses against the pulling down of the government of Christ’s house, and setting up lordly prelacy, and joining with them; and adduces a good many places of Scripture which he conceives strike against this practice. He makes an apology that he who is but a child should leave any thing of this nature behind him; but says he was constrained to it, to testify that God perfects strength out of the mouth of babes. He regrets the indulgence as what upon both sides had been matter of stumbling and offence among good people; and declares his fears that a black, dreadful day is coming upon Scotland: that it is good to seek the Lord and draw near to him. He leaves his commendation to the cross of Christ, and blesses the Lord for carrying him through temptations, and enabling him, one of the lambs of his flock, to stand before great men and judges; and closes with good wishes to all the friends of Christ.”

The Justiciary Court was this year engaged in equally cruel, though, could we divest them of their horrors, we should say more ludicrous transactions. “Eight or ten witches,” Lord Fountainhall tells us, “were panelled, all of them, except one or two, poor miserable-like women. Some of them were brought out of Sir Robert Hepburn of Keith’s lands; others out of Ormiston, Crichton, and Pencaitland parishes. The first of them were delated by those two who were burnt in Salt-Preston in May 1678, and they divulged and named the rest, as also put forth seven in the Lonehead of Leswade; and, if they had been permitted, were ready to fyle by their delation sundry gentlewomen and others of fashion; but the justices discharged them, thinking it either the product of malice or melancholy, or the devil’s deception, in representing such persons as present at their field-meetings who were not there. Yet this was cried out on as a prelimiting them from discovering those enemies of mankind. However, they were permitted to name Mr Gideon Penman, who had been minister at Crichton, but deprived for sundry acts of immoralitie. Two or three of the witches

constantly affirmed that he was present at their meetings with the devil; and that when the devil called for him, he asked, where is Mr Gideon, my chaplain? and that, ordinarily, Mr Gideon was in the rear of all their dances, and beat up those that were slow. He denied all, and was liberated upon caution”—certainly the only way of disposing of this case in consistency with common sense.

Yet were these poor unfortunates allowed to proceed with their confessions, which were regularly registered against them. “They declared the first thing the devil caused them do, was to renounce their baptism; and by laying their hand on the top of their head, and the other on the sole of their foot, to renounce all betwixt the two to his service. But one being with child at the time, in her resignation, excepted the child, at which the devil was very angry. That he frequently kissed them, but his body was cold, and his breath was like a damp air. That he cruelly beat them when they had done the evil he had enjoined them—for he was a most wicked and barbarous master. That sometimes he adventured to give them the communion, or holy sacrament; the bread like wafers—the drink, sometimes blood, and at other times black moss-water; and preached most blasphemously. That sometimes he transformed them into bees, ravens, and crows; and they flew to such and such remote places. Their confessions,” his lordship gravely adds, “made many intelligent, sober persons stumble much, what faith was to be adhibite to them.” How any intelligent person could hesitate a moment upon the subject, is strange; and it is humiliating and lamentable to add, that by grave, intelligent judges “nine of these women, upon their own confession (and so seemed very rational and penitent) were sentenced to be strangled and then burnt,” instead of being sent to some safe place of confinement to be dealt gently with; and five of them were accordingly immolated between Leith and Edinburgh, and other four burnt at Painston-moor, within their own parish where they had lived.

A case came before the privy council, not long after, which it is difficult to reconcile with the above, the proceedings were so diametrically opposite. Cathrine Liddel brought a complaint against Rutherford, baron-bailie, to Morrison of Prestongrange and David Cowan in Tranent, for having seized her, an innocent woman, defamed her as a witch, and detained her under restraint as a prisoner, also that Cowan had pricked her with long pins, in sundry places of her body, and bled and tortured her most cruelly. The bailie

pled that she had been denounced by other witches, laboured under a mala fama, and therefore had been apprehended; and that she and her son-in-law had consented to her being “searched” for the vindication of her innocence. With regard to the pricker, he had learned his trade from Kincaid, a famed pricker; he never exercised his calling without the authority of a magistrate; his trade was not condemned by any law, and all divines and lawyers, who have written on witchcraft, acknowledge that there are such marks, and therefore there may be an art for discerning them. But the Chancellor remembered that he had formerly imprisoned the famous Kincaid in Kinross, as a notorious cheat. The lords of the privy council therefore first declared the woman innocent, and restored her to her good name and fame, and ordered it to be publicly intimated the next Sunday in her parish church; then reproved Rutherford for his rashness, and forbade him in future to proceed in such a manner, declaring that the use of torture by pricking or otherwise was illegal; and, as a mark of their displeasure, ordered the pricker to prison.

Considerable changes had taken place among the higher authorities in Scotland this year. Since the appointment of Sir George Mackenzie of Rosehaugh to be king’s advocate, Sir George Mackenzie of Tarbet was appointed justice-general; Sir Thomas Wallace of Craigie, lord justice-clerk; the Bishop of Galloway was added to the committee for public affairs; Richard Maitland of Gogar, Sir George Gordon of Haddo, and Drummond of Lundin, admitted councillors; and the Marquis of Montrose made captain of the horse guards.

BOOK XIII.

JANUARY TO JUNE, A.D. 1679.

Public teachers and students required to take the oath of supremacy—A boy imprisoned for refusing—Husbands punished for their wives' contumacy—Landlords for their tenants—Overtures of the council—Country put under military law—Reprisals—Outrages of the commissioners of shires—Death of Sharpe—Escape of Veitch—Murder of Inchdarnie.

Early in the beginning of the next year, (January 2, 1679,) the council instructed the Archbishop of St Andrews and the Bishops of Edinburgh and Aberdeen, to call before them the principals, professors, and other office-bearers of their respective Universities, and also all the masters of the public schools within their boundaries, and require them to subscribe the oaths of allegiance and supremacy, and the declaration owning the government of the church by archbishops and bishops, and its establishment; which Mr Alexander Dickson, professor of the Hebrew language in the College of Edinburgh, Mr Heriot, teacher in the High School, Mr George Sinclair, Leith, Mr Allan, his assistant, Mr Alexander Strang, schoolmaster, Canongate, and Mr John Govan, his assistant, with Mr James Scot, junior,—refusing to do, were all removed from their respective charges, as examples to others; and it appears to have had a salutary effect, as we do not read of any “pedagogues” after this being prosecuted for contumacy. But it was again repeated and urged by proclamation, that the due execution of their acts, forbidding pedagogues, chaplains, and schoolmasters, to officiate without license from their respective ordinaries, should be observed, and that no youth should be suffered to enter into the second classes in colleges, or received as apprentices, until they obliged themselves to keep the church. The reiterated repetition of these injunctions strongly implies the repugnance which must

have existed among the people to the form of religion then endeavoured to be forced upon them, while it exhibits in the most glaring light that combination of clerical and magisterial despotism, which is a necessary consequence of a state establishment of any peculiar denomination, against the light and wishes of a numerous and instructed part of the community. So anxious, too, were these Scottish political puritans to preserve the youth from any infection, that they even carried their zeal the length of imprisoning a boy about fourteen years of age for being at a conventicle, and subjected him to several weeks' confinement, till some of their own number, ashamed of such proceedings, set the child at liberty.

Children may be restrained, but women being more difficult to manage, it was thought proper to punish their husbands, instances of which occurred in the cases of Sir William Fleming of Ferm, commissary of Glasgow, and of William Anderson, the late lord provost, who were both before the council the same day, and fined for the delinquencies of their wives, although they themselves seem to have been regular church-goers. Dame Margaret Stewart, the spouse of Sir William, and Mrs Macdougall, the spouse of the provost, were charged with having been present at a conventicle kept by Mr John Welsh, at Langside, in the parish of Cathcart, seated upon high chairs on either side of the said Mr John, and with having kept company with him at other times; in addition to which the Lady Fleming had allowed other ministers to preach, pray, or expound Scripture in the house of Ferm, aggravated by her entertaining the preachers before or after these exercises. The lady did not deny that she had heard Mr Welsh preach, and also confessed that she had been guilty of showing hospitality to the same faithful minister of Christ; for which the council fined Sir William, her husband, in the sum of four thousand merks, ordaining him to pay the money or find security before he left Edinburgh. In order, however, that a husband should not suffer for his wife's fault, whose conduct they yet allowed it was not in his power sometimes to control, they declared that if she survived him, then his heirs should retain as much as he paid of fine, together with interest from the time of payment, out of the first end of her jointure; and if she should die first, her executors were to be liable, which they alleged would be a check on the zeal of the ladies, if they paid no regard to the interest of their husbands. Lord Fountainhall, who records this decision, asks, with all due legal gravity, "But what if they have no executors? or if it be the husband or her own children?"

Not only were husbands thus prosecuted for their ladies' misdemeanours, but landlords were made accountable for the conduct of their tenants. A most oppressive instance occurred in the case of one George Turnbull, a baxter or baker in Edinburgh, himself a regular conformist. The council being informed that conventicles were held in the chamber of Isobel Crawford, which she rented in the flat of a house belonging to him, he was summoned before them and interrogated upon oath, as to the rent of the whole flat? He stated it at one hundred pounds per annum; and three conventicles being either proved or not denied to have met there, he was fined three hundred pounds, Scots, or twenty-five pounds sterling, for what he was neither accessory to, nor had any knowledge of.

Tyranny is never stationary when introduced into a country, until it either level all resistance, and degrade a nation into one quiescent mass of torpid subjection, or rouse the people to a pitch of determined enthusiastic irresistible exertion, which drives their oppressors from the land. At this period, the evident design of the Scottish rulers was to accomplish the former limb of the alternative, though it eventually led to the last. "The overtures" sent by the "committee for public affairs," to be proposed to his sacred majesty by the Duke of Lauderdale, to heal the schism and disorders of the church, plainly evidence this. Their grand object was to root out all conventicles; and now that the forces were raised, whereby these seditious disorders might, as they imagined, be easily and effectually suppressed, they represented to the king the necessity of his empowering the council to nominate sheriff-deputes, bailie-deputes of regalities, and stewart-deputes, to enforce their acts against withdrawers from public ordinances, keepers of conventicles, and those guilty of conversing with intercommuned persons or vagrant preachers, whenever the resident deputies had been remiss in their duty; and that his majesty's forces might be ordered upon all occasions, when required, to concur with these officers, or whoever might be appointed by them for the more speedy and effectual execution of their sentences and decrees. His majesty gave his hearty approval to the proposal, and the whole south and west of Scotland was placed under military law, as far at least as assembling to attend upon the ordinances of religion was concerned. All officers and soldiers of the standing army or militia were commanded forcibly to dissipate the persons found by them at conventicles, and previously indemnified for any slaughter or mutilation they might commit in so doing. They were to seize the preachers and as many of the

hearers as they could; the former to be carried to prison, the latter to be detained till they found sufficient caution to answer for their crimes according to law; and they were empowered to carry off the upper garments of such as they could not secure, in order to be used in evidence against them when afterwards apprehended. All arms, and the horses of all who were armed, were ordered to be seized, and the meanest sentinel was warranted to break open doors and other lockfast places in searching after suspected or intercommuned persons.^[111]

¹¹¹. The soldiers were thus distributed:—Three companies of foot in Canongate and Leith; one at Calder, and one at Stirling; one at Culross and Clackmannan; one at Cupar and Falkland; four at Glasgow; two in the shire of Ayr; and one in each of the shires of Renfrew, Lanark, and Galloway; and one in the town of Kelso. The eighteenth company to be at the major-general's disposal. One squadron of his majesty's horse-guards to be at Edinburgh, another in Stirling, the third in Fife, and the fourth in Borrowstounness. One troop at Glasgow, one in Merse and Teviotdale, and one in Galloway. The dragoons were to be distributed in companies of twenty-five each, Galloway, Ayr, Calder, Culross, and Lanark, or otherwise arranged as the general shall see necessary; but they were to be kept in constant exercise patrolling the various districts, that they might be ready and prepared at the shortest notice to execute the orders given for dispersing any rendezvouses of rebellion.

To stimulate their satellites in the work of proscription and blood, who were already allowed to share in the plunder of those they seized, murdered, or robbed, and to urge their activity against the more eminent, and therefore more hated of those men, of whom the earth was not worthy—they were now offered additional rewards for their destruction. The price set upon the head of that “notour traitor, Mr John Welsh,” dead or alive, was nine thousand merks; for his accomplices, Mr Semple and Mr Arnot, three thousand; for any field-preacher declared fugitive, two thousand; and for any other “vagrant” or itinerant preacher, five hundred merks. The reasons assigned for such high rewards, were worthy the hypocrites by whom they were expressed—although we cannot help being astonished at the unblushing impudence which could publish falsehoods, so widely known to be such, without even the shadow of verisimilitude, to shield them from contempt—these were, to prevent the people from being seduced from public ordinances, or debauched to atheism and popery, by being exposed to hear Jesuits or any other irregular persons who dared take upon them the sacred office of the ministry.

About the beginning of March, the military apostles entered upon their labours; and among their first exploits was the seizure of twenty-three

countrymen in Evandale, chiefly shepherds, whom they straitly examined upon oath, whether they had seen any men in arms going through the country during the last month. In the latter end of the same month, having been informed of a large meeting assembled to hear sermon at Cambeshead, in the parish of Lesmahago, near Lanark, a party went on purpose to disperse them; but on learning their numbers, and that many of them were well armed, they did not think it adviseable to attack them; but retiring to a little distance, they rifled some women who were going to the meeting of their plaids and Bibles, and took several men prisoners. When intelligence of this was brought to the meeting, a number of the men in arms were sent to demand the release of the prisoners and the restoration of the plunder. The officer in command refused to do either, and a scuffle ensued, in which the captain was wounded and a few of the soldiers taken prisoners, who were shortly after set at liberty without harm. As soon as an account of this trifling affair reached Glasgow, Lord Ross marched with a considerable party towards Lanark, and harassed the surrounding country for some weeks; and the council upon being apprised of it, ordered the commissioners for assessment in the shire to meet and provide hay, straw, and corn for the forces, who were immediately to be despatched thither to crush the rebels.

In Galloway, Gordon of Earlston and thirteen other gentlemen, who had been summoned for worshipping God or hearing his word preached in private houses or in the fields, or of speaking or lodging some others who had been guilty of the like enormities, were denounced and outlawed as if they had been malefactors of the deepest die. In Fife, three were fined; one in a thousand pounds Scots; another in one hundred; and the third in five hundred merks.

Pursuing their favourite measures, the prelatic myrmidons had successfully fanned, by their domineering insolence, the discontent they had widely kindled in the west, from which there appeared no means of escape, but by some desperate effort to which every day's report of fresh aggression was rapidly driving the people. A few of the many irritating incidents which occurred have been preserved, but the amount of the suffering can only be guessed. The slightest attempts at what has been improperly denominated retaliation have been carefully registered. Of these I shall give two specimens, which were then paraded as instances of their "hellish

principles,” and which, though they were not the actions of religious men, have been treated as the effects of fanaticism. The first was a trick played upon Major Johnston, one of the captains of the train-band of Edinburgh, a violent persecutor, but by whom was never discovered. “One night,” says Kirkton, “a boy came and told Johnston there was a conventicle in a certain close; for he was famously known for an active agent of satan to suppress preachings in the city and apprehend ministers, though sometimes he took money to overlook them. He (ever ready for such mischief) presently took a party of the town-guard, came and entered the house, where he found some men met about business, who seeing them enter so rudely with their weapons, did challenge him why he came so briskly. Finding no conventicle there, he and they began to jostle, (who were the aggressors I cannot tell,) but he with his men were the first provokers. Some of the gentlemen shot, as is said, a tobacco-stapple, or piece of broken money, at one of his followers, a soldier from the Castle, who fell, and died within ten days after. Another gripped the major himself, and cast him down on the floor; and they were so incensed that they offered to kill him. But he crying out wofully to spare his life, said—‘For Christ’s sake, send me not to hell,’ and swore he would never trouble any of these meetings again. Whether he was required to say this, or said it in his fear, I cannot tell; whereupon they spared his life, and let him and his party go not without some blae strokes they had got. The gentlemen then withdrew to their own quarters.

“The landlady of the house expecting trouble, left it also, which was shortly broken up, rifled, and made a prey of by order. The wretched man, the major, being enraged, forgetting the terror he was in, and all the vows he had sworn to grow better, did first stir up the council to seize the house, break open the door, and plunder all. On the morrow or third day, a narrow and formidable search was made throughout the town for strangers, and to find out the persons who had offered such an affront to their major, so useful a servant, not only to the town of Edinburgh, but to the prelates and their interest. Linlithgow’s men, with the town constables, were appointed to search. However, none of the persons present were found.”

I add as one instance of the manner in which these affairs were represented by the leaders of the persecution, the edition they gave of the affair to Lauderdale, in the despatches they sent to court. “Eighteen or twenty men, prompted by the bloody principles of their traitorous books,

did send for the major to the house of one Mrs Crawford, a known and irregular fanatic, and, at his entry discharged several shots at him; after which, with drawn swords, they beat, bruised, and threatened to kill him, if he would not swear never to dissipate conventicles, which he having refused, according to his duty, they mortally wounded him and some that were with him.”

Immediately the hue and cry was raised, offering a reward of one thousand merks to any person who should discover and apprehend any of the assassins. Several persons were mentioned, chiefly men already intercommuned themselves, or the sons or relatives of such as were, but none were ever taken or tried for the affray. The same day, the council ordered the magistrates to cause their constables take up a list of the names of all the inhabitants between sixteen and sixty, and deliver it to the council; and likewise a list of all the strangers who lodged in town, to be delivered each night at ten o'clock to the major-general or commanding officer in his absence, under a penalty of one hundred merks for each name omitted. And, besides, the magistrates were required to turn out of the burgh and suburbs the wives and families of all “outted” ministers and vagrant preachers, under a penalty of one hundred pounds, sterling, for each family who should be found residing there after the 20th day of the month. This capriciously cruel order, at once useless and tormenting, does not appear to have been very rigorously enforced by the magistrates, for “few ministers,” one of themselves informs us, “went off the town, but retired to more private houses, and hid themselves for a season, only it caused them disperse among different friends’ houses, and keep themselves under hiding for a season.”

The other incident was the murder of two soldiers at Loudonhill, under very suspicious circumstances, also by persons who were never discovered. Three privates of Captain Maitland’s company had been quartered upon a petty farmer who had not paid the cess, and continued there nearly ten days, behaving rather more civilly than many of their fellows. The man himself being sick, his wife or the maid-servant desired them to leave, otherwise they might repent it. They replied, they could not do so without orders. On a Saturday, one of them went to Newmills, where he remained over night. But about two o’clock on the Sabbath morning, five horsemen and as many foot came and knocked loudly at the door of the barn, where the remaining two

soldiers were lying. Supposing it to be their comrade, one of them rose in his shirt and opened the door, when he was saluted with—"Come out you damned rogues," and instantly shot through the body, he fell dead upon the spot; the other alarmed got up, and was attempting to shut the door, when he also received a shot which wounded him on the thigh. The assassin who was on horseback dismounting, seized the soldier by the throat, and they struggled together till another of the rogues came up and knocked him down. While he lay stupified by the blow, the murderers went off, taking with them all the arms and clothes they could find. The wounded man lingered a few days, and expired. The people of the house declared their ignorance of the whole matter, only the deceased had told them that the ruffian who shot him appeared to him to be one John Scarlet, a tinker; the rest he could not distinctly see, owing to the darkness and his own confusion. Scarlet was a notorious rogue who roved through the country with several women he called his wives, and who some years before this had been apprehended as a vagabond, and gifted to a French recruiting officer, but had contrived to raise a mutiny in the vessel which was carrying him across the channel, and made his escape; since when he had returned to his old avocation, and was one of the gang attending Captain Carstairs when Garret was wounded.^[112]

¹¹². Mr Laing (Hist. vol. iii. p. 97,) considers this as an act of retaliation on the part of the covenanters. Of this I cannot see any credible evidence. The language used by the assassins was not such as the covenanters would have employed, nor were the persons attacked of that station the persecuted would have deliberately formed any design of destroying. It is not unlikely that the soldiers were the objects of private revenge, and were wounded by some rough companions of their own, whom their insults had irritated.

Perhaps nothing places the conduct of the Scottish government in a more disgraceful light than the current belief which pervaded the country, that they were implicated in this foul murder, at least that they were capable of abetting it, although it be extremely difficult to perceive what advantage they could reap from it. All their proclamations and abuse of the fanatics availed nothing, but only to confirm the general report that they had authorized the assassination merely to throw additional odium on the already grievously calumniated wanderers. The heritors of Ayrshire, who had seen their country devastated when there was much less cause, took the alarm, and despatched the Earl of Loudon, Lord Cochran, and Sir John, to explain the state of the country, and to express their detestation of the deed.

The armed field-meetings, attended by numbers of the commonalty, had increased on the confines of their own and the neighbouring shires, occasioned they alleged by a few unsound, turbulent, hotheaded preachers, most part whereof were never ministers of the church of Scotland, making it their work to draw people to separation and schism from pure ordinances, and instil into them the seeds of rebellion by their exhortations and doctrine.

Unhappily, the contentions among the persecuted continued, and a root of bitterness sprung up among them, which produced the most lamentable fruit. Instead of dropping minor differences, they seemed to set a higher value on them as the dangers attendant on holding them increased. Paying cess and hearing the indulged became bars to fellowship; and Robert Hamilton, who now took the lead, publicly forbade any of the compilers to join with them or bring arms; nor was it without difficulty that Richard Cameron got them to forbear proceeding with such an high hand at such a time; but although he smothered these heats for a season, there was a secret heart-burning left which he could not extinguish. Yet it is impossible not to sympathize with the side who felt most keenly, even when a knowledge of the consequences may have led us to disapprove of their too rigid particularity, for which they themselves suffered so severely. At all events, when men have evinced the purity of their motives by their disinterestedness and the sincerity of their principles, by suffering for them unto the death, it becomes those who are sitting at ease, and not exposed to their trials, to speak and write very tenderly about them.

Oppressions under form of law kept pace with those without it;—if the mere acts of men in place can be called in any sense legal while they are trampling under foot the constitutional rights of their countrymen, simply because these men happen to hold offices, the names of which are in the statute-book, or pervert possession of power, a proper exercise of which would be legal. The council, the willing slaves of the clergy, eagerly laid hold of the story of the popish plot in England to increase their severities against field-preaching, the antipathy at which raged with every symptom of monomania among the prelatie hypocrites. They issued a fierce proclamation against the papists, and did nothing to disturb their increasing numbers; but they nominated an especial committee of thirteen of their own number, to meet during the spring vacation, to whom they delegated the judicial authority of the bench and the active duties of the executive. It

comprised the two Archbishops of St Andrews and Glasgow, and the Bishop of Galloway, with the law officers of the crown, any three to be a quorum; and as the Bishop of Galloway had obtained a dispensation allowing him to reside constantly in Edinburgh, they were always certain of an ecclesiastical president or director. They were instructed to issue orders for executing the laws as to the public peace, particularly those against conventicles; to call before them noted delinquents, secure their persons and examine them upon oath, pronounce sentences and decreets against the guilty, and issue such orders as they should find necessary to magistrates and officers of the forces; and with power to nominate a committee of themselves by turns, to perform what was committed to them, or call the council upon any emergency; and the whole concluded with the ominous charge to use diligence in discovering any powder or lead lately brought into the kingdom. On the report of this committee (May 1st), the council ordered the Earl of Linlithgow, commander-in-chief, to despatch a body of horse, foot, and dragoons, to scour the country, especially where Welsh, Cameron, Kid, or Douglas kept their conventicles; to apprehend them where they might be found; and, in case of resistance, to pursue them to the death, and declared that neither officers nor soldiers should be called in question, civilly or criminally, for the same.

Armed with such powers and secured by such indemnity, it may be readily supposed what ravages would be committed by a banditti, composed, as the standing army of that day in Scotland was, of all the idle, dissolute reprobates that could be collected. These roamed through the country, objects of hatred and dread to the humbler ranks.

The commissioners of shires and sheriff-deputes were more obnoxious to the middling and higher classes, whom they summoned to their courts, and plundered and imprisoned if they appeared, or intercommuned if they did not. The cruelties they exercised upon the domestics of the petty heritors who were forced under hiding, to make them discover the haunts of their relatives or masters, are almost incredible, and rivalled the tortures of the inquisition; beating and wounding with their muskets or bayonets were common, and burning matches were often applied between the fingers to extort a confession from these faithful confidants of the suspected. When the honest, industrious tenantry and small farmers were ruined by fines, their houses were pointed, and themselves turned out to bear the pelting of

the pitiless storm, nor dared their neighbours either shelter or sooth them, under pain of being also sent to wander houseless on the heath—reduced to desperation for “disobeying the discipline of the church,” or “wilfully withdrawing from the ordinary meetings for divine worship,”—it would not have been at all wonderful if the wanderers had perpetrated the horrible deeds of which they were falsely accused; nor can it appear strange, when every avenue to relief was shut up, that they should take whatever methods of redressing their wrongs they could command; neither was it conduct unprecedented in history, their seeking to rid themselves of their most violent, lawless persecutors, of whom they could not by any legal or moderate measures get free, by methods which were not strictly legal. It would require powerful logic to convince persons suffering under the lash of distorted laws, that they were in duty bound to allow their persecutors the safety and privilege of men who had never violated law.

But the death of Sharpe, however it might be justified or extenuated, was altogether accidental at the time, and cannot be traced to any other source than his own atrocious tyranny. His agents were extremely active in Fife; for the numerous conventicles held in his own diocese particularly annoyed him. One of his especial “familiar” was William Carmichael, a bankrupt merchant, formerly a bailie in Edinburgh, now one of the commissioners for suppressing conventicles, of licentious and profligate habits, consequently greedy of money, and fit for any vile job to procure it. His enormities had rendered him an object of general detestation, but his excessive exactions had ruined many respectable heritors and tenants, to whom he was become particularly obnoxious. Several of these individuals, some of whom were gentlemen of good families, interdicted the common intercourse of society, and hunted like wild beasts on the mountains, determined to take personal vengeance on this vile instrument of their unjust suffering;^[113] and for this purpose, nine of them, pretty early on Saturday morning, the 3d of May, had traversed the fields about Cupar for a considerable time, in search of the commissioner, who they understood was hunting on the moor; but a shepherd had informed him that some gentlemen on horseback were inquiring after him; and he not being very anxious to encounter them, left his sport abruptly, and returned home.

¹¹³. At a meeting held April 11, “at John Nicholson’s house, colier, beside Lathons, the persons who had been poinded and otherways maltreated, judged it their duty to take some course with Carmichael to scarr him from his cruel courses; and advising how to get him, resolved to wait

on him either in his coming or going from St Andrews, or other place in the shire, [he] being to sit in all the judicatures in the shire, for taking course with the honest party; and they resolved to fall upon him at St Andrews. Some objected, what if he should be in the prelate's house, what should be done in such a case? Whereupon all present judged duty to hang both over the post, especially the bishop, it being by many of the Lord's people and ministers judged a duty long since, not to suffer such a person to live, who had shed and was shedding so much of the blood of the saints, and knowing that other worthy Christians had used means to get him upon the road before."—Russell's Account, p. 110.

They also, tired of their fruitless search, were talking about their further proceedings, when a boy came from Baldinny—Robert Black's farm—and said the goodwife had sent him to see how they had sped. They told him they had missed him, and asked in return if he knew any thing of three of their number who had not joined them. He told them they were gone. They desired him to go back and see where they were gone to, which he did, but quickly returning, said—"Gentlemen, there is the bishop's coach; our gudewife desired me to tell you," which they seeing betwixt Ceres and Blebo-hole, said—"Truly this is of God, and it seemeth that God hath delivered him into our hands; let us not draw back but pursue."

Whereupon all agreed to follow; but the question was started, what should be done with him? "I will not move one foot farther," said George Fleming, "for if we spare his life our hazard shall be no less, and likewise his cruelty shall be greater; surely we have a clear call to execute God's justice upon him, now when in such a capacity." So said several others. Hackston of Rathillet opposed the shedding of blood; and besides, he thought it was an act of the last consequence to the nation and the church, and what required much greater deliberation. James Russell, who writes the account, said "it had been born in upon his spirit some days before in prayer, that the Lord would employ him in some piece of service or it was long, and that there would be some great man who was an enemy to the kirk of God cut off." "He was forced to devote himself to God, and enter in a covenant with the Lord, and renewed all his former vows and engagements against papists, prelates, indulgences, and all that was enemies to the work of God and opposed the flourishing of Christ's kingdom; and that he should not refuse nor draw back whenever the Lord should call him to act for him, as far as the Lord should enable him and give him strength, though there should be never so much seeming hazard."

After alluding to the case of Mitchell, he was asked what they should do with the bishop. He replied, he durst not but execute the justice of God upon him “for the innocent blood he had shed.” William Danziel spoke to the same purpose. Then they all with one consent urged Rathillet to command them that they might not delay.^[114] Rathillet declined. “The Lord,” he said, “was his witness, he was willing to venture all he had for the interest of Christ, yet he durst not lead them on to that action, there being a known prejudice betwixt the bishop and him, which would mar the glory of the action; for it would be imputed to his particular revenge, and that God was his witness he did nothing on that account; but he would not hinder them from what God had called them to, and that he would not leave them.” On hearing this, John Balfour cried out—“Gentlemen! follow me!” Immediately they all set off at the gallop across the hills for Magus moor. James Russell outrode the others; and seeing the bishop, who had taken the alarm, and was looking out at the door, cast away his cloak, and cried “Judas be taken.” The bishop screamed violently to the coachman—“Drive! drive! drive!” The coachman drove furiously, endeavouring to keep off the pursuer by striking his horse with his whip, on which Russell fired, and called to his companions to come up. They throwing away their cloaks, put their horses to the speed, and kept firing at the coach, several shots passing through it. One of the servants having cocked his carabine, was about to fire when Alexander Henderson gripped him by the neck, threw him down, and pulled it out of his hand. Andrew Henderson outran the coach and struck the horse in the face with his sword. Russell at the same time ordered the postilion to stand, which he refusing, he struck him on the face, dismounted him, and cut the traces of the coach, which stopped it till the rest came up.

¹¹⁴. The names of the persons present were—David Hackston of Rathillet, John Balfour of Kinloch, James Russell in Kettle, George Fleming in Balbathie, Andrew Henderson, Alexander Henderson in Kilbrachmont, William Danziel in Caddam, James, Alexander, and George Balfour in Gilston, Thomas Ness in P——, and Andrew Guillan, weaver in Balmerinock, who had been put out of Dundee for not hearing of the curate.—Russell’s Account of Archbishop Sharpe’s Death, p. 111, 112.

They found the bishop in the coach with his daughter, both unhurt, though several shots had passed through the carriage. Opening the door, Russell, who took the lead, again desired him to come out, that no prejudice might befall his daughter, whom they would not willingly hurt. He still hesitated, protesting that he never wronged any of them. Russell declared

before the Lord that it was no particular interest, nor yet for any wrong that he had done to him, but because he had betrayed the church, like Judas, and for eighteen years had wrung his hands in the blood of the saints. John Balfour, on horseback, said—"God is our witness, it is not for any wrong thou hast done to me, nor yet for any fear of what thou couldest do to me, but because thou hast been a murderer of many a poor soul in the kirk of Scotland, and a betrayer of the church, and an open enemy and persecutor of Jesus Christ and his members, whose blood thou hast shed like water on the earth, and therefore thou shalt die;" and fired a pistol. James Russell desired him the third time to come forth, and prepare for death, judgment, and eternity. The bishop said, "Save my life, and I will save yours." The other replied, "I know it is neither in your power to save us or to kill us; and I again declare, it is not for any particular feud of quarrel I have at you which moves me to this attempt, but for the blood shed, not only after Pentland, but several times since, and for your perjury and shedding the blood of Mr James Mitchell, and having a hand in the death of James Learmont, which crimes cry with a loud voice to Heaven for vengeance; and we are this day to execute it," and thrust his shabel at him. He then offered money. "Thy money perish with thee," was the reply; and one of the company remarked, "seeing there have been so many lives taken for him, for which their is no sign of repentance, we will not be innocent if any more be taken that way." Another wounded him with a sword, and he cried, "Fy, fy, I am gone."

Being called to come out of the coach, "I am gone already," he said, "what need more." He was desired to pray; but, turning towards the captain, he said, "Save my life; for God's sake, save my life! save my life!" offering him money, and promising to lay down his Episcopal function. He told him he had shown no mercy, and needed expect none. Seeing Rathillet at a distance, he crept on his hands and his knees towards him, saying, "I know you are a gentleman, you will protect me." Mr Hackston said, "I shall never lay a hand on you," and retired a little. He then turned to the others, and piteously entreated that they would save the life of an old man, and he would obtain them a remission. Balfour told him they could not spare him; and if he would not call on God, they knew what to do.

His daughter attempted to interpose, as she had done before, between her father and his antagonists, when Andrew Guilan kept her back, to secure

her from hurt or danger. She fell on her knees, and, weeping bitterly, joined her entreaties with those of her father. Guillan also pleaded for his life; but it was now impossible for them to listen to any supplication. The bishop was a man whose most sacred oaths could not be trusted; and, to save their own lives, they were under the cruel necessity of taking his. Another volley of shot was their answer to his supplications, and he fell back and lay as dead. They then went off a little; and his daughter attempting to raise him, exclaimed—"Oh! there is life in him yet;" which they hearing returned, and James Russell "haked his head in pieces." His daughter, the miserable spectatress of this sad event, cursed him, and called him a bloody murderer. He answered, they were not murderers, for they were sent to execute God's vengeance on him.

As soon as they had finished the unfortunate primate, they went to the coach, and took a pair of pistols and a trunk, which upon opening, they found contained only his daughter's clothes, and left untouched, but took from another a little box and all the papers they could find.^[115] They likewise disarmed his attendants, five in number, and carried away their arms. It was not a little remarkable, that though this tragedy was acted at noon, in broad day, and parties of soldiers were constantly patrolling the country, along with numbers of sheriff-officers' underlings and the archbishop's own numerous myrmidons; yet the actors were not interrupted in their performance, nor did any of them ever suffer for the part they played. Two only, who were present as spectators, were executed, and one of them, the poor weaver Guillan, had been called, most unexpectedly on his part, to hold the horses.

¹¹⁵. "They took nothing from him but his tobacco-box and Bible and a few papers. With these they went to a barn near by. Upon the opening of his tobacco-box, a living humming-bee flew out. This either Rathillet or Balfour called his familiar; and some in the company, not understanding the term, they explained it to be a devil. In the box were a pair of pistol ball, parings of nails, some worsted or silk, and some say a paper with some characters, but that is uncertain."—Russell's Account, &c. p. 421, note.

Among the papers were found—a gift of non-entries of several gentlemen's estates in Fife and elsewhere, with instructions and informations how to prosecute in order to turn the present possessors out of the lands; the patent of the bishopric of Dunkeld in favour of Mr Andrew Bruce, archdeacon of St Andrews; several presentations to churches of

which the king was patron; instructions to conjunct-deputies; and new gifts of the heritors fines.

Sharpe, when he met his fate, was returning home from Edinburgh, where he had been arranging matters for heating the fiery furnace yet seven times hotter, previously to his going to court, and had there drawn out a proclamation afterwards issued, which, had it been known, would have justified the extremest measures on the part of the proscribed, persecuted wanderers, even had he not previously placed himself out of the protection of the law. By it, whoever should go with any arms to field-meetings, were to be proceeded against as traitors; and lest any should suppose, from the rigour used against such as went to conventicles in arms, that there was any intention to slacken the prosecutions against other field-conventicles, all judges and officers were required to put all former laws and commands in rigorous execution, even against those who frequented field-meetings without arms, repeating as the reason of such severity, the foul and absurd calumny “that those meetings do certainly tend to the ruin and reproach of the Christian religion, and to the introduction of popery and heresy, the subversion of monarchy, and the contempt of all laws and government.”

Thus fell James Sharpe, Archbishop of St Andrews, Primate of Scotland, a man universally detested by those whom he had deserted and betrayed, and not much regarded by those to whose ranks he had gone over. He has left a memory and a fate as woful beacons to religious turncoats, who assume and relinquish the garb of a profession for secular purposes, without feeling the influence or experiencing the consolations of real religion, who find the road disappointment and the end death.

Not less remarkable was the escape of Mr William Veitch, who had been marked out to die by the primate. Having been denounced for being present at Pentland, although he had not been there, he retired to Northumberland, where he had resided with his family for several years, exercising his ministry with great success among a numerous congregation at Harnam-hall, whence he removed to Stauntin-hall in 1677, where he remained till January this year, when he was taken from his bed about eight o'clock in the morning, and carried prisoner to Edinburgh. On the 22d of February, he was brought before a committee of the council, whereof Sharpe was preses. As he was coming along the pavement, the Earl of Mar's gentleman came to him from his master, desiring him to give the archbishop his titles, as that

would likely prevail much with the bishop for his liberty. Veitch sending his service to the Earl, answered that he was resolved to act according to his light. The orders from the king to the council were, that they should proceed against him with all diligence, according to the utmost severity of law, his majesty being fully resolved to put it strictly in execution, in order “to dash the groundless hopes of knaves and fools, who expected a toleration!” The archbishop put many questions to him to see if he could ensnare him, which were urged by Paterson, the Bishop of Edinburgh, one of which was —“Have you taken the covenant?” He answered, “All that see me at this honourable board may easily perceive that I was not capable to take the covenant when you and the other ministers of Scotland tendered it.” At this the whole company fell a laughing, which nettled the bishop. “But,” says he, “did you never take the covenant since?” To which he replied, “I judge myself obliged to covenant away myself to God, and frequently to renew it.” At which Paterson stood up and said—“My lord, you will get no good of this man; he is all for evasions. But,” said he, “was you not at Pentland fight?” To which he replied, “If you will give me power and liberty to seek witnesses to prove it, I was alibi, having been all that night and morning at Edinburgh.”

Being put out a considerable time, he was called in again; and the bishop said—“Hear your confession read.” They had interlined many sentences to make him a criminal, which, when he heard read, he denied that he had spoken, and refused to subscribe. “What!” said the bishop, “will you not subscribe your own confession?” “Not I,” said the prisoner, “unless you write it *in mundo*, without your additions.” At which they appeared rather irritated, till the Earl of Linlithgow, after some conversation with the others across the table, said, “My lord St Andrews, cause write it *in mundo* to the young man.” It was then fairly written out, and he subscribed it; but it was found not to contain any thing on which they could found a criminal charge, and he was remanded to prison.

This was not, however, the only villanous attempt against his life. A letter was brought from the king to turn him over to the Justiciary, which was equivalent to a warrant for his execution. He himself had written to Lauderdale, who was his own relation and a professed friend, to give force to which some ladies obtained a letter from Archbishop Paterson to the Duke in his favour; and his brother Sir William brought it open and read it

to Mr Veitch. It was directed to Dr Hicks, the Duke's chaplain, to present, which was done accordingly; but when an answer was called for, Hicks showed a letter he had received per post, forbidding him to present it! Fortunately for the prisoner a representation of his case was laid before the Earl of Shaftesbury by Mr (afterwards Sir) Gilbert Elliot, which he had brought from Scotland, containing the sentiments both of English and Scottish lawyers, all of them declaring the illegality of the procedure against him in both kingdoms. The Earl having shown it to Prince Rupert, the Duke of Monmouth, and several other persons of rank, they concurred with him in petitioning the king to send him back to England that he might be tried there, because he was a naturalized English subject from his long residence, and the law had been violated by his seizure; it would destroy men's confidence in their protection. But all the answer made by the tyrant was a profane scoff, uttered in the language of his proper prototype—"I have written with my own hand to execute him; and what I have written, I have written." Upon this the Earl of Shaftesbury told his majesty, that, seeing the petition of so many of the greatest peers in England now standing before him, for a thing so just and equitable, could not be granted, the new parliament for inquiring into the popish plot was now sitting down, and no person that they found guilty, presbyterian or other, should escape death, if the parliament would take his advice and the lords now before the king; and then his majesty should have pears for plums.

On leaving his majesty, the Earl sent his servant to Mr Elliot, who was in waiting for the result, and who immediately on learning it went to the door of the parliament-house and distributed copies of the petition to each of the lords as they went in. Shaftesbury himself followed; and finding their lordships busy reading it, asked what they read; and being told, replied—"O, my lords, is that the text? Come, I'll give you the sermon upon it;" and explained the minister's case, which induced many of them to say, if that be truly so, we'll pass an order immediately when we sit down for his remanding. A Tory lord seeing the impression thus made, taking the petition in his hand, went instantly to the king, and begged his majesty to consider that this was not his sixteen years' old parliament, and he knew not what they would do; and it was dangerous for him on so mean an account to set two kingdoms by the ears: therefore he begged that he would presently send for Lauderdale to despatch an express to Scotland, and he would report it to the lords to take them off their proposed measure; which was done. And this

order to stop proceedings was received by the Justice-General Tarbet, as he was entering the Parliament Close to open the court, where Veitch would have inevitably been condemned; instead of which, the court was dissolved and the prisoner remanded to prison.

His deliverance from jail shows the low arts to which court-intrigue sometimes subjects great men. The Duke of Monmouth took an interest in Veitch. The Duke of York was instigated by his priests against him, on account of his weight as an eminent opponent of popery in the borders, where the emissaries of Rome were numerous and active. Lauderdale disliked Monmouth as a rival, and attached himself to York;^[116] and so wonderfully are events in providence arranged, that causes sometimes produce effects the very opposite to those we would most naturally expect. Lauderdale's dislike to Monmouth effected the release of Veitch—a measure which Monmouth had desired and solicited in vain, and which York had so willingly and so successfully resisted. Lord Stair, as he afterwards told Mr Veitch, having the draught of his sentence of banishment^[117] in his pocket, happened to visit Lauderdale that week Monmouth took post from Scotland, and that his spy had sent him an account of what Monmouth had said when he rose from the council-table respecting the relief of Mr Veitch as soon as he saw the king. Lauderdale giving this letter to Stair to read, he says, “Now, my lord, Monmouth is upon his way, and is like to relieve this prisoner, I think it were best for your lordship to send for the king's advocate and the rest of the lords who are here, and we will get the sentence of banishment out of the kingdom passed upon him before Monmouth come up; and if the king have any scruple about it, his advocate and the other lords will clear him thereanent. This will be for our credit, and stop the mouths of all in Scotland who reflect on our severity; and if he come and do it, the dirt will lie upon us.” To which Lauderdale replied—“On my conscience, we will do it, and Monmouth shall not have the honour and credit of it. We'll send for the lords instantly, and tell the king a new story that will make him do it;” which they did; the king superscribing and Lauderdale subscribing the new sentence, and also an order from the king to his council to put the same in execution upon sight. Stair then sent for Mr Elliot the prisoner's agent, and delivered it to him.^[118]

[116.](#) The unfortunate Monmouth, who possessed a kind and feeling disposition, was constantly watched by the Duke of York, who feared and hated him in proportion as he was loved by the English nation. Certainly at one time that nation looked forward with fond expectation to his succession. Lauderdale also had spies around the luckless prince during the time he was in Scotland.

[117.](#) From Scotland to England!—a strange banishment a southron would think!

[118.](#) *Memoirs of Veitch*, pp. 112, 114.

On the same day on which Sharpe paid the penalty of his accumulated guilt, Andrew Aytoun, younger of Inchdairney—characterized by the venerable Wodrow as an excellent young gentleman, who had the blessing of early piety, and who when at the University of St Andrews had spent much of his time in prayer—was wantonly murdered by a soldier belonging to one of those parties ordered to scour Fife in consequence of the primate's death. He had been very active in procuring Presbyterian ministers to preach the gospel, instead of the worthless incumbents who prostituted the sacred office in Fife; and for this, when little more than seventeen years of age, he was intercommuned, forced to quit his father's house, and seek refuge with some of his relations in Morayshire. While there, Mr Walter Denvon was sent south a prisoner. Inchdairney followed; and gathering some of his young acquaintances in Fife, resolutely rescued the good man.

After this exploit, he continued lurking in his father's house till the 3d of May, where he dined with the minister who gave Wodrow the information. They parted about two o'clock, neither of them having heard any thing of the bishop's catastrophe. Thence young Inchdairney went to Lady Murdocairnie, his aunt's house. When not far from Auchtermuchty, he saw a party of horse riding furiously on the Cupar road, and quickened his pace to escape them. The officer of the troop ordered one of his men to pursue, which he did; and firing struck Inchdairney's horse; then firing again, mortally wounded himself, two musket balls—for it was double shotted—passing through his body. The bleeding youth could with difficulty keep his seat till he reached a house not far off, where he was put to bed, and notice sent to Sir John Aytoun of Aytoun, a relation of his own, whose seat was quite near, who immediately came, having first despatched a servant to Cupar to fetch a surgeon. The commander of the party, however, probably anticipating such a message, had, with a refinement of cruelty, given orders that no surgeon should leave the place without his permission; and when

applied to, he sent some of his soldiers to bring the wounded gentleman prisoner to Cupar. When they came, Sir John Aytoun represented the inhumanity of carrying any person in his situation three miles, and offered bail or to entertain them till surgical aid was procured; but nothing could prevail. He was placed upon one of their horses, and hurried immediately away. Through loss of blood, he fainted four times upon the road. When he arrived, the magistrates of Cupar allowed him to be carried to an inn, where he languished till next day about twelve o'clock, when he died in much serenity and peace. His parents were with him, and saw him die. The person who murdered him is said to have been a relation of his own, who came to him when he was dying and entreated his forgiveness, which he frankly gave, accompanying it with serious exhortations; but the unhappy man, some years after, died in great agony of mind, reproaching himself with the deed.

BOOK XIV.

MAY TO DECEMBER, A.D. 1679.

Outrages of the soldiery—Dissensions among the persecuted—Commutations in the West—Rutherglen declaration—Rising of the Presbyterians—Skirmish at Drumclog—Royal troops retire to Edinburgh—Divisions among the Presbyterians—Arrival of Monmouth—Battle of Bothwell Bridge.

Matters were now fast hastening to a crisis, especially in the west country. The licentiousness of the soldiery increased by indulgence; and after they had, through the accurate intelligence of the incumbents, pillaged every intercommuned or recusant inhabitant worth plundering, especially in the rural districts, their insatiable greed did not spare the conformist part of the community. Money was their great object; and when they could not obtain that, they vented their rage upon the property they could not carry off. In some places, they thrashed out the corn and threw it into the stream, and took the meal and trode it in the dunghill; in others, they set fire to the stacks, and if there were any grain in the garner, cast it into the flames, while they rioted on all the stock or whatever edibles they could lay their hands on. In this indiscriminate pillage, many suffered who made no great pretensions to religion, and who, without that grand counteracting principle, were by no means disposed to take patiently the spoiling of their goods by military ruffians. These, from motives of self-interest, were led to make common cause with the Presbyterians, in defence of their national rights and to avenge their civil oppressions.

The small armed conventicles finding it hazardous to meet in the neighbourhood of the garrisons, withdrew to more retired situations, and assembled in greater numbers, while their discussions involved the general

principles of civil liberty, as well as the more isolated question of their right to hear the preaching of the gospel. The constant harassings they met with from the soldiers in going to or coming from the meetings, who being pre-pardoned for whatever outrage they might commit, were restrained by no motive but fear, obliged them to keep as much and as long together as they could. Their little parties gradually approximated each other; and all converging towards one focus, they at length mustered a formidable body; but not all of one mind.

Ministers who wished to pursue moderate measures, laboured under peculiar disadvantages. Some idea may be formed of the mental struggles and outward difficulties of these worthies from the account which Mr Blackadder gives of himself at this time. He ventured to preach at Falamoor, in Livingston, on the last Sabbath of May this year, which happened to be the day before Drumclog, though neither he nor the people knew of it. His subject led him to speak of defensive arms; but in handling it, it appeared he had by no means given satisfaction. Contrasting their spiritual with their military preparations for their meetings, he proceeded:—"When you come forth with swords in your hands to defend the worship of God, it is well; but whatever you endeavour with your hostile weapons, I would have you trust little to them." And he exhorted them to put their confidence in God rather than in their own instruments of war.

After sermon, some honest men came to him as they used to do. They were on their way westward, having heard the rumour of their friends combining in arms. He perceived them looking angry and discontented-like. "We fear, sir, you have discouraged the people by not putting them more forward to appear in arms. They needed a word of exhortation and upstirring, and not to cool their zeal as you have done." "I do not," said he, "condemn honest endeavours to redress your wrongs; I should be the first in cases where there is clearness to stand up and defend the gospel; but I fear forwardness without deliberation." His conscientious hearers and he, upon some further conference, came to a better understanding; but he adds—"About this time there were several people more froward than godly, prudent, or charitable, who upbraided ministers that they did not press the people more, or preach so and so, according to their mind; but little did they consider, how much ministers were diffculted to give advice therein, perceiving the case so intricate for want of clearness; yet the few who

stickled underhand still continued to meddle, so that poor people were put to great uncertainty, and knew not how to behave; their consciences were tortured; their hearts grieved; and their spirits fretted. But the council still furious to suppress their meetings by sending forces from time to time to dissipate them and take prisoners, was the main cause why they went forth in arms; otherwise they would not, if their rulers had not by their violent persecution provoked them to that necessity.

“Though unable from indisposition himself, he hindered none from appearing in arms who were clear and in capacity to assist, although he was much jumbled in his own mind anent that particular; and used to say, both before and after, he did not see a call for rising so clear as he could like. Though he always revered the providence of the rising, and approved honest designs, yet his opinion was, that the Lord called for a testimony by suffering rather than outward deliverance.”^[119]

¹¹⁹. Mem. of Rev. John Blackadder, p. 229 et seq.

Other equally excellent men considered the question to be, Whether shall we consent to the preaching of the gospel being suppressed altogether, or shall we assert it at the point of the Sword? With regard to civil liberty, there could be no dispute. Where it is concerned, the question comes shortly to this, when tyranny reigns triumphant, “Is there, or is there not, a rational prospect of success in resistance?” But here the question was, Is it our duty with or without a prospect of success, to lift up our testimony against the iniquity of the times? nay, should there be only a prospect of sealing it with our blood? And they hesitated not to reply in the affirmative; and the first rencounter seemed to set the stamp of wisdom to this resolve, but whether more propitious to the cause of religious liberty has been thought problematical; and of this opinion were the most influential of the persons who directed the operations of the great western meeting.

This meeting, obliged for mutual protection to assume the appearance of an army, were guilty of no acts of hostility, but their formidable front alarmed the soldiers, who reported to the council, with many exaggerations, the frequency and the force of those rendezvouses of rebellion. These produced more severe instructions for the soldiers to act with greater promptness; and thus both sides stood as it were ready prepared for conflict in the mutual apprehensions entertained of each other. At this juncture, the

ultra-covenanters were headed by Robert Hamilton, brother to the Laird of Preston, who, whatever might be his abilities for theological controversy, possessed none of the commanding powers necessary for directing the movements of men maddened by oppression, and driven by the denial of every legitimate mode of redress, to the ultimate resort of a brave people—the assertion of their natural rights on the field. Besides being wholly destitute of military talents, his mind was contracted by his associating solely with those who were of his own sentiments, and seemed more anxious to secure the triumph of a party than the great cause for which all were contending.

Uncertain as to the issue of the present commotion, a number of those who composed the general meeting were anxious to publish to the world their “Testimony to the truth and cause which they owned, and against the sins and defections of the times.” This Hamilton urged as what would bind them together, and by explaining their principles, be an inducement for others to join. A majority agreeing, he, along with Mr Thomas Douglas, one of their ministers, was appointed to go to some public place, escorted by a strong party of about eighty armed men, and publish their declaration. The 29th of May, the anniversary of the king’s birth and restoration, was chosen as the most appropriate one for this their solemn act; and the royal burgh of Rutherglen was pitched upon as the place.

Accordingly, when the burghers of this little county-capital were displaying their loyalty, the small party entered in the afternoon, burned the various acts enumerated in their Testimony, then extinguished the bonfires, and affixed upon the cross a copy of “the Declaration and Testimony of some of the true Presbyterian party in Scotland.” It ran thus—“As the Lord hath been pleased to keep and preserve his interest in this land by the testimony of faithful witnesses from the beginning, so some in our days have not been wanting, who, upon the greatest of hazards, have added their testimony to the testimonies of those who have gone before them, and who have suffered imprisonments, finings, forfeitures, banishment, torture, and death, from an evil and perfidious adversary to the church and kingdom of our Lord Jesus Christ in the land. Now, we being pursued by the same adversary for our lives, while owning the interest of Christ, according to his word and the National and Solemn League and Covenants, judge it our duty (though unworthy, yet hoping we are true members of the church of

Scotland) to add our testimony to those of the worthies who have gone before us in witnessing against all things that have been done publicly on prejudice of his interest from the beginning of the work of reformation, especially from the year 1648 downward to the year 1660; but more particularly those since, as—the act rescissory; the act establishing abjured prelacy; the declaration renouncing the covenants; the Glasgow act, whereby upwards of *three hundred* faithful ministers were ejected from their churches, because they could not comply with prelacy; the act for imposing an holy anniversary day, to be kept yearly upon the 29th of May, as a day of rejoicing and thanksgiving for the setting up of an usurping power to the destroying the interest of Christ in the land; the act establishing the sacrilegious supremacy; and all the acts of council, warrants, and instructions for indulgence; and all their other sinful and unlawful acts.” In confirmation of this testimony, and to evidence their dislike of the acts testified against, they burned them publicly at the cross of Rutherglen, as their rulers unjustly, perfidiously, and presumptuously burned the sacred covenants. The paper was unsubscribed, but a notandum attached to it announced the readiness of its authors to do so if necessary, and to enlarge and avow it with all their suffering brethren in the land.

Immediately after affixing their declaration, Hamilton and his party retired towards Evandale and Newmills, in the neighbourhood of which Mr Douglas proposed to preach next Lord’s day. The news of this daring defiance spread like wildfire; and being proclaimed so near Glasgow, where the king’s troops lay, was considered by their commanders as a personal insult. James Grahame, Laird of Claverhouse, already notorious as one of the vile tools of the prelates, and active oppressors of his country, having been intrusted with extensive powers by the privy council for suppressing these abhorred conventicles, received new instructions to search out and seize, kill and destroy, all who had any share in the appearance at Rutherglen. Nor did he allow them to remain long an idle letter. Mr John King was to preach at Hamilton on Sabbath. Claverhouse set out with his band on the Saturday, and surprised and took him prisoner, with about fourteen countrymen, chiefly strangers, who had come to hear. Some few escaped and carried tidings to their friends, who formed the design of rescuing their minister. Next day, the meeting was to be held, and they expected to receive a reinforcement from them. Claverhouse, who had also

been apprised of the conventicle, resolved to disperse it before returning to Glasgow with his captives.

Accordingly, upon the Sabbath morning (June 1st), he marched thither, driving the prisoners before him like sheep, bound two and two together. Public worship was begun when the accounts came of his approach. Mr Douglas stopped, prayed a little, then laid the case before the people. All that had arms, willingly offered themselves to defend the assembled company, and prevent their dispersion or capture. They mustered about forty horse and one hundred and fifty or two hundred foot, not one-third of whom had muskets; the rest carried forks and halberts. They were led by Mr (afterwards Colonel) Cleland, who fell nobly at the head of the Cameronian regiment in the battle of Dunkeld, Balfour, Rathillet, John Nisbet of Hardhill, and Mr Hamilton; and although untrained, were resolute and eager for action. They came up with the enemy on a moor “half a mile bewest Drumclog.” They received their first fire resolutely, returned it with effect, and instantly closed hand to hand. The encounter was short. The soldiers, who probably did not expect such a reception, gave way and fled, leaving about forty killed and wounded, besides a number of prisoners who were disarmed and dismissed. The accounts of this battle which we have, are not very distinct, but from what Russell says, who was present, the chief merit appears to have belonged to Cleland. He drew up a party of foot armed with pikes, who received and broke the attack upon the right of their small party, led on by Clavers himself, who had his horse shot and very narrowly escaped. Of the countrymen, only five or six were killed; and it was the general belief, if they had pursued their advantage without giving the soldiers time to rally, they would have completely annihilated the whole party. But they only pursued them a short way, and returned to the meeting in triumph with their minister.

They could not now separate with safety; they therefore resolved to continue together, and having refreshed themselves, they marched to Hamilton, where they remained all night. Flushed by their success, they determined to proceed to Glasgow to attack the enemy’s head-quarters. Accordingly, on Monday they marched thither—their numbers swelling as they went. Grahame, however, had carried the intelligence of his own disgrace there before them, to lessen which he naturally exaggerated their force; and the troops under Lord Ross were prepared to receive them. The

main body was stationed at the cross, all approaches to which were barricaded by carts, wood, and such articles as came readiest. A few men were distributed in the houses adjoining, from the windows of which they could annoy the countrymen as they advanced. The latter entered the town in two divisions—the one under the direction of John Balfour, by the High Street; the other under Hamilton, along the Gallowgate. The men attacked the entrenchments bravely; but after a contest, in which they lost about six or eight killed, and a few wounded, they were obliged to desist; but they retired in good order, and halting at a little distance to the eastward, drew up their small force and offered the soldiers battle upon even ground and equal terms—a challenge the latter did not choose to accept; and they marched back to Hamilton, less disheartened by their failure, than encouraged by the numerous accessions their ranks had received by the way.^[120]

¹²⁰. Wodrow says, Hamilton skulked upon this occasion. “Some question if he looked the soldiers in the face, and say that he stepped into a house at the Gallowgate bridge till the soldiers retired.” Vol. ii. p. 47. I should rather think this inconsistent with the fact of his being chosen so soon after to the chief command—only there is no accounting for the variations of mere animal courage.

The royal troops, after they were withdrawn, sallied forth and vented their dastardly spleen on the dead bodies left in the streets. They would not allow them decent burial; and when some of the townsfolk, under covert of night, took the corpses into their houses and prepared them for interment, the ruffians broke in and sacrilegiously stripped off the dead-clothes, and carried away the linen for sale. Even when at length women were tacitly permitted to perform the last sad rites, they attacked them as they were proceeding to the burial-ground, robbed them of their plaids, cut the mortcloths, and obliged them to leave the coffins in the almshouse, near the High Church, where they remained for several days, till the military were called to other service.

Immediately on receiving intelligence of these transactions, the council met and issued a vehement proclamation, denouncing the insurgents as traitors, whose rebellion was aggravated by “their having formerly tasted of the royal bounty!! and clemency,” whereunto they owed their lives and fortunes, which had been forfeited by their former rebellious practices, under the cloak of religion—the ordinary colour and pretext of rebellion. Their transactions at Rutherglen, &c. were declared to be open, manifest,

and horrid rebellion and high treason, for which the actors and their adherents ought to be pursued as professed traitors; and they were called upon to lay down their weapons and surrender their persons within twenty-four hours, to the Earl of Linlithgow, commander-in-chief, or other officer or magistrates, on pain of being holden and proceeded against as incorrigible and desperate traitors, incapable of mercy or pardon; while they were not assured of pardon if they should surrender themselves upon these terms.

Two days after, another proclamation was sent forth, ordering the militia to hold themselves to act with the regulars, as they should be required by the council, which was quickly followed by a third ordering all the heritors and freeholders to attend the king's host—those of the western shires excepted. Meanwhile Lord Ross withdrew from Glasgow, and marching eastward was joined by the Earl of Linlithgow at Larbert-moor, whence they sent despatches to the council, entreating them to apply to his majesty for assistance from England. The council wrote to Lauderdale for the required help, and at the same time ordered the forces to cover Edinburgh. On the 7th of June they were cantoned in the vicinity.

During their encampment about Hamilton, the insurgents received considerable accessions. Captain John Paton of Meadowhead, arrived with a body of horse from Fenwick, Newmills, and Galston; Mr John Welsh brought a considerable number from Carrick;^[121] and a considerable number of others assembled from various quarters without any leaders, or at least without any whose names are recorded. The whole party when at their highest, never exceeded four thousand permanent, though they varied considerably at different times owing to the numbers who came and went away again, when they perceived the confusion that reigned, from a total want of training, and of officers to train the men, scarcely one among them having ever been in the army, which was wofully increased by the melancholy dissensions and bitter disputations by which they were agitated; for no person of influence, either gentlemen or men of property, came among them.

¹²¹. When they entered Glasgow, they removed the heads of their friends which were stuck up in and about that city.

The first palpable difference was about a declaration emitted at Rutherglen, which several considered as not sufficiently explicit, yet were willing to adhere to it; as considering the shortness of the time and the hurry in which those who drew it up necessarily were, required that some allowance should be made; and it contained, in sufficiently plain terms, the grand objects for which they contended—redress of their grievances, and correction of the abuses in the affairs of church and state. The others insisted that an enumeration of the sins and defections of the times should be inserted at length, and the indulgence especially witnessed against.

These ranged in two parties; the former, *i. e.* the moderate, were guided by the Laird of Kaitloch, Mr John Welsh, Mr David Hume, and some other ministers; the latter, *i. e.* the ultras, by Mr Robert Hamilton, with Mr Thomas Douglas, Donald Cargill, and the great majority of the younger brethren in the ministry. At the first meeting, after some warm discussion, the following sketch was agreed to:—

“We who are here providentially convened in our own defence, for preventing and removing the mistakes and misapprehensions of all, especially of those whom we wish to be and hope are friends, do declare our present purposes and endeavours to be only in vindication and defence of the true reformed religion in its professions and doctrine, as we stand obliged thereunto by our ‘National and Solemn League and Covenants,’ and that solemn ‘Acknowledgment of sins,’ and ‘Engagement to duties,’ made and taken in the year 1648, declaring against popery, prelacy, erastianism, and all things depending thereupon.” This did not give general satisfaction; and the few days they were allowed to be together, while the enemy were gathering around them, which they ought to have employed in assiduously improving their discipline, and in military exercises, they wasted in theological tilting and polemical skirmishes among themselves, about matters which, even after a victory, it would have been as well to have made the subject of forbearance, but which in their then situation could answer no other purpose than that of paralysing an effort, whose only chance of success depended on the united, vigorous, and unremitted direction of all their energies and resources, mental and physical, to one grand end.

That those who had been nurtured in the wilds, and borne for eighteen years the brunt of the persecution, and whose intercourse had been chiefly confined to their fellow-sufferers, should have been keen, contracted, and

irritable, was what was naturally to have been expected; and yet, from the accounts we have of these disputes, those who assumed the name of moderates appear to have been mainly to blame by their unyielding contentings for milder principles and softer proceedings. As they then stood, to talk of moderation was to invite disaster. They had been declared rebels, and when they drew the sword, no hope remained but what its point could purchase. To attempt soothing their opponents by honeyed words was like hushing the hungry tiger with a song. The moderate party objected to the clause “All things depending thereupon,” and desired it to be erased as too closely pointing out the indulgence at a time when every bone of contention should be taken away from the Presbyterians that might tempt them to bite and devour one another. The ultras urged that the expressions were general; and, in their opinion, erastianism was as directly abjured by their church as prelacy, and that the indulgence was a fruit of erastianism. ^[122] Contentions grew hot and love waxed cold.

^{122.} The doctrine of Erastus, a German divine, who asserted that the pastoral office was only persuasive, like that of the professorship of any other science; that the communion was free to all, and that a minister could only dissuade, but not prohibit, a vicious character from participating in the ordinance of the Lord’s Supper; and that the punishment of all ecclesiastical offences, as well as the support of all ecclesiastical institutions, belonged to the civil magistrate, upon the principle that they who paid servants had a right to demand their service in the manner they thought most proper, and to dismiss them if they disobeyed their orders.

At another meeting—for their meetings and debates were endless—it was proposed that a day should be set aside for fasting and humiliation. Alas! it turned out to be a day of strife and confusion. In their confession of sins, the moderates were now for generals, the ultras for particulars, and enumerated—1st, The universal rioting throughout the land on the king’s return in 1660, the many public abuses then committed, and the frequent profaning of the Lord’s name. 2d, The establishing and complying with prelacy. 3d, Neglecting a public testimony against the tyrannical hierarchy, and against defacing the Lord’s glorious work and overturning the right government of his house. 4th, The sin of taking unlawful bonds. 5th, The paying cess; and, 6th, Complying with abjured erastianism:—ministers appearing at the court of usurping rulers, and there accepting from them warrants and instructions, founded upon that sacrilegious supremacy to admit them to, and regulate them in, the exercise of their ministry; their leading blindfold along with

them many of the godly in that abjured course; their indulgence becoming a public sin and snare both to themselves and others.

The moderates would not consent to the enumeration, though it is not easy to imagine upon what grounds men who contended for the supreme headship of Christ in his church could consistently oppose it. No fast was kept; and, if we may be allowed to judge from a communication between the heads of the parties, perhaps it was as well that it was not. Mr Hamilton sent a message to the ministers of the moderate side to preach against the indulgence, otherwise he and a number of the officers would not come to hear them. Mr Rae, one of the ministers, returned for answer—"That he had been wrestling against erastianism in the magistracy for many years, and he would never truckle to the worst kind of erastianism in the common people; that he would receive no instruction from him nor any of them as to the subject and matter of his sermons; and wished he might mind what belonged to him, and not go beyond his sphere and station."

Differing so widely respecting the testimony they were to bear to the cause, as little could they agree with regard to their manifesto to the nation. In a meeting of their officers,^[123] the ultras proposed that the Rutherglen declaration should be adopted as the basis; the moderates, that the king's authority should be expressly acknowledged, in terms of the 3d article of the Solemn League and Covenant, in which they swore "to defend the king's majesty's person and authority in the preservation and defence of the true religion and liberties of the kingdom, that the world may bear witness with our consciences of our loyalty, and that we have no thoughts or intentions to diminish his majesty's just power and greatness." To this the others answered—that, as they had not urged any positive declaration against him, although he had in fact declared war against his people; and all the oppression, cruelty, and persecution in Scotland of which they complained, and for the redress of which they were now in arms, were carried on in his name—they could not consistently with their previous declarations, nor with the covenants which bound the whole land, first to God and then to one another; and then to the king only in defence of the true religion, which he had actually overturned by setting up prelacy, ruined the covenanted work of reformation and the liberties of the nation, persecuted to death the supporters of both, and broken the conditions of

government sworn to at his coronation, on which his right and their allegiance were founded.

[123](#). This is styled indiscriminately, a meeting of officers or a council of war.

The ultras were right in the abstract; and had they known how to mould it to practical purposes, they might have anticipated, as they certainly prepared the way for, the Revolution of 1688; that sound, practical exposition of the principles which the others missed, by contending for what is utterly impossible under the present constitution of human nature:—uniformity in a religious creed and civil liberty to be held together in a nation, composed of reasoning beings, susceptible of different views of the same truths, and allowed to exercise their reasoning powers. I am strongly inclined to believe, however, that much personal feeling mixed up in the controversy, and that the moderates allowed themselves to be led astray by an especial opposition to Robert Hamilton; and by showing this too openly, united to that politico-religious demagogue the honest and upright party, who were induced to suspect some lurking trimming policy in the measures of the moderates, because they appeared to them to encourage an accommodation with the enemy upon a compromise of principle. The others carried their doctrine of submission to the civil government to a length unwarrantable in free countries; and Scotland ought to have been a free country. There are reciprocal duties between the people and their rulers; and it is against one of the first principles of our nature, to assert that either of the parties have a right to violate their obligations, merely because they happen to have the means of so doing.

While these disputes were distracting the Presbyterians in Scotland, intrigue and emulation were dividing the councils of their enemies in London. The wretched Charles found that licentiousness was not the road to happiness, and that concubinage did not tend to promote domestic felicity. With the struggles of panders for domination over the poor heartless thing, that revelled amid the gaudy trappings of royalty, I do not intend to pollute my pages; it is sufficient to say, that his favourite bastard, whom he had decorated with the title of Duke of Buccleuch and Monmouth, gained the perilous and to him fatal eminence of commander-in-chief of his forces in Scotland. The temper of this young man was amiable; and, unlike the Stuarts, he both wished and endeavoured to promote the welfare of the people and adhere to moderate and salutary councils; but these dispositions

rendered him obnoxious to those who ruled the councils of his father. The Duke of York, by his imperious, severe, and obstinate temper, had long held Charles in bondage, and prevented the exercise of any humane feeling towards the Scottish insurgents, which, however transient, he on some occasions appeared to possess; and Lauderdale, instigated and supported by the clergy of Scotland, preferred pursuing a line of conduct which recommended him to them rather than what accorded either with the circumstances of the times or the real stability of the throne.

Monmouth's instructions were in accordance with the wishes of the prelatie rulers—forbidding him to negotiate with the rebels, whom he was to extirpate, not to reconcile. On the 18th of June, he arrived at Edinburgh, and was admitted a privy councillor. Next day, he proceeded to assume the command of the army, which lay within two miles of the Kirk of Shotts, and, having been reinforced by some troops from England, amounted to ten thousand men. A letter from the king immediately followed his Grace, thanking the council for their diligence in endeavouring to meet the emergency, and informing them that it was his royal will and pleasure “that they should prosecute the rebels with fire and sword, and all other extremities of war, and particularly requiring them to use their utmost endeavours in getting the best intelligence of all such as were engaged in this unnatural rebellion, being fully resolved to bring the ringleaders among them to condign punishment suitable to their notorious and insolent conduct; likewise putting them in mind that all care and diligence be used for discovering the murderers of the late Archbishop of St Andrews, by all the severity that law would allow, and punishing with all rigour the actors or accessaries to that horrid murder, their resettors or abettors;” thus anticipating, or rather authorising, the subsequent watchword, which became the warrant for unrelenting and indiscriminate massacre.

The council, in reply, expressed the universal joy which this gracious communication had created among them, and extolled that royal wisdom which had given such just measures and directions for suppressing the insurrection and securing his own government, together with their religion, lives, and properties, which would all undoubtedly have been endangered by the frequency of similar attempts that would have ensued, if the present insolent rebels, who now disturbed the kingdom, had been ordered to be spared or gently dealt with; thus, in like manner, anticipating the cruelties in

which they afterwards rioted. A copy of the king's letter was immediately forwarded to Monmouth for his guidance.

The moderate friends of the Whigs in Edinburgh also sent instructions to them, respecting the course they thought they should pursue, especially warning them against being led astray by the hotheaded party among them; advising them to send propositions to the Duke, narrating the oppressions they had endured, and cheerfully professing their fidelity to the king, for whom they were ready to sacrifice every thing they held most dear, excepting only their religion and liberty; and, above all, to avoid fighting, except with seen advantage by surprisal or ambuscade—to keep close together, sending scouts out in all directions, and particularly not to be too secure upon the Sabbath day; while they kept up close intercourse with their friends throughout the country, and endeavoured to induce them to join the army in defence of the grand principles held not only by themselves, but by a great sympathizing body throughout England.

A wholesome advice, unfortunately tendered in vain! Multitudes who came to the camp, when they perceived the distractions that prevailed, left it despairing of any happy issue, and not only weakened the troops by their desertion, but prevented many who were coming, or preparing to come, from joining so discordant an assemblage. This again caused accusations and recriminations, each side upbraiding the other for being the occasion of such mischief and visible hindrance to the good cause, destroyed all cordial co-operation, and prevented the discipline of the troops; so that, when the king's forces approached, they presented the melancholy appearance of a disjointed rabble of countrymen, whose numbers did not exceed six thousand men. The necessity of naming officers who had had some experience in warlike affairs was pressing, and the leaders met for this purpose on the 21st; but, after a stormy discussion, not on the military merits of the men, but on the question, whether any should be intrusted with command who had owned the indulgence? Mr Hamilton and a number of his supporters withdrew in anger from the meeting, without having come to any determination. A few of the temperate who remained, drew up a respectful supplication to Monmouth, stating their grievances, and requesting liberty, under safe conduct, for a few of their number to state their grievances, that they might obtain through his favour some speedy and effectual redress.



Battle of Bothwell Bridge.

Vide page [374](#).

Edin^r. Hugh Paton, Carver & Gilder, to the Queen, 1842.

Next day, the armies were within sight of each other. The king's troops spread upon Bothwell-moor, with their advanced guard in the town; the Whigs stationed along Hamilton-moor, on the south side of the river Clyde, with their advanced guard at the bridge—an old narrow structure, the only pass by which they were assailable. Early that morning, Mr David Hume, Mr Fergusson of Caitloch, and Mr John Welsh went in disguise to Monmouth's head-quarters. On passing, they were politely saluted by Claverhouse and had ready access to his Grace. When introduced, they stated their demands, which were—that they might be allowed the free exercise of their religion, and suffered to attend the ordinances dispensed by Presbyterian ministers without molestation; that a free Parliament and General Assembly might be called to settle the affairs of church and state; and an indemnity offered to all who were or had been in arms. The Duke, who heard them with great attention, replied that the king had given him no instructions respecting these matters; he therefore could not say any thing about them, only he assured the delegates he would lay their requests before his majesty, and as he thought them reasonable, had no doubt they would be granted; but in the meanwhile, he could enter into no terms till they laid down their arms and threw themselves entirely upon the royal mercy. He then dismissed them, and gave them half an hour to return him an answer from their friends whether they would consent to his proposal. At the same time, he issued orders to put the troops in motion.

When the commissioners reported the Duke's demand, that they should lay down their arms previous to terms being offered, Mr Hamilton, who had now assumed the command, laughed at it, and said, "Aye! and hang next." No answer was therefore returned. As soon as the half hour's truce expired, Lord Livingston advanced at the head of the foot-guards with the cannon to force the bridge. He was firmly received by a small determined band under Ure of Shargarton and Major Learmont, who drove them back twice, and would even have taken the cannon had they been properly supported, but their ammunition failed; and when they sent to the commander for a fresh supply, or a reinforcement of men better provided, they received orders to retire upon the main body, which, having no other alternative, they did, and

with heavy hearts left their vantage ground, and with it every chance of success.^[124] The royal army then passed the bridge, and drew up upon the bank with their artillery in front, to which the patriots had nothing to oppose but one field-piece and two large uncouth unmounted muskets; yet did they force Lord Livingston to halt, till the cannon having been opened upon the left, threw the undisciplined horse of the countrymen into disorder, and the route immediately became universal.^[125]

^{124.} The honour of this defence is claimed by Russell for Hackston of Rathillet, who also had a command; but it is universally allowed that the nominal General, Hamilton, was among the first to flee.

^{125.} Although we may lament the dreadful and bloody years which followed this victory, and hold up to merited execration the persecuting prelates, yet, perhaps, the descendants of the persecuted have reason to bless God that the ultra-covenanters did not gain that day. It would have given the chief power into the hands of Robert Hamilton, who commanded upon that occasion; and what use he would have made of it may be fairly conjectured from the following vindication of his conduct in murdering in cold blood a prisoner after the battle of Drumclog. It is contained in a letter from him addressed to “the anti-popish, anti-prelatic, anti-sectarian, true Presbyterian remnant of the church of Scotland,” dated December 7, 1685:—“As for that accusation they bring against me of killing the poor man (as they call him) at Drumclog, I may easily guess that my accusers can be no other but some of the house of Saul or Shemei, or some such risen again to espouse that poor gentleman’s (*Saul*) his quarrel against honest Samuel, for his offering to kill that poor man, *Agag*, after the king’s giving him quarters. But I being called to command that day, gave out the word that no quarter should be given; and returning from pursuing Claverhouse, one or two of these fellows were standing in the midst of our friends, and some were debating for quarters, some against it. None could blame me to decide the controversy; and I bless the Lord for it to this day!! There were five more that, without my knowledge, got quarters, who were brought to me after we were a mile from the place as having got quarters—which I reckoned among the first steppings aside; and seeing that spirit amongst us at that time, I then told it to some that were with me (to my best remembrance it was honest old John Nisbet) that I feared the Lord would not honour us to do much for him. I shall only say this—I desire to bless his holy name that, since ever he helped me to set my face to his work, I never had nor would take a favour from enemies, either on right or left hand, and desired to give as few.”—Faithful Contendings, p. 201 et seq.

Few fell in the fight, but the pursuit was cruel and bloody; upwards of four hundred were cut down, and twelve hundred who were on the moor, were forced to surrender at discretion. The slaughter would have been greater had not Monmouth, in spite of the advice of some of the other Generals, ordered the vanquished to be spared, when the yeomanry cavalry especially were executing cruel vengeance on the unresisting fugitives. Among the prisoners were Messrs King and Kid, ministers, who were,

however, only preserved by his humanity from military violence, that they might afterwards satiate the cruelty of their clerical enemies by a more disgraceful execution, if dying in any manner for the cause of truth can be called disgraceful. The treatment of the captives by the inferior officers, to whose charge they were committed, was unnecessarily vindictive and severe. They were stripped nearly naked, and made to lie flat on the ground, nor suffered to change their position; and when some of them ventured to raise themselves to implore a draught of water, they were instantly shot. They were afterwards tied two and two and driven to Edinburgh, to be placed at the council's disposal.

Nor was the cruelty confined to those taken in battle, numbers of unarmed men, who were merely coming to hear sermon at the camp, were murdered on the road by the soldiery; and one atrocious case stands painfully conspicuous. Arthur Inglis of Cambusnethan, while quietly reading his bible in a furrow, was observed by a party who were patrolling the country in search of delinquents, and being actually discovered in this treasonable fact, one of the soldiers fired at the traitor; but missing, the good man startled a little, looked round for a moment, and then, without appearing to be alarmed, resumed his reading, when another of the miscreants, by order of his viler commander, clave his skull, and left him dead on the spot! The numbers who were thus wantonly massacred, are variously stated; but if we take the lowest, two hundred—considering the then state of the population—it shows, in sufficiently strong colours, a barbarous waste of life, and the danger of committing such extravagant powers into the hands of an unbridled soldiery.

Yet terrible as these military executions were, they were mild and merciful compared with the legal atrocities which followed. As after Pentland no faith was kept with the prisoners, who were treated—as men who fail in struggling for their rights always are—more like wild, noxious animals than fellow-creatures of the human form; a lesson to patriots and to the oppressed when they rise against their tyrants:—better perish on the high places of the field than submit to languish out a few mournful years beneath the tender mercies of the victors. While being driven to the capital, the captive patriots were exposed to every indignity the ingenious malignity of their persecutors could invent, especially being made, as they passed along, a gazing-stock to the crowd, who taunted them with such questions,

as—where is your prophet Welsh who told you ye should win the day? where are your covenants that were never to fail? or such sarcasms, as—aye! this is your testimony—this is standing up for the gude auld cause! see if it will stand up for you! When they arrived in the capital, the council ordered the magistrates to place them in the Greyfriar's churchyard, with a sufficient number of sentinels over them, to guard them night and day; especially during the night, they were to be rigorously watched to prevent escape; and such was their determination to enforce vigilance, that the officers were ordered to keep exact rolls of the sentinels, and if any of the prisoners were amissing, they were to throw dice and answer body for body. For nearly five months were the greater part of the sufferers kept in this open space, without any covering from the rain or shelter from the tempest. During the day, they generally stood, but had not even the miserable privilege of a short walk. During night, the cold damp ground was their bed, without a covering; and if any attempted to rise, for whatever purpose, the sentinels had orders to fire upon them. With great difficulty did any of their friends obtain permission to visit them, or bring them provisions, and these were chiefly females, who were exposed to the grossest insults from the guards; and not infrequently were the provisions they carried destroyed, and the water spilt, before either could reach the starving prisoners; for the government allowance which the Duke of Monmouth procured for them, was, besides being of the worst quality, very scanty. Nor did the inhumanity of the ruffian soldiery allow them to retain money or any article they could pilfer from them, even their shoes, stockings, and upper garments were carried off; and when blankets or any bedclothes were brought, they were immediately seized as lawful plunder.

Before Monmouth left Scotland, he procured the liberation of some hundreds, upon their subscribing a bond, enacting themselves in the books of the privy council not to take up arms without or against his majesty's authority; and had also obtained for a few of them the stinted favour of wretched huts, to be erected as the winter approached. The bond became another cause of unhappy difference and alienation among the sufferers themselves. Those who refused amounted to about four hundred, and much interest was made to procure their deliverance, especially by some who thought they might sign the bond without sin, endeavouring to persuade them to submit, as it did not involve the sacrifice of any of those principles for which they had taken arms. The others, however, more consistently,

viewed their subscribing the bond as an admission that their previous rising had been criminal, and therefore persisted in their refusal. The hardships they had so long endured, and their mutual exhortations, heightened and strengthened their scruples, till they became absolutely impenetrable to whatever could be urged upon the subject, nor would listen either to entreaty or argument. Yet upwards of an hundred contrived to effect an escape; some by the purchased connivance of the guards, some by climbing the walls at the hazard of their lives, others by changing their clothes, and some in women's apparel.

The remnant who remained firm, were doomed to slavery in the plantations; and their fate, had earth terminated their hopes, was melancholy; but viewed as that of those who through much tribulation must enter the kingdom, was enviable—inexpressibly enviable! when compared with that of their oppressors, who unwittingly sent them by the shortest road to heaven.^[126] Their numbers, estimated at about two hundred and fifty-seven, were to be transported to Barbadoes and sold for slaves. Mr Blackadder thus narrates the tragical story:—"The prisoners were all shipped in Leith roads (15th November) in an English captain's vessel, to be carried to America. He was a profane, cruel wretch, and used them barbarously, stewing them up between decks, where they could not get up their heads, except to sit or lean, and robbing them of many things their friends had sent them for their relief. They never were in such strait and pinch, particularly through scorching drowth, as they were allowed little or no drink and pent up together, till many of them fainted and were almost suffocated. This was in Leith roads, besides what straits they would readily endure in the custody of such a cruel wretch. In this grievous plight, these captives were carried away in much anguish of spirit, pinched bodies, and disquieted consciences, (at least those who had taken the bond.^[127]) They were tossed at sea with great tempest of weather for three weeks, till at last their ship cast anchor, to ride awhile among the Orkney Isles, till the storm might calm. But after casting anchor, the ship did drive with great violence upon a rugged shore about the isles, and struck about ten at night on a rock. The cruel captain saw the hazard all were in, and that they might have escaped as some did; yet, as I heard, he would not open the hatches to let the poor prisoners fend for themselves. He with his seamen made their escape by a mast laid over between the ship and the rock ashore. Some leapt on the rock.

[126.](#) James Corsan, in a letter to his wife, dated from Leith roads, says—“All the trouble they met with since Bothwell was not to be compared to one day in their present circumstances; that their uneasiness was beyond words: yet he owns in very pathetic terms, that the consolations of God overbalanced all, and expresses his hopes that they are near their port, and heaven is opening for them.”—Wodrow, vol. ii. p. 83.

[127.](#) It appears that some who had taken the bond, had, notwithstanding, been still detained.

“The ship being strong, endured several strokes ere she bilged. The captain and all the rest of the seamen, with about fifty prisoners, some of whom had been above deck before, others had broke out some other way down to the den, and so up again; so that they were to land with their life in: one or two died ashore. While these were thus escaping, the rest who had all been closed up between decks, crying most pitifully, and working as they could to break forth of their prison, but to little purpose; and all these, near two hundred, with lamentable shrieks of dying men—as was related to the writer by one who escaped—did perish. The most part were cast out on the shore dead, and after buried by the country people.”[\[128\]](#)

[128.](#) It is pleasant to notice instances of kindness and benevolence, in times such as these, among the influential men of the prelatical party. I quote from the Memoirs of Brysson, edited by Dr M’Crie, who remarks—“One of these kind lairds is evidently Sir William Drummond of Hawthornden, son of the celebrated poet,” p. 285, *Note*—“After our defeat, I wist not what to do. However, after some time lurking, I ventured home, where my sister and family were together, who had suffered many wrongs from the enemy, my mother being dead a year before this fell out; and that which is very remarkable, I dwelt betwixt two lairds who were both out in arms against us; and one of them never conformed to the Presbyterian government to his dying day, though he lived thirty-five years after this. And the other was of the same judgment, though he complied with the government afterwards. However, the Lord moved them to favour me in the day of my distress. For they sent for my sister before I came home, and advised her to put all the goods from off the ground, and every thing but what was of present use for the family. One of the gentlemen was so kind, that he desired my sister to send over the milk kine and let them feed with his, and to send over her servants morning and evening to milk them for the use of the family. And ordered her to pack up all things that she thought the enemy might make a prey of, and send them over to his house; which accordingly she did, where they were secure. The other gentleman was no less kind, for he desired her to send the milk ewes over to his ground that she might not lose their milk, and to send her servants to milk them. After that she sent away the horses, oxen, and other yeld beasts, to a friend who lived on the Earl of Wigton’s ground, who received them willingly. Thus the Lord trysted me with favour both from my friends and foes, for which I desire to adore his wonderful providence.”—Memoirs of George Brysson, pp. 284-5.

Nothing in the whole annals of these persecuting times presents a stronger argument against committing civil power to the clergy, than the

uniform strenuous opposition made by the bishops and their satellites to every moderate or clement proposal of the Duke of Monmouth. The council, where they possessed a strong majority before his Grace arrived from the army, had written to the king for instructions how to dispose of the prisoners, promising “at the same time, on their part, to execute the laws against rebellion, faction, and schism, as the king should direct them, without gratifying the humours of such as are apt to grow more insolent by his majesty’s grace and goodness, who have been encouraged and hardened in an obstinate opposition to the church by his majesty’s condescensions and indulgences, and proposing that, after the ringleaders were punished capitally, the rabble should be transported to the plantations never to return.”

This model of princes, for whose restoration the cannon of the Castle of Edinburgh still continue annually to be fired, and the public offices still keep holyday, returned a gracious answer, approving of their proposal to send three or four hundred to the plantations, and bring the ringleaders before the justiciary, after which the rest might be dismissed upon signing the bond.

The treatment of the majority has been narrated. We shall now notice the proceedings against those considered ringleaders. The most conspicuous were their ministers Messrs King and Kid. Wodrow mentions an incident which occurred while the former was being carried to Edinburgh, too remarkable to be passed over, especially as that historian is neither a credulous nor an enthusiastic writer:—

“Upon the Lord’s day, orders were given to a party of soldiers immediately to march east and carry Mr John King with them to Edinburgh; and we will find it was their ordinary [practice] to march, and especially to transport prisoners from place to place, on the Sabbath. My accounts of them are, that they were English dragoons. One of them, a profane and profligate wretch, after they were in the street and on horseback, ready to ride off with their prisoner, called for some ale, and drunk a health to the ‘Confusion of the Covenants,’ and another to the ‘Destruction of the People of God,’ and some more very horrid, and rode off. He met with one of his comrades at the Stable-green Port, who, knowing nothing of the matter, asked him where he was going? He answered, ‘to convoy King to hell,’ and galloped up to the rest, whistling and singing. The judgment of God did not

linger as to this wretch; he was not many paces forward, in the hollow path a little from the Port, till his horse stumbled; and somewhat or other touching his piece—which was primed and cocked it seems—the carabine went off and shot him dead on the spot. The party went on and carried Mr King to Edinburgh.” Mr Kid was brought thither and imprisoned along with his friend in the tolbooth.

The tyranny of Charles, which was exercised in England as well as in Scotland, had excited much discontent there; and Charles’s advisers were extremely anxious to trace out some grand conspiracy which might enable them to resort to extreme measures there as well as in Scotland, that a similar despotism might be established in both kingdoms. The king therefore directed that these two should be especially examined by torture, in order if possible to discover the conspirators, with which the Scottish managers were very ready to comply, many of them anticipating a rich harvest of new forfeitures. Being disappointed in this, the prisoners were ordered to stand trial before the justiciary. Previously to being brought to the bar, they presented a petition, praying that they might be allowed to prove in exculpation—that they were only present with the army casually, and not intentionally, and were in a manner detained prisoners by them; and such naked presence, without assistance, was not criminal; and that they were so far from being incendiaries to incite the people, they, on the contrary, entreated them to lay down their arms. 2d, That the Duke of Monmouth, by his commission, had power to pardon; and they offered to prove by witnesses that he had proffered them a pardon if they would lay down their arms, and that they had accepted it. 3d, They were willing to engage to live peaceably, and never to keep field-meetings hereafter.

The lords refused this equitable request, or, as Fountainhall expressed it, “repelled their exculpation in respect of the libel,” and, on the 28th of July, their trial proceeded. They were accused of having been in the rebellion and in company with rebels, who, in May last, burned the king’s laws; that they had preached at several field-conventicles where persons were in arms; that they did preach, pray, and exercise to rebels, and continued with them till their defeat, and had been taken prisoners.

Their own confessions, that of Kid emitted under torture, were the only evidence produced against them, and coincided with what they had offered to prove. It was deemed sufficient that they had been with the rebels, and,

notwithstanding any extenuating circumstances, must therefore be deemed rebels themselves. The jury brought them in guilty, in terms of their own confession; and the lords sentenced them to be taken to the market cross of Edinburgh upon Thursday, August 14, betwixt two and four of the clock in the afternoon, and to be hanged on a gibbet; and when dead, that their heads and right arms be cut off and disposed of as the council think fit; and that all their land be forfeited, as being guilty of the treasonable crimes foresaid. The judges themselves were so convinced of the peculiar hardship of the case, that they allowed this unusual space between sentence and execution, on purpose that they might have time to apply for a remission, and Mr Stevenson, a friend of theirs, rode post to London to apply for it; but all the avenues to mercy were shut. An evil influence pervaded the whole court; and it is worthy of remark, and ought never to be forgotten, that the most gay, most boisterously mirthful, most joyous, and most irreligious court, headed by the most facetious and witty monarch that ever sat upon the British throne, was the most unfeeling, cold-hearted, cruel, revengeful, and vile that has ever disgraced the annals of our country.

An act of indemnity had been passed; and it might naturally have been supposed that these good men would have received the advantage of it, but the very day on which it was to be proclaimed, was the day chosen on which they were ordered to be executed; so dead to every sense of common decency, as well as of common feeling, were the then rulers of Scotland. In the forenoon of the 14th of August, the magistrates of Edinburgh proceeded to the cross in their robes, and proclaimed the indemnity from a scaffold erected for the purpose. In the afternoon, these two worthies, on another scaffold, were put to death, as if to declare the entire worthlessness of all government clemency, whenever persons of unflinching principle were concerned. They both died with much calmness and serenity; and their dying speeches, which were afterwards published, may well rank with any of the compositions of the times, for elegant simplicity, honest integrity, and a plain energetic avowal of their principles, untainted either by party prejudice or political enthusiasm. Mr Kid, who was labouring under sore bodily indisposition, said—"It may be that there are a great many here that judge my lot very sad and deplorable, I must confess, death in itself is very terrible to flesh and blood; but as it is an outlet to sin, and an inlet to righteousness, it is the Christian's great and inexpressible privilege.

“And give me leave to say this, 1st, That there is something in a Christian’s condition that can never put him without the reach of unsufferableness, even shame, death, and the cross being included in the promise. And if there be reconciliation between God and the soul, nothing can damp peace through our Lord Jesus Christ; it is a supporting ingredient in the bitterest cup and under the sharpest and fiercest trial he can be exposed unto. This is my mercy, I have somewhat of this to lay claim unto, viz. the intimations of pardon betwixt God and my soul; and as concerning that for which I am condemned, I magnify his grace that I never had the least challenge for it, but, on the contrary, I judge it my honour that ever I was counted worthy to be staged upon such a consideration. I declare before you all, in the sight of God, angels, and men, and in the sight of the sun and all that he has created, that I am a most miserable sinner, in regard of my original and actual transgressions. I must confess they are more than the hairs upon my head, and altogether past reckoning; I cannot but say, as Jacob said, I am less than the least of all God’s mercies; yet, I must declare, to the commendation of the freedom of his grace, that I dare not but say, He has loved me and washed me in his own blood; and well’s me this day that ever I read or heard that faithful saying, ‘Jesus Christ came into the world to save sinners, of whom I am the chief.’”

He then warned the servants of God against fomenting divisions to the detriment of the gospel, especially as there appeared at that time a great likelihood of its spreading, and dissension would prove a poison in the pot! “As for rebellion against his majesty’s person or lawful authority, the Lord knows my soul abhorreth it, name and thing. Loyal I have been and wills every Christian to be so; and I was ever of this judgment to give to Cesar the things that are Cesar’s, and to God the things that are God’s.” This excellent man and his most worthy coadjutor, not only had to suffer from the oppression of the oppressors, but from what to them was probably more trying, the cruel scourge of tongues from those they wished to esteem brethren. He therefore felt himself called upon to vindicate his character from these aspersions, and to leave a record of the doctrine he had preached. “According to the measure God has given me,” he continues, “it was my endeavour to commend Christ to the hearts and souls of the people, even repentance towards God, and faith towards our Lord Jesus Christ; and if this be devisive preaching, I cannot deny it.”

Mr King expressed himself to the same effect. "I bless the Lord," said the dying martyr, "since infinite wisdom and holy providence hath so carved out my lot to die after this manner, that I die not unwillingly, neither by force; and though possibly I might have shunned such an hard sentence, if I had done things that, though I could, I durst not do; no, not for my soul, I durst not, God knoweth, redeem my life by the loss of my integrity. I bless the Lord that, since I have been a prisoner, he hath wonderfully upholden me, and made out that comfortable word, 'fear not, be not afraid; I am with thee, I will uphold thee by the right hand of my righteousness.' I bless his name that I die not as a fool dieth, though I acknowledge I have nothing to boast of myself. I acknowledge I am a sinner, and one of the chiefest that have gone under the name of a professor of religion; yea, amongst the unworthiest of those that have preached the gospel. My sins and corruptions have been many. I have no righteousness of my own; all is vile, like filthy rags. But blessed be God there is a Saviour of sinners, Jesus Christ the righteous, and that through faith in his righteousness I have obtained mercy; through him only I desire to hope for, and to have a happy and glorious victory over sin and satan, hell and death; that I shall attain to the righteousness of the just, and be made partaker of eternal life. I know in whom I have believed, and that he is able to keep that which I have committed to him against that day. I have in my poor capacity preached salvation in his name; and as I have preached, so do I believe. With all my soul I have commended, and yet I do commend, to all of you the riches of his grace and faith in his name, as the alone and only way whereby ye can be saved. As for those things for which sentence of death is passed against me, I bless the Lord, rebellious I have not been. He who is the searcher of hearts, knoweth that neither my design nor practice was against his majesty's person and just government. I have been loyal, and do recommend it to all to be obedient to higher powers in the Lord.

"That I preached at field-meetings. I am so far from acknowledging that the gospel preached that way was a rendezvousing in rebellion, as it is termed, that I bless the Lord ever he counted me worthy to be a witness to such meetings, which have been so wonderfully countenanced and owned, not only to the conviction, but even to the conversion of many thousands: if I could have preached Christ and salvation in his name, that was my work, and herein have I walked according to the light and rule of the word of God,

and as it did become—though one of the meanest—a minister of the gospel.”

Both bore witness to the doctrine and worship, discipline and government, of the church of Scotland by kirk-sessions and presbyteries, synods and general assemblies, to the solemn covenants, also to the public confessions of sins and engagements to duties, and that either as to what concerned personal reformation, or the reformation of the whole land. They also bore witness and testimony against popery, which had so greatly increased, was so much countenanced, and so openly professed. The causes of God’s wrath with the land were particularly noticed and specified by Mr King:—1st, The dreadful slights our Lord Jesus has received in the offers of his gospel. 2d, The horrid profanity that had overspread the whole land. 3d, The horrid perjury in the matter of vows and engagements. 4th, The dreadful formality and supineness in the duties of religion. 5th, Awful ingratitude, what do we render to HIM for his goodness? 6th, Want of humility under afflictions. 7th, Dreadful covetousness and minding of our own things more than the things of God; and this among all ranks.

But they both departed, praying for Scotland, and rejoicing in the faith that there would be a resurrection of the name, word, and cause of Christ in their beloved country; and their last aspirations were, “O! that he would return to this land again! repair our breaches, and heal our backslidings! O! that he were pacified towards us! O! that he would pass by Scotland again, and make our time a time of love!” Their heads and right hands were, agreeably to their sentence, cut off, and had the honour of being placed beside those of the venerated Guthrie on the Netherbow Port, to bear witness to heaven, along with them, against the iniquity of the times.

Five others were next selected for immolation as a propitiatory offering to the shade of the grand apostate. Thomas Brown, shoemaker, Edinburgh; Andrew Sword, weaver, Kirkcudbright; John Clide, Kilbride; John Waddel, New Monkland; and James Wood, Newmills—charged with being accomplices in the murder of Archbishop Sharpe, although none of them were in that part of the country at the time when it happened—were accordingly brought before the justiciary on November 10th. Their indictment, as now became the custom, enumerated as charges against them all the occurrences which had taken place during the rising, aggravated by fictitious circumstances of the most revolting nature, *i. e.* throwing out of

their graves the dead bodies of such children as belonged to the orthodox clergy in Glasgow; commanding, by a most insolent act of their supremacy and mock judicatory, all the said orthodox clergy to remove themselves, their wives and families, from the western shires, under pain of death; and threatening with fire and sword all such of his majesty's good subjects as would not join them; plundering and ravaging their houses, and carrying off their horses and arms; declining the bond; and finally, and above all, refusing to call the late rebellion a rebellion.

Previously to proceeding with the trial, the bond was offered to them judicially, both the crown lawyers and judges upon this as upon several other occasions appearing to have entertained some sympathy for the sufferers; but they peremptorily refused to take it, as they considered that they would thereby have been condemning the rising at Bothwell, and their own conduct in what they considered a justifiable assertion of the principles to which they had solemnly sworn obedience in the covenants. Four of them resolutely avowed their having appeared in arms at Bothwell, and were of course found guilty by the jury upon their own confession of that fact alone; yet, by a strange vindictive perversity, the court sentenced them "to be carried to the moor of Magus in the sheriffdom of Fife, the place where his Grace the Archbishop of St Andrews was murdered, upon the 18th of November instant, and there to be hanged till they be dead, and their bodies to be hung in chains until they rot, and all their lands, goods, and gear to fall to his majesty's use."

James Wood was only proven by the evidence of some soldiers to have been taken at or after Bothwell without arms; and as numbers in that part of the country were known to have gone to the spot as mere spectators, a humane tribunal would have given them the advantage of the supposition that they had been present from a similar motive. But he was included in the same verdict, and doomed to the same punishment, which was accordingly inflicted at the place appointed, though some difference appears in the date of the execution and the date of their dying testimonies, the latter being dated 25th November, a week beyond the term allowed by the former, which might have been given to allow of an application to the king for mercy. If it was, they found none from their earthly sovereign; but they all died in the humble confidence of being reconciled to God by Jesus Christ.

Brown, who went up the ladder first, declared, before being turned off, “if every hair of his head were a man, and every drop of his blood were a life, he would cordially and heartily lay them down for Christ and this cause for which he was now sentenced.”

Sword sang the 34th Psalm, and said to the spectators, “I cannot but commend Christ and his cross to you. I would not exchange my lot for a thousand worlds!” He had lived four or five score of miles distant from that place, and never in his life saw a bishop that he knew to be a bishop.

James Wood also affirmed that he had never been in that part of the country before, nor seen a bishop in his life! and as to appearing at Bothwell Bridge, he added, “for my own part, I am so far from thinking it rebellion, that I bless God I was a man to be there, though a man most unable for war, and unskilful, because of my infirm arm: and I bless God that gave me a life to lay down for his cause; and though in remarkable providence he took not my life in that day, yet for holy and good ends he spared it to lay it down this day; and I am so far from rueing any thing that I had done that day in my appearing for Christ and his cause, that I would heartily wish if I were to live to see as many men every year gathered together for the defence of the gospel. I would count it my honour to be with them.” “And now, my friends, I am not a whit afraid to go up this ladder, and to lay down my life this day, for it is the best day ever yet mine eyes saw.” And being up almost to the top of the ladder, plucking up the napkin, he said, “Now I am going to lay down this life and to step out of time into eternity, and if I had as many lives as there are hairs on my head, or drops of blood in my body, I would willingly lay them down for Christ, and for you all that are here on Christ’s account.”

John Waddel, respecting the bishop’s death, said, “I declare I was never over the water of Forth in this country before this time.” “I am sentenced to die here because I would not call it rebellion being with my friends at Bothwell Bridge, and because I would not take that bond, binding me hereafter never to lift arms against the king nor his authority, which thing in conscience I could not do; for, whatever others think of it, to me it says, that it is a denying of all appearances for Christ and his cause that hath formerly been; and likewise it says to me, that we shall never any more lift arms for the defence of Christ’s gospel against any party whatsoever that seems to oppose it, which is far from the word of God:—‘If any man draw back, my

soul shall have no pleasure in him,’ and the covenants, National and Solemn League, which were publicly burnt in our nation—for which God in his own time will yet arise—which we are bound to maintain.” “And now, sirs, I am not a whit discouraged to see my three brethren hanging before mine eyes, nor before all this multitude to pray.” He then prayed; and being thrown over,

John Clide was brought to the ladder. When he had reached it, he turned round and said, “I think our being fetched here is like that which we have in Scripture about what Herodias said to Herod anent John the Baptist his head, to gratify the unsatiableness of that lewd woman; nothing would satisfy the lust of our persecutors, but our blood, and in this manner and place, to gratify the bishop’s friends. But the ground of my being sentenced is because I was found in arms with that poor handful at Bothwell Bridge and would not call it rebellion; and because I would not take that bond, which thing I had in my offer, and my life upon the taking of it; and was threatened by some to take it, and allured and persuaded by others, which I could not in conscience do, because it binds me hereafter that I should not appear for Christ and his cause. I durst not do it, for I was not sure of my life, no not one moment; and I durst not procure the wrath of God at such a rate; for I judge the loss of my soul to be more dreadful than the loss of the life of my body, and likewise that it is more hazardful the offending of God than gaining the greatest advantage in the world.

“I could not stay at home, but judged it my duty to come forth; for I could not see how I could evite that curse—‘Curse ye, Meroz; curse ye bitterly those that would not come out to the help of the Lord against the mighty.’ And I bless the Lord for keeping me straight. I desire to speak it to the commendation of free grace; and this I am speaking from my own experience, that there are none who will lippen to God and depend upon him for direction, but they shall be keeped straight and right; but to be kept from tribulation, that is not the bargain; for he hath said that through much tribulation we must enter the kingdom, for he deals not with us as satan does—for satan lets us see the bonniest side of the tentation, but our Lord Jesus lets us see the roughest side and the blackest. After that, the sweetest thing comes! And he tells us the worst that will happen to us; for he hath not promised to keep us from trouble, but he hath promised to be with us in it, and what needs more?

“I bless the Lord for keeping me to this very hour: little would I have thought a twelvemonth since that the Lord would have taken me a poor ploughman-lad, and have honoured me so highly, as to have made me first appear for him and then keep me straight; and now hath kept me to this very hour to lay down my life for him.” At the ladder foot, he addressed his brother and other relatives who were standing and weeping around him —“Weep not for me, brother; but weep for the poor land, and seek God, and make him sure for yourself, and he shall be better to you than ten brethren. Now, farewell, all friends and relations; farewell, brother, sister, mother. Welcome, Lord Jesus; into thy hands I commit my spirit!” And then lifting the napkin off his face, he said, “Dear friends, be not discouraged because of the cross, nor at this ye have seen this day, for I hope you have seen no discouragement in me, and you shall see no more!”

While these sanguinary proceedings were going forward, the Scottish rulers were not less assiduous in the more lucrative departments of persecution, rendering even their acts of indemnity or indulgence the means of pecuniary oppression; for the conditions upon which these were granted were so hard, and the penalties for their infraction so severe, that few would accept of them, and those who did, found them both burthensome to their conscience and heavy on their purse, as a common requisition was, that the parties should bind themselves, their families, and dependants, under a specified sum, to regular attendance on the ordinances and implicit compliance with all the injunctions of the established clergy, nor harbour or hold any communication with those who acted otherwise. Absence from the parish church, if accompanied with any suspicious symptoms, constituted rebellion; and associating with rebels, was construed into the same offence, punishable by death, but commutable by fining or confiscation of rents, money, and moveables; so that pretexts were never wanting for plundering the Presbyterians, wherever “the honest party” were possessed of property.

More effectually to scour the country, the judiciary was required to divide into two sections or circuit courts; the one to traverse the west and south, the other the north and east. By a proclamation sent before them, the proprietors or occupiers of the lands on which any of the rebels lived, were required to apprehend and imprison them till the courts arrived, when they were to present them for prosecution; and if they should be either under hiding or fugitive themselves, their wives, children, and servants were to be

ordered off the ground. Clerks were sent before to take up lists of all who were named in the proclamation, or should be informed against as having been at field-conventicles, or having threatened, robbed, or abused the orthodox clergy, who were all to be summoned and examined upon oath respecting their possessions in lands, money, and bonds, in order that the proceeds might be forthcoming in case they should be found guilty. Witnesses were to be prepared and held in readiness—sixteen in every rural parish, and twenty-four in every royal burgh or burgh of barony, who were to give information, under a penalty of forty pounds Scots, of all who had been at Bothwell, or who had harboured any that were there. They were also to name all whom they heard or suspected of being there. The sheriffs and justices of peace were exceedingly active in searching out the proper victims for spoliation, and so rigid in their duty, that they included several in their rolls who had been dead or left the place some time before. The curates were very zealous; and their diligence in this business, contrasted with their carelessness in their spiritual functions, did not tend much to exalt their characters or endear their office. Extensive as the range of sedition had been made, yet were the insatiable managers unsatisfied. They therefore had recourse to an old statute, long in dissuetude, by which all who did not attend the king's host were liable to be punished with death; and changing the award into a pecuniary mulct, they with rigorous impartiality fleeced the lieges in all the devoted counties where there had been the smallest symptoms of discontent.

In October, the circuit-courts commenced their operations; but, as they either kept no record of their proceedings, or these records have been destroyed, the particulars of their extortions are but imperfectly known, only the general devastation they spread was long remembered; the absent heritors were denounced, and numbers of them forfeited, whose estates were bestowed upon noblemen, gentlemen, and soldiers, as rewards for their ready and unflinching obedience to the most cruel and barbarous decreets of the council, which the greater part of them kept hold of till the Revolution restored them to their rightful owners.

Besides this, the council gifted the moveables of such as were reported to have been at Bothwell, which laid the whole of those who were known to favour Presbyterian principles open to the most vexatious visitations; for the *donators*, to whom was committed “the uplifting of the spulzie,”

literally “rode upon the top of their commissions,” exacting to the utmost, and, by returning oftener than once, frequently subjected the same persons to repeated pillage for the same accusation. Another source of wealth to the banditti who now ravaged Scotland, was the compositions of the fines paid to the clerks, or largesses to the officers, to escape the rifling searches of the soldiers, who, whenever they chose, could enter the houses of the most peaceable and destroy their furniture by casting it about, and rip up and render useless their beds and bedclothes, by thrusting them through with their swords, to find if any “cursed Whiggs” were concealed among them. The shires of Lanark and Ayr were peculiarly harassed—shires which, by every principle of sound policy, ought to have been peculiarly favoured, as they were the most industrious and wealthy, but unfortunately they were also reputed the most pious. Wretched as the country was, yet years more grievous followed. Monmouth while there had acted with as much moderation as circumstances would permit, and discouraged as far as possible the virulent spirit of clerical domination which the bishops and curates were so eager to display. When he went to London, he had carried with him very favourable impressions of the Scottish character, and was desirous to infuse somewhat of his own kindness into the councils of his father. Before he left Edinburgh, upon receiving a petition to present to the king, he said, “I think if any place get favour, it should be Scotland; for a gallanter gentry and more loving people, I never saw;” and previous to setting out, he procured what was termed the third indulgence, which was published at Edinburgh by proclamation, June 29. By it, ministers were prohibited under pain of death from holding field-conventicles, and all who attended were to be deemed traitors; but all laws against house conventicles south of the Tay, were suspended, “excepting the town of Edinburgh and two miles round about the same, with the lordships of Musselburgh and Dalkeith; the cities of St Andrews, Glasgow, and Stirling, and a mile about each of them; being fully resolved not to suffer the seat of OUR government nor OUR universities to be pestered with any irregularities whatsoever.” One preacher was to be allowed to each parish upon giving in their names to the privy council and finding security for their peaceable behaviour, provided they had not engaged in the late rebellion, nor been admitted, *i. e.* licensed, by the unconform ministers; assuring, at the same time, all who should offend, that we will maintain our authority and laws by such effectual courses, as, in ruining the authors, could not be thought rigid,

especially after such unmerited favour. “This our forbearance being to continue only during our royal favour.”

These tokens of kindness, stinted as they were, proved very unpalatable to the harpies who were fattening upon the spoils of their patriotic countrymen; and they immediately unbosomed their difficulties to their friend Lauderdale, in the form of an inquiring epistle from the council, dated July 12:—“There being doubts,” say they, “as to the sense of that clause in the proclamation, June 29, suspending all letters of intercommuning, and all other executions, if these words ‘all other executions’ do import that all persons, whether preachers at field-conventicles, or other persons, who being ringleaders of these rebellious rendezvouses, and have been seized according to former proclamations, promising sums of money to the apprehenders, the imprisoned should be set at liberty or not; and if such as have been imprisoned till they pay the fines imposed upon them by sentence of council or other judges, shall also be enlarged and set at liberty; and if these field-preachers and other persons, qualified as aforesaid, are to be liberate—they crave his majesty may declare his pleasure upon what terms and conditions they are to be liberate.” The answer appears to have been favourable to the persecuted.

Several ministers who were in prison for holding conventicles, but had not been at Bothwell, were now set at liberty upon enacting themselves in the books of privy council for their peaceable behaviour, and that they would not preach at field-conventicles. Others, who could not conscientiously enter into such engagements, were dismissed for the time, upon giving security to appear when called for. Among these were fourteen prisoners on the Bass, among whom was Fraser of Brea, who tells us in his memoirs that in twenty-four hour’s space, they found security for eight hundred pounds; “for we would not,” he adds, “give obligation not to rise in arms, nor to forbear field-meetings, because we saw no law for it, and because it was considered by us dishonourable, and to reflect upon our ministry.”

Anxious to improve this breathing time, a numerous meeting of ministers assembled at Edinburgh, August 8, to consider what steps should be taken, and proceeded to re-organize, as far as in them lay, the presbyterial form of their broken down and afflicted church; but before they could realize their intentions, indeed almost ere they enunciated them, the wind passed over

them and they were gone! Towards the latter end of the same month, Charles was attacked with fever, and his life supposed in danger. The Duke of York, who had been obliged by the ascendancy of the patriotic party to retire from court and reside abroad, was immediately sent for and quickly arrived at Windsor. His sudden appearance took his opponents by surprise, and, by the influence which he had over his brother, he effected the fall of Monmouth, who was sent into that exile from which he himself had so unexpectedly returned. With his elevation, all hopes of favour towards the Presbyterians vanished, and the persecution recommenced with renewed fury. A letter from the king, September 18, announced that he had recalled his commission to the Duke of Buccleuch and Monmouth as General. On the very next day, a warrant was granted by the council to Lieutenant-General Dalziel to apprehend whoever had not taken the bond or who harboured recusants, and secure them in prison till they be brought to justice—to dissipate field-conventicles and seize whoever were present at them; and they indemnify all slaughter or mutilation in case of resistance. They also granted him power, along with several others, to sequester the rents of lands, sums of money, and moveables belonging to heritors or others, who came under their denomination of rebels, in order to prevent their being embezzled!!

The Duke of York paid a short visit about this time to Scotland. With the characteristic cunning of a papist, who first cajoles before he ensnares a community, he carried himself towards all with as great suavity as his severe unyielding temper and ungracious manner would permit; but he especially cultivated the goodwill of the Highland chieftains, who had a leaning towards popery, and whose assistance he counted on to aid him in the contemplated destruction of a heretical religion, and forcible establishment of his own. Though admitted to act as a privy councillor, without taking any of the oaths at the king's particular desire, he did not publicly interfere with political matters, but he paved the way for his subsequent rule, and received from the authorities, particularly the magistrates of Edinburgh, the homage and honour so readily paid to an heir-apparent, being feasted sumptuously, and lauded excessively for excellences which, if he did not, he ought to have possessed, and which they were willing to suppose his innate modesty alone prevented him from exhibiting.

BOOK XV.

A.D. 1680.

Perplexity of the moderate ministers—Murder of Mr Hall—Queensferry paper—Cargill joins Cameron—Sanquhar declaration—Council's proclamation in reply—Reflections—Bond—Fresh plunderings by Dalziel—Skirmish at Airs-moss—Death of Cameron—of Rathillet—Cargill—Torwood excommunication—York arrives in Edinburgh—Spreul tortured—Skene, Stewart, and Potter executed—Effigy of the Pope burnt.

Never, perhaps, were men placed in more perplexing and trying circumstances than the conscientious ministers who durst not abstain from preaching the gospel as they had opportunity, but who could neither accept of the fettered indulgences offered them by their rulers, nor yet “had clearness” to disown a government which they thought it their duty to disobey. They got no credit from their persecutors for their professions of loyalty, and were shunned by their brethren who more consistently followed out the constitutional principles they had covenanted to preserve. The breach now became wider by a transaction which also added fresh fuel to the fire of persecution.

Mr Henry Hall of Haughead, in the parish of Eckford, in Teviotdale—one of the proscribed who had fled to Holland—having returned in order to strengthen the hands of Donald Cargill, at that time assiduously preaching the gospel on the banks the Forth, in Fife, and Mid-Lothian, attracted the notice of the curates of Borrowstounness and Carriden, who informed Middleton, a papist, governor of Blackness Castle, of the movements of these two distinguished “rebels.” He immediately went in pursuit, followed by his men in twos and threes to avoid suspicion. Tracking them to a house in Queensferry, he introduced himself as a friend, and requested they might take a glass of wine together, to which they agreed, when he, throwing off

his mask, told them they were his prisoners, and commanded the people of the house, in the king's name, to assist. None, however, paid any attention, except one Thomas George, a waiter, who came in while Mr Hall was struggling with the governor—Cargill having made his escape, although wounded—and striking him on the head with the butt end of his carabine, mortally wounded him; yet, though in this state, did Dalziel, whose house of Binns lies in the neighbourhood, on coming to the spot, order him to be carried to Edinburgh. As might have been expected, he died upon the road. For three days his body lay exposed in the Canongate jail, till at last its putrescence forced the wretches to allow his friends to carry it away and bury it under cloud of night.

In this gentleman's pocket was found an unsubscribed paper, which, from the place where he was murdered, has usually been called "The Queensferry Paper." It was merely notes, or rather a rude draught of a declaration, in which, after stating their adherence to the doctrine of the reformed churches, as contained in the covenants, and their determination to persevere in it to the end, they bound themselves to endeavour to their utmost the overthrow of the kingdom of darkness, and whatsoever is contrary to the kingdom of Christ, especially idolatry and popery, will-worship, prelacy, and erastianism; and, in order to attain this end, they renounced their allegiance; rejecting those who had rejected God, altered and destroyed the established religion, overturned the fundamental laws of the kingdom, and changed the civil government into a tyranny. Then they proposed to set up governors and a government according to the word of God, 'able men, such as fear God; men of truth, hating covetousness;' and no more to commit the government to one single person, or a lineal succession, that kind being liable to most inconveniences and aptest to degenerate into tyranny; at the same time, obliging themselves to defend each other in their worshipping of God, and in their natural, civil, and divine rights and liberties.

Cargill, upon his escape, fled south, and joined Mr Richard Cameron and the wanderers who followed him, and were outlawed, and declared rebels. After much deliberation, they finally agreed upon a declaration and testimony, suitable to the melancholy appearance of the times and the distressed state of the church, which Michael Cameron, accompanied by about twenty persons armed, carried to the small burgh of Sanquhar, read,

and afterwards affixed to the cross, on the 22d of June 1680. This declaration, which was in substance the same as “The Queensferry Paper,” after stating that they considered “it as not among the smallest of the Lord’s mercies to this poor land, that there had always been some who had given their testimony against every course of defection, which they reckoned a token for good that he did not intend to cast them off altogether, but to leave a remnant in whom he would be glorious, if they through his grace kept themselves clean and walked in his ways, carrying on the noble work of reformation in the several steps thereof, both from popery and prelacy, and also from erastian supremacy, so much usurped by him, who,” they add, “it is true, so far as we know, is descended from the race of our kings; yet he hath so far deborded from what he ought to have been by his perjury and usurping in church matters, and tyranny in matters civil, that although we be for government and governors such as the word of God and our covenants allow, yet we for ourselves, and all that will adhere to us, the representatives of the true Presbyterian church and covenanted nation of Scotland, considering the great hazard of lying under sin any longer, do by these presents disown Charles Stuart, who hath been reigning, or rather we may say tyrannizing, on the throne of Britain, forfeited several years since by his perjury and his breach of covenant with God and his church. As also, under the banner of our Lord Jesus Christ, the Captain of our salvation, we do declare war with such a tyrant and usurper.” “As also, we disown and resent the reception of the Duke of York, a professed papist, as repugnant to our principles and vows to the most High God, and as that which is the great, though, alas! the just reproach of our church. We also protest against his succeeding to the crown, as against whatever hath been done, or any are assaying to do, in this land given to the Lord, in prejudice to our work of reformation.”

A proclamation was issued on the last day of June, in reply, stating in exaggerated terms what the council chose to call the sentiments of Mr Richard Cameron and his brother, and Mr Cargill and others, their accomplices,—sacrilegiously engaging themselves by a solemn oath “to murder such as are in any trust or employment under us, declaring us an usurper, and that none should obey them who are in authority under us, but such as would obey the devil and his vicegerents.”

Although Cameron and Cargill did think, and I believe justly, that Charles and the vile turn-coat crew who composed his government were—if perjury, cruelty, tyranny, profligacy, and every species of open undisguised licentiousness embodied, constitute such beings—the representatives of the devil in human shape, yet it does not appear that they used the expressions which they in justice did apply to their persecutors, till they themselves were unconstitutionally and unjustly placed without the pale of the law, denied the rights which had been parliamentarily insured to them, and denounced as the vilest of malefactors for—preaching the gospel. Several of the excellent followers of these noble men have been at no little labour to extenuate or excuse their conduct. It ought never to have been mentioned, but in accents of praise—it needed no justification. The government had broken all faith:—and society is based in its public as well as its private associations on the bonds of mutual reciprocal obligation and the righteous performance of these relative duties. When either party violate them, they deserve punishment for their crime. That popular insurrection should be put down, is allowed; that aristocratical domination was to be equally checked, these denounced Cameronians asserted; and this was in fact the grand crime for which they were hunted like wild beasts upon the mountains.

But they were not the people to be scared from their principles by any prospect of danger. While the fields were traversed by the blood-hounds of their persecutors, the same indomitable bands united more closely together, and entered into a new bond, obliging themselves to be faithful to God and true to one another in the prosecution of their grand design, as assertors of their civil and religious rights, which they believed could only be secured by driving from the throne that “perfidious covenant-breaking race, untrue both to the most High God and the people over whom for their sins they were set.”

These mutual defiances were followed by petty exasperating individual encounters between the soldiers and the exasperated people, for the former did not confine their pillaging to the covenanters, though they were the chief objects of their vengeance; but now, when it was a finable offence to resett or harbour any of the fugitives, the soldiers roamed up and down the country in quest of the wanderers, or in quest of whatever might afford them a pretext for plunder.

Dalziel, the favourite of the council, whose education in the Muscovite service peculiarly fitted him for such employment, was anew invested with enlarged powers to disperse all conventicles, and punish, without the ceremony of sending them to Edinburgh for trial, all who were caught in the “horrible act” of preaching the word of God or hearing it preached; and the council, in a letter to Lauderdale, expressed “the hope we justly have that such just severity against some of these rebels will preserve peace to his majesty’s good subjects,” and disappoint “the vanity of bearing a testimony at Edinburgh, which cherished the foolish humours of numbers, and made the processes and punishments inflicted there less effectual than elsewhere.” All such persons who were understood to be the king’s enemies were to be attacked by the king’s forces wherever they could be found, and imprisoned till brought to justice, or killed in case of resistance.

The General followed out his commission to the letter. He quartered his soldiers upon suspected families, where they lodged during pleasure, and, when leaving, carried off what sheep and cattle they pleased without paying any thing; the pasture and growing corn they eat up or trode down, without allowing the smallest compensation; and, as the whole district was liable to these ravages, the mischief they did was incalculable. While thus ravaging the country, a party, consisting of upwards of one hundred and twenty dragoons, well mounted, under the command of Bruce of Earlshall, were sent to disperse the company of wanderers who usually attended the ministrations of Richard Cameron. They surprised an assemblage at a place called Airs-moss, in the district of Kyle, amounting to about twenty-six horse and forty foot, headed by Hackston of Rathillet, indifferently armed; who, knowing that they had no mercy to expect, determined to face the enemy, and drew up at the entry to the moss. The horse charged with intrepidity, but could not stand against the superior number of their enemies, and were quickly broken; and the foot unable to support them, they were surrounded, and the whole killed or taken. The foot retiring into the morass, could not be pursued. Cameron, who previously to the skirmish had engaged in prayer with the wanderers, used these remarkable expressions—“Lord, take the ripe, but spare the green!” He fell with his brother, back to back, gallantly defending themselves against their assailants. Hackston was severely wounded and taken prisoner.^[129]

[129](#). It is mentioned in the Scots Worthies, p. 372, that Sir John Cochrane of Ochiltree gave the information to Earlshall, and got 10,000 merks as a reward, but that some time after, about two o'clock afternoon, his castle took fire, and was with the charters, plate, and all, burned down to the ground. The son said to his father while it was burning—"This is the vengeance of Cameron's blood." The house was never rebuilt by any of that family.

Cameron's head and hands were cut off and carried to Edinburgh to be exposed, but with wanton barbarity they were first taken to his father, who was in prison; and he was unfeelingly asked by some heartless wretch if he knew them? The old man took them, and kissing them, replied—"I know them! I know them! they are my son's—my own dear son's! It is the Lord; good is the will of the Lord, who cannot wrong me nor mine, but has made goodness and mercy to follow us all our days."

Rathillet next morning was brought to Lanark, where the head-quarters were, and examined before Dalziel, Lord Ross, and some others; but his answers not being deemed satisfactory, Dalziel, with his accustomed brutality, threatened to roast him, then sent him to the tolbooth and caused bind him most barbarously and cast him down on the floor, where he lay till the morning after, without any person being admitted to see him, or administer in any manner to his comfort. On the following morning (Sabbath) he was marched, with three others, two miles on foot, without shoes, and wounded as he was, to be delivered up to the escort under Earlshall, who was to take them to Edinburgh. He used them civilly by the way, and carried them round about the north side of the town to the foot of the Canongate, where they were received by the magistrates of the city,^{[\[130\]](#)} who set Mr Hackston on a horse with his head bare and his face to the tail, the hangman, covered, carrying Mr Cameron's head on an halbert before him; also another head in a sack, was carried on a lad's back. His companions came after on foot, with their hands tied to an iron goad; and thus they were marched to the Parliament Close.

[130](#). Mr Laing says Captain Creighton, whose memoirs were compiled and published by Swift, commanded the military at Airds-moss, Hist. vol. iv. p. 113, note. Rathillet says in his account, "The party that had broken us at first, were commanded by Earlshall, Wodrow, vol. ii. app. p. 60.

All this studied ignominy, which was to recoil with tenfold bitterness upon their own base characters, was minutely prescribed by the council before the prisoner arrived in the capital. As the manner of his execution was determined before he was tried, it still stands in the record thus:—"That

his body be drawn backward on a hurdle to the cross of Edinburgh; that there be an high scaffold erected a little above the cross, where, in the first place, his right hand is to be struck off, and after some time his left hand: then he is to be hanged up, and cut down alive; his bowels to be taken out and his heart shown to the people by the hangman: then his heart and his bowels to be burnt in a fire prepared for that purpose on the scaffold; that afterwards his head be cut off, and his body divided into four quarters—his head to be fixed on the Netherbow, one of his quarters with both his hands to be affixed at St Andrews, another quarter at Glasgow, a third at Leith, a fourth at Burntisland; that none presume to be in mourning for him, or any coffin brought; that no persons be suffered to be on the scaffold with him, save the two bailies, the executioner, and his servants; that he be allowed to pray to God Almighty, but not to speak to the people; that Hackston and Cameron's heads be fixed on higher poles than the rest."

On July 30, he was brought before the justiciary, but declined their authority, because they had usurped supremacy over the church belonging alone to Jesus Christ, and had established idolatry, perjury, and other iniquity in the land; and in prosecuting their design, and in confirming themselves in their usurped right, had shed much innocent blood. The proof of his being at Airds-moss was clear; and one of the late archbishop's servants swore "that he saw the panel on a light-coloured horse at some distance from the coach, and that he took the same horse in Mortounhouse—where Rathillet had been—and hoped to have taken himself, but he escaped." The jury brought him in guilty, and the court sentenced him to be executed that same day with all the revolting particularity of barbaric savagism they had previously appointed. It was even increased by the unskilfulness of the hangman, who was a long while mangling the wrist of the right arm before he succeeded in separating the hand; which being done, the patient sufferer calmly requested him to strike in the joint of the left; then he was drawn up a considerable way with a pulley and suffered to fall a considerable way with a jerk. This was repeated thrice, yet was not life extinguished; for, when the heart was torn from his bosom, it fell from the hands of the executioner, and moved after it fell!

Hackston was a gentleman allied to the first families in the land, of good talents, well educated, and who in early life had associated with the commissioner in the wild gaieties of the day; and perhaps the severest test

his integrity was subjected to was, the commissioner personally came to him in prison, and, with many protestations of kindness, alluding to their former intimacy, urged him to compliance.^[131] The mean tool of power, the advocate, who with his usual insolence endeavoured to insult him at his first examination, received a spirited retort. He asked where he was on the third day of May was a year? To whom he answered, "I am not bound to keep a memorial where I am or what I do every day." The advocate said, "Sir, you must be a great liar to say you remember not where you was that day, it being so remarkable a day;" to which he answered, "Sir, you must be a far greater liar to say I answered such a thing;" and the Chancellor supported him.

¹³¹. Having in vain tried flattery, the Chancellor, in the council, said—"I was a vicious man." I answered, "that while I was so, I had been acceptable to him; but now when otherwise it was not so." In reply to another question, he said, "Ye know that youth is a folly, and in my younger days I was too much carried down with the speat of it: but that inexhaustible fountain of the goodness and grace of God, which is free and great, hath reclaimed me, and, as a firebrand, plucked me out of the claws of satan."—Rathillet's confession, Cloud of Witnesses.

A few days after, August 4th, several others were tried and condemned for having been with Cameron; and a general search was ordered to discover the outlawed attenders on field-preaching. It was conducted under the direction of Robert Cannon of Mardrogat, one of those miscreants who, having made a flaming profession, had become acquainted with their places of meeting, but afterwards apostatizing, now discovered the secret recesses of his former friends, and was usually consulted respecting the character of such persons as the soldiers seized, who were dismissed or detained as he directed.

Intensity of persecution had now almost extinguished field-preaching. Donald Cargill alone fearlessly preserved his station, and, in defiance of the sanguinary storm which swept over the moors and glens of his country, continued to proclaim with unfettered freedom the principles of the church of his fathers, and to assert the spiritual independence of her ministers, while almost all others had yielded to the tempest or deserted the land of their nativity. While hunted himself as a hart or a roe upon the mountains, he resolved upon the extraordinary measure of excommunicating those rulers of a covenanted land who had themselves sworn that sacred obligation, and professed themselves members of the church of Christ in Scotland.

Accordingly, in the month of September, at the Torwood, Stirlingshire, he lectured upon Ezekiel xxi. 25-27. “And thou, profane wicked prince of Israel, whose day is come,” &c., and preached from 1 Cor. v. 13. “Therefore, put away from among yourselves that wicked person.” He first explained the nature and ends of excommunication, affirming that he was not influenced by any private motive in this action, but constrained by conscience of duty and zeal to God, to stigmatize these his enemies that had so apostatized, rebelled against, mocked, despised, and defied the Lord, and to declare them, as they are none of his, to be none of ours. He then with great solemnity proceeded—“I being a minister of Jesus Christ, and having authority and power from him, do, in his name, and by his spirit, excommunicate, cast out of the true church, and deliver up to satan, Charles the Second, king, &c. upon these grounds:—1st, For his high mocking of God, in that after he had acknowledged his own sins, his father’s sins, his mother’s idolatry, yet had gone on more avowedly in the same than all before him. 2d, For his great perjury in breaking and burning the covenant. 3d, For his rescinding of laws for establishing the Reformation, and enacting laws contrary thereunto. 4th, For commanding of armies to destroy the Lord’s people. 5th, For his being an enemy to true protestants and helper of the papists, and hindering the execution of just laws against them. 6th, For his granting remission and pardon for murderers, which is in the power of no king to do, being expressly contrary to the law of God. 7th, For his adulteries, and dissembling with God and man.”

Next, by the same authority, and in the same name, he excommunicated James Duke of York, for his idolatry, and setting it up in Scotland, to defile the land, and encouraging others to do so; not mentioning any other sins but what he scandalously persisted in in Scotland. He pronounced a similar sentence against Lauderdale for his dreadful blasphemy, in saying to the late prelate of St Andrews, “Sit thou at my right hand, until I make thine enemies thy footstool;” his apostacy from the covenant and reformation, and his persecuting thereof after he had been a professor, pleader for, and presser thereof; for his adulteries, his gaming on the Lord’s day, his ordinary cursing; and for his counselling and assisting the king in all his tyrannies, overturning and plotting against the true religion: and also included in the same censure, Rothes, Dalziel, and the Lord Advocate.

These proceedings have been condemned as plainly disagreeable to the rules of the church of Scotland. In ordinary times they might be so, but extraordinary times require extraordinary measures; and Mr Cargill was placed in a situation altogether unparalleled in the history of the church of Scotland. That he was persuaded in his own mind that he had acted with propriety, we know; for next Lord's day, when preaching at Fallow-hill, in the parish of Livingstone, in the preface to his sermon, he thus defended his conduct:—"I know I am and will be condemned by many for excommunicating these wicked men; but condemn me who will, I know I am approved by God, and am persuaded that what I have done on earth is ratified in heaven; for if ever I knew the mind of God, and was clear in my call to any piece of my work, it was that. And I shall give you two signs that you may know I am in no delusion:—1st, If some of these men do not find that sentence binding upon them ere they go off the stage, and be obliged to confess it; and, 2dly, If they die the ordinary death of men;—then the Lord hath not spoken by me."^[132]

¹³². Whatever opinion may be entertained with regard to the prophetic spirit of the denunciation, yet it deserves to be remarked, that Rothes when dying, under great terror of mind, sent for two Presbyterian clergymen, Mr John Carstairs and Mr George Johnstone, to administer consolation to him in his last hours. Charles II. died under very suspicious circumstances in the arms of an harlot. Lauderdale, after being despoiled of his property, and abused in his dotage by his Duchess, departed almost in a state of idiocy, in consequence, it was alleged, of her ill treatment during his imbecility. York died a discrowned exile in a strange country. Dalziel dropped down with a glass of wine at his lips, and entered the eternal state without a moment's warning. "Sir George Mackenzie died at London—all the passages of his body running blood."—Walker's Remarks, p. 10.

However much the persecutors affected to despise this procedure, they showed by their conduct that they did not deem it so ridiculous an affair. That it had touched their souls, scared as they were by unrestrained indulgence in the lowest hardening and profligate licentiousness, was evident from the rage they exhibited and the increased fierceness of their persecution.

Ancient episcopacy, as established by Constantine, has always been considered the genuine parent of the papacy. Modern episcopacy, as established by law, was always considered by the reformers of Scotland, and their descendants in the Presbyterian church, as the legitimate daughter of the man of sin. Nor did the deeds of this period disgrace the relationship.

The Duke of York, who had professed himself a papist, and for this reason was obliged to leave England, was hailed by the Episcopalians of Scotland, where he arrived to resume the government this year. On the 29th, he came to the Abbey of Holyrood-house, and was welcomed by the Bishop of Edinburgh, with the orthodox clergy, as their great protector.

On the 2d of November, a council was held, at which the Earl of Moray produced his commission as sole secretary of state, Lauderdale, on account of his increased corpulence and mental decay, being forced unwillingly to resign a trust he had so awfully abused. The same day they returned a letter of thanks to his majesty—an admirable specimen of courtly congratulation, which might teach despots what reliance is to be placed on the profession of interested sycophants, especially when we recollect that many of those who signed it, in less than eight years conspired to hurl the object of their adulation from the throne. “The only thing,” say they, “which is forced upon the worst of your subjects—viz. the covenanters—is, that they must unavoidably confess that nothing can lessen their happiness, except their being insensible of it and unthankful for it.” Next comes their gratitude for a standing army and their own salaries:—“Your majesty by dispensing for our protection all the revenue which is raised in this your majesty’s ancient kingdom, lets us see that all you crave of us is, that we would be true to our own interest; and all that you get by us is, the care of governing us to our own satisfaction.” Then the loyal professions so easily lavished and so easily forgotten—“That profound respect and sincere kindness, sir, which we observe in your majesty’s subjects here to your royal brother, the Duke of Albany and York, assure us that we want nothing but occasion to hazard for the royal family those lives and fortunes which you have made so sweet and secure to us!”

One of the first tastes they had of the sweetness of the new administration, was in the care the Duke showed to prevent the public mind from being contaminated by seditious publications. The committee for public affairs were desired to consider what books imported from Holland should be condemned by authority; and the clerks of council were ordered to search the shop of John Calderwood, stationer, and secure such prohibited books as should be found therein. Accordingly, he having confessed that he had “*Naphtali; Jus Regni apud Scotos,*” in English; “*Jus Populi Vindicatum,*” “The Reformed Bishop;” and “Calderwood’s Church

History,” he was committed to prison and his shop shut; and all stationers were ordered in future to show their invoices to one of the officers of state or the Bishop of Edinburgh, for their approbation, under pain of forfeiting the books, and being fined if they should fail. A ship belonging to Borrowstounness, which had been seized on suspicion of having some of the dangerous works on board, though none were got, was not released till the owners found surety to the council for their good behaviour in time to come.

Whenever any unprincipled set of men, who have obtained and abused power, become conscious that they are hated, and deserve to be hurled from their eminence, they commonly pretend to discover some plot for overturning their government. Accordingly, a plot against the Duke’s life was fabricated; and John Spreul, apothecary in Glasgow, and Robert Hamilton, were accused of being accessory to it. The council ordered them to be examined by torture, and appointed a committee to conduct the examination, among whom it is painful to observe the name of the Earl of Argyle. Of Hamilton’s examination I have seen no account, but Spreul was put to the question; and the Duke of York chose to be a spectator, viewing it “with the calmness of a person looking upon a curious experiment,” or perhaps more truly, as has been observed, “with all the infernal gratification of a popish inquisitor.”

This excellent man, early initiated in suffering, was the son of a merchant in Paisley, who had been ruined and forced to abscond (1667) merely for hearing the gospel preached in the open air. When he was seized, he was examined by Dalziel, who according to custom, threatened to roast him alive if he would not discover his father’s retreat; but finding he could make nothing of the boy, he was let go upon a short confinement. Ten years after, just when he had settled in life, he was intercommuned merely for non-conformity, and forced to travel as a merchant through Holland, France, and Ireland, occasionally and by stealth visiting his wife who had retained the shop; but after Bothwell, although he was not there, he was again denounced, his shop seized, and wife and children turned to the door. He then came back to Scotland to carry them with him to Holland, but was apprehended in bed by the notorious Major Johnstoun at Edinburgh, his goods seized, and himself sent to prison.

His examination shows the spirit of the times; and a short quotation will exhibit better than any remarks, the nature of popish unconstitutional interference in the management of a protestant country. "Were you at the killing of the archbishop? I was in Ireland at that time. Was it a murder? I know not but by hearsay that he is dead, and cannot judge other men's actions upon hearsay. I am no judge; but in my discreitive judgment I would not have done it, and cannot approve it." He was again urged:—"But do you not think it was a murder?" His answer exhibits the principles of the majority of the sufferers. "Excuse me from going any farther, I scruple to condemn what I cannot approve; there may be a righteous judgment of God when there is a sinful hand of man; and I may admire and adore the one, when I tremble at the other." As he was personally engaged in none of the risings, he was asked whether resisting Claverhouse at Drumclog was rebellion? He answered, "I think not; for I own the freedom of preaching the gospel, and I hear what they did was only in self-defence." "Was the rising at Bothwell rebellion?" "I will not call it rebellion; I think it was a providential necessity put on them for their own safety after Drumclog." Twice was he put to the torture; and at the second time, the old ruffian Dalziel said the hangman did not strike strongly enough. The fellow replied, that he had struck with all his strength, and offered the General the maul to try it himself.

Our common nature recoils from such scenes. The votaries of a false religion delight in the torment of those they deem heretics; and had we no other proof of relationship, this would be sufficient to establish the identity of the then Scottish Episcopalian church and the church of Rome, the same cruelty being used by both towards those who differed from the state religion. The intrepid victim was carried back to prison, but denied either the assistance of a surgeon, or the attendance of his wife!

The Duke of York showed the reality of his religion by being voluntarily present during the double infliction. No information was obtained by the tyrant. The sufferer knew nothing about any plot to blow up his Grace, nor did he know where Mr Cargill was to be found.

Mr James Skene, brother to the Laird of Skene was the next. This gentleman's case deserves peculiar notice. He was guilty of no treason. His only accusation was his having heard Mr Cargill preach. He had been a youth of irregular habits, and had associated, as from his birth and rank he

had a right to do, with the first people of the country; but while wandering among the mountains, he unwittingly came where this minister of the gospel was tending his small flock in the wilderness, and was himself caught in the gospel net. Henceforth, instead of indulging in every youthful folly, he became sober and exemplary in his conduct—sins of no common magnitude in the estimation of the rulers of the day; and immediately he came under the cognizance of the government; and being apprehended, was brought to trial for treason.

Being a young convert, and animated with all the warmth of a new zeal, he unfortunately, by his unguarded answers, gave currency to the reports so assiduously circulated against the wanderers, of their pleading for or extenuating the practice of private assassination, and a contempt for all constituted authority, or indeed any authority but their own. He thus detailed it in a letter to his brother:—"Rothes asked, did I own the king's authority? I said, in so far as it was against the covenant and interest of Christ, I disowned it. He asked me if I thought it was not a sinful murder the killing of the arch-prelate? I said I thought it was their duty to kill him when God gave them opportunity, for he had been the author of much bloodshed. They asked me why I carried arms? I told them it was for self-defence, and the defence of the gospel. They asked me why I poisoned my ball? I told them I wished none of them to recover whom I shot. They asked, would I kill the soldiers, being the king's? I said it was my duty if I could, when they persecuted God's people. They asked if I would kill any of *them*? I said they were all stated enemies of our Lord Jesus Christ, and by the declaration at Sanquhar, I counted them *my* enemies. They asked if I would think it my duty to kill the king? I said he had stated himself an enemy to God's interest, and there was war declared against him. I said the covenant made with God was the glory of Scotland, though they had unthankfully counted it their shame; and in direct terms, I said to the Chancellor, I have a parchment at home wherein your father's name is, and you are bound by that as well as I. A little after, the Chancellor said, why did I not call him lord? I told him, were he for Christ's interest I would honour him. Then he said he cared not for my honour; but he would have me to know he was Chancellor. I said I knew that. He said I was not a Scots man, but a Scots beast." The above is a specimen of the treatment that even prisoners of rank experienced at the hands of the privy council. The process before the justiciary was more brief. His declaration was the only evidence

brought against him; and he having acknowledged it, he was sent to the scaffold to atone for his sentiments.



The Students of Edin.' burning the Pope in effigy, Anno. 1680

Edin^r. Hugh Paton. Carver & Gilder to the Queen 1842.

Along with Skene were executed Archibald Stewart, who belonged to Borrowstounness, and John Potter, a farmer in the parish of Uphall. The former had been a follower of Cameron, and present at the skirmish at Airmoss, though not apprehended till some time after, when, being examined by torture, he acknowledged the fact, as a necessary piece of self-defence when following the gospel preached in the fields—the only crime of which he could be accused; but he denied that either he or any of those with whom he associated had ever declared that they would have killed the king or any of the council, which he affirmed was “an untruth and forged calumny, to reproach the way of God, more like themselves and their own principles, who have killed so many of the people of God both on the fields and upon scaffolds.” The latter also had been equally guilty of attending the reproached preachings of Cameron and Cargill; and he exhorted his fellow-christians not to be troubled because of their death, but to “keep the word of his patience, and he would keep them in the hour of temptation which shall come upon all the world, to try them that dwell upon the face of the earth.” “O dear friends and followers of Christ, hold on your way; weary not; faint not; and you shall receive the crown of life. It is they that overcome by the blood of the Lamb, and the word of their testimony, that shall stand, being clothed in white robes before the throne; for these are they that have come out of great tribulation. Remember there is a book of remembrance written; and the names are written in it that speak often one to another. O! my friends, let it be your study to keep up private fellowship meetings, wherein so much of the power and life of religion is to be found.” They do not appear to have been attended by any minister. They sung the second Psalm and read the third chapter of Malachi; but when Stewart began to pray, and alluded to the bloody Charles Stuart, immediately the drums were beat.

These acts of severity, however, by no means produced the effects intended; and, as the youth of a country often announce prematurely the feelings of the maturer part of a community, the students at Edinburgh College, on Christmas-day, celebrated the highest festival of the Romish church by burning the Pope in effigy, arrayed in his pontifical paraphernalia—his triple crown, keys, and scarlet robes—after having paraded him

through the streets in procession, and formally excommunicated him. Those at the College of Glasgow in a less tumultuous, but more lasting and impressive manner, testified their sentiments by reviving the blue riband—the badge of the covenant. When called before the archbishop for their offence, the young Marquis of Annandale showed his contempt for his authority by only styling him Sir, and, when reproved by his tutor for not respecting his superior, replied, “I know the king has been pleased to make him a spiritual lord; but I know likewise the piper’s son of Arbroath and my father’s son are not to be compared.”

BOOK XVI.

A.D. 1681.

Edinburgh College shut—Isobel Alison and Marion Harvey executed—Other executions—Search for covenanters—Thomas Kennoway's exploits—Mock-courts held by Cornet Graham and Grierson of Lag—Mr Spreul tried—acquitted—sent to the Bass—John Blackadder, Gabriel Semple, and Donald Cargill seized—Walter Smith, William Cuthil, and others apprehended, tried, and executed.

This year was ushered in by the council ordering the College of Edinburgh to be shut up, January 4, and the students, several of whom were sent to prison, dispersed in consequence of the insult they had offered to the religion of his Grace the Duke of York, who had now openly avowed his being a papist. The youths expressed loudly their indignation at such treatment, and had threatened, it was said, to burn the provost's house about his ears for his servility, when the house by some means or other actually took fire, and was burnt to the ground. How it happened was never discovered, and a report that it was done by some of the Duke of York's emissaries, gained general credit, although various efforts had been made to affix the blame to the students; but they voluntarily came forward and offered to stand trial that their characters might be vindicated. The offer was refused.

A more grateful tribute, however, was paid to his Royal Highness' faith, by the immolation of two virgin martyrs in the end of the same month—Isobel Alison, who was apprehended at Perth, where she quietly resided, and Marion Harvey, a maid-servant, a native of Borrowstounness, who was seized upon the road as she was walking from Edinburgh to hear sermon in the country. Atrocious as these times were, their annals do not afford many instances of more heartless, cold-blooded, entrapping levity, than the

examination of these simple girls, both before the privy council and the court of justiciary, do, in the conduct of their examiners, on the one hand, nor more interesting exhibitions than their artless yet pointed replies, on the other.

When Isobel Alison was before the privy council, “they asked me,” says she, in an account of it which she left, “if I could read the Bible? I answered, Yes. They asked me if I knew the duty we owe to the civil magistrate? I answered, when the magistrate carrieth the sword for God, according to what the Scripture calls for, we owe him all due reverence; but when they overturn the work of God, and set themselves in opposition to him, it is the duty of his servants to execute his laws and ordinances on them. They asked, if I ever conversed with rebels? I answered, I never conversed with rebels. They asked if I conversed with David Hackston? I answered, I did converse with him, and I bless the Lord that ever I saw him; for I never saw ought in him but a godly pious youth. They asked, when saw ye John Balfour, that godly pious youth? I answered, I have seen him. They asked, when? I answered, these are frivolous questions; I am not bound to answer them. They said I thought not that a testimony.”

“They asked, what think ye of that in the Confession of Faith, that magistrates should be owned though they were heathens? I answered, it was another matter than when those who seemed to own the truth have now overturned it, and made themselves avowed enemies to it. They asked, who should be judge of these things? I answered, the Scriptures of truth and the Spirit of God, and not men who have overturned the work themselves.” She refused to call Sharpe’s death murder; and being asked if she would own all that she had said, as she would be put to own it in the Grassmarket, they expressed their regret that she should hazard her life in such a quarrel. “I think my life little enough in the quarrel of owning my Lord and Master’s sweet truths;—for he has freed me from everlasting wrath; and as for my body, it is at his disposal. They said I did not follow the Lord’s practice in that anent Pilate. I answered, Christ owned his kingly office when he was questioned on it, and told them he was a king, and for that end he was born; and it is for that we are called in question this day—the owning of his kingly government. The bishop said, we own it. I answered, we have found the sad consequences of the contrary. The bishop said he pitied me for the loss of my life. I told him that he had done me much more hurt than the loss

of my life, or all the lives they had taken, for it had much more affected me that many souls were killed by their doctrine. The bishop said, wherein is our doctrine erroneous? I said, that was better debated already than a poor lass could debate it.”

Marion Harvey was not twenty years of age. When brought before the council, there was no criminal act which they could lay against her; nor does it appear that there was any witness they could have brought to substantiate any charge. But she was easily ensnared; she acknowledged having been at field-conventicles, and respecting the king’s authority, she said, “so long as the king held the truths of God which he swore, we are obliged to own him; but when he brake his oath and robbed Christ of his kingly rights, which do not belong to him, we are bound to disown him. They asked, were ye ever mad? She answered, I have all the wit that ever God gave me. Do ye see any mad act about me? When told that she had been guilty of the sin of rebellion, she smiled and said, if she were as free of all sin as of the sin of rebellion, she should be an innocent creature.”

Both were sent to the justiciary and indicted for treason, because it was alleged the one had spoken freely against the severities then practised against the Presbyterians, and the other had attended field-conventicles. Their own declarations were the only evidence adduced against them. When the jury were sworn in, Marion, looking towards them, solemnly said, “Now, beware what ye are doing, for they have nothing against me, but only for owning Jesus Christ and his persecuted truths; for ye will get my blood upon your heads!” One of them who had been seized with a fit of trembling, desired the confessions to be read, which being done, the advocate addressed them, and concluded with “ye know these women are guilty of treason!” One of the jury remarked, “they are not guilty of matters of fact.” “Treason is fact,” replied the accuser, and added, “’tis true it is but treason in their judgment; but go on according to our law, and if you will not do it, I know how to proceed.” He then addressed the prisoners, “’Tis not for religion we are pursuing you, but for treason.” “It is for religion,” replied Harvey; “for I am of the same religion that ye all are sworn to be of! I am a true Presbyterian; and,” turning to the jury, “I charge you before the tribunal of God, as ye shall answer there! ye have nothing to say to me but for my owning the persecuted gospel.” They were both brought in guilty upon their own confession, and condemned to be hanged at the Grassmarket

on the 26th. They were executed according to their sentence, and died, not with composure only, but with rapture.

When being brought from the tolbooth to the council-chamber to be carried to the place of execution, the youngest, who had several friends attending her, exclaimed, with an air of unearthly ecstasy, “Behold, I hear my beloved saying unto me, ‘Arise, my dove, my fair one, and come away!’” When in the room waiting the last preparations, Bishop Paterson, with a kind of fiendish exultation, said, “Marion, you said you would never hear a curate pray, now you shall be forced to hear one,” and ordered a suffragan of his who was in attendance to proceed; on which she turned to her companion, and saying, “Come, Isobel, let us sing the 23d Psalm;” they commenced immediately, and drowned the voice of the poor curate, who, with his employers, stood amazed at the clear unbroken tones of the youthful confessors.

On the scaffold, the most of her discourse was of God’s love to her and the commendation of free grace. Ascending the ladder a few steps, she sat down and said, “I am not come here for murder; for they have no matter of fact to charge me with, but only my judgment. I am about twenty years of age. At fourteen or fifteen, I was a hearer of the curates and indulged; and while I was a hearer of these, I was a blasphemer and Sabbath breaker, and a chapter of the Bible was a burden to me; but since I heard this persecuted gospel, I durst not blaspheme nor break the Sabbath, and the Bible became my delight;” on which the town major called to the hangman—“Cast her over,” which he immediately did.

Isobel, looking to the crowd from the scaffold, cried out—“Rejoice in the Lord, ye righteous; and again I say rejoice.” When she went up the ladder, “O! be zealous, sirs; be zealous! Love the Lord all ye his servants; for in his favour there is life. O! ye his enemies, what will ye do—whither will ye fly? for now there is a dreadful day coming on all the enemies of Jesus Christ. Come out from among them all ye that are the Lord’s own people;” then added, “Farewell, all created comforts! farewell, sweet Bible! in which I delighted most, and which has been sweet to me since I came into prison. Now, into thy hands I commit my spirit, Father, Son, and Holy Ghost!” And while these words yet trembled on her lips, she was launched into eternity. In order to imbitter their punishment, they were hanged along with five other women for child murder. The latter were attended by a curate, who

gave them every consolation, but upbraided their virtuous companions in suffering in the most opprobrious terms as traitors.

Within a few days, John Murray, in Borrowstounness, Christopher Miller, weaver, Gargunnock, and, on March 8th, William Gowgar, Borrowstounness, with Robert Sangster, a Stirlingshire man, were found guilty by a like speedy process, and hanged together in the Grassmarket on the 11th, except Murray, who was reprieved.^[133] Their testimonies embraced the same topics, and were in every respect similar to those of their worthy predecessors who had vindicated the religious and civil liberties of their afflicted country at the expense of their lives. Gowgar was rather more harshly used than the rest. Some heads of an intended speech, written on a small slip of paper, having fallen out of his Bible in the council chamber, whither he had been taken just before being led to the gallows. After some of the councillors had read it, they ordered the executioner to tie his arms harder than usual, so that he could scarcely climb the ladder; and when he began to speak, the drums were immediately commanded to roll; nor would they even allow him to pray.

^{133.} Murray had presented a petition to the Duke of York disowning king-killing principles, which concluded rather strangely, considering the person to whom it was addressed:—"For I declare I am no *papist*, and hate and abhor all these jesuitical, bloody, and murdering principles." When this was read in council, Murray was asked who drew it, and with much difficulty was induced to name Mr Spreul. Spreul was thereupon immediately called, and being interrogated, asked to see the paper. This reasonable request was not complied with; but York rose and imperiously demanded—"Sir, would you kill the king?" Spreul, turning to the Chancellor, said—"My lord, I bless God I am no papist. I lothe and abhor all these jesuitical, bloody, and murdering principles; neither my parents nor the ministers I heard ever taught me such principles." York frowned; and Spreul afterwards suffered for his freedom of speech, but Murray appears to have benefited by the business, for he was afterwards pardoned as being "misled rather than malicious."

Adam Urquhart, laird of Meldrum, having been accused, and offered to be proved guilty of the most exorbitant oppression, the council, to mark their sense of such conduct, renewed his former commission with additional powers, for searching out and apprehending all who had not taken the bond, or who had been at Bothwell or harboured any who had been there. As a specimen of the manner in which such searches were carried on, I give the following:—Thomas Kennoway, one of the king's guards, came to the parish of Livingstone with a party late on Saturday, 19th March, pretending that he had orders—for he produced none—to apprehend such as had been

concerned in the Bothwell rising. Having tampered with the neighbours to procure a list of such as had been engaged, he at last obtained the name of one young man who lived with his father and brother in a small house near a moss, which the party entered; and after smashing and destroying the furniture, under pretence of searching for arms, Kennoway cursed the father for an old devil, and swore "he would hang him at the tae end of a tow an' his son at the t'ither;" and carried them all off along with him. When they had marched some little way, Kennoway suffered the old man and one of his sons to return, and proceeded with the other to a hamlet at a considerable distance to search another suspected house. When he alighted here, he obliged his prisoner to take off his coat and cover his horse with it, in a cold stormy night, till the poor fellow could scarcely stand with shivering. The person they were in search of escaped out at a window in his shirt, and in this state ran nearly a mile before he obtained shelter. Meanwhile the party took away his father in his stead. They made a third attempt the same night upon a fresh steading, still dragging their captives along with them, but missed their prey.

Having spent the night in rioting, early on the Sabbath morning they came to Swine-abbey, a public-house properly so called, and having procured lights, "Kennoway," says honest Wodrow, "swore bloodily he feared they had brought the wrong man;" and the prisoner peremptorily denying that he had been at Bothwell, two of the soldiers were despatched to bring "the old dog" and the other son. But by this time the young dog had got out of the way, and the old one, through terror and maltreatment, was so ill that he could neither ride nor walk. The troopers brought some women to bear witness to the fact, and also that the prisoner was not the person mentioned in their list. Chagrined at their disappointment, the valiant Kennoway and his party endeavoured to drown their mortification in "eight pints of wine and brandy, for which he swore the prisoners should pay." Thus passed the Sabbath. On Monday he held a court, fined the old man in eight dollars, forced an heritor in West Calder to give him a bond for five hundred merks, and committed many other extravagances, of which the sufferers durst not complain, and for which there was no redress. The young man was allowed to depart; but in consequence of his harsh treatment, fevered, and died within a few days.

Such burlesque courts now became common with the military, who carried them to the most extravagant length. Cornet Graham, who appears to have infested several parishes, held one at Dalry in the beginning of the year, to which all men and women above the age of sixteen, were summoned. Those who appeared were ordered to declare upon oath whether they had ever been at any field-meetings or countenanced any who frequented them, and whether they were married or got any infants baptized by field-preachers. The infamous Grierson of Lag was also particularly active in holding others in Dumfries and Galloway, where great numbers of the inhabitants were put to much expense, besides loss of time and damage to their various occupations.

Some estimate may be formed of the extent of the wanton extortion experienced by the most industrious part of the community at this period, when it is recollected that not only all whom the curates and clergy chose to denounce as guilty of “horrid contempt of the law,” but all against whom they had the smallest grudge and chose to name as witnesses of the contempt of others, were brought from their homes, week after week, and kept dangling after their court diets. The case of Mr James Aird of Milltoun will furnish an apt illustration. While residing at Kilmarnock upon a very stormy Sabbath, the church being very thin, one Carnegie, the curate, at the close of his afternoon’s sermon caused the kirk doors to be locked, and the names of the heads of families, parishioners, called over, and all the absentees marked on purpose to be fined—an excellent method of procuring attendance on rainy Sundays in country parishes. Mr Aird was not only fined on this occasion, but was brought before the justiciary shortly after, when *fifty-five witnesses were examined* in order to prove his accession to Bothwell, not one of whom could say a word about the matter; and much as they were inclined to strain every point to get him forfeited, all failed, and he was liberated. Yet was he forced to compound with the Laird of Broich, who, on pretext of alleged converse, had got a gift of his moveables, besides paying upwards of three hundred merks in expenses before the justiciary. Nor did this terminate his sufferings; ere three short months elapsed, parties were anew sent in pursuit of him; and he was, after sleeping in the open fields upwards of forty nights forced to abscond for several years, leaving his house and effects to the mercy of the plunderer.

There is something truly diabolical in first torturing a suspected person to force a confession of crime, and then producing this confession in a criminal court, and upon it, without any other evidence, condemning a man to die; yet such a practice was now attempted to be introduced by Sir George Mackenzie, in order to reach the lives of the persecuted. Before Mr Spreul was recovered from the effects of his torture, the Lord Advocate served him with an indictment; and an extrajudicial examination of several witnesses took place before some of the councillors, against which the prisoner protested; yet although both threatened and cajoled, their evidence appeared so defective, that proceedings were delayed, though the Duke of York pressed his immediate trial, “alleging they were at much pains about poor country people, but Mr Spreul was more dangerous than five hundred of them.” At length, June 10, he was brought before the court upon a new indictment, “charged with treason and rebellion, corresponding and being present with the rebels at Bothwell, also keeping company and corresponding with Mr John Welsh and Mr Samuel Arnot, the bloody and sacrilegious murderers of the late Archbishop of St Andrews”—it being now the custom to accumulate in the indictment a number of charges which the public prosecutor himself knew to be false, and did not even intend attempting to prove.

The panel was assisted by some of the first advocates at the bar—Sir George Lockhart, Mr Walter Pringle, Mr James Deas, Mr Alexander Swinton, and Mr David Theirs. It was contended by his counsel, that he could not now be put upon his trial, or, in legal language, “pass to the knowledge of an inquest,” because, being examined before the council for the same crime, and having denied the same, and thereafter being tortured two several times, persisted in his denial, he cannot by the law of this and all other nations be impanelled nor condemned for that crime upon any new probation.

The reply of the Lord Advocate was indeed worthy of himself:—“A denial upon torture cannot infer absolute liberation, since no man’s obstinacy should be of advantage to him—that were to make disingenuity a remission, and tempt criminals to conceal truth; nor does torture, in law, import any more than a presumption of innocence—and, in law, presumptions may be taken off by clear probation. Were torture to preclude future probation, it will follow, that either crimes must be left undiscovered

by not putting suspected persons to torture, or criminals be absolved and suffered to go unpunished, by wanting after opportunities of leading just probation against them. The most that can be pleaded in law, is, that no man can be tried upon the principal and chief points for which he was tortured; but the panel was never tortured upon the grounds he is now to be tried upon; besides, he neither cleared himself nor satisfied the judges, but continued in one insuperable obstinacy. Nor was it necessary to examine him respecting his accession to the rebellion since it can be proven that previously to his torture he confessed the crime.”

Sir George Lockhart offered to prove that the panel was tortured twice most violently upon the very crime; that it is the opinion of all lawyers, when once torture is used, it excludes all other probation, even although there should afterwards appear the fullest evidence against the accused; for, were it not so, double punishment would be undergone—and the practice of this nation has been exactly agreeable thereto. In the year 1632-33, John Toshach being pursued as guilty of statutory treason for wilful fire and burning the house of Frendraught, the panel being interrogated, not upon the whole fact, but whether he entered into the vault with a candle that night the house was burnt, and upon this subjected to torture and denied it. The process was prolonged from August to November, and then to February. His majesty’s advocate urging a new probation, and the panel’s lawyers advancing his torture as a defence, the lords of justiciary sustained it.

Sir George Mackenzie then consented that it would be sufficient for the panel to prove that he was tortured upon this very point by command of the council, and produced the commission. Sir George Lockhart said he did not mean to accuse the committee appointed by the council of illegal procedure by acting in opposition to their commission; but it is certain the panel was interrogated upon the crimes libelled, and his answers drawn up as his confession. The lords repelled the defence, founded upon the torture, inasmuch as the commission of council did not warrant the prisoner’s being questioned upon any of the crimes mentioned in the indictment, and adjourned the trial till the 13th.

At this sederunt several witnesses were examined, but none of them brought the facts home to the prisoner, and the Lord Advocate adduced his alleged confession in presence of the council as a corroborative evidence. Sir George Lockhart argued that the pretended confession before council

could not be received, for it was not acknowledged nor signed by the panel, besides being extrajudicial and not taken before a competent judicature. The king's advocate offered to prove by witnesses that the confession was read to the panel, and he could not disown it; his contumacy, therefore, ought not to be of any use to him, unless one crime was brought forward to defend another. Yet, following the merciful example of the king, his master! and being unwilling to stretch any debateable point, he only adduced this confession against the panel as an adminicle and a presumption, joined with other pregnant grounds,—and what can be stronger? Writs may be forged, witnesses may be false, but a man will never confess untruly to his own hurt, and therefore a confession, even before an incompetent tribunal, unless the confessor can show what made him err. Then assuming, what does not appear plain upon the record, his presence and converse with rebels, he proceeds—“all that is wanting is, whether it was with a criminal intention, of which his own confession must be owned the most solid evidence.”

Sir George Lockhart insisted that there could not be one instance produced of a confession importing forfeiture of life and estate not signed by the person, or judge, if he cannot write; that in pecuniary matters the bare verbal confession would not be admitted to be proven by deposition of witnesses for one hundred pounds Scots—and would it be admitted in a matter of life and fortune? The lords “refused to sustain the confession to be proven by witnesses as a mean of probation, either plenary or adminiculate.”

The advocate, as a last forlorn hope, moved “that the panel be interrogated if he thinks the being at Bothwell Bridge rebellion?” The panel answered, that he conceives that he is not obliged to answer, because it is not the crime libelled, and he may as well be interrogated upon any other point of treason. The lords having, however, put the question, the panel answered, “that was no part of the libel, and his future life should witness him to be both a good subject and a good Christian.” The prosecutor now declared his proof closed, and protested for an assize of error in case the inquest assoilzie the panel. The jury were then enclosed and ordered to return their verdict next day, which they did in the following terms:—“The assize having considered the depositions of the haill witnesses led against

John Spreul, *una voce*, find nothing proven of the crimes contained in the libel which may make him guilty.”

What follows marks as much almost as any deed of the times the tyranny of the government and the servile prostitution of justice at the fountainhead. When Spreul and his procurators, upon his acquittal, took instruments and craved that he might be liberated, his majesty’s advocate produced an act of council previously prepared:—“Edinburgh, June 14, 1681. The council give order and warrant to the justices, notwithstanding of any verdict or sentence upon the criminal dittay lately pursued against John Spreul, to detain him in prison until he be examined upon several other points they have to lay to his charge.” Mr Spreul was accordingly remanded to jail; and such was the persevering greed of his rapacious persecutors, that, on the 14th of July, he, together with a William Lin, writer in Edinburgh, was brought before the privy council for being at field-conventicles. They were both accused of having at least heard Presbyterian ministers preach when some of the congregation were without doors, and likewise of resett and converse with intercommuned persons; and the truth of the accusation being referred to their oaths, because they would not swear, they were both found guilty, and each of them fined five hundred pounds sterling and sent to the Bass. Mr Spreul lay there six years, whence, “from his long continuance in that place,” Wodrow adds, “he has yet the compellation of Bass John Spreul, whereof he needs not be ashamed.”^[134]

¹³⁴. This unusual severity was said to have been occasioned by Mr Spreul’s rather imprudent answer; but as York repeatedly and voluntarily was present, and appeared much interested in such spectacles, it would appear the natural unfeeling disposition of the tyrant was stimulated by the horrible maxims of his religion.

Mr Blackadder was seized in Edinburgh on Tuesday, April 5, and has left the following account of his apprehension, so characteristic of the manners of these satellites of prelatic domination, that I give it at length:—“The party came to his house before he arose. His daughter and servant were up expecting the Borrowstounness carrier, who had promised to come that day. About five or six o’clock, one knocked softly at the hanging gate. She looked through a hole in the door and spied a man with a grey hat, and thought it had been the carrier, who was there the night before with a grey hat of somebody’s on his head. She opened the door, but it proved to be Johnstoun the town-major, with a party at his back, who came into the hall,

and asked, 'If there were any strangers in the house.' She said, 'No.' Yet he came to the chamber where her father was lying, putting the end of his staff to the side of the curtain, and then went up stairs to the gallery where the minister used to stay, and found only his son lying in the bed, and came down again to his chamber, saying to the minister's wife, 'Mistress, desire your husband to rise.' He looking forth out of the bed, said, 'How, now, major, is that you? I am not surprised, but where is your order?' The other said, 'You are only to rise and come down to a friend in the Canongate.' 'Well,' said the minister, 'if I were dressed, I am ready.'

"Meanwhile he spoke gently to his men to wait on the prisoner, but he himself went quickly to Dalziel in the Canongate; upon which and other presumptions, the minister conjectured he had no order at the time, except privately from Prelate Paterson, till after he was taken; for he did not take him out of his house till he returned. After he returned, the minister calling for a drink, sought a blessing, and caused give them all a drink, and went forth; his wife being very sickly, yet behaved more quietly than he could have believed. It was observable that such a wicked person as the major was, who used to swear and domineer in all such cases, did at that time carry most calmly, as all the party did, not one menacing word being heard. The major took him down the Cowgate, himself on the one hand, and the minister's son Thomas on the other, the party following, and brought him to Dalziel's lodgings, near the foot of the Canongate. The major went first, the minister following. Dalziel himself opening the door, the major told him he had brought the prisoner. Dalziel bade him take him to the guard. The minister stepping up stairs, said—"May I speak a little?" at which he rudely raged, 'You, sir, have spoken too much; I would hang you with my own hands over that outshot.' He knew not yet who he was, nor what was laid to his charge till afterward, as the minister perceived by a strange alteration in his calmness to him when he came to the court at twelve o'clock, at which time he was called.

"His examiners were, the Duke of Rothes, chancellor; the king's advocate, Sir George Mackenzie; General Dalziel; and Bishop Paterson of Edinburgh. In answer to questions from the Chancellor, he acknowledged he was a minister at Troqueer, in Galloway, since 1653. 'Did you excommunicate the king? or was you at Torwood at the time?' 'I have not

been at Torwood these four years.’ ‘But what do you think of it? do you approve of it?’

“Perceiving that many such extraneous questions concerning his thoughts and judgments of things might be asked, and being resolved to make a stand at first, he shunned declaring his inward sentiments, and answered — ‘Though I be as free to answer to that as to all the former, yet I must tell you I came here to give account of my judgment to no man; therefore, seeing this is an interrogating of me about my thoughts, I humbly beg to be excused. Produce a libel, and I’ll endeavour to answer it as I can.’ On this point he was repeatedly interrogated by the Chancellor and the Advocate, but to no purpose.

“‘But do you approve of taking the king’s life?’ ‘No, I do not, and no good man will.’ The Chancellor said, ‘Sir, you have done yourself a favour in saying so. But we hear you keep conventicles since the last indemnity?’ ‘I need not ask what is meant by conventicles, seeing that term has been frequently applied to our preaching who are ministers of the gospel, and under the strictest obligation to exercise our ministry, as we shall be answerable at the great day. My lord, I have the honour to be lawfully and duly called to the sacred function, and am bound to exercise that office, which I ever did and still do account my duty, abstracting from all indemnities whatever.’ ‘But you have preached in the fields, that is, on moors and hill sides? I shall not ask you if you have preached in houses or not, though there is not liberty even for that.’ ‘I place no case of conscience, nor make any difference betwixt preaching in houses or in the fields, but as may best serve the convenience of the hearers; nor know I of any restriction lying on me from the word of God, where I have my commission, which reaches to houses and fields, within and without doors.’ ‘You know, and no doubt have seen, the laws discharging such preaching?’ ‘My lord, no doubt I have; and I am sorry that there ever should have been laws and acts made against preaching the gospel.’ ‘Not against preaching the gospel, but against sedition and rebellion.’ ‘I preach no sedition or rebellion.’

“Then the Lord Advocate rose out of his place and came to the prisoner, and courteously asked him, why he answered not more clearly to the Chancellor about the excommunication, and alleged he was straitened. To this insidious query, Mr Blackadder replied, ‘I am noways straitened or confused about that; but I do of purpose shun to answer such interrogatories

as require me to give account of my thoughts and judgment about persons or practices, not knowing how many such questions may be put, or what use may be made of them; and I am here only to answer for matters of fact that concern myself.' Then intending to speak somewhat more, he craved liberty to be heard; to which the Chancellor replied, 'You have leave to speak, if you speak not treason;' but immediately rose and went out with the other two, it being near one o'clock, their dinner hour.

"Before the next examination, he sent his son to tell Colonel Blackadder, a cousin of his, who went and informed General Dalziel, whose comrade he had been in the wars, of the prisoner's relation to the house of Tulliallan, with which Dalziel also was connected. The examination consisted only of a few trifling questions, and passed smoothly. At two o'clock on Wednesday, Captain Maitland, who was on the guard, told the prisoner he was to carry him up to the council at three, and desired him to be ready. When the Duke went to the council, he, Mr Blackadder, was ranked among three rank of musketeers in Captain Maitland's company, who marched him up the rear of the life-guards who attended the Duke up streets. When he came to the Parliament Close, the captain sent four soldiers to wait on the prisoner in an outer room till he should be called. There he sat from three till five o'clock, when the council rose. He was not called, which he marvelled at; but sent his son Thomas to inquire what word was concerning him, who answered he believed he was sentenced to the Bass. On the morrow he was sent off. When they reached the Fisherrow, they observed a gathering of people upon some occasion or other at the end of the town, upon the green, which, when the captain perceived, he took the alarm, apprehending it might be a design to rescue the prisoner. Upon this he came to the minister, and said, 'If these people attempt to rescue you, you are a dead man; for upon the first attack, I will shoot you through the head.' The minister said he knew nothing about it, and did not believe there was any such design. They came to Castleton over against the Bass about three afternoon. The prisoner dined the whole party there! and after dinner two of them went over with him in a boat to the rock; and he was delivered to the governor of the Scottish Bastile about five afternoon, on Thursday, April 7, 1681, after he had laboured in the work from 1662, when he was cast out in many and divers places in the land under continual persecution, manifold hardships and hazards, till he accomplished the service appointed by his master."

Mr Gabriel Semple, son of Sir Bryce Semple of Cathcart, minister of Kirkpatrick-Durham in Galloway, an able associate of Blackadder and Welsh, particularly obnoxious as being one of the first who took to the fields, was in July this year seized in the house of Sir Patrick Hepburn of Blackcastle, at Oldhamstocks, and liberated upon giving bond to appear when called for, under a penalty of ten thousand merks. When seized, he was labouring under an ague and unable to ride, yet would not the council dispense with his presence; but procuring the accommodation of Lady Stevenstoun's calash, he was able to perform the journey, accompanied by his nephew. On his arrival, he was lodged in the Canongate jail, where he lay for a short time. When called before a committee of council, his petition was read to him, and he was called to acknowledge it; but the clerk, in reading, had added some strong expressions, disavowing the principles for which Mr Semple was suffering, in hopes that he would disclaim it. This he afterwards found had been done on purpose to extort money from him, (but Lord Maitland, who was one of the number, was very friendly.) When asked if he owned the supplication after it was read, he requested a sight of the paper; and observing that the paper itself had not been altered, he returned it, saying that that paper was the very same he had written and given in; upon which he was dismissed without being required to renew the bond, and shortly after he withdrew to England.

His host, however, did not escape so easily. He was brought before the council and fined in the sum of two hundred pounds sterling, and imprisoned till he found caution to pay it.

Cargill had nobly kept the field, after all his brethren had retired to safer stations, and his ministry had been greatly blessed. In consequence, he had become an object of more eager pursuit; but the Torwood excommunication had raised the malignant passions of the persecutors to a degree of virulent animosity beyond what can be imagined or accounted for by those who consider the transaction an object of contempt; and a reward of five thousand merks was offered for his apprehension. He delivered his last sermon upon Dunsyre Common, from Isaiah xxvi. 20. "Come, my people, enter thou into thy chambers, and shut thy doors about thee: hide thyself as it were for a little moment, until the indignation be overpast." That night, through the persuasion of Messrs Smith and Boig, he went to Covington-mill, where he was seized, together with his two companions, by James

Irvine of Bonshaw, who exclaimed with satanic glee—"O blessed Bonshaw! and blessed day that ever I was born! that has found such a prize this morning." At Lanark, they procured horses, and placing the prisoners on their bare backs, Bonshaw with his own hands tied Mr Cargill's feet below the animal's belly, painfully hard. "Why do you tie me so hard?" said the venerable saint; "your wickedness is great; you will not long escape the just judgment of God."^[135] Fearing a rescue, they pushed on for Glasgow as fast as they could. When near the city, they turned him on his horse, and led him in backward. They halted at the tolbooth till the magistrates came to receive them. Multitudes flocked to gaze; and while many stood weeping to see their late revered minister in such a situation, John Nisbet, a dissolute character, the bishop's factor, addressed him tauntingly—"Mr Donald, will you give us one word more?" alluding to an expression Mr Cargill sometimes used in preaching. The prisoner, looking sorrowfully on him, replied—"Mock not, lest your bands be made strong; the day is coming, when you shall not have one word to say though you would." This natural and serious reproof was received as a prophecy; and Wodrow adds—"This came very shortly to pass. Not many days after, the Lord was pleased to lay his hand on that ill man. At Glasgow, where he lived, he fell suddenly ill, and for three days his tongue swelled; and though he seemed very earnest to speak, yet he could not command one word, and died in great torment and seeming terror. Some yet alive know the truth of this passage."^[136]

¹³⁵. Crookshanks adds, "'And if I be not mistaken, it will seize you in this place.' And this was verified, for soon after he got the price of his blood; he was killed in a duel near Lanark. His last words were—"God damn my soul eternally, for I am gone.'" Vol. ii. p. 85.

¹³⁶. Crookshanks says, "Robert Godwin and John Hodge, two Glasgow men who were witnesses to this, went to visit him. Godwin desired him to write what kept him from speaking. He wrote that it was a just judgment from the Lord, and the sayings of the minister verified upon him for his mocking at him; and if he had the whole world, he would give it for the use of his tongue again. But he died in great torment and seeming terror." Vol. ii. p. 86.

Mr Cargill and his fellow-prisoners were brought to the capital, and on the 15th July examined before the council. Being asked if he owned the king's authority and the king as his lawful prince, he answered, as the magistrates' authority is now established by the act of parliament anent supremacy and the explanatory act, he denied the same. When pressed to say explicitly if he owned the king as his lawful prince, yes or no; he refused to give any other answer than he had already given, and declined

their interference respecting the excommunication, that being entirely an ecclesiastical matter. He acknowledged having seen Balfour, Henderson, and Russell, within the last two years, but knew nothing of their intentions before the deed—*i. e.* the archbishop's death—was done. A copy of the sermon alleged to have been preached by him at the Torwood, was produced—so vigilant were their spies in procuring information—and he was asked if it was a true copy. He desired time to consider before he answered. He owned the lawfulness of defensive arms in case of necessity, and did not consider those who were at Bothwell rebels, but oppressed men; and refused to say whether he was there or at Airds-moss. He did not see the Sanquhar declaration till after it was proclaimed, but refused to say whether he had any hand in advising it or not; and with regard to the principles it contained, would give no opinion rashly. He further declared he could not give his sense respecting the archbishop's death, but that the Scripture says that the Lord giving a call to a private man to kill, he might do it lawfully, and instanced Jael and Phineas—thinks he is not obliged to obey the king's government as it is now established by the act of supremacy. He was repeatedly before the council, but varied nothing in his declarations.

Mr Walter Smith, though young in years, was an eminent Christian and an excellent scholar. He had studied abroad under Leusden, who highly esteemed him; and when he heard of his martyrdom, burst into weeping, and said in broken English—"O! Smit, great, brave, Smit; b'yond all as ever I taut."^[137] He declared he did not think it lawful to rise in arms against lawful authority, but could not acknowledge the present authority the king is invested with, as being clothed with a supremacy over the church. The Sanquhar declaration being read, he owned it, with this explication, that he did not look on those who composed it as the regular representatives of the Presbyterian church; he thought what the king had done, justified the people in revolting against him, but as to declaring war, he did not know if they were called or in a capacity to declare war; and thinks that they thereby intended only to justify the killing of any of the king's forces in their own defence, when assaulted, otherwise it might have been esteemed murder. As to these words where the king is called an usurper and a tyrant, he knows certainly the king is an usurper, and wishes he were not a tyrant.

¹³⁷. He wrote several tracts; one on Fellowship Meetings, and another on the Defections of the Times, which were highly esteemed; neither of which have I seen.

James Boig, also a student of divinity, a young man of talent and piety, was examined upon the same points, and bore testimony to the same truths.

William Thomson, a farm-servant in Fife, apprehended when coming from hearing sermon at Alloa, in a testimony, most admirably written, considering his situation in life, coincided with his minister—"I was before the year 1679," said he, in that paper, "running away with the rest of this generation to God-provoking courses." "Now I do with all my heart bless the Lord for his wonderful workings with me, since he began with me. I think when I look on his dealings since that time till now, I must say that I am a brand pluckt out of the fire. O! that my heart and soul could praise him for all that he has done for me; and now I am content to die a debtor to free grace!" He then declared his adherence to the Scriptures, to the Covenants, National and Solemn League, and to the Directory for Worship; and, "in the last place, bore his testimony to the cross of Christ, as the only desirable upmaking and rich lot of the people of God this day in Scotland." "There is no better way," he added, "to carry the cross right, than to cast all our care upon Christ, and trust him for all things, and use our single endeavours in this matter; speak what he bids us, and obey his voice in all things."

William Cuthil—a seaman belonging to Borrowstounness, who suffered at the same time—struck fairly at the root of the mischief—the recalling of the Stuarts, which indeed was the first grand step of backsliding by the honest people in Scotland, and not more inconsistent in a religious than totally unaccountable in a rational or political point of view—"The admitting Charles Stuart to the exercise of kingly power, and crowning him while they knew he carried heart enmity against the work and people of God, and while in the mean time there was so much of his treachery made known to the parliament by his commissionating James Graham, Earl of Montrose, to burn and slay the subjects of this kingdom, that would not side with, or would withstand, him in the prosecution of his wickedness." Another point in his testimony was equally just; it was "against that unparalleled practice of ministers in quitting their charges; and that which doth more aggravate their guilt, at his command who had no power to act, nor right to be obeyed, either in that or civil things, seeing he hath unkinged himself."

Had the whole ministers in Scotland and England individually refused to move till the people themselves had desired them, it is more than probable

that they never would have been ejected. It was the great anxiety evinced, during their primary negotiations with Charles, by each party and separate section to engross the whole of the royal favour for themselves, that laid the foundation of his tyranny, and cast into his hands a power which enabled him to overthrow the constitution of this country;^[138] and their at once yielding to their own illegal ejection confirmed it. If there be primary principles of government, founded upon the constitution of our nature, and, like the doctrines of revelation, suited to the necessities and the existence of society, no power on earth has a right to uproot or destroy them, more especially if planted with the general consent of a nation; and such were the principles acknowledged, avowed, legalized, and acted upon by the estates of Scotland at Glasgow, which were said to be set aside by the act rescissory, but which were afterwards at the Revolution acknowledged as inalienable; for these the humblest of the martyrs shed their blood, and their sufferings have only been decried by those who allege that Christian privileges and civil privileges can be separated, or who suppose that a man can enjoy rational freedom, while he is not allowed to worship God, except in the manner prescribed by the state.

¹³⁸. I believe, however, he owed much to the perverted education of the nobility, and the contracted tutelage of the influential middle ranks. It appears to me that the excellent men who superintended their studies, were more anxious to instil into their young minds party principles than practical truths; and likewise that the Presbyterian teachers, in their anxiety to keep aloof from the lax morals of the cavaliers, acted with a severity which alienated the affections of their pupils from themselves and their opinions.

In one instance, the Duke of York showed something like a respect for these principles. A wild sect had originated with John Gib, a sailor in Borrowstounness, named “the sweet singers,” or “the Gibbites,” from their leader. These retired to solitary places, burned the covenants, denied the king’s authority, refused to pay taxes, disowned the division into chapters and verses of the Old and New Testaments, the Psalms in metre, also the names of the months and days of the week, fasted long in the immediate expectation of the end of the world, and with curious inconsistency were constantly singing the penitential Psalms. Such at least were some of the charges against them; but when a number were apprehended and lodged in the Canongate tolbooth, they were after a short confinement dismissed, merely upon enacting themselves to keep the peace.

Far different was the treatment of the five worthies above mentioned. On the 26th of July, after a form of trial, they were all found guilty of treason, and ordered to be hanged next day, the day before parliament met. Mr Cargill came first. "As to the cause of my suffering," he said, "the main is my not acknowledging the present authority, as it is established in the supremacy and explanatory act. This is the magistracy that I have rejected that was invested with Christ's power." "It is long," said he, in the declaration which he left, "since I could have ventured on eternity through God's mercy and Christ's merits, yet death remained somewhat terrible; now that is taken away; now death is no more to me than to cast myself down in my husband's arms. I have been most in the main things, not that I thought the things concerning our times little, but that I thought none could do any thing to purpose in God's great and public matters till they were right in their conditions." When he attempted from the scaffold to address the numerous assemblage, he was thrice interrupted by the drums, yet was he not discomposed. "Ye see," said he, with a smiling countenance, "we have not liberty to speak, or to speak what we would; but God knoweth our hearts; be not discouraged at the way of Christ and the cause for which I am to lay down my life, and step into eternity, where my soul shall be as full of him as it can desire to be. And, now, this is the sweetest and most glorious day that ever my eyes did see." "The Lord knows I go up this ladder with less fear and perturbation of mind than ever I entered the pulpit to preach. I forgive all men the wrongs they have done against me. I pray that the sufferers may be kept from sin and helped to know their duty." He afterwards prayed a little, and the executioner turned him over praying. The others met death with equal solemn confidence and joy.

On that same day the Duke of Rothes died; and Wodrow tells us, "that, as through life, except when pushed on by others, he was never for severities against Presbyterian ministers; so at his death he had the advantage of some of them with him. He appeared concerned upon views of eternity, and the Reverend Mr John Carstairs waited upon him, and prayed with him—the Duke of Hamilton and many others of his noble relations being present; and few were present without being affected very sensibly." By his death the office of Chancellor becoming vacant, many of the chief nobility, in expectation of succeeding him, became more subservient to the royal Duke, which enabled him to carry his despotic measures with greater facility than perhaps he could otherwise have done.

BOOK XVII.

A.D. 1681.

Parliament—Act for securing the Protestant religion—asserting the divine right and lineal succession of their kings—for securing the peace of the country—Lord Bargeny’s case—THE TEST—debate upon it—Belhaven—Argyle—objections to its imposition—Argyle takes it with an explanation—his trial—escapes from the Castle—forfeited—Fraser of Brea—fined—banished.

At nine o’clock of the forenoon of July 28, the peers in their robes, and the commissioners of shires in their foot-mantles, assembled at Holyrood-house on horseback, whence they accompanied his Royal Highness James Duke of Albany and York to the Parliament House. There being neither Chancellor nor Treasurer, the Marquis of Atholl was appointed president of the parliament. Paterson, bishop of Edinburgh, opened it by a prayer.^[139] The Duchess of York and several other ladies were present, which was uncommon in those days, and considered indecorous. The Duke of York, who, as a papist would, but for a party in the English House of Lords, have been excluded from the succession, was sent to Scotland as commissioner to secure that country, and lay the foundation of another civil war, if things went adverse to his interest in England. Nor was any opposition made by this mean-spirited assemblage to receiving a papist as their king’s representative: previously to their meeting, it had been privately agitated, but the Duke of Hamilton refused to have any thing to do with the business, unless a majority could be previously secured.

¹³⁹. The first thing which came before the parliament was of course the settling of controverted elections, on which occasion Bishop Paterson gave proof of his fitness for the office he filled. “The Bishop of Edinburgh was heard to say, in the debateable election of East Lothian, that, for serving the king, the committee might very lawfully prefer one who was inferior in votes, and they might pass over four or five votes to hold out a Shaftesbury, which,” adds Lord

Fountainhall, “was spoke very like one who minded his oath, his parliament oath, de fideli, to judge according to law!”—Decis, vol. i. p. 140.

Both the king’s letter and his speech are pregnant examples of that villanous hypocrisy which distinguished the royal brothers. The king told them—“We have ever considered our own and the interests of our subjects to be inseparable;” and then he explained how “experience having sufficiently evinced, that all invasions upon, or diminutions of, the rights and prerogatives of our crown, prove fatal and destructive to the security and property of our people—which can only thereby be protected!” and “it is one of our greatest satisfactions that we have been always careful of that our ancient kingdom, with a tenderness suitable to our great interest in it,” “for promoting which and securing the protestant religion, we have called this parliament, and impressed upon them the necessity of adopting effectual and adequate remedies for curing these violent distempers, schisms, and separation in the church, and rebellion in the state.” The Duke of York confirmed the declarations of the gracious letter. He had it in command from his majesty to assure them that he would inviolably maintain and protect the protestant religion as now established by law, and seriously recommended them to fall upon effectual courses for suppressing these seditious and rebellious conventicles, from whence proceeded all disorder and confusion, and those horrid and extravagant doctrines which are a scandal to Christianity, and tend to the subversion of all public and private interests; and he concluded by telling them, “as the inclination I had to serve and promote the interest of this kingdom hath been the chief inducement to his majesty to give me this opportunity to convince you of it; so you may be sure I shall do what becomes me to satisfy you of the truth of it: and I hope you will have that consideration and kindness as to enable me to perform his service.”

The parliament made a reply, the baseness of which I do not wonder at, but I do admire the impudence, when I recollect that it was first to be presented to a papist commissioner, and by him transmitted to a half-popish king—if he was any thing. “It is a great satisfaction to us to find your majesty so concerned for the protestant religion, not only in your gracious letter to us, but in the whole conduct of your royal government; and we shall with all Christian care and duty endeavour to confirm it, so as it may become a solid and pious support to your royal family and monarchy, and a sure fence in this disturbed and divided church against all usurpations and

disorders of popery and fanaticism;” and they added, what would not be less gratifying, “we shall not fail, by positive laws, to declare our humble and hearty acknowledgments of the just rights and prerogatives of your imperial crown, in its just, native, and lineal course of descent; and to secure the just rights and liberties of your subjects, so as may justly demonstrate our unalterable resolutions never to depart from our duty to your royal family and your lawful heirs and successors, to whom we are tied by so many sacred obligations.”

Their first act was one ratifying and approving all former laws, acts, and statutes, made by our sovereign lord’s royal grandfather and father, of blessed memory, for settling and securing the liberty and freedom of the kirk of God, and the protestant religion presently professed, and all acts against popery! The very next was one asserting that the kings of the realm deriving their royal power from God Almighty alone, their lineal succession, according to the known proximity in blood, could neither be suspended nor diverted by any act or statute whatsoever; and that no difference in religious profession, nor law, nor act of parliament, made or to be made, can alter or divert the right of succession and lineal descent of the crown to the nearest and lawful heirs!^[140]

¹⁴⁰. On this Laing well remarks—“When we peruse the act, and consider how soon the crown was afterwards forfeited; when we contemplate how frequently and happily the lineal succession has been since inverted—we must smile with contempt at the extreme fragility of political laws, and at the anxious precaution with which the most violent of them are framed, only to be disregarded and ultimately broken.”—Hist. vol. iv. p. 119.

Then followed an act for securing the peace of the country, by doubling the fines and increasing the penalties against all who frequented field-conventicles, or had any intercourse with those who did. This presents us with a feature recognizable in the whole conduct of the ruling party, from the Restoration to the Revolution, which has not been sufficiently held up to contempt, and that is the low avarice, the base money-getting tricks which formed the soul, and directed the agency, of the gallant and chivalrous supporters of the merry monarch, and of his successor, the gloomy monk of La Trappe. There stands not out among them one redeeming character—all were the vilest of money-scrappers, who would have raked the lowest kennels to gather a supply for their prostitutes, and who, when that failed, only did not take to the highway, because they found legal villany an easier

and less hazardous way of plundering. An incident which occurred at this time, shows the tenure by which the wicked hold their power.

Lord Bargeny, a relation of the Duke of Hamilton's, who had been imprisoned on a charge of being at Bothwell, was liberated by especial order of the king, as no proof was produced against him. He offered, in open parliament, to produce evidence that Hatton, (Lauderdale's brother,) the Earl of Moray, and Sir John Dalrymple, had suborned witnesses to swear away his life, in order to obtain his estates among them; but the Duke of York, who wished to have the parties in his own hands, interposed and prevented all inquiry into the foul transaction:—such was his love of justice—and such was the baseness of the parliament, that they quietly acquiesced in the Commissioner's arbitrary and unjustifiable interference.

But the act which above all others holds up the memory of this servile set to everlasting shame, is the test—the plain history of which is worth a thousand arguments to prove the folly as well as the iniquity of all attempts to secure religion by civil penalties, or to enact religious tests for political purposes. In order to induce members to pass the act of succession, they had been promised that every requisite measure should be adopted for securing the protestant religion. Accordingly, an act anent religion and the test was brought in, August 31, by which the following oath was ordered to be taken by all persons in offices and places of public trust, members of parliament, and all electors of members of parliament, and all ministers or preachers of the gospel, teachers in the universities, chaplains in families, pedagogues to children, and all officers and soldiers, betwixt and the 1st of January next:—“I, ——, solemnly swear, in presence of the eternal God, whom I invoke as judge of my sincere intention in this my oath, That I own and sincerely profess the true protestant religion contained in the Confession of Faith, recorded in the first parliament of King James VI., and that I believe the same to be founded on and agreeable to the written word of God; and I promise and swear that I shall adhere thereunto during all the days of my life-time, and shall endeavour to educate my children therein, and shall never consent to any change or alteration contrary thereunto, and that I disown and renounce all such principles, doctrines, or practices, whether popish or fanatical, which is contrary unto, and inconsistent with, the said protestant religion and Confession of Faith: and for testification of my obedience to my most gracious sovereign Charles II., I do affirm and swear

by this my solemn oath, that the king's majesty is the only supreme governor of this realm, over all persons, and in all causes, as well ecclesiastical as civil; and that no foreign prince, person, pope, prelate, state, or potentate, hath, or ought to have, any jurisdiction, power, superiority, pre-eminency, or authority, ecclesiastical or civil, within this realm; and therefore I do utterly renounce and forsake all foreign jurisdictions, powers, superiorities, and authorities; and do promise that from henceforth I shall bear faith, and true faith, and true allegiance to the king's majesty, his heirs and lawful successors; and to my power shall assist and defend all rights, jurisdictions, prerogatives, privileges, pre-eminences, and authorities belonging to the king's majesty, his heirs and lawful successors: and I further affirm and swear by this my solemn oath, that I judge it unlawful for subjects upon pretence of reformation, or any pretence whatsoever to enter into covenants or leagues, or to convocate, convene, or assemble, in any councils, conventicles, or assemblies, to treat, consult, or determine in any matter of state, civil or ecclesiastic, without his majesty's special command, or express license, had thereunto, or to take up arms against the king or those commissionate by him; and that I shall never so rise in arms or enter into such covenants or assemblies; and that there lies no obligation upon me from the National Covenant or the Solemn League and Covenants (so commonly called), or any other manner of way whatsoever, to endeavour any change or alteration in the government, either in church or state, as it is now established by the laws of this kingdom: and I promise and swear that I shall with my utmost power, defend, assist, and maintain his majesty's jurisdiction foresaid against all deadly; and I shall never decline his majesty's power and jurisdiction, as I shall answer to God. And, finally, I affirm and swear that this my solemn oath is given in the plain, genuine sense and meaning of the words, without any equivocation, mental reservation, or any manner of evasion whatsoever, and that I shall not accept or use any dispensation from any creature whatsoever. So help me God."

This sacred TEST, which I have given at length, because of its characteristic singularity, even in that age of oaths—carries on its front such palpable self-contradiction, that it appears to have been intentionally framed, as the justiciary categories of that day confessedly were, to create crime. The Confession of Faith here sworn to, was that drawn up by John Knox, and asserts Christ to be the *sole* "head of the church, in which

[whose] honours and offices, if men or angels presume to intrude themselves, we utterly detest and abhor them.” In the test, the king is acknowledged as “the only supreme in all causes, ecclesiastical as well as civil.” In the Confession, there is enumerated in the list of good works, “the duty of repressing tyranny and defending the oppressed.” In the test, it is declared “unlawful, upon any pretence, to take up arms against the king or any commissionate by him.”

In opening the debate, Lord Belhaven remarked, that “he saw a very good act for securing our religion from one another among ourselves, but he did not see an act brought to secure our religion against a popish or fanatical successor to the crown.” He was instantly sent to the Castle, and the Lord Advocate declared there was matter for an accusation of treason against him; nor was he released until some days after, upon making an ample apology. Argyle thought it unnecessary, as there were too many oaths already; and he strenuously opposed the concluding clause, excepting the king’s lawful sons and brothers. “It is our happiness,” he said, “that the king and people are of one religion by law; and he hoped the parliament would do nothing to loosen what was fast, or open a door for the royal family being of a different religion from the nation, and therefore he wished, if any exception were made, it might be made particularly for his Royal Highness.” The Commissioner hastily rising, said, he would allow of no exemption for himself. “Then,” replied Argyle, “if this exception pass, it will do more prejudice to the protestant religion than all the rest of the acts will do good.” It did pass, after a day’s debate, by a majority of seven.^[141] Having sat seven weeks, the parliament adjourned without doing much credit to the Commissioner’s character, “on which some wise men observed, ‘the Duke of York might have courage and obstinacy enough, like his father; but had neither great conduct nor a deep reach in affairs, and was but a silly man.’”^[142]

¹⁴¹. The majorities seem to have consisted chiefly of “the royal burrows, who,” says Fountainhall, “were by the court gulled with the hopes of getting their privileges restored against burghs of regalities and baronies (which were taken away by the act of parliament 1672); and in hopes of it, with Issachar, they couched under the burden, and yielded to every demand of the Duke of York; but when they brought in their bill to the Articles, they were so far from getting redress, or the regalities and baronies declared liable to bear a part of the burden with them, that the Articles were like to take away more from them; so the burrows were glad to put up their pipes, and hold them as they were, beside the skaith they had got, by limiting them to elect none but one of their own town.” Decis. vol. i. p. 155.

When the test came to be imposed, Scotland presented the appalling scene of an almost universal compliance among her men in office; yet even among them there were a few names who defiled not their garments. John Hope of Hopeton, who had the honour of being deprived of the Sherifffdom of Linlithgowshire—the excellent Duchess of Rothes, who though strongly urged, decidedly refused—besides several others. Queensberry took it with an explanation, “that he did not understand himself to be against any alterations in case it should seem good to his majesty to make them in church or state.” The Duke of Hamilton also had his scruples, but was willing the council should name deputies in any jurisdictions belonging to him, which they did. The Marquis of Huntly positively refused to take it; but being a papist, he was passed over. The opposition, however, made by the synod and Bishop of Aberdeen, the synod of Perth and Bishop of Dunkeld, and a number of the Episcopalian clergymen, who for the first time appeared in opposition to the court, induced Paterson, bishop of Edinburgh, to prepare an explanation, which was approved of by the council, purporting “that by the test we do not swear to any proposition or clause in the said Confession of Faith, but only to the true protestant religion, founded on the word of God, contained in that Confession, as it is opposed to popery and fanaticism; that no encroachment is intended upon the intrinsic spiritual power of the church, as it was exercised by the apostles in the three first centuries; nor any prejudice to the episcopal government of this national church.” The precise and unalterable obligation at the close, however, was so decisive, that many who would have scrupled little at common obligations, were startled at this; and, to the honour of the conformist clergy, not less than *eighty* rather surrendered their livings than their conscience; and “these were noted to be the best preachers, and the most zealous enemies to popery, that belonged to that church.”

The Presbyterians decidedly refused it. Nor could they act otherwise, without deserting and betraying their religion. Argyle, who saw all this, unfortunately did not act with that decision which is often, if not always, the safest, though frequently not the most pleasant or easy mode of procedure, and at once resign his employments. He endeavoured to evade taking it, by offering an explanation, as had been done by the synods and conforming clergy; and his proposal was accepted graciously by the Duke of York, who

at the same time told him the oath was such as no honest man could swear. His explanation was:—"I have considered the test, and am desirous to give obedience as far as I can. I am confident the parliament never intended to impose contradictory oaths, therefore I think no man can explain it but for himself. Accordingly, I take it in as far as it is consistent with itself and the protestant religion; and I do declare I mean not to bind up myself in my station, and in a lawful way to wish and endeavour any alteration I think to the advantage of the church or state." No remark was made at the time, and the Earl took his place as a privy councillor; but next day, when he waited upon the Duke, he was told his explanation was not satisfactory. "I thought," said his Royal Highness, "it was to have been a short one like Queensberry's. Well! it passed with you, but it shall pass so with no other."

The unsuspecting Earl understood this as an harmonious finale to the matter; but he knew not with whom he had to deal. On the same day he was called before the council as a commissioner of the treasury, and again required to take the test. He offered to do so in the same manner as he had done before, but was sternly refused. "You and some others," said the Duke of York, "have designed to bring trouble upon a handful of poor catholics, who would live peaceably, however they are used! but it shall light upon others," and walked off, after desiring the Earl not to leave town till he saw him again. Next day he was ordered by the council to enter himself prisoner in Edinburgh Castle before twelve o'clock, and the Lord Advocate was instructed to pursue him for treason. They also sent an account of their proceedings to the king for his approbation, which they received in course, only desiring that no sentence should be pronounced until submitted to him. His trial, which lasted two days (12th and 13th December), immediately commenced; and a more nefarious one does not disgrace the justiciary records.

In common, there is some appearance of crime in the charges brought by a public prosecutor, however distorted by legal subtlety; but not the shadow of a fault could be made to appear against this nobleman, in so far as his loyalty was concerned. Here, if in any thing, his failings leaned to the royal side; and when it is considered what his family had suffered for the royal cause, and by the royal personages, both "the blessed martyr" and his profligate son, it is wonderful that any of the house of Campbell could ever have been found in the ranks that supported the Stuart race.

His indictment was founded, among other acts, upon that of James VI. 205 act, parliament 14, by which all leasing-makers and tellers of them^[143] are punishable with tinsel of life and goods; and 107, James I. parliament 7, which ordains that no man interpret the king's statutes otherwise than the statute bears, and to the intent and effect that they were made for, and as the makers of them understood; and whoso does in the contrary, to be punished at the king's will; and the 10th act, parliament 10, James VI., by which it is statuted, that none of his majesty's subjects presume to take upon him publicly to declare, or privately to speak or write, any purpose of slander against his majesty's person, laws, or acts of parliament, under pain of death. And his explanation of what all allowed to be a contradictory act of parliament, was, from the most unnatural distortion and forced construction of the words by that base unprincipled slave of the court, Sir George Mackenzie, tortured into treason:—

¹⁴³. *i. e.* Liars or tellers of lies. What would have become of the royal brothers had they been tried upon this statute?

“You the said Archibald Earl of Argyle declared that you had considered the said TEST, and was desirous to give obedience as far as you could, whereby you clearly insinuated that you was not able to give full obedience. In the second article, you declare that you were confident the parliament never intended to impose contradictory oaths, thereby to abuse the people with a belief that the parliament had been so impious as really and actually to have imposed contradictory oaths; and so ridiculous as to have made an act of parliament (which should be the most deliberate of all human actions) quite contrary to their own intentions; and that every man must explain it for himself, and take it in his own sense, which is a settling of the legislative power in private subjects: that you take the test in so far only as it is consistent with itself and the protestant religion, by which you maliciously intimate to the people that the said oath is inconsistent with itself and the protestant religion, which is not only a downright depraving of the said act of parliament, but likewise a misconstruing of his majesty's and the parliament's proceedings, misrepresenting them to the people in the highest degree, and in the tenderest points implying that the king and parliament have done things inconsistent with the protestant religion, for securing of which that test was particularly intended. In the fourth article, you expressly declare that you mean not by taking the said test to bind up

yourself from wishing and endeavouring any alteration in a lawful way, that you shall think fit 'for the advancing of church and state,' by which you declare yourself, and by your example invite others to think themselves, loosed from that obligation, and think it is free for them to make any alteration in either as they shall think fit; concluding your whole paper with these words, 'and this I understand as a part of my oath,' which is a treasonable invasion upon the royal legislative power, as if it were lawful for you to make to yourself an act of parliament, since he who can make any part of an act may make the whole."

The Earl's speech, after the indictment was read, was manly and noble. It contained simply a general sketch of what he had done for the royal ingrates, and the consequent improbability that he who had evinced such unshaken loyalty in the worst of times, should now be guilty of gratuitous treason.

Sir George Lockhart and Sir John Dalrymple followed in plain luminous speeches, such as it is impossible to conceive how minds of common construction could withstand the force of the reasoning, and the effect of the downright statement of facts, which give to them, in perusal, a power beyond what any artificial eloquence could bestow; yet such was the deadening effect of a wretchedly supposed self-interest, that the bench divided equally—two, Newton and Forret, voting for, and two, Collington and Harcarse, against, the "relevancy of the libel;" and they remained until midnight discussing the subject, nor were able to come to a decision. Queensberry, who presided as Justice-General, having himself received the test with an explanation, declined to vote, as, in condemning Argyle, he must have condemned himself; yet to acquit him would have been to forfeit the favour of the court, and he preferred having his name registered with infamy, to acting the part of an honest man. In this dilemma, Nairn, an old superannuated judge, who had fallen asleep during the trial, and had been under the necessity of retiring from the bench, because, through infirmity, he could not follow the proceedings, was dragged from his bed and called upon to give his casting vote. Next day, the interlocutor was pronounced—"sustaining the charges as relevant, repelling the legal defences against treason and leasing-making, and remitting the indictment, with the defence against perjury, to the knowledge of an assize."

This assize consisted of the Marquis of Montrose, a personal enemy of Argyle, who presided; the Earls of Linlithgow, Roxburgh, Dumfries, Early, Perth, Dalhousie, Middleton; Lords Sinclair, Lindores, Burntisland; the Lairds of Gosford, Ballymain, Park, Gordon, and Claverhouse. A majority of them were political adversaries, predisposed to condemn. Argyle refused to reply. He saw that his case was prejudged; and he did not give his enemies the triumph of overwhelming a fruitless defence. With a vile affectation, the Lord Advocate charged the jury to bring in a verdict of guilty, or stand the consequences of a process of error. "And it being proven," Fountainhall's expressions, "that he (the Earl) gave in that explanation which the lords found treasonable, the assize (being so determined by the interlocutor) could not but find him guilty of treason and leasing-making, but assoilzied him from the article of perjury."

"There was a great outcry," his lordship adds, "against the criminal judges for their timorous dishonesty," and well there might; nor can I help joining issue with Sir George Lockhart, who "admired how a man could be condemned as a traitor for saying he would make all amendments he could to the advantage of church and state!" Were not every circumstance in this atrocious business as much opposed to common sense as to law, we might wonder how any set of men above the scale of idiocy could consent to a process of treason being raised upon such palpable expressions of loyalty and patriotism; but that men, and these in the highest rank of society in Scotland, could have been found to bring in a verdict of guilty, shows what a dreadful want of moral principle then existed in the country, especially among the elevated classes.

As soon as the verdict was made known, the council met and sent a letter to the king, requesting leave to order the justiciary to pronounce sentence of death, but to delay execution during the royal pleasure. Argyle, who justly dreaded the event, had despatched a messenger to court to ascertain what he might expect from that quarter. By him he learned that the king would be prevailed upon to comply with the council's desire; and being at the same time informed that he was to be transferred from the Castle to the common jail, to which peers were wont to be removed a few days before execution, he considered that no time was to be lost in providing for his safety; and on Tuesday the 20th of December, about eight in the evening, he succeeded in effecting his escape, disguised as the page of Lady Sophia Lindsay, his step-

daughter. Irritated at his flight, which was doubly galling as they knew he could proclaim, not to his oppressed country only, but to Europe, the vileness of the religious tyranny that desolated his country, the council immediately issued a proclamation, denouncing the fugitive as having added “the breach of prison to his other crimes, and without waiting for that clemency which he might have relied upon (!!) if he had not been conscious to himself of guiltiness that required such an escape; and commanding all loyal subjects to apprehend the said Earl, indemnifying those who should kill, mutilate, or slay the said Earl or his accomplices, if resisting;” besides placing him under the ban of intercommuning. But the Earl, who could fully estimate the value of that clemency which he was accused of mistrusting, had fortunately got beyond their reach. Mr John Scott, minister of Hawick, directed him to an obscure alehouse, where he met Pringle of Torwoodlee, by whom he was sent to William Veitch, an exiled minister, lurking on the borders, under whose direction he was safely conducted to London, whence he got to Holland—then the place of refuge for the persecuted Presbyterians.^[144]

¹⁴⁴. In London, the Earl lodged at the house of a Mr Smith, a sugar baker, whose lady, a pious woman, with the generosity and fearlessness of her sex, concealed him at the risk of her own life and fortune, for it was known that he was in London; and if Burnet be correct, Charles II. showed on this occasion one of the few praiseworthy traits of his character. He was informed of Argyle’s retreat, but would not allow him to be sought after.—A long and interesting account of Argyle’s escape and journey to London, is given in the Life of Veitch, published by Dr M’Crie.

The privy council, to strike terror into any who complained of the injustice of the interlocutor pronounced by the court, named a committee to call his (Argyle’s) advocates before them for subscribing an opinion that his explanation contained nothing treasonable, although they themselves had given these gentlemen authority to plead freely in defence of their client. When they appeared, some proposed to imprison and deprive them; nor was it without difficulty that they were allowed to continue their practice, York observing, if any bad use were made of their written opinion by spreading it abroad in England to incense the people, or reproach him or the judges, he should consider them as much to blame. It was, however, afterwards printed in England along with Argyle’s trial, where it produced a powerful effect.

It had not been usual, nor was it deemed legal, to pronounce sentence of forfeiture in absence; but when all the essentials of justice had been

violated, the council did not deem it worth while to stickle at forms. The Countess gave in a petition to the court of justiciary. It was as might have been anticipated of no avail. "Archibald Earl of Argyle was found guilty and culpable of the crimes of treason, leasing-making, and leasing-telling, and adjudged to be executed to the death; demeaned as a traitor; his name, memory, and honours to be extinct; and his arms to be riven forth and deleted out of the book of arms: so that his posterity may never have place, nor be able hereafter to bruik or enjoy any honours, offices, titles, or dignities within this realm in time coming;" and his tacks, stedings, goods, and gear whatsoever remaining to him "be escheated" to our sovereign lord, to remain perpetually with his Highness in property; which was pronounced for doom. Within seven years, the representative of Argyle was the first man in Britain—the representative of Stuart was a wanderer and a vagabond on the face of the earth!

Next day, after Argyle's escape, Fraser of Brea appeared before the council. Returning home from the south, he had preached in a barn on a Lord's day, for which the council ordered him to be summoned as holding field-conventicles; but on learning the true state of the case, the summons was stopped, only some of them spoke to Sir Hugh Campbell of Calder, his surety. Sir Hugh shortly after visiting his friend, found him lying sick of an ague and proposed writing to the Bishop of Edinburgh and the Lord Advocate to inform them of his situation, and get him excused. Mr Fraser, who knew the men, earnestly entreated him not to interfere, "for if the prelates hear that I am sick, they will instantly cite me, in hopes that either I cannot appear being sick, and so fall in the forfeiture of my bond of five hundred and sixty pounds, which they would gladly be in hands with; or, if I should appear, might thereby endanger my life." His surety thought his fears groundless, and acquainted Bishop Paterson that Mr Fraser was seriously ill, and never preached in the fields. Immediately the citation was revived, and the day of his appearance fixed for the 22d of December, when they thought he certainly could not at that season come from the north, and the bond must be forfeited; but he most unexpectedly and suddenly recovered, and arrived in Edinburgh in good health, and his surety with him.

The council, astonished at his appearance, finally referred the case to the bishops, by whom he was sentenced to pay a fine of five thousand merks,

be imprisoned in Blackness Castle till he paid it, and gave security not to preach any more, or go off the kingdom. He was accordingly sent to Blackness Castle, where he remained six weeks, till, upon the Duke of York's going to England, accompanied by Bishop Paterson and his brother—his two great enemies—Mr Fraser's friends applied to the council, and procured a liberation and a remission of the fine, upon the condition of his leaving the kingdom, which he did, and went to reside at London.

BOOK XVIII.

A.D. 1681-1682.

Society-men—their first general meeting—State of the country—Ure of Shargarton—Wavering of the Episcopalians—Lanark declaration—burned at Edinburgh—Harvey hanged—Mr P. Warner—York recalled to court—New government—Robert Gray executed—Dalziel sent to the west—Meeting at Priest-hill—at Tala-linn—Major White and the Laird of Meldrum—their proceedings—Hume of Hume executed—Lauderdale's death.

Deprived of their regular teachers by banishment or legal murder, the consistent covenanters, now proscribed wanderers, formed themselves into societies for mutual edification, by reading the scriptures, prayer, and exhortation. As might have been expected in such circumstances, some were apt to carry their principles to an extreme which, in more peaceable times, they would never have thought of; but in general their conduct evinced a soundness of judgment and sobriety of understanding which could only result from the powerful influence of religious truth upon their minds. When “the blasphemous and self-contradictory test” had been enacted, several of the most pious among them in the west, considered it their indispensable duty to give some public testimony, as far as they were capable of doing it, corresponding to the notoriety of the sin, lest they might interpretatively be looked upon as consenters or at least connivers at such a wickedness, but wished it should be done by the whole collectively as far as was possible, and therefore that delegates from each of the societies should hold “general meetings” at such times and places as might be agreed upon.

The first was kept upon the 15th of December 1681, at Logan-house, in the parish of Lesmahago, Lanarkshire, “at which time,” as Michael Shields deplores, “the condition of the country was lamentable; the cruelty and malice of the enemy was come to a great height; they were pressing

conformity to their iniquitous courses; and alas! they were much complied with. Defection was growing, sin was abounding, and the love of many was waxing cold; snares and temptations were increasing, and, which was sad, people wanted faithful warning of the sin and danger of the time; for ministers were lying by from the public preaching of the gospel, and did not, as becomes watchmen, set the trumpet to their mouth to give a certain sound! But especially the case of the scattered, reproached, persecuted, and yet contending party, was sad; reduced to very great straits of hiding, chasing, wandering, imprisonment, and killing, and to have foul reproaches and odious calumnies cast upon them, especially by some ministers and professors, they resolved that a declaration should be published at Lanark on the 12th January following.” Then, after settling the plan of a general correspondence, and arranging the regular quarterly meetings, they dispersed.

A.D. 1682 commenced with vexatious proceedings. On the 7th of January, the council wrote to the king, telling him that the day for taking the test had passed over, and that they had sent him a list of the jurisdictions become vacant by the refusal of their holders to subscribe that oath, together with the names of those they recommended to fill them, adding, with great glee—“After serious reflection upon the whole matter of the test, we may sincerely say, that it has been a most happy expedient for filling all offices with persons who are well-affected to the protestant religion and your majesty’s government.”

In November last year, the privy council granted warrant to Sir George Mackenzie, king’s advocate, to prosecute criminally forty-six persons in the shires of Linlithgow, Stirling, and Ayr for being concerned in the rebellion at Bothwell. On the 9th of January this year, twenty-two were proceeded against, but only nine forfeited, the rest having either contrived to make their escape or bargained for their freedom by making a renunciation of their estates to the lords of the treasury; but James Ure of Shargarton was singled out for particular severity, because, having left the Episcopal communion, he had joined the persecuted ministers, and had his children baptized by them. His goods were seized, his rents arrested, and himself intercommuned; so that he never slept in bed three nights for nine years, during which parties of soldiers were sent to his house above thirty times, and dragoons quartered upon him for whole weeks together—his mother, an

aged gentlewoman of seventy years, was carried to Glasgow and thrust into the common jail. Her petition “for leave at least to win to the prison doors for air” could not be granted; so she died there in the crowd.

Meanwhile, £100 sterling was offered to any who would bring in the said James Ure, dead or alive; but he escaped to Ireland, whence he occasionally ventured home, though he durst not remain in his own house, but was forced, both himself and his lady, to lie several weeks in the wood of Boquhan all night, when the cold was so great that the clothes would have been frozen together about them when they awoke. At daybreak he retired to a tenant’s house, and she returned home, where, about this time, she was apprehended and carried to Stirling, with a child on her breast, and detained there and in the Canongate tolbooth, Edinburgh, till she found bail for two thousand merks to appear when called; and, through the interposition of the Earl of Perth’s chamberlain, was finally dismissed.

Encouraged perhaps by the scruples of the first nobles in the land, twenty-one of the prelatical clergy refused the test, and the council, on the 12th of this month, wrote to the patrons of the parishes to present fit and qualified persons in their room; but, upon re-considering the matter, the great part of them appear to have got over their scruples, and upon application were reponed to their benefices and stipends.

While the Episcopalians were wavering, the societies were acting. About forty armed men on the set day marched to Lanark, and, after burning the test, read and affixed to the cross their declaration, which it is impossible to peruse without deep interest, when we consider that, unlike a common declaration written by those who are themselves in safety or at ease, it was penned by men in jeopardy every hour, and proclaimed by them at the peril of their lives:^[145]—

¹⁴⁵. Indeed this ought never to be lost sight of in reading any of the productions of the persecuted, and should lead us to make every allowance for any warm expressions which they suffered to escape them, when contending not only for their own rights, but the rights of their posterity—for those privileges which we now enjoy but too lightly prize, because we seldom think of the price at which they were purchased. For some expressions in this, such as calling themselves “a meeting of the estates,” &c. they afterwards apologized in the informatory vindication.

“They acknowledged government as an ordinance of God, and governors as ordained by him, in so far as they rule and govern according to his word and the constitutive laws of the nation; but when these laws are annulled by

other pretended laws—when an inexplicable prerogative in matters ecclesiastic is usurped and arbitrary power in matters civil is arrogated—when a banner of impiety is displayed—when parliaments are so prelimited as that no true son of the state or church hath liberty to sit or vote there—what shall the people do in such extremity? Shall they give up their reason as men, their consciences as Christians, and resign their liberties, fortunes, religion, and their all to the inexorable obstinacy, and incurable wilfulness and malice of those who, in spite of God or man, are resolved to make their own will the absolute and sovereign rule of their actions? Shall the end of government be lost through the weakness, wickedness, and tyranny of governors? Have not the people, in such an extremity, good ground to make use of that natural and radical power which they possess, to shake off that yoke? which, accordingly, the Lord honoured us (in a general and unprelimited meeting of the estates and shires in Scotland) to do; at which convention he was most legally and by general consent cut off by the declaration at Sanquhar. But that we may not seem to have done that, or yet to do the like, upon no grounds, we shall hint at some of the many thousands of the misdemeanours of the now cast off tyrant.” They then recapitulate the destruction of the noble constitution of the church and state by the first acts of his first parliament—the adjourning and dissolving parliaments at his pleasure—his usurpation of supreme head over all persons civil and ecclesiastic—his exorbitant taxations, and then expending the revenues of the crown for keeping up a brothel rather than a court—and his securing the succession to one as bad if not worse than himself. In conclusion, they offered to prove that they had done nothing contrary to the ancient laws of the kingdom, and only endeavoured to restore the church and state to the constitutional base on which they were established in 1648-9.

Exasperated at such an intrepid display of principle, the council paid homage to the deed by a miserable retaliatory act, for burning, by the hands of the common hangman, the Solemn League and Covenant, the libel called Cargill’s covenant, and the Rutherglen and Sanquhar declarations, together with the last most obnoxious one at Lanark, which was done accordingly upon an high scaffold erected at the cross of Edinburgh, the magistrates attending in their robes.^[146] The town of Lanark was fined six thousand merks for not preventing what they could not possibly have anticipated; and William Harvey, a weaver, was hanged for publishing what he was not even

present at, but he had been present at the declaration before Bothwell; and as the one was as bad as the other, he suffered accordingly.

[146.](#) It was remarked at the time, that the bailie who superintended the execution of this public affront to the Covenants, had his large house burned down not long after. “But,” as Wodrow well observes, “it becomes all to be very sparing in putting commentaries upon particular providences.” Vol. ii. p. 228.

Mr Patrick Warner, although not persecuted to the death, suffered a vexatious harassment, sufficiently severe. In 1669 he had been ordained at London as a missionary to India—and perhaps it may not be unworthy of remark in passing, that the persecuted churches in Britain, like the persecuted churches in Judea, were eminently honoured in being the most successful labourers in the missionary field. After a number of hindrances were removed, he was proceeding on his voyage, when he was captured by the Dutch fleet, being in an English vessel, but at length succeeded in arriving at his destination. He laboured about three years at Madras, till forced by ill health to return to his native land about 1677, where he preached as opportunities offered, in houses and fields, till Bothwell, when he fled to Holland, whence he returned, 1681, to be married to a daughter of the Rev. William Guthrie. The very day after his marriage he was apprehended—such was the malignant cruelty of the ruling renegadoes; and although no tangible charge could be brought against him, he was kept in confinement till June this year, and only released upon banishing himself the country, under a penalty of five thousand merks in case of his return—losing his books and paying jail fees to the extent of one hundred pounds sterling. He went to Newcastle, and was allowed to remain there quietly for some time, being only required to take the oath of allegiance, which he did with his own explanations, and afterwards went to Holland, where he remained till the Revolution, when he returned to Scotland. [\[147\]](#)

[147.](#) One day, when the council had finished their work, and were just rising, the clerk asked the chancellor, My lord, what will you do with Mr Warner? You have ordered him to oblige himself not to preach during the ten days allowed him for ordering his affairs; but if you knew him as well as I do, you would as well order him to go to the Grassmarket and be hanged, for he will do the one as soon as the other. What shall we do with him then, Hugh? My lord, if you would take my advice, instead of taking him obliged not to preach, I would take his engagement to preach thrice a-day while he stays in the kingdom, and so you will burst him and be quit of his din. The matter was laughed over, and the clerk allowed to draw his liberation without that clog. Wodrow, vol. ii. p. 254.

About this time the patriotic struggle in England had terminated unfavourably, and Charles found himself at liberty to recall his brother to court, on which occasion the Scottish bishops wrote a letter to his Grace of Canterbury, to be by him communicated to the king and their English brethren, expressing their sense of how much “their poor church and order did owe to the princely care and goodness of his royal highness, which, next to the watchful providence of God, had been their chief protection against the most unreasonable schism which, by rending, threatened the subversion of their church and religion”—“so that all men,” say they, “take notice that he looks on the enemies of the church as adversaries to the monarchy itself.” “The peace and tranquillity of the kingdom is the effect of his prudent and steady conduct of affairs, and the humours of our fanatics are much restrained from dangerous eruptions, upon the apprehensions of his vigilance and justice.”

Early in May, he returned to these his warm admirers, finally to arrange the government in the hands of their and his friends.^[148] Queensberry, created a Marquis, he appointed treasurer; Gordon of Haddow, afterwards raised to the peerage as Earl of Aberdeen, chancellor; and Perth, who shortly after went over to popery, justice-general—an office of fearful importance during that bloody period. In about a week after, he took leave of the council, recommending to them at parting to pay particular attention to the support of the orthodox clergy and the suppression of the rebellious by sending more military missionaries to be quartered among them. In reply, they gave him as cordial assurances of thankfulness and obedience as he could have desired, and proceeded to carry his instructions into effect.

¹⁴⁸. On his passage the vessel was wrecked, and about one hundred and fifty perished, among whom were, the Earl of Roxburgh, the Laird of Hopeton, Sir Joseph Douglas, and Mr Hyde, his own brother-in-law. He escaped himself with a few favourites; but it was said at the time that more might have been rescued, had he been less careful about his priests and his dogs.

As a preliminary, one Robert Gray, an Englishman from Northumberland, who had been apprehended about ten months before, and kept close prisoner, was brought to trial, accused of having written a letter to John Anderson, prisoner in Dumfries, “wherein he did declare our present sovereign, the best and most merciful of kings, to be a tyrant;” “and calling the test the *black* test, and destructive of all the work of reformation.” He acknowledged the letter, which seems to have been intercepted, but had

been guilty of no overt act whatever, nor indeed was he accused; and for these expressions he was found guilty of treason, and hanged on the next day following his trial. "As for me," said he, addressing the crowd from the ladder, "I am brought out of another nation to own that covenant which ye have broken. Glory, glory, glory, be to his name, that ever he gave me a life to lay down for him!" "As for you who are the remnant of the Lord's people, keep your ground, and beware of turning aside to one hand or another, and I will assure you the Lord will prepare a Zoar for you. Cleave to truth and to one another, and as sure as God lives, ye shall yet see glorious days in Scotland! for I die in the faith of it, that he is on his way returning to the land! But wo! wo! will be to those who are enemies and strangers to him!"

Following up the recommendation of the Duke of York, the council directed Dalziel to march to the shire of Lanark to confer with the Duke of Hamilton and other commissioners of the shire about securing the peace in time coming—to inquire for a list of such rebels, either heritors or tenants, as had not submitted, that the obstinate might be brought to justice; and to consult upon some plan for seizing any of the wanderers or their vagrant preachers who might be skulking upon the confines of the shires next to Galloway and Ayr; also to take care that ways be fallen upon for making persons, both innocent and guilty, keep their parish churches; likewise to consider of a great abuse lately committed by some who illegally obtained restitution of the goods of such as have been fined for rebellion, or threaten those who buy them, and to make strict inquiry by every means to know if any of the rebels' estates, or rents, or moveables be possessed by their wives, children, or friends, on their behoof. Afterwards he was to proceed to the town of Ayr to meet the Earl of Dumfries and the commissioners of that shire, and proceed in a similar manner assisted by the Laird of Claverhouse. Urquhart of Meldrum was to visit Roxburgh, Berwick, Selkirk, and East Lothian. Upon receiving the report of their delegates that some of the rebels were willing to submit, the council out of "pity and compassion" authorized them to grant "these miscreants" a safe conduct for one month to come in with their petitions for pardon, but without any promise that their prayer would be granted. It does not appear that more than six accepted the proffered boon.

Meanwhile the society-men—who carefully marked the signs of the times in a general meeting at Priest-hill, in the parish of Muirkirk, held on the 15th March—after being properly constituted, chose a committee of sixteen, with a preses, to watch over the conduct of the members, in order to regulate their intercourse together to prevent improper persons obtaining admission among them, and also to see that none made any sinful compliances with the rulers in church or state. They then nominated Alexander Gordon of Earlston and John Nisbet of Hardhill to proceed to the Continent, to represent their sufferings and explain their principles to the reformed churches there,^[149] “in order to their sympathizing with them and holding up their case unto the Lord, as members of the same body, under Jesus their head, and to seek the rolling away of reproaches industriously heaped upon them;” but some dissension arising about this appointment, Earlston proceeded to the Netherlands alone. It was also ordered that the delegates there present should desire every man of his respective society to provide himself fit weapons, in case they should be required for self-defence. At their next quarterly meeting, 15th June, held at Tala-linn, Tweedsmuir, their dissensions increased. James Russell, designated “a man of a hot and fiery spirit,” introducing a number of captious questions, such as, whether any of the society were free of paying customs at ports or bridges? which the greater part never had any scruples about, as being necessary for keeping the roads and bridges in repair, but which he endeavoured to confound with the cess levied for the express purpose of putting down the gospel; nor would he or the party who joined with him listen to any terms of forbearance, but insisted that both taxes were equally sinful, and that the payers should be separated from their meetings; nor although the enemy was at the gates, would they cease bitterly to strive with their friends within the camp.

¹⁴⁹. The societies every quarter of a year gathered a collection of money, sometimes more, sometimes less, and sent with their commissioner to the general meeting, when it was conscientiously distributed—a part of it for public uses, wherein the whole was concerned, if any such thing called for the same; or to prisoners, of whom always there were not a few; or to indigent persons as their need required.—Faithful Contendings, p. 24.

Ever on the alert, the curates were more united in their exertions to hinder or to punish all meetings of the wanderers; nor did they hesitate about the means they employed. The curate of Tweedsmuir immediately transmitted to the council an exaggerated account of this convention, and

they, July 8th, issued a proclamation, stating that “some traitors, runagates, and fugitives, having convocate towards the number of eighty, (although the real number was not above twenty,) and with forbidden weapons, and in an unlawful manner, near Tala-linn; and that the people in that county had been so defective in the duties of loyal subjects or good countrymen, as to neglect giving timeous notice either to the council or the sheriff of the shire;—they therefore commanded whoever heard of such meetings to give information to the chancellor, the secret council, or the nearest commander of the forces, repairing thither at the rate of at least three Scottish, about six English, miles an hour, under pain of being themselves held equally guilty with the offenders and liable to the same punishment. All magistrates, upon receiving such information, were required to raise the country and pursue the miscreants from shire to shire until they be apprehended or expelled forth of this realm; and in case any hurt or skaith fall out in the pursuit or apprehending those so unlawfully convocate, the actors thereof are to be free and unpunished in any manner of way; but whosoever should fail, magistrates or others, in the forementioned duties, were to be held as disaffected to the government, and to undergo the punishment of the law due to the crimes of the foresaid traitors and fugitives!”

As the meetings of the persecuted were necessarily secret assemblies, whose times and places were known only to themselves and their friends, the magistrates, who had other duties to attend to, could not possibly detect and disperse every little band when met for devotional purposes, and could not therefore vie with or satisfy the prelatical sleugh-hounds, who were more keen in the scent and less frequently at fault. They were accused of being remiss, and the council, August 9th, gave roving commissions to their stanch military beagles, Major White and the Laird of Meldrum, along with instructions to confer with the magistrates, and to call before them and fine all suspected persons, only, while in cases of blood they had a previous remission, in cases of money they were to render a strict account to their masters. Both were men of the most brutal manners, of which White gave a disgusting specimen with regard to James Robertson, a respectable merchant, who, according to the times, travelled the country with a pack. Having rather imprudently gone to visit a friend confined in Kilmarnock jail, he was himself stripped of his goods and detained a prisoner in the guard-house about ten days; during that time, being brought before the major, and refusing to give his oath *super inquirendis*, his judge pulled him

by the nose, and wrung it till the blood gushed out, and sent him to prison. While there, he and a fellow-prisoner sang praises to God, and their keeper, the captain of the guard, heard them; but, unlike the jailer at Philippi, he rushed in, tore the Bible out of his hand, and swore he would burn it if they again offered thus to be engaged. A few weeks after, he was being carried to Edinburgh; and at Linlithgow, because he refused to drink the king's health, the soldiers tied him literally neck and heel, and left him all night in that posture. On the morrow he was taken to the capital, with his feet bound under the horse's belly, where, after the usual mock trial, he was sent to suffer on the 15th December, and, as if to complete the baseness of their cruelty, when he complained of not being suffered to speak to the people on the scaffold, the town-major, Johnstoun, who superintended the execution, beat him with his cane at the foot of the ladder.^[150]

¹⁵⁰. Wodrow remarks—"This abominable rudeness to a dying man, and the patience and cheerfulness of this good man in suffering all this, I know was the occasion of a deep conviction to some who were present of the evil of persecution and prelacy; and there are severals yet alive who can date their first serious impressions of religion from their seeing some of the persecuted party suffer, as they themselves have informed me."—Vol. ii. p. 266.

John Findlay, the prisoner visited by his dear comrade James Robertson when he was taken, came from the same neighbourhood. On his examination before the committee, he also refused to say—God save the king, although he said he loved the king as well as any person, confessed he was at Drumclog, but without arms; and being asked if he conversed with Mr Cargill within these two years, refused to answer otherwise than that a man is neither by the law of God nor man bound to have a hand in shedding his own blood.

William Cochrane, belonging also to the parish of Evandale, who was apprehended about the same time, when examined before the council as to whether he thought it lawful for subjects to rise in arms against the king? and whether he considered the king to be a lawful king? answered—"These are kittle questions, and I will say nothing about them, being a prisoner;" and when desired to say—God save the king—remained silent. He was sent to the justiciary, and thence with the other two to the Grassmarket. The soldiers, however, were produced against him and Findlay, who swore that they took their arms from them, and left them bound in the fields. In a testimony that he left, he assigns the following reasons for his refusal:

—“Now the main article of my indictment upon which I have received my sentence of death from man, was, that I would not say—God save the king, which, as they now stated him an idol in the mediator’s room, I could not do without being guilty of saying—Amen, to all that he hath done against the church and people of God; and [against the] true subjects of this kingdom, and the ancient and fundamental laws thereof, and doing contrary to that in the second Epistle of John, ver. 10. ‘If there come any unto you, and bring not this doctrine, receive him not into your house, nor bid him God speed; for he that biddeth him God speed, is partaker of his evil deeds.’ And also ye know that taking the name of God in our mouth is a part of worship, and so a worshipping of their idol; for before our faces they said that he was supreme over all persons and over all causes, which is putting him in God’s room.”

The year closed with scenes of plunder and blood. Fourteen gentlemen and ministers were (December 11th) declared rebels, outlawed, and their estates forfeited; and Lady Douglas of Cavers was fined £500 sterling, because she would not swear that she had not been at a conventicle for three years preceding. Alexander Hume of Hume, a small heritor in the Merse, was sacrificed under circumstances of peculiar atrocity. He was indicted and tried for rebellion in November, when the proof entirely failed; but instead of being set free, he was kept in prison till December, when he was on the 20th brought a second time to the bar, charged with holding converse with those who besieged the house of Sir Henry M’Dowall at Mackerston. The only evidence in support of the charge was, that he, attended by his servant, had called at Sir Henry’s on his return from hearing a sermon, and offered to buy a bay horse! Yet did the jury bring him in guilty of “commanding a party of the rebels’ horse in besieging the castle of Hawick,” and “he was hanged at Edinburgh,” adds Fountainhall, “in the Christmas week, because the Viscount Stafford was execute in London in the same week 1680.”—“He died more composedly than others of his kidney did.”^[151] Among his last words were—“It doth minister no small peace and joy to me this day that the Lord hath set his love upon me, one of Adam’s unworthy posterity, and has given me the best experience of his grace working in my heart, whereby he hath inclined me to look towards himself, and make choice of him for my soul’s everlasting portion. It is the Lord Jesus, and he alone, who is my rock and the strength and stay of my soul.” When the rope was about his neck, and immediately before his being

turned over, he concluded his life by singing the last verse of the seventeenth Psalm.

[151](#). The most atrocious part of this villanous transaction was—a pardon had actually been procured by Mr Hume’s friends at London, and arrived at Edinburgh some days before the execution, but was kept up by the Earl of Perth. “And on the day of his execution, his spouse, Isobel Hume, came in the most moving manner to the Lady Perth, begging she would interpose for her husband’s life, urging she had five small children. The Lady’s answer was so inhumane, that I shall not put it in writing.”—Wodrow, vol. ii. p. 268.

In the midst of these troubles, the apostate Duke of Lauderdale went to his place^{[\[152\]](#)}—a man who sacrificed his conscience and character to serve a sovereign who left him in his old age.

[152](#). “August 25, 1682. Died the great minister of state, the Duke of Lauderdale, at the wells in England, near London. Before this time he was paraletic, and was disenabled from council and advice giving. The king’s council in Scotland advised the king to call in all his pensions he had given to any person, hereby to reach him, and to dispose of them of new, which was done; thus Lauderdale’s pension of £4000 sterling was taken from him, which he complains of to the king, and entreats his majesty to consider him, that his old and faithful servant might not die in poverty, yet was not granted. He disheartens at this, and being advised by some of the chief physicians in England to go to the wells (some of them going with him), after some days’ drinking, he swells; then being advised to take water with salt, it purges him, and so purged him as that he died of it.”—Law’s Memorials, p. 234.

BOOK XIX.

A.D. 1682-1683.

Persecution instigated by the curates in the South and West—Noble conduct of a boy—Rapacity of the military—Instructions of the council—Exploits of Claverhouse, Meldrum, &c.—Retributive justice—Justiciary court—Lawrie of Blackwood—Circuit courts—Rye-house plot—Scottishmen implicated—Various instances of oppression.

While the justiciary and the commissioners were carrying on their dreadful work, the lower menials of tyranny were not idle. Cornet Graham followed closely the footsteps of his friend Claverhouse. In the parish of Twynholm, Kirkcudbrightshire, several cottars' wives, with children at the breast, were sent to jail, because they would not oblige themselves to keep their kirk and hear the curate. In a neighbouring parish, the incumbent being informed of some persons who dared meet together for prayer, procured soldiers to quarter upon them for this dreadful irregularity; and one poor old woman, nearly blind, and lame in both her arms, eminently pious, and therefore peculiarly obnoxious, being cast out of her cottage, which was razed to the ground, sought hiding in a neighbour's house; but the implacable curate brought a party of soldiers, whom he ordered to seize her and carry her out of the parish, saying, "Jean, you shall crook no more in Moss-side," and added, "she was a scabbed hog, and would infect all the flock." Her brother, however, prevailed upon them by a little money to allow her to go with him to his house, where she lingered a few days, till she reached a better home. At Perth, Mrs Minniman, a minister's widow, was torn from her only son, a child, lying dangerously ill:—the child died crying for his mother, and the mother soon after died of grief for her child. Parents were punished for their children, and children for their parents, even

when the parties themselves were regular. But this was the case over the whole country, of which I shall give a few instances.

In the parish of St Mungo, Annandale, a father had a party quartered on him, because his son, a youth about sixteen, was in fault; for the curate said it was but fit the father should be punished for the child, whom he ought to have made regular by a bridle. In Rutherglen, the provost sent his officers to a widow's house to apprehend her son for non-attendance at church. The lad fled, but his sister was taken, fined, and sent to prison, for aiding his escape. The poor girl could not pay the fine, and her mother fell sick; yet, though bail was offered, she could not be permitted to attend her. Shortly after, supposing perhaps that the son might have supplied his sister's place, the provost came in the night-time, searched the house for him, and, failing to find him, obliged the afflicted woman to pay twenty merks, probably her all. Mr Blair, the incumbent, for not waiting on whose ministrations all this suffering was inflicted, was at the very time living in whoredom with his own servant wench.

At East Monkland, in Lanarkshire, an incident occurred, respecting which it is difficult to say whether it exhibits the barbarity of the mercenary soldiers, or the noble hardihood of a thoroughly trained youth, in the most conspicuous point of view. Archibald Inglis, an officer under John Skene of Hallyards, while hunting out a pious farmer in Arnbuckles who had been denounced by the profligate curate of the parish, missing him, laid hold on a boy, hardly fifteen years of age, and ordered him to swear when he saw his master, and to tell them if he knew where he was. The youth refusing, the soldiers beat him with their swords till he was wholly covered with blood; then dragging him by the hair of the head to the fire, they wrung his nose till it gushed—they held his face to the flame “till his eyes were like to leap out of his head.” The woman in the house, unable to help him, entreated him with tears to tell all he knew before he was burned to death; but the intrepid little fellow refused to say a word. The soldiers, holding their drawn swords to his breast, swore they would send him to eternity, if he did not tell. Still he kept mute. Then they struck him furiously upon the head, but not a word would he utter. At last he fell senseless among their hands, and they left him for dead! He afterwards recovered. I regret I cannot record his name. This same Inglis, in the parish of Kilbride, because three conscientious peasants refused to take the inquisitorial oath, to answer

every question that should be put to them, ordered fiery matches to be placed between their fingers to extort compliance; but in this case, as in the other, he appears only to have had the diabolical satisfaction of inflicting exquisite torture without attaining his object.

The thirst after money was insatiable among these wretches. Covetousness, in its meanest, crudest, and most revolting shape, appears to have been their master passion. Their gross, expensive sensuality cried —“Give! give!” and what they squandered upon their harlots, they unmercifully wrung from their more excellent neighbours. Such was the high-spirited gallantry of these extolled cavaliers! Claverhouse distinguished himself in this way. Nor was that still more despicable character, Mackenzie, the king’s advocate, less assiduous in the same low vocation; indeed, he appears upon every occasion to have stimulated the spoilers.

The council’s instructions to the military brigands early this year, which were undoubtedly his production, were framed upon the principle by which the greatest sums of money could be extorted from the people. When petty heritors, who were also tenants, were guilty of any disorder, they were to be fined in that capacity, which would bear the greatest fines. Upon information that noblemen or gentlemen entertained in their families unlicensed chaplains or pedagogues, their names were to be sent to the chancellor, the archbishop of St Andrews, or the bishop of Edinburgh, that the pecuniary penalties, which were exorbitant, might be exacted. They were to call for the public records of their districts, and if any fines had been abated, they were to be exacted in full; and the magistrates were to be reported, that they might be brought to account for their negligence or collusion.

In the parish of New Glenluce, Graham seized four countrymen for not hearing the incumbent, put them in jail, and sent soldiers to quarter on their families, and, in the language of the day, “eat them up.” After they had been kept in durance for twelve weeks, he ordered them to be tied two and two and set on bare-backed horses, and to be carried to Edinburgh; but after they had undergone the torture of a day’s ride, he sent after them, and allowed them to purchase their liberty, by giving him each a bond for a thousand merks.

Among his other extortions in Galloway, he had imprisoned and fined exorbitantly some of Sir John Dalrymple's and his father's tenants, of which Sir John complained to the privy council, alleging that he as heritable bailie of the regality had anticipated Captain Graham, and of course had a preferable right both to the casualties and emoluments of the fines. Claverhouse replied, by alleging that Sir John's decreets were collusive, and the fines did not amount to one sixtieth part of what ought to have been legally exacted, and that he had weakened the government by interfering with and opposing the commission which the king's council had given him, containing a power both civil, criminal, and military, of sheriffship and justiciary, for executing the church laws; and under pretence of his preferable jurisdiction, studied to stir up the people to a dislike of the king's forces. Also, that he had defamed Claverhouse as one who had cheated the king's treasury, in exacting the fines of heritors and not accounting for them, at least falsely giving in an account to the exchequer far below his intromissions, which he ought either to prove or else be punished as the author of an infamous libel. Sir John then asked that he might be allowed to produce what witnesses he had in town for proving his allegations. But this most reasonable, and one would have thought irrefusable, request was denied him upon a quibble, that it would compel him to raise a counter-action, instead of establishing his defence. Claverhouse's witnesses were then allowed to be examined. The first called was Sir George Lockhart, the defendant's own advocate, and the chancellor thought he might be ordained to depone. Sir George, however, himself insisted that it would be a most pernicious precedent to force advocates to disclose their client's secrets; and after "much transport, flame, and humour," he was passed over, not on account of any allowed impropriety, but because it was considered unnecessary. Sir John alleged the people in Galloway were turned orderly and regular. Claverhouse answered, there were as many elephants and crocodiles as there were either regular or loyal persons in the shire.

After the final hearing, February 12th, the council determined that Claverhouse had done nothing but what was legal and consonant to his commission and instructions, and the chancellor complimented him so far in their name:—that they wondered that he, not being a lawyer, had walked so warily in so irregular a country, and therefore they gave him their thanks for his encouragement; but they found that Sir John Dalrymple, though a lawyer and a bailie of regality, had exceeded his bounds, and had weakened

the hands of his majesty's authority by his interference, they therefore condemned him to lose his heritable bailiery, to pay £500 sterling of fine, and to enter Edinburgh Castle and lie there during the council's pleasure, "as an example to all others who should oppose their military commissions." He was released on the 20th, upon paying his fine, acknowledging his rashness, and craving the council's pardon.

Douglas of Bonjedburgh was fined by the Laird of Meldrum, as the council's sheriff of Teviotdale, 27,500 merks for his own and his lady's irregularities, in being absent from the church and private baptisms; and Sir William Scott of Harden, 46,000 pounds Scots for similar enormities. "The sum fined in," Fountainhall remarks, "jumped with a gift the king's advocate had new gotten, of £1500 sterling, from the king, out of the first and readiest of the fines, for his pains, expense, and journeys to London." Nor though Scott had the matter fully argued before the king in council, and was strongly supported by the Marquis of Halifax, could he obtain any relief.

When men high in office and in rank were thus setting decency at defiance for gain, it could not be expected that men in lower life would remain inactive spectators. Nor did they. Fountainhall gives many examples. I select one. Menzies was brought before the criminal court, for collecting money for the rebels in the west and receiving letters from Balfour of Burleigh, one of Sharpe's murderers. He was condemned to be hanged. But it appearing afterwards that the witnesses were infamous, and that they had sworn largely, *i. e.* falsely, and that he was delated by one who was owing him money, the privy council reprieved him. Early in the year, Mr John Philip, minister of Queensferry, having, "when in his cups," called the Duke of York a bloody tyrant, was informed against by his comptators, and being brought before the privy council, March 15th, was fined £2000 sterling, and sent to the Bass, besides being declared infamous and incapable of ever preaching hereafter. At the same time, he was informed if the money was not paid within fourteen days, the council would order him to be criminally prosecuted; but to make assurance doubly sure, their cash-keeper was commanded to take possession of all his books and papers.

In pursuing the march of these despicable mercenaries, high and low, it is deserving of remark, that while they all joined in pursuit of the proscribed Presbyterians, they were equally ready to turn upon each other, whenever

they thought they could gain any accession to their own estates from the spoil of those they had crouched before in the hour of their prosperity. Thus, even in this world, does God sometimes display his retributive justice, by permitting the wicked, in their nefarious dealings with one another, to avenge the cause of his own people. Lauderdale furnishes a striking exemplar. After having done every thing in his power to advance the interest of the Duke of York, by procuring his recall from the Continent and his appointment to the government of Scotland, the ungrateful York rewarded him by joining his enemies and aiding the fall of the power of the Maitlands.

In their proceedings this year, the justiciary court commenced by setting every principle of common justice at defiance, refusing to prisoners a list of the witnesses intended to be brought against them, thus depriving them of one grand means of defence, while they had them examined privately upon oath before themselves; and the reason assigned in the king's letter, procured for this purpose, was worthy of the practice, "so that our advocate may be secure how to manage such processes." The first person brought before them, a William Martin, younger of Dallarg, was dismissed simpliciter, upon surrendering all his lands and heritages to the Lord Treasurer in favour of the king's most excellent majesty. The next was William Lawrie, tutor of Blackwood.^[153] He was charged with conversing with rebels who had been at Bothwell; but although the persons he conversed with had never been pursued at law, much less convicted, and resided at the same time openly in the country; yet did the Lord Advocate contend that if they were in fact rebels, or were reputed or suspected such, that was enough to render it treason to have any intercourse with them; to which the lords agreeing, and several acts of converse being proved, he was condemned to lose his head, and his estate to be forfeited to the king; but being an old man, and professing great sorrow and submission, he was, after several respites, through the interest of the Marquis of Douglas, whose chamberlain he was, pardoned as to life, but his forfeiture was confirmed as a precedent for establishing a most indefinite but lucrative species of treason. This was announced by proclamation, April 13th, requiring judges and magistrates to execute the laws with rigour against all who should receive, harbour, or converse with notour forfeited traitors, or such as they suspected to have done so; to require them to clear themselves by oath, which, if they refused, to hold them as confessed, and punish them by

banishment, fining, or other arbitrary punishment. To carry this object the better into execution, circuit-courts were appointed to be holden in the western and southern shires, at Glasgow, Ayr, and Dumfries. Adopting another practice of the inquisition, the emissaries of these courts were to procure all the information they could respecting noblemen, gentlemen, sheriff-principals, or provosts of burghs, of which they were to keep a *private* roll, and transmit it *secretly* to the council. The ministers were also ordered to give in lists of all heritors, withdrawers from the church, and all women who were delinquents—of all persons who had left their parishes and the reasons for it—of fugitives, their wives, and widows, and their resettlers—and of chapmen and travellers.

[153](#). He held the lands of Blackwood, as tutor to the sons of his wife Marion Weir, heiress of the estate.

About this time John Nisbet, younger, was tried at Kilmarnock by Major White, who had a justiciary power sent him for that purpose. As the persecutors were exceedingly anxious to catch John Nisbet of Hardhill, who was peculiarly obnoxious for his holy intrepidity, White pressed his prisoner to inform him respecting the retreat of his namesake; and when he positively refused to say any thing about him, the major told him, after threatening him violently, he would make him sit three hours in hell if he did not. The sufferer mildly replied—“that was not in his power.” He was then asked if he owned the king to be head of the church? He answered, I acknowledge none to be head of the church but Christ. No witnesses were examined, his own confession being deemed sufficient for his conviction. He was executed at Kilmarnock cross, April 14th. Contrary to custom, he was allowed to speak, and addressed the spectators at considerable length, exhorting them to personal godliness, and recommending religion to them from his own feeling and experience. “This,” said he, “is the first execution of this kind at this place, but I am of opinion it will not be the last; but, sirs, death is before you all, and if it were staring you in the face as nearly as it is me at present, I doubt not there would be many awakened consciences among you. As for myself, though death be naturally terrible, and a violent death still more terrible, yet the sting of it being taken away, I reckon every step of this ladder a step nearer heaven.” Here some confusion arising among the soldiers, he stopped, and drawing the napkin over his face, while

in the act of commending his soul into his Father's hands, was launched into eternity.

In May following, John Wilson, writer in Lanark, a pious, learned, and talented man, who had been condemned to die on the 7th, petitioned for a reprieve, as his wife was near her time, and was respited till she was delivered of the babe their cruelty was so soon to make fatherless. On the 17th he was executed along with David Macmillan. He departed rejoicing in God his Saviour, and in the firm belief that he would yet return to his church and people in Scotland, though he feared there would be sad judgments upon those who had forsaken his ways, and declared it as his firm conviction that God would remove that race of kings, root and branch, and make them like Zeba and Zalmunna for taking God's house in possession. In the testimony which he left, he vindicated resistance to the government then existing, upon the grounds of the violation by them of the duty they owed to the people, although he thought that a rising could only be justified by its probability of success. "As to the denial of the king's authority, he scunnered to own it, and such things had been done as in a well ordered commonwealth would annul his right; yet he thought authority should not be cast off without a probable power to support in this." And he proved his positions by the Confession of Faith embodied in the test itself, as well as by the authority of their own leading bishop, Honyman, who in his answer to Naphtali granted "that a king might be lawfully resisted in case he should alienate the kingdom to strangers." With regard to the bishop's death, he would pronounce no opinion; he durst not call it murder, if the motives of the actors were pure; but if the actors were touched with anything of particular prejudice or by-ends, that Scripture of avenging the blood of Jezebel upon the house of Jehu would not suffer him to justify it. Along with him suffered David Macmillan, a plain countryman, who had gone with a party of horse to Bothwell. On their being dispersed, he dismounted and joined a body of foot which still maintained their ground, till they also were overpowered. When he asked for quarter, a soldier replied—"I'll give you quarters," and knocked him down. While lying bleeding, a Highlander fired at him and struck him, but the ball being perhaps spent, did him no hurt. He got home and remained undisturbed, although suspected, till now, when having retired to the kirk for the purpose of reading the Scriptures, he was discovered by Claverhouse in the very act; and being carried before the justiciary, he was very summarily sent to the

gibbet. In his last testimony he “earnestly wished that love might continue among the godly, notwithstanding of differences in judgment, and desired every one to look on their own sins as the cause of the present undoing of religion, and still remember the church was purchased by Christ’s blood.” He blessed God who had honoured him with his cross, and that ever he had heard the gospel preached in the fields; and adds—“I could not argument for the truth as others, but I never had a look to go back, nor one hard thought of God.”

Early in June, the justiciary courts set out on their bloody circuit. At Stirling, one Boog, when brought before them, produced a testificate under Sir William Paterson, the clerk of the council’s hand, that he had taken the bond within the specified time; yet refusing to promise not to rise in arms hereafter, “was coney-catched,” as Fountainhall terms it, by that blood-thirsty crew; and the day they sat down at Glasgow was marked by the execution of two persons, John Macwharry and James Smith—a deed singular for its injustice and cruelty, even in these times. A party of soldiers, in conveying one Alexander Smith to Edinburgh, were attacked by some of his friends near Inchbelly Bridge, who released the prisoner and killed one of the party. After they had retired, the soldiers rallied, and in revenge—as cowards are always cruel—seized these two unarmed countrymen, who were sitting quietly together in a wood not far distant, and carried them to Glasgow, where, without any other evidence of guilt, than their being taken near the place, they were condemned to have their right hands cut off, then to be hanged, and their bodies afterwards hung in chains. They are represented as having been most pious and exemplary persons; and the letters they addressed to their fathers, mothers, brothers, and sisters, upon this occasion, breathe a tender spirit of filial affection and ardent piety. “It is worthy recording to the praise of his grace, for whose royal dignity they witnessed, that they endured all these hardships with a great deal of Christian magnanimity, even to the conviction of enemies.” They rejoiced in their bonds and joyed in their tribulations. When Macwharry’s hand was cut off, he held up the stump, and said—“This and other blood shed through Scotland will yet raise the burnt covenants.”

Pre-eminent in infamy were the clerical informers; and among them, one Fenwick, the curate of Cathcart; Abercrombie, in Carrick; and Joseph Clelland, in Dalserf—to enumerate even a tithe of the non-conformist

heritors and commonalty who were persecuted by these incapables—for they were grossly illiterate as well as immoral—would require a folio; but some idea may be formed of the nature of the inflictions from one or two cases, resulting from their informations. William Boswell of Auchinleck, a very young gentleman, having accidentally, when taking a ride, met a company going to join the west country folks, merely stopt his horse to see them draw up, was for this crime obliged to take the test and pay one thousand merks fine, to preserve his estate from forfeiture. William Muir, laird of Glanderston, when in a fever, having been blooded by Mr Spreul the apothecary, was imprisoned for holding converse with rebels, and was only released by an act of the justiciary.

The only person who suffered for being directly concerned in Sharpe's death, was one Andrew Guilan, a weaver, near Magusmuir, who was executed at the cross of Edinburgh in July this year. His conviction occurred in rather a curious manner. After the transaction, he had fled south and settled in the neighbourhood of Cockpen, where he worked as a day-labourer. While at work, the curate of the parish coming past, went to him, and asked where he was on the Lord's day? and if he kept the church? Andrew replied, that he did not own him, and would give no account of himself; on which the curate called for some people thereabout and seized him, and took him to the village, where he was pressed to drink the king's health, which he refusing, as he said he drank no healths, he was carried to Dalkeith, and there put in prison, and from thence to Edinburgh, where, after examination, he was put into the iron-house. While there, some rumour arose of his having been present at the act, but there was no proof till the advocate charging him, at one of his examinations, with the crime, and aggravating its cruelty by every exaggeration, turned to Andrew, and exclaimed—"What a horrid deed to murder the holy bishop when he was on his knees praying." This so touched the simple countryman, that, lifting up his hands, he cried out—"O dreadful! he would not pray one word for all that could be said to him!" This was sufficient; he was immediately found guilty on his own confession, and sentenced to be taken to the cross of Edinburgh, to have both his hands cut off at the foot of the gallows, and then hanged; his head to be fixed at Cupar, and his body to be carried to Magusmuir, and to be hung in chains. He endured the infliction with great courage, and denied that he was a murderer, although he joined with those who executed justice upon Judas, who sold the kirk of Scotland for fifty

thousand merks a-year. He received nine strokes before his hands were amputated; and after the right hand was cut off, he held out the bleeding stump, and exclaimed—"My blessed Lord sealed my salvation with his blood, and I am honoured this day to seal his truths with my blood." Along with Guilan was executed Edward Aitken, who was condemned on the narrowed points of converse with, and harbouring, Gordon of Earlston.

About this time, what has been called the Rye-house plot was discovered, which enabled Charles to crush the friends of liberty in England, who had projected an insurrection in case of his death, in order to exclude the Duke of York from succeeding to the throne, and had entered into a correspondence with the Scottish exiles abroad, and a number of the leaders among the sufferers at home. These were, the Earl of Loudon, Lord Melville, Sir John Cochrane of Ochiltree and his son, Sir Hugh Campbell of Cessnock and his son, Baillie of Jerviswood, Stuart of Coltness, and Crauford of Craufordland. Several meetings had taken place in London, but nothing had been definitely arranged, when one of the inferior agents, or government spies, revealed the whole; or rather invented a plot of his own, which he communicated to the government—ever on the alert after conspiracies—for the sake of a reward. On this vile denunciator's testimony chiefly, Russell and Sidney suffered; and a number of the Scottish partizans were secured, and sent to Edinburgh to be tortured and executed.

Besides these, Gordon of Earlston, who had been seized at Newcastle, was also sent to Scotland. Having been attainted in his absence, he was brought to the bar of the justiciary; and his former sentence being read, he was ordered for execution; but there was produced a letter from the king, ordering him first to be put in the boots. The council wrote back to his majesty, that it was not either regular or usual to torture malefactors after they were condemned; but the royal commands were peremptory, and he was accordingly brought into the Council-chamber to be tortured, when "he, through fear or distraction, roared out like a bull, and cried and struck about him, so that the hangman and his man durst scarce lay hands on him." At last he fell into a swoon, from which when he recovered he spoke in the most incoherent manner. The council differing in opinion, some calling it real, and some affected madness, physicians were ordained upon soul and conscience to report upon his condition, which they did, affirming that he was affected by that distemper, called *alienatio menti*, and advised he

should be sent to the Castle, which was accordingly done; and afterwards he was conveyed to the Bass, where he remained till the Revolution set him free.

Shortly after, undeterred by the gathering storm, Mr James Renwick again raised the gospel standard on the mountains and muirs of his country. Having been ordained at Groningen, he immediately embarked at the Brill in a vessel bound for Ireland. During his voyage the ship was forced by a storm to put into Rye, just at the time when the noise about the plot was at its height, but he escaped without trouble, and arrived in his native land safely, in time to attend the general meeting appointed to be held at Darmede on the 3d of October, by whom he was called and received as their minister. James Nisbet, son of Nisbet of Hardhill, in his memoirs, gives the following account of his manner of preaching:—"After this I went sixteen miles to hear a sermon preached by the great Mr James Renwick, a faithful servant of Christ Jesus, who was a young man, endued with great piety, prudence, and moderation. The meeting was held in a very large desolate muir. The minister appeared to be accompanied with much of his master's presence. He prefaced on the 7th Psalm, and lectured on 2 Chron. chap. xix., from which he raised a sad applicatory regret that the rulers of our day were as great enemies to religion as those of that day were friends to it. He preached from Mark xii. 34, in the forenoon. After explaining the words, he gave thirteen marks of a hypocrite, backed with pertinent and suitable applications. In the afternoon, he gave the marks of a sound believer, backed with a large, full, and free offer of Christ to all sorts of perishing sinners that would come and accept of him for their Lord and Saviour, and for their Lord and Lawgiver. His method was both plain and well-digested, suiting the substance and simplicity of the gospel. This was a great day of the Son of Man to many serious souls, who got a Pisgah view of the Prince of Life, and that pleasant land that lies beyond the banks of death—Jordan."

That such preaching, attended by such numbers as came to hear, and accompanied by such power on those who heard, should attract the attention and hatred of men like those, the then rulers in church and state, was exactly what was to be expected. The council no sooner got intelligence of the revival of field-preaching, which they thought they had crushed for ever, than they sent Mr Cargill to his reward, and recommended their efforts to suppress them; and because Renwick had preached and

baptized some children on the lands of Dundas, in the parish of New Monkland—the superiority of which belonged to the Laird of Dundas and the Trades of Glasgow—they fined both parties in £50 sterling each. Nor did the opposition rest here. Mr Hog and Mr Wilkie, two ministers, were fined, the one in five thousand, and the other in ten thousand merks, for having been at this or similar conventicles. In the same month, and for the same crime, several women as well as men were sent to New Jersey and to Jamaica, to be sold as slaves. Searchers were also appointed in the west, particularly in Glasgow, by whom every house, from the cellar to the garret, was examined for suspicious strangers, who were also empowered to interrogate whoever they chose, and apprehend such as did not give what they deemed satisfactory answers.

While the work of blood went forward at Edinburgh, three plain countrymen were, in the latter end of November, brought before the justiciary:—John Whitelaw in New Monkland, Arthur Bruce in Dalserf, and John Cochrane, a shoemaker in Lesmahago. They were persons from whom government had nothing to fear; “and their blood was shed,” says Wodrow, “for what I can see, merely out of love to blood.” Their confessions were the only proof of their guilt; and the depth of their criminality may be judged of from that of the first, with which all the rest essentially agreed. “John Whitelaw declares he thinks Bothwell Bridge lawful, that rising being in defence of the gospel. He thinks himself and these three nations bound by the Covenants. That it is above his reach to tell whether the king be lawful king or not. Confesseth that he was some time with the rebels at Bothwell, but not at the battle, and that he had a sword. Refuses to say—“God save the king,” this not being a proper place for prayer; and if it mean his owning his authority, he has spoken to that already. Being interrogate if his judges were lawful judges, and the bishop’s death murder? he declared these were questions above his reach.” Bruce, when required to say—“God save the king,” replied by saying—“God save all the election of grace.” They were all three executed within three days, and died rejoicing in hope. Cochrane, in his last speech, remarks, that suffering was no discouragement to him, for “when the storm blew hardest, the smiles of my Lord were at the sweetest. It is matter of rejoicing unto me to think how my Lord hath passed by many a tall cedar, and hath laid his love upon a poor bramble-bush like me; and now I am made to say, the Lord hath done all things well, and holy is his name.” “Moreover, I leave my wife and six

small children to the care and protection of Almighty God, who hath promised to be a father to the fatherless and an husband to the widow; and my soul to God who gave it, and for whose cause I now willingly lay down my life.”

Another general search was made at Glasgow at the close of the year, but, with jesuitical policy, it was allowed to transpire some days before that such a thing was to take place, in order that “suspected persons” might take the alarm. In the mean time, however, soldiers were stationed at some little distance around the town in all directions, to seize such as should attempt to escape; but it does not appear that any person was apprehended, except John Buchanan, a student, who, after being imprisoned a while, was transported to Carolina. At the same time, a singularly affecting case occurred in the parish of Dalmellington. James Dun, a very peaceable and pious man, had four sons, one of whom, with a brother-in-law, was murdered by the soldiers; another was banished; a third was hunted on the mountains; the fourth, a lad not fourteen years of age, was seized and imprisoned at Ayr. Nothing could be laid to his charge, except non-conformity; yet was not his father able to procure his liberation till he paid two hundred and forty pounds, and even after this, he was taken, sent to the plantations, and sold for a slave!

BOOK XX.

A.D. 1684-1685.

Persecutions increase—"Killing Time"—Proscription and plundering—Husbands fined for their wives' non-attendance at church—Torture—Executions—Campbell of Cessnock—Paton of Meadowhead, &c.—Females sold for slaves—Spence—Carstairs—Baillie of Jarvieswood—Circuit courts—Porterfield of Douchal—Finings—Proceedings of the society-men—Review of the state of the country during this period—Death of Charles.

[1684] The preceding year went down in darkness—the present rose even more gloomily. Religious persecution, like the plague spot, if once it touches the system, grows deeper and deeper, till the whole be infected. It had continued increasing in virulence during the entire reign of "the merry monarch," which had commenced in hypocritical perjury, and was now about to set in unvarnished blood and massacre. There is one peculiarly disgusting feature in the persecution waged by priests against those who hold opposite opinions, and that is, it descends to the very lowest grade of society—it enters the humblest cottage and tortures the poorest of the poor; and while inflicting mental wretchedness, remorselessly strips its unfortunate victims of every ingredient of earthly happiness.

We now enter upon that period of our history, emphatically designated "Killing Time," by the persecuted people in the west, from the inhuman practice introduced this year of murdering the wanderers in the fields without trial, if found guilty of having a Bible in their possession, or caught in the act of praying to their God, or refusing to answer ensnaring questions; and we may form some idea of the general severity of the government, when the council, in one of their acts, granting commissions for trying and judging the "rebels," consider permitting their officers to sentence such as appeared penitent to be banished to the plantations in

America, as allowing them to give the poor sufferers “a taste and share of his majesty’s great clemency and mercy.” John Gate, a wright in Glasgow, who also kept a small alehouse, being employed in repairing the roof, some soldiers came in, and calling for ale and brandy, the officers desired the landlord to come and take a glass with them. He came unwillingly, but durst not refuse. When he entered, he was ordered to drink the king’s health. This he modestly declining, was instantly seized and sent to prison—his wife at the same time being apprehended and confined to another room in the same jail. Their family, consisting of eight young children, was scattered; and although several of them were sick of a fever, yet were they barbarously turned out of doors, and every article of furniture sold. The woman being with child, pined in prison, and only got out upon a surgeon’s certificate; but when liberated, the magistrates would not even permit her to return to her own desolate home; and the inhabitants being terrified—as prosecutions for “reset or intercourse with fanatics” were now common, and subjected any who were disposed to show humanity to the sufferers, to be treated themselves as disaffected—this sickly destitute female and her helpless family had no lodging-place but the street, till “the excellent” Lady Ardrey allowed her the use of a brew-house, where three of her children died. Her husband was banished to Carolina, and never returned.

Insatiable in their craving for money, while the avaricious wretches were plundering the fanatics, they were not less assiduous in pilfering the produce of their spoils from each other, and from government, whenever they could find opportunity. Queensberry, therefore, and others of the members of council, who found that the wages of their iniquity were but ill paid, being chiefly stopped on the road by their own minions, equally unprincipled with themselves, procured a letter from his majesty, read in council, January 3d, authorizing them to call all judges and magistrates to account for the fines they had received, and for which they had not reckoned, as well as for the remainder, “left as an awband over the heads of the heritors.” The only result of this call which appears upon the record, is a sum of between eight and nine thousand pounds, Scots, (£685. 16s. sterling,) levied by the magistrates of Edinburgh upon the good town; off which they were allowed £200 sterling for their trouble in collecting—no bad remuneration. Grasping at every farthing they could snatch, the council had perceived that women, who were the great transgressors and chief fomenters of conventicles, called by parliament “rendezvouses of

rebellion,” could be restrained by nothing except making their husbands liable for their fines, referred the subject to his majesty. He—as has been often remarked, like all profligates who profess great affection for the persons of women, set no value on their worth and pay as little regard to their feelings—determined against the ladies. But it having been found that this fell heavily upon some of the fiercest loyalists, who were unequally yoked, the privy council sent a letter to the king, requesting to be allowed in particular cases to dispense with the fines imposed upon the husbands for the irregularities of their wives, when there was no proof of their connivance with the refractory dames. His majesty was graciously pleased to authorize the council to dispense with the fines on loyal husbands “who do not connive at their obstinate wives’ ways, and are willing to deliver them prisoners!”

On this subject the Earls of Aberdeen and Queensberry differed—the former being for the milder, the latter for the harsher, measures, and those which would bring cash into the treasury, with which Perth coincided; and the consequence was, that Aberdeen was dismissed from the chancellorship, and Perth installed into the office, to which he had long been aspiring. The elevation of Perth—a man ready to sacrifice every principle of honour or religion to his ambition—augured ill for the cause of the sufferers. Perth was a cold-blooded, heartless politician, who would allow neither the feelings of the man nor the precepts of the religionist to stand in the way of his promotion. Could the Roman Catholic religion be divested of its intimate connection with civil power, the absurdities and the idolatries of its profession would disgust any rational mind; but when interwoven with politics, and presented as a state religion for securing the obedience of the lower ranks to their superiors, then it is viewed in a very different light by these superiors, who willingly unite with the clergy to keep the commonalty in darkness and degradation; and disguise it how we may, the prelacy of Scotland at this period was Roman Catholicism both in spirit and action. Perth knew this; and when he consented to compliment the Duke of York with his religion, it was merely offering the sacrifice of a form for the substantialities of a place. He showed the sincerity of his conversion by flattering York in the most abhorrent part of his religion—remaining to witness the agonies of the tortured. The royal Duke looked calmly on the excruciating torments of the sufferers, as if he had been witnessing some curious or agreeable experiment, when all those who could escape shrunk

from the spectacle. Perth superintended and viewed similar inflictions with all the complacency of a thorough-bred inquisitor.

The number of the individuals in lower life subjected to such treatment, under his inspection—the sameness of their tortures—and the similarity of their testimonies—it would be tedious to repeat; because, although these worthies all died in the faith, their holy brotherhood of suffering presents few distinguishing characteristics. But as an example, we may take that of a youth of nineteen, Archibald Stewart:—“I am more willing to die,” said he, “for my lovely Lord Jesus Christ and his truths, than ever I was to live. He hath paved his cross all over with love. Now all is sure and well with me. I am brought near unto God through the blood of his Son Jesus Christ; and I have no more to do but to lay down this life of mine that he hath given me, and take up house and habitation with my lovely Lord.” He was executed at Glasgow, with four others, whose last words were to the same purport. At their execution, one Gavin Black of Monkland, who had discovered some tokens of sympathy, was seized by the soldiers, imprisoned, and, because his answers to the usual inquiries were not deemed satisfactory, was banished to Carolina: and James Nisbet belonging to the parish of Loudon, in Ayrshire, having come to attend their funeral, was recognized as a covenanter by a cousin of his own, a Lieutenant Nisbet, and apprehended. When examined, he refused to own the king’s supremacy, and for this was condemned to suffer. During his confinement, he was treated very harshly, and was executed at the Howgate-head of Glasgow, on the 5th of June this year. He died in much peace and assurance, and expressed his joy that he had been counted worthy to suffer for the cause of his Lord.

Military atrocities, however detestable, do not produce that feeling of contempt which mingles with an abhorrence of legal murder. Neither Dalziel nor Claverhouse, justly as their memories are execrated, awaken the same loathing that the recollection of the bloody Mackenzie’s judicial murders call up, because in the conduct of the latter we see unmingled cowardice in its most revolting personification, safe from danger, and rioting in the spoils of its unfortunate victims. Yet I know not that men suffering for the cause of truth can be called unfortunate.

Sir Hugh Campbell of Cessnock’s memory stands upon an elevation, that his most distant relations might well be proud of being connected with. His persecutors are despised by the humblest of our virtuous peasantry, who

still on a solitary Sabbath, between sermons, moralize amid the tombs of the Greyfriar's churchyard. He was arraigned, March 24th. His indictment stated, "that, having met some runaways from the westland army, (*i. e.* the covenanters), he said that he had seen more going than coming," "and that he liked not runaways"—"that they should stick to the cause, and they would get help if they wud bide bye it." It does not appear that even the words are authenticated. He offered to prove that he was not at the place where the expressions were said to be used; also, that the witnesses bore him ill will. One had said—"if he was out of hell, he would be revenged upon him." Another had received money to be an evidence against him. All his preliminary defences were, however, rejected, and the process was ordered to proceed. The cause, of course, was deemed hopeless, and the crown counsel, Mackenzie, brought forward his evidence. First, Thomas Ingram: he being sworn, the old and venerable panel rose up, and addressing him, said—"Take heed, now, what you are about to do, and damn not your own soul by perjury; for, as I shall answer to God, and upon the peril of my own soul, I am here ready to declare I never saw you in the face before this process, nor spoke to you." Struck with the solemnity of the address, the tutored suborned witness declared when examined, that he could not swear distinctly to what the prisoner had said. A loud shout and clapping of hands immediately arose in court, which so irritated the advocate, that he started up in a fury, and said—"He believed Cessnock had hired his friends to make this uproar to confound the king's witnesses: that he had never heard of such a protestant roar, except upon the trial of Shaftsbury: that he had always had a kindness for their persuasion, till now that he was convinced in his conscience it hugged the most damnable trinkets in nature." Perth, the justice-general, whose brother, Lord Melford, had received a previous gift of the anticipated forfeiture, repeatedly questioned Ingram as to the truth of his assertion, when Nisbet of Craigintenny, one of the jury, interposing, declared they would only pay attention to the witness's first deposition, though he should be examined twenty times. Perth, with some warmth, replied—"Sir, you are not judges in this case."—"Yes, my lord," said Somervell of Drum, "we are the only competent judges as to the probation, though not of its relevancy!" And the whole jury rising, adhered to what he said. Another witness was brought forward—Crawford. He also could speak nothing with regard to the criminality of Cessnock, not having seen him for a considerable time either

before or after Bothwell Bridge. A fresh shout from the spectators announced their sympathy with the prisoner. In vain the justice-general and the advocate stormed. The jury brought in a verdict of—not guilty. Yet was he sent to the Bass, and detained a prisoner for life, and his estate forfeited and given to Melford. The witnesses were laid in irons and the jury charged before the privy council with having created a riot in court. Nor were they dismissed till they made an apology.

The heartless levity with which these scoffers at Presbyterian sanctity, perpetrated the most revolting cruelties, would scarcely be credited, did not their own records furnish the proof. One George Jackson, who had lain in irons during all the winter, was brought before a committee of council on the 13th of May. Being hastily summoned, he happened to enter with his Bible in his hand. “Come away,” said the advocate, “let’s see where the text lies.” George replied, “I was never a seeker out of texts; that is the work of a minister.” Then said the advocate, “put up your Bible, we are for no preaching now.”—“I am not come to preach,” answered the prisoner; “but I charge you, and all of you, as ye shall answer one day before our Lord Jesus Christ, when he shall judge——.”—“You came here to be judged and not to judge,” retorted Mackenzie; “send him to prison.” He was accordingly re-conducted to jail, and executed in December.

Some idea may be formed of the wide range to which the proscription of the best of Scotland’s population now extended, from the rolls printed at this date, May 5th, in order to reach all who could be accused of harbouring any who were proclaimed fugitives—not less than two thousand were declared outlaws; and when it is recollected, that the parent durst not speak to the child, nor the child to the parent; the husband to the wife, nor the wife to the husband—we may form some faint idea of the misery inflicted upon the suffering country. On the 9th of the same month, Captain John Paton of Meadowhead suffered. He had distinguished himself during the civil war; but after the battle of Worcester, settled upon the farm where he had been born, and became a member of Mr William Guthrie’s session, in the parish of Fenwick, till the Restoration. He was at Pentland and Bothwell, and was so marked a character that a large sum was offered for his head; and he experienced several remarkable escapes, till at last, early this year, he was taken in the house of Robert Howie of Floack, in the parish of Mearns. Dalziel, who had known him as a brave soldier, is said to have taken some

interest in him, and to have obtained a reprieve from the king; but that falling into the hands of Bishop Paterson, he kept it up till the Captain was executed, which seems the more probable from the short notice in the council record, April 30:—"John Paton, in Meadowhead, sentenced to die for rebellion, and thereafter remaining in mosses and muirs to the high contempt of authority, for which he hath given all satisfaction that law requires, reprieved till Friday come se'enight, and to have a room by himself that he may the more conveniently prepare for death"—a treatment so uncommonly favourable, that it looks very likely that something more had been intended. But he was honoured to suffer on the gibbet for the principles he had so strenuously contended for on the field. He died most cheerfully forgiving all his persecutors all the wrongs they had done to himself, and desiring they might seek forgiveness of God for the wrongs they had done to his cause.

But probably no case sets the iniquity of the then justiciary lords in a stronger point of view, than that of James Howison, maltman in Lanark, accused of being at Bothwell. The case as proved was, he resided in Lanark; and when a party of the west country army came there, he was, as all the inhabitants of the place were, obliged either to converse with them or retire. He could not retire, and was seen in conversation with some of the rebels, but without arms; for this the court sentenced him to be hanged at the Grassmarket, and his lands and goods forfeited to the king!

The partiality of the council was not less conspicuous. Having ordered the Lord Advocate to prosecute all heritors upon whose lands rebels were seen, among others, the Laird of Dundas was charged with this new crime; and his defence was, that he did not know of any persons either going to or coming from a conventicle, nor had he even heard of it till some time after. The lords repelled the defence; yet the very same day, the Earl of Tweeddale, accused of an exactly similar crime, was allowed to state his ignorance as his excuse, and the excuse was sustained.

It may be imagined, but I hardly think even imagination could conjure up a worse species of punishment than what was practised on well educated females—and such were the daughters and wives of the covenanters^[154]—for no fault but their opinions:—to be sent off the country as common felons, and sold in the colonies as common slaves; and not only was this villany effected, but worse; their companions who came to visit and take

farewell of their young friends—some of whom had been prematurely, illegally, and cruelly created widows—were frequently subjected to a similar fate, being seized and sent themselves to the plantations. One girl, Elizabeth Linning, when a prelatical slave-ship was lying in the Clyde, in the month of June this year, ready to sail for Carolina, went on board to condole with an acquaintance, she was immediately detained by the captain's order, carried to Carolina, and offered to be sold for a slave, when she fortunately made her escape; and having got her case laid before the governor, he ordered her liberation. She returned, I believe, to her native land, but it does not appear that the captain was punished.

[154](#). All the young women in Scotland at this time ought to have been taught to read. From every account, traditionary or otherwise, it appears the daughters of the covenanters generally were; and some of their published diaries, which have been held up to scorn, are even in point of elegance equal to many English writers who have been praised as the improvers of the English language; but this is a subject which deserves greater attention than I can afford in a note. I hope at no distant period to discuss it more fully.

The manner in which these victims of clerical oppression were used on their passage, does not admit of transcription. The indelicacy they were exposed to, bad as it was, was not equal to the filth that was perpetrated upon them. That so many of them died was less wonder than that any survived. The African middle passage might be a purgatory—the passage of the covenanters across the Atlantic would have been a stage below, had not the divine comforts that supported them in such a situation assuaged all the miseries their persecutors could inflict; and even amid the suffocation of the crowded mid-ships, enabled many triumphantly to wing their way to heaven.

Nothing steels the heart against every feeling of humanity equally with a false religion; and it is no less remarkable that its two principal ingredients ever have been a love of money and a love of power. Argyle's proceedings touched both these main-springs in the bosom of the Scottish rulers, and they were determined by every means they possessed to elicit information respecting them. His correspondence had been obtained, but the characters required three keys to decipher them. They had the Earl's secretary in their possession, Mr William Spence; and he was ordered to undergo the boot. He did so without communicating any thing of importance. They therefore had recourse to a diabolical expedient. On the 26th July, they passed an act "ordaining General Dalziel to receive Mr William Spence from the

magistrates of Edinburgh, and to appoint a sufficient number of officers and soldiers to watch him by turns, night and day, and not to suffer him to sleep; and to take down in writing every thing he should say.”^[155] Yet nature sustaining even this, a new instrument of torture, imported from Russia by General Dalziel, was employed—the thumbkins—iron screws for compressing the thumbs, productive of the most exquisite pain. These had been first tried upon Arthur Tacket, a tailor in Hamilton, whose legs being too slender for the boots, the attendant surgeons recommended the squeezing of his thumbs, which was accordingly done previously to his execution, to extort from him a declaration of who preached at a field-meeting he had been apprehended on leaving. They were now applied to Spence. He had only one key, and they of course obtained but very partial information, and even that he had the resolution to stipulate should not be used judicially against himself or any of the persons mentioned. He had said, however, that Mr Carstairs possessed another key; and they, in violation of all good faith, not long after subjected him to similar torture. Previously, they had tried to obtain by insidious kindnesses the information they wanted; but Carstairs resisting all their advances, the chancellor, Perth, was so enraged, that he told him as he had refused so many singular favours that had been offered him beyond any prisoner, before God he should be tortured, and never a joint of him left whole. Against this he protested, as torture was prohibited by the civil law, and was unknown in the country where the crimes were said to be committed; but the Lord Advocate replied, he was now in Scotland, and though the crimes had been committed at Constantinople, he might be tried for them. Carstairs answered, that the crimes of which he was accused being said to be committed in England, his majesty’s laws were there equally in force for the security of his government as they were in Scotland, which they were not at Constantinople. The king’s smith was called in to settle the point. “I do acknowledge,” says Carstairs, who has himself left an account of the process, “I was much afraid I should not have been able to go through with that scene of torture: and if I had not, I was miserable; for I should have been brought to speak against every man they mentioned, but God kindly ordered it otherwise.” It is unnecessary to repeat an examination which was totally unsatisfactory to the persecutors, but it is impossible to dismiss it without awarding a meed of praise to the sufferer for a constancy, which we of these days are not perhaps fully able to appreciate.

[155](#). He was, after the torture, put into General Dalziel's hands; and it was reported that, by a hair-shirt and pricking (as the witches are used), he was five nights kept from sleep, till he was half distracted.—Fountainhall, vol. i. p. 299.

In the course of these various examinations, nothing decisive respecting the English plot could be obtained against Baillie of Jarvieswood; he was therefore ordered to be prosecuted before the privy council for corresponding with the rebels; and refusing to criminate himself by answering their ensnaring questions, he was fined six thousand pounds sterling, and turned over to the justiciary. Within a few days, he was brought to trial, though in the last stage of a decay, produced by the cruel treatment he had met with. Upon the most defective proof, he was condemned to die for a crime which he declared he abhorred, and of which the public accuser had declared to himself in prison that he did not believe him guilty. After receiving sentence, a friend asked him how he felt. "Never better," was the reply; "and in a few hours I'll be well beyond all conception." Shortly after, he added, "they are going to send my quarters through the country. They may hag and hew me as they will, I know assuredly nothing shall be lost, but all these my members shall be wonderfully gathered and fashioned like Christ's glorious body." He was that same day sent to the scaffold, lest a natural death should have disappointed the malice of his enemies, who unintentionally were eager to encircle his brow with a brighter crown than that which monarchs wear. He died with Christian magnanimity and resignation; and his last moments were soothed by the heroic tenderness of his sister-in-law, a daughter of Warriston, who had watched over him in prison and waited upon him on the scaffold. His speech, declaring his attachment to the constitution of his country, and his hatred of popish idolatry, which he feared would be the plague of Scotland, he was prevented from delivering on the scaffold, but it was printed after his death, and, widely circulated through both kingdoms, tended greatly to promote the cause for which he died.

About the end of July, a few of the wanderers having rescued, at Enterkin-path, among the hills near Moffat, seven of their friends, whom a party of soldiers were carrying prisoners from Dumfries to Edinburgh, the privy council, on the 1st of August, passed a most barbarous act, ordering the execution of rebels to follow their conviction, within six hours in Edinburgh, and three hours in the west country. Meanwhile the murders went on in the fields. William Shirinlaw, a youth of eighteen, was met by a

party at Woodhead, in the parish of Tarbolton, who, after asking him a few of the ordinary questions, and finding or alleging that his answers were unsatisfactory, immediately shot him. The subaltern, one Lewis Lauder, who commanded this party, seized other three, and would have proceeded in an equally summary manner with them, but his men positively refused to obey, remarking, one in one day was sufficient.

About the same time, five of the wanderers were found by a party under Claverhouse, sleeping in the fields. When awoke, on attempting to escape, they were fired at, and some of them wounded and carried off. When they were halted at a house for the purpose of plundering, a poor woman, for offering to dress their wounds, was also made prisoner. They were marched bleeding to the capital; and, on their arrival, tried and executed the same day. In a joint testimony which they hurriedly wrote, they expressed their willingness to die:—"We bless the Lord we are not a whit discouraged, but content to lay down our lives with cheerfulness, and boldness, and courage; and if we had an hundred lives, we would willingly quit with them for the truth of Christ. Good news! Christ is no worse than he promised. Him that overcometh will he make a pillar in his temple. Our time is short, and we have little to spare, having got our sentence at one o'clock, and to die at five in the afternoon this day. So we will say no more; but farewell all friends and relations, and welcome heaven, and Christ, and the cross for Christ's sake."

James Nichol, a merchant in Peebles, being accidentally present at the execution, exclaimed, in the bitterness of his heart—"These kine of Bashan have pushed these good men to death at one push, contrary to their own base laws, in a most inhuman manner." For this speech he was instantly seized, and within a few days sent after them to the gallows.^[156] Along with him was executed William Young from Evandale, a good man, but "distempered and crazed in his judgment," which certainly any rational person would have imagined ought to have exempted him from suffering on account of his opinions; yet was he solemnly tried and condemned by the horrible justiciary, after being most barbarously used. Having attempted to escape from the Canongate tolbooth, he was re-taken and bound so firmly with cords that his whole body was racked. "A pain this," said he, "which would be intolerable, if eternal; but now I am near the crown, and rejoice in the full assurance of it." It was observed of him by his fellow prisoners, that

when engaged in serious conversation, reading, or prayer, he was always very composed, although exceedingly restless at other times.

156. On this most infamous judicial assassination, Sir Walter Scott remarks—"It is strange how the ferocity of persecution begets in those who are exposed to it a corresponding obstinacy and pertinacity. In the present case, one may say with the jailer in *Cymbeline*, that 'unless a man would marry a gallows and beget young gibbets, I never saw one so prone.'" The fact was, he was on horseback riding home, when he was stopped by the crowd in the Grassmarket, and remained till the three were turned over, when, unable to repress his honest indignation, he expressed himself in the words for which he suffered.

It has been remarked, that during the period of the first ten Christian persecutions, the Roman world formed then one wide prison-house, from which there was no escape. The prelatical persecutors in Scotland appeared anxious to imitate their heathen predecessors; and in order to secure their victims, a proclamation was issued, 15th September, requiring all masters of vessels to present to the magistrates lists upon oath of all their passengers, whether leaving or returning to the kingdom; and on the 16th, another was published, forbidding all persons to travel from one shire to another without a government-pass, under the penalty of being punished as disaffected!—restrictions, of which it is difficult to say whether any could have been contrived more detrimental to the trade of the country and the liberty of the subject, as it would be difficult to conceive any act more tyrannical than one passed by them the same day, ordering such as would not declare the rising at Bothwell rebellion, the primate's death murder, or owned the covenants, or who only hesitated respecting them—to be prosecuted criminally, *i.e.*, in other words, to be put to death!

These were preparations for the circuit courts, which set out for the south and west in the beginning of October. On the 2d, the division of which Queensberry, his son Drumlanrick, and Claverhouse, were the judges, sat down at Dumfries. As money was the everlasting cry of all these political cormorants, Queensberry procured an offer of five months' cess for eight years from the county; but when he proposed a similar vote at Ayr, Lord Dumfries opposed it, desiring to know when there would be an end of taxes, and then he would offer as cheerfully as any. To make up for this disappointment, the heritors were all required to take the test, and the recusants were fined. They were besides required to swear whether they had held any communication with the rebels, for this most cogent reason, "that no man can complain when judged by his own oath, by which he is in less

danger than by any probation of any witness whatsoever;" and they were finally to swear that, upon hearing or seeing any who were or should be denounced, they should raise the hue and cry, or give notice to the nearest garrison, in order to their apprehension. There does not appear to have been any murders committed at this time by the court of Dumfries; but one case of extortion deserves to be mentioned. A young man, William Martin, a son of Martin of Dullarg, having been lately married, when at Edinburgh Queensberry sent for him and offered to purchase the property he held in right of his wife, the heiress of Carse. Martin refused to part with it for the sum Queensferry offered, when the latter told him he would make him repent it, and threatened to pursue him for his life, to escape which Martin let him have the estate upon his own terms. Yet, notwithstanding, he was at this time fined in seven hundred pounds, Scots, and his wife forced to give bond for another hundred pounds, having had a child baptised by a Presbyterian minister.

The court of which Mar, Livingstone, and General Drummond, afterwards Lord Strathallan, were the commissioners, sat down at Ayr in the beginning of October; and the heritors, being assembled in various sections, were told that they would display their loyalty to great advantage were they to petition to have the test administered to them, when those who agreed were dismissed, and those who refused were sent to prison, and had indictments for crimes which many of them were incapable of committing. Some young men who lived with their parents were charged with irregular marriages, and others who had no children with irregular baptisms; but none were set at liberty even after the absurdities of the charges were evident, till they found exorbitant bail to appear at Edinburgh when called. Almost all the indulged ministers were silenced by this vile junto, and those who would not oblige themselves to exercise no part of their ministry were sent to the Bass or other prisons; while, to terrify some young gentlemen recusants into compliance, a gibbet was erected at the cross, and pointed out as a most convincing argument. Quintin Dick, when urged to take the oath of allegiance, declared "he was ready to take it in things civil, but as to supremacy in matters ecclesiastical, he was too much the king's friend to wish him such an usurpation upon Christ's kingdom, being persuaded that the church of Christ hath a government in ecclesiastical matters independent upon any monarchy in the world, and that there are several cases which in no way come under the king's cognizance." For this saying,

he was fined in one thousand pounds sterling, and ordered to be banished to the plantations.

The western circuit court, of which the Duke of Hamilton, with Lords Lundin (afterwards Earl of Melford) and Collington, were the judges, met at Glasgow on the 14th, when they commenced their proceedings by issuing a proclamation for disarming the counties of Clydesdale, Renfrew, and Dumbarton. They then imprisoned Schaw of Greenock, Sir James Montgomery of Skelmorly, Sir John Maxwell of Pollock, Cunningham of Craigends, and Porterfield of Douchal, all of whom they served with indictments for resetting rebels, which having no proof they referred to their oath, declaring their confession of guilt should not infer life or limb, but with a design to fine them in sums nearly equivalent to their estates. Next, they declared the parishes of the indulged ministers vacant to the number of thirty-six, whom they also imprisoned for some alleged breach of the council's instructions. They likewise prevailed with the gentry and freeholders to become bound for the conformity of themselves, their families, and tenantry, to the whole of the present ecclesiastical constitution; and further, to offer voluntarily to the king three months' cess more than was voted by parliament for the maintenance of an additional troop of horse for two years. They finished their proceedings in this quarter by fining Mr Archibald Hamilton, advocate, in five hundred merks, for not attending them, though he was burying his servant, who was accidentally drowned in Irvine water.

The heritors of Stirlingshire voluntarily came forward with a bond similar to the above, accompanied by a loyal address, expressing their abhorrence of all rebellious principles and practices, declaring their dutiful and absolute submission to his majesty's authority and government, and offering their lives and fortunes to support the same.

The Merse circuit, of which Lord Balcarras, Lord Yester, and Hay of Drumellzier, were the commissioners, appear to have interested themselves to afford some relief or redress to the sufferers. They fined Pringle of Rigg, sheriff-depute, in five hundred merks, for oppressing the people, besides "modifying and discerning the restitution of the parties' damage," and fined one Alexander Martine, in Dunse, £1000 sterling, and deprived him of his place as clerk. The shire of Berwick being urged either to vote four months' cess or maintain a troop, agreed to give two, which was opposed by Home

of Wedderburn and some others, when the Earl of Home struck in “and out-bad a month more.”

Unless some special providence prevent, continued persecution must at last drive religion from a land. This was accomplished by the inquisition in Spain, and partially by the horrible St Bartholomew festival in France; and in Scotland, now it must have been driven to skulk in holes and corners, where even some worthy men were glad to meet a few disciples, but for the fearless Christian intrepidity of one pious youth! James Renwick, who, during all these dark and stormy times, when almost every other minister had left the service, continued to carry on the warfare, and when many of the standard-bearers fainted, planted his in the high places of the field; and his ministrations were wonderfully owned of God. He attracted crowds and revived with more than primitive vigour those field-meetings which the tyrants had prematurely imagined were crushed for ever. This added fuel to their fury. Letters of intercommuning were issued against him and his followers, and all loyal subjects were not only forbidden to hold the least intercourse with the wanderers, but ordered to hunt them out of their most retired deserts, and to raise the hue and cry wherever they appeared; in consequence of which, many of the poor persecuted pilgrims were reduced to incredible distress through hunger and cold, while secret informers, and hypocritical professors, were bribed to associate with them, to discover their hiding-places, and give information to the satellites of the prelates and the underlings of government. At the same time, the country was traversed incessantly, night and day, by a bloody and merciless soldiery, composed of the lowest offscourings of society, aided by the sleugh-hound, in ever active pursuit of those under hiding—several of whom they shot, after asking them merely a few questions—while the sea-ports were shut, and flight, the last refuge of the denounced, denied them.

Every rational ground upon which a government can ask, or has a right to ask, obedience from a subject, being thus wantonly trampled under foot by the apostate prelatists of Scotland, nothing was left to a brave and a hardy race, placed beyond the pale of society, but to resign themselves and their children to hopeless slavery, or to resist. Fortunately for succeeding generations, they chose the latter; and, having done so, they resolved at a general meeting, held October 15, in order “to evite their ineluctable ruin, to warn intelligencers and bloody Doegs of the wickedness of their ways, and

to threaten them in case of persisting in malicious shedding of their blood, or instigating or assisting therein, that they would not be so slack-handed in time coming to revenge it.” They therefore caused Mr James Renwick, on the 28th October, to draw up a declaration for this purpose, which he did in “The apologetical declaration and admonitory vindication of the true Presbyterians of the church of Scotland, especially anent intelligencers and informers.” In it they testify their constant adherence to their covenants, and also to their declarations, wherein they had disowned the authority of Charles Stuart, and declared war against him and his accomplices. But they utterly detested and abhorred the hellish principle of killing all who differed in judgment from them, and proposed not to injure or offend any, but to stand to the defence of the glorious reformation and of their own lives; yet they declared unto all, that whosoever stretched forth their hands against them by shedding their blood, either by authoritative commanding, as the justiciary; or actual doing, as the military; or searching out and delivering them up to their enemies, as the gentry; or informing against them wickedly and willingly, as the viperous and malicious bishops and curates; or raising the hue and cry, as the common intelligencers—that they should repute them enemies to God and the covenanted work of reformation, and punish them according to their power and the degree of the offence.

This declaration was affixed to several market-crosses, and posted upon a great many church-doors in Nithsdale, Galloway, Ayr, and Lanark shires, and produced considerable effect upon the baser sort of informers, who were deterred for some time from pursuing their infamous vocation, and a few of the most virulent curates in Nithsdale and Galloway, who withdrew for a time to other quarters.

The state of the country, which had been rapidly declining, was now wretched beyond conception. What prosperity it had begun to enjoy under the equitable and liberal dominion of Cromwell, was now blasted in the bud. The little commerce which he encouraged, and the agricultural improvements which the English army are said to have introduced, were interrupted and destroyed by the cultivators being in vast numbers called to attend the autumnal circuits, or forced to wander as fugitives, while the soldiers rioted in the spoliation of their crops, the breakage of their utensils, and the seizure of their horses. A famine threatened, and the bishops had

appointed a fast to mourn for the sins of the land; but neither they nor the rulers appear to have had any sympathy for the suffering people.

The persecution continued with unabated or rather increasing violence; and the following are a few instances illustrative of the style in which it was conducted:—William Hanna, in the parish of Turnergarth, in Annandale, had been imprisoned in the year 1667, and fined one hundred pounds for hearing a Presbyterian minister preach. After his liberation, the curate of the parish was exceedingly troublesome, citing him before his session, and threatening him with excommunication. When one of his children died, the curate would not allow it to be buried in consecrated ground, because it had not been “regularly” baptized! and when some friends came to dig a grave in William’s own burying-ground, he came out of the manse in great fury, and carried off the spades and shovels, telling them “if they buried the child there by night or day he would cause trail it out again.” In 1681, he had a horse worth four pounds sterling carried away for not paying thirteen shillings Scots of cess; and after a train of constant harassings he was at last denounced and declared fugitive. He then hoping to find a little repose, went into England; but no sooner had he crossed the border, than he was seized and sent back prisoner to Scotland, which Queensberry no sooner heard of than he ordered him to be laid in irons in Dumfries jail, till he was sent to Edinburgh (October this year) to be immured in a dark hole under the Canongate jail, where he had neither air nor light. Here, being taken ill, he begged only for a little free air; but the soldier who guarded him, told him to “seek mercy from Heaven, for they had none to give.” In this dungeon he lay till sent to Dunotter.

His son William, a youth not sixteen years of age, was denounced for not keeping the church—How many youths in Scotland would be denounced if that were *now* a crime?—and forced to flee to England a year after his father, where he abode some time. Venturing to return home in September 1682, he fell sick of an ague, and, while labouring under this disorder, was captured by some of the straggling soldiery, and forced to accompany them on foot for several days, in their ranging through the neighbourhood. At one time, coming to a martyr’s grave, who had been shot in the fields, they placed him upon it, and covering his face, threatened him if he would not promise regularity and ecclesiastical obedience, they would shoot him. The intrepid youth told them, “God had sent him to the world and appointed his

time to go out of it; but he was determined to swear nothing he thought sinful.” Instead of respecting this courage in one so young, they sent the boy to Edinburgh, where he was first tortured with the thumbkins, then laid him in irons so strait that his flesh swelled out above them, after having been robbed of all the money sent him by his friends. This year he was banished to Barbadoes, and sold for a slave.

Age or sex was no protection. A respectable woman, seventy-three years old, who dwelt in Carsphairn, had a son cited to appear before one of these courts, 1680, for hearing Mr Cameron preach. Not, however, making his appearance, he was intercommuned—his mother’s house was searched for him, when not finding him, the soldiers spolied the furniture. This year the military ruffians came again, and again missing the son, and finding nothing worth plundering, carried the mother to Dumfries. Here she was offered the test, and was about to comply, when the monsters in human shape, seeing her likely to yield, added a clause to the oath, that she would never speak to or harbour her son. This her maternal feelings refused; and for this was publicly scourged through Dumfries on the next market day. Nor was she even after her punishment liberated till she paid two hundred merks.

Enraged at the Apologetical Declaration, the council were still more infuriated by what seemed a practical following up of its principles, in the putting to death of two soldiers, Thomas Kennoway [vide p. 420] and Duncan Stuart. Kennoway was returning from Edinburgh, whither he had been for instructions with a list of one hundred and fifty persons he was required, it was said, upon his own information, to apprehend. Meeting Stuart at Livingstone, they both went into a public-house, when Kennoway produced his commission, and boasted over his cups that he hoped in a short time he would be as good a laird as many in that country, only he regretted he was turning old, and would not have long to enjoy his good fortune. They thence adjourned to Swine-Abbey, where they were both murdered, but by whom was never discovered. The authors of the declaration were, however, immediately suspected; and the council resolving upon an indiscriminate revenge, consulted the session as to whether avowing or refusing to disavow the declaration constituted treason? That prostituted court replied in the affirmative. But the forms of law were too dilatory for the sanguinary council. On the same day they voted “that any person who owns or who will not disown the late treasonable

declaration upon oath, whether they have arms or not, shall immediately be put to death;" and on the day following, gave a commission with justiciary powers to Lords Livingstone, Ross, Torphichen, and a number of other officers of the army, five to be a quorum, with instructions to assemble the inhabitants of Livingstone and the five adjacent parishes, and to murder upon the spot, after a mock trial, all who would not disown the late traitorous declaration or assassination of the soldiers; and if any be absent, their houses to be burned and their goods seized; and as to the families of those who were condemned or executed, every person above the age of twelve years, were to be made prisoners in order to transportation. They also approved of an oath (known by the name of the abjuration-oath) to be offered to all persons whom they or their commissioners should think fit, renouncing the pretended declaration of war and disowning the villanous authors thereof.

The extortions were tremendous. In the month of December, six gentlemen of Renfrew were fined in nearly twenty thousand pounds sterling, and although some abatement was made, yet had Sir John Maxwell of Pollock to pay five thousand; the Cunninghams of Craigends, elder and younger, four thousand; Porterfield of Fulwood, upwards of sixteen hundred; and Mr James Pollock of Balgray, five hundred pounds sterling; besides various other gentlemen in the same districts, who were robbed of upwards of twenty thousand pounds sterling, by the council and the sheriffs. The pretexts under which such impositions were levied were, the dreadful negative treason of not attending ordinances in their own parish churches, and the more positive delinquencies of hearing Presbyterian ministers preach the gospel, or holding converse with the proscribed—men of whom the world was not worthy.

The real cause will be found in the grants which the debased and thievish councillors received of the spoils.^[157] To accomplish their laudable designs, they despatched Lieut.-General Drummond to the south and west, to pursue and bring the rebels and their abettors to trial, and pass sentence upon them as he should see cause; and likewise ordered him to plant garrisons where he should think it expedient, especially in Lanarkshire; and besides gave commission to William Hamilton, laird of Orbiston, to levy two hundred Highlandmen of the shire of Dumbarton, not only "to apprehend the denounced rebels and fugitives in that quarter, and in case of their refusing,

to be taken, to kill, wound, and destroy them,” but “to employ spies and intelligencers to go in company with the said rebels and fugitives, as if they were of their party, the better to discover where they haunt and are reset.”

[157](#). Sir George Mackenzie got £1500 of Sir William Scott of Harden’s fine; the Duke of Gordon and the Marquis of Atholl shared the fine of Harden, junior—three thousand five hundred pounds between them! Some degree of honour, as the times went, might perhaps then attach to the open driving of their neighbours’ cattle, not infrequent on the Highland borders, as it was accompanied with danger and required at least brute-courage; but these legal thefts, like the pilfering of the pick-pocket or the petty-fogging lawyer—his twin-brother in our day—excite unmingled disgust, because the thieves know they can do it safely.

But the chief instigators were the curates, and among them Peter Pierson, at Carsphairn, particularly distinguished himself. When Grierson of Lag held a court at Carsphairn church the preceding autumn, he sat with him, described the characters of the parishioners who were summoned, and appeared and gave information respecting the absentees. Soldiers were in consequence sent after them, who spoiled their houses and haled many old and infirm people, and women with child, and the sick, before the commissioner, who handled them but roughly. The whole parish was thus thrown into confusion, and Pierson being a surly ill-natured man, and very “blustering” withal, boasting in public companies that he feared no whigs—he only feared rats and mice—he came to be very generally disliked throughout the district, and was particularly obnoxious to the wanderers who were under hiding in that quarter. A few of them, therefore, determined to force him to sign a written declaration, that he would give up his trade of informer, and proceeded to the manse early in December, when they understood he was alone; for he did not even keep a servant. Two of their number being sent before, got entrance and delivered their commission, which put Pierson into the utmost rage, and drawing a broadsword and cocking a pistol, he got between them and the door. Upon this they called out, when other two, James Macmichael, gamekeeper to the Laird of Maxwellton, and Rodger Padzen came and knocked at the door. Pierson opened it, and was proceeding to attack them, when Macmichael shot him dead on the spot. The rest at a distance, on hearing the noise, ran up and cried—“Take no lives;” but it was too late. This deed was instantly and strongly disavowed by the wanderers, who would never allow any of the party to join with their societies; but one of the assassins was afterwards discovered to be a government spy, and Padzen ere long enlisted in

Strachan's troop of dragoons, which gave credibility to the report, that the whole had been a government plot, to bring discredit on the persecuted wanderers, and justify the savage, unconstitutional measures the managers were pursuing.

Several instances of severity, which occurred during this month, evince the natural tendency of persecution to harden the hearts and destroy every good feeling in the breasts of the persecutors. A poor man, who had been imprisoned in Dumfries jail, for not hearing the curate, having broken the prison and fled to England, his wife with seven small children begged their way after him; but finding no shelter there, she was forced to return. When journeying back, she had stopped to rest at a small alehouse. While sitting peaceably there, Johnston of Wester-raw, with some other persecutors happening to come in, required her to take the test, which she refusing, they haled her to Dumfries prison; and though she earnestly begged they would allow her to take her sucking-child—an infant of three months old—along with her, they would not consent, but threatened unless she complied next day they would drown her. Still she held fast her integrity, and lay for five weeks in jail, till she was sent to Edinburgh, whither her poor children, who, forbid to enter Dumfries, had been supported by charity, followed her, and where she somehow or other got released.^[158]

¹⁵⁸. The poor children who were able to walk came afterwards to Dumfries, and the eldest applied to the bailies that they might only have liberty to see and speak to their mother. This request was refused, and they were turned out of the town. When going past the prison, one of them saw her looking out at a window, but was not suffered to speak to her. When forced away from the spot, the child blessed the Lord that he had once more seen his mother.—Wodrow, vol. ii. p. 441.

John Linning, a dyer in Glasgow, a blind man, chargeable with nothing but non-conformity, was confined fourteen weeks. When a young daughter of his was taken sick, she cried out passionately for her father; yet would not the magistrates either suffer him to visit her on her deathbed or attend her funeral.

Claverhouse acted up to his instructions, and merited well of his employers. When ranging through Galloway (December 18) he came unexpectedly upon some of the wanderers, who were under hiding at Auchincloy, near the Water of Dee, and surprised six of them together; four he murdered upon the spot, and two he carried with him to Kirkcudbright,

where, calling an assize, he went through the farce of a trial, and immediately ordered them to be executed! Nor would he permit them to write a few lines to their relatives to inform them of their fate. Other two escaped, and were pursued by some of the soldiers, who being informed of a house at which they had called in passing, but never sat down, entered the cottage, and missing their prey, took all its inmates prisoners and burnt it to the ground.

James Graham, a tailor in Corsmichael, was not so fortunate. Returning home from his work to his mother's house, he too was overtaken, when walking peaceably along the highway, by Claverhouse and his squad. They knew him not, and had nothing to lay to his charge; but searching him, and finding a Bible in his pocket, that was crime enough. They took it and his tools from him, and carried him as a disloyal rebel to Kirkcudbright; thence he was sent to Dumfries, where he lay some time in irons, and was afterwards sent to Edinburgh, where, being questioned upon the declaration of the societies, and refusing to answer, he was found guilty of the treason he had not confessed—and of which there was no proof—condemned and hung!

About the latter end of this month, Lady Cavers, who had been in prison, first in Edinburgh tolbooth and then in Stirling Castle, upwards of two years, for keeping conventicles and being present at them, was released through the intervention of her son, Sir William Douglas, upon his return from his travels, who became bound for her living regularly in future or leaving the kingdom within three months. Yet was she not let go till she paid an enormous fine of five hundred pounds sterling—a sum, says Wodrow, exceeding three years' rent of her estate—though the said rents had been sequestered, and her tenants plundered, during the time of her imprisonment.

About the same time, Dame Margaret Weems, Lady Colville, was imprisoned in Edinburgh tolbooth, for her ecclesiastical irregularities, especially for breeding up her son, Lord Colville, in fanaticism, and putting him out of the way when the council was going to commit his education to others.

In the parish of Nithsdale, James Crosbie, for refusing the test, had his ears cropt and was banished as a slave to Jamaica. In the parish of

Auchinleck, William Johnstone being summoned to the court, and not appearing, a party of soldiers were sent to his house, which they plundered; and, as he and his wife had fled, they carried away with them a maid-servant who had charge of the children, leaving two or three destitute infants to shift for themselves; and because she refused to take the abjuration, which she told them she did not understand, they put burning matches between her fingers, and roasted the flesh to the bone. Her patience and composure under such torment so astonished the savages, that, after the infliction, they allowed her to return home. John Hallome, a youth of eighteen, seized while travelling on the road by Lieutenant Livingstone, and refusing the oath, was carried to Kirkcudbright, where a jury of soldiers being called, and he of course found guilty, he was instantly shot.

The year closed with the appointment of ten special commissioners, to whom two were added in January next year, to hold justiciary courts in twelve shires. Their instructions were, to hang immediately in the place all males who owned or did not disown the “horrid principles” of the declaration, and to drown such women as had been active in disseminating them; and the same day a proclamation was issued, requiring all heritors, and in their absence, their factors and chamberlains, to convocate all the inhabitants on their lands, and to bring them before any of the privy councillors or commissioners appointed by the council, and cause them swear the abjuration-oath, and receive a testificate to serve as a free pass, without which any person who should adventure to travel should be holden and used as a communer with the said execrable rebels; and all housekeepers, as well as hostler-houses, inn-keepers, or other houses of common resort, were forbid to entertain any person who could not produce such a testificate, under the same penalty; which testificate the holders, if required, were obliged to swear was no forged or false document—so suspicious ever are rogues of deceit!—and finally, whoever should discover any of the said traitors and assassins, who had been in any way accessory to the said traitorous and damnable paper, or the publishing or spreading of the same, were to receive a reward of five hundred merks, Scots, for each of them who should be found guilty.

[1685.] This year was ushered in by increasing severities, and whoever would not disclaim the society’s declaration, and take the abjuration-oath, were subjected to be shot by any trooper who chose to interrogate them, or

to be sent by the justiciary miscreants to slavery, exile, imprisonment, or death, after being robbed of all they possessed. Nor did the decrepitude of age, the stenderness of sex, or even boyhood, afford any plea for mitigation. Captain Douglas, the Marquis of Queensberry's brother, stationed in the parish of Twineholme, oppressed it terribly in the beginning of January, having prevailed with a poor tenant, after many severities, to swear the oath, they insisted upon his discovering the retreats of the wanderers. While dragging him along with them for this purpose, they met another poor man upon the road, who would neither answer their questions nor swear. Him they immediately murdered; and when their prisoner entreated the captain to give him a little more time, and not be so hasty, they beat and bruised the intercessor so cruelly, that in a few days he died the victim of his humanity.

[\[159\]](#)

[159.](#) How low the clergy could descend in their malice, may be judged from the case of a cripple but pious beggar, John Watson, in the parish of Cathcart. Mr Robert Fennie, curate of the parish, enraged at the poor man, because he would not come to hear him, gave information against him as a disloyal and dangerous person, and procured a party of soldiers to be sent to seize him. John could neither get from them nor go with them; nor would he swear the abjuration-oath. The soldiers, ashamed of their errand, were at a loss what to do, when some of his neighbours offered to send him to Hawk-head, Lord Ross's residence, in a sledge; and they were proceeding accordingly, when his lordship hearing of the cavalcade, and being informed of the circumstances, sent his servant with an alms, and ordered them to carry the cripple home again.—Wodrow, vol. ii. p. 457.

On the 18th, four of the persecuted were surprised at prayer, in a sequestered spot in the parish of Monigaff, in Galloway, by Colonel Douglas, with a party of horse; and as their serious occupation was sufficient evidence of their "atrocious rebellion," they were, without any process, murdered on the spot. On the 26th, three remarkable characters were forfeited—Sir Patrick Home of Polwart, George Pringle of Torwoodlee, and Andrew Fletcher of Saltoun. They all escaped to the Continent, and were reserved by Providence for better days. On the 30th, Dalziel of Kirkmichael and Lieutenant Straiton, with fifty soldiers, surprised a few of those under hiding asleep in the fields at Mortoun, in Nithsdale; but they all fled and escaped, except David Macmichael, who from bodily indisposition, and being wounded, could not follow. Him they took to Durisdeer, and told him if he would not own the supremacy in church and state, and take the oath that would be tendered, the law declared him guilty of death. "That," said David, "is what of all things I cannot do;

but very cheerfully I submit to the Lord's disposal as to my life." The commander said, "Do not you know your life is in my hands."—"No!" replied he, "I know my life is in the Lord's hand; and if he see good, he can make you the instrument to take it away." Being ordered to prepare for death next day, he answered, "If my life must go for his cause, I am willing; my God will prepare me!" He next day suffered at Dalveen with a composure and courage that melted even the rude soldiers who shot him.

An instance of the ferocious thirst after blood which urged on the persecutors, occurred February 1st. John Park and James Aldie, two young men, in Eastwood, were brought before the commissioners for Renfrewshire, Lord Ross and Hamilton of Orbiston; and when they were persuaded to consent taking the abjuration, "that shall not save you," said Orbiston; "unless you take the test, you shall hang."—"Then," replied the intrepid conscientious youths, "if the abjuration will not save us, we will take no oath at all." They were condemned, and immediately led to execution. While they were yet hanging, Robert King, miller at Pollockshaws, in the same parish, was brought into court, and had the test offered to him, which he refused. He was then led to the window, bid look upon the two suspended before it, and told if he did not comply, he should immediately be tied up along with them. Still resisting, he was shut up in a dark corner and assured that he had only an hour to live. They would, however, out of charity, give him three warnings by sound of trumpet, but if he sat the third, there was no mercy. He heard the two blasts, when his courage failing, he took the test. His wife was a "composed woman, of uncommon sound sense." One day, as some of the plunderers were driving away her cattle, having rifled the house besides, she came to the door, and was looking after them, when a soldier, rather more merciful than his comrades, turned and said, "Poor woman, I pity thee." Janet answered with great gravity, yet cheerfulness, "Poor! I am not poor; you cannot make me poor! God is my portion; you cannot make me poor!"

On the 3d of February, the privy council passed an act for classifying prisoners; but the king dying, these measures underwent considerable alteration. Charles, it is said, having become dissatisfied with the rash violence of the Duke of York's proceedings, meditated the recall of his favourite bastard Monmouth, the exile of his brother, and the adoption of more moderate measures. If he entertained any such designs, they were

never to be accomplished. An attack of apoplexy, or poison, as was suspected at the time, finished all his earthly projects; and, after a few days' illness, he died in the fifty-fifth year of his age. But oh! how different his deathbed from the scaffold scenes we have been recording. He could only mutter he hoped he would climb to heaven after all! and eagerly grasped at the delusive phantoms of Romish superstition. When Huddleston, a papist priest, who had saved his life at Worcester, was introduced to save his soul, he sighed out expressively, "He is welcome!" received the last sacraments of that church, and expired in her communion.

BOOK XXI.

A.D. 1685.

Accession of James VII.—Proceedings of the privy council—Field murders—Northern commission—Indemnity—Outrages in the south—Two women drowned—John Brown, the Christian carrier—Parliament—Argyle's expedition—Suspected persons sent to Dunotter—Argyle defeated—taken—executed—Colonel Rumbold—Nisbet of Hardhill and other sufferers.

An express which left London on the 2d of February, arrived in Edinburgh on the 6th, bringing intelligence of the king having been struck with an apoplectic fit. On the 10th, early in the morning, the privy council received the news of his death, and at ten o'clock, the authorities proceeded in their robes to the cross, where the Chancellor, "who," says Fountainhall, "carried his own purse, and weeping," proclaimed James Duke of Albany, the only undoubted and lawful king of this realm, under the name of James VII. But he had not taken, and never did take, the Scottish coronation oath:—so scrupulous was he with regard to his own conscience in matters of religion. The proclamation, however, which was sent down from London, paid less respect to the consciences of his subjects, who were bound by every sacred and constitutional tie to resist popery and popish rulers. After declaring that his majesty, their only righteous sovereign over all persons and in all causes, held his imperial crown from God alone, thus concluded—"And we—(the lords of his majesty's privy council, with the concurrence of several others, lords spiritual and temporal, barons and burgesses of this realm)—hereby give our oaths, with uplifted hands, that we shall bear true and faithful allegiance unto our said sacred Sovereign, James VII., King of Great Britain, France, and Ireland, Defender of the Faith!! &c. and to his lawful heirs and successors; and shall perform all duties, service, and obedience to him, as becomes his faithful, loyal, and dutiful subjects. So

help us GOD.” Then followed another, announcing that his majesty continued all the servants of the crown in their offices till he had leisure to send down new commissioners.

Next day the Court of Session met, when the lords not only took the oath of allegiance, and swore the test again themselves, but administered them likewise to all the advocates, clerks, and writers. The king’s speech to his cabinet—in which he promised to follow the example of his brother in his great clemency and tenderness to his people, to preserve the government in church and state, as by law established; and as he would never depart from the just rights and prerogatives of the crown, so he would never invade any man’s property—was extensively circulated; and the people were desired to believe that the royal papist would promote the Protestant religion, or at least preserve it.

As a practical illustration of his majesty’s professions, the council appointed a committee to inquire into the state of the prisoners in the Canongate jail; and, upon their report, sent two to the justiciary, and fourteen to the plantations, because they would not violate their consciences; and for the same obstinacy, the Dumbarton commission court fined John Napier of Kilmahew in £2000 sterling; John Zuil of Darleith, £1000; John Campbell of Carrick, £1500, for himself and lady; and Isabel Buchanan, £100; and ordered them to be imprisoned till they paid their fines, or gave satisfaction to Queensberry, the lord-treasurer.

At the same time, the work of blood went on in the fields. Captain Bruce surprised (February 19th) six of the wanderers on Lochenket-muir, in Galloway, and ordered four of them to be shot without further inquiry. The other two he carried to Sir Robert Grierson of Lag, at Irongray, who, upon their refusing the abjuration, instantly hanged them upon an oak-tree. One of them, a married man, before his execution, was asked if he had any word to send to his wife, answered, “I leave her and my two babes on the Lord and on his promise;—a father to the fatherless, and an husband to the widow is the Lord, in his holy habitation.” Two days after, five were murdered at Kirkconnel; and early next month, other three, in the parish of Kirkpatrick, were despatched in the same summary manner, by the same miserable slave of the prelates.

But the day did not suffice. Like the wild beasts, these monsters prowled about at night, seeking for their prey. On the 28th, about eleven o'clock, p.m., Lieutenant Douglas surrounded the house of Dalwin, and apprehended David Martin. When going away, they perceived a youth, Edward Kyan, concealing himself between the end of one house and the sidewall of another. He was immediately dragged forth; and, without being asked any other question than where he lived, the lieutenant shot him through the head, first with one pistol and then with another; and the soldiers pretending to observe some motion, shot him a third time. Martin underwent a more aggravated death. When the soldiers stripped him of his coat, they made him kneel beside the mangled body of his friend. Six were ordered to present their pieces, when another of the party stepped between them and their intended victim, and begged the lieutenant to spare him till next day, alleging they might get some discoveries, to which Douglas consenting, his life was spared; but terror had deprived the poor youth of his reason, who at the same time being struck with palsy, was carried to bed, where he lingered four years, and died. Several women compassionating the sufferer, were cruelly beat and wounded, for displaying the natural sympathy of their sex. After this exploit, Douglas caught one Edward Mackeen, and because he had a flint-stone, perhaps for striking fire in his hiding-place, shot him without other evidence of guilt.

Sir Robert Grierson of Lag, while ranging the country, having surprised Mr Bell of Whiteside, step-son to Viscount Kenmuir, with whom he himself was well acquainted, and other four in company, in the parish of Tongland, Galloway, they surrendered without resistance, upon assurance of having their lives spared; but the wretch murdered them instantly, without even allowing them time to pray; and when Mr Bell earnestly begged only for a quarter of an hour to prepare for death, he refused it with an oath, asking contemptuously, "What the devil! have you not had time enough to prepare since Bothwell?"

While the south suffered severely, the north was not exempted. On the 2d of March, the Earls of Errol and Kintore, and Sir George Monro of Culrain, who had been sent thither commissioners, gave in their report to the council, and have thus themselves recorded the oppressions for which they received the thanks of their worthy employers. On their arrival in Morayshire, their first act was to cause a gallows be erected at Elgin, where

the court sat, in order to stimulate the loyalty of the inhabitants. Then they issued orders to the sheriff for summoning all disorderly persons within the shires of Banff, Ross, and Sutherland, to appear before them on a certain day, and forbade any person to leave the district without their license, and all who entered it from the south to produce their papers for examination. At the same time, they graciously “allowed” the heritors and the burghs to meet and make address of what they would offer for the security and the peace of the government; and they “unanimously and voluntarily!” made offer of three months’ supply, signed a bond for securing the peace, and did also swear the test and oath of allegiance, except a few heritors, to whom the lords thought fit not to tender the same at that time, but who appeared willing to take it, and some loyal persons absent on excuses—evidently papists, as these alone among the recusants found any favour.^[160]

¹⁶⁰. This appears pretty plain from the manner in which Presbyterians were treated and the way their fines were disposed of. The Laird of Grant was fined in £42,000, Scots; the Laird of Brody, £24,000; Laird of Lethin, £40,000; Francis Brody of Miltoun, £10,000; Francis Brody of Windyhill, £3333: 6: 8.; James Brody of Kinlee, £333: 6: 8. These were the sums as reported to the council. In a particular narrative sent Wodrow by “a worthy gentleman in Murray, upon whom the reader may depend for the truth of it,” the sums are rated higher; and it is mentioned besides, that the Laird of Brody—this Brody’s grandfather, which family seems, either from their wealth or worth, or both, to have been peculiarly mulcted—was fined forty-five thousand merks, merely for having a conventicle in his house. Of this plunder, £22,000 were paid to one Colonel Maxwell, a papist; £40,000, Lethin’s fine, were gifted to the Scottish papistical college at Douay, which was compounded for; £30,000 paid to the Earl of Perth. The remainder appears to have been bestowed on the satellites of the party. Gray of Crichy, who adjudged the estate, got the proceeds.—Wodrow, vol. ii. p. 468.

They did very strictly examine all the ministers and elders, with several persons of honour and loyalty, anent the disorderly persons therein, libelled all persons delated, banished some, fined others, and remitted a few to the council. The aged Laird of Fowlis—“a disorderly person not able to travel”!—they imprisoned at Tain, and the younger, at Inverness, in case he refused the bond of peace. They cleansed the country of all “outted” ministers and vagrant preachers; banished four of them for keeping conventicles and refusing to keep the kirk!!—one being an heritor, they fined in ten thousand merks besides!—and sent the five prisoners to Edinburgh. A good many common and very mean people, who were accused and indicted for church disorders, upon inquiry being found to have been formerly punished and

since regular, were set free upon finding security for their future good behaviour.

The case of the Laird of Grant, however, deserves especial notice, for the peculiarly unprincipled rapacity displayed by the ravening crew. The decret against him was founded on his wife's having confessed two years and a half's withdrawing from ordinances, his keeping an unlicensed chaplain, hearing "outted" ministers preach and pray several times, which he himself had confessed. To this he answered in a petition to the council, for relief, April 2:—that the parish church was vacant for a year and a half of the time mentioned; and that during the remainder his wife was so unwell, that she was given over by her physicians; and that both before and after the time libelled, she had been a constant hearer. Nor did he or his wife ever hear an "outted" minister either preach or pray, except in the House of Lethin, when his mother-in-law, the Lady Lethin, was on her deathbed, and there were not more than five or six present, who were members of the family, performing the last sacred duties to their dying relative; that Alexander Murray, called his unlicensed chaplain, was never in his service, but was a minister, instituted by Bishop Murdo Mackenzie into the kirk of Daviot, who had given up his charge in consequence of bodily infirmity; and he (Grant) was most desirous, and cheerfully offered, to give all the evidences and demonstrations of his loyalty and affection to the government that could be demanded. Yet did his majesty's high commissioner and the lords of the privy council, find "that the lords commissioners of the district of Moray had proceeded conform to their instructions, in fining the Laird of Grant, and ordained the same to be put to execution, ay and while the said fine be fully satisfied and paid."

About this time, rumours of Argyle's intended invasion having reached the council, they published what they called the king's act of indemnity to all below the rank of heritors and burgesses; but all who were capable of paying a fine being excepted, it was considered as a just "demonstration of Our innate clemency, which also has shined in the whole line of our royal race;" and as it declared "Our resolution to imitate our said dearest royal brother," the Presbyterians anticipated that they would reap little advantage from such a boon. Nor were they mistaken; or if they had been so, the council would soon have undeceived them; for on the 10th, they gifted to the Laird of Pitlochrie, one hundred of the prisoners "who were willing to go

to the plantations,” only excluding such as were able to be fined—“all heritors who had above £100, Scots, rents.”

Nor did the wanton massacre in the fields intermit. Subalterns intrusted with the power of life and death abused it, as might have been expected; and the most valuable of the Scottish peasantry were destroyed by a licentious soldiery, who delighted to indulge in riot with the worst; but now their outrages deplorably increased, especially those in the south and west, where a Cornet Douglas and a Lieutenant Murray eminently distinguished themselves in this cowardly warfare. Claverhouse went still farther, and endeavoured to ruin the peace of mind, as well as plunder the estates and torture the bodies, of the sufferers. On the 10th of March, he parcelled out Annandale and Nithsdale into a number of divisions, of about six or eight miles square. He then assembled the whole inhabitants, men and women, old and young, belonging to each of them in one place, and made them swear the oaths of allegiance and abjuration, and afterwards promise that they would renounce their hopes of heaven, if ever they repented of what they had done! If any one refused, he was carried to a little distance from the rest, a napkin tied over his face, and blank cartridge fired over his head. Having thus suffered the terror of death, he was once more offered his life upon taking the test and becoming bound to inform against all disloyal persons. Few were able to withstand so trying a compulsitor. But perhaps the most heartless trait in his conduct, was his treatment of the children. Those above six and under ten years of age were collected together, and a party of soldiers being drawn out before them, they were bid pray, for they were going to be shot; and when the terrified creatures answered—“Sir, we cannot pray,” they were told they would be let free if they would tell where they saw men with guns in their houses, and if they got any meat or drink there.

Among the villanous apostates who associated with the wanderers, on purpose to betray them, was Andrew Watson, who got acquainted with many of their hiding-places throughout Galloway and Nithsdale, and among others of a cave near Ingliston, which had been a secret and secure retreat to many for several years. He gave information of it. In consequence, Colonel James Douglas and Lieutenant Livingstone surprised five lurking within it; among whom was a brother of the proprietor of the estate, John Gibson. He was first taken out; and being permitted to pray, he went through his

devotional exercises with a cheerfulness that astonished his murderers, and greatly encouraged his sister, who through the compassion of some of the soldiers, had got admission to him, telling her that was the joyfulest day he had ever had in the world; and his mother also being allowed to speak with him, he begged her not to give way to grief, but to bless the Lord upon his account, who had made him both willing and ready to suffer for his cause. The rest were then despatched, without being allowed formally to pray. They lie buried in Glencairn churchyard. Another wretch of the same description, an Alexander Ferguson of Kilkerran, informed against John Semple, one of the excellent of the earth, who led a quiet and peaceable life, nor had ever carried arms or had been connected with any disturbance, only he came not to church to hear the Episcopal minister, and did sometimes relieve the poor. A party at midnight, guided by the informer, came to his house, and after seeing them shoot the good man, while attempting to escape at a window, the miscreant went with the murderers to the barns of Bargeny, and caroused with them till next night.

Towards the end of this month, three women—Margaret Maclauchlin, a widow about sixty-three years of age; Margaret Wilson, aged eighteen; and Agnes Wilson, aged thirteen—were brought to trial before the commission court, composed of the Laird of Lag, Colonel David Graham, sheriff, Major Windham, Captain Strachan, and Provost Cultrain, indicted for rebellion, Bothwell Bridge, Aird-moss, and being present at twenty conventicles. The absurdity of the charges carried their own refutation. But this was not sufficient, there was no proof produced; but they refused to swear the abjuration-oath, and were therefore condemned to be drowned. On the last day of April, the council, when the subject was laid before them, suspended the execution of the sentence for an indefinite time, and recommended to the secretaries to procure a complete remission; but the voice of mercy, though uttered by the council on behalf of helpless females, could not be listened to. The only argument that had any effect was money; and the afflicted father was allowed to purchase, with nearly the whole of his worldly substance, the life of his youngest daughter. Windram guarded the others to the place of execution, where an immense number of spectators assembled to witness the unusual sight. The old woman's stake was fixed much further in the sands than her companion's, and thus was first despatched. When the water was overflowing her, one of the persecutors asked her what she thought of that sight? She answered, "What do I see?

Christ and his members wrestling there. Think you we are the sufferers? No! it is Christ in us; for he sends none a warfare on their own charges." She then sung the 25th Psalm from the 7th verse, and read the 8th chapter of the Romans, and then prayed. While engaged in prayer, the water covered her. She was then dragged out by Windram's orders, and when sufficiently recovered to speak, was asked if she would pray for the king. She answered, she wished the salvation of all men, and the damnation of none. "Dear Margaret," urged a bystander, deeply affected, "Dear Margaret, say—God save the king; say—God save the king!" She replied with great composure—"God save him if he will; it is his salvation I desire!" on which, it is said, Lag bellowed out—"Damned bitch! we do not want such prayers:—tender the oaths to her;" which she refused, and was immediately thrust under the water.

Sir James Johnstone of Wester-raw, another hypocritical turncoat who had sworn the covenants and was now a zealous apostle of Episcopacy, evinced his ardour in the cause, by ordering the corpse of one of the wanderers who had died in the house of Widow Hislop, to be dug out of his grave and exposed. The house they pillaged and pulled down, and turned the widow and her children to the fields. Her son had been previously murdered by Wester-raw, to whom Claverhouse had brought him; yet while procuring his death, the latter seemed to have some compunctious visitations, for he said to his associates, ere the deed was perpetrated, "The blood of this poor man be upon you, Wester-raw—I am free of it."



The christian Carrier shot by Claverhouse anno 1685.

Vide page [529](#)

May-day morning was dewed this year with the blood of John Brown, in Priestfield, a carrier to his employment, distinguished by the honourable title, or, as they called it, nicknamed, “The Christian Carrier.” Having performed Airs-moss between five and six o’clock—fearless of danger, for he was blameless in life—he had gone out to cast peats in the field. While thus engaged, he was suddenly surrounded by Claverhouse with three troops of horse, and brought back to his humble dwelling. After the usual questions, Claverhouse said to him—“Go to your prayers, for you shall immediately die.” He did so; but when praying, the impatient assassin thrice interrupted him, saying—“I gave you time to pray, and ye’re begun to preach.” John turning calmly round upon his knees, replied—“Sir, you know neither the nature of preaching nor praying, that calls this preaching,” and then continued without confusion. When he had ended, Claverhouse said, “Take good-night of your wife and children.” She was standing weeping, with an infant in her arms, and another child of his first wife beside her. He came near and said, “Now, Marian, the day is come that I told you would come when I first spoke to you of marrying me.”—“Indeed, John,” she replied, “I can willingly part with you.”—“Then,” answered he, “that’s all that I desire. I have no more to do but die. I have been in case to meet with death for many years.” He kissed his wife and bairns, and wished purchased and promised blessings to be multiplied upon them. When he had finished, Claverhouse ordered six of his men to fire, which they did; and the most part of the bullets striking, splintered his skull, and scattered his brains upon the ground.^[161] “What thinkest thou now of thy husband, woman?” asked Claverhouse. “I ever thought much good of him,” she replied; “and as much now as ever.”—“It were but justice to lay thee beside him,” said the murderer.—“If ye were permitted,” answered the new made widow, “I doubt not but your cruelty would go that length:—but how will ye make answer for this morning’s work?”—“To man,” said he, “I can be answerable; and as for God I will take him in my own hand,” and mounting his horse, marched off with his troop. The poor woman, left with the corpse of her husband lying before her, set the bairns upon the ground, and gathered his brains, and tied up his head, and straighted his body, and covered him with her plaid, and sat down and wept; it being a very desert

place, where never victual grew, and far from neighbours. Claverhouse afterwards repeatedly confessed, that he never could altogether forget Brown's prayer.

[161](#). Wodrow says the men refused, and Claverhouse pistolled the good man with his own hand.

Amid these bloody scenes, a parliament was convoked, April 28, to confirm the despotism by which they were enacted, for so subservient had those assemblies now become, that, like the parliaments of Paris, they met only to register the royal edicts. The Duke of Queensberry was the commissioner. In his first message to his first high court, James frankly told them that his main design was to give them an opportunity not only "of showing their duty to Us in the same loyal manner as they had done to Our late dearest brother, but likewise of being patterns to others in their exemplary compliance with Our desires as they had most eminently been in times past, to a degree never to be forgotten by Us; but also of protecting religion against fanatical contrivances, murderers, and assassins, and to take care that such conspirators might meet their just deservings."

The speeches of the Commissioner and Chancellor echoed the letter, and inveighed against the persecuted Presbyterians, as wretches of such monstrous principles and practices, as past ages never heard, nor those to come will hardly believe, whose extirpation his majesty asked, as no more rebels against their king, than enemies of mankind. The address followed in a strain of adulation and abject baseness, clearly evincing the absence of every right-hearted man from the meeting. "We can assure your majesty," said they, "that the subjects of this your majesty's ancient kingdom, are so desirous to exceed all their predecessors in extraordinary marks of affection and obedience, that, God be praised! the only way to be popular with us is to be eminently loyal;" "and therefore your majesty may expect that we will think your commands sacred as your person, and that your inclination will prevent our debates."

Their first act was "an act ratifying and confirming all the acts and statutes formerly passed for the security, liberty, and freedom of the true church of God and the Protestant religion." Their next, an offer of their lives and fortunes to the king, accompanied by a declaration of their abhorrence and detestation, not only of the authors and actors of all preceding rebellions against the sovereign, but likewise all principles and

positions which are contrary or derogatory to the king's sacred, supreme, sovereign, absolute power and authority, which none, whether persons or collective bodies, can participate of any manner of way, or upon any pretext, but in dependance on him, and by commission from him. All persons summoned as witnesses against frequenters of conventicles, who refused to answer, were to be reputed guilty of the same crimes as the persons accused—to administer or receive the covenants, or even to write in their defence, was declared treason. Field preachers were already subjected to confiscation or death. Hearing was now made liable to the same punishment, which was also extended to preachers in house conventicles, expounding the Scriptures, or even worshipping God in a private house. If there were more than five persons, in addition to the family, present, it was to be considered as an house-conventicle; but if any were listening outside, it was to be reputed a field-conventicle, for which the whole congregation, with the preacher, were to suffer death. At the same time, the test was extended, with exemptions only favourable to the papists. Then, as a final winding up of this scene of iniquity, followed the forfeiture of Sir John Cochrane, Sir Patrick Home, Lord Melville, Pringle of Torwoodlee, Stuart of Cultness, Fletcher of Saltoun, and several other gentlemen, implicated in the late conspiracy with Cessnock and his son, whose estates, together with those of Argyle, Douchal, and Jarvieswood, were annexed for ever to the crown; while to preserve their own estates from a similar fate, the act of entail was passed, professing to secure the estates of the nobles, but in fact enabling them to evade the just claims of their creditors.

Meanwhile the Scottish exiles, reduced to despair, resolved to attempt the liberation of their native land, with which they had never ceased to hold a secret correspondence; and after many meetings in Holland, an expedition set sail on the 2d of May, of which Argyle was elected General, and the expense supplied by Mrs Smith, a rich sugar baker's widow, at Amsterdam; but accounts of his preparations had been sent to the government, and measures were taken to frustrate his object before his arrival, which were increased on the council's receiving notice from the Bishop of Orkney, that the Earl had touched there on his passage. The strengths in Argyleshire were ordered to be dismantled, and the sons of the chiefs to be sent as hostages to Edinburgh; and all the non-conformist prisoners, about two hundred and fifty, were, on May 18th, hurried off under night from the jails of Edinburgh and Canongate, and sent across the Firth in open boats to

Burntisland, and confined for two days and nights in two small rooms, where they had no space almost to lie down, and no place to retire to. Nor had they any provisions, and only a few were allowed to purchase a little bread and water.

When it was imagined hunger and fatigue would have worn out their powers of endurance, liberty was offered them on condition of swearing the oaths of allegiance and supremacy; but many who could have taken the first refused the last as blasphemous. To acknowledge a papist as the head of Christ's church, was what they durst not do. About forty complied and were released, the rest were driven like cattle to Dunotter Castle—an old, ruinous building, in the county of Kincardine, situated on an almost insulated perpendicular rock, 150 feet above the level of the sea, where they were received by George Keith of Whiteridge, sheriff-depute of Mearns, and thrust into a dark vault, with only one small window towards the sea, and full of mire and deep. They had no provision but what they were forced to purchase, at a dear rate and of the worst quality, from the governor's brother. Even their water was brought in small quantities, though their keepers would sometimes pour whole barrels into the cavern to increase their discomfort. Means of cleanliness they had none, and the smell of the place became so noxious, for it was a warm summer, that several of them died; and it was considered little less than miraculous that any survived.

Within a few days, the governor removed about forty of the men to another low small cell, scarcely less disagreeable, as the only light or air they had was through a small crevice in the wall, near which they used to lie down by turns, that they might breathe a little fresh air. Shortly after, the governor's lady having visited these miserable abodes, prevailed upon her husband to separate the prisoners; and the females were removed from the large vault into two more comfortable smaller apartments. The men, however, continued to suffer the utmost misery in the large vault, and a contagious disorder having broken out among them, many died. The survivors, reduced to desperation, endeavoured to escape, and having got out one night by the window, were creeping along the hazardous precipice, when an alarm was given by some women—most probably the soldiers' wives—who were washing near the rock. Immediately the guards were called, the gates shut, and the hue and cry raised, and fifteen were intercepted; yet twenty-five had got off before the alarm was given. Those

who were retaken, were most inhumanly tortured. They were laid upon their backs upon a form, their hands bound down to the foot of the form, and a burning match put between every finger—"six soldiers attending by turns to blow the matches," and keep them in flame—and this was continued for three hours without intermission by the governor's orders! Several died under this torture, and those who survived were disabled for life. About July, in consequence of representations to the council, the prisoners were brought south, and the Earls Marishal, Errol, Kintore, Panmure, and the Lord President of the Court of Session, empowered to call them before them, and banish such as would not take the oaths of allegiance and abjuration, to his majesty's plantations—the men having their ears cut off, the women their cheeks branded—with certification that such as should return to the kingdom should incur the pain of death.

Unfortunately for the success of Argyle's expedition, while the Scottish government were fully apprised of its approach, adverse winds and untoward circumstances retarded its progress; so that when the Earl arrived, he found he had been anticipated by the measures of the council; and where he expected willing vassals, he met only heartless or deceitful adherents; but the worst symptom was the insubordination of his officers, especially Sir Patrick Home and Sir John Cochrane, who disputed when they ought to have obeyed, and argued when they should have acted. In such circumstances, after landing, he lost instead of gathering strength as he advanced, while the ships and military stores he left behind in the Castle of Ellengreg, fell, together with it, into the hands of some English frigates, which arrived on the coast. He published two proclamations, but they produced no effect, and unhappily were even counteracted from quarters whence, if he had not received decided support, it was not too much to have expected a friendly neutrality.

The wanderers, although they were favourable to Argyle, unfortunately could not embark with him, upon account of the too promiscuous admittance of persons to trust in that party, and because they could not espouse his declaration as the state of their quarrel. But they published another declaration at Sanquhar, May 28, 1685, against the usurpation of a bloody papist advancing himself to the throne, as the height of confederacy with an idolater, forbidden by the law of God and contrary to the law of the land.

Thwarted at every step, and prevented from following his own brave resolution, and giving the enemy battle, Argyle was at last, either by treachery or mistake, landed in a morass, where his baggage and horse were swamped, and universal confusion ensuing, his little band, which had with difficulty been collected and kept together, dispersed during the night. Argyle himself, forced to withdraw, was retiring in the disguise of a peasant, when he was attacked in crossing the Cart at Inchannon (June 17th) by two of the militia, with whom he grappled, and would have overcome, had not five more arrived and wounded and secured him. When falling, he had exclaimed—"Alas! unfortunate Argyle," which first discovered him to his captors, who appeared deeply concerned at his seizure, but durst not let him go. He was immediately carried to Edinburgh, where the marked ignominy with which he was treated, bore strong testimony to the high estimation in which the illustrious prisoner was held. By an especial order of the council, dated June 20th, he was conducted through the Water-gate, and carried up the main streets to the Castle, with his hands bound and his head bare, preceded by the hangman, and surrounded by Captain Graham's guards; and there he was safely lodged in irons. In the privy council, it was debated whether he should be tried for his present rebellion or executed upon his former sentence. The most iniquitous proposition of the two prevailed, in which the king of course concurred, only he suggested the propriety of the Earl's being tortured before he was executed, in order to try if any information could be elicited respecting those who had assisted or who were acquainted with the expedition. His openness upon his examination prevented his persecutors incurring the infamy which the royal mandate implied, and he was ordered to prepare for execution next day after the receipt of the royal letter.

The interval he spent with a cheerful tranquillity, which soothed his afflicted relatives and amazed his political antagonists. Being accustomed to sleep a little after dinner, on his last solemn day he retired to his closet, and laid himself down on bed, and for about a quarter of an hour slept as sweetly as ever he did. At this moment an officer of state came to inquire for him. Being informed that he was asleep and desired not to be disturbed, the officer, who doubted the story, insisted upon being admitted to his lordship. He was admitted accordingly, but instantly rushed from the apartment to a friend's house on the Castle Hill, and threw himself on a bed in great agony of mind. When asked by the lady of the house if he was

unwell or would take a glass of sack—"No! no!" replied he; "I have been at Argyle, and saw him sleeping as pleasantly as ever a man did, within an hour of eternity; but as for me——."

The Earl left the Castle, accompanied by a few friends; and while waiting in the laigh council-house, wrote a farewell letter to his Countess. "Dear Heart,—As God is of himself unchangeable, so he hath been always good and gracious to me, and no place alters it; only I acknowledge I am sometimes less capable of a due sense of it. But now, above all my life, I thank God I am sensible of his presence with me, with great assurance of his favour through Jesus Christ, and I doubt not will continue till I be in glory. Forgive me all my faults; and now comfort thyself in Him in whom only true comfort is to be found. The Lord be with thee, bless thee, and comfort thee. My dearest—adieu." He also wrote the following to his daughter-in-law, Lady Sophia Lindsay:—"My dear Lady Sophia,—What shall I say in this great day of the Lord, wherein, in the midst of a cloud, I find a fair sunshine? I can wish no more for you, but that the Lord may comfort you and shine upon you, as he doth upon me, and give you the same sense of his love in staying in the world, as I have in going out of it. Adieu. ARGYLE.—P.S. My blessing to dear Earl Balcarras. The Lord touch his heart and incline him to his fear."

He was accompanied to the scaffold by Mr Annand, dean of Edinburgh, appointed by the council, and Mr Laurence Charteris, named by himself. Before they left the council-house, the Earl pleasantly asked Mr Annand, "If he thought the Pope was that antichrist the Scripture speaks of?" He answered, "Yes, my lord, the Protestant churches hold so."—"But what think you?" asked the Earl.—"I think so too," replied Mr Annand.—"Then," said the Earl, "be sure you instruct the people so." When they had mounted the scaffold, Mr Charteris exhorted him if there were any sin unrepented of to lay it open before God, who is ready to forgive all penitent sinners. The Earl regretted, as the chief, that he had set too little time apart to wrestle with God in private, in behalf of his work and interest, and for his own poor soul; also that he did not worship God in his family so much as he ought to have done; likewise his public failings. Here Mr Annand interrupted him; but without taking notice of the interruption, he lamented that he did not improve the three years' respite the Lord had given him, so much for his glory and the advancement of his work, as he might have done

in his station; and he looked on his death as a just punishment from God, though undeserved at the hands of men, and added, "I would have thought as little to have appeared in this place some time of day after this manner, as many of you who are now satiating your eyes in beholding me; but the Lord in his divine wisdom hath ordered it otherwise, and I am so far from repining and carping at his dispensations towards me, that I bless his name and desire to give him endless praise and thanks for the same." The clergymen then prayed, after which the Earl fell down on his knees, and having his face covered and his hands clasped together, prayed in silence for a considerable time. Upon rising, he delivered a speech he had previously composed, expressive of his cheerful submission to the divine will, and his willingness to forgive all men, even his enemies. "Afflictions," he said, "are not only foretold, but promised to Christians. We are neither to despise nor faint under them; nor are we by fraudulent pusillanimous compliance in wicked courses to bring sin upon ourselves. Faint hearts are ordinarily false hearts, choosing sin rather than suffering—a short life with eternal death, before temporal death and a crown of glory." "I know many like Hazael go to excesses they never thought they were capable of." He then prayed God to send peace and truth to these three kingdoms; to continue and increase the glorious light of the gospel, and restrain a spirit of profaneness, atheism, oppression, popery, and persecution; and was about to conclude, when it was suggested to him that he had said nothing about the royal family; he added, "this reminds me that before the justices, at my trial about the test, I said that at my death I would pray that there might never want one of the royal family to be a defender of the true, ancient, apostolic, Catholic, and Protestant faith, which I now do; and may God enlighten and forgive all of them that are either hid in error or have shrunk from the profession of the truth; and in all events, I pray God may provide for the security of his church, and that antichrist nor the gates of hell may never prevail against it."

When he had ended, he turned to the south side of the scaffold, and said, "Gentlemen, I pray you do not misconstrue my behaviour this day. I freely forgive all men their wrongs and injuries done against me, as I desire to be forgiven of God." Mr Annand repeated these words louder to the people. The Earl then went to the north side of the scaffold, and had the same or like expressions. Mr Annand again repeated them, adding, "This nobleman dies a Protestant;" on which Argyle stepped forward again, and said, "I die

not only a Protestant, but with a heart hatred of popery, prelacy, and all superstition whatsoever.” Returning to the middle of the scaffold, he embraced and took leave of his friends, delivering to Lord Maitland some tokens to be given to his lady and children; then he stript himself of his upper garments, which he also gave to his friends, and kneeling, embraced the instrument of death, saying, “It was the sweetest maiden he ever kissed, it being a mean to finish his sin and misery, and his inlet to glory, for which he longed.” Having prayed a little in silence, he said aloud three times —“Lord Jesus receive me into thy glory;” and lifting up his hand, the sign agreed upon, the executioner let the knife of the maiden fall, and his head was severed from his body.

The misfortunes and death of this excellent nobleman did not destroy the cause for which he suffered. The universal sympathy they excited, from the diffusion of his speech, which was widely circulated, aided by concurring circumstances, accelerated rather than retarded the event of his country’s liberation. His vassals, however, were cruelly treated by Atholl and Breadalbane. Upwards of twenty of the name of Campbell were put to death, and more than fifty sent to the plantations. Their houses were pulled down, their mill-stones broken, the woods burned, and the whole shire of Argyle cruelly ravaged for thirty miles round Inverary; his estate was given to strangers, his children scattered, his creditors defrauded, and his brother, Lord Neil Campbell, forced to go as an exile to America.

Besides Argyle, very few of any note suffered upon this occasion. These were—Colonel Rumbold, known by the name of the maltster, who underwent a form of a trial; but being severely wounded, lest he should have disappointed their revenge, the council had prescribed the mode of his death the day before,^[162] according to which he was taken from the bar to the scaffold, supported by two officers, and preceded by the hangman with his hat on. When he attempted to explain his principles, the drums beat, at which he shook his head and said, “Will they not suffer a dying man to speak his last words to the people?” And even when praying for the extirpation of popery, prelacy, and other superstitions, the drums again drowned his voice. He then silently breathed out his soul to God, and giving the signal, the executioner turned him off. Ere yet dead, his heart was torn from his bosom, and exhibited, while still palpitating on the point of a bayonet, to the people by the hangman, who bawled out—“Here is the heart

of a bloody murderer and traitor,” and threw it disdainfully into the fire. His quarters were distributed through the country and his head fixed on an high pole at the West Port of Edinburgh.

[162](#). When before the council, he expressed his joy in suffering for such a cause, on which one of the gang called him “a confounded villain.” He sedately replied, “I am at peace with God through Jesus Christ; to men I have done no wrong—what, then, can confound me?”

Some time after, Mr Thomas Archer, a popular preacher, now in the last stage of a decay. Having been wounded severely, much interest was made to obtain his liberation, as he was evidently dying; even the Duke of Queensberry’s own son entreated his father for his life, without effect. Nothing would satisfy the rulers but his blood. A plan had been laid for his escape out of prison, but he would not consent, saying, that since he could not serve his Master in any other manner, he thought it his duty not to decline a testimony for him and for his truth by a public death on the scaffold. He was several times interrupted when addressing the spectators, but enough was heard to evince that he died steady to his principles, rejoicing in hope, and anticipating deliverance for the church, notwithstanding the then threatened visitation of popery. “I will bring them to Babylon, and there will I deliver them,” would, he believed, be accomplished in their case. He sung the latter part of the 73d Psalm, and prayed. Before being turned off, he said—“Fear of death does not fright or trouble me; I bless the Lord for my lot,” and submitted with cheerfulness to the hands of the executioner. He was about thirty-two years of age, of uncommon abilities, and very learned.

Ayloff was sent to London and examined by James in person. He was related to the royal family, and the king pressed him to make discoveries. “You know,” said the tyrant, “it is in my power to save you.”—“Yes,” replied Ayloff, “but it is not in your nature.” He was hanged accordingly.

Sir W. Denholm of Westshiels, Mr James Stuart, and Mr Gilbert Elliot, were condemned in absence, and ordered to be executed when apprehended; the Earl of Loudon, Dalrymple of Stair, Fletcher of Saltoun, with a number of other gentlemen of rank and fortune, were forfeited, whose only crimes were their estates, and the charges their having honestly fulfilled their duties as public men.

Of the prisoners at Leith, many of whom had been brought back from Dunotter, about seventy-two were ordered for banishment; but in the greatness of their humane condescension, the council came to Leith and sat in the tolbooth to re-examine them, when such as made some moderate compliances, a few who were sickly, and others who had friends, got free; for government were now beginning to relax in their severities, in contemplation of extending the same or greater freedom to the Roman Catholics; but a number who still unyieldingly adhered to their tenets, were given as a present to the Laird of Pitlochie, and shipped by him for his plantations in New Jersey.^[163] They, however, had scarcely left land, when a malignant fever broke out, especially among those who had been confined in Dunotter. Most of the crew also died, as did Pitlochie and his lady; yet, notwithstanding, the captain and some other hardened wretches would not suffer the persecuted exiles to worship God in peace, but when they heard them engaged in their devotions, threw down great planks of wood in order to annoy them. After their arrival, Pitlochie's son-in-law claimed the prisoners as his property, but the governor remitted the case to a jury, who immediately freed them. The greater part retired to New England, where they were kindly received; and many of them settled in the colony. Others returned to their native country at the Revolution.

^{163.} The following incident was much spoken of at the time. Mr W. Hanna, one of these prisoners, on being threatened with banishment, told the council he was now too old to work or go to war. General Dalziel bitterly replied, "But you are not too old to hang." On that same day, the General, in the act of drinking a glass of wine, was suffocated, and went to his own place.

About the latter end of this year, John Nisbet of Hardhill, with three of his fellow-sufferers, was surprised by a relation of his own, Lieutenant Nisbet, in a house in the parish of Fenwick. They defended themselves bravely, till the three were killed and he was wounded and taken. When tauntingly questioned what he thought of himself now? "I think," he replied, "as much of Christ and his cause as ever; but I judge myself at a loss, being in time, and my dear brethren, whom you have murdered, being in eternity." He was sent to Edinburgh, and, on his examination before the council, behaved with much Christian fortitude. Being asked if he would own the king's authority? He said he would not. "Why?" said they; "do you not own the Scriptures and Confession of Faith?"—"I own both," he replied, "with all my heart, but the king is a Roman Catholic; and I have not

only been educated a Presbyterian, but solemnly sworn against owning popery.”

The council ordered him to be prosecuted before the justiciary. His confession was adduced against him, and he was sent to follow those who had not counted their lives dear unto them, that they might finish their course with joy, and set to their seals to the truth. “Now,” said he, in his last testimony, “we see open doors, that are made wide, to bring in popery and set up idolatry in the Lord’s covenanted land. Wherefore, it is the indispensable duty of all who have any love to God, or to his Son, the Lord Jesus Christ, to witness faithfully, constantly, and conscientiously, against all that the enemies have done, or are doing, to the overthrow of the glorious work of reformation. But it will not be long to the fourth watch, and then will He come in garments died in blood, to raise up saviours upon Mount Zion to judge the mount of Esau; and then the house of Jacob and Joseph shall be for fire, and the malignants, papists, and prelates shall be for stubble, the flame whereof shall be great. But my generation work being done with my time, I go to him who loved me, and washed me from all my sins in his own blood.” And thus, after much, long, and painful suffering (upwards of twenty years), did this faithful servant enter into the joy of his Lord. Edward Marshall of Kaemuir, formerly forfeited, was executed along with him.

From this period we shall meet only with one other public judicial murder, expressly on account of religion; yet many died in prison and exile who may be numbered among the martyrs, as having suffered unto death. Many others were scourged, had their ears cropt, and were sent to the plantations. The indecent cruelty of their conduct towards pious women was unworthy of manhood. Thus a number of old women were whipped at Glasgow; at Dumfries two women were scourged, and the youngest afterwards sent to New Jersey with Pitlochrie, merely because they would swear no oaths; another poor woman was tied to a man, and both scourged together through the town, because they would not tell what wanderers they had harboured, though to have acknowledged the fact would have been exposing themselves to the gallows. But the banishments, plunderings, and varied modes of harassing still continued, or were intermitted only by arbitrary and insidious indulgences, intended to prepare the way for the introduction of popery.

Without natural affection is one of the peculiar marks of a reprobate, but the prelatical rulers of Scotland deemed its possession a peculiar object of punishment. By order of the sheriff of Wigton, a party of his underlings after destroying the furniture of a Sarah Stuart, the wife of William Kennedy, in the parish of Cunningham, marched the poor woman, with a child in her arms, not quite nine months old, to Wigton, a distance of several miles, forcing her to leave other three behind without any one to look after them, though the oldest was not nine years of age. There she was kept eleven weeks prisoner, though a conformist herself, because she would not engage never to converse with her husband, nor consent to discover him! And another, Jean Dalziel, a tenant of Queensberry's, was banished for the same reason.

Thus closed the year sixteen hundred and eighty-five—a year long remembered by the sufferers, and which was remarkable also for that terrible revocation of the edict of Nantz by Louis XIV., which made Europe resound with tales of horror, equalled only by the retributive sufferings the descendants of the persecutors endured in the days of Robespierre, from a revolution whose origin may perhaps be traced back to the ambition, misgovernment, and cruelty of Voltaire's Louis le Grand.

BOOK XXII.

A.D. 1686-1688.

Conduct of the soldiers—A riot—Recantation of Sibbald—Alexander Peden—Proceedings of the society-men—Synod of Edinburgh—Parliament—Disputes among the persecuted—Indulgence—Thanksgiving for the Queen's pregnancy—Seizure and death of Mr Renwick—Dr Hardy's trial and acquittal—Rescue of David Houston—Murder of George Wood—Arrival of the Prince of Orange.

[A.D. 1686.] The entrance of the new year was signalized by an exploit worthy of the heroes of the day. A party of their marauders came to the parish of Stonehouse, in Lanarkshire, and carried off eight men and two women who had infants at the breast, for alleged hearing an ejected minister; while another no less heroic band, under Skene of Hallyards, plundered the house of a widow, in the neighbouring parish of Glassford, and destroyed what they could not carry off, because they chose to allege her son had been at Bothwell.

Intent upon forcing his favourite object, the king had ordered his chapel of Holyrood-house to be repaired^[164] for the use of the royal servants who had embraced the royal religion; and the paraphernalia necessary for conducting its Romish rites with becoming splendour, being openly brought to Leith, this, with the ostentatious celebration of mass in the popish meetings, roused such indignation in the Edinburgh populace, that "a great rabble of prentices" rose, who threatened to pull down the mass-house. They insulted the Chancellor's lady and her company coming from chapel, assailing them with opprobrious language, and throwing dirt at them, but doing no further damage. For this riot several were apprehended, and one "baxter lad" sentenced to be whipped; but when the hangman was about to perform his duty, the mob rose, rescued their associate out of his hands, and gave

himself a sound drubbing. The confusion, however, continuing, the troops in the Castle and Canongate were called out to assist the town-guard, when a woman and an apprentice of one Robert Mein, were killed. Next day, a woman and two youths were scourged, guarded by soldiers; and one Moubray, an embroiderer, was indicted for his life. At the place of execution, he told Mr Malcolm, a minister who attended him, that he was offered a pardon if he would accuse the Duke of Queensberry of having excited the tumult; but he would not save his life by so foul a calumny.

[164.](#) He also erected a seminary in the Abbey—the Royal College; and in order to allure youth and induce Protestant parents to send their children, the scholars were to be taught gratis; and no particular system of religion was to be inculcated by the Jesuits!—*crede*.

This was not the only ominous circumstance which preceded the meeting of parliament. Another took place at the same time, which bore more immediately upon the grand question that was to come under their consideration, and for which they had especially been called together—the recantation of Sir Robert Sibbald, M.D. This celebrated antiquarian, who lived in a course of philosophical virtue, but in great doubts of revealed religion, had been prevailed upon by the Earl of Perth to turn papist, in order to find that certainty which he could not find upon his own principles. But he was ashamed of his conduct almost as soon as he had made his compliance, went to London, and for some months retired from all company. There, after close application to study, he came to be so convinced of the errors of popery, that he returned to Scotland some weeks before the parliament met, and could not be easy in his own mind till he made a public recantation. The Bishop of Edinburgh was so much a courtier, that, apprehending many might go to hear it, and that it might be offensive to the court, he sent him to do it in a church in the country; but the recantation of so learned a man, after so much studious inquiry, had a powerful effect.

Fining, that lucrative branch of persecution, though still a favourite, began now to descend to the humbler classes of consistent Presbyterians; for the chief gentlemen and heritors among them were either dead, forfeited, or in exile; yet the gleanings were by no means despicable, and far from being so regarded by some of the under-hirelings of government. In the parish of Calder, John Donaldson, portioner, was fined £200 for a prayer-meeting held at his house on a Lord's day; John Baxter, £40; Walter

Donaldson, for his wife being present, £36; with several others in smaller sums, making in all £816. 16s. Scots. William Stirling, bailie-depute of the regality of Glasgow, who imposed these fines, received a gift of them for his zeal and exertions.^[165]

^{165.} While the rulers were plundering the best in the land, solely because they were the best, they were no less anxious to protect those who were at least not the most worthy; but they were their own minions. The universal profligacy of manners which had been introduced at the Restoration, appears to have been followed by its natural consequence, an almost universal bankruptcy; for, when those who had wasted their substance in riotous living could no longer supply their waste by the plunder of the persecuted Presbyterians, they supported themselves for a while by the scarcely less dishonourable shift of living upon their creditors; then failing, and throwing themselves upon the crown. Fountainhall notices some such circumstances as mere matters of course:—"Provost George Drummond," says he, "turnes bankrupt, as alsoe George Drummond, town-treasurer, [and] Drummond of Carlourie; and the Chancellor gets protections to them all, and to Skene of Hallyards in Louthian, and John Johnstoun of Poltoun;" and he adds, in the same business-like style, "William Seaton, in the life-guards, gets a gift of 5000 merks he had discovered resting to Argyle."

On the 4th of January, at the criminal court, Sir Duncan Campbell of Auchinbreck and thirty-two more Argyleshire heritors, were forfeited for joining with the Earl, and their estates were gifted chiefly to those of the same family who had joined the royal party during the invasion, although, as usual, the prelates and their relatives came in for a share of the spoil, Campbell of Otter's estate being gifted to Commissary M'Lean, son to the Bishop of Argyle. Fountainhall adds, "there were sundry apparent heirs amongst the forfeited, whose second brothers were on the king's side with Atholl. It were but charity to encourage them, to make them donators to their brothers' forfeitures." On the same day, the Earl of Lothian, brother-in-law to Argyle, was admitted a privy councillor, with a pension of £300 per annum, given, it was said, in reward of the great courage he displayed in the Dutch war, when fighting under the king, then Duke of York; but rather, as the same author hints, to engage his interest in the ensuing parliament. Protestant heritors who had not taken the test were also ordered by his majesty to be pursued and fined; but within a few days a letter came, postponing the time for taking the test, and shortly after another dispensing with it altogether in their favour during the king's pleasure.

About this time, Mr Alexander Peden died (January 26th), full of assurance of faith, and was privately interred in the churchyard of Auchinleck. He was certainly an extraordinary man, whose memory was

long cherished in the south and west of Scotland with fond affection, and where he had laboured long and faithfully and with much success. A little before the Restoration, he was settled as minister at New Luce, in Galloway, where he remained about three years, till he was thrust out by the tyranny of the times. When about to depart, he lectured upon Acts xx. from the 7th verse to the end, and preached in the forenoon from these words —“Therefore, watch and remember, that for the space of three years I ceased not to warn every man,” &c., asserting that he had declared unto them the whole counsel of God, and professing he was free from the blood of all men. In the afternoon, he preached from the 32d verse; “And, now, brethren, I commend you to the word of his grace,” &c.—a sermon which occasioned a great weeping in the church. Many times he requested them to be silent; but they sorrowed most of all when he told them they should never see his face in that pulpit again. He continued till night; and when he closed the pulpit door, he knocked three times on it with his Bible, saying each time—“I arrest thee in my master’s name, that none ever enter thee but such as come in by the door, as I have done.” And it is somewhat remarkable that neither curate nor indulged entered that pulpit, which remained shut till it was opened by a Presbyterian preacher at the Revolution. Yet it may be doubted whether he would have thought that any one entering by that settlement, did so exactly in the manner that he did. Some time before his death, through the misrepresentations which were brought him, he had been much alienated from James Renwick, and had spoken bitterly against him; but when on his deathbed he sent for Mr Renwick, and asked if he was that Mr Renwick there was so much noise about. “Father,” he replied, “my name is James Renwick; but I have given the world no ground to make any noise about me, for I have espoused no new doctrine.” He then gave him such an account of his conversion and call to the ministry—of his principles and the grounds of his contending against tyranny and defection—that Mr Peden was satisfied, and expressed his sorrow for having given credit to the reports that were spread against him.

[\[166\]](#)

- [166.](#) Ker of Kersland, in his memoirs, speaking of Mr Peden, says—“Abundance of this good man’s predictions are well known to be already come to pass. When he was sick unto death in the year 1686, he told his friends that he should die in a few days; ‘but having,’ said he, ‘foretold many things which will require some time before they be verified, I will give you a sign which will confirm your expectation, that they will as surely come to pass as those you have already seen accomplished before your eyes. I shall be decently buried by you; but if my body be

suffered to rest in the grave where you shall lay it, then I have been a deceiver, and the Lord hath not spoken by me: whereas, if the enemy come a little afterwards to take it up and carry it away to bury it in an ignominious place, then I hope you will believe that God Almighty hath spoken by me, and consequently there shall not one word fall to the ground.’ Accordingly, about 40 days after his interment, a troop of dragoons came, lifted his corpse, carried them two miles to Cumnock, and buried them under the gallows.”—Crookshanks, vol. ii. p. 320.—James Nisbet, in his memoirs, states the same fact, p. 134.

The unflinching confessors of the truth in this day, like those in primitive times, were often in perils among false brethren, and often persecuted with the scourge of the tongue, even by some who were suffering in the same cause. They were accused “of overturning the Presbyterian government in the church, and substituting a loose kind of independency, by committing the trial and censure of offences to persons who were not office-bearers—of usurping the magistrates’ place in the state, by constituting themselves a convention of estates, and managing the civil affairs of their community by their edicts—and of disowning, as silent and unfaithful, all ministers who cannot preach upon their terms, there being not now, according to them, one minister in Scotland, England, or Ireland, save one Mr James Renwick, who, by his own confession in a letter to a friend in Ireland, is not one either.”

To this Mr Renwick, at the desire of the societies, replied—“That they never committed the trial of ‘scandals’ to the people in a judicial way, but only allowed them, when there were no church judicatories, to withdraw privately from associating with those who erred, that they might not partake of other men’s sins, but by this be a means of reclaiming offending brethren; which certainly was not overturning Presbyterian government, any more than their declining the authority of tyrants was thrusting themselves into the magistrates’ room.” He added, personally—“As to that, that by my own confession I am not a minister of the church, I altogether deny. I said I am a minister wherever I have a call from the people and do embrace it.—O! that all those who shall agree together in heaven, were agreeing upon earth, I think if my blood could be a mean to procure that, I could willingly offer it.”

A change having taken place in the cabinet about the end of the year, the administration was now intrusted only to papists, chiefly to Perth the chancellor, and his brother Melford, who had gained the king’s entire confidence by embracing his religion, and the Earl of Murray, another

proselyte, who was appointed Commissioner to open the parliament, from which was expected a repeal of those penal statutes his ancestor, “the good regent,” had procured to be enacted against papists.

Preparatory to the sitting of parliament, the synod of Edinburgh met, when its usual tranquil submissiveness was interrupted by a contrariety of sentiment respecting the test; some contending for it, and others urging toleration to all who differed in judgment, insinuating a charitable accommodation with the papists. Paterson, bishop of Edinburgh, who had lately returned from London, gratified by a pension of £200 sterling, told them that the king would defend their religion, and only craved the exercise of his own for those of his persuasion in private, which he said could not be denied him, because he might take it by his prerogative of church supremacy, asserted by parliament 1669. He further told them that the Archbishop of St Andrews (Ross) and himself had got ample power to suspend and deprive any that preached sedition, *i. e.* impugned the king’s religion, even though they should be bishops. Mr George Shiels, minister at Prestonhaugh, was sharply reprov’d “for that he declaimed rudely against popery in the Abbey church on the preceding Sunday, having said the Pope was as little infallible as the Bishop of the Isles”—who was one of the silliest in the world—“and that he would believe the moon to be made of green cheese, and swallow it, as soon as he would believe in transubstantiation.”

Parliament met, April 29th. In his letter, the king was perfectly explicit. After hanging out the lure of a free trade with England, and an indemnity for his greatest enemies themselves, *i. e.* the consistent Presbyterians, he came to the point:—“Whilst we show these acts of mercy to the enemies of our person, crown, and royal dignity, We cannot be unmindful of others, our innocent subjects, those of the Roman Catholic religion, who have, with the hazard of their lives and fortunes, been always assistant to the crown in the worst of rebellions and usurpations, though they lay under discouragements hardly to be named: Them we do heartily recommend to your care, that they may have the protection of our laws, and that security under our government, which others of our subjects have, not suffering them to lie under obligations which their religion cannot admit of.”

The Commissioner enforced this communication by what he must have thought an irresistible argument. He informed the house that he was

instructed to give the royal assent to any acts prohibiting the importation of Irish cattle, horses, and victual, or any measures which might prevent smuggling these articles into Scotland to the prejudice of the landholders of the country! and likewise promised to authorise such regulations as should secure exact payment to the tenantry from all his officers and soldiers in their quarters, both local and transient, for the future. In return, he expected that they would show themselves the best and most affectionate subjects, to the best, the most incomparable, and most heroic prince in the world!

The dutiful parliament humbly thanked the king for his care of the trade of his ancient kingdom, and expressed their astonishment at his clemency, testified in the offer of an indemnity to these desperate rebels, who could have expected pardon from no monarch on earth but his sacred majesty! and sincerely and heartily offered their lives and fortunes for suppressing all such as should, upon any account or pretext whatsoever, attempt either by private contrivance or open rebellion, to disquiet his glorious reign. As to that part of the royal letter relating to his subjects of the Roman Catholic religion, they promised, in obedience to his majesty's commands, to go as great lengths as their consciences would allow, not doubting that his majesty would be careful to secure the Protestant religion established by law. "This," says honest Wodrow, "is the first time since the Restoration I remember that the parliament speak of their conscience."

Their answer, however, was so little satisfactory at court, that although the custom always had been to print these official documents, it was not allowed to be printed; and within a few days the royal displeasure was expressed against such as had opposed the Commissioner in this affair. Sir George Mackenzie, lord advocate—who with rat-like sagacity, when he perceived the vessel was sinking, had already shown a disposition to leave her—was laid aside from an office he might curse the day he ever was appointed to fill. Lord Pitmedden was removed from the bench, and the Earl of Glencairn and Sir William Bruce from the privy council. Glencairn was besides deprived of his pension, as was also the Bishop of Dunkeld.—"Thir warning shots," observes Sir John Lauder, "were to terrify and divert other members of parliament from their opposition."

Could any inconsistency or tergiversation in unprincipled politicians astonish us, we might well be amazed at the shamelessness of the parties on this occasion. When a bill for repealing the penal statutes was brought in,

the papists—or Roman Catholics, as they were styled by their foster-brethren the Scottish bishops, in compliment to the king—were now strong advocates for liberty of conscience, contending that nothing can bind the conscience as a divine law, which neither directly nor by clear consequence is founded on the doctrine or practice of Christ or his apostles, or of the primitive church; that no oath whatsoever can bind or oblige to that which is sinful or unlawful to be done; and that for a Christian magistrate to take away the life or estate of a subject who is not guilty of sedition or rebellion, nor of injuring his neighbour, but is quiet, and peaceable, and contents himself in the private exercise of his own religion, merely for difference of opinion, is neither founded on the doctrine or practice of our Saviour or his apostles, nor of the church in the following ages, who never urged their kings or emperors, when the empire became Christian, to take away the lives and fortunes of open infidels and heathens who did worship stocks and stones, although these idolatrous heathen, when they had power, did execute all manner of cruelty against the Christians.

The Episcopalians, taking up the arguments of some of the first reformers, asserted “that by the doctrine of the New as well as of the Old Testament, the magistrate beareth not the sword in vain, for he is the minister of God, a revenger to execute wrath upon him that doth evil. Idolaters are ranked among the very chief of evil-doers; and John foretells it as that which God requires of, and approves in, the king’s of the earth, in times of reformation, that they shall hate the Babylonish whore, and make her desolate and naked, and shall burn her with fire—a just punishment upon her who made and cruelly executed laws for burning to death the innocent saints of God! But the penal laws were enacted merely for the safety of the religion of the country against papists, who are not the meek lambs they pretend to be—as witness the Irish massacre and the murderous conduct at present in France, towards persons who were guilty of no rebellion, and who only sought to worship God according to their conscience!”—It is impossible not to pause here and ask, whether those who urged these reasons for keeping papists out of power, had no sense of shame, or no memory—whether they did not recollect, that, for more than twenty-five years, they had been pursuing exactly the same course towards their own Protestant brethren in Scotland?

During the first month of the session, the Commissioner was incessant in his attention to the nobles and leading men, and liberal both of his promises and threatenings, but all he could prevail upon them to consent to, was a bill for allowing Roman Catholics “the exercise of their religion in private houses—all public worship being excluded—without the danger of incurring sanguinary or other punishments contained in any laws or acts of parliament against the same.” But as such a restricted liberty would not satisfy the king, it was dropped; and an act in favour of the heir of Argyle, who had been prevailed upon to profess the royal religion, closed the session.

Several of the bishops had strenuously opposed the repeal, clearly perceiving that their craft was in danger, because, had the papists obtained power, they would not long have retained their livings without apostatizing from their religion; others were prepared to go every length to please the king and keep their places. Nor is it perhaps judging too harshly, to say, that if the alternative of allowing liberty to Presbyterians, or themselves turning papists, had been offered them, they would have chosen the latter, such appeared to be their hatred at what they called the fanatical rigidity of the former.^[167]

¹⁶⁷. The methods of solicitation to obtain consent to this act were very strange and extraordinary. The laying aside of men from their places, who could have no interest but serving their consciences—commanding Mar, Ross, Kilsyth, Sir John Dalziel, &c. to their charges, but they offered to give up their commissions—the imprisoning my two servants, I being a member of parliament—the importunities used by Sir William Paterson and others in concussing members of parliament—their dealing with members not clear to stay away or go home, and then prolonging the meeting to weary out the poorer sort, who had exhausted both their money and credit—and lastly, the letters were one post all broken up and searched, to see if any correspondence or intelligence could be discovered between Scotland and England.—Fountainhall’s Decis. vol. i. p. 419.—The burrows, because they were obstinate against the court party, could justly expect no favour. They never were so unanimous in any parliament as in this, but formerly depending on noblemen: and therefore some called this an independent parliament.—Ib. p. 418.

Defeated in parliament, contrary to all expectation, James determined to carry through his favourite project by the power of his prerogative. First, he re-modelled his privy council, turning out the most stubborn opponents, as the Earls of Mar, Lothian, and Dumfries, with other decided Protestants, and introducing the Duke of Gordon, the Earls of Traquair and Seaforth, and other papists in their room, dispensing, by his own absolute authority,

with their taking the test. To them he most undisguisedly communicated his royal intentions in the plainest language of tyrannical assumption:—"It was not any doubt WE had of our power in putting a stop to the unreasonable severities of the acts of parliament against those of the Roman Catholic religion, that made us bring in OUR designs to our parliament, but to give our loyal subjects a new opportunity of showing their duty to Us, in which we promised ourselves their hearty and dutiful concurrence, as what was founded on that solid justice we are resolved to distribute to all, and consequently to our Catholic subjects. And to the end the Catholic worship may, with the more decency and security, be exercised in Edinburgh, we have thought fit to establish our chapel within our palace of Holyrood-house, and to appoint a number of chaplains and others whom we require you to have in your special protection and care. You are likewise to take care that there be no preachers nor others suffered to insinuate to the people any fears or jealousies, as if we intended to make any violent alteration; and if any shall be so bold, you are to punish them accordingly; for it is far from our thoughts to use any violence in matters of conscience, consistent with our authority and the peace of our ancient kingdom."

Still Mr Renwick was the Mordecai in the gate. He kept the fields, and continued to pursue his course steadfastly, notwithstanding the calumnies to which he was exposed, and the opposition he met with from several of the other persecuted ministers, and the dissensions among some who attended his ministry. About the end of the year, as he was preaching through Galloway, a protestation was presented to him by William M'Hutchison, in the name of all the professors between the rivers Dee and Cree, lamenting the woful effects of their divisions, and the adherence of so many to him without the consent and approbation of the remnant of godly and faithful ministers, and referring and submitting themselves in all these to an assembly of faithful ministers and elders. He retorted, "The divisions had arisen from those Presbyterian ministers who changed their commission and exercised their ministry under this abjured antichristian prelacy: from others, who took a new holding of their ministry from an arrogated headship over the church, by accepting indulgences, warrants, and restrictions from the usurper of their Master's crown: from others, who have been unfaithful in not applying their doctrine against the prevailing sins of our day: from others, who have satisfied themselves to lie by from the exercise of their ministry, and desisted from the work of the Lord, and that

when his vineyard stood most in need: and, he adds, from others, who have carried on or countenanced hotch-potch confederacies with malignants, and sectaries, and temporizing compilers.”^[168] But he was strengthened and comforted by the accession of two efficient coadjutors in his work—Mr David Houston from Ireland, and Alexander Shiels, who had escaped from the Bass, where he had been a considerable time confined. On the 9th of December, a proclamation was issued, offering a reward of £100 sterling to any who should bring him in dead or alive. In the end of the month, David Steil, in the parish of Lesmahago, was surprised in the fields by Lieutenant Crichton; and after he had surrendered upon promise of safety, was barbarously shot.

^{168.} This last accusation seems rather strained, as at this time there were no sectaries visible in Scotland, except Quakers or Gibbites, with neither of whom did the indulged confederate. In England and upon the borders, it is true, the good persecuted ministers united together, without much regard to church government, which the state of the times did not permit being very strictly observed among the sufferers, who appear to have practically adopted the general principle of the people judging of the character and qualifications of the ministers they heard, and of the consistent conduct of those with whom they held communion.—*vide* Memoirs of Veitch and Brysson.

[1687.] James’s precipitation in forcing popery upon his people appeared so impolitic, that even a jesuit missionary thought he made too great haste; but he told him he would either convert England or die a martyr; and, when one of his popish lords gently remonstrated with him, replied—“I am growing old, and must take large steps, else, if I should happen to die, I might perhaps leave you in a worse condition than I found you.” Yet with a strange inconsistency, he allowed both his daughters to be educated in the Protestant faith; and when he was asked why he was so little concerned about their conversion, replied—“God will take care of that!” But he had introduced shoals of seminary priests and jesuits for the instruction of his other subjects; and, while he interdicted the Presbyterian ministers from preaching or publishing any thing against his religion, under pain of treason, he employed these emissaries of Rome in every quarter; and having appointed Watson, a papist, his printer, assiduously caused publications in favour of popery to be widely disseminated. His most powerful argument, however, was, bestowing the chief places upon papists, especially converts, which induced many of the nobility and gentry to apostatize; and, like all

apostates, they became the bitterest persecutors of the faith they had forsaken.

Mr Renwick and his hearers continued to be the objects of unmitigated hatred, in proportion as they continued to hold fast their integrity and preach the gospel. Two persons returning from hearing him, James Cunningham, merchant, and John Buchanan, cooper in Glasgow, were seized, sent prisoners to Edinburgh, and banished to Barbadoes;^[169] and, on the 17th of February, the council received a letter from the king, in which he expressed his highest indignation against these enemies of Christianity, as well as government and human society, the field-conventiclers, whom he recommended to the council to root out with all the severity of the laws, and the most vigorous prosecution of the forces, it being equally his and his people's concern to be rid of them. At the same time, he sent a royal proclamation, allowing, "by OUR sovereign authority, prerogative, royal and absolute power," moderate Presbyterians and quakers to meet in their private houses, but to hear such ministers only as have accepted or are willing to accept the toleration without explanation; and in like manner, by the same absolute power, he suspended all laws and acts of parliament, and other proceedings, against Roman Catholics, so that they should in all time coming, not only be as free as Protestants to exercise their religion, but to enjoy all offices, benefices, &c., which he should think proper to bestow, upon their taking an oath acknowledging him as rightful king and supreme governor of Scotland, England, France, and Ireland, and over all persons therein, and that they would never resist his power or authority; at the same time, he declared he would never suffer violence to be offered to any man's conscience, nor use force or invincible necessity against any man on account of his persuasion. This, which was termed the first indulgence, did not pass the council unanimously. The Duke of Hamilton, and the Earls of Panmure and Dundonald, refused to sanction it; for which the Duke was reprimanded and the two Earls dismissed the board; and as a practical exposition of its real meaning, sixteen men and five women were shortly after, in the month of April, banished to America, because they would not own the present authority to be according to the word of God, nor engage never to hear Mr Renwick preach.

¹⁶⁹. Perhaps it does not belong exactly to *religious* persecution, but as it is a curious trait of the times, I quote the following:—"Reid the mountebank pursues Scot of Harden and his lady for stealing away from him a little girl, called the tumblin-lassie, that danced upon his stage; and

he claimed damages and produced a contract, whereby he bought her from her mother for £30 Scots. But we have no slaves in Scotland, and mothers cannot sell their bairns; and physicians attested the employment of tumblin would kill her; and her joints were now grown stiff, and she declined to return; though she was at least a prentice, and so could not run away from her master: yet some cited Moses' law, that if a servant shelter himself with thee against his master's cruelty, thou shalt surely not deliver him up. The lords *renitente cancellario*, in opposition to the Chancellor, assoilzied Harden."—Fountainhall's Decis. vol. i. p. 440. A few days after, his lordship adds, "Reid the mountebank is received into the popish church, and one of his blackamores was persuaded to accept of baptism from the popish priests, and to turn christian papist, which was a great trophy. He was called James, after the king, the chancellor, and the Apostle James."—Ibid. p. 441.

None of these indulgences satisfied fully the Presbyterian ministers, while they were decidedly testified against by the denounced wanderers. Another was therefore issued, July 5th, to palliate the former, giving them leave to meet and serve God after their own way, be it in private houses, chapels, or places purposely built or set apart for that use; while it again denounced the full vigour of the law and of the army against such as should be guilty of field-conventicles; "for which, after this our royal grace and favour—which surpasses the hopes and equals the very wishes of the most zealously concerned—there is not the least shadow of excuse left!"

On the 20th, the Presbyterian ministers from various parts of the country met at Edinburgh, and agreed to accept the benefit of the new toleration; but an address of thanks to the king, "for granting them the liberty of the public and peaceable exercise of their ministerial functions without any hazard," was not carried without considerable opposition. Upon this, many of the exiles returned from Holland, and among them Mr Patrick Warner, to whom the Prince of Orange, at parting, gave the following significant advice:—"I understand you are called home upon the liberty granted there; but I can assure you that liberty is not granted from any favour or kindness to you or your party, but from favour to papists and to divide you among yourselves; yet I think you may be so wise as to take the good of it and prevent the evil designed, and, instead of dividing, come to a better harmony among yourselves, when you have liberty to see one another and meet freely together."

The wanderers, as they were excepted, so they disregarded the toleration. Persecution had made them cling closer to their principles. They refused to accept as a favour what they believed themselves entitled to claim as a right—the liberty of worshipping God according to their conscience—and they

published their reasons:—They could not have any transactions with a person whose principles bound him to keep no faith with heretics, and whose dissimulation they had already detected. They considered accepting toleration from him as bargaining with an apostate, excommunicated, bigoted papist, and as such under the Mediator's malediction, "yea, heir to his own grandfather's [James VI.] imprecations, who wished the curse of God to fall upon such of his posterity as should at any time turn papists. They renounced him as a magistrate, because he had not taken the oath constitutionally required; and to accept this toleration flowing from his absolute power, would be acknowledging a power inconsistent with the law of God and the liberties of mankind; for, though nothing can be more desirable than when true liberty is established by the government, nothing can be more vile than when true religion is tolerated under the notion of a crime, and its exercise only allowed under certain restrictions." As to the address of thanks by the ministers, they considered it "a train of fulsome flatteries, dishonourable to God, the reproach of his cause, the betraying of the church, the detriment of the nation, and the exposing of themselves to contempt."

The conduct of the government, amid all their professions of toleration, fully warranted the worst suspicions of the persecuted. On the 25th July, John Anderson, younger of Wastertown, was indicted before the court of justiciary, for having in a tavern, over a glass of wine, argued in favour of using defensive arms against tyrants, and, by an execrable majority of that degraded tribunal, condemned to die. He was not executed, but the stain of the sentence remains upon the memories of the servile senators who pronounced it. And this was followed on the 5th October by a proclamation, not only forbidding all field-conventicles, under the usual penalty, but even indulged ministers, from preaching in houses, unless they observed the prescribed directions; that is, unless they abstained from exposing or in any way reflecting upon the king's religion, *i. e.* the errors of popery; and on the 18th, by another, all officers, civil and military, were ordered to apprehend James Renwick, and assured of the sum of £100 sterling for taking him dead or alive—a high price! but so cautious had he been, that he had eluded fifteen desperate searches made after him within five months since the first toleration, which exasperated the rulers beyond measure.

The year ONE THOUSAND SIX HUNDRED AND EIGHTY-EIGHT—a year greatly to be remembered as the last in the annals of the persecution in Scotland—was ushered in by a circumstance which threatened to rivet their chains upon the Presbyterians, but which in the good providence of God was the means of accelerating their deliverance. On the 2d of January, the Queen's pregnancy was announced; and the 29th was ordered to be observed as a day of thanksgiving in the diocese of Edinburgh, where the clergy were commanded to pray, after this form, for "Our gracious Queen Mary:—Good Lord, strengthen her, we beseech thee, and perfect what thou hast begun. Command thy holy angels to watch over her continually, and defend her from all dangers and evil accidents, that what she has conceived may be happily brought forth to the joy of our sovereign lord the king, the further establishment of his crown, the happiness and welfare of the whole kingdom, and the glory of thy great name!" The papists, who pronounced the conception miraculous in answer to a vow the Queen had made to the lady of Loretto, prophesied that the promised birth would be a son. The Protestants sighed in secret, and began to whisper their suspicions of a fraud.

On the 17th, Mr Renwick published a testimony against the toleration and in vindication of field-meetings, the convening of which he contended was a testimony for the headship, honour, and princely prerogative of Jesus—"Since in these meetings there is a particular declaration of our holding our ministry and the exercise thereof from Christ alone, without any dependence on, subordination to, or license from, his usurping enemies;" and this testimony he was shortly after called upon to seal with his blood. From Edinburgh he went to Fife and preached several Sabbaths, then re-crossed the Firth, and upon the 29th of January, preached his last sermon at Borrowstounness; thence he returned to the capital, where he arrived on the 31st, under cloud of night. Having gone to a friend's house on the Castle-hill, who dealt in English wares, a custom-house officer, Thomas Justice, was informed by one of his spies that a stranger had arrived; and early next morning he came with some others on pretence of searching for prohibited goods. Mr Renwick hearing the noise, came out of his room, when the officer standing at the door exclaimed—"My life for it, this is Mr Renwick!" on which Mr Renwick went to another door, and finding it also beset, fired a pistol to terrify his pursuers, and was attempting his escape, when he received a severe blow on the breast, that stunned him; and he fell

several times as he was running, and was taken. He was carried directly to the guard-house, and from thence to a committee of the privy council, who ordered him immediately to be laid in irons.

Previously to his being indicted, he was examined in Viscount Tarbet's chamber, when he undauntedly maintained his principles, disclaiming the idea that lineal descent alone gave a right to the crown, and disowning especially the authority of James as a papist, who had never taken the Scottish coronation oath, and therefore could not legally reign; justifying the non-payment of cess, as it was an impost levied for suppressing the gospel; and asserting the right of carrying arms at field-meetings as necessary self-defence. On every point about which he was questioned, he answered with an openness which greatly softened his inquisitors, and saved him the torture. He received his indictment on the 3d of February, charging him with having cast off the fear of God and all regard to his majesty's laws; of having entered into the society of rebels of most damnable and pernicious principles, and become so desperate a villain, as openly to preach in the fields these his treasonable doctrines. On the 8th he was brought to the bar of the justiciary.^[170] When asked whether he pled guilty or not guilty to his libel, he answered that he acknowledged all "except where it is said, I have cast off all fear of God; that I deny: for it is because I fear to offend God, and violate his law, that I am here standing ready to be condemned." Being asked if he had any objections to the jury, he made none, but protested "that none might sit on his assize that professed Protestant or Presbyterian principles, or an adherence to the covenanted work of reformation." He was found guilty on his own confession, and sentenced to be executed on the 10th. Lord Linlithgow, justice-general, asked if he desired longer time. He answered, it was all one to him; if it was protracted, it was welcome; if it was shortened, it was welcome: his master's time was the best.

¹⁷⁰. The following note is appended to his life in the last edition of the Scots Worthies, Glas. 1827. p. 541:—"It is to be remarked, that many of the jury were professors and eminent in the tolerated meetings; while others, even of the malignants, chose rather to run the hazard of the penalty;—as the Laird of Torrance, who compeared not, and Sommerville, chamberlain of Douglas, who, though he appeared, yet when he saw Mr Renwick turn about and direct his speech to them, ran away, saying—'He trembled to think to take away the life of such a pious-like man, though they should take his whole estate.'"

Many efforts were made to induce the youthful suffer to comply. He was reprieved to the 17th. Paterson, bishop of Edinburgh, appears to have interested himself much on his behalf. He often visited him, and applied for another reprieve, which would have been readily granted, provided Mr Renwick would only have petitioned. “Will you kill yourself with your own hands?” asked the bishop, “when you may have your life upon so easy terms.” He replied, he acted not rashly but deliberately, and was fully convinced that the truths for which he suffered were sufficient points to suffer for. The bishop took his leave, expressing his sorrow for his being so tenacious, and afterwards offered to serve him to the utmost of his power. Mr Renwick thanked him for his civility, but knew nothing he could do, or that he could desire. Mr Macnaught, a curate, visited him, robed in his canonicals—an insult which Mr Renwick appeared to feel, but took it calmly. When asked his opinion respecting the toleration and those that accepted it, he declared he was against it; but as for those that embraced it, he judged them godly men. He was also visited by some popish priests who essayed his conversion, but he peremptorily ordered them to be gone.

On the morning of his execution, the goodman of the tolbooth, *i. e.* head jailer, begged that on the scaffold he would not mention the cause of his death, and forbear all reflections. Mr Renwick told him that what God gave him to speak, that he would speak, and nothing else, and nothing less. The jailer said he might still have his life, if he would but sign that petition which he offered him. Mr Renwick replied, that he had never read in Scripture or history of martyrs petitioning for their lives when called to suffer for the truth; and in present circumstances, he judged it would be found a receding from the truth and declining a testimony for Christ. His mother and sisters, who had been kept away, at length obtained liberty to see him. He exhorted them much to prepare for death, expressing his own joyful assurance of endless glory. Observing his mother weep, he exhorted her to remember that they who loved any thing better than Christ were not worthy of him. If ye love me, rejoice that I am going to my Father, to obtain the enjoyment of what eye hath not seen, ear hath not heard, nor hath it entered into the mind of man to conceive. When the signal drum beat, he joyfully exclaimed—“Yonder the welcome warning to my marriage; the Bridegroom is coming—I am ready—I am ready.”

Then, after taking an affectionate leave of his mother and sisters, he was carried to the low council-house. Here he was offered any minister he chose to be with him, but he preferred being attended by a friend then in company, and proceeded cheerfully to the Grassmarket, surrounded by an immense multitude, which was the greater, that executions had not been so frequent of late. On the scaffold, he sang the 103d Psalm and read Revelations, chap. xix. Then he prayed, commending his soul to the Lord through the Redeemer, and his cause to be vindicated in his own good time. He blessed the Lord for the honour of the crown of martyrdom—an honour the angels are not capable of! Being disturbed in his devotions, he regretted the circumstance, but continued with ennobling anticipation. “By and by I shall be above these clouds, and enjoy, and worship, and glorify thee without interruption or intermission for ever.” After he had finished, he addressed the people, and stated the heads of his testimony, in terms similar to what he had used before the council, adding—“Ye that are the people of God, do not weary in maintaining the testimony of the day in your stations and places; and whatever you do, make sure an interest in Christ, for there is a storm coming which will try your foundations. And you that are strangers to God, break off your sins by repentance, else I will be a sad witness against you in the day of the Lord.” Here he was ordered to stop and go up the ladder. There he prayed again, and was heard to say—“Lord, I die in the faith that thou wilt not leave Scotland, but that thou wilt make the blood of thy witnesses to be the seed of thy church, and return again and be glorious in this land.” When the napkin was tying over his head, he said to his friend—“Farewell, be diligent in duty, make your peace with God through Christ. There is a great trial coming to the remnant I leave. I have committed them to God. Tell them from me not to weary nor be discouraged in maintaining the testimony. Let them not quit nor forego one of these despised truths. Keep your ground, and the Lord will provide you teachers and ministers; and when he comes he will make all these despised truths glorious upon the earth.” He was turned over the ladder with these words upon his lips—“Lord, into thy hands I commit my spirit; for thou hast redeemed me, O God of truth!”

Thus fell a standard-bearer in the Scottish Zion, at the early age of twenty-six—the last legal murder during this black period. Cut off in the prime of life and in the midst of usefulness, the death of this faithful witness appeared a dark dispensation; but as he himself had anticipated, it did more

service to the good cause than his preaching might have done, even had his life been prolonged many years; because, being perpetrated by a government which made strong professions of liberality, the question naturally arose, How far can we trust specious profession in political men, without not only legal but *bona fide* security for our rights? The principles for which he died were the principles which the Revolution sanctioned and settled; and wo to the country should they ever be despised or forgotten; and those principles which by the “conform ministers” were deemed “heights,” have since been declared the only bases upon which the best and the most thoroughly tried practical system of national and personal freedom can stand:—the obligation of the original compact [*i. e.* the coronation vow] between a king and a people, and the accountability of both the contracting parties. The less, however, such subjects are theoretically agitated the better—nor will they ever be violently urged, except when they are practically forgotten—but it was to the unshaken assertion of these principles, invigorated and chastened by principles of religion, that we owe the liberty we now enjoy—a liberty far beyond what any of the famed republics of old ever possessed, and which will only perish when these foundations are destroyed.

After the death of Mr Renwick, Mr Alexander Shiels, author of “The Hind let Loose,” continued to preach in the fields to the indomitable wanderers, who, immoveably attached to the covenanted work of reformation, refused to be ensnared by any precarious liberty which they rightly judged was only intended to pave the way for the introduction of popery; or receive any favour from a papistical usurper, who, by the fundamental laws of the country, was constitutionally excluded from the throne; and their conduct was more than justified by the treatment their compliant brethren received. There now, however, began to appear some streaks in the sky—some dawnings of the coming day.

The Rev. John Hardy, M.D., minister at Gordon,^[171] had in a sermon, last year, used some such expression as the following:—“They thanked his majesty for the toleration; but if they behoved to take away the laws against popery, sectarianism, &c., it were better to want it, and that any that consented to it, Zechariah’s flying roll of curses would enter the house and eat the stones and timber.” He was dealt with, says Fountainhall, to retract, which not finding liberty to do, he was continued [*i. e.* his case was

delayed] with a reprimand. But, on the 22d November, a letter came from the king “ordaining him to be panelled criminally before the justices for his preaching,” on which he was imprisoned, as “he would not fly, though he had leisure and advertisement.” On February 13, this year, an indictment was raised against him, for using seditious expressions and leasing-making, endeavouring to alienate the affections of the people from the king. He replied, “that upon Presbyterian principles, idolatry, even under the gospel, is punishable by death, and that popery is such. That the expressions had no sedition in them, seeing that he might regret that Socinians and others had liberty to vent their doctrine against Christ’s deity, &c.,” and the criminal lords, who appear to have had some prognostications of the coming change, “took the courage to find the expressions libelled not relevant to infer sedition,” therefore assoilzied him from the crimes libelled, and liberated him from prison. One Bold was indicted for having acted as precentor to Mr Renwick, and condemned to be hanged, but was reprieved; and Gilbert Elliot, who had been forfeited for engaging with Argyle, was not only pardoned, but admitted as an advocate.

[171](#). Several of the young men who intended the ministry, went over to Holland and studied medicine, and took degrees, and thus got their education without taking tests; but they had contracted a liberality (or, as it was termed, a looseness) of sentiment with regard to the rigid principles held by the wanderers, which occasioned a separation between them when they returned. The wanderers were naturally more wedded to the principles for which they had suffered so much, and which they had seen so many seal with their blood. The others had met with a variety of sects in Holland living in harmony, and were not over zealous for the uniform profession even of their beloved Presbytery:—on this they split at the Revolution.

On the 17th, Sir George Mackenzie was restored to his lord-advocateship; but no criminal informations were lodged during the short time that intervened between his appointment “and the glorious Revolution,” though several petty vexatious harassments showed that the tiger was only asleep, not dead. The Rev. Thomas Cobham, a native of Dundee, was, on the 23d May, imprisoned for having performed family-worship at his cousin Mr Smith’s, in that town, and both were committed to jail for the offence. About the same time, the council issued a proclamation, forbidding booksellers to disseminate any treatises tending to alienate the people from his majesty, or vend any translations of “Buchanan de Jure Regni,” “Lex Rex,” “Jus Populi,” “Naphtali,” “The Apologetical Relation,” “The Hind let Loose,” and the treasonable proclamations published at

Sanquhar, or those issued by the late Monmouth or Argyle. At Edinburgh, one of the councillors went into the shop of Mr Glen, a firm Presbyterian, to search for the proscribed books, but having found none, when retiring, asked the bookseller if he had any books against the king's religion. Mr Glen said he had a great many. The councillor asked to see them, and was immediately carried to where a goodly stock of Bibles were lying. "O! these are Bibles!" quoth the councillor. "True," replied the other, "and they are all against popery from the beginning to the end." For this the bookseller was summoned before the council, where he appeared the same afternoon, and was, we are told, brought to some trouble.

In nothing, however, did the ruling powers relax with regard to the wanderers. Having learned that a Mr David Houston had been proposed by the societies to succeed Mr Renwick in his perilous labours in the fields, he was apprehended in Ireland and brought prisoner to Scotland. Being ordered to Edinburgh, a general meeting which had convened at Lothar's, heard of his seizure, and fearing he would be murdered as Renwick had been, determined "to relieve him from these bloody murderers;" and immediately a few friends, armed, attacked the party escorting him at Carbelpath, and, after a sharp skirmish, in which some soldiers were killed, succeeded in rescuing him; but he having his feet bound under the horse's belly, was knocked over in the scuffle, and his head trailed some time on the ground before he could be unloosed, by which he lost his teeth, and was otherwise so much wounded about the head, that his elocution was rendered very indistinct. So he returned to Ireland, and there died. The last whose blood was shed, was George Wood, a youth about sixteen years of age, who was wantonly shot, without any questions being asked, by one John Reid, a trooper, whose only excuse when challenged for it, was—"He knew him to be a Whig, and these ought to be shot wherever they were found!"

Shortly after, the news of William Prince of Orange's landing in England reached Scotland; and to the honour of the persecuted, be it recorded, the Revolution was accomplished without bloodshed, or any one act of retaliation being inflicted by them, notwithstanding all they had suffered.

THE END.

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